

IRAQ:

Little new displacement but in the region of 2.8 million Iraqis remain internally displaced

A profile of the internal displacement situation

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

The Internal Displacement Monitoring Centre also carries out training activities to enhance the capacity of local actors to respond to the needs of internally displaced people. In its work, the Centre cooperates with and provides support to local and national civil society initiatives.

For more information, visit the Internal Displacement Monitoring Centre website and the database at www.internal-displacement.org.

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OVERVIEW

Little new displacement but in the region of 2.8 million Iraqis remain internally displaced

Seven years after the March 2003 US-led invasion, Iraq remains deeply divided. There are few prospects of durable solutions for the approximately 15 per cent of the population who are displaced inside and outside Iraq. It is thought that there are almost 2.8 million internally displaced people (IDPs), close to half of whom were displaced prior to 2003. Though Iraq is no longer in the grip of a humanitarian crisis, daily life for all Iraqis is precarious. Public health, electricity, water and sanitation services remain inadequate.

The number of civilian casualties fell significantly in 2009 but violence remains endemic. The rate of displacement has fallen with only isolated instances of new displacement. The rate of return of IDPs and refugees did not increase as many had anticipated and no other durable solution for IDPs is promoted by the Iraqi government. Iraqi society remains deeply divided and the neighbourhoods of Baghdad which were most affected by displacement are now more ethnically or religiously homogenous than at any time in Iraq's history. Tensions are high in many areas, particularly in the northern governorates of Kirkuk and Ninewa, and there is rising violence in the run-up to national elections taking place in March 2010.

The Iraqi government has taken steps to address displacement but has proven unable to meet the needs of IDPs or to dedicate the resources needed for them to be able to achieve durable solutions. IDPs have inadequate access to basic services and face considerable obstacles to enjoyment of their rights. Preliminary indicators suggest many IDPs will be unable to vote in coming elections.

The United Nations has increased its presence but its role remains limited. It works in previously inaccessible areas through implementing partners, but it is still constrained by insecurity. International NGOs, remotely managing programmes through local partners, are cautiously increasing their in-country presence but face numerous challenges. In many areas, Iraqi NGOs and faith-based or politically-affiliated agencies have provided assistance where the government has not.

Background

In March 2007, the UN acknowledged that Iraq was facing a humanitarian emergency (UNSC, March 2007; UN News, March 2007). Military operations, generalised violence adding to successive wars and 13 years of UN sanctions had eroded living standards. Policies pursued both by the Coalition Provisional Authority (CPA), the interim administration established in the aftermath of the March 2003 invasion, and subsequent Iraqi governments had exacerbated sectarian divisions (ICG, February 2006). The Sunni community was marginalised following Shi'ia and Kurdish gains in January 2005 elections and subsequently in the drafting of the constitution which was passed by referendum in October 2005 (ICG, February 2006). Sectarian violence between Sunni and Shi'ia militias following the February 2006 bombing of the Al Askari Shi'ia shrine in Samarra led to unprecedented civilian casualties (ICJ, February 2008). In Baghdad, militants sought to establish sectarian boundaries across what had been mixed neighbourhoods, systematically displacing members of opposing sects to consolidate territorial and political control. Several sectarian groups, affiliated to political actors and supported by state institutions, were involved (Brookings, August 2008).

In February 2007, a US military “surge” coincided with the realignment of some Sunni insurgent groups and the emergence of pro-government “awakening councils”. In March 2007 Muqtada al Sadr’s Shi’ia militia declared a ceasefire. These developments resulted in a significant decline in violence (UNSC, March 2007; ICG, April 2008). However, Iraq was left fragmented along sectarian lines, and by mid-2009 hundreds of civilians were still being killed each month (CSIS, November 2009; ICRC, August 2009).

The US armed forces withdrew from Iraqi cities by the end of June 2009, leaving the Iraqi Security Forces (ISF) to take charge. The US government has announced plans to withdraw its forces by January 2012 (Al Jazeera, November 2009; BBC, December 2009). Initiatives to accommodate Shi’ia, Sunni and Kurdish parties and actors have included modification of the “de-Baathification” law of 2003, an amnesty for insurgents in February 2008, integration of Sunni Arabs into political and security institutions, provincial elections in January 2009, and parliamentary and presidential elections in July 2009 for the Kurdistan Regional Government (KRG) which rules over the three northern governorates of Duhuk, Irbil, and Sulaymaniyah.

Forthcoming parliamentary elections, which are taking place in March 2010, could be a significant marker of progress towards national consensus and reconciliation. However, disputes about candidates’ eligibility and ongoing violence are a sombre reminder of the fragility of the situation (UNAMI, November 2009; HRW March 2010).

Though the number of civilian casualties fell significantly in 2009 violence remains endemic. Attacks in Baghdad and Mosul killed hundreds, while sectarian and ethnic-based tensions and generalised violence have continued in Ninewa, Anbar, Babylon, Salah-al-Din, Diyala, and Kirkuk (ICRC August 2009; HRW, November 2009; BBC, December 2009; CSIS, November 2009; IRIN January 2010).

Figures and patterns of displacement

Forced displacement in Iraq is commonly considered to have taken place in one of three periods: under the former Ba’ath government; from the March 2003 invasion until the February 2006 Samarra bombing; and since then.

Somewhere in the region of 2.8 million people were internally displaced as of July 2009, of whom an estimated one million had been displaced before 2003, approximately 190,000 between 2003 and 2006, and 1.55 million subsequently (UNHCR, November 2009, and March 2010). Though the government has recognised the situation of pre-2003 displacement, it only registers displacement following 2006. Figures from the Iraqi Ministry of Displacement and Migration (MoDM) are based on registration of IDPs in 15 central and southern governorates while KRG undertakes registration in the northern governorates (IDP WG, November 2008).

These figures should be approached with caution. Registration remains voluntary, and contingent on documentation which IDPs may lack. Multiple patterns of displacement also complicate the figures (Brookings, October 2006). The estimates of displacement up to 2003 are outdated and contested; observers suggest that displaced populations, particularly in northern Iraq, have been overestimated or underestimated according to parties’ claims over disputed territories (IDMC interviews, November 2008). Current pre-2003 figures are based on data obtained in 2005 by the UN Office for Project Services, by the UN High Commissioner for Refugees (UNHCR) and the International Organisation for Migration (IOM) (IDP WG, February 2008).

Monitoring and assessments undertaken by the humanitarian community, MoDM and KRG are mainly based on post-2006 figures. It is estimated that 60 per cent of the 1.77 million people internally displaced since then originate from Baghdad. The majority are Shi’ia and Sunni Arab

(57 and 30 per cent respectively) but there are also significant numbers from minority populations, notably Shabaks, Assyrians, Chaldeans, Armenians, Faeeli Kurds, Yazidis and Sabeen Mandeans (IOM May 2009; MRG, September 2009; IRIN, July 2008).

Host governments have suggested there are 1.9 million Iraqi refugees in neighbouring countries but these figures may be overestimated, since far fewer have registered with UNHCR. Iraq also hosts close to 35,000 refugees in 13 locations, principally in Irbil, Anbar and Duhuk. Most refugees are of Palestinian, Turkish or Iranian origin (UNHCR, November 2009).

Displacement before 2003

The former government forcibly displaced political opponents, particularly Kurds in northern Iraq and Shi'ias in the south. In the north, "Arabisation" campaigns were designed to thwart Kurdish aspirations to independence and strengthen control over oil reserves adjacent to the ethnically diverse city of Kirkuk. Land and houses belonging to evicted Kurds were offered as incentives to encourage Arabs to move there (RI, November 2003; UNCHR, February 1999). The end of the Iran-Iraq war in 1988 saw an intensification of atrocities against the Kurds. The Al-Anfal campaign in the late 1980s caused over 100,000 deaths and the destruction of some 4,000 villages (USCR, 2000; Dammers, 1998; HRW, August 2004). After the 1991 Gulf War, Iraq was divided: the northern governorates of Dohuk, Irbil and Sulaymaniyah came under Kurdish control, supported by a no-fly zone, and separated by the "green line" from the rest of the country.

In the predominantly Shi'ia southern governorates over 340,000 people were internally displaced. The government drained the Arab marsh land to facilitate movement of military units during the Iran-Iraq war and subsequently burnt villages and used chemical weapons. Between 100,000 and 200,000 of the marsh land's estimated population of 250,000 were displaced (UNHCR, August 2004; UNOHCI, June 2003). Many thousands more were displaced from the border with Iran during the Iran-Iraq war, of whom 80,000 people were still displaced within Basra province in 2004 (UNCT, August 2004). Political and religious persecution was a further cause of displacement in the south and in Baghdad (UNHCR, August 2004). In 1998, at least 25,000 people were reportedly expelled from Baghdad (Fawcett and Tanner, October 2002).

Post-2003 displacement

It is estimated that 190,000 people were displaced between 2003 and the end of 2005 as result of military operations (IOM, January 2008; Cluster F, 2007). Following the 2003 invasion, thousands of people were displaced by air strikes and urban warfare in Anbar, Thi'Qar, Basra and Baghdad (UNCT, August 2004). In the first post-invasion years, operations by the Multi-National Force – Iraq (MNF-I) and Iraqi units against armed insurgents were the main causes of displacement, particularly in predominantly Sunni western areas. Most displacements were temporary (Brookings, October 2006). In November 2004, almost the entire population of Fallujah was temporarily displaced. Meanwhile, after the fall of the former government, thousands of displaced Kurds, Turkomans and others began returning to the north, while Iraqi Arabs were forcibly displaced from northern areas (RI, November 2003).

Post-2006 displacement

The most significant cause of displacement since the invasion has been sectarian conflict, following the bombing of the Al-Askari shrine in Samarra in February 2006. By December 2007, close to 1.6 million people were estimated to have been displaced since early 2006. Those at most risk were Sunni and Shi'ia in locations where they were members of minorities, and mixed Sunni/Shi'ia households (HRW, November 2006). Triggers for displacement included abductions, assassinations, and intimidatory phone calls, graffiti and leaflets (IOM, February 2007; Brookings, October 2006). Most violence and displacement took place in and around Baghdad but it was also significant in Ba'quba, Samarra, Abu Ghraib, Mosul and Basra.

Professionals, intellectuals and those associated with the coalition forces were also targeted and forced to flee (UNAMI, January 2007). Refugees, particularly Palestinians, and members of minority groups such as Chaldeans, Assyrians, Yazidis, Shabak, Turkmen, Sabean-Mandean and Roma also faced persecution, and many sought refuge in Kurdish regions. Iraqi Arabs have continued to be forcibly displaced from the north. In the second half of 2007 at least 2,000 families fled Kirkuk (UNHCR, January 2007; IRIN, September 2007). Clashes between Sunni and among rival Shi'ia militias in southern Iraq also caused displacement (UNSC, December 2006).

Decline in rates of displacement since 2007

The rate of displacement has substantially declined since late 2007 but this has coincided with an increasingly pronounced sectarian divide, most visibly in Baghdad. The MNF-I and ISF cordoned off areas of Baghdad with concrete barriers; some have since been removed but others have been erected, leaving many formerly diverse neighbourhoods ethnically homogeneous.

In 2008 and 2009, MNF-I and ISF waged large-scale counter-insurgency operations in Basra, Sadr City in Baghdad, Amarah, Baquba, and Mosul. Operations against the Mahdi militia in Sadr City in 2008 led to the temporary displacement of approximately 4,700 families (IOM, June 2008).

Sectarian and ethnic tensions, fuelled by disputes over governorate borders, continued to cause displacement, although it has become less frequent. Hundreds of families were reportedly displaced in Kirkuk due to ethnic tensions in 2008 (IOM, September 2008). In October 2008, some 2,000 Christian families fled Mosul, following sectarian violence and intimidation (UNHCR, November 2008).

In 2009, while there was no further major conflict-related displacement, there were ongoing isolated cases of displacement. Meanwhile, observers warned that rising tensions over disputed territory in northern Iraq could trigger further displacement (IOM, July 2009 and September 2009; HRW, June 2009). In early 2010, approximately 4,300 Christians fled sectarian violence in Mosul (OCHA, March 2010). Flash floods and drought have displaced over 4,200 families mostly in Kirkuk, Ninewa and Salah-al-Din but also in Missan, Thi-Qar and Basra (OCHA, December 2009; UNAMI and OCHA, November 2009).

Protection and assistance needs

Despite the decline in violence, the UN and the humanitarian community have continued to report human rights abuses against civilians by militias, criminal gangs and security forces (UNAMI, December 2008; UNAMI December 2009). In mid-2009 it was reported that 500 civilians were being killed and over 2,000 injured each month, mainly in Ninewa, Baghdad and Diyala (ICRC, August, 2009). Kidnappings, assassinations, forced recruitment, explosions, unexploded ordnance and mines, sexual and gender-based violence and generalised criminality and violence are still experienced by IDPs and host communities. Perpetrators of human rights abuses have continued to enjoy impunity (UNAMI, December 2009; UNHCR, December 2009; IDP WG, November 2008).

In a survey in the second half of 2009, 11 per cent of post-2006 IDPs and 28 per cent of returned IDPs reported being targeted due to their religious and political affiliation. Six per cent reported having been targeted simply because they were IDPs (UNHCR, December 2009). 30 per cent of IDPs surveyed reported that family members, including children, were absent after being kidnapped, abducted or detained (UNHCR, December 2009).

Many Iraqis have been forced to flee to areas where employment and public services are limited, overstretched or non-existent. Host communities have increasingly found it a burden to share limited resources (Cluster F, February 2007; IDP WG, November 2008). There have been

tensions over scarcity of resources, overburdened social services, shortages of housing, property disputes and rising prices (UNHCR, December 2009).

Over 70 per cent of IDPs are women and children (IOM, May 2009). Displaced female heads of household, households headed by older people, widows, divorced people, women without male relatives, and orphans are acutely vulnerable (UNHCR, December 2009) but their numbers are not known. There is concern that gender issues are not sufficiently addressed in the national response to displacement (NCCI, January 2010; RI, July 2009; ICRC, March 2009).

Freedom of movement, registration and voting rights

Checkpoints, curfews, permission requirements, and security barriers continue to restrict the movement of both displaced and non-displaced Iraqis, particularly in and around Baghdad (IDP WG, November 2008; UNHCR December 2009). Though most governorate authorities allow IDPs to enter, there have been obstacles to registering. In 2009, the government issued an order halting further registration of IDPs (IOM, February and May 2009). However there were reports of continuing registration in some governorates (IOM, May 2009).

Reasons for non-registration include bureaucratic delays, lack of documentation, perceived lack of benefit, or fear of being identified by the authorities (IDMC interview, January 2010; UNHCR, December 2009). Unregistered IDPs are unable to rent or purchase property, vote, obtain land title and access services specific to IDPs (IOM, January 2008; UNHCR, August 2008; UNHCR November 2009). The number of unregistered post-2006 IDPs identified may rise as more areas are assessed (IDMC interview, December 2009).

Each governorate has different requirements for IDPs trying to register. These may include an original residency card, the card needed to access the Public Distribution System (the PDS, Iraq's long-established basic food distribution programme), the national identity card or a letter of approval from municipal councillors, mayors, local police or the MoDM (IOM, June 2008; UNHCR, September 2008). Registration has been tightly restricted in areas with high levels of sectarian violence such as Kirkuk. In northern governorates, IDPs without sponsorship were reportedly blocked from registration until recently. In late 2008, IDPs were also reportedly denied registration due to sectarian, ethnic or tribal bias (UNHCR, September 2008). This continues to be observed on a small scale (UNHCR, December 2009). Some newly displaced people are reportedly not being registered (IDMC interview, January 2010).

There is growing concern about IDP participation in the scheduled March 2010 elections. Surveys show IDPs and returnees are well informed about voter registration procedures but over 30 per cent fear they will be unable to register due to lack of required documentation and bureaucratic delays in updating voting registries (UNHCR, December 2010).

Shelter, livelihoods and access to basic services

There has been an overall reduction in the standard of living of all Iraqis since 2003 (OCHA, February 2008 and December 2009). Most IDPs are concerned about shelter, food, employment and access to basic services (IDP WG, November 2008; OCHA December 2009). Unemployment particularly affects IDPs, as they move to areas where their skills might not be marketable (IOM, June 2008). Most IDPs, particularly women, cannot find work. Over 60 per cent of IDP families have no members employed (IOM, May 2009; IDP WG, June 2008).

Shelter remains a high priority for all Iraqis. Many dwellings are dilapidated, overcrowded and unsafe. The government reports a housing deficit of some two million units and that 57 per cent of the urban population lack access to clean water, sanitation or secure tenure (OCHA, December 2009). Over 60 per cent of post-2006 IDPs are thought to live in rented housing, 15 per cent with host families and over 20 per cent in collective settlements, tents, former military camps, and public buildings. In 2008 it was thought that over 250,000 IDPs were occupying public property

(UNHCR, September 2008). In 2009, UNHCR estimated over 450,000 IDPs resided in informal collective settlements (UNHCR, December 2009). IDP tenants often endure overcrowded conditions in substandard dwellings and are at risk of eviction. IDPs in public buildings or on public land live under constant threat of eviction by local authorities (IDP WG, November 2008; OCHA, December 2009).

Government directives in January 2009 called upon squatters to vacate public buildings, and although a postponement was subsequently announced, IDPs have continued to report being evicted or facing the threat of eviction (IDMC interview, January 2010; UNHCR, December 2009).

Most IDPs, like many other Iraqis, rely on the PDS for basic food, but they face considerable obstacles accessing the system. A third of IDPs interviewed in late 2009 did not have a PDS card valid in their governorate of residence and only 15 per cent of those with one reported receiving their full monthly entitlement (UNHCR, December 2009). Though over 90 per cent of IDPs assessed by UNHCR reported being able to obtain health care, a quarter could not afford health care fees (UNHCR, December 2009).

Prospects for durable solutions

The rates of return of IDPs and refugees have not increased in the last year. As of November 2009, UNHCR and IOM estimated that around 350,000 IDPs displaced since 2006 had returned. 60 per cent of them had gone back to Baghdad and 30 per cent to Diyala. This returnee monitoring focuses mainly on post-2006 displacement (IOM, November 2009; UNHCR, November 2009). By December, MoDM had registered only 44,000 returnee families, or approximately 260,000 people (MoDM, December 2009). While some families do not meet all necessary specifications, the high number of returnees has created a registration backlog (IOM, February 2009; IDMC interview, January 2010). Most returnees are Shi'ia and Sunni Arabs going back to areas where they are a majority, but minority returns have also been noted (IOM, November 2009; UNHCR, February 2009). In the past two years an additional 60,000 refugees have been repatriated (IOM, November 2009; UNHCR, December 2009).

Return is the preferred option of only an estimated 52 per cent of post-2006 IDPs. A quarter express a preference to integrate in their place of displacement while 20 per cent wish to resettle elsewhere (IOM, November 2009). Nonetheless, government programmes have focused primarily on return, with no policies on resettlement or integration. NGOs have repeatedly warned of the dangers of encouraging premature return and failure to consider other durable solutions (RI, July 2008, and April 2009; IDMC interview, December 2009).

UNHCR did not in 2009 encourage refugees to return to Iraq, due to the fragile security situation, though it has facilitated voluntary return (UNHCR, July and November 2009). IOM, following a 2007 government request, has worked with MoDM to facilitate voluntary returns of refugees (IOM, November 2008).

The Iraqi government has sought to encourage and support IDPs wishing to return to their place of origin. In mid-2008, the MoDM opened two centres in Baghdad to help returnees register, receive assistance and resolve property issues (GoI, July and August 2008). A third was reportedly established in Diyala in mid-2009, and branch offices opened in Anbar and Salah-al-Din. As of 2008, returnees could receive around \$850 after returning to their place of origin and formally renouncing their IDP status. Registered IDPs in Baghdad who agreed to vacate premises of returnees they have illegally occupied could apply for rental assistance worth around \$250 per month for six months. Those who refused to leave risk prosecution under anti-terrorism legislation (GoI, July and August 2008). In Baghdad and Diyala, returnees are also reportedly provided additional protection by local authorities.

In September 2009, the Iraqi government extended measures adopted in Baghdad to Diyala, one of the governorates worst affected by sectarian violence (GoI, July 2009; UNHCR, October 2009; UNAMI, February 2010). It allocated some \$78 million for reconstruction and facilitation of sustainable returns to 27,500 families (UNHCR, October 2009). Priority is being given to 400 villages with high returnee populations many of which are ethnically heterogeneous. There are plans to expand the Diyala model in late 2010 to three key areas in Baghdad (Mada'en, Doura and Sabalbour) and subsequently to the governorates of Salah-al-Din, Ninewa and Anbar (UNHCR, October 2009).

Government initiatives to promote or facilitate return have had mixed results and are limited to registered IDPs displaced between 2006 and January 2008, thus excluding many from minority communities. Returnees are concerned about lack of protection, inadequate state support, bureaucratic procedures and sectarian bias (UNHCR, December 2009; IOM, November 2009; NCCI, January 2010). By the end of 2009, only 40 per cent of returnees interviewed had registered and applied for a grant, and only 30 per cent of those who applied had actually received one (IOM, November 2009). 70 per cent of returnees interviewed in 2009 said they had not received any government assistance (IOM, November 2009).

Continuing insecurity, destroyed or occupied housing, limited access to livelihoods and basic services, and the ethnic or religious make-up of return areas are leading obstacles to the return of refugees and IDPs. In 2009 there were only a few reported incidents of returnee families being specifically targeted but these cases have had a powerful deterrent impact on would-be returnees. A survey of returnees found 38 per cent reported not always feeling safe (IOM, November 2009).

Secondary occupation and property restitution

There are significant numbers of unresolved property issues for pre- and post-2006 IDPs. The current extent of secondary displacement is not known, though an estimated 15 per cent of returned IDPs and 56 per cent of repatriated refugees were in 2009 reportedly unable to access their property (UNHCR, December 2009). In September 2008, MoDM reported that almost 3,500 properties were illegally occupied, including houses, flats, other buildings and land, though anecdotal evidence suggests higher rates of secondary occupation. Nearly 36 per cent of IDPs report their property has been destroyed or damaged and 18 per cent that it is being occupied illegally by militias, local residents or other IDPs; many fear harassment should they attempt to reclaim property (UNHCR, December 2009).

The government has taken steps to facilitate property restitution but its mechanisms are fraught with difficulties. In 2009, approximately 60 per cent of IDPs surveyed reported not seeking assistance from relevant institutions as they lacked required documents, did not trust state institutions, could not afford required fees, or feared retribution (UNHCR, December 2009). The main government measures only relate to property disputes for registered IDPs, exclude businesses and other non-residential property, and do not assist returnees who have been forced to sell property under duress or who were tenants prior to displacement (USIP, April 2009; Brookings-Bern, February 2010). Neither do they include compensation for those who do not wish to return but would prefer to integrate in their place of displacement.

To date, the two MoDM centres in Baghdad have processed over 3,000 property restitution cases. In almost 1,900 cases, property has reportedly been restored (MoDM, December 2009; IRIN, January 2010). However critics note that many of those whose property has been adjudged to have been illegally expropriated have not recovered it (IRIN, January 2010).

These mechanisms complement other property restitution mechanisms for pre-2003 IDPs. The Commission for the Resolution of Real Property Disputes (CRRPD) aims to settle land and property disputes arising from displacement caused by the former government's policies between

July 1968 and April 2003. The CRRPD has been criticised for delays and non-enforcement of decisions. By October 2009, it had received over 152,000 claims and ruled on almost 43,000 (CRRPD, October 2009). As of April 2009, only 1,000 decisions had been enforced. At the current rate of progress it will take two decades to finalise all claims (USIP, April, 2009; Brookings-Bern, February 2010). The CRRPD does not address property destruction, leaving many victims of the former government without redress (Brookings-Bern, February 2010). This is particularly problematic in areas where whole villages were destroyed.

In early 2010, legislation was reportedly passed establishing the Real Property Claims Commission (RPCC) which shall replace the CRRPD and include a compensation programme for movable and immovable property expropriated or damaged under the former government.

National and international responses

The government has taken several important steps to address the needs of returnees and IDPs, however its ability to respond to the needs of IDPs and provide for durable solutions has been weakened by insecurity, sectarianism and lack of national reconciliation, and also lack of institutional capacity, corruption and bureaucracy (RI, April 2008; Brookings, August 2008; IDMC interview, January 2010).

MoDM is mandated to address IDP and refugee issues, and the Ministries of Trade, the Interior, Health, Education and others are also engaged. MoDM has extended its presence in most governorates, enhanced national registration procedures, and facilitated returns. It played a pivotal role in the July 2008 adoption of the National Policy on Displacement, but has not developed a plan to implement the durable solutions it proposes (MoDM, July 2008; IDMC interview, December 2009).

The Iraqi government allocated \$210 million to IDP programmes in late 2008 but cut financial assistance to \$42 million in its 2009 budget. Approximately \$170 million has been allocated in the 2010 national budget, which is yet to be approved as of February 2010. The Iraqi Parliamentary Committee on Displacement and Migration has consistently appealed for increased budgetary allocations and criticised slow (or non-) disbursement of funds to returnees and IDPs (IRIN, September 2008 *and* January 2010).

UN and bilateral assistance

After the withdrawal of UN international staff in 2003, the UN faced significant challenges in responding to humanitarian needs. In December 2007, the UN Assistance Mission in Iraq (UNAMI) established “sector outcome teams” (SOTs) to link development, reconstruction and humanitarian interventions, including displacement responses. A complementary UN-led working group on IDPs until early 2009 played a crucial role in highlighting IDP issues.

IOM and UNHCR, working through implementing partners, are the leading displacement response organisations and also help enhance MoDM’s capacity. UNHCR has also sought to enhance the capacity of over a hundred national NGOs.

UN agencies have continued to expand their presence in Baghdad, Basra, Najaf, Kirkuk, Mosul and Irbil (UN SC, July 2009 *and* February 2010). UNAMI’s ability to undertake effective humanitarian work has continued to be impaired by its operational restrictions and dependence on MNF-I for security (Brookings, August 2008; NCCI, January 2008). While the UN, through implementing partners, has access to all governorates, observers question the effectiveness of its coordination mechanisms and its ability to accurately monitor operations (FIC, December 2008; IDMC interviews, October 2008 *and* December 2009).

In December 2009, the UN announced the \$194 million Iraq Humanitarian Action Plan (IHAP). The IHAP, intended to build on the greater cohesiveness demonstrated by the launch in Iraq in 2008 of the inter-agency Consolidated Appeal Process, has prioritised 26 vulnerable districts where integrated humanitarian assistance projects are to be implemented (OCHA, December 2009). The IHAP does not include UNHCR Iraq's \$264 million programme.

These funds are separate from the International Reconstruction Fund Facility, other bilateral assistance, and humanitarian and reconstruction support provided by military-led humanitarian and reconstruction efforts. Assistance provided in the name of counter-insurgency continues to overshadow that provided by traditional humanitarian actors and blurs boundaries between military and civilian endeavours. Up to January 2008, the US Congress allocated over \$4.5 billion to such military-led mechanisms in Iraq (Washington Post, November 2008).

International and National NGOs

National and international NGOs play a significant role, often delivering assistance to IDPs at considerable risk to staff. Since 2003 over 98 aid workers, mostly national, have been reported killed, including several targeted in Baghdad in January 2010 (NCCI, January 2008; IWPR, January 2010). Several international NGOs have relocated international staff to central and southern Iraq, but due to insecurity many have continued to operate remotely from KRG-controlled governorates or neighbouring countries (NRC, August 2009; FIC, November 2008).

There are thousands of national NGOs, many established after 2003. Many appear to lack credibility and capacity (NRC, August 2009). Mosques and Islamic charities, churches and informal community groups have actively assisted IDPs. In addition, sectarian parties and institutions affiliated to militias or political parties have filled the vacuum caused by the limited state response (Brookings, October 2006; FIC, February 2007).

National and international NGOs have called for wider support for IDPs and returnees and have continued to underline the need for a more creative and adaptable operational response and coordination system (IRIN, December 2009; IDMC interview, November 2009).

CAUSES AND BACKGROUND

Background

Former Iraqi government suppression of Kurdish community 1960-1990s

- Between 1960-1975, fighting between Kurdish militia and Iraqi government, as well as between militia, caused the displacement (internally and abroad) of about 600,000 and the forced relocation of 300,000. In 1974, the Iraqi government unilaterally created the Kurdistan Autonomous Region which excluded the oil wealth of Kirkuk and Khanaqin. The Kurdish revolt in 1974 led to forced relocation of tribesmen linked to the leader of the revolt. Following autonomy decree the 'Arabization' campaign began in the Kirkuk region replacing Kurds with Arabs moved from the South
- Eight years of the Iraq-Iraq war between 1980 to 1988 allowed Saddam Hussein to consolidate his rule in Iraq. 'Anfal policy,' which began towards the end of the war, resulted in between 50,000 and 200,000 Iraqi Kurds being killed and about 500,000 deported to new 'collective settlements' and detention camps
- In 1991 the cease-fire between Iraqi and Allied forces, which put an end to the Gulf War, was immediately followed by uprisings in the Kurdish north. Since 1991 regions in the north and northeast of the country have been under the control of Kurdish parties
- The two major Kurdish parties of northern Iraq, Kurdish Democratic Party led by Masoud Barzani, and Patriotic Union of Kurdistan, led by Jalal Talabani fought intermittently since the Gulf War until 1998 when they agreed to a Washington-brokered peace agreement. Most of the measures described in the 1998 peace agreement were still not implemented in 2000
- In 2004, the Kurdistan Regional Government (KRG) is recognised by the Law of Administration for the Transitional Period. Regions administered by KRG now defined as those governed by the autonomous Kurdistan authorities since late 1991. KRG will continue to administer as it has done, throughout the transitional period, except in regards to federal law

Dammers, 1998, p.181-182

"In the 1960s, Iraq witnessed several changes of government and fluctuating conflicts in which the Barzani [KDP] and to a lesser extent the Talabani [PUK] militias played a significant role. In 1970, 300,000 people were reported displaced in Kurdistan, the result of fighting between Kurdish militias and the government, as well as between the militias themselves. By 1975, when the government defeated Barzani's KDP, as many as 600,000 were displaced, 250,000 over the border to Iran. The Iraqi government forcibly relocated perhaps 1400 villages and 300,000 people, mainly to 'strategic hamlets' designed to facilitate government containment and control. Along the Iranian border depopulation was almost total, with villages bulldozed to prevent return."

"The Iran-Iraq war (1980-88) completed the displacement of much of Iraq's Kurdish population. Towards the end of the war, following increasing collaboration between Iran and Kurdish guerrilla forces, the Iraqi regime pursued its genocidal *Anfal* policy, killing between 50,000 and 200,000, and destroying about 3000 Kurdish villages and hamlets. Their inhabitants – over half a million people – were deported to new 'collective settlements' away from border or mountain areas, or to detention camps in south and west Iraq. Others fled to Iran. Many of these people have been displaced more than once since then."

"...The cease-fire between Iraqi and Allied forces [following the Gulf War] was immediately followed by uprisings in the Kurdish north and Shi'a south of Iraq. Kurdish guerrillas briefly occupied the whole of Iraqi Kurdistan, but the reoccupation of most of the region by Iraqi government troops led to as many as two million people fleeing to Iran, Turkey, and those areas still under Kurdish control. These areas soon included the 'safe haven', initially patrolled by Allied troops, comprising those parts of Iraqi Kurdistan adjacent to the Turkish border. Most of the cross-border refugees later returned to areas under Kurdish (and/or Allied) political control, which expanded greatly following the substantial withdrawal of Iraqi troops in October and November 1991."

"HRW, 1993, "Introduction"

"In 1970, the Ba'ath Party, anxious to secure its precarious hold on power, did offer the Kurds a considerable measure of self-rule, far greater than that allowed in neighboring Syria, Iran or Turkey. But the regime defined the Kurdistan Autonomous Region in such a way as deliberately to exclude the vast oil wealth that lies beneath the fringes of the Kurdish lands. The Autonomous Region, rejected by the Kurds and imposed unilaterally by Baghdad in 1974, comprised the three northern governorates of Erbil, Suleimaniyeh and Dohuk. Covering some 14,000square miles -- roughly the combined area of Massachusetts, Connecticut and Rhode Island -- this was only half the territory that the Kurds considered rightfully theirs. Even so, the Autonomous Region had real economic significance, since it accounted for fully half the agricultural output of a largely desert country that is sorely deficient in domestic food production.

In the wake of the autonomy decree, the Ba'ath Party embarked on the "Arabization" of the oil-producing areas of Kirkuk and Khanaqin and other parts of the north, evicting Kurdish farmers and replacing them with poor Arab tribesmen from the south. Northern Iraq did not remain at peace for long. In 1974, the long-simmering Kurdish revolt flared up once more under the leadership of the legendary fighter Mullah Mustafa Barzani, who was supported this time by the governments of Iran, Israel, and the United States. But the revolt collapsed precipitately in 1975, when Iraq and Iran concluded a border agreement and the Shah withdrew his support from Barzani's Kurdistan Democratic Party (KDP). After the KDP fled into Iran, tens of thousands of villagers from the Barzani tribe were forcibly removed from their homes and relocated to barren sites in the desert south of Iraq. Here, without any form of assistance, they had to rebuild their lives from scratch.

In the mid and late 1970s, the regime again moved against the Kurds, forcibly evacuating at least a quarter of a million people from Iraq's borders with Iran and Turkey, destroying their villages to create a cordon sanitaire along these sensitive frontiers. Most of the displaced Kurds were relocated into *mujamma'at*, crude new settlements located on the main highways in army-controlled areas of Iraqi Kurdistan. The word literally means "amalgamations" or "collectivities." In their propaganda, the Iraqis commonly refer to them as "modern villages"; in this report, they are generally described as "complexes." Until 1987, villagers relocated to the complexes were generally paid some nominal cash compensation, but were forbidden to move back to their homes.

"...After 1980, and the beginning of the eight-year Iran-Iraq War, many Iraqi garrisons in Kurdistan were abandoned or reduced in size, and their troops transferred to the front. In the vacuum that was left, the Kurdish *peshmerga*--"those who face death"--once more began to thrive. The KDP, now led by one of Barzani's sons, Mas'oud, had revived its alliance with Teheran, and in 1983 KDP units aided Iranian troops in their capture of the border town of Haj Omran. Retribution was swift: in a lightning operation against the complexes that housed the relocatedBarzanis, Iraqi troops abducted between five and eight thousand males aged twelve or over. None of them have ever been seen again, and it is believed that after being held prisoner for several months, they were all killed. In many respects, the 1983 Barzani operation

foreshadowed the techniques that would be used on a much larger scale during the Anfal campaign."

"Anfal—the Spoils—is the name of the eighth *sura* of the Koran. It is also the name given by the Iraqis to a series of military actions which lasted from February 23 until September 6, 1988. While it is impossible to understand the Anfal campaign without reference to the final phase of the 1980-1988 Iran-Iraq War, Anfal was not merely a function of that war. Rather, the winding-up of the conflict on Iraq's terms was the immediate historical circumstance that gave Baghdad the opportunity to bring to a climax its longstanding efforts to bring the Kurds to heel. For the Iraqi regime's anti-Kurdish drive dated back some fifteen years or more, well before the outbreak of hostilities between Iran and Iraq."

To view official Iraqi documents on the Anfal policy, please visit the site of the Iraqi Research and Documentation Project, launched in June 1993 and sponsored by the Harvard Center for Middle Eastern Studies (CMES) [[External Link](#)] For key dates of Iraq's history, please see BBC News Timeline [[External Link](#)]

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USIP, 17 February 1999, "The Problem"

"The present regime in Baghdad came to power through a coup in 1968. The coup gave prominence to a young officer in the Ba'ath Party intelligence apparatus named Saddam Hussein. Ahma Hassan al-Bakr served as president and maintained titular power until Saddam deposed him and declared himself president on July 16, 1979. Just more than a year after seizing uncontested control over Iraq, Saddam declared war on Iran. While the goals of the war – reclaiming Iraqi territory conceded in 1975 border negotiations, ending Iranian support for Kurdish separatists in the north, and overthrowing a regime in Tehran that was openly calling for an Islamic revolution inside Iraq among others – can be debated, the gruesomeness of the war that followed cannot. The war produced about 1.5 million casualties during eight years of hostilities, ending in a cease-fire that essentially left prewar borders unchanged. The Iran-Iraq war was the first time since the interwar years that chemical weapons were used in combat. Probably beginning in 1984, and almost certainly by 1986, Saddam Hussein used chemical weapons in the battlefield against Iranian troops. Such use drew the condemnation of the United Nations in 1986, although such condemnation was muted by international antipathy toward the regime in Tehran. The eight-year-long war exhausted both countries, but it allowed Saddam to further consolidate his rule in Iraq. The constant war footing allowed an already paranoid regime to more ruthlessly root out its opponents and more loudly proclaim the glories of its leader." When the war wound down, Saddam turned to damping internal divisions in his country and began a campaign against a Kurdish insurgency in the north. In that campaign, Saddam again turned to chemical weapons, using a combination of mustard gas and nerve gas that killed some 5,000 civilians in the town of Halabja in August 1988. As in his war with Iran, Saddam's use of chemical weapons (this time against civilian targets) failed to raise outrage [at the international level]."

UN SC, 5 April 1991

In April 1991, the UN SC Resolution 688 said that the UN SC:

" 1. Condemns the repression of the Iraqi civilian population in many parts of Iraq, including most recently in Kurdish populated areas, the consequences of which threaten international peace and security in the region;
2. Demands that Iraq, as a contribution to remove the threat to international peace and security in the region, immediately end this repression and express the hope in the same context that an open dialogue will take place to ensure that the human and political rights of all Iraqi citizens are respected;
5. Requests further the Secretary-General to use all the resources at his disposal, including those of the relevant United Nations agencies, to address urgently the critical needs of the refugees and displaced Iraqi population."

USCR, 1997, pp.151-152

"The safe haven zone in northern Iraq, created and maintained by the United States, Britain, and France since 1991 through Operation Provide Comfort, showed signs of collapse throughout the year [1996]. As the two sides fought, the governments of Turkey, Iran, and Iraq each appeared ready and willing to intervene overtly or covertly in an attempt to take advantage of the situation. [...] On August 31 [1996], [Iraqi] government forces entered the city of Erbil, located within the Kurdish safe haven zone, after being invited in by the KDP, which hoped that an alliance with the government would tip the balance of power in the north against the PUK. After surrounding Erbil with tanks, Iraqi troops and government agents entered the town, searching house to house for suspected opponents of President Saddam Hussein, killing some immediately, arresting others and taking them back to Baghdad. Iraqi troops reportedly looted and vandalized the areas they entered, completely looting 500 schools, according to UNICEF, and ransacking hospitals and municipal buildings. [...] The penetration of the safe zone by Iraqi troops and fighting between the Kurdish factions created widespread hardship and displacement. [...] Ironically, in some respects the collapse of the safe zone had its benefits for many of the other residents of the north. In addition to international sanctions, northern Iraq had been subjected to an internal blockade from Baghdad. Starting in September [1996], that blockade was eased, and Kurds from the north were able to engage in trade with government-controlled Iraq."

US DOS, 25 February 2000, Section 3

"In northern Iraq, all central government functions have been performed by local administrators, mainly Kurds, since the Government withdrew its military forces and civilian administrative personnel from the area after the 1991 uprising. A regional parliament and local government administrators were elected in 1992. This parliament last met in May 1995. The two major Kurdish parties in de facto control of northern Iraq, the KDP and the PUK, battled one another from 1994 through 1997. In September 1998, they agreed to unify their separate administrations and to hold new elections in July. The cease-fire held throughout the year; however, reunification measures were not implemented and no election was held."

Fawcett & Victor, Oct 02, p7

"The areas of the North under the control of the Kurdistan Regional Government (KRG) are the governorates of Dohuk, Erbil, Suleimanyah and a part of the governorate of Kirkuk. As mentioned earlier, the KRG is an uneasy alliance of the two main Iraqi Kurdish parties. Mas'oud Barzani's KDP administers the northwestern half and the Turkish border, while Jalal Talabani's PUK controls the southeastern half and most of the Iranian border."

HRW December 2000, "Human Rights Developments"

"Despite mediation efforts by U.S. government officials, little progress was made towards the implementation of the provisions of the 1998 Washington Accord. Both sides [KDP and PUK] pledged to normalize relations but continued to maintain separate administrative, legislative and executive structures in areas under their control. On October 22, senior officials from the two parties agreed on a series of measures, including prisoner exchanges, the gradual return of internally displaced people to their homes, and arrangements for the organization of free

movement of people and trade between their respective areas. Most of these measures were not implemented."

Iraq Coalition, 8 March, 2004

"Article 53.

(A) The Kurdistan Regional Government is recognized as the official government of the territories that were administered by that government on 19 March 2003 in the governorates of Dohuk, Arbil, Sulaimaniya, Kirkuk, Diyala and Neneveh. The term "Kurdistan Regional Government" shall refer to the Kurdistan National Assembly, the Kurdistan Council of Ministers, and the regional judicial authority in the Kurdistan region.

(B) The boundaries of the eighteen governorates shall remain without change during the transitional period.

(C) Any group of no more than three governorates outside the Kurdistan region, with the exception of Baghdad and Kirkuk, shall have the right to form regions from amongst themselves. The mechanisms for forming such regions may be proposed by the Iraqi Interim Government, and shall be presented and considered by the elected National Assembly for enactment into law. In addition to being approved by the National Assembly, any legislation proposing the formation of a particular region must be approved in a referendum of the people of the relevant governorates.

(D) This Law shall guarantee the administrative, cultural, and political rights of the Turcomans, ChaldoAssyrians, and all other citizens.

Article 54.

(A) The Kurdistan Regional Government shall continue to perform its current functions throughout the transitional period, except with regard to those issues which fall within the exclusive competence of the federal government as specified in this Law. Financing for these functions shall come from the federal government, consistent with current practice and in accordance with Article 25(E) of this Law. The Kurdistan Regional Government shall retain regional control over police forces and internal security, and it will have the right to impose taxes and fees within the Kurdistan region.

(B) With regard to the application of federal laws in the Kurdistan region, the Kurdistan National Assembly shall be permitted to amend the application of any such law within the Kurdistan region, but only to the extent that this relates to matters that are not within the provisions of Articles 25 and 43(D) of this Law and that fall within the exclusive competence of the federal government."

Aljazeera, 10 January 2004

"Iraq's interim Governing Council has agreed to a federal structure for the country and to enshrine Kurdish self-rule in three northern provinces. The US-appointed body will incorporate the pledges into 'a fundamental law' that will precede national elections in late 2005, council member Judge Dara Nur al-Din said on Friday. The fate of three more provinces over which the Kurds have claims would be decided later, he added. Nur al-Din, a Kurdish independent who is helping to draft the country's law, said lawmakers had already decided on basic principles for Kurdish self-rule. 'In the 'fundamental law', Kurdistan will have the same legal status as it has now,' he said referring to the region that has enjoyed virtual autonomy since the end of the 1991 Gulf War."

The invasion of Kuwait and subsequent suppression of Shi'ia revolt, 1990s to 2003

- Following Iraq's invasion of Kuwait in August 1990 coalition of allied forces intervened in Kuwait in January 1991. The subsequent cease-fire agreement, under UN SC Resolution 687, Iraq was supposed to destroy certain weapons and to accept international monitoring.

- Through 1990s, UN sanctions have a disastrous effect on Iraqi society. In 1995 UNSC Resolution 986 allows the partial resumption of Iraq's oil exports to buy food and medicine (the "oil-for-food programme"). In Oct 98, Iraq ends all forms of cooperation with the UN Special Commission to Oversee the Destruction of Iraq's Weapons of Mass Destruction (UNSCOM). Repeated resolutions call upon Iraq to cooperate with UN inspectors.
- Through the 1990s, no fly zones in northern and subsequently southern Iraq were declared by United States, Britain and France to provide safe havens or protection to communities targetted by the Iraqi government. In April 1991, U.S., France and Britain in April 1991 declared a northern no-fly zone declared by the to provide safe haven for Kurds, and subsequently a year later in August 1992 in southern areas to protect Shi'ia Iraqis.
- Shi'a revolt against the Iraqi regime erupted following Iraq's defeat in Kuwait however were subsequently violently repressed. Opposition against the Iraqi regime had initially been encouraged by United States during the war. The no fly zone was imposed however after the Iraqi regime had resumed control over the southern governorates at great cost to civilian lives. In 1994, the Iraqi government intensified a pacification campaign it had been directing toward the marsh population since 1989
- Marsh Arabs were displaced since 1980s because of plans to eliminate a population outside of central governmental control; increase oil production; and the destruction of a habitat that provides a haven for an armed opposition. This also took place during Iran-Iraq war. Iraqi armed forces conducted deliberate artillery attacks against Shi'a civilians and large-scale burning operations in the southern marshes in 1999 and 2001. Diversion of water from the marshes allowed government forces to penetrate into formerly inaccessible area. According to a UNEP study carried out in 2001, about 90% of the marshlands had disappeared by May 2000.
- Various communities in addition to the Shi'ia continued to faced persecution under the previous government. Arab Shi'a Muslims constitute a 60-65% majority. Sunni Muslims (Kurds, Arabs and Turkomans) make up 27-32% of the population. Christians and Yazidis represent about 3%. Part of the Shi'ia, Kurdish, Christian, Turkoman, "Marsh Arab", Yazidi and "Bidoon" communities faced persecution under the former government.

USIP, 17 February 1999, "The Problem"

"With Saddam's invasion of Kuwait in August 1990, the perception that Saddam Hussein was a potential ally against an ideologically expansionist Iran – as well as a potential customer for American grain and other products – gave way to a new consensus. Under the revised thinking, Saddam was seen as threat to stability in the Persian Gulf and to steady oil supplies from that region. [...]

When a coalition of allied forces rolled back the Iraqi invasion of Kuwait in January and February 1991, the UN-imposed cease fire agreement bound Iraq to declare fully to the Secretary-General of the United Nations the 'locations, amounts, and types' of biological and chemical weapons it possessed, as well as similar information regarding ballistic missiles with a range of more than 150 kilometers. Under the agreement, Iraq agreed to destroy such weapons under international supervision, and to accept ongoing international monitoring to ensure that such weapons programs were not revived in the future. Pursuant to that charge, the United Nations created a 'Special Commission,' or UNSCOM, to carry out on-site inspections of declared Iraqi facilities as well as any other sites UNSCOM designated. The agreement, articulated in United Nations Security Council Resolution 687, established similar conditions for whatever nuclear program Iraq might possess, to be monitored by the International Atomic Energy Agency. Only after Iraq completed its responsibilities to fully disclose its programs to develop weapons of mass destruction, destroy prohibited materiel under international supervision, and dismantle any programs to develop such weapons in the future, all to the Security Council's satisfaction, would the United Nations lift the sanctions it imposed in Iraq after its invasion of Kuwait in August 1990."

AFSC, 2000

"In April 1991, the United States, France, and Britain unilaterally declared a 19,000-square-mile area of northern Iraq a safe haven for Kurds and imposed a no-fly zone that prevented Iraqi aircraft from operating above the 36th parallel. U.S. and British warplanes still patrol the skies of northern Iraq, bombing frequently since December 1998. France withdrew from the mission in 1996. No United Nations Resolution supports or calls for a no-fly zone. A southern no-fly zone was imposed by U.S., British and French forces in August 1992 in an efforts to protect Shi'ite Iraqis. President Saddam Hussein's forces had crushed a Shi'ite uprising soon after the end of the Gulf War in February 1991. In 1996, President Clinton extended the zone in response to Iraqi military intervention in northern Iraq in support of one Kurdish faction against another. The zone now covers the southern third of Iraq, reaching the 33rd parallel, and touches the outskirts of Baghdad."

Fawcett & Tanner, Oct 02, p30-32

"By 1985, visible signs of the draining of the marshes were noted in the area of Qurna, close to the confluence of the Tigris and Euphrates, where newly discovered oil fields were ripe for exploitation. In the early 1990s the Iraqi government began an all-out push to finish off the marsh-draining project and, as a consequence, to finish off the Marsh Arabs. Several events seem to have precipitated the Iraqi government's decision to take these measures at that time. The Iraqis had just come out of two wars, the last of which had left the regime of Saddam Hussein barely holding onto power. One of the clearest threats to his survival were the Shi'a of southern Iraq, who rose against him in the immediate aftermath of the Gulf War. Baghdad, resorting to full military force (including the use of helicopters permitted under the US-dictated cease-fire conditions) and extraordinary brutality, succeeded in quashing the rebellion. But the marshes, inaccessible to Iraqi armor, became a haven for the remaining rebels on the run. Also during the uprising, some groups had attacked the incipient oil field infrastructure in the West Qurna oil field, attacks which Baghdad blamed on the Marsh Arabs. Finally, during the early 1990s, very few personnel from international organizations or companies were present to witness the marsh destruction, due to the war-time evacuation and the imposition of sanctions. This not only allowed the regime to avoid being seen but also allowed it to requisition, without opposition and by Presidential decree, foreign company resources, such as bulldozers and other earth-moving equipment, termed 'idle assets,' to accomplish the task. Massive canals, up to a hundred meters wide and hundreds of kilometers long, were dug, using virtual slave labor and the aforementioned foreign-owned machinery

.....The motives behind the Iraqi regime's brutally callous campaign against the Marsh Arabs include the following: the desire to eliminate a population outside of central governmental control; an interest in producing some great engineering feat that is the equivalent of the monumental statues and palaces built to honor Saddam; the aim to generate economic development and increase oil production; and most importantly, the destruction of a habitat that provides a haven for an armed opposition. All these motives, of course, have one underlying objective: to maintain the current regime in power. The regime also guessed correctly that no one would stop it. In 1992, then Parliamentary Speaker Saadi Mehdi Saleh justified the action against the Marsh Arabs: "America wiped the Red Indians off the face of the earth and nobody raised an eyebrow."

"To accelerate the process, the military and special police made raids on marsh settlements, ostensibly in pursuit of rebels, criminals and deserters. Iraqi security forces used napalm and other chemical weapons, shelled and burned villages, assassinated local leaders and other prominent community members, and abducted heads of families. Other tactics employed by Iraqi authorities included the deliberate contamination of water supplies, the poisoning of the fishing grounds, commercial blockades, the denial of aid and the refusal of access to aid agencies. The tactics of earthworks, drainage, and military action worked hand in hand. As one area was drained, new embankments would be built, giving the authorities vantage points to begin actions

against the next set of settlements. By 1999 the drainage of the marshes was largely complete. The only remaining marsh of any size was the al-Hawizeh marsh that straddles the Iraq-Iran border. This marsh is at least partly intact, as the Iraqis do not control all the sources of water, (it also provides a measure of security from a neighbor they do not entirely trust). According to the Iraqis, the Iraqi side of the marsh is now under assault. In September 2002 it was alleged that the Iraqis were burning the reeds in a possible attempt to prepare a military assault on the villages."

USCR, 1995, p.116

"Tensions between the secular, Sunni regime of Saddam Hussein and the Shi'ite populace of southern Iraq erupted into civil war in early 1991, when the Shi'ite revolted in the wake of the Iraqi defeat in Kuwait. The revolt was quickly crushed, with heavy casualties, and many displaced Shi'ites and deserters from the Iraqi army fled into the extensive marshlands between the Tigris and Euphrates river. The Iraqi government had long viewed the inhabitants of this region, the Marsh Arabs, or Maadan, with hostility. In 1994, the Iraqi government intensified a pacification campaign that it had been directing toward the marsh population since 1989, diverting water from the marshes and depriving the Shi'ites of food and cover. This allowed government forces to penetrate into formerly inaccessible areas."

Out There News 2000, "Marshes"

"Throughout the marsh areas, dykes as high as six meters have been built to cut off flood waters from replenishing the old marshlands. Between the ancient Tigris and the Euphrates, a manmade river - the Saddam river - now carries the flood waters down to the Gulf. Marsh Arabs used to live by tending buffalo, fishing and hunting in the marshes. With no reeds, there is nothing to feed the water buffalo. There are hardly any fish left in the rivers either. The government claims to be giving land to the Marsh Arabs to cultivate. There is some farming close to the Euphrates and Tigris but many of those farmers are not Marsh Arabs but have come from the towns. The government also seems intent on preventing any rebels entering from Iraq across the water, as they have traditionally been able to do."

UNEP, May 2001

According to a UNEP study carried out in 2001, "[...] about 90% of the marshlands had disappeared by May 2000, with devastating impacts on wildlife and unique human communities that have lived there for millennia."

AI, 24 November 1999, "Introduction"

"Since the beginning of this year [1999] there have been many clashes between the security forces and armed Islamist opposition groups in the pre-dominantly Shi'a Muslim Southern Iraq, especially in Basra, which have reportedly left dozens dead on both sides and have been followed by arbitrary mass arrests and summary executions. It was not until May that the government acknowledged that unrest had broken out in Basra in mid-March. It accused Iran of instigating the troubles since one of the biggest opposition groups is based in Iran. The unrest was sparked off by the killing in suspicious circumstances of Ayatollah Mohammad Sadeq al-Sadr, a prominent Shi'a cleric, in February 1999."

US DOS, 25 February 2000, "Respect for human rights, g."

"As in previous years, the armed forces conducted deliberate artillery attacks against Shi'a civilians and large-scale burning operations in the southern marshes [in 1999]. In 1991 and 1992, the Gulf War allies imposed 'no-fly zones' over northern and southern Iraq respectively. The no-fly zones continued to deter aerial attacks against the marsh dwellers in southern Iraq and the residents of northern Iraq, limiting the Government to ground-based assaults."

CHR, 16 January 2001, para. 37

"The Special Rapporteur received information that armed raids are still being carried out by the Iraqi security forces against villages in the south of Iraq. Reportedly some of these raids, which are aimed at the capture of armed guerrillas and army deserters, have resulted in loss of life, damage to property and searches and arrests without warrant."

INC, 20 May 2001

"Iraqi security forces attacked villages in the marshes of southern Iraq on 15 May resulting in many casualties, according to reports received by the INC [Iraqi National Congress]"

UN SC, 8 Nov 2002

"Holding Iraq in "material breach" of its obligations under previous resolutions, the Security Council this morning decided to afford it a "final opportunity to comply" with its disarmament obligations, while setting up an enhanced inspection regime for full and verified completion of the disarmament process established by resolution 687 (1991). By the unanimous adoption of resolution 1441 (2002), the Council instructed the resumed inspections to begin within 45 days, and also decided it would convene immediately upon the receipt of any reports from inspection authorities that Iraq was interfering with their activities. It recalled, in that context, that the Council had repeatedly warned Iraq that it would face "serious consequences" as a result of continued violations."

2003 January - Chief weapons inspector Dr Hans Blix delivers a harsh report to the UN Security Council, accusing Baghdad of failing to come to a "genuine acceptance" of disarmament." (BBC News 28 Jan 2003)

2003 March – the Executive Chairman of UNMOVIC reports that Iraq has accelerated its cooperation but says inspectors need more time to verify Iraqi compliance.

2003 17 March – following the failure of intensive deliberations among Security Council members on possible next steps to ensure Iraqi compliance, the UK's ambassador to the UN says the diplomatic process on Iraq has ended; UN Secretary General orders the evacuation of arms inspectors from Iraq; President Bush gives Saddam Hussein 48 hours to leave Iraq or face war.

2003 19 March – UN Secretary General addresses UNSC, expressing regret and disappointment at the imminence of war.

United States led occupation of Iraq & subsequent developments (2003 - 2009)

- In November 02, UN weapons inspectors return to Iraq for the first time since 1998, backed by UN Security Council resolution, which threatens serious consequences if Iraq is in "material breach" of its terms. In 2003, US and UK would lead 2003 war based on Iraq's alleged failure to adhere to UN Security Council resolutions.
- In 20th March 2003, US led campaign to remove the Iraqi regime was initiated. Ground operations end on the 14th April. In late 2003, the Coalition Provisional Authority appointed the Iraqi Governing Council. An interim constitution was agreed to on 8 March by the IGC. Law of Administration for the State of Iraq for the Transitional Period the Iraqi provisional constitution in the immediate postwar period, was signed on March 8, 2004 by ICG.
- In June 2004, the IGC was dissolved with the official transfer of power from the Coalition Provisional Authority (led by the United States), to an interim appointed government, which was to represent the sovereign Iraqi government. The provision constitution came into effect on June 28, 2004 following the transfer of power. In June 2004, the UN Security Council adopts Resolution 1546, which declared that Iraq's occupation would end on 30 June and called for National Assembly elections by 31 January 2005.
- Though the Iraqi interim government replaces the CPA, formally ending the occupation of Iraq, the US-led multinational force (around 150,000 troops) continued to exercise control

- In January 2005, the general elections were held in which Jalal Talabani was sworn in as President of Iraq, and Vice Presidents Ghazi al-Yawar and Adel Abdul Mehdi. The Transitional National Assembly (TNA) was formally inaugurated on 16 March 2005. Iraqis adopted a new constitution by referendum on 15 October 2005. In December 2005, Iraqis voted for a new Parliament, the third national election during the year. In 2006, Iraq's parliament approved a new government, including members of the main Shia, Kurd and few Sunni parties. The constitution approved by referendum comes into effect with approval of the new government in May 2006.
- These developments occur in a context of increasing generalised violence, rising sectarian politics, and insurgency against MNF-I and counter insurgency with increasing sectarian overtones. To address growing insecurity, Iraq's new ministers of justice and human rights announced emergency security laws on July 2005. In context of increasing sectarian violence in 2005, continuation of de facto occupation by MNF-I and counter-insurgency, and the marginalisation of Sunni community, civil war erupts in early 2006 to 2007.
- In February 2007, a US military "surge" coincided with realignment of some Sunni insurgent groups and emergence of pro-government "Awakening Councils". In March 2007 Muqtada al Sadr's Shi'ia militia declared a ceasefire. These developments resulted in a significant decline in violence (UNSC, March 2007; ICG, April 2008). However, Iraq was fragmented along sectarian lines, and hundreds of civilians were still being killed each month. These developments paralleled increasing capacity of the national Iraqi army/security to take over responsibility of Iraqi governorates through 2008 to 2009.
- In November 2008, Status of Force Agreement drafted between the United States and Iraqi Governments was approved by the Iraqi Parliament. The presence of the multinational force in Iraq had been prior to that authorized by the Security Council at the request of the Government of Iraq, and, as stated in resolutions 1546 (2004), 1637 (2005) 1723 (2006), and 1770 (2007). In accordance to the SFA, U.S. military forces withdrew from urban areas by June 2009. There are currently 100,000 US forces in Iraq. According to SFA, US forces are to withdraw from Iraq by 2011.
- Through 2009, provincial elections and preparations for national assembly elections to be held in March 2010, proceeded ahead in an environment of continued tensions. Though violence had declined significantly from 2006-2007, as US military forces completed withdrawal and handing responsibility on urban areas to ISF, violence remained endemic in Iraq, with increasing tensions witnessed along northern governorates. As ICG reports the increasing bloodshed witnessed in Ninewa in late 2009 and repeatedly in early 2010 re symptoms of the country's shifting battle lines: from an essentially Sunni versus Shiite sectarian struggle, mainly centred in the capital, to a predominantly Arab against Kurdish ethnic fight playing out along an extended axis of friction.

ICG, September 2009

Violence in much of Iraq is at lower levels than in years past but, in Ninewa, the carnage continues. In August and September 2009, large-scale, horrific attacks targeting minority communities took scores of lives. Arabs and Kurds are locked in a political deadlock. The bloodshed and institutional paralysis are symptoms of the country's shifting battle lines: from an essentially Sunni versus Shiite sectarian struggle, mainly centred in the capital, to a predominantly Arab against Kurdish ethnic fight playing out along an extended axis of friction. It will be near-impossible to resolve the crisis without tackling outstanding nationwide political issues. But Ninewa cannot wait. Urgent interim steps are needed to achieve equitable local power sharing and joint security patrols between Arabs and Kurds in disputed districts, as well as to ensure better minority protection. All

this requires a continued and active U.S. role. Washington might be on its way out, but its hands will be full even as it heads for the exit. For Arabs and Kurds, the real prize remains Kirkuk, where emotions run highest and oil reserves are richest. But, precisely because of these stakes, Kirkuk also is where much national and international attention has turned and efforts undertaken to, if not resolve the conflict, at least freeze it. Not so in Ninewa, where local factors have brought the dispute to a head and which has become the focal point of the ethnic battle.

ICG, July 2009

As sectarian violence in Iraq has ebbed over the past year, a new and potentially just as destructive political conflict has arisen between the federal government and the Kurdistan regional government in Erbil. This conflict has manifested itself in oratory, backroom negotiations and military manoeuvres in disputed territories, raising tensions and setting off alarm bells in Washington just as the Obama administration is taking its first steps to pull back U.S. forces. A lasting solution can only be political – involving a grand bargain on how to divide or share power, resources and territory – but in the interim both sides should take urgent steps to improve communications and security cooperation, run joint military checkpoints and patrols in disputed territories and refrain from unilateral steps along the new, de facto dividing line, the so-called trigger line. The conflict is centred on disputed territories, especially Kirkuk, which not only hosts a mix of populations – Arabs, Kurds, Turkomans and smaller minorities (which in some districts are dominant) – but also contains untold reserves of oil and gas. In the security vacuum of post-invasion Iraq, Kurdish forces rushed across the Green Line, the de facto boundary separating the Kurdistan region from the rest of Iraq between 1991 and 2003, to assert their claim to areas they deem part of their historic patrimony. A range of local and national actors challenged this claim, with the government of Prime Minister Maliki starting to push back against Kurdish influence in these areas since August 2008.

The result has been a steady rise in tensions along a new, undemarcated line that in military circles is referred to as the trigger line – a curve stretching from the Syrian to the Iranian border, where at multiple places the Iraqi army and Kurdish fighters known as peshmergas are arrayed in opposing formations. The deployment of the army's 12th division in Kirkuk in late 2008, in particular, enraged the Kurds and emboldened their Arab and Turkoman rivals. Given growing tensions and the proximity of forces, as well as unilateral political moves by both sides in the form of contracts for oil and gas extraction, altercations have occurred along the trigger line on several occasions. Poor communication could cause such local events to escalate inadvertently into broader conflict that neither party might find easy to contain. The Obama administration responded to the 12th division's arrival by sending an extra brigade into Kirkuk, which may have prevented a very tense situation from turning into open warfare. But U.S. influence inevitably is on the wane.

FIC, December 2008

Although violence has diminished, the improvements are not necessarily durable. Open warfare persists in the governorates of Ninewa, Kirkuk (Tameem), and Diyala. The population in most of the remaining parts of the central and southern governorates remain at risk from the effects of rekindled latent conflicts. As depicted in Table 1 below, virtually all of the factors that are credited with reducing violence also contain the seeds of renewed violence. Latent power struggles between militias and the government, and between militias themselves, pose continuing threats of reverting back into open large-scale warfare in a context where the national military and police forces still demonstrate

conflicting loyalties. Unresolved conflicts over oil revenues and Iraq's internal boundaries similarly threaten to explode. The possibility of fracture along Arab-Kurdish lines is illustrated by recent heightened tensions in the area of Khanaqin northeast of Baghdad and, at a political level, between Prime Minister al-Maliki and the Kurdish leadership.

UN Secretary General (UNSG), 28 July 2008

55. The presence of the multinational force in Iraq is currently authorized by the Security Council at the request of the Government of Iraq, and, as stated in resolutions 1546 (2004), 1637 (2005) and 1723 (2006), the Council will review the mandate at the request of the Government. Bilateral discussions between the Governments of Iraq and of the United States are currently taking place with regard to a status-of-forces agreement. It should be recalled that in accordance with resolutions 1546 (2004), 1637 (2005), 1723 (2006) and 1770 (2007), security is essential in order for the United Nations to be able to function in Iraq. It is therefore necessary that any new arrangements beyond 31 December 2008 take into account the security of the United Nations presence in Iraq.

International Crisis Group (ICG), 30 April 2008

"On 30 January 2005, Iraq held its first post-Saddam elections, including for provincial councils. A Sunni Arab boycott, as well as violence and intimidation in areas with heavy Sunni Arab populations, led to skewed results that disfavoured that community. This set the stage for Sunni Arabs' institutional exclusion from power: unrepresented in the new legislature, they could not join the drafting of a permanent constitution. And although some Sadrists participated in the polls, often as members of other parties, the Sadrist movement as such did not Today, with the changed political landscape, fresh provincial elections could redistribute power consistent with proven representativeness in most governorates and create non-violent channels for exercising power in previously ungovernable ones, such as Anbar. Holding provincial elections as a way of recalibrating the political balance, therefore, has become a U.S. priority and an important marker of political progress.....

The stakes are very high. ISCI in particular (along with other parties that have a high proportion of former exiles) would stand to lose significant ground, as the new provincial powers law states (Art. 5(4)) that a candidate for council membership must have been a resident of the pertinent governorate for a period not less than ten years. Moreover, ISCI will face the grassroots popularity in Shiite areas of the Sadrists, who may benefit from widespread discontent at poor governance over the past three years.⁸⁵ The Sadr movement's formal absence from the January 2005 polls was felt mainly in predominantly Shiite governorates.... The Kurds may see their dominance clipped by resurgent Sunni Arabs, who are now better organised and highly motivated to run. Generally, Sunni Arabs have been under-represented in mixed-population governorates (Baghdad, Ninewa, Diyala and Salah al-Din), with the exception of Kirkuk, where the electoral boycott was not widely observed.⁸⁷ For example, in Ninewa a council comprising mostly Kurds and Shiite Turkmens has sought to govern a governorate that has a majority Sunni Arab population. If Sunni Arabs make significant electoral gains, the Kurds could suffer a painful blow to their ambition to bring parts of Ninewa, Kirkuk, Salah al-Din and Diyala into the Kurdistan region, as they have used their local power as elected officials in these four governorates to create conditions favourable to accession to the KRG.

A central question is whether and how these parties, which control state levers of power, will seek to turn the elections in their favour.... Many steps still need to be taken to enable the elections; each could become a point of dispute and individually or jointly could force a delay.⁹⁰ The council of representatives must pass an elections law within 90 days of approving the provincial powers law, in other words by 13 May.⁹ Such a law normally includes rules for, inter alia, the type of

electoral system, voting district boundaries as well as voter eligibility and registration.⁹² None of these is without controversy; settling them will require time. Among these, one of the more critical and controversial issues is the type of electoral system..... Other issues that must be settled include the appointment of directors of governorate elections offices (out of nineteen, only eleven have been appointed; the remaining eight concern heavily populated governorates where political disputes can be expected to be fierce);⁹⁶ a delimitation of governorate boundaries (given disputes originating during the era of Baath rule, including Arabisation in and around Kirkuk);⁹⁷ voter registration... (based either, as last time, on food ration cards or on an entirely new system);⁹⁸ a decision on whether and how to include refugees and the internally displaced;⁹⁹ rules governing use of the media; and independent oversight. Some parties have called for a political parties law as well.

UNSC, 28 November 2006

"Responding to a request by the Iraqi Prime Minister, the Security Council today extended the mandate of the multinational force in Iraq until the end of next year, deciding that it should be reviewed at the request of that country's Government or no later than 15 June 2007. The Council also declared that it would terminate the mandate earlier if requested by the Government of Iraq. Acting under Chapter VII of the Charter, the Council unanimously adopted resolution 1723 (2006) -- submitted by Denmark, Japan, Slovakia, United Kingdom and United States -- which also extended through the end of 2007 the arrangements for depositing proceeds from export sales of petroleum, petroleum products, and natural gas into the Development Fund of Iraq, as well as the arrangements for monitoring the Fund by the International Advisory and Monitoring Board. Also by the text, the arrangements for the monitoring of the Development Fund by the International Advisory and Monitoring Board would be reviewed at the request of the Government or no later than 15 June 2007."

UNSC, 3 March 2006, pp.1-3

"Following the adoption of the new Constitution by the Iraqi people in the referendum held on 15 October 2005, the December election for a new Parliament, the Council of Representatives, marked the beginning of the last phase of the political transition process set forth in the Transitional Administrative Law and endorsed by the Security Council in resolution 1546 (2004). The election held on 15 December 2005 was the third major national electoral event in Iraq during the past year. Overall, election day was calm and no major incidents were reported. A total of 307 political entities and 19 coalitions encompassing more than 7,500 candidates representing almost all Iraqi communities and political affiliations entered the contest for the 275 seats in the Council of Representatives. Despite security concerns, voter turnout was high throughout the country. A total of 12,191,133 valid votes were cast in approximately 6,300 polling centres that accommodated over 30,000 polling stations. Of the valid votes, 295,377 were cast abroad and 203,856 were cast in 255 special polling centres for detainees, hospital patients and members of Iraq's security forces. These figures translate into turnout in the January 2005 election, which amounted to approximately 58 per cent.

Compared to the January 2005 election, Sunni Arab voters in the governorates of Ninewa, Salahaddin, Tamim and Al Anbar — the governorates with the lowest turnouts in the January election — participated in significantly greater numbers in the December 2005 election. Several Sunni Arab and tribal leaders encouraged local populations to support the electoral process and in some areas provided protection to polling centres. Campaigning was robust across the country particularly through the use of television, radio, the press and street posters. While overall levels of violence did not increase in the pre-election period, there were several acts of campaign violence. The Independent Electoral Commission of Iraq received 190 complaints during the period leading up to polling day. The large majority of the complaints related to poster damage, intimidation and aggressive conduct by supporters of political entities. However, some of the complaints referred to acts of a criminal nature including violent attacks resulting in the death of candidates and electoral staff. The Electoral Commission and my Special Representative

repeatedly called upon all concerned to refrain from violence and to ensure an environment conducive to full participation in the electoral process.... In conclusion, the election was conducted transparently and credibly. It was an inclusive exercise that succeeded in incorporating all of Iraq's numerous communities and political parties. The fact that it generally met international standards is not a small achievement, given that the election took place against the backdrop of an ambitious timetable and a very challenging political and security environment."

BBC, 22 May 2006

"After five months of negotiations following December's general elections Iraq's parliament has approved a new government, including members of the main Shia, Kurd and Sunni parties."

International Crisis Group, February 2006

Today's vote in the Iraqi parliament related to the bilateral relationship between the United States and Iraq is likely to be reported in the Western media as a case of "Shiites" giving certain concessions to "Sunnis" in exchange for their support for a deal on the withdrawal of US forces. That is not an accurate account of what has been going on in the Iraqi parliament over the past few days. What has taken place is that various Iraqi opposition forces inside the parliament have discovered the concept of leverage. Since 25 November there have been persistent reports that groups often critical of the Maliki government such as Tawafuq (Sunni Islamist), al-Hiwar al-Watani, al-Iraqiyya (secularist) and Fadila (Shiite Islamist) were demanding a "reform charter" (*wathiqat al-islah*) in return for their support of the government regarding the Status of Forces Agreement (SOFA) with the US. Among the key demands was a pledge by the government to work to reform the constitution and the political system of the country more generally, as well as committing to revisit the laws relating to the general amnesty law and the treatment of former Baathists and to work for the reintegration of the awakening councils (*al-sahwat*) in the Iraqi security forces....

Both the Iraqi government and the Americans have been bracing for a bout of Sunni militancy after the final results of the parliamentary elections confirmed the victory of parties representing the far more numerous Shia, leaving Iraq's formerly dominant Sunni minority with the prospect of being excluded from power. The results awarded the Shia-led United Iraqi Alliance 128 of the 275 seats in the Iraqi assembly, only 10 short of an absolute majority, while their probable future coalition partners among the various Kurdish parties won 53 seats. Sunni parties took only around 50 seats, leaving their participation in government open to question. Foreign governments, led by the US, have urged Iraqis to form a broad-based government including all three of Iraq's main communities, in the hope of undercutting the grounds for Sunni anger over the election results. Many of them claim the results are fraudulent.

2005 will be remembered as the year Iraq's latent sectarianism took wings, permeating the political discourse and precipitating incidents of appalling violence and sectarian "cleansing". The elections that bracketed the year, in January and December, underscored the newly acquired prominence of religion, perhaps the most significant development since the regime's ouster. With mosques turned into party headquarters and clerics outfitting themselves as politicians, Iraqis searching for leadership and stability in profoundly uncertain times essentially turned the elections into confessional exercises. Insurgents have exploited the post-war free-for-all; regrettably, their brutal efforts to jumpstart civil war have been met imprudently with ill-tempered acts of revenge. [...]

If Iraq falls apart, historians may seek to identify years from now what was the decisive moment. The ratification of the constitution in October 2005, a sectarian document that both marginalised and alienated the Sunni Arab community? The flawed January 2005 elections that handed victory to a Shiite-Kurdish alliance, which drafted the constitution and established a government that countered outrages against Shiites with indiscriminate attacks against Sunnis? Establishment of the Interim Governing Council in July 2003, a body that in its composition prized communal

identities over national-political platforms? Or, even earlier, in the nature of the ousted regime and its consistent and brutal suppression of political stirrings in the Shiite and Kurdish communities that it saw as threatening its survival? Most likely it is a combination of all four, as this report argues.

UNSC, 7 June 2005

"During the period under review, the transitional process was focused on the convening of the Transitional National Assembly and its proceedings as well as on the formation of the Transitional Government of Iraq. Due to delays in reaching agreement on the composition of the Government, it was decided to proceed with convening the Transitional National Assembly on the understanding that efforts for government formation would continue. On 16 March 2005, the Transitional National Assembly was formally inaugurated. After further negotiations, the Transitional National Assembly, on 6 April, elected Hajim Al-Hasani as its President. Hussain Sharistani and Aref Taifour were elected as Vice-Presidents. The Transitional National Assembly is composed of 275 members and includes the following political entities: United Iraqi Alliance (140 seats), the Kurdistan Alliance List (75 seats), the Iraqi List (40 seats), the Iraqis (five seats), Turkman Iraqi Front (three seats), National Independent Cadres and Elites (three seats), National Union (two seats), Islamic Group of Kurdistan/Iraq (two seats), Islamic Action Organization in Iraq (two seats), National Democratic Alliance (one seat), Al Rafideen National List (one seat), Liberation and Reconciliation Gathering (one seat)....

During the reporting period, one of the key issues between the main political stakeholders was how to ensure adequate and legitimate representation of Arab Sunnis in the Transitional Government, many of whom did not participate in the elections. As a consequence, Sunni Arabs were under-represented in the Transitional National Assembly. Prolonged negotiations between the Kurdistan Alliance and the United Iraqi Alliance, the two political groupings with the largest number of seats in the new Assembly, resulted in a memorandum of understanding that laid the basis for government formation. On 28 April 2005, the Transitional National Assembly endorsed the Transitional Government under the premiership of Ibrahim Ja'afari. The Government comprises 32 ministerial and 4 deputy ministerial posts.

The time taken to form the Government presented many opportunities to debate key political and constitutional issues. This was the first occasion for Iraq's political parties to have in-depth discussions and engage in negotiations on critical issues facing the new administration. As the attempts at government formation became protracted, many Iraqis expressed concern about the extent to which the process was focusing on ethnic and sectarian considerations. By contrast, other observers focused on the implications of the ongoing negotiations for the transitional timetable, notably the drafting of the constitution and the manner in which inter- and intra-party agreements might prejudice the Government's necessary freedom to manoeuvre.

The difficulties experienced in allocating posts to satisfy all ethnic and confessional groups in Iraq points to the considerable challenges ahead, particularly with regard to the constitution-making process. Under the timetable established by resolution 1546 (2004), the Transitional Government is expected to serve until elections under a new permanent constitution leading to a constitutionally elected Government by 31 December 2005. On 10 May 2005, the Transitional National Assembly established the Constitution Drafting Committee. Under the timetable for the political transition, the Committee is expected to write the draft of a permanent constitution by 15 August, unless the six-month extension provided for in the Transitional Administrative Law is invoked. The draft permanent Constitution would then be presented to the Iraqi people for approval in a general referendum to be held no later than 15 October.

AI, 25 May 2005

"At the start of 2004 Iraq was occupied by US-led Coalition forces and governed by the Iraqi Governing Council (IGC), which had been appointed in 2003 by the Coalition Provisional Authority (CPA) headed by Paul Bremer. On 8 March the IGC agreed an interim constitution. Among its main provisions were that the three Kurdish provinces in the north would remain autonomous, freedom of speech and religious expression would be guaranteed, elections to a National Assembly, mandated to draft a constitution, would be held by January 2005, and at least a quarter of the National Assembly should be women. Many Shi'a clerics, especially Grand Ayatollah Ali al-Sistani, expressed reservations about the interim constitution, in particular provisions allowing for US-led multinational forces to remain in Iraq after the formal end of occupation, the right of three provinces to veto a referendum on a permanent constitution and a three-quarter majority requirement to amend the constitution.

On 1 June the IGC was dissolved and an interim government was announced. Iyad 'Allawi, a Shi'a Muslim, was appointed Prime Minister. Shaikh Ghazi al-Yawar, a Sunni Muslim, was appointed President, a largely ceremonial position. On 8 June the UN Security Council adopted Resolution 1546, which declared that Iraq's occupation would end on 30 June and called for National Assembly elections by 31 January 2005. The resolution gave the UN a greater role in helping the Iraqis in the political and human rights fields during the transitional period, including the convening of a national conference, held in August, to select a consultative council to advise the interim government, with the power to veto its orders. Resolution 1546 stated that the US-led multinational force would remain in Iraq until the end of 2005 (unless asked to leave earlier by the Iraqi government) with the authority to 'take all necessary measures to contribute to the maintenance of security and stability in Iraq'. On 28 June, the Iraqi interim government replaced the CPA, formally ending the occupation of Iraq. However, the US-led multinational force of around 150,000 troops continued to exercise control over security-related matters."

UNSC, 8 June 2004

"The members of the Security Council welcome the handover of full responsibility and authority for governing Iraq to the fully sovereign and independent Interim Government of Iraq, thus ending the occupation of the country. The members of the Council reaffirm the independence, sovereignty, unity and territorial integrity of Iraq. The members of the Security Council reiterate fully resolution 1546 (2004), including the proposed timetable for the political transition, the possibility of an international meeting, and the leading role of the United Nations to assist the Interim Government of Iraq in implementing the political process leading, inter alia, to elections no later than 31 January 2005. The members of the Council call on all Iraqis to implement these arrangements peaceably and in full. The members of the Security Council reiterate their call to all States and relevant international and regional organizations to support the Interim Government of Iraq in the implementation of this process, and in its efforts to bring economic reconstruction, peace, unity and stability to Iraq."

UN SC, 22 May 2003:

"**2003** 20 March – missiles hit targets in Baghdad, marking the start of a US-led campaign to topple the Iraqi regime. In the following days US and British ground troops enter Iraq from the south and numerous targets are struck in Baghdad and other key cities..... **2003** 14 April – the Pentagon says that all major combat operations are probably at an end, following the fall of Tikrit, Saddam Hussein's home town. **2003** 22 May - the Security Council decided to: lift trade and financial sanctions on Iraq; extend the "oil-for-food" programme for six months; revisit the mandates of the United Nations Monitoring, Verification and Inspection Commission (UNMOVIC) and the International Atomic Energy Agency (IAEA) at a later date; request appointment of a Special Representative of the Secretary-General; and review implementation of those and other matters within 12 months. Adopting resolution 1483 (2003), by a vote of 14 in favour, with Syria not participating in the voting, and acting under Chapter VII of the United Nations Charter, the Council supported the formation by the people of Iraq with the help of the Authority (the occupying Powers under unified command) and the Special Representative, of an Iraqi interim

administration as a transitional administration run by Iraqis, until an internationally recognized, representative government established by the people of Iraq assumes the responsibilities of the Authority"

Further resources:

[Iraqi Constitution](#)

IRIN, [Constitution approved despite rejections](#), 1 September 2005

[Iraqi Interim Government](#)

[Independent Electoral Commission of Iraq](#)

[The Iraqi Election Information Network](#)

HRW, ["Iraqi Elections: Human Rights Concerns"](#)

IWPR ["Iraq Election Focus"](#)

[Resolution 1723 \(2006\)](#) adopted by the Security Council at its 5574th meeting on 28 November 2006

[Resolution 1637 \(2005\)](#) adopted by the Security Council at its 5300th meeting, on 8 November 2005

See the ["Law of Administration for the State of Iraq for the Transitional Period"](#), 8 March 2004 that came into effect in 30 June 2004 and was in effect until the formation of an elected Iraqi government

Political developments and attempts at national reconciliation (2003-2010)

- In January 2005, the general elections were held in which Jalal Talabani was sworn in as President of Iraq, and Vice Presidents Ghazi al-Yawar and Adel Abdul Mehdi. The Transitional National Assembly (TNA) was formally inaugurated on 16 March 2005. The TNA has 275 members, with the United Iraqi Alliance being the political party with the most seats. The transitional government was to serve until elections take place for a new constitutionally elected government by 31 December 2005 (in accordance with the timetable set by UN Security Council Resolution 1546 (2004)). One of the key issues facing the political process in Iraq concerns how to ensure adequate and legitimate representation of Arab Sunnis in the Transitional government, a majority of whom did not participate in the elections and who by consequence are under-represented in the TNA.
- Iraqis adopted a new constitution by referendum on 15 October 2005. In December 2005, Iraqis voted for a new Parliament, the third national election during the year. An international monitoring team declared the elections to meet international standards—fair, genuine and transparent despite protests of groups including 43 Iraqi political parties. Compared to the January 2005 election, Sunni Arab voters participated in significantly greater numbers. The election resulted in 12 political entities and coalitions. In December 2005, general elections were held and 6 months later Iraq's parliament approved a new government, including members of the main Shia, Kurd and Sunni parties.
- However as the ICG reported in 2006, 2005 will be remembered as the year Iraq's latent sectarianism took wings, permeating the political discourse and precipitating incidents of appalling violence and sectarian "cleansing". Results of the parliamentary elections in January 2006 confirmed the victory of parties representing the far more numerous Shia, leaving Iraq's formerly dominant Sunni minority with the prospect of being excluded from power. (Independent, 22 January 2006) The elections in January and December, underscored the newly acquired prominence of religion, and underscored the marginalisation and alienation of the Sunni community. The following years from 2006 to 2007 would witness civil war on sectarian grounds.
- In context of MNF-I surge in 2007, realignment of Sunni insurgent groups and Shi'ia militias, there were several attempts at accommodation entailed modification of de-Baathification law of 2003, an amnesty law, and integration of Sunni Arabs into state's political and security

- Key area of concern in light of Arab-Kurdish divide has been to address the questions over disputed territories. Article 140 of Constitution relates to resolution of the disputed areas providing several steps including normalisation, census and referendum to be held by 31st December 2007. In a controversial decision in end 2007, the deadline was extended to 30 June 2008 and has subsequently been extended. In mid 2007, US placed its support behind UNAMI to involve itself in the debate over Kirkuk and implementation of Article 140. In June 2008, UNAMI presented its initial analysis on first four of several disputed areas, which was met with scepticism and reservations by parties concerned.
- In August 2008, Congressional Research reported that Iraq's political system despite the result election process, continues to be riven by sectarianism and ethnic and factional infighting. The passage of key laws and policies were hoped to heal remaining rifts and continue to reduce violence. Others spoke of the schisms widening as Iraqi leaders wrangle over unresolved issues that are complicating the holding of provincial elections.
- The Provisional Council Elections held in January 2009 were crucial in light of limitations of the elections of 2005 in which Sunni Arab boycott and violence and intimidation led to skewed results. The stakes in the elections were quite high for both the ISCI which stood to loose in front of popular grassroot support for Sadrists, and for Kurds whose dominance waded in governorates in which Sunni Arabs have been underrepresented. Provincial elections were seen as a way of recalibrating the political balance.
- In 2010, the national elections to be held on 7 March will be an important milestone in Iraq's democratic development. Initially scheduled for end of 2009, Iraqi parliamentary elections are to be held in March 2010. The elections are to take place in atmosphere of growing concern following heated debates on the electoral law (which was modified in late 2009 and takes account refugees in neighbouring countries), and highly controversial banning of key candidates on grounds of former membership to Ba'athist government, including key politicians representing Sunni community. This took place in context of rising violence in August 2009 to February 2010 ahead of the elections.
- Since 2003 Iraq has held three elections and a national referendum. The electoral process has to date not ensured reconciliation. There have been several additional initiatives to address reconciliation however with limited results. This included the National Reconciliation Plan adopted by the former Iraqi Prime Minister, a four-point Ramadan accord and the Mecca Declaration, adopted by the Organisation of the Islamic Conference. The efforts at national reconciliations have been criticised as means at accommodation largely promoted by US as opposed to reconciliation. Observers have underlined the continual lack of will and key policies to seek reconciliation.

ICG, February 2010

As a rule, Iraq's post-Saddam elections have tended to magnify pre-existing negative trends. The parliamentary polls to be held on 7 March are no exception. The focus on electoral politics is good, no doubt, but the run-up has highlighted deep-seated problems that threaten the fragile recovery: recurring election-related violence; ethnic tensions over Kirkuk; the re-emergence of sectarianism; and blatant political manipulation of state institutions. The most egregious development was the decision to disqualify over 500 candidates, a dangerous, arbitrary step lacking due process, yet endorsed by the Shiite ruling parties. Under normal circumstances, that alone might have sufficed to discredit the elections. But these are not normal circumstances, and for the sake of Iraq's stability, the elections must go on. At a minimum, however, the international community should ramp up its electoral monitoring and define clear red lines that need to be

respected if the results are to be considered legitimate. And it should press the next government to seriously tackle the issue – long-neglected yet never more critical – of national reconciliation.

Over the past year, there were grounds to believe that Iraq's post-war wounds were healing and that the primary challenge had become one of state building. Despite a spate of high-profile attacks in Baghdad and lower-level ones elsewhere, violence was down. Politics took centre stage. The outcome of the January 2009 provincial elections was a setback to the more openly sectarian parties and brought a change in local government. Most significantly, perhaps, those elections marked the Sunni Arabs' unambiguous acceptance of and entry into the political and institutional arena that they had once massively rejected and violently resisted. But simmering conflicts were not long to come to a boil. Negotiations over an electoral law in the second half of the year took far longer than anticipated, forcing a five-week election delay. The perennially difficult question of Kirkuk's administrative status, as well as Sunni Arab concerns that refugees would not be fully represented, further stood in the way. These finally were overcome with the help of external pressure and mediation but neither they – nor the underlying ethnic and confessional fault line they reflected – are close to genuine resolution. The mid-January announcement by the Accountability and Justice Commission (AJC) that it would disqualify 511 candidates for alleged ties to the banned Baath party was the most disturbing.A naked power play with sectarian overtones in that its most prominent victims are Sunni Arabs, it also reopened old wounds and cast a troubling light on Maliki, who only a year ago had won votes by eschewing sectarian rhetoric and has pledged to stitch together a broad non-sectarian electoral alliance.

Thankfully, there is little talk of boycott, as the spectre of 2005 – when Sunni Arabs shunned the polls and thus voluntarily disenfranchised themselves – looms heavy. That said, in the absence of an impartial internal monitor, the international community – primarily the U.S., EU and UN – now has an even greater responsibility to ensure that these flawed elections are damaged no further and to clearly define the requirements for them to be considered legitimate. Iraqi and international observers should be able to deploy freely to all polling stations and monitor both the vote and vote count. They should, in particular, observe the conduct of institutions and agencies whose impartial role will be critical in ensuring free and fair elections: the Supreme Court and IHEC, as well as the military and police. Blatant interference or massive fraud should be seen and stated as red lines that will force a review of how the international community views a future government.

UN SC, February 2010

5. The reporting period witnessed weeks of intense negotiations and a protracted debate within the Iraqi Council of Representatives over amendments to the 2005 Election Law which are required for the forthcoming national elections. ... a result, the revised law was adopted on 6 December by the Council of Representatives, and subsequently approved by the Presidency Council.....

6. On 8 December, a few days after the adoption of the revised Election Law, there were five coordinated bombings across Baghdad, which struck a courthouse, two colleges, a mosque and a bank, resulting in the death of more than 100 Iraqis and injuring many more....The bombings were a sombre reminder of the threat still posed by armed groups who appear intent on disrupting preparations for national elections and undermining the Government of Iraq's ability to function.

7. On 7 January, the Accountability and Justice Commission announced that 15 political entities would be excluded from participating in the upcoming national elections. On 14 January the Accountability and Justice Commission informed the Independent High Electoral Commission that it disqualified 496 candidate nominees. This figure was increased on 19 January to 511.

9. During the reporting period, political disagreements in the Ninewa Governorate remained a matter of concern. In mid-December the (Kurdish) Ninewa Brotherhood List, which continues to boycott the Provincial Council, established offices to assist with the coordination of services in districts that have suspended relations with the Provincial Council in Mosul. ...Meanwhile, in an effort to ease tensions in northern Iraq, the Government of Iraq and the Kurdistan Regional Government agreed to set up joint security structures in the Governorates of Kirkuk, Ninewa and Diyala. The new arrangement includes joint patrols and checkpoints consisting of personnel from the Iraqi Army, Iraqi Kurdistan Peshmerga and the Iraqi police, under the coordination of the United States Forces in Iraq. The security plan has received mixed reactions in the affected communities, but the intention remains to build trust between communities, strengthen security coordination ahead of the national elections and create an environment conducive to political dialogue over the disputed territories. ...

11. Late in January, there were several more high-profile attacks in Baghdad targeting civilians and government workers. On 25 January, at least 38 people were killed and 74 injured when three car bombs were detonated near three hotels in the centre of the Iraqi capital often frequented by foreign journalists and contractors. On 26 January, a car bomb killed at least 17 people and wounded 80 at a government forensics centre in Baghdad. On 1 February, a female suicide bomber walking among Shiite pilgrims in northern Baghdad detonated an explosives belt killing at least 41 people and wounding more than 100. On 3 February, another suicide bombing in Karbala killed at least 20 pilgrims.

ICG, September 2009

Violence in much of Iraq is at lower levels than in years past but, in Ninewa, the carnage continues. In August and September 2009, large-scale, horrific attacks targeting minority communities took scores of lives. Arabs and Kurds are locked in a political deadlock. The bloodshed and institutional paralysis are symptoms of the country's shifting battle lines: from an essentially Sunni versus Shiite sectarian struggle, mainly centred in the capital, to a predominantly Arab against Kurdish ethnic fight playing out along an extended axis of friction. It will be near-impossible to resolve the crisis without tackling outstanding nationwide political issues. But Ninewa cannot wait. Urgent interim steps are needed to achieve equitable local power sharing and joint security patrols between Arabs and Kurds in disputed districts, as well as to ensure better minority protection. All this requires a continued and active U.S. role. Washington might be on its way out, but its hands will be full even as it heads for the exit. For Arabs and Kurds, the real prize remains Kirkuk, where emotions run highest and oil reserves are richest. But, precisely because of these stakes, Kirkuk also is where much national and international attention has turned and efforts undertaken to, if not resolve the conflict, at least freeze it. Not so in Ninewa, where local factors have brought the dispute to a head and which has become the focal point of the ethnic battle.

ICG, July 2009

As sectarian violence in Iraq has ebbed over the past year, a new and potentially just as destructive political conflict has arisen between the federal government and the Kurdistan regional government in Erbil. This conflict has manifested itself in oratory, backroom negotiations and military manoeuvres in disputed territories, raising tensions and setting off alarm bells in Washington just as the Obama administration is taking its first steps to pull back U.S. forces. A lasting solution can only be political – involving a grand bargain on how to divide or share power, resources and territory – but in the interim both sides should take urgent steps to improve communications and security

cooperation, run joint military checkpoints and patrols in disputed territories and refrain from unilateral steps along the new, de facto dividing line, the so-called trigger line. The conflict is centred on disputed territories, especially Kirkuk, which not only hosts a mix of populations – Arabs, Kurds, Turkomans and smaller minorities (which in some districts are dominant) – but also contains untold reserves of oil and gas. In the security vacuum of post-invasion Iraq, Kurdish forces rushed across the Green Line, the de facto boundary separating the Kurdistan region from the rest of Iraq between 1991 and 2003, to assert their claim to areas they deem part of their historic patrimony. A range of local and national actors challenged this claim, with the government of Prime Minister Maliki starting to push back against Kurdish influence in these areas since August 2008.

The result has been a steady rise in tensions along a new, undemarcated line that in military circles is referred to as the trigger line – a curve stretching from the Syrian to the Iranian border, where at multiple places the Iraqi army and Kurdish fighters known as peshmergas are arrayed in opposing formations. The deployment of the army's 12th division in Kirkuk in late 2008, in particular, enraged the Kurds and emboldened their Arab and Turkoman rivals. Given growing tensions and the proximity of forces, as well as unilateral political moves by both sides in the form of contracts for oil and gas extraction, altercations have occurred along the trigger line on several occasions. Poor communication could cause such local events to escalate inadvertently into broader conflict that neither party might find easy to contain. The Obama administration responded to the 12th division's arrival by sending an extra brigade into Kirkuk, which may have prevented a very tense situation from turning into open warfare. But U.S. influence inevitably is on the wane.

UN SC, July 2009

Iraq is once again entering a crucial period highlighted by its increased responsibility for the security of the country and important national elections planned for January 2010. While an increase in violence was anticipated during the redeployment of the United States military from cities on 30 June, a relative calm was achieved and the Iraq security forces have succeeded in assuming security responsibilities in critical parts of the country. I am hopeful that this is a trend that bodes well for the future of Iraq.

47. It is also encouraging that with a series of electoral events anticipated in the year ahead and extensive preparations being carried out in the lead-up to the national election, Iraqi national institutions — especially the Electoral Commission — have demonstrably developed their own expertise in implementing election activities. Most recently elections were conducted successfully in the Iraqi Kurdistan region without incident.....

48. Now is the time for political leaders to demonstrate statesmanship, rising beyond their differences and narrow interests, and prove to the Iraqi people that sovereignty comes with responsibility and accountability in visible progress towards a return to normalcy in the daily lives of Iraqis and the functioning of a viable State. I urge the Iraqi Council of Representatives, in the spirit of national reconciliation and as a sign of political progress in the country, to proceed with the adoption of an inclusive electoral law without delay so as not to jeopardize the delivery of these constitutionally mandated elections for the entire country....

49. I am concerned about the relationship between the Federal Government in Baghdad and the leadership of the Iraqi Kurdistan region. By extension, tensions have also arisen between Kurdish security forces and non-Kurdish communities in areas outside the Kurdistan region....In the light of the recent adoption of the draft Kurdistan regional constitution, which lays claim to areas currently under discussion in

the High-level Task Force that is meeting under United Nations auspices, I urge the Kurdistan Regional Government and the Iraqi Kurdistan Parliament to reconsider such provisions, which could have the potential to aggravate tensions and affect ongoing discussions on the disputed boundaries and other issues of concern to both the Kurdistan Regional Government and the Government of Iraq. It is my hope that the temptation to make unhelpful statements or carry out certain actions that upset the other side will diminish after the heightened political moment brought on by the recent regional election. I call for an end to provocative statements, including those which prejudice in any way the future of areas such as Kirkuk, and to any unilateral actions on the ground which the other side is likely to see as hostile in intent.

UN Secretary General (UNSG), 28 July 2008

7. UNAMI has been working to establish a process for addressing disputed internal boundaries. On 5 June, UNAMI presented to the Government of Iraq its initial analysis on the first four of several disputed areas in northern Iraq. In keeping with the Mission's advisory and assistance mandate under resolution 1770 (2007), the initial analysis examined a variety of considerations, including the administrative history of the district, changes since 2003, information obtained during visits to the districts and many additional factors. The findings pointed to a series of specific confidence-building measures that could contribute to the balanced administration of the districts under dispute. Working with the general agreement of the Presidency Council, the Prime Minister of Iraq and the Prime Minister of the Kurdistan regional government, UNAMI continued to underscore that the Government of Iraq alone has the sovereign responsibility to decide on the disputed areas.

8. Reactions to the Mission's first analysis reflected the sensitive nature of the issue. While some members of the Sunni Arab and Turkmen communities maintained a sceptical attitude towards addressing disputed territories at this time, Shiite political parties have chosen not to comment publicly to date. The Kurdish National Assembly and the Kurdistan regional government presidency issued official statements with reservations to the Mission's findings, and a Kurdistan regional government committee was formed to liaise with UNAMI on the issue. UNAMI has recently established a presence in Kirkuk and will continue to engage with all communities there. The Mission is committed to promoting a political and constitutional process that would be acceptable to the major stakeholders to resolve disputed internal boundaries, including the status of Kirkuk....

56. Thanks to concerted political and military efforts over the past three months, there has been continued improvement in the security situation across Iraq. However, the gains made so far need to be sustained through meaningful political dialogue and national reconciliation. Time is of the essence, and Iraq can no longer afford continued delays in finding viable political solutions. Long-term stability will require significant political buy-in from all segments of the population, many of which are not yet fully engaged in the political process.

International Crisis Group (ICG), 30 April 2008

The Kurds have become key players as protagonists in both the nationalist and the winners-vs.-losers contests. Their principal goal, and the reason they willingly play the political game in Baghdad, is to expand both territory (and thereby resources) under their control and the powers they enjoy within that territory, hoping to maximise their chances of future independence. The constitution survived a massive Sunni Arab "no" vote that

failed to clear the required threshold; today, subject to review, it in effect cannot be amended without the approval of ISCI and the Kurds, who oppose any major change.

This means that a breakthrough in negotiations on the essential concerns outlined above is extremely difficult. Having gained central power, the ruling alliance is blocking any attempt to roll back regions' authority accorded in the constitution; sparring with other factions inside and outside the federal government over a comprehensive oil and gas law; using the constitution in its quest to incorporate oil-rich territory into powerful regions only nominally linked to the federal government; and resisting provincial council elections, the outcome of which could curb its federal and territorial ambitions. By linking implementation of the constitution on the status of disputed territories (Art. 140), in particular, to its cooperation on other issues, including the oil law and constitutional review, it has intertwined and locked up all the key concerns that must be settled if Iraq is to regain its footing.

Two things are becoming increasingly clear: The interlocking nature of these issues means they cannot be solved individually or sequentially. And this government, these politicians – in the current power balance produced by the 2005 elections – do not want, nor are able, to take advantage of the surge to produce agreement on fundamentals. As an Iraqi official put it, progress on political reform has been slow because the parties that control the system benefit from it and therefore resist changing it. This suggests that the current piecemeal approach toward deal-making should be replaced with efforts to bring about a package deal that goes to the very heart of questions about power and resources, and therefore about federalism, oil and internal boundaries; encourages reconciliation/accommodation; and ensures provincial and national elections....

Despite the breathing space provided by the surge, no meaningful progress toward reconciliation/accommodation has yet occurred. Instead, politicians with varying degrees of representativeness and a ruling alliance whose power and agendas have stood in the way of compromise have rendered a breakthrough unlikely. While some legislation has made it past the council of representatives, negotiations on key deals are stalled or sputtering, little has been carried out, and disputes over the content of laws are being reconfigured as disputes over their implementation. A principal reason for this disappointing lack of progress is that the process itself has not enjoyed broad support. The U.S. was the driving force in late 2005 after it realised that its state-building project was becoming unhinged because of a constitution-drafting process that lacked national consensus. Recognising in particular the need to appease Sunni Arabs, it concluded a compromise agreement to recalibrate power, which it imposed on a reluctant ruling alliance. This agreement's subsequent non-implementation fed growing sectarian violence, which soon overtook politics. The surge brought relative and welcome calm. But there is reason to fear this is only a temporary salve and that underlying issues will again come to the fore. Security gains could well be imperilled by a plethora of residual threats (from remnants of al-Qaeda in Iraq; intensifying intra-Shiite conflict; the proliferation of militias and armed gangs; a government push-back against, or deepening frustration by, the Sons of Iraq; territorial disputes; and, more broadly, the inability to establish legitimate, functional state institutions). Whatever political space the surge tore open thus is likely to narrow once again.

International Crisis Group (ICG), 30 April 2008

This article [140] relates to resolution of the status of so-called disputed areas, including oil-rich Kirkuk, many of which have heavily mixed populations of Kurds, Arabs,

Turkomans and smaller minorities.¹⁵⁴ Art. 140 provides for various steps: normalisation, census and a referendum in disputed areas to be held by 31 December 2007.¹⁵⁵ In a controversial decision in that month, when it became evident that the deadline would not be met, the prime minister, presidency council and prime minister of the Kurdistan region jointly decided to extend it until 30 June 2008, without consulting the council of representatives.¹⁵⁶ Parties that oppose the Kurds' bid to incorporate these territories into the Kurdistan region claimed that the constitutional provision had become null and void; they have taken the dispute to the federal supreme court and are currently awaiting its ruling. Kurdish parties take a very different view.¹⁵⁷ More generally, having failed to make any significant progress in implementing any of the Art. 140 provisions, the parties must decide whether to speed up the process and impose a referendum that few besides the Kurds desire or chart an alternative process that could lead to a peaceful resolution of these areas' status. In Resolution 1770 of 10 August 2007, the UN Security Council decided that UNAMI, "at the request of the Government of Iraq, shall (a) advise, support, and assist: ... (iii) The Government of Iraq and the Council of Representatives on Constitutional review and the implementation of constitutional provisions, as well as on the development of processes acceptable to the Government of Iraq to resolve disputed internal boundaries".

Congressional Research Service, 4 August 2008

Iraq's political system, the result of a U.S.-supported election process, continues to be riven by sectarianism and ethnic and factional infighting. The Administration asserts that the passage of key laws in 2008 will help heal remaining rifts and continue to reduce violence. Others see the schisms widening as Iraqi leaders wrangle over unresolved issues that are complicating the holding of provincial elections.

UNSC, 7 March 2007

"On 16 and 17 December 2006, Prime Minister Al-Maliki hosted a conference of political parties and entities as part of the Government's national reconciliation plan. The event was largely attended by political parties within the national unity government, while those with ties to the Ba'ath Party, the Sadrist bloc, the Iraqiya list of Ayad Allawi, and the Iraqi Front for National Dialogue led by Saleh al-Mutlak did not officially attend. However, numerous members of each group participated in their own personal capacity. The conference concluded with a statement recommending, among other items, the dissolution of militias, the expedited withdrawal of the multinational force, and the re-incorporation of veteran army personnel.....

"On 7 February 2007, Grand Ayatollah Ali al-Sistani released a statement that listed commonalities between Shiite and Sunni Muslims, called for unity and coexistence based on mutual respect, and asserted the sanctity of Muslim blood. In addition to denouncing false fatwas made in his name, the Grand Ayatollah declared that it was the duty of all Muslims to reduce tensions caused by political disputes and focus on strengthening ties between the children of the nation of Iraq. On 10 February 2007, dozens of Shia and Sunnis gathered for the re-opening of a Sunni mosque in Shiitedominated Sadr City. A month earlier, on 10 January 2007, a senior Sadrist official concluded an agreement with the Sunni Iraqi Islamic Party to form joint committees in mixed neighbourhoods in Baghdad to cooperate on security and returns of internally displaced persons. In Basra, joint Sunni and Shiite committees were formed in February

2007 to reopen and protect Sunni mosques closed in the aftermath of the attack on the Samarra shrine in February 2006. ”

UNSC, 5 December 2006

"The succession of various initiatives to promote national reconciliation both inside and outside Iraq does not appear to have had a significant impact on the scale and nature of the violence in the country. The proliferation of initiatives has led to widespread scepticism about their viability both inside and outside Iraq. The Government has also been unable to supplement its security initiatives with the implementation of projects to improve the delivery of essential services, provide jobs and rebuild socio-economic infrastructure. Institutional capacity limitations have also impeded the ability of the Government to implement the 2006 budget. [...] During the period under review, Prime Minister Al-Maliki pushed forward the implementation of his National Reconciliation Plan. Following a conference of tribal leaders in August 2006, he held a meeting with a spectrum of civil society figures and institutions on 16 September. The conference with political leaders, originally scheduled for October, has been postponed several times. On 2 October, Prime Minister Al-Maliki announced a four-point Ramadan accord, which was supported by major political parties. A key element of the agreement included the establishment of local security committees composed of political, religious, police and army figures. The Prime Minister also initiated direct contacts through his personal representatives with Iraqi opposition groups within Iraq and in Jordan, Egypt and other neighbouring countries. Reconciliation initiatives in Iraq have been complemented by the efforts of regional actors. On 20 October 2006, Iraqi Shiite and Sunni religious leaders, in a meeting sponsored by the Organization of the Islamic Conference, issued in Mecca a declaration calling for an end to sectarian bloodshed in Iraq. The agreement was welcomed by political and religious leaders both inside and outside of Iraq."

UNSC, 1 September 2006

"On 25 June 2006, the Prime Minister, Nouri al-Maliki, unveiled the National Reconciliation Plan. The 24-point Plan called for a qualified amnesty, the release of detainees, the reform of the legal and judicial systems, the provision of assistance to areas that are prone to violence, the facilitation of dialogue on constitutional and related matters, and the resolution of the problem of militias. The Plan also acknowledged the idea of an Iraqi-led Baghdad peace initiative, emphasized the need for regional support to achieve peace and stability in Iraq, and recognized the efforts of the League of Arab States to convene a conference on Iraqi national accord. The Plan also provided for the establishment of the High Committee for National Reconciliation, which held its first session on 22 July 2006. The composition of the Committee has not yet been finalized owing to a difference in views concerning membership criteria."

The Independent, 22 January 2006:

Both the Iraqi government and the Americans have been bracing for a bout of Sunni militancy after the final results of the parliamentary elections confirmed the victory of parties representing the far more numerous Shia, leaving Iraq's formerly dominant Sunni minority with the prospect of being excluded from power. The results awarded the Shia-led United Iraqi Alliance 128 of the 275 seats in the Iraqi assembly, only 10 short of an absolute majority, while their probable future coalition partners among the various Kurdish parties won 53 seats. Sunni parties took only around 50 seats, leaving their participation in government open to question. Foreign governments, led by the US, have urged Iraqis to form a broad-based government including all three of Iraq's main

communities, in the hope of undercutting the grounds for Sunni anger over the election results. Many of them claim the results are fraudulent.

ICG, 27 February 2006 :

2005 will be remembered as the year Iraq's latent sectarianism took wings, permeating the political discourse and precipitating incidents of appalling violence and sectarian "cleansing". The elections that bracketed the year, in January and December, underscored the newly acquired prominence of religion, perhaps the most significant development since the regime's ouster. With mosques turned into party headquarters and clerics outfitting themselves as politicians, Iraqis searching for leadership and stability in profoundly uncertain times essentially turned the elections into confessional exercises. Insurgents have exploited the post-war free-for-all; regrettably, their brutal efforts to jumpstart civil war have been met imprudently with ill-tempered acts of revenge. [...] If Iraq falls apart, historians may seek to identify years from now what was the decisive moment. The ratification of the constitution in October 2005, a sectarian document that both marginalised and alienated the Sunni Arab community? The flawed January 2005 elections that handed victory to a Shiite-Kurdish alliance, which drafted the constitution and established a government that countered outrages against Shiites with indiscriminate attacks against Sunnis? Establishment of the Interim Governing Council in July 2003, a body that in its composition prized communal identities over national-political platforms? Or, even earlier, in the nature of the ousted regime and its consistent and brutal suppression of political stirrings in the Shiite and Kurdish communities that it saw as threatening its survival? Most likely it is a combination of all four, as this report argues.

UNSC, 3 March 2006, pp.1-3:

"Following the adoption of the new Constitution by the Iraqi people in the referendum held on 15 October 2005, the December election for a new Parliament, the Council of Representatives, marked the beginning of the last phase of the political transition process set forth in the Transitional Administrative Law and endorsed by the Security Council in resolution 1546 (2004). The election held on 15 December 2005 was the third major national electoral event in Iraq during the past year. Overall, election day was calm and no major incidents were reported. A total of 307 political entities and 19 coalitions encompassing more than 7,500 candidates representing almost all Iraqi communities and political affiliations entered the contest for the 275 seats in the Council of Representatives. Despite security concerns, voter turnout was high throughout the country. A total of 12,191,133 valid votes were cast in approximately 6,300 polling centres that accommodated over 30,000 polling stations. Of the valid votes, 295,377 were cast abroad and 203,856 were cast in 255 special polling centres for detainees, hospital patients and members of Iraq's security forces. These figures translate into turnout in the January 2005 election, which amounted to approximately 58 per cent.

Compared to the January 2005 election, Sunni Arab voters in the governorates of Ninewa, Salahaddin, Tamim and Al Anbar — the governorates with the lowest turnouts in the January election — participated in significantly greater numbers in the December 2005 election. Several Sunni Arab and tribal leaders encouraged local populations to support the electoral process and in some areas provided protection to polling centres. Campaigning was robust across the country particularly through the use of television, radio, the press and street posters. While overall levels of violence did not increase in the pre-election period, there were several acts of campaign violence. The Independent Electoral Commission of Iraq received 190 complaints during the period leading up to

polling day. The large majority of the complaints related to poster damage, intimidation and aggressive conduct by supporters of political entities. However, some of the complaints referred to acts of a criminal nature including violent attacks resulting in the death of candidates and electoral staff. The Electoral Commission and my Special Representative repeatedly called upon all concerned to refrain from violence and to ensure an environment conducive to full participation in the electoral process.... In conclusion, the election was conducted transparently and credibly. It was an inclusive exercise that succeeded in incorporating all of Iraq's numerous communities and political parties. ."

BBC, 22 May 2006:

"After five months of negotiations following December's general elections Iraq's parliament has approved a new government, including members of the main Shia, Kurd and Sunni parties."

See a draft of the [Iraqi Constitution](#)

See also, IRIN, [Constitution approved despite rejections](#), 1 September 2005

Vulnerable ethnic groups and their relationship to the previous regime, 1998-2002

- Part of the Shi'a, Kurdish, Christian, Turkoman, "Marsh Arab", Yazidi and "Bidoon" population has had conflicting relations with the former Iraqi government 1960s to 2003.
- Shi'a Muslims constitute a 60-65% majority. Sunni Muslims (Kurds, Arabs and Turkomans) make up 27-32% of the population. Christians and Yazidis represent about 3%

US DOS, 5 September 2000, sect.I.

"While a precise statistical breakdown is impossible because of likely inaccuracies in the latest census (taken in 1997), according to conservative estimates, 97 percent of the population of 22 million persons are Muslim. The (predominantly Arab) Shi'a Muslims constitute a 60 to 65 percent majority, while Sunni Muslims make up 32 to 37 percent (approximately 18 to 20 percent are Sunni Kurds, 12 to 15 percent are Sunni Arabs, and the rest are Sunni Turkomans). The remaining approximately 3 percent consist of Christians (Assyrians, Chaldeans, Roman Catholics, and Armenians), Yazidis, and a small number of Jews. The Shi'a, though predominantly located in the south, also are present in large numbers in Baghdad and have communities in most parts of the country. Sunnis form the majority in the center of the country and in the north."

Cordesman, November 1998, p.4:

"There is no way to know what portions of Iraq's population is loyal to the present regime or loyal to the concept of Iraq as a state – as distinguished from exhibiting primary loyalty to a religious or ethnic group. It is obvious, however, that many Iraqis resent the fact that the present authoritarian regime is controlled by a small group of extended Sunni families. It is obvious that the regime has had to deal with major Kurdish and Shi'ite uprisings, and faces a continuing problem with a separate Kurdish enclave. It is equally obvious that Saddam's rule on policies designed to divide and paralyze Iraq's ethnic factions while using Iraqi military forces, overlapping and competing Iraqi intelligence and security services, the Ba'ath Party, and paramilitary forces to ensure that they remain under control."

The Shi'ites

US DOS, 5 September 2000:

"Although Shi'a Arabs are the largest religious group, Sunni Arabs traditionally have dominated economic and political life. Sunni Arabs are at a distinct advantage in all areas of secular life. The Government also severely restricts or bans outright many Shi'a religious practices. The Government has for decades conducted a brutal campaign of murder, summary execution, arbitrary arrest, and protracted detention against the religious leaders and followers of the majority Shi'a Muslim population [...]."

Cordesman November 1998, p.5:

However, "The vast majority of Iraq's Shi'ites remained loyal during the Iran-Iraq War, and probably think of themselves primarily as Iraqi and Arab, rather than as Shi'ites. They may want equality or proportionate political power as Iraqis, but it is far from clear that they have any interest in a separate political entity or any ties to Iran."

The Iraqi Kurds

Cordesman, November 1998, pp.5-6:

"Saddam practiced near-genocide against the Kurdish tribes he felt support Iran during the Iran-Iraq War, and has been ruthless in putting down the Kurdish uprisings of 1991 and threatening the Kurdish security zone. Iraq, however, has a total of roughly 3.2 million to 4.3 million Kurds and it is far from clear that a majority of them would choose independence or autonomy [...] if Saddam was no longer in power or if any Iraqi regime made good on a long series of promises to give them more rights and a larger share of Iraq's oil wealth. [...]"

Most of Iraq's Kurds remained loyal to Iraq during the Iran-Iraq War, and only about half of Iraq's Kurds were involved at even the peak of the uprising in 1997. Iraqi Kurdish separatists represent a major force within Iraq, but they do not speak for the Kurds per se. The separatists are also deeply divided into rival factions that are never quite clear as to whether they are seeking rights and faire treatment, autonomy, or nation-hood. Iraqi Kurds also do not share any broad identify with Kurdish groups outside Iraq, and the Talabani faction seems to be the only separatist group that has shown serious past interest in creating a greater 'Kurdistan' that involves Turkish and/or Iranian Kurds."

Al-Qilaa Kurds

Fawcett & Tanner, Oct 02, p32:

"This group areis the Kurdish people and their families that fought or supported the Iraqi government during the 1980s destruction of the Kurdish villages and the incarceration of the inhabitants in the collective towns. They left (it's not clear if they fled or were expelled) the North upon the establishment of the Kurdish rule in the North in 1991. To the main population of the Kurds, they are known as the Jash or the Donkeys. Originally from the Aqra area, they fled to the closest city under Baghdad's control, Mosul, where they still reside today. Many of them moved into unoccupied military compounds, (in Arabic al-Qilaa.) Despite having provided such valuable service to the Iraqi authorities in the 1980s, the al-Qilaa Kurds suffer from the same desperate conditions as other displaced in Iraq. They live in overcrowded makeshift accommodations, are discriminated against by official regulations, have little education or health care, and few prospects or hopes for the future. According to Iraqi Red Crescent sources, there are approximately 8,000 displaced families of the al-Qilaa Kurds in Mosul."

The Faili Kurds:

Dammers, 1998, p.184:

"Faili Kurds, most of whom are Shi'a, form a distinctive group of displaced people in Iraq, many of them twice displaced and now back in their country of origin. Unlike most Iraqi Kurds, until the early 1970s they lived mainly in central and southern Iraq, many of them in Baghdad. At that time, perhaps 130,000 Failis were deported to Iran by the government of Iraq on the pretext that they were not Iraqi citizens, though it fact it was because their loyalty was considered suspect. Most had lived in Iraq for generations, but in Ottoman times had not registered as citizens in order to

avoid conscription. Since the 1970s, most of the Faili Kurds have lived in Iran. However, since 1981, some have returned to Kurdish-controlled northern Iraq, where they are not necessarily welcome."

Fawcett & Tanner, Oct 02, pp14-5:

"Faili is an Arabic term, given to a group of Kurds from a region of the Zagros Mountains straddling the Iran-Iraq border. Due to the geography of their homeland, the Faili Kurds have family members on both sides of the border. Contrary to the majority of their Kurdish brethren, they are Shi'a. In the nineteenth and early twentieth century, many Faili Kurds began migrating westwards to Iraqi cities, primarily Baghdad, where they took on key commercial, social, and cultural roles. During the 1970s and 80s the regime in Baghdad expelled large numbers of Faili Kurds. In one instance, in the autumn of 1971, up to 40,000 Failis were expelled. In April 1980, shortly after Saddam Hussein seized full powers and just before his invasion of Iran, the 480 wealthiest Baghdadis were summoned to the Chamber of Commerce building. One third of them, found to be Faili Kurds, were swiftly arrested and deported to Iran, with their families following shortly after. Further deportations continued, and the numbers of Faili Kurd refugees estimated to have gone to Iran range from 100,000 up to 300,000. It is not clear how many Faili Kurds remain in Iraq, but according to one account, as of 1997, the expulsions continued."

The Yazidis

UNHCR, June 2000, p.16:

"The Yazidis are a Kurmanji speaking group and are exclusively Kurdish. Yazidi beliefs incorporate aspects of several major religions in the region, including Zoroastrianism, Islam, Nestorian Christianity, Judaism and Manichaeism. There are figures of the Yazidi population in Iraq ranging from 30,000 to 120,000 and they live predominately in the Mosul region of Iraq."

US DOS, 25 February 2000, "Respect for civil liberties, c.":

"The Constitution does not provide for a Yazidi identity. Many Yazidis consider themselves to be ethnically Kurdish, although some would define themselves as both religiously and ethnically distinct from Muslim Kurds. However, the Government, without any historical basis, has defined the Yazidis as Arabs. There is evidence that the Government has compelled this reidentification to encourage Yazidis to join in domestic military action against Iraqi Muslim Kurds. Captured government documents included in the 1998 Human Rights Watch report 'Bureaucracy of Repression: The Iraqi Government in its own words', describe special all-Yazidi military detachments formed during the 1988-89 Anfal campaign to 'pursue and attack' Muslim Kurds. However, the Government does not hesitate to impose the same repressive measures on Yazidis as on other groups. For example, 33 members of the Yazidi community of Mosul, arrested in July 1996, still are unaccounted for."

The 'Marsh Arabs'

Patrow 2001, pp15-16:

"A crucible of civilization, the marshlands have been home to ancient human communities for more than five millennia. The area's inhabitants are commonly known as the Ma'dan or "Marsh Arabs", whose population is estimated to range from 350,000 to 500,000. [...]Ethnically, the population's composition has been heavily influenced by immigrations and intermarriages with the Persians to the east and Arab Bedouins to the west. The Marsh Arabs are Shi'ite Muslims, and their way of life is largely based on the traditions of the Arab Bedouin.[...]"

The Marsh Arabs have evolved a unique subsistence lifestyle that is firmly rooted in their aquatic environment. Most of the Ma'dan are semi-nomadic, but some of them are settled in villages. Their settlements are located on the edges of the marshes, or stand on artificial floating islands that are regularly reinforced with reeds and mud."

Out There News, 2000, "Marshes":

"For thousands of years the salt marshes of southern Iraq have been a unique micro-environment. [...] The marshes lie at the confluence of the Tigris and Euphrates rivers. [...] Successive Iraqi governments had already tampered with the marshes in the way that modern governments often do in developing countries, regarding the hunter-gatherer subsistence lifestyle of the tribes there as being primitive and unworthy of a modern state.

But it was with the start of the Iran-Iraq war in 1980 that wholesale disaster set in. By 1982, Iran had reversed Iraq's original conquest of Iranian lands and the front line surged back across the border into Iraq - including the marshlands. The marsh Arabs of the region were driven out as the Iraqi army sent massive electric charges through the marshes - thousands of invading Iranians were electrocuted like this as they advanced.

That war ended in 1988 but the devastation continued. After Saddam's second defeat in the Gulf War of 1991, rebels rose up against him in the south of the country. When they were defeated, many of them hid in the marshes. The government began to drain the marshes systematically in 1992. Three years later, they had almost finished, creating a desert where the marshland had been. Areas where the water was five foot deep are now bone dry with cracked mud. Less than 10,000 marsh Arabs remain, their traditional lifestyle literally drained away. Those who remain barely eke out a living."

The Assyrians and Chaldeans

Dammers 1998, p.181:

"The Assyrian Christian minority of about 250,000 people also lives mainly in Iraqi Kurdistan and has been caught up in the conflict and displacement there, particularly in 1987/8 and 1991."

US DOS, 25 February 2000, Section 5:

"Assyrians and Chaldeans are considered by many to be a distinct ethnic group as well as the descendants of some of the earliest Christian communities. These communities speak a distinct language (Syriac), preserve important traditions of Christianity in the east, and have a rich cultural and historical heritage that they trace back over 2,000 years. Although these groups do not define themselves as Arabs, the Government, without any historical basis, defines Assyrians and Chaldeans as such, evidently to encourage them to identify with the Sunni-Arab dominated regime."

The Turkomans

Library of Congress 2001, Chapter 2:

"The Turkomans, who are believed to constitute somewhat less than 2 percent of the population, are village dwellers in the northeast living along the border between the Kurdish and Arab regions. A number of Turkomans live in the city of Irbil. The Turkomans, who speak a Turkish dialect, have preserved their language but are no longer tribally organized. Most are Sunnis who were brought in by the Ottomans to repel tribal raids. These early Turkomans were settled at the entrances of the valleys that gave access to the Kurdish areas. This historic pacification role has led to strained relations with the Kurds. By 1986 the Turkomans numbered somewhere around 222,000 and were being rapidly assimilated into the general population."

The taba`iyya iraniyya

Fawcett & Tanner, Oct 02, p.15:

"Some of the returnees from Iran, expelled just after Iraq's invasion of Iran, are a group of people known as *taba`iyya iraniyya*, or sometimes, just *taba`iyya*. According to the scholar Kanan Makiya, after the collapse of Ottoman rule, the inhabitants of the Iraqi mandate were requested by a census to state their 'belonging' (in Arabic *taba`iyya*) as either Ottoman – *uthmaniyya* – or Iranian – *iraniyya*. Many reportedly chose *iraniyya* as a means to escape military conscription. These two categories made it through to the modern state of Iraq, where they now show up on every Iraqi's citizenship document. In the late 1970s and early 1980s, the regime painted those

carrying *taba`iyya iraniyya* as Iranian fifth columnists, and used the concept as a legal pretext to summarily deport thousands of families."

The 'Bidoon'

Dammers 1998, p.184:

"Prior to the Gulf War, the 'Bidoon', most of whom are of Iraqi origin, were stateless residents of Kuwait. Their name is Arabic for 'without' – that is without nationality. They numbered about 250,000 and most had been born in Kuwait, or had lived there for a long time. Since the war around half of them have fled from or been expelled from Kuwait, mostly to Iraq. Though they are refugees, their statelessness, their displacement and their Iraqi connections mean that their status has much in common with that of other 'internally displaced' people. Detailed information on their situation in Iraq is, however unavailable."

POPULATION FIGURES AND PROFILE

Global figures

Total internally displaced population is estimated to be 2.76 million (as of November 2009)

- 2,764,111 people are believed to be internally displaced in Iraq today (figure as November 2009). This figure is provided by the Ministry of Migration and Displacement and Kurdistan Regional Government, including data monitoring by IOM and UNHCR. Previous years displacement was also monitored by UN led IDP Working Group, which brought UN agencies and NGOs together addressing issues of displacement. The figure is an accumulated figure. 1,212,108 were displaced between 1968 to 2003, in addition to an estimated 200,000 who displaced in 2003-2005. Since February 2006, an additional 1,552,003 million Iraqis have been displaced.
- All figures should be approached with caution. Registration of post 2006 displaced remains voluntary, and contingent on documentation which IDPs may lack. Multiple patterns of displacement also complicate the figures. The figures may not reflect on the number of returnees as deregistration remains voluntary and many have yet to be deregistered. UNHCR and IOM monitoring reports indicate a returnee figure of 350,000 by late 2009 whereas government figures note of estimated 200,000 returnees.
- The estimates of displacement up to 2003 have also been difficult to validate for national and international agencies in view time lapse and multiple patterns of displacement since displacement, non-registration of pre 2003 IDPs. Observers have suggested that figures on displaced populations, particularly in northern Iraq, have been politicised according to parties' claims over disputed territories. The pre-2003 figures are based on data obtained in 2005 by the UN Office for Project Services, UNHCR and the IOM.
- There are few alternative sources. Estimates provided by the Iraqi Red Crescent Society as of June 2008 note of 2.1 million people believed to be internally displaced. More than 82 percent of displaced people were women and children under the age of 12. (IRCS, June 2008)

IDMC/NRC Note on the figures as of November 2009: The overall figure of internally displaced people in Iraq is estimated to be 2.77 million. Figures of displacement are based on information provided by the Ministry of Displacement and Migration (MoDM), the Kurdistan Regional Government (KRG), as well as monitoring data gathered by IOM and UNHCR.

Improved information management and wider humanitarian access since 2008 is said to have improved data collection and reliability of information collected. There remains several caveats however – pre 2003 displacement is reportedly based on UN Office for Project Services in 2005 and may not take into account population movements to date; figures for post 2006 refers only to registered displaced communities whereas registration is voluntary and subject to specific requirements.

Figures may also not reflect on the actual number of returnees - registration as a returnee is voluntary, and subject to documentation which may not be available, and many have yet to be deregistered. UNHCR and IOM monitoring reports indicate a

returnee figure of 350,000 by late 2009 whereas government figures of registered returnees note of an estimated 200,000 returnees.

Estimated total figure for 2008 based on MoDM and Kurdistan Regional Government and monitoring of IOM, UNHCR and IDP working group: **2,842,491** people are believed to be internally displaced in Iraq. Over 1 million of the total displaced population were displaced over 20 years, in addition to an estimated 200,000 who were displaced in 2003-2005. Since February 2006, an additional 1.63 million Iraqis have been displaced.

Estimated total figure for end 2007 based on UNHCR, IOM, IDP Working Group: **2,480,000** (Source: IDP Working Group, February 2008). 1,024,000 people are estimated to have been displaced prior to 2003. Approximately 150,000 were displaced from 2003 to 2005. Inter-communal violence from since February 2006 led to an additional 1,268,000 people being displaced as of December 2007.

Estimated total figure for end 2006 based on UNHCR: **1,884,000** Iraqis displaced by end 2006. The rate of displacement was estimated at 40,000 to 50,000 a month by January 2007. (Source: UNHCR, 8 January 2007; Cluster F, 5 March 2007). 1,024,000 people are estimated to have been displaced prior to 2003. Approximately 150,000 were displaced from 2003 to 2005. Inter-communal violence from since February 2006 led to an additional 710,000 people being displaced as of end 2006.

Estimated total figure for end 2005 based on IOM and UNOPS monitoring: **1,210,000-1,300,000** Internally Displaced Persons (Source: UNHCR, April 2006; IDP WG, November 2008) The total figure is an accumulated figure based on 1,024,000 people estimated displaced prior to 2003, and an estimated 190,000 displaced in 2003-2005. UNHCR, IOM and UNOPS monitor IDP and returnee movements, however monitoring activities are restrained by ongoing insecurity and ongoing displacement.

United Nations High Commissioner for Refugees (UNHCR), November 2009

IDP Working Group, November 2008

Internally Displaced Persons from February 2006 to July 2008

Internally Displaced Persons pre 2003 until end 2005

Red Crescent Society, June 2008

In May 2008, the total cumulative number of IDP was 2,169,920 people- a decrease by 3,234 people compared to April 2008. There were changes in the numbers of IDP in three governorates- Kirkuk, Kerbala and Saladin (see table 3 for details). More than 82 percent of displaced people were women and children under the age of 12. (See table 1 and chart 1 for 2008 cumulative monthly numbers of IDP and table 2 for distribution of IDP by governorate.)

Refugees secondary displaced in Iraq (2004-2010)

- In 2009, there are 34,832 registered refugees inside Iraq down from an estimated 41,673 in 2008. Refugees mainly originate from Iran, Palestine and Turkey. There are no clear figures on the overall number of those displaced within Iraq since 2003. Secondary displacement of refugees principally affected Palestinian refugees who were compelled to flee from violence in Baghdad. Iranian and Turkish (mainly of Kurdish origin) have also reportedly been under risk of displacement.
- In the aftermath of the conflict in 2003, many Palestinian refugees in Baghdad faced evictions and displacement. Palestinian residents under the previous government benefited from subsidised housing and were faced with evictions and intimidation in the aftermath of the conflict.
- In 2008, physical security and meeting basic survival needs were the primordial concerns of the Palestinian community in Baghdad and in the camps of Al Waleed, and Al Tanf located near Iraqi Syrian border (AI, December 2008; UNHCR, September 2008)
- Palestinian refugees in Al Tanf camp located in the no mans land on the Iraq-Syria border remained stranded in appalling conditions since 2004. UNHCR considered Palestinians, especially those at al-Tanf, to be among the most vulnerable among the 2 million refugees who have fled Iraq. (AI, December 2008)
- In February 2010, UNHCR closed Al Tanf camp and relocated the last of Palestinian refugees. Out of the 1,300 Palestinian refugee who had lived at different times in the camp, more than 1,000 were relocated to third countries (UNHCR, February 2010).
- There have been repeated protection concerns in other refugee camps located in Iraq including Al Ashraf camp located in Diyala housing Iranian refugees, as well as concerns on the situation of Al Makhmour camp and other settlements in northern Iraq of Turkish refugees of Kurdish ethnicity (Today's Zaman, November 2009).

United Nations High Commissioner for Refugees (UNHCR), December 2009

Registered Refugees in Iraq	
Origin	Individuals
Palestine	12,002
Syria	277
Iran	12,381
Turkey	10,167
Others	5
Total	34,832
UNHCR statistics at October 2009	

Asylum-Seekers Hosted in Iraq	
Origin	Individuals
Iran	1,284
Syria	303
Turkey	1,862
Others	8
Stateless	2
Total	3,459
UNHCR statistics at October 2009	

UNHCR, September 2008:

"Currently there are **41,6733** refugees inside Iraq: 14,428 Palestinians, 15,700 Turkish Kurds, 10,815. Iranians (Kurds & Arabs), 589 Syrians (Kurds and Arabs), 141 Sudanese. Their protection and assistance needs vary according to the specific nature of each group as follows: **14,428 Palestinians:** Physical security and meeting basic survival needs are the primordial concerns of the Palestinian community in Baghdad and in Al Waleed Camp (1,367). Until temporary relocation to safety and resettlement are secured, this group is in need of life-saving protection and assistance. **15,700 Turkish Kurds:** Basic assistance to vulnerable camp population in Makhmour and other settlements as well as camp coordination and camp management are the requirements for this group while pursuing durable solutions through Voluntary Repatriation to Turkey and local settlement in Iraq."

AI, April 2008:

"Palestinian refugees in Iraq have been targeted for gross human rights abuses since the US-led invasion in March 2003. They have been threatened, abducted, tortured and killed mainly by Shi'a armed militia groups, in particular the Mahdi Army, followers of the Shi'a cleric Moqtada al-Sadr, but also by Iraqi government forces. The bodies of those abducted and killed are often found mutilated or with clear marks of torture. Palestinians have been targeted because of their ethnicity and because they are reputed to have received preferential treatment under the former Ba'ath government headed by Saddam Hussain. As a result of the persecution, thousands have fled their homes, mostly in Baghdad, after they or their relatives suffered abuses or received death threats. According to UNHCR, since 2003 the number of Palestinians in Iraq has fallen from 34,000 to around 15,000. UNHCR considers Palestinians, especially those at al-Tanf, to be among the most vulnerable among the 2 million refugees who have fled Iraq."

Profile of Displaced Communities

Trends in Displacement 2006-2010

- In 2009 to 2010, displacement in Iraq has slowed to isolated incidents, the focus turns to how best to assist the nearly 1.6 million internally displaced (IDP) families in the country, whether they wish to return, integrate into the place of displacement, or go elsewhere. The environment remains nevertheless precarious with endemic violence particularly in Baghdad, Diyala, Ninewa and Mosul where isolated instances of displacement continue involving at times thousands of IDPs as most recently in Ninewa in February 2010.
- The rate of return continues to be slow however indicating high level of caution as well as differing intentions. IOM assessments in November 2009 show that approximately 53% of interviewed post-2006 IDPs wish to return, another 45% of those interviewed wish to integrate permanently into their places of displacement or move to a third location.
- According to IOM assessments, the majority (71%) of IDPs assessed by IOM were displaced during 2006. According to analysis of IOM date of displacement data from 2006 through the first half of 2008, there is a trend of significant decline in new displacements, starting in 2007 (IOM, June 2008)
- During the first half of 2008, trends of decreased violence and a declining rate of displacement continued throughout the country (IOM, June 2008) Although the rate of newly displaced Iraqis has slowed during the past year, the number of displaced in Iraq remains high.
- It is estimated that approximately 20% of the country's population are internally or externally displaced. In addition, many displaced families are facing secondary displacement from eviction threats (IOM, June 2008)
- IDP and refugee returns to Iraq have been gradually increasing throughout 2007 and has remained at a constant rate of return through 2008 to 2009. There have been small spikes of return from March – April 2007 and late 2007 – early 2008 principally in Baghdad which amounts for 60% of all returns. (IOM, June 2008; IDP WG, June 2008)

International Organization for Migration (IOM), 3 November 2009

As displacement in Iraq has become limited to isolated incidents and return continues slowly, the focus turns to how best to assist the nearly 1.6 million internally displaced persons (IDPs) in the country, whether they wish to return, integrate into the place of displacement, or go elsewhere. While IOM assessments show that approximately 53% of interviewed post-2006 IDPs wish to return, another 45% of those interviewed wish to integrate permanently into their places of displacement or move to a third location. Whether it is a matter of transport home, rebuilding property and livelihood or starting a permanent life in a different location, IDP and returnee families remain a vulnerable population in Iraq and are in urgent need of assistance to make their choices sustainable. Since December 2007, families displaced by the sectarian violence which occurred in the wake of the February 22, 2006 Samarra mosque bombing have been returning in small numbers to Iraq both from internal displacement and displacement abroad. In cooperation with the Iraqi Ministry of Displacement and Migration (MoDM), as well as local governmental and non-governmental stakeholders, IOM has identified approximately 58,110 returnee families and conducted in-depth needs assessment interviews with 4,061 of these families.

IOM, 30 June 2008:

During the first half of 2008, trends of decreased violence and a declining rate of displacement continued throughout the country. Yet the deteriorating conditions facing the 2.8 million Internally Displaced Persons (IDPs), as well as the limited returnee population, remain one of the most serious humanitarian crises in the world. In addition,

over two million Iraqis are refugees, mostly in neighboring Syria and Jordan, resulting in a total of 5 million internally and externally displaced. On 22 February 2006, the bombing of the Al-Askari Mosque in Samarra triggered escalating sectarian violence that drastically changed the cause and scale of displacement in Iraq. Although military operations, crime, and general insecurity remained factors, sectarian violence became the primary driver for population displacement. Since February 2006, almost 1,600,000 Iraqis have been displaced. Of these, IOM's assessments cover 179,595 families throughout Iraq (an estimated 1,077,570 individuals).

Although the rate of newly displaced Iraqis has slowed during the past year, the number of displaced in Iraq remains high. It is estimated that approximately 20% of the country's population are internally or externally displaced. In addition, many displaced families are facing secondary displacement from eviction threats. The majority (71%) of IDPs assessed by IOM were displaced during 2006. According to analysis of IOM date of displacement data from 2006 through the first half of 2008, there is a trend of significant decline in new displacements, starting in 2007:

The March 2007 displacement spike represents a large number of IDPs arriving to Wassit from Baghdad and Diyala due to increased violence and military operations in these governorates. The overall decrease in new displacements may result from a combination of improved security and the homogenization of previously mixed neighborhoods due to sectarian violence....IDP and refugee returns to Iraq have been gradually increasing throughout 2007 and the beginning of 2008, with small spikes from March – April 2007 and late 2007 – early 2008, as seen below:

IDP Working Group, 27 June 2008:

The chart "Number of Families Displaced Each Month" above indicates the number of IDP families displaced each month (from February 2006 to March 2008). The peak of displacement was between June and September 2006. In October 2007, still nearly a thousand new families were displaced, while from October on, a few hundred families were displaced each month.[...]

Reasons for Displacement (Post February 2006)

- The majority of IDPs assessed by IOM report leaving their homes because of direct threats to their lives, generalized violence, and forced displacement from property. Answers from IDPs do not vary significantly among those displaced in 2006-2009. Returnees state similar reasons for having left, with the notable exception of those who were forcibly displaced from their property, who have returned in a smaller proportion.
- The most commonly cited reasons for displacement among those assessed are direct threats to life (37%) and generalized violence (23%) (IOM June 2008) When asked why they were

International Organization for Migration (IOM), 3 November 2009

IOM returnee assessments focus on returnees who were displaced after the start of extreme sectarian violence in Iraq in February 2006. The majority of IDPs assessed by IOM report leaving their homes because of direct threats to their lives, generalized violence, and forced displacement from property. Returnees state similar reasons for having left, with the notable exception of those who were forcibly displaced from their property, who have returned in a smaller proportion.

IOM, 30 June 2008:

"IDPs have fled their homes for a variety of reasons, all related to security. The most commonly cited reasons for displacement among those assessed are direct threats to life (37%) and generalized violence (23%):

When asked why they were targeted, 85% of those assessed attributed it to their sectarian identity. Another 10% said that they did not feel specifically targeted, while 6% cited political opinion and 4% cited ethnic identity. Answers do not vary significantly among those displaced in 2006, 2007, and 2008."

IDP Working Group, 27 June 2008:

Religion & Ethnicity of Displaced Communities (Post February 2006).

- Post-2006 displacement in Iraq has been defined by the sectarian threats and violence. All ethnic and sectarian groups in the country have been affected by displacement to a certain extent (IOM, November 2009) Recent isolated events of displacement have particularly affected minorities (OCHA, March 2010).
- The majority of the displaced (58%) are Shia Arab, followed by Sunni Arab (30%), along with small but significant numbers of Sunni Kurds, Assyrian Christians, Chaldean Christians, Turkmen, and others. (IOM, 30 June 2008)

International Organization for Migration (IOM), 3 November 2009

Post-2006 displacement in Iraq has been defined by the sectarian threats and violence at its roots. All ethnic and sectarian groups in the country have been affected by displacement to a certain extent. This can also be seen in the flows of assessed returning families.

IOM, 30 June 2008:

"The majority of the displaced (58%) are Shia Arab, followed by Sunni Arab (30%), along with small but significant numbers of Sunni Kurds, Assyrian Christians, Chaldean

Christians, Turkmen, and others. The following chart and graph show the religious and ethnic profile of the IDP population:"

Gender & Children Distribution in Displaced Communities (Post February 2006).

- There are few estimates of the number of children and women displaced. Estimates suggest that women and children make in excess of 70% of the displaced in Iraq. (See Section on Physical Security: Vulnerable groups for further information)

Iraqi Red Crescent Organization, 30 June 2008:

Intentions of Displaced Communities (Post February 2006)

- According to IOM assessments of post-2006 IDP families, approximately 53% of interviewed returnee families wish to return to their place of origin, while 25% wish to integrate into their places of displacement, and 20% want to resettle in a third location. (IOM November 2009) There is little information about intentions of IDPs wishing to resettle or integrate in place of displacement.
- The surveys available indicate that Iraqi IDPs' intended settlement decisions vary significantly by governorate. In Baghdad, the majority (80 percent) intend to return to their place of origin. The figure is reversed in Basra where 84 percent intend to locally integrate in their current location. In Ninewa, IDPs are both from outside and within the governorate, and the settlement intentions vary: 60 percent intend to return , 32 percent plan to resettle, and 7 percent intend to locally integrate (Brookings-Bern, June 2009)
- This is a very slight variation from 2008, according to which the majority (61%) of assessed IDPs intend to return to their place of origin, while 21% intend to integrate locally, and 17% plan to resettle in a third location. (IOM 30 June 2008)
- 82% of IDPs displaced within their home governorate intend to return to their original location, compared with 50% of those displaced to another governorate who wish to do the same (IOM 30 June 2008)

International Organization for Migration (IOM), 3 November 2009

According to IOM assessments of post-2006 IDP families, approximately 53% of interviewed returnee families wish to return to their place of origin, while 25% wish to integrate into their places of displacement, and 20% want to resettle in a third location.

IOM, 30 June 2008:

The majority (61%) of assessed IDPs intend to return to their place of origin, while 21% intend to integrate locally, and 17% plan to resettle in a third location. Specifically, IDPs displaced close to their place of origin are more interested in returning home than those who fled to a different governorate. 82% of IDPs displaced within their home governorate

intend to return to their original location, compared with 50% of those displaced to another governorate who wish to do the same:

Voices of Displaced Persons

ICRC, March 2009

Rana, 25, Baghdad.

[Widowed and displaced due to conflict and sectarian violence]

In 2005, my husband and father were caught in crossfire near Abu Ghraib and were both killed. I was a student, married just four months and pregnant. Soon afterwards, my brother was kidnapped and killed and my brother-in-law was shot dead. My widowed mother, my widowed sister and I left to Baghdad. In one month, I lost my husband and all the men in my immediate family. I quit my studies. My son was born without a father and we shared a flat with another widow for a few months. Then we stayed in an empty house, but were forced to leave after a while. Again and again we moved, trying to find a suitable place with the little money we had. I sold all my belongings to pay for rent and food. I moved 10 times in two years. Three months ago, I met a lady on the bus; she is kind enough to give me money every month to survive. Women in this sort of situation only have each other to lean on.

Kurdistan, 35, Dohuk

[Female headed household displaced]

"I live in a camp in Dohuk governorate with my 5 children. My husband has been detained since 2006. Luckily I have a job, packing soil in plastic bags for a local nursery. My daily wage is 7,000 IQD (6\$), but it only covers a fraction of my family needs. I think all the time of ways to put food on the table. I sold my only traditional Kurdish dress for a gas canister last week. Sometimes I barter a bottle of cooking oil for fresh tomatoes. When my children ask me for more, I tell them "maybe tomorrow", in the hope they have forgotten by the next day. The youngest keeps asking about his father saying he wants to search his pockets for sweets when he returns from the souk, he thinks he is coming back with presents".

Buthina. 39, Wassit.

[Widowed and displaced due to conflict and sectarian violence]

After my husband was killed, I went to live with my family in Wassit. All they could give me was a place to stay. All my documents were in Baghdad and I was afraid of travelling to get them. Therefore I cannot get a pension or compensation from the government. I applied for jobs as a clerk but they kept asking: To which party do you belong? Do you know how to use a computer? At the moment, we live on the monthly ration. We can just afford two meals a day. My three daughters 8, 12 and 15 years had to leave school because it's too expensive. My sons aged 11 and 16 are still going to school. But in the evening, instead of homework, they have jobs in the market. I know it is too much for my children to deal with. My oldest son is depressed and has nightmares; he sometimes seems to have no will to go on... I know I place too much on his shoulders but he is the man of the family now."

Nyhaya, 25, Baghdad.

[Widowed and displaced due to conflict and sectarian violence]

My husband and I fell in love. It was a mixed marriage and we lived in his parent's home with our two children, his brothers, their wives and six children. In 2007, our neighbourhood became very insecure so my husband and his brothers went to visit another house in a different district. On the way back they were kidnapped. The next day someone called and told me to collect the bodies in the morgue. When I saw the bodies they had been horribly tortured. What did they use? Drills, acid? How can people be so cruel? From one day to the next, all the breadwinners of the house were gone. My father-in-law could not earn enough to support us, we lived off charity from the neighbours for one year. In some ways I was lucky and I was given the government's compensation (for spouses of terror victims). I used the money to open a small shop in the commercial area of Adhamyah and I sell women's and children clothes. I make about 100,000 IQD (\$90) per month, it is not a lot, but it helps us. My sisters-in-law and I have lived through a catastrophe, but we are together and we need to go on, for our children's sake.

RI, April 2008

[Sectarian displacement faced by a Sunni household]

"Saad fled in 2007 with his family from the Amil district of Baghdad, leaving all their belongings behind. He had owned his former home. Iraqi police loyal to Shiite militias used the loudspeakers on their police vehicles to broadcast insults to Sunnis, Saad said, and they warned that any Sunnis seen in the area would be killed. He witnessed one of his neighbors killed in a public square. "Another one was killed with his two little children in his garden. The militias called him by his name and shot him with two or three shots in the head and the family left the house after that." Saad maintains that before the war relations between Sunnis and Shiites in his area were very good. "We were like one family," he said. "Those militias came from outside, not from our area... They might come from the other side of the city." Although Saad wanted to return to his former home, he did not think he would be able to, explaining that he feared the Shiite militias. "Some families returned home when they heard there is reconciliation," Saad said. "Then they were forced to leave again. Sunnis can not return to Hai Al-Amil." Saad now lives with ten other relatives in a house that had been burned after its Shiite residents were expelled. He explained that the tires and other combustibles that had been used to set fire to the house were still inside when they moved in. Saad had been a construction worker, but was now unemployed. He and his family now rely on charity to survive but he has received no help from the Iraqi government. The Ethar Association, a local NGO, provided them with aid such as food, beds, blankets and other essential goods."

[Sectarian displacement faced by a Shi'ia household]

"Haidar is a young man displaced with his family from Abu Ghraib, a town west of Baghdad. Radical Sunnis began killing the Shiite clerics in Abu Ghraib, he explained, and then distributed leaflets warning Shiites that they had to leave. Haidar's brother wanted to fight back but their father warned him not to because their children would be put in danger. So, Haidar's brother found the family a temporary home in the Shaab district of eastern Baghdad. Another brother joined the Iraqi police but was killed by Sunni militiamen. "The Sunnis are good people. After my son joined the police we were told to leave the area, but there was nowhere to go," explains Haidar's mother. "After seven months, we received letters threatening us to leave the area. My two sons came to Shaab and found us a house to rent." After moving to Shaab, Haidar's family had to pay rent for the first two homes they lived in, but eventually the Sadrist movement found them a house that had belonged to a "bad" Sunni who was expelled. They now live in this home without paying rent with three other families. "This house belonged to a terrorist and he was expelled," he said. Haidar joined the Sadrist movement soon after the American invasion and is a member of the Mahdi Army in Shaab. Haidar explains that there were many radical Sunnis in

Shaab and that they killed Shiites until the Mahdi Army got rid of them all. Haidar would like to take revenge for his brother's death if he could. "I wish peace will be upon every one," Haidar's mother says. "We are getting tired. We just need a decent house to live in and decent food to live off of and America to get out so the Sunnis and the Shiites get back together without any differences. I wish for my sons to get an education and to be teachers or lawyers and for the girls to grow up and get married with a good future."

[Voices of displaced failing to receive assistance by Government]

"Abasya Aziz is a Sunni who lived for 35 years with her family in the Hurriya district of Baghdad, which was controlled by Shiite militias. One year ago, she fled her home after the murder of her son. Shiite militiamen shot at their house and they fled without most of their belongings. The militiamen used a Shiite religious center as a base and for two days they attacked her home and called for the family to leave. The men fled and the women stayed in the house alone. "We were very scared alone," she said. When the men found a house in another part of town they called for the women to come. They now rent the home for a reduced rent from another family who had fled. Abasya says she would like to return and live in safety but they cannot because she fears her other sons will also be murdered. Abasya's family received help from the Ethar Association. No other NGO or government agency had provided her family with any help, she said. She had tried to transfer the family's Public Distribution System cards so they could receive their rations, but she said the officials threw out her family's papers because they were Sunnis. Abasya also takes care of three children whose father had been murdered. They receive free medical care from Amriya's Islamic Health Center."

[Voices of displaced assisted by the Sadrist Movement]

"In the Saddeh area of eastern Baghdad, Jasim is an Iraqi Army veteran wounded during the American invasion of 2003. Jasim and seventeen of his relatives, including eight children, now live in three adjacent shacks. They are Shiites from Haswa near Falluja. Jasim's family describes how some 3,000 families from Haswa were displaced, with their homes looted. The Iraqi army told them to leave because it was unsafe. They believe that the Sunni Awakening Council members are the same ones who expelled them and that these same Awakening Council militiamen would threaten them should they return. Previously Sunnis and Shiites had lived together in their old area. They received a letter from the Soldiers of Monotheism (Tawhid) Brigade, stating that because Sunni families had been killed and expelled in Baghdad, infidel families (meaning Shiites) had five days to leave or face death. Those who ignored this warning were killed, including Jasim's brother in law, whose body was never found. The Ministry of Migration provided Jasim's family with beds, blankets and a small kerosene cooker, but nothing else. After one year of trying they succeeded in transferring their ration cards from the Public Distribution System. However, they only receive a very partial amount of their former rations every few months. The Sadrist movement provides them with food such as rice, flour and sugar. They rely on a nearby well for water, because there is no running water in their area. Although they have been connected to the national power grid they rarely get electricity. They had to break apart a bed to use it for firewood when cooking because they had no cooking gas or kerosene. On some days they lack food to eat. When it rains, their roof leaks. "My message to the American people after 5 years -- they destroyed us and didn't help us," said Jasim's wife. "They didn't reconstruct the country, they added more destruction. Before there was security and life was going on easily, while now there is nothing. The days during Saddam were better... Now things are getting worse and worse, killing in the streets and there is no life. Strangers come to our homes and threaten us. I feel life is miserable now and our country is destroyed." They said that when some women returned to Haswa to transfer their children's school papers to Baghdad, they were killed. As a result, no one has tried to return to their homes since."

IWPR, 4 January 2008

[Forced displacement and non-displacement in Baghdad neighbourhood]

"By 2005, my neighbourhood had gained the reputation of being one of the most dangerous places in the capital. A Sunni extremist group calling itself the "Islamic State of Iraq" took over, declaring my neighbourhood their stronghold in Baghdad. The members would patrol the area by night, either on foot or in cars. They had weapons slung over their shoulders and would shoot people dead in the street for breaking one of their "rules". We learned of their "laws" from their flyers, which told residents not to dare challenge their authority or work with the Americans, and also praised al-Qaeda leader Osama bin Laden. It was common knowledge that they used a local mosque as a meeting place and to store weapons. They made it clear that one of their objectives was to rid our neighbourhood of Shias. I hadn't thought much about sectarianism when I was growing up because it wasn't an issue in this neighbourhood. However, it entered my life one hot afternoon when there was a knock on the door. It was Thanaa and her mother, who had received a note telling them, "Get out, you Shia people." "It is over," said Thanaa, speaking not only for herself but for most of the Shias in our neighbourhood. "We can't stay here any longer. They threatened to kill all of us if we stay, and they have even banned me from praying in the mosque, saying it's for Sunnis only. I will miss you." We hugged and cried, and she was gone. For those of us who stayed, life changed dramatically. Although my family is secular, we are Sunni by background, so we were not threatened with sectarian attack. However, for the first time in my life, I could not leave the house without putting a scarf on my head and wearing long sleeves and skirts. Trousers, of course, were out of the question. I made sure never to wear make-up when leaving the house. My parents are liberal and never told me what to wear, so I enjoyed a lot of freedom growing up. The new restrictions were difficult for me to take. I have complied with the new "laws" of my neighbourhood, while my blood silently boiled. The consequences of not complying were made clear. A friend of mine once rushed into my house, her voice trembling as she told me how she had almost been killed. The skirt she was wearing was long but too tight-fitting, and caught the eye of a militiaman who stopped her and threatened to kill her if she ever dared to leave the house like that again. Boys were banned from wearing shorts or certain hairstyles that might stand out. The school I once attended is gender-segregated now. After it was attacked and a pupil killed, children stopped going to class."

Brookings Institution – University of Bern, October 2006

[Mixed marriages confronting sectarian violence]

"I will never believe in differences between people. I am a Sunni and my wife is a Shi'a. I received threats to divorce her or be killed. We left Dora [a once-mixed neighborhood in Baghdad] now. My wife is staying with her family in Sha'b [a Shi'a neighborhood] and I am staying with my friends in Mansur [a Sunni neighborhood]. I am trying to find a different house but it's difficult now to find a place that accepts both of us in Baghdad. A young Iraqi artist, Baghdad, June 2006"

IRIN, 6 April 2006

[Mixed marriages confronting sectarian violence]

"My husband is Sunni, but I'm a Shi'ite from Basra, in south Iraq," said Samira Kadham, a Baghdad resident. "We were forced to leave our house in Kadhmiya because my family received anonymous threats accusing my husband of terrorism." "We're here now taking refuge with Sunnis in an abandoned building on the outskirts of the capital because I will never leave my husband," Samira added. "How you pray isn't important – what's important is to show your children that differences of opinion can still exist in our country."

RI, October 2008

[Question of return for refugees located in Syria]

"It is impossible to go back to Iraq because I would be killed, but I can barely survive here in Syria." A single middle-aged woman in Damascus says that her only hope is resettlement. She is willing to go anywhere, although she, like most Iraqis, has many questions about what life is like in some of the resettlement countries. She came to Syria after her parents were kidnapped and killed in Iraq. She says that she would be killed if she returned; in any case, her house was burned down so she would have nowhere to go. While she is grateful to get a small stipend for

her volunteer work with a humanitarian agency, she struggles each day because all of her money goes to rent. "I live alone...I have no family. I just want to be resettled somewhere."

"We were threatened, our son was kidnapped, we lost everything...All this because we are Christians." A woman alone with her four children in Damascus tells us that her only hope is to be able to get to Norway, where her husband fled last year. The family had to leave Baghdad after they were threatened for being Christian and working for the UN. Their son was kidnapped by militias, and paying the \$25,000 ransom left the family completely destitute. According to this woman, return to Iraq is impossible. In the last two years they spent in Baghdad, it was too dangerous for her to go to school, and their church was burned. "Before the war, we had a large villa, and lived very well. Now, I pray to be able to pay the rent for one one-room apartment in Syria".

"They wanted to kill me and killed my brother-in-law instead. After that, I knew I had to leave." According to this young man, his barbershop was bombed and his wife's brother killed by the Mahdi's army. He now lives with his wife and two children in Damascus and tells us there is no way he will ever return to Iraq. "Once a glass is broken, there is no way to fix it," he tells us. He believes that if he is forced to return, he will end up being displaced in his own country, as his old neighborhood is now mostly Shia. He is able to find work some days in Syria, but it isn't enough to sustain his family, as Syria has become very expensive and their rent is high. His children don't go to school because he can not take them everyday, and his wife is ill. But he only starts crying when talking about his mother: "She died in Iraq and I couldn't even go to her funeral".

HRW, August 2004

[Testimonies of Iraqis voluntarily or forcibly transferred north in the 1970s]

One elderly Arab tribesman from the al-Hadidi tribe recounted how his family and other tribesmen had moved north in late 1974 to be resettled in an emptied Kurdish village: We went to Hin Djok at the end of 1974, October or November. Before this, we used to live like shepherds with our sheep, south of Mosul. We had no lands, and we used to take our sheep [grazing in the desert.] In 1974, the government came and asked if we wanted lands in the north. We were very grateful and voluntarily went to the north. We built our own houses, all of our families built new houses, and we also dug water wells. Each farmer got sixty dunums⁵ of irrigated land.[6]

Another elderly Arab tribesman from the al-Hadidi tribe explained how forty-seven families from his tribe went to the Kurdish village of Khani Siddiq in 1975: We went to Khani Siddiq in 1975. Before, we were living from place to place in the al-Jazeera desert, in our tents. We owned no land. The government came to us and said they would take us to villages in the north. The government kicked out the Kurds and gave them compensation, and then brought us. The government didn't force us to go to the north. They came and asked us if we had lands and we said no. They said that if anyone wanted to the north, they would take us. We were very happy to go to the north because we had no irrigated lands in the south. There were little houses in the village. We reconstructed those houses and built some new ones. They gave us sixty dunums each, but this was different in each village.[7]....

Shaikh Hamdi Idbis Hussain, head of the al-Luhaib tribe, explained why he decided to accept a government offer to settle formerly Kurdish villages in the Makhmour district in the mid-1990's: 'We went there because the members of my tribe are very poor and had no land. Most of them used to live on just one meal a day.'[11] An Arab farmer who had resettled from the al-Jazeera desert to the village of Shamarash in Shaikhan district stressed that he had little choice in the move: 'We moved because there was an order from the government to move to this village. Whether I was happy or unhappy, I had to obey that order. During the last regime, if the government gave an order to the people to do something, they had to obey.'[12]....

Another Shi'a tribe from the south, the Albu Mahmoud tribe from Kut, also claimed to have been similarly forced to resettle in Khanaqin in 1975: 'We were displaced by the government in 1975 to Khanaqin, because they wanted to take us to the Kurdish areas. We were forced to go to the north: They displaced us to replace the Kurds.'[14] A third Shi'a tribe, the al-Fahd from Kut, also claimed to have been forced to go north, 'because of the ethnic cleansing of the Kurds.'[15] Altogether, Human Rights Watch found about 450 Shi'a families who claimed to have been forcefully resettled by the Iraqi government to Khanaqin. Following the March 2003 war, they were evicted by the original Kurdish owners and were living in abandoned government buildings when Human Rights Watch met them.

Geographical distribution

Geographical Distribution of post and pre 2006 IDPs

- Majority of displaced prior to 2006 (referring pre 2003 displacement) can be found in three northern Governorates (53%), followed by substantial numbers in southern provinces (33%) with the remaining located in the Centre (14%). (IDP WG, June 2008)
- The majority of displaced after 2006 are displaced in the central Governorates (58%) and mostly originate from the central governorates, followed by the south (27%) and northern governorates (15%). (IDPW WG, June 2008)
- By far the majority of IDPs were displaced from (or within) Baghdad and to a lesser extent Diyala. (IDP WG, June 2008) The majority (64%) of IDPs [post-February 2006] assessed by IOM were displaced either from or within Baghdad governorate. (IOM, June 2008)
- Monitoring report below indicates the main geographical locations of returnees according to IOM assessments as of November 2009 (IOM, November 2009).

IDP Working Group, 27 June 2008:

By far the majority of IDPs were displaced from (or within) Baghdad and to a lesser extent Diyala. Less than 1% was displaced from Wassit, Thi-Qar, Diwaniya, Erbil, Kerbala, Muthanna, Najaf, Sulaymaniyah, Missan, and Dahuk.

International Organization for Migration (IOM), 30 June 2008:

The majority (64%) of IDPs [post-February 2006] assessed by IOM were displaced either from or within Baghdad governorate. The two graphs below show IDP origins in Baghdad compared with the rest of the country and then a breakdown of the remaining IDPs' origins (36%) in all governorates excluding Baghdad:

IOM, November 2009

Geographical distribution of pre-2003 Displaced in Northern and Southern Iraq (1994-2002)

- Although accurate figures are not available for number of displaced in northern Iraq, estimates fluctuated between 600,000 for 1994 to 800,000 for 1999. USCR estimates that the number of persons still displaced in northern Iraq is about 600,000
- The estimates include short and long-term displacement within northern Iraq, but also about 100,000 persons expelled from the government-controlled area to northern Iraq
- Because of lack of access to the government-controlled part of Iraq, estimates of the number of internally displaced in the South varied from 40,000 to 1 million between 1994 and 1997
- In 1999, USCR adopted the conservative estimate of 100,000 internally displaced persons and confirmed this estimate for 2000 and 2001. According to Brookings Institution report, there are at least currently 300,000 IDPs in government-controlled Iraq

Northern Iraq (including people displaced from Kirkuk)

USCR, 1995, pp.115-116

End of year	Estimated number of IDPs in Northern Iraq	Source
2001	600,000	USCR 2002
2000	600,000	USCR 2001, p.180
1999	800,000	USCR 2000, p.185
1998	800,000	USCR 1999, p.150
1997	At least 500,000	USCR 1998, p.144
1996	At least 666,000	USCR 1997, p.152
1995	No figure for the North	USCR 1996, p.112
1994	600,000	USCR 1995, p.115

"In the 1980's, the Iraqi government launched a punitive campaign known as Anfal, which destroyed up to 4,000 Kurdish villages. In 1988, tens of thousands fled into Iran and Turkey. Following a failed Kurdish uprising in early 1991, some 1.5 million sought temporary refuge in Iran and along the Turkish border. By the end of 1991, most Kurdish refugees had returned, but some 700,000 remained displaced within northern Iraq. Many of these had been displaced two or more times, as fighting continued between Kurdish and Iraqi government forces. [...] During 1992 and 1993, more Kurds were displaced by skirmishing and shelling along the confrontation line dividing the Kurdish zone from government-controlled Iraq, and government forces expelled many Kurds into the Kurdish zones. [...] During 1994, about 100,000 previously displaced persons were able to return to their home villages, many of which had been destroyed during the Anfal, but were being rebuilt with UN and NGO assistance. However, an estimated 600,000 persons remained displaced within northern Iraq. Of those, about 400,000 were not able to return to their places of origin in government-controlled Iraq or along border areas due to fears for their safety. The remainder were displaced from one area of northern Iraq to another. For example, about 100,000 persons in Aqra, Shekan, and surrounding areas – dependent on the government-controlled

energy grid – had to abandon their homes for lack of electricity, water, and sanitation. Others fled areas subjected to shelling either from Iraqi government forces or from Turkey."

USCR, 1997, p.152

"It was almost impossible to calculate the number of internally displaced people in northern Iraq. Many people had been displaced multiple times, many also for brief interludes during sporadic fighting. Persons also fled or continued to be displaced as result of various conflicts and threats, including displacement in some cases from government-controlled Iraq into the north as well as displacement within the north. During the year, displaced persons fled incursions by Turkish and Iranian military forces. [...] Although the incursion of government forces into Erbil caused additional displacement, the most significant cause of internal displacement in 1996 was fighting between the KDP and PUK, as well as fighting between the KDP and the PKK. WFP was targeting assistance to 666,000 persons in the north, although this number was based on an assessment of need, not displacement per se."

pp.143-144

"Factional fighting among the Kurds in the north, particularly in the last three months of the year, and Turkish incursions into northern Iraq in May and September [1997], internally displaced, at least temporarily, 30,000 to 100,000 people. Another 500,000 long-term internally displaced people remained in the three northern governorates of Dohuk, Erbil and Suleymaniya. [...] The UN secretary general reported in 1997 that about half of the 500,000 people displaced in northern Iraq left their homes before 1991, that 150,000 became displaced between 1991 and 1995, and that 100,000 were displaced in 1996. [...] In 1997, Baghdad intensified its systematic efforts to 'Arabize' the predominantly Kurdish cities of Kirkuk, Khanaqin, and Douz at the edge of government-controlled Iraq near the Kurdish-controlled zone. To solidify control of this strategically and economically vital oil-rich region, the government expelled Kurds, Assyrians, and Turkomans – at times, entire communities – from these cities and surrounding areas. [...] Although it was difficult to find a credible estimate of the number of internal expulsions in 1997, reports indicated that large numbers were involved."

UNHCR, June 2000, p.3

"Kurdish nationalist aspirations have experienced rivalry between the main parties, reaching a peak in September 1996 when the KDP briefly allied with the Government of Iraq regime to oust the PUK from its main bases. The crisis of September 1996 caused the largest population displacement since 1991 (approximately 200,000 persons), as the population feared the Iraqi army and its security services as well as the rivalry between the Kurdish factions. In the North-East, when the PUK announced an imminent Iraqi attack on Suleymaniya, it contributed to an exodus of 40,000 people towards the Iranian border, while another 40,000 were displaced in Suleymaniya itself."

Dammers 1998, p.182-183

"UN figures for those displaced by the fighting in 1996 and the first half of 1997 were: Dohuk governorate 13,281; Arbil governorate 67,283; and Suleimaniyeh governorate 38,453 (total 119,017)." "A WFP survey conducted in August 1997 reported 1291 people still displaced from the border regions of northern Iraq affected by the Turkish incursions. In November, a UN security report revised this to '600 families'."

UN GA, 4 November 1998

In 1998 "The Special Rapporteur [of the Commission on Human Rights on the Situation of Human Rights in Iraq] [...] cited the more than 150,000 persons of Kurdish origin who had been evicted from the oil-rich regions, where the policy of 'Arabization' continued. That number did not include the problem of more than 200,000 internally persons in the rest of the country, mainly in the southern regions of Iraq."

UN GA, 14 August 2000

"[T]he following figures were provided in respect of the number of families forced to leave the area: 13,367 families from 1991 to 1993; 112 in 1994; 395 in 1995; 282 in 1996; 710 in 1997; 394 in 1998; 449 in 1999; and 155 in 2000 (as of 4 June). The total number of individuals who were forced to leave Kirkuk since 1991 reportedly amounts to 94,026.

USCR mentioned the number of 800,000 internally displaced persons in the north for 1998 and 1999, but 600,000 in 2000 and 2001. (USCR 1999, p.150 & USCR 2000, p.185 & USCR 2001 p.180; USCR 2002)

Southern Iraq**USCR, 1995, p.116**

End of year	Estimated number of IDPs in Southern Iraq	Source
2001	100,000	USCR 2002
2000	100,000	USCR 2001, p.180
1999	100,000	USCR 2000, p.188
1998	No figure for the South	USCR 1999, p.153
1997	40,000-1,000,000	USCR 1998, p.145
1996	40,000-1,000,000	USCR 1997, p.152
1995	40,000-1,000,000	USCR 1996, p.113
1994	40,000-1,000,000	USCR 1995, p.116

"The number of persons displaced in the south, including to, from, and within the marshlands, is nearly impossible to determine with any degree of certainty because the Iraqi regime denies the UN and other relief agencies access to the area. Estimates of the number of displaced and at risk Maaden (i.e. Marsh Arabs) range from 40,000 to 1,000,000."

USCR 2000, p.188 & 2000 p.180

USCR quoted the same estimate (40,000 to 1,000,000) for 1995, 1996 and 1997 (USCR 1996, p.113, USCR 1997, p.152, USCR 1998, p.145). It renounced to provide any estimate for 1998 because of lack of access for independent sources to the area. (USCR 1999, p.153). It stated for 1999 and 2000 that "[a]lthough there are no reliable sources on the number of displaced people in southern Iraq, the U.S. Committee for Refugees (USCR) conservatively estimates that about 100,000 are internally displaced from and within the southern region."

Fawcett & Tanner, Oct 02, p33

"The best estimate on numbers comes from a paper given at the AMAR conference in May 2001. At the start of the 1990s, prior to the initiation of the large scale marsh-draining program, an estimated original population of 400,000 Marsh Arabs had dwindled to about 250,000 people still living in the marshes and its vicinity. The reason for this reduction in numbers was essentially economic migration. Of this remaining number, 40,000 made it into Iran as refugees, and another estimated 20-40,000 remained in their homes. This leaves 170,000 to 190,000 people who are either dead or displaced. Although there have been anecdotal reports of massacres by Iraqi forces, no reliable figures exist. Numbers for other Shi'i Arabs expelled either because of political activity or for living in the wrong place are equally hard to determine. While there have been anecdotal accounts of entire villages being destroyed and hundreds of people expelled, the only firm numbers are the 4,000 families (25,000 people) that the government itself has admitted to expelling from a Baghdad neighborhood in 1998. The only figures we have on the al-Qilaa or Jash Kurds come from the Iraqi Red Crescent, which puts the figure at 8,000 families. Using the UN-Habitat average of 5.7 persons per family, this population is over 45,000. Finally, there are

reports of some non-Arabs who, forced out of Kirkuk, have moved south instead of north and into the Kurdish areas. This may be because they are joining family members in the South, or because they are at odds with authorities in the North, or, perhaps because of some governmental measures not yet known or understood, or simply because of the vagaries of violence and expulsion. All told, if one systematically takes the low estimates and the confirmed numbers – 80,000 from the Iraq/Iran war now living in Basra, 170,000 for the Marsh Arabs in the 1990s, 25,000 for expellees from Baghdad, 45,000 of the al-Qilaa Kurds, and an unknown number from the Arabization campaign – it is hard to see how there could be any fewer than 300,000 IDPs in South/Central Iraq."

PATTERNS OF DISPLACEMENT

General

Patterns of Displacement: General Situation

- Forced displacement in Iraq is complex, spanning several decades, immense in terms of numbers involved. For decades preceding 2003 invasion, displacement was caused by Iraqi government policies aimed to quell opposition to its regime. This took the form of forced Arabisation of northern regions, including Anfal campaign against Kurdish communities, depopulation of Marsh Arabs in southern Iraq as well as relocation of those in opposition to the regime.
- Following the end of the war in 2003, MNF-I operations against rising insurgency would be a main catalyst for displacement until rising sectarian violence became the predominate cause for displacement since 2006. The situation has been aggravated by incursions by neighbours including Iran and to a much greater extent Turkey. Such incursions have remained limited to particular areas and time.
- As of 2007, displacement based on sectarian grounds has declined, however there remained reoccurring sectarian tensions, and ramifications to sectarian homogenisation that has taken place. Fewer displacements were occurring in 2008, though military operations in Sadr City, Basrah, and along the borders with Iran and Turkey continued to displace Iraqis.
- In 2009, isolated instances of displacement continued to occur based on insecurity, and sectarian grounds. These were identified in various governorates though particularly in areas of tension such as Ninewa, Kirkuk and Diyala but were also in evidence in other governorates. In early 2010, several thousands Christians were displaced from Mosul, Ninewa, as result of continuing acts of violence and intimidation.
- There have also been incidents in 2009 of growing displacement from draught affected areas in northern and southern Iraq and flash floods.

International Organization for Migration (IOM), 3 November 2009

As displacement in Iraq has become limited to isolated incidents and return continues slowly, the focus turns to how best to assist the nearly 1.6 million internally displaced persons (IDPs) in the country, whether they wish to return, integrate into the place of displacement, or go elsewhere. While IOM assessments show that approximately 53% of interviewed post-2006 IDPs wish to return, another 45% of those interviewed wish to integrate permanently into their places of displacement or move to a third location.

UNHCR, June 2009

Iraq is in a phase of transition. The conditions throughout the country are on a positive trajectory, with rates of violence calming down to the 2003 level, food insecurity affecting only a quarter of the 2005 figures and thousands of refugees and IDP families returning home. These improvements notwithstanding, Iraq's displacement crisis is still enormous. Hundreds of thousands of displaced Iraqi families inside and outside of the country are still struggling with the effects of conflict. Moreover, the impact of years of sanctions, deprivation, discrimination, acute poverty and neglect is extensive and severe. Livelihoods and infrastructure have been

significantly damaged. The flight of large numbers of professional Iraqis further complicates reconstruction efforts. Since late 2007, some IDP and refugee families have been able to return mostly to the Baghdad area. However, their reception, the provision of adequate standard of living as well as their assistance to reintegrate, has been insufficient. Many have faced security problems upon return. Many have faced housing problems as their properties have been taken over by others. Some returning internally displaced people have moved into the home of others who were themselves forced to move elsewhere or have occupied vacant public buildings, leading to a phenomenon of secondary displacement. Pressure on IDPs and refugees to return has not been accompanied by the social and economic measures that would make returns sustainable. UNHCR, taking into account these conditions, has not moved yet to promote return; but is assisting return on a case-by-case basis and preparing for the return of large numbers. At this juncture, it is important to start activities which have impacts on making on-going return sustainable, while striving to maintain protection space in the neighbouring countries. If/when large numbers of Iraqis do return in the near future, the challenges to the local communities; the government of Iraq, the UN agencies and NGO community will be tremendous.

UNHCR, September 2008:

"Fresh displacement is still occurring but at a lower pace than the past two years; secondary displacement has been also reported mainly in Baghdad and other central governorates. Most of the Post-2006 IDPs come from Baghdad (64%) and Diyala (19%). All Iraq's Governorates have been affected by displacement. New displacement to the northern region (15%) is lower compared to the Southern (27%) and Central (58%) regions. Except for the three northern governorates, Iraq's governorates are both receiving as well as generating IDPs. In Dahuk, Erbil and Sulaymaniyah displacement is predominately *to* rather than *from* the governorate except in situations resulting from Turkish and Iranian military operations affecting KRG territory. Sunnis have been moving from the Shi'a-dominated South to the central and western governorates while Shi'as are leaving Sunni dominated governorates in central and western Iraq to the Shi'a-controlled South. Sunnis and Shi'as, Arabs and Kurds, Christians and other minorities have been moving to KRG-controlled areas, providing they have the necessary documentation and support of relatives and friends or independent financial means to enter and stay. A similar mixed pattern of displacement from groups of different ethno-religious affiliations concerns movements across international borders, mainly into Jordan and Syria.

As at June 2008, **1,596,448** persons were recorded as having entered into displacement after February 2006, in addition to 190,146 displaced between 2003 and 2005. The increase in number of IDPs figures is due to the figures provided by Erbil Governorate while MoDM appears to not have entered new arrivals since March 2008. Although the rate of displacement is slowing and more Iraqis are attempting to return to their homes, the conditions of both the displaced and returnees remain precarious. Lack of access to food, adequate shelter, clean water and sanitation, health and employment, especially for the vulnerable groups such as women, continue to create humanitarian needs to the 2.8 million IDPs. An increase in evictions from public buildings is being witnessed throughout the country threatening to force even more from their places of shelter during 2008. The Government policy targets political parties and people squatting in public buildings for personal convenience which is seemingly affecting IDPs. UNHCR estimates that up to 250,000 are living in public buildings that are under threat of eviction.

Due to a combination of push and pull factors (partial security improvements in some parts of central Iraq, gradual emergence of homogeneous areas, restrictive visa and admission regimes in neighboring countries and governorates of displacement inside Iraq, depletion of savings and copying mechanisms, persistence of high instability areas and hot spots due to terrorist activities, security operations and persistent interfactional violence) population movements within and from/to Iraq have entered into a more composite and complex stage featuring at the same time: fresh displacement, secondary displacement, voluntary relocation or settlement mainly based on consolidation along ethno-religious or tribal lines, returns either to original homes or to other

areas and populations affected by conflict and seclusion into enclaves, who are unable to move in search of safety and access to basic services. "

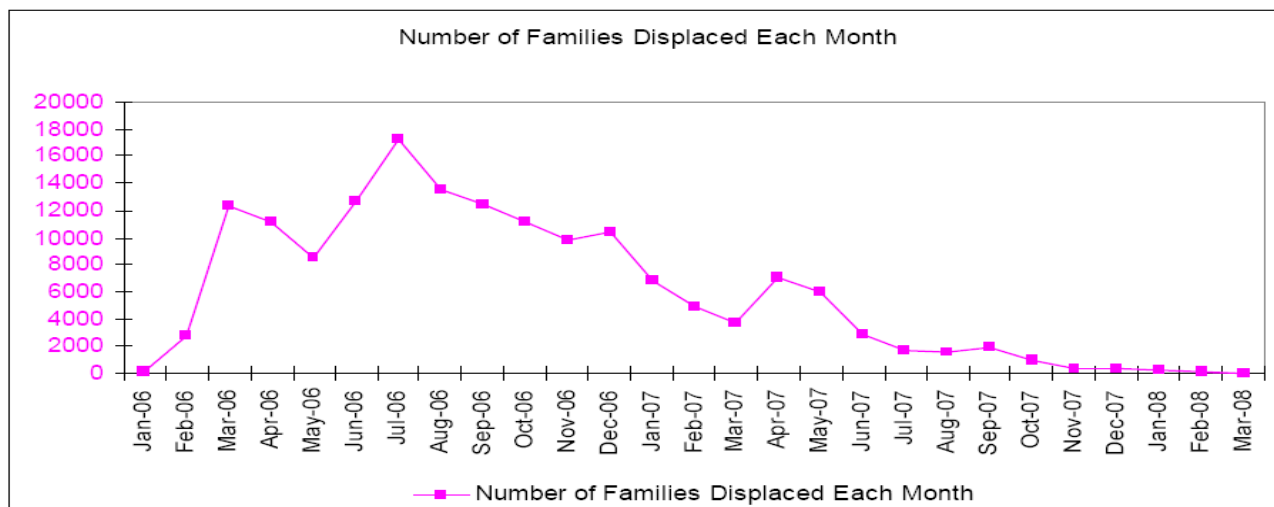
IDP Working Group, 27 June 2008:

"[A]bout one million Iraqis were displaced by the time of the U.S.-led invasion in March 2003—the product of the Saddam Hussein regime's policies of forcibly displacing Iraqis for political ends. In the months preceding the war, the international humanitarian community predicted that a massive outpouring of refugees could result and engaged in significant contingency planning. But the invasion did not produce an immediate flow of refugees.⁴³ In fact, most Iraqis stayed where they were. Between 2003 and 2005, "only" 190,000 Iraqis were displaced.⁴⁴ The situation changed dramatically with the bombing of the al-Askari Mosque in Samarra in February 2006. Displacement mushroomed between February 2006 and August 2007, as evidenced in the table below.⁴⁵ At the height of the crisis, over 60,000 Iraqis fled their homes every month ... From September 2007 to January 2008, while people continued to leave their homes, the rate of displacement decreased.

The main reasons for displacement over the past several decades during the former regime included human rights abuses, internal conflict along political, religious and ethnic lines, the Iraq-Iran and Gulf Wars, drainage of the marshlands, construction of dams in the centre, suppression of the 1991 uprising in the south, competition over land and natural resources, and the "Arabization" policies of the former regime. The fall of the former regime, the US-led invasion of Iraq, the counter-insurgency operations, and the secondary displacement of Arabs by returning Kurds, were amongst the causes of internal displacement until the end of December 2005. In addition, while many Iraqis returned both internally and from overseas, a considerable number remained internally displaced, primarily due to a lack/destruction of housing, inadequate employment opportunities and social services, the presence of mines/UXO, and property disputes in their areas of return.[...]

Recent displacement is primarily due to sectarian violence, as well as military operations (carried out by both MNF-I/Iraqi Forces and by Turkey and Iran along their borders), crime and lawlessness. [...] The peak of displacement was between June and September 2006; less than 1% was displaced in 2008. Fewer new displacements are occurring, although military operations in as Sadr City, Basrah, and along the borders with Iran and Turkey continue to displace Iraqis.... Military operations in Sadr City led to the displacement of some 4000 families, of which most have returned. During military operations in Basra, Mosul and al-Amarah, there was only limited displacement. [...]

Returnees mostly return to neighbourhoods/districts/governorates under control of members of the sect they belong to. To date, only a few families have returned to areas under control of another sect. Very few members of minority groups (e.g., Christians, Sabaeen-Mandaeans and Yazidis) have been reported to be among the returnees.... Over the past few months, humanitarian organizations have seen threats of evictions of IDPs living in public buildings or in illegally erected buildings on public land. So far only small scale evictions have taken place.



Source: IOM IDP Monitoring and Needs Assessments, 2008

The chart "Number of Families Displaced Each Month" above indicates the number of IDP families displaced each month (from February 2006 to March 2008). The peak of displacement was between June and September 2006. In October 2007, still nearly a thousand new families were displaced, while from October on, a few hundred families were displaced each month.[...]"

See Also:

[Refugees in their own land: 2m Iraqis forced to flee their homes](#), **The Guardian**, 20 September 2007

[Summary results IDP registration – February 2006 to July 2007](#), **Iraqi Ministry of Displacement and Migration (MoDM)**, 19 September 2007

[Iraq's Refugee and IDP crisis: Human Toll and Implications](#), **Middle East Institute**, July 2008

[Internally Displaced People in Iraq: Update 35](#), **Iraqi Red Crescent Organization**, 30 June 2008

[The Future of Kirkuk: The Referendum and Its Potential Impact on Displacement](#), **Brookings Institution**, 3 March 2008

[Networks \(IRIN\)](#), 27 January 2008

[The Real Challenge of Internal Displacement in Iraq: The Future](#), **Brookings Institution**, 25 January 2008

[Preparing for the Future Iraqi Refugees and Internally Displaced Persons](#), **Brookings, Human Rights First**, 25 January 2008

[Parliament allocates more money for IDPs](#), **Integrated Regional Information Networks (IRIN)**, 24 January 2008

[Authorities destroy Kerbala farms, displacing peasants](#), **Integrated Regional Information Networks (IRIN)**, 16 January 2008

[Turkish jets bomb Kurdish rebel hide-outs in northern Iraq](#), **International Herald Tribune (IHT)**, 15 January 2008

[Distributions underway for displaced in northern Iraq](#), **International Organization for Migration (IOM)**, 15 January 2008

[Iraq Displacement 2007 Year in Review](#), **International Organization for Migration (IOM)**, 11 January 2008

[Yearender: Iraq enjoys more security but reconciliation still a dream](#), **Deutsche Presse Agentur (DPA)**, 17 December 2007

[The Kurdish Policy Imperative](#), **Chatham House and University of Exeter**, December 2007

[Cluster F: Internally Displaced in Iraq November 2007](#), **Cluster F: Refugees, Internally Displaced Persons and Durable Solutions, UN Assistance Mission for Iraq (UNAMI)**, 21 November 2007

[IOM emergency needs assessments \(post Feb 2006 displacement\)](#), International Organization for Migration (IOM), October 2007

[IOM emergency needs assessments \(post Feb 2006 displacement\) Central and Southern 15 governorates](#), International Organization for Migration (IOM), September 2007

[Karbala fighting raises specter of broader Shi'ite clashes](#), Radio Free Europe/Radio Liberty (RFE/RL), 29 August 2007

[Sectarian violence and displacement follow Samarra attack](#), Integrated Regional Information Networks (IRIN), 13 June 2007

[Number of Iraqi displaced tops 4.2 million; shanty towns mushroom](#), United Nations High Commissioner for Refugees (UNHCR), 5 June 2007

[War and Occupation in Iraq](#), Global Policy Forum (GPF), June 2007

[UNHCR Iraq Update on IDP Emergency Assistance - August 2007](#), United Nations High Commissioner for Refugees (UNHCR), 11 September 2007

[Plight Of Displaced Worsens](#), Radio Free Europe/Radio Liberty (RFE/RL), 7 September 2007

[Rate of displacement rising](#), United Nations High Commissioner for Refugees (UNHCR), 28 July 2007

[Iraq: Displacement 2007 mid-year review](#), International Organization for Migration (IOM), 17 July 2007

[Cluster F Update July 2007](#), United Nations High Commissioner for Refugees (UNHCR), 16 July 2007

[IOM emergency needs assessments \(post 22 Feb 2006 displacement\) Central and Southern 15 governorates](#), International Organization for Migration (IOM), 17 May 2007

Sectarian violence post-2003

Sectarian / religious / ethnic violence has been leading cause of displacement (2006-2009)

- Sectarian, ethnic and religious based violence is said to have dramatically increased following attacks on the shrine of Samarra on 22 February 2006. The peak of displacement was between June and September 2006 but rate of displacement on sectarian grounds declined after October 2007, and has been sporadic in 2008 and diminished to isolated instances in 2009.
- The sectarian violence is the main cause of displacement for the majority of IDPs in post 2003 displacement. The main affected groups are Shiite and Sunni, however all minorities in Iraq and professional groups, such as doctors and academics have been affected. Refugees, in particular the large Palestinian community in Iraq have faced attacks, causing them to flee their homes, seeking safety within Iraq or outside. Intra-sectarian violence was also in evidence in late 2007 particularly in southern governorate of Basra between Shi'ia militias.
- Sectarian displacement has left sectarian homogeneity in various urban areas most particularly in Baghdad and was one factor which accounted for the decline in sectarian violence. Forced displacement from Baghdad constitutes the majority of displaced. Estimated that 60% of Iraqis displaced originate from Baghdad. The struggle for Baghdad has been one of the factors that has resulted in significant change in the political landscape of Iraq with the Shia militias, controlling at least three-quarters of Baghdad leading to realignment of anti-US Sunni insurgency switching sides.
- Ethnic tensions were also fuelled by dispute over governorate borders in disputed territories (including Kirkuk through Sinjar) has caused displacement of Arabs, Kurds and Turkomen in Kurdish area. (Brookings Institution, 3 March 2008) The area has persistently been source of displacement with thousands of Arabs having been driven out of Kirkuk during and after 2003. Thousands of displaced Kurds, Turkomans and others began returning to Kirkuk and

- Their return caused the displacement of Arab families brought to the region. Refugees International estimates that around 100,000 Arabs were displaced following the fall of the former regime (RI, November 2003) In 2004, over 16,000 Kurdish families had returned to Kirkuk with many residing in public properties waiting to return to their properties. Though many IDPs in late 2006 and 2007 have sought refuge in Kurdish regions because of relative safety, hundreds were reported displaced fleeing ethnic tensions and discrimination. (UNHCR, January 2007) Sources note of at least 2,000 Arab Iraqi families having fled Kirkuk in latter half of 2007. (IRIN, 16 September 2007)
- By 2009 to early 2010, sectarian displacement was limited to isolated cases in various governorates with sectarian and ethnic tensions persisting. There have been isolated instances of displacement in Diyala, Ninewa, and other localities. In late 2009, Christian families would reportedly flee intimidation and violence in Kirkuk. Early 2010 witnessed displacement of 4,300 Christians from Mosul (UN OCHA, March 2010). The disputed territories include Kirkuk through to Sinjar remain potentially continued source of displacement against minorities— failure to reconcile competing interests and property claims in the region could lead to further displacement (HRW, November 2009)

UN OCHA, March 2010

Following the large influx of Christian IDP from Mosul city to Al Hamdaniya and Tilkaif districts, which tripled between 24 and 27 February 2010, the number of new IDPs arriving to the areas of displacement has now significantly slowed down between 28 February and March 2010. According to churches and local community representatives in each location, the total number of IDPs is now 720 families (or 4,320 people), up from 683 families (or 4,098 people) on 27 February 2010, representing only 37 new families in the two-day period. This is significantly lower than the movement of 439 families over the two-day period between 26 February and 27 February alone. It should be noted that these figures are extremely difficult to verify, given the context. The 720 displaced families are in the two Ninewa districts of Al Hamdaniyah and Tilkaif (204 families) and have also crossed over to Erbil and Dahuk governorates (17 families in Dahuk and 23 families in Ainkawa in Erbil governorate). The number of IDPs in Qaraqosh in Al Hamdaniya district has increased to 278 families (1,668 people) and 35 families (210 people) have moved to Namrood, while the number of IDPs in other Al Hamdaniya districts remains the same as reported on 28 February, i.e. 60 families (360 people) in Bartalah; 66 families (396 people) in Bashiqa; and 22 families (132 people) in Krmale. Those in Tilkaif town in Talkaif district have decreased from 40 to 16 families; Batnay has increased to 63 families (378 people); Tal Usquf has increased to 91 families (546 people); and Alqosh has increased to 84 families (504 people). There are protection concerns for the Christian families who have remained in Mosul. Unconfirmed reports indicate that many individuals cannot move freely beyond their homes, such as going to work or attending university, out of fear for their safety. At present, it remains unclear how many Christian families were residing in Mosul before the displacement. Furthermore, the motives for and perpetrators of the killings of 12 Christians during January and February 2010, which triggered the recent displacement, are still not clear. No security incident has been reported against the Christian families in the places of displacement and the IDPs have indicated that they feel safe in those areas.

HRW, November 2009

While most of the international attention over the conflict between Kurds and Arabs in the disputed territories has focused on the oil-rich city of Kirkuk, one of the main

battlefronts in this conflict is Nineveh, Iraq's second most populous province with a unique concentration of historic minority groups. Although Nineveh is constitutionally under the jurisdiction of Iraq's central government, Kurdish authorities have been reshaping the reality in Nineveh province, whose ethnically mixed communities lie mainly just north and east of the provincial capital, Mosul, in an area known as the Nineveh Plains. A drive in the vicinity of Mosul through the Nineveh Plains reveals how pervasive the Kurdish military and political presence has become: Security offices and checkpoints manned by well-armed Kurdish peshmerga have proliferated across the landscape, securing village after village; the Kurdistan Democratic Party, one of the two main parties of the Kurdish semiautonomous government, has offices in even the smallest towns (and many towns and villages also have offices of the second Kurdish party, the Patriotic Union of Kurdistan). The Kurdish flag flutters in the wind from rooftops, while the flag of the central Iraqi state is nowhere to be seen. Kurdish authorities in Nineveh have faced stiff resistance from local Sunni Arabs and minority communities nervous about the new hegemony from the north. Accustomed to positions of privilege and power under previous governments, many Sunni Arabs chose not to engage in the political process after the fall of Saddam Hussein, opting instead to join or back the insurgency, or to remain on the sidelines. By default, Kurds dominated Nineveh's provincial assembly after elections in 2005, giving them almost exclusive political as well as military dominance in this province in which they are a minority. These Kurdish gains further alienated Sunni Arabs, turning Mosul into a hotbed of the Iraqi insurgency. Extremist elements among the insurgents have viciously attacked the Chaldo-Assyrian, Yazidi, and Shabak communities, labeling them crusaders, devil-worshippers, and infidels, respectively. Simultaneous truck bombings in Nineveh in August 2007, presumably by armed Islamists, killed more than 300 Yazidis and wounded more than 700 in the single worst attack against civilians since the start of the war. In late 2008 a systematic and orchestrated campaign of targeted killings and violence by insurgents left 40 Chaldo-Assyrians dead and more than 12,000 displaced from their homes in Mosul.

International Organization for Migration (IOM), May 2009

Most displacement over the past five years (since 2003) occurred in 2006 and has since slowed. However, displacement continues to occur in some locations and the humanitarian situation of those

already displaced is worsening. Some Iraqis are returning, but their conditions in places of return are extremely difficult....There has been an official GoI order to stop new registration of IDPs, which would affect which IDPs are eligible for certain types of governmental assistance. However, there are reports that some IDP registration is still occurring in various governorates.

International Organization for Migration (IOM), September 2008

Hundreds of families are currently being displaced in Kirkuk as a result of the ethnic tensions fuelled by the dispute over the governorate's future. Arabs, Kurds, and Turkmen are all fleeing their homes, and they are faced with high rent prices and poor access to basic services or employment in their places of displacement. In some cases families suffer continued ethnic discrimination, while others do not know the whereabouts of arrested family members.

Brookings Institution, 3 March 2008

The disputed territories, stretching from Khanaqin in the east – through Kirkuk and Mosul – all the way to Sinjar in the west, are sites of untold violence and human rights abuses. This “mixed-population belt”¹ was a target of Saddam Hussein's Arabization campaigns

and Operation Anfal, both of which sought to permanently alter the ethnic demographics of these oil-rich lands. During the Arabization campaigns, some 250,000 Kurds and other non-Arab minorities were displaced from this territory and replaced by Arabs from central and southern Iraq. The Operation Anfal of 1988 was an ethnic cleansing campaign in which 100,000 Kurds were killed and other hundreds of thousands were rendered homeless.² The program of Arabization continued in Kirkuk until the eve of the Ba'ath regime's toppling; throughout the 1990s, Kurds and other non-Arab Kirkukis continued to face harassment and pressure to change their ethnic identity and join the Ba'ath party.³ During this period, 120,000 persons were driven out of Kirkuk and other territory under Baghdad's control.⁴

The status of Kirkuk is significant in that Kirkuk is a heavily populated, multiethnic region, teetering on the brink of turmoil, and straddling the country's ethno-linguistic fault line. Failing to reconcile the competing interests and property claims in Kirkuk and other disputed territories and failing to establish a system of compensation for expelled Kurds, Turkmen, and Christians, could lead to further destruction and chaos in a country where one out of six people has already fled his or her home.⁵ If hostilities continue to intensify in Kirkuk, massive displacement and ethnic homogenization could materialize, along the lines of what occurred in Baghdad post-February 2006. This is an area with a violent history of dislocations, settlements, and returns, in a governorate that has been redrawn to facilitate gerrymandering and ethnic exclusion. The politics of demographics is not a new phenomenon to Kirkuk, but it continues to impact conditions on the ground and political developments at the highest level. The on-going struggle for Kirkuk cannot be understood except in the context of the country's human security and historic patterns of displacement.

The Independent, 5 February 2008

There was always going to be friction between Sunni and Shia in Iraq after the fall of Saddam Hussein. But what turned sectarian tension into a bloodbath were the massive al-Qa'ida suicide bombs, often a ton of explosive in a vehicle, detonated in crowded Shia markets and religious gatherings. Though the Shia were patient for two years, they struck back massively after the destruction of the Shia shrine in Samarra on 22 February 2006....It is the outcome of this battle for Baghdad which still determines the political landscape of Iraq and makes reconciliation between the communities so difficult. The struggle for the capital was won by the Shia, who now control at least three-quarters of it.... Pressured by al-Qa'ida and the Shia, many anti-US Sunni guerrillas switched sides, seeking US protection, but they intend to renew the battle for Baghdad whenever they think they can win it.

New York Times, 20 November 2007

The security improvements in most neighborhoods are real. Days now pass without a car bomb, after a high of 44 in the city in February. The number of bodies appearing on Baghdad's streets has plummeted to about 5 a day, from as many as 35 eight months ago, and suicide bombings across [Iraq](#) fell to 16 in October, half the number of last summer and down sharply from a recent peak of 59 in March, the American military says. ...As a result, for the first time in nearly two years, people are moving with freedom around much of this city. In more than 50 interviews across Baghdad, it became clear that while there were still no-go zones, more Iraqis now drive between Sunni and Shiite areas for work, shopping or school, a few even after dark. In the most stable neighborhoods of Baghdad, some secular women are also dressing as they wish. Wedding bands are playing in public again, and at a handful of once shuttered liquor

stores customers now line up outside in a collective rebuke to religious vigilantes from the Shiite Mahdi Army. ...Iraqis are clearly surprised and relieved to see commerce and movement finally increase, five months after an extra 30,000 American troops arrived in the country. But the depth and sustainability of the changes remain open to question.

Integrated Regional Information Networks (IRIN), 16 September 2007

Iraqi Arab residents of the northern oil-rich city of [Kirkuk](#), some 250km from Baghdad, say scores of Arab families are fleeing the city as ethnic violence increases there.... A local Iraq Red Crescent senior official, who prefers anonymity for security reasons, said since June 2007 at least 2,000 Arab families had fled Kirkuk. "Hundreds of families are fleeing the city without their belongings." They had been forced to search for displacement camps and many had joined the nearly one million displaced families in southern governorates, whilst others were staying on roadsides or in poor areas, he said. In a local police station IRIN witnessed dozens of families begging for help from police after being forced from their homes by Kurdish militias. They were all told the same thing - that they could not be given individual protection and that they would be best advised to find more secure accommodation in southern Iraq. The city, a multi-ethnic mix of Kurds, Arabs, Assyrians, Turkomans and Armenians, has plenty of oil, but may not have much time left to avoid being dragged into sectarian bloodshed.

Integrated Regional Information Networks (IRIN), 27 August 2007

Residents of Dora District in Baghdad have been fleeing after gunmen imposed a strict interpretation of Islamic Shariah law there. "We have reports of more than 300 families fleeing the area over the past two weeks and this number is increasing daily," Fatah Ahmed, vice-president of the Iraq Aid Association (IAA), said. The gunmen are particularly stringent when it comes to Christian families, who are forced to convert to Islam or pay huge taxes.

International Herald Tribune (IHT), 30 May 2007

While the American military is trying to tamp down the vicious fighting between rival Arab sects in Baghdad, conflict between Arabs and Kurds is intensifying here, adding another dimension to Iraq's civil war. Sunni Arab militants, reinforced by insurgents fleeing the new security plan in Baghdad, are trying to rid Mosul of its Kurdish population through violence and intimidation, Kurdish officials said. Iraq's third largest city, with a population of 1.8 million, straddles the Tigris River on a grassy, windswept plain in the country's north. It was recently estimated to be about a quarter Kurdish, but Sunni Arabs have already driven out at least 70,000 Kurds and virtually erased the Kurdish presence from the city's western half, said Khasro Goran, the deputy governor of surrounding Nineveh Province and a Kurd. Nineveh is Iraq's most diverse province, with a dizzying array of ethnic and religious groups woven into an area about the size of Maryland. For centuries, Arabs, Kurds, Christians, Turkmens, Yezidis and Shabaks lived side by side in these verdant hills, going to the same schools, bartering in the same markets, even intermarrying on occasion. But what took generations to build is starting to unravel in the shadow of the Sunni Arab insurgency, which is tapping into several wells of ethnic resentment.

Already embittered at the toppling of the Sunni Arab government of Saddam Hussein, insurgents here have been further enraged by their current political disenfranchisement,

a result of their boycotting the 2005 elections. The main Kurdish coalition now holds 31 of 41 seats on the provincial council and all the top executive positions, even though Kurds make up only 35 percent of the province. Most Kurds are of the Sunni sect, but they have little in common with the Arabs....Sunni Arabs have asked for new provincial elections and are growing frustrated that the Shiite- and Kurdish-dominated national government seems to be ignoring their requests. Just as worrisome for the Arabs is a growing push by the autonomous region of Iraqi Kurdistan to annex large swaths of eastern and northern Nineveh. A contentious measure in the Constitution gives the regional Kurdish government the right to take the land by the end of 2007 through a popular referendum....The parts of the province that Iraqi Kurdistan wants are called the "disputed territories" along its border, areas that were historically Kurdish until Saddam Hussein moved in Arabs and forced out half a million Kurds to strengthen Arab control, Kurdish officials say. To ensure control of the lands, the Kurdish parties are encouraging settlers to move to eastern Nineveh, just as they have been doing in disputed areas in Diyala Province and around the oil-rich city of Kirkuk. Kurdish militias have also been operating in Nineveh and the streets of Mosul, stoking Sunni Arab fears of Kurdish domination, Twitty said....Khabat, just inside Iraqi Kurdistan, has become a place of refuge. Rents have skyrocketed, said the mayor, Rizgar Mustafa Muhammad. At least 1,300 families have moved there from Mosul. More than 120 came in April alone, the most of any month, he said. Soon, he said, tent camps will be needed.

Integrated Regional Information Networks (IRIN), 30 July 2007:

Militants in southern areas of Iraq are reportedly targeting former members of the Baath Party in a bid to exterminate them, causing new displacements, according to local non-governmental organisations (NGOs). At least 200 ex-members of the Baath Party of former Iraqi leader Saddam Hussein have been killed so far. According to local police, hundreds of families have been forced to flee their homes. "Militias are conducting a campaign to exterminate over 4,000 members of the Baath Party," said Hassan Dureid, spokesperson for Iraqi Brothers Relief, a local NGO working in southern Iraq. "Most of these people didn't have a choice and were obliged to join the party during the ex-regime." "Dozens of new widows of ex-members of the Baath Party have reported [the deaths of their husbands] in the past three weeks to southern governorates, and their numbers could increase, according to experts," Dureid added. Militants affiliated with Shia groups refused to give detailed information about the campaign but said their action was to guarantee the "cleansing of any remnants of Saddam Hussein's regime".

UNHCR, January 2007

"Many IDPs are seeking refuge in the region of Kurdistan, on which this report focuses. In part due to its relative security, the region of Kurdistan has witnessed a steady movement of families into the area since 2003. In 2006, this flow increased dramatically as families continued to relocate due to threats and generalized violence. This population influx has placed additional pressure on the real estate market and public service sector in Kurdistan and has led to increased concerns about security and demographic shifts. At the same time the KRG has also benefited from the migration of professionals who have brought with them skills and disposable incomes that boost the local economy."

Brookings Institution – University of Bern, October 2006:

"A sharp rise in sectarian attacks, abductions and killings followed the bombing of the holy Shi'a al-Askari shrine in Samarra in February 2006. On 20 July 2006, as reported by

Reuters and other Western media, a spokesman for the Iraq Ministry of Displacement and Migration declared that, in the five months since the Samarra attack, approximately 27,000 families, or 162,000 people, had registered with the Iraqi government for assistance.[...] More recent figures from the Ministry speak of nearly 39,000 families displaced – 234,000 people – since Samarra.[...] Organized bands of armed thugs are targeting people because of the community they belong to, and forcing them to flee.

But the problem did not start with the attack on Samarra. Sectarian strife had been increasing steadily since the beginning of the US occupation of Iraq. Well before 2003, violence against the Shi'a and the Kurds was a central tenet of Ba'thi policies. Internal displacement was a major feature of the Iraq of Saddam Hussein. Because of the Ba'thi regime's uniquely repressive nature, the outside world made little effort to find out what was happening inside. The US-led invasion that overthrew that regime was supposed to bring better things. Instead, displacement is again on the rise in Iraq. And again, little is known about it. [...]

But sectarian-induced displacement carries special significance. In a country as diverse as Iraq, and as large, it could take on truly appalling proportions were the situation to worsen. Also, as displacement increases and hardens, it in turn further jeopardizes the political process. Finally, the manner in which both the new Iraqi authorities and those nations who maintain significant military forces in Iraq address the problem of sectarian displacement says much about their commitment to pluralism and human rights. Indeed it is an important indicator of whether Iraqis can expect a better future.

UNAMI, 18 July 2006:

"Increasing numbers of Iraqis are fleeing their homes since the destruction of Al- Askari Shrine in Samarra, on 22 February, unleashed a wave of sectarian violence across many regions in the country. Approximately 150,000 persons have been displaced by 30 June 2006, according to estimates by the Ministry of Displacement and Migration and partners of the United Nations. The main reasons for such displacement are direct or indirect threats received by individuals, or following attacks to family members or the community in the neighbourhood of origin. Displaced persons find themselves in a condition of vulnerability, lacking many basic rights and competing for limited services, which increase inter-communal animosity in their points of arrival. In turn, this can generate further displacement."

IRIN, 17 April 2006:

"Up to 35,000 more individuals have been displaced in the past two weeks due to ongoing sectarian violence, said officials from the Ministry of Displacement and Migration. "Nearly 70,000 displaced Iraqis, especially from the capital, are living in deteriorating conditions," said ministry spokesman Sattar Nawruz... According to ministry officials, the government is providing displaced families with essential materials, including food and medical supplies. Nevertheless, officials express alarm over a rising rate of displacement in recent weeks. "Families are leaving their homes every day because they're afraid of becoming the next victims of violence," Nawruz pointed out. [...] Many Shi'ite Muslims, recently displaced from the western Anbar governorate and Baghdad, have taken refuge in southern areas, such as Basra, Najaf and Nassriyah. Numerous Sunni Muslim families, meanwhile, from Baghdad and the country's south, have fled to the cities and villages of Anbar, such as Fallujah, Rawa and Ramadi..... Some of those fleeing violence have avoided the refugee camps being set up for them, fearing that they, too, could become targets of violence. "These displaced people would

rather seek shelter with relatives in safe areas or in abandoned schools or government buildings,” said a volunteer with the IRCS.”

IRIN, 16 March 2006:

“Dozens of families in the capital, Baghdad, have been displaced from their neighbourhoods due to the sectarian violence that has come in the wake of the Samarra shrine bombing in February and subsequent attacks.... According to the IRCS, more than 300 families from different areas of the capital have been displaced, many of them Sunni residents of majority Shi’ite neighbourhoods.... Sunnis are not the only ones to have fled their homes in fear of reprisal. There are also numerous Shi’ite families who prefer to live in deteriorating conditions rather than risk being killed in their majority-Sunni neighbourhoods.”

Reuters, 23 June 2005

The city, whose old sections are a charming if crumbling collection of tightly knotted alleyways filled with market stalls, is claimed by three ethnic groups -- Kurds, Arabs and Turkmen, a Turkish-speaking minority. During Saddam Hussein's rule, Kurds and Turkmen were forcefully removed from the city and its outlying areas to make way for poor Arabs from the south, who were promised land and other incentives as part of a process called "Arabisation". Since Saddam's overthrow in April 2003, displaced Kurds and Turkmen have flooded back to the city, hoping to reclaim property and land. Human rights groups say hundreds of Arabs have been driven out during the same period and some Turkmen who stayed under Saddam have also left for outlying areas, although security has made it difficult to catalogue the exact number. Political parties keen to increase their presence in the city have encouraged returns in some cases, although Fattah denied any deliberate policy: "If there was a plan, then all the Kurds who were forced to leave would have been back by now." Kurds are clear that they would like to make Kirkuk, which lies about 25 km (15 miles) outside the present boundaries of the Kurdish region, the capital of Kurdistan, a goal strongly, even violently, opposed by Arabs and Turkmen.

Earlier this month, Arabs and Turkmen in the city said the police force, which is majority Kurdish, and other Kurdish security forces had arrested hundreds of Arabs and Turkmen on the streets and removed them to jails in the Kurdish region. The police denied it but U.S. officials said around 200 people had been detained and imprisoned in Kurdistan. They said they were concerned about rising ethnic tensions in the city and had raised the issue with the Kurdish authorities. The tensions have risen since January, when local elections saw Kurds tighten their political hold. Many Arabs and Turkmen boycotted the vote, accusing Kurds of bringing more Kurds into Kirkuk to increase their support. In the event, a Kurdish list secured 26 of the council's 40 seats, Turkmen took eight and Arabs and others the remainder. Disputes over the outcome, which delayed forming the provincial council, were settled this week, even though some Arabs and Turkmen again boycotted. The head of the provincial council is now a Kurd, while the deputy's post is open. Governor Fattah was elected as part of the same process.

Time Online, December 2006

More and more, Baghdad is splintering into Shia and Sunni enclaves that are increasingly no-go areas for anyone from outside. The trend is fuelled by the ugliest sectarianism. It also reflects a crude power grab, with both sides egged on by political parties aiming to maximise their clout in the Iraqi Government by dominating as much of

the capital as possible. The result is that since February, when Sunnis bombed the golden-domed mosque in Samarra, a Shia shrine, 146,322 individuals have been displaced in Baghdad, according to the International Organisation for Migration. The pattern is so pronounced that the US military has drawn up a new map of Baghdad to reflect its ethno-sectarian fault lines. Published here for the first time, it lists the mixed neighbourhoods considered to be most explosive. Four of the five are on the western bank of the Tigris, called Karkh, where mixed neighbourhoods are still prevalent. Predominantly Shia Kadhamiya and the largely Sunni areas of Qadisiya, Amariya and Ghazaliya have become the deadliest battlegrounds, according to US forces.

The violent struggle for neighbourhoods goes well beyond a fight among outlaws. Armed groups belonging to the parliament's two main Sunni and Shia political blocs fuel much of the violence, according to senior Iraqi officials. "There is a very clear connection between some of the displacements caused by armed groups in some neighbourhoods in and around Baghdad and the political parties that are in the Council of Representatives," Mowaffak al-Rubaie, the Iraqi National Security Adviser, told *The Times*. "The violence is neither spontaneous nor popular. Displaced people view the most extreme religious fronts – the office of Moqtada al-Sadr and SCIRI on the Shia side and the MSA and the Islamic Party on the Sunni side — as the main drivers of sectarian displacement," the October report said. "The displacements clearly help further the political agenda of these extremist groups."

UNHCR, October 2005, p. 76

"After the fall of the former regime, Kurdish parties seized control of key positions within Kirkuk's security forces and enabled the return of thousands of displaced Kurds and Turkmen to Kirkuk, thereby causing the displacement of Arabs, who fled out of fear or because of harassment and threats."

HRW, 3 August 2004

"Since April 2003, thousands of internally displaced Kurds, Turkomans and others have returned to Kirkuk and other Arabized regions to reclaim their homes and lands which have since been occupied by Arabs from central and southern Iraq. These returnees were forcibly expelled from their homes by the government of Saddam Hussein during the 1980s and 1990s. 'Kurds are flocking back to Kirkuk, but the city has little capacity to absorb them,' said Whitson. 'They are living in abandoned buildings and tent camps without running water or electricity supplies, and they face precarious security conditions.' At the same time, little effort has gone into finding just and durable solutions for the so-called Arabization Arabs who, in their turn, have become the latest victims of internal displacement. Many such families fled their homes during the U.S.-led invasion or were forced to do so subsequently, particularly in rural areas, but have remained in the vicinity in makeshift shelters and without basic amenities. Others living in urban areas, notably Kirkuk, never left and are waiting for their own property claims to be resolved."

HRW, August 2004

"Human Rights Watch researchers who were present in northern Iraq at the time of the fall of Kirkuk found looting and expulsions taking place in rural villages built for Arab settlers just south of Kirkuk. In early April 2003, about 2,000 members of the al-Shummar tribe had been evicted by force from the villages of al-Muntasir, Khalid, al-Wahda, Umar Ibn al-Khattab, and Sa'ad, where they had been resettled in 1973 on agricultural land seized from Kurds. A PUK official in the nearby town of Daquq

explained that his party had adopted the policy that all persons resettled by the government in the north should return to their original homes.¹²¹ Senior PUK leaders denied that they were implementing a forced expulsions policy and said they would take measures to prevent further abuses."

IRIN, 23 September 2004

Many of the displaced Arabs have gone to live with relatives in southern Iraq, particularly Nasiriyah and Basra, but others who don't have a place to go are living in unused or damaged buildings, according to some humanitarian organisations. Their living conditions are said to be bad due to the absence of sanitation and potable water. Some Arabs claim they didn't have time to move their belongings as the Kurds pushed them out. 'Saddam forced us to go in and now the Kurds have forced us to leave, and we didn't get anything but suffering for our family,' Ahmad Abo-Abdu, 55, whose displaced family now lives at the military base near Kirkuk city, told IRIN. Arab leaders in Kirkuk claim that some people refusing to vacate their houses have been abducted by Kurds. 'The [political] parties are pushing the population back and trying to kick out the Arabs,' Mohammed Khalil al-Jaboury, 38, an Arab city council member, told IRIN. He added that the local authorities in Kirkuk were not doing anything to help them and had made false promises."

Refugee International, 21 November 2003

"The return of Kurds to their former homes has in turn displaced the Arabs living in them. About 100,000 displaced Arabs are living in poor conditions in public buildings or in military camps. The UN reports that inadequate water, sanitation, and shelter, and the presence of unexploded bombs are the main problems they face."

See Also

["Number of displaced increases in Arbil"](#), IRIN, 26 February 2007

["Iraqis on the Move"](#) International Medical Corps (January 2007)

[Kurds drawn into Iraq's firing line](#), **Asia Times Online**, 31 May 2007

[Uprooted and Unstable](#), **Refugees International (RI)**, April 2008

[Bombers kill 175 in attacks on minority sect in Iraq](#), **The Guardian**, 15 August 2007

[Bombings strike Baghdad and area to the north and south; U.S. reports 5 troops killed](#), **International Herald Tribune (IHT)**, 25 July 2007

[Bombers kill 175 in attacks on minority sect in Iraq](#), **The Guardian**, 15 August 2007

[In town split in two by al-Qaida, a ray of hope for the country](#), **The Guardian**, 14 July 2007

[Accepting realities in Iraq](#), **Chatham House and University of Exeter**, 18 May 2007

[Iraqi leaders pledge reconciliation effort](#), **Radio Free Europe/Radio Liberty (RFE/RL)**, 27 August 2007

[Bombings strike Baghdad and area to the north and south; U.S. reports 5 troops killed](#), **International Herald Tribune (IHT)**, 25 July 2007

[Families fleeing violence set up improvised camps](#), **Integrated Regional Information Networks (IRIN)**, 22 July 2007

Conflict related displacement post-2003

Conflict related displacement since early 2003 to late 2009

- A combination of political and military efforts has contributed to continued improvements in security across Iraq in 2009. Following on the Status of Force Agreement between US and Iraqi government in late 2008, US military withdrew to military bases at the end of June 2009. Counter-insurgency operations continued to take place. The number of displaced as result of military operations was limited in 2009.
- Displacements due to military operations have often been of temporary nature with exceptions, in particular the siege of Fallujah in November 2004 which has resulted in more prolonged displacement due to poor reconstruction efforts. Such operations have entailed heavy fighting in densely populated urban areas. There has noted failure of adherence by MNF-I and Iraqi forces to distinction between combatants and civilians and accusations of disproportionate attacks on civilian areas.
- There is no comprehensive figure on the number displaced due to military operations since 2003 though it is believed to be inferior to displacement due to sectarian violence. Figures vary though it may be extrapolated that there has been in excess of 400,000 that were temporarily displaced due to military operations - how many of these remain displaced is unknown.
- In 2008 following two years of sectarian violence implementation of US 'surge strategy' with realignment of Sunni insurgent militias and the ceasefire of the Mahdi militias had resulted in reduction in the nature of the violence faced. Large scale operations continued in 2008 to cause displacement namely in Basra, Sadr City area of Baghdad, Amarah, and Mosul and other parts of Ninawa Province. Operations in Sadr City in April and May 2008 would lead to the displacement of approximately 4,700 families
- In March 2007, some 22,400 people were estimated to remain displaced from military operations and fighting. Between February to November 2006, an estimated 15,420 were displaced as result of military operations. In 2005, thousands of people were displaced by military raids conducted by the multinational and Iraqi forces, including in al-Qaim, Karabilah, Haditha, Ramadi, Mosul and Kirkuk which continue to be monitored by the UN.
- Military operations in 2004, particularly in Fallujah, Najaf, Kufa, Karbala and Samarra had caused displacement. In November 2004, over 200,000 people were displaced from Fallujah as result of MNF's second siege and fierce fighting in the city - significant portion if not the majority of the city was destroyed by MNF-I operations. Earlier that year, operations had led to 70,000 displaced from Fallujah. From March to May 2003, the governorates of Al-Anbar, Thi-Qar and Basra witnessed displacement due to the threat of air strikes and urban warfare.
- The prognosis for the risks of displacement as result of the US led invasion of Iraq were initially quite high. In January 2002, the UN estimated that an additional 900,000 people could be internally displaced in case of a war, with fears that Iraqi regime could force people in the South to flee as part of its war strategy while massive displacement to and from Kirkuk and Mosul was expected. The numbers displaced due to military operations in 2003 to 2004 however would not exceed 150,000.
- Foreign intervention by Turkey and Iran has also entailed displacement in coordinated effort between Iran and Turkey to disrupt the activities of Kurdish rebel bases. (Guardian, 18 August 2006) Iran is bound by treaty with Turkey to fight the outlawed PKK, and in return, Turkey has pledged to fight the Iranian armed opposition group, the Iraq-based People's Mujahedeen." (AFP, 1 May 2006) Turkish and Iranian military forces have repeatedly since 2006 attacked bases of Turkish-Kurdish rebels - PKK, - in Kurdistan.
- In October 2007, the Turkish parliament authorized the military to strike at the rebels across the border renewed in 2009. In December 2007, more than 300 to 700 families fled their homes in Sulaymaniah and Erbil Governorate. (IRIN, 29 February 2008) In August 2007, an upsurge in fighting between Kurdish guerrillas and Iranian Government forces in north-east Iraq would lead to destruction of property and livestock and the displacement of about 1,000 people from their homes. (Guardian, 20 August 2007) In 2006 200 families (1,500 persons)

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UN Secretary General (UNSG), 28 July 2008:

"3. A combination of political and military efforts has contributed to continued improvements in security across Iraq during the past three months. Although civilian casualties as a result of violence remain unacceptably high, both the frequency of violent incidents and casualty figures have continued to decline and there has been increased cooperation from local communities in preventing acts of violence. The Iraqi Security Forces appear to be gaining in confidence and capability, and the number of units capable of taking the lead in operations is increasing. Following an operation in Basra, the Iraqi Security Forces commenced several major operations concurrently: Operation Peace began in May against renegade groups in the Sadr City area of Baghdad; Operation Promise of Peace started in June in the southern town of Amarah in Missan Province; and Operation Lion's Roar was launched against insurgent groups in Mosul and other parts of Ninawa Province. The ceasefire declared by Moqtada al-Sadr on 11 May for Sadr City continues to be in effect, and State authority and basic services are being restored in coordination with Sadr movement leaders....

26. The human rights situation in Iraq remains serious, although violations were less widely reported. Despite improved security conditions in Baghdad, Amarah and Mosul after operations against armed militias, UNAMI remained concerned about the physical safety and legal protection of hundreds of suspects arrested, as well as detention conditions and lack of due process following detention. Those apparently rounded up as suspects included a number of children.....

27. During the military crackdown by Iraq and the multinational force in Iraq against militias in Sadr City in April and May, there was heavy fighting in this densely populated urban environment. According to several estimates, more than half of the 1,000 reportedly killed may have been civilians. Yet the real scale of civilian casualties was difficult to assess in the aftermath of the conflict, as most casualty data were not made available. UNAMI continued to investigate reports of incidents in which civilians were apparently targeted or where all sides to the conflict may have failed to make the distinction between combatants and civilians. This includes possible disproportionate attacks on civilian areas.....

38. Major security operations in Sadr City, Mosul and Amarah during the period under review prompted the United Nations country team to work closely on contingency plans for humanitarian emergency response. Access to basic commodities was at risk, particularly in Sadr City, where violence led to the temporary displacement of approximately 4,700 families. UNAMI engaged in targeted advocacy with the Government, the multinational force, Iraqi Security Forces and other actors to ensure humanitarian access prior to and during security operations. The coordination of the Office for the Coordination of Humanitarian Affairs with the International Committee of the Red Cross and other non-governmental organizations was important for unified country team monitoring and analysis. During the immediate response phase in the most acute of the three crises, the United Nations delivered water and sanitation assistance for an estimated 120,000 families in Sadr City. Sanitation agencies supplied 10 million litres of safe water to residents and hospitals, as well as water hygiene/purification kits. UNHCR provided non-food items to internally displaced persons and supported the repair of some 300 conflict-affected houses and shops in the Sadr City and Shula districts of Baghdad. WFP delivered 296 tons of emergency food to 38,500 residents of Sadr City, and the International Organization for Migration (IOM) delivered 2,000 food baskets to hospitals in Sadr City and Shula. In addition, 1,500 food baskets were delivered to hospitals in Basra, Wassit, Babylon and Qadisiyah. In other interventions throughout the country WFP, together with non-governmental organization partners, reached 480,000 persons with food assistance during the reporting period. A further 42,500 persons were assisted

in partnership with IOM. Currently, the United Nations country team has 15 water and sanitation rehabilitation projects in nine governorates at various stages of completion, benefiting approximately 3.5 million persons."

BBC News, 7 May 2008:

"The authorities in Baghdad say they are preparing for an exodus of thousands of people from eastern parts of the city. Fighting between government and US troops on one side, and Shia militia on the other, has intensified recently. Two football stadiums are on stand-by to receive residents from two neighbourhoods in the Sadr City area. The government has warned of an imminent push to clear the areas of members of the Mehdi Army, loyal to the anti-American cleric, Moqtada Sadr. In the last seven weeks around 1,000 people have died, and more than 2,500 others have been injured, most of them civilians."

Integrated Regional Information Networks (IRIN), 14 May 2007:

"Thousands of Iraqis have been fleeing their homes in Diyala province over the past week after an increase in attacks by armed groups and a major offensive by US and Iraqi troops. Diyala province is a volatile but religiously mixed governorate to the northeast of Baghdad. In the past six days more than 900 families, about 5,000 individuals, have fled Diyala governorate. Some of them were forced out by militants and others were scared of the clashes, said Faris Abdallah, media officer for Diyala governorate office. The villages of Khalis and Ambugiya have seen considerable sectarian violence and the number of internally displaced people is greatest there, Abdallah said, adding that most are Shi'a. Most of the families which have fled Diyala have headed for the southern provinces of Najaf, Kerbala or Basra. Some have moved to the outskirts of Baghdad where camps for the Diyala displaced have been set up. A few families have also been internally displaced within the province."

Integrated Regional Information Networks (IRIN), 7 May 2007:

"Dozens of families started to flee Sadr City, the main Shi'a district of Baghdad, on Sunday following raids by US-led forces against suspected militants. "The raids were unexpected and, as Sadr City is a violent neighbourhood, some families are fleeing the area looking for displacement camps in the outskirts of the capital. Many of them have travelled to Najaf and Kerbala in the south," said Hussam al-Din, president of the Baghdad-based Iraqi Humanitarian Association for the Displaced (IHAD). "Local NGOs are desperate because we cannot reach the area for security reasons and fleeing families are leaving their homes without enough money to support themselves," al-Din said. "

UNAMI, 16 January 2007

"Military operations continued in Al Anbar Governorate, in particular Ramadi, Fallujah and Heet. Ramadi and Fallujah have seen relatively constant fighting between MNF-I and insurgents in some districts, completely disrupting the functioning of social services and resulting in a high degree of displacement and casualties."

Integrated Regional Information Networks (IRIN), 14 May 2007

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UNAMI, 22 November 2006

"Some 418,392 people have been displaced due to sectarian violence and 15,240 due to military operations since the attack on the Samarra Al-Askari Shrine on 22 February 2006."

Integrated Regional Information Networks (IRIN), 29 February 2008

An ongoing Turkish military offensive into Iraq targeting Turkish-Kurdish separatist rebels has forced at least 12 Kurdish families to flee their homes and has destroyed four bridges, the Iraqi Red Crescent Society (IRCS) said on 24 February..... Since 21 February, Turkish military forces have launched ground attacks on Iraqi territory supported by aircraft, helicopters and artillery to bomb the suspected hideouts of Turkish-Kurdish rebels in the remote, mountainous terrain of Kurdistan. ... The incursion is the first confirmed Turkish military ground operation in Iraq since the US-led invasion that toppled Saddam Hussein, the late former president, in 2003..... Renewed fighting in December 2007 forced at least 700 families to flee their border villages, the IRCS [Iraqi Red Crescent Society] said. Nearly half of them returned in January to damaged infrastructure and homes.

United Nations High Commissioner for Refugees (UNHCR), 18 December 2007

We are very concerned about the displacement of people in northern Iraq caused by the ongoing shelling by Turkey and have urgently dispatched supplies to help those who fled, leaving everything behind. The relief supplies will be distributed today, Tuesday. Last weekend more than 1,800 people (300 families), fled their homes in the Sangasar sub district of Sulaymaniah Governorate and from Doli Shahidan in Erbil Governorate, 100 km inside Iraq. They have moved to safer areas of both Governates. The displaced people told us that ten villages had been affected by the shelling.

The Guardian, 18 October 2007

Ankara has deployed about 60,000 troops on its side of the border with Iraq, and has demanded that Iraq's Kurdish leaders, whom it accuses of aiding the PKK, cooperate with Baghdad in eradicating the rebel bases and extraditing PKK leaders. Turkey also accuses the US and the government in Baghdad of not doing enough to crack down on the rebels in Iraqi territory. But that is of little comfort to the villagers. They are particularly alarmed by reports that Turkey's generals have drawn up plans to establish a 15-mile buffer zone along the Iraqi side of the border that would include many places where refugees have settled. Yet the Turks are already here - and have been for over a decade, with the tacit agreement of the Kurdish authorities. At one end of the Sabna valley, a garrison of Turkish soldiers occupies the Barmani airbase. To the east, in the hilltop town of Amediya, a Turkish tank watches from a small outpost. Their role is to monitor the PKK fighters, though the guerrillas are actually far away. "We don't like them to be here, but what can we do?" said Mohsen Qatani, a local tribal chief. "We ignore them and hope they ignore us. It is not our fight." Bishop Shlimon said an estimated 6,000 Assyrian Christians who have been uprooted by violence elsewhere have found homes along Iraq's northern border with Turkey. The influx has breathed new life into many semi-abandoned rural communities, he said. This week in Anishky, for example, a Christian from Baghdad opened a hall where 1,000 people could gather for weddings. Local authorities in the Kurdistan region said they feared 30,000 people may be

displaced if Turkish troops enter across the border. The UN's high commissioner for refugees, Antonio Guterres, also warned of the danger of a refugee crisis in northern Iraq if Turkey attacks.

UNAMI, 18 July 2006

"In Sulaymaniya, approximately 200 families were said to have fled their shelters after skirmishes, on 1 May, between Iranian troops and Iranian Kurdish elements allegedly operating from the Iraqi territory. It is reported that all families have subsequently returned to their homes."

IRIN, 2 May 2006

"About 200 families fled their homes on the Iraq-Iran border on Monday as Iranian forces shelled areas used by Iranian-Kurdish rebels, according to Kurdish officials. "The shelling began on Sunday and continued until Monday morning," said Azad Waso Hassan, member of the Patriotic Union of Kurdistan, which controls the area. [...] Hassan added that about 1,500 people from several villages in and around Sulaimaniyah, some 260km north-east of Baghdad, had been forced to flee as a result of the violence. [...] Iranian forces reportedly launched a similar artillery barrage in the area on 21 April. Kurdish rebels have recently staged attacks against Iranian army and Revolutionary Guard positions from territory in Iraq. In response, Teheran has reportedly massed troops on the border, near the mountainous areas close to Haj Umran, which has been used in the past by anti-Iranian fighters thought to be linked to the militant Turkish Kurdistan Workers' Party, or PKK. The Iraqi Red Crescent Society (IRCS), meanwhile, has said it has no specific reports about those displaced by the shelling. "But we have sent blankets, food and other things to help these families," said IRCS Director Dr Saad Haqi."

AFP, 1 May 2006

"Iranian forces shelled Kurdish rebel positions in Iraq for the second day, forcing dozens of Kurdish families to flee. "The Iranians shelled PKK positions from 9 pm (1700 GMT) on Sunday until 5 am (0100 GMT) on Monday," Rustom Judi, a leader of the rebel Kurdistan Workers' Party (PKK) in Iraq's northern province of Sulaimaniyah, told AFP. "Dozens of families were forced to leave their homes," he said Monday. [...] On April 20, Iranian shelling killed at least two people and injured 10 others in Iraq, the PKK said, while a group linked to the rebels, Pejak, killed four fighters inside Iran in weekend violence. Iran is bound by treaty with Turkey to fight the outlawed PKK, which has waged a 15-year insurgency against Ankara for self rule in Turkey's mainly Kurdish southeast. In return, Turkey has pledged to fight the Iranian armed opposition group, the Iraq-based People's Mujahedeen."

IWPR, 15 June 2006

"People in Ramadi, capital of the western Iraqi province of Anbar, estimate that about 70 per cent of the city's population has fled in the last week, many of them holding white flags for fear of being shot at by Marine snipers. Residents reported that US troops blasted messages through loudspeakers on June 13, telling them to leave and warning of house-to-house searches for weapons and militants. The ongoing violence between US Marines and the insurgents, air strikes, and outages in the water, electricity and phone networks have already made life untenable. Ramadi residents say US troops regularly take over houses to fight the insurgents, and combatants on both sides have been seen using rooftops as sniper positions."

UNHCR, October 2005, p.16

"Military raids are routinely conducted by the MNF/ISF in an attempt to put an end to insurgent activities. They have taken place in Fallujah, Ramadi and Mosul, and more recently in Al-Qaim, Karabilah and Haditha in Western Iraq. These raids, which aim to root out foreign fighters and insurgent support systems, often cause the death and displacement of civilians and the destruction of infrastructure and property."

UNAMI, 1 March 2005

"Post-election violence sparked an increasing number of 'hotspots' throughout central Iraq with implications for further internal displacements as a result of military operations or ethno-religious tensions. In particular, the situations in Mosul, Kirkuk, and Ramadi were monitored for potential outbreaks of conflict and concerns regarding civilian protection."

UNCT, August 2004

"Over the last four decades, human rights abuses and various periods of conflict have resulted in many cases of protracted displacement in Iraq, the total number of displaced peaking at over one million persons. The expulsion of people along ethnic lines from their homes has long been a state policy. The 2003 conflict resulting in the fall of the former Government of Iraq and subsequent periodic fighting have resulted in further population movements throughout the country. [...] From March to May 2003, the governorates of Al-Anbar, Thi-Qar and Basra witnessed displacement due to the threat of air strikes and urban warfare. Most moved to nearby rural towns where they lived with host communities or in public buildings. The vast majority returned to their homes immediately after the air strikes to protect their property from looting and squatters. However, a small number of people remain displaced. They are awaiting an improvement of the security situation and the reconstruction of or compensation for their destroyed houses. In addition, a small number of people throughout the country were forcibly displaced by Coalition forces for reasons of national security. In most cases, these IDP families resided in or close to strategic buildings or locations such as airports or military bases. [...] Skirmishes with Coalition forces have continued into 2004, escalating into battles in the cities of Fallujah, Najaf, Kufa, and Karbala leading to similar patterns of displacement to those in the 2003 conflict. In April 2004, over 70,000 persons were reported to have fled Fallujah to neighbouring towns as a result of the siege by Coalition forces on the city. Following the end of the fighting, as previously observed, families quickly returned to their homes in Fallujah. In addition, a group of Kurdish families was displaced during the Falluja crisis."

Bacon, January 2003

"An attack on Iraq, starting with an air assault against Baghdad and other strategic targets, would generate huge flows of refugees and a serious nutritional and public health crisis. More than a million people fled Iraq during and after the 1990–1991 Gulf crisis, when Saddam Hussein crushed ethnic rebellions that the United States refused to support. Surrounding countries, the United Nations, and relief agencies are bracing for flows at least as great this time. There could also be massive internal movement, with people fleeing cities for the country. Many of the roads that U.S. and allied troops would need to bring troops and equipment into Iraq could be clogged with people fleeing for their lives. Most of Iraq's 24 million people depend on food rations provided under the U.N. Oil for Food Program. Any break in the food pipeline would create a nutritional crisis, forcing hungry Iraqis to besiege invading troops for food. Relief agencies have been working for years in Afghanistan, but there is little infrastructure to deal with a humanitarian disaster in Iraq. Stockpiling food, assembling supplies and medicine, and building relief teams will take time and money—mainly from the United States. During and immediately after a conflict, occupying forces are often the only source of food and medical care. If Saddam Hussein were to use chemical or biological weapons to blunt an attack, the humanitarian crisis could be far worse. Thousands of people would be killed or incapacitated, but relief workers—the world's first responders to complex emergencies—would find it difficult to provide aid. Humanitarian workers are completely unprepared to work in the toxic conditions they could encounter in the country."

UN OCHA January 2003, p10

"Up to 900,000 people may be displaced in addition to the 900,000-1,000,000 existing IDPs." *U.N. agencies predicted in December 2002 that war could displace an additional 1.1 million people inside Iraq and 900,000 would become refugees outside the country.* To view the UN confidential report mentioning this information, please see: UN 10 Dec 2002, Likely Humanitarian Scenarios [reference and link below]

CHC, 23 December 2002 "Scenarios for large-scale population displacement: 1) Refugee flow from northern Iraq to neighbor states. Despite the past history (1988 and 1991) and the publicly and forcefully articulated fears of Turkey and Iran, this is an unlikely scenario. The reasons for this are the following: The Kurds are far better organized than in the 1980s or 1991. Administrative structures that can channel assistance and defuse popular panic exist both at the government and at local levels. Most Kurdish households, from prime minister to taxi-driver, have several weeks / months worth of food stocks in the house. Since 1991, circa 3000 villages have been at least partially rebuilt. They will provide a protective buffer between the towns and the mountainous borders, with access to food and water. (In 1991 there was nothing between the towns and the mountains.). Indications are that a key trigger to large-scale displacement – a prolonged Iraqi military attack -- will be met with an overwhelming US-led military response.

2) Flight from the northern cities to surrounding areas. As noted above, any large-scale Iraqi military action against cities such as Erbil, Sulaimaniah, or Dohuk is expected to be met with a prompt coalition response. Therefore it is only the use of or rumor of the use of WMD that might generate sufficient panic to instigate large scale flight.

3) New IDPs coming into northern Iraq from the South. This could be any of a number of populations including non-Arabs expelled from Kirkuk, Mosul or even Baghdad, as well as the general population of the first two cities. These are likely to be people that are expelled by the Iraqi regime, as part of its strategy of fighting the war with 'population bombs.'¹ Weapons of mass destruction (WMD) may be used to instigate large-scale displacement.

4) Rapid population movements from and to Mosul and Kirkuk. Upon the withdrawal of Iraqi forces from the northern cities, which could happen even prior to the outbreak of hostilities, there are likely to be two types of population movements: Arab populations will flee south, and the former non-Arab residents will flood home. These movements will happen spontaneously and will be largely uncontrollable."

See Also:

[Baghdad suburb residents flee after US raids](#), **Integrated Regional Information Networks (IRIN)**, 3 July 2007

[Iraq braces for offensive on militias, blasts in Baghdad](#), **Deutsche Presse Agentur (DPA)**, 8 May 2008

[Iraq prepares for Baghdad exodus](#), **BBC News**, 7 May 2008

[Iraq to confront militias after Sadr threat](#), **Reuters**, 21 April 2008

[Baghdad's Sadr City](#), **Christian Science Monitor (CSM)**, 18 April 2008

[Iraq After the Surge I: The New Sunni Landscape](#), **International Crisis Group (ICG)**, 30 April 2008

[Iraq's Civil War, the Sadrists and the Surge](#), **International Crisis Group (ICG)**, 7 February 2008

[Dozens of families flee clashes in Sadr City](#), **Integrated Regional Information Networks (IRIN)**, 8 April 2008

[Uprooted and Unstable](#), **Refugees International (RI)**, April 2008

[IDP Working Group Internally Displaced Persons in Iraq – Update \(24 March 2008\)](#), **IDP Working Group**, 24 March 2008

[Turkey army says launched land offensive into Iraq](#), **Reuters**, 22 February 2008

[Turkish jets bomb Kurdish rebel hide-outs in northern Iraq](#), **International Herald Tribune (IHT)**, 15 January 2008

[Kurds flee homes as Iran shells villages in Iraq](#), **The Guardian**, 20 August 2007, 18 August 2006

Secondary displacement post-2003

Secondary displacement, and risks thereof, following upon return to places of origin and inadequate policies (2003-2009)

- Though figures of secondary displacement remain unclear this is a category of concern. In 2003 to 2008, there has been secondary displacement of refugees as well as displaced; as result of premature return or general conditions in places of origin and due to implementation or threat of evictions without appropriate adequate alternatives for IDPs evicted.
- In 2009, there have been few reports of instances of secondary displacement though there are no clear estimated figures. UNHCR protection monitoring suggests some instances of secondary displacement. UNCT has also underlined risks of secondary displacement particularly with regards to threats of evictions. It is not clear whether the limited information on secondary displacement is due to lack of information on the matter or the fact that such incidents have declined.
- Iraqi government has through 2007 to 2009 began addressing situation of IDPs who are second occupants of private and public property. Ad hoc measures at governorate level have entailed secondary displacement, or risk of secondary displacement of occupants many of whom are registered IDPs.
- In July 2008, Iraqi government announced measure to encourage more than 4 million IDPs and refugees to return to their homes. In September 2008 Iraqi government has began implementing a government decision to address second occupants of properties belonging to internally displaced persons (IDPs) and refugees. This included a one month grace period for second occupants occupying properties belonging to IDPs or refugees to vacate properties.
- In 2008, Ministry of Migration and Displacement has reported that number of occupied properties includes 3,491 in nine provinces. These properties include houses, flats, land and other buildings. Baghdad has the highest number at 2,369. Though there is no clear idea of the figures involved, UN assessments indicate that there are 230,000 secondary occupants in public properties throughout Iraq. IOM survey has noted that of the 1,6 million displaced between 2006 to 2008 5% reside in public buildings, 0,4% military camps, or 9,8% other.
- There has been limited reports in 2009 of returnees being secondarily displaced. In late 2007 and 2008, many of the returnees have possibly faced internal displacement upon return according to the IOM and UNHCR assessments. In 2008, UNHCR and IOM note that returnees finding their residences occupied or destroyed have been secondarily displaced. It is estimated that around 30% might have been displaced again to a different governorate or neighbourhood within affected urban areas. Governorates of Dahuk, Kerbala, Baghdad, and Basra appear to have been particularly affected by returns into displacement
- Recently in late 2007 and 2008, many of the refugee returnees have possibly faced internal displacement upon return according to the IOM and UNHCR assessments. It is estimated that around 30% might have been displaced again to a different governorate or neighbourhood within affected urban areas. Governorates of Dahuk, Kerbala, Baghdad, and Basra appear to have been particularly affected by returns into displacement. (UNHCR, February 2008)
- In 2004 and 2005, UNHCR and UNAMI would note many returnees from abroad ended up in displacement, largely because of the lack of absorption capacities, ongoing conflicts and property disputes. Most refugees that returned from neighbouring countries including Iran, Lebanon, and Saudi Arabia in 2003 to 2005 were spontaneous and unassisted. It is assumed that many of these returnees ended up internally displaced. (UNHCR, October 2005) There were also instances in the aftermath of the war in 2003 of non-Iraqi Arabs (mainly Palestinians and Sudanese) who have been living in Iraq for more than two decades

UNHCR, December 2009

The majority of the IDPs stated that some families have lost rights to or cannot access property in their former neighborhood, 56% of refugee returnees and 15% of IDP returnees have lost rights to or cannot access their former property as it was occupied by insurgents or militia (40% of all cases) by resident community, by other IDPs and returnees, sold under duress, destroyed or damaged, fear of religious, ethnic or political harassment.... However, only 41% of the families who lost property approached anyone to recover it and the others did not do it due to the costly procedures, unaware of the process, lacked document or feared repercussions... Since April, the majority of IDPs assessed stated living in rented houses or apartments (50%), owned property (24% of IDPs) or occupying public buildings (20%). The majority of IDP returnees lived in owned property (40%), rented house or apartments (25%) and in allocated lands or house (25%). Most refugee returnees lived in owned property (45%) and rented accommodation (20%). Eight per cent of IDPs and 6.4% of refugee returnees lived in illegal camps (1% of IDP returnees lived in illegal camps).

Integrated Regional Information Networks (IRIN), 8 September 2008:

"Our security forces, in cooperation with local officials in Baghdad neighbourhoods, have begun implementing the government decision to check on these houses and force those who illegally occupy them out," Brig Gen Qassim al-Mousawi said. If these families fail to produce legal papers showing they are occupying the house according to an agreement with the owner they will face legal action, al-Mousawi told IRIN. The government has not yet released any data of how many houses belonging to displaced families have been cleared of squatters. But on 3 September, the Migration and Displacement Ministry released [its first report](#) on the number of illegally occupied houses - 3,491 in nine provinces. These properties included houses, flats, land and other buildings. Baghdad had the highest number of squatter-occupied properties at 2,369, followed by Diyala with 963 and Anbar with 63. The rest were in the provinces of Salaheddin, Taamim, Babil, Kut, Nineveh and Muthana. On 20 July, the Iraqi government announced measures to encourage the more than four million IDPs and refugees to return to their homes, including a one-month grace period for squatters to vacate properties. The measures also included a one-off payment of 1.8 million Iraqi dinars (about US\$1,500) to squatters to help them rent other properties. In addition, it was stipulated that IDPs willing to return to their houses would be paid one million dinars (\$840). Each internally displaced family that has not yet returned home qualifies for a monthly payment of 150,000 dinars (\$145) for three months while still displaced."

International Organization for Migration (IOM), September 2008:

"Evictions are a serious concern throughout the country, particularly in Baghdad. The Prime Minister's office has issued an eviction order for all Baghdad squatters, beginning 2 September 2008. This measure is intended to empty out occupied houses so that displaced owners of these houses may return. Although some of these houses are illegally occupied by militant groups, a significant number of squatters are IDP families who could become secondarily displaced. Newly displaced families will be entitled to the government rental subsidy of 300,000 Iraqi Dinar (approximately US\$253) for six months. In addition, it is reported that several thousand IDP families in Tikrit district of Salah al-Din governorate are in danger of eviction because they are squatting on land that belongs to the municipality. The families are mostly from Kirkuk and Erbil. Another 370 families are in danger of eviction from Al Rasheed hospital in Baghdad, and 210 families were evicted from former intelligence headquarters in Baghdad."

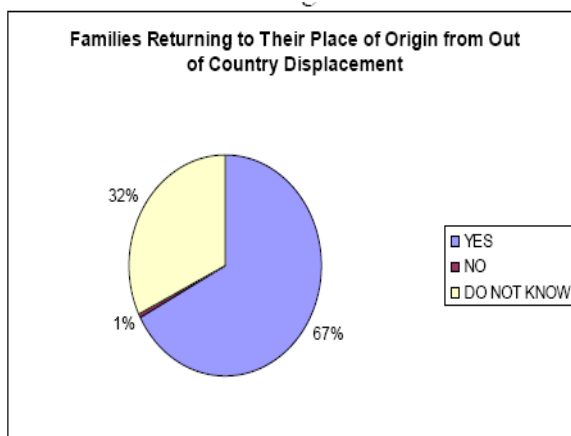
United Nations High Commissioner for Refugees (UNHCR), February 2008

68% of surveyed IDP returnees went back to their place of origin, while others might have been displaced again to a different neighbourhood or governorate. The Governorates of Dahuk, Kerbala, Baghdad and Basrah appear to have been particularly affected by “returns” into displacement: All families surveyed in the Governorates of Dahuk and Kerbala had moved into secondary displacement as they could not return to their place of origin. The same is true for 28% of the families surveyed in the Governorate of Basrah and 10% of the families surveyed in the Governorate of Baghdad.

In addition, some families in Missan Governorate have not returned to their place of origin in other governorates due to ongoing insecurity and presence of armed groups. They are living with relatives. Some families surveyed the Governorate of Kerbala cited security concerns to return to their places of origin in Baghdad, saying that they had heard of returnees having been killed in their area. Most families in Kerbala said they were unable to return to their place of origin because the groups who had previously threatened them were still in control of their areas. In addition, they mentioned that the general security situation had not yet completely stabilized. Some of these families are now living with relatives in the Governorate of Kerbala.

Of the surveyed families who had returned to Baghdad in December 2007, only 37% had returned to their home. The main reasons for not returning were damaged houses and the unstable security situation. Families, who returned to their place of origin but were subsequently displaced again, were not captured by this survey. UNHCR became aware of these cases only through narrative accounts and therefore does not have a clear number. The fact that some returnees were displaced again was also confirmed by other sources.

67% of surveyed returnees from abroad seem to have returned to their place of origin. However, many families, in particular in the Governorates of Missan and Kerbala, may not have come back to their place of origin and may again move. Local authorities indicated that for 67% of the surveyed returnees they assume they will stay in their current location, while in 31% of the cases they are not able to indicate whether they will stay in their current location or not. In 1% of the surveyed cases, they clearly stated that the families will move again.



Data Source: UNHCR PACs

Integrated Regional Information Networks (IRIN), 27 January 2008:

"The Iraqi Ministry of Defence has given about 300 internally displaced persons (IDPs) one week to evacuate a former military compound in Babil Province, about 100km south of the capital, Baghdad, officials said on 25 January. "Representatives of about 45 displaced families last week appealed to the Iraqi parliament for help to persuade the defence ministry to postpone its

decision," Abdul-Khaleq Zankana, head of parliament's displacement committee, told IRIN, adding that the Iraqi army intended to reuse the compound as a military base.... Al-Zubaidi added that a provincial committee had been formed to find a solution for these families; either by re-housing them in an abandoned government building or by erecting a new camp for them. "But most probably we will get a piece of land in the suburbs [of Hilla] from the city's municipality to erect more than 100 tents for them and supply them with food and non-food items," al-Zubaidi said. "It is indeed a problem. It will be difficult for us to erect a camp in four or five days as we are in winter and it is raining nowadays. Because of that we need more time."

Integrated Regional Information Networks (IRIN), 16 January 2008:

"Local authorities in Kerbala, a southern province of Iraq about 120km south of the capital, Baghdad, have destroyed thousands of hectares of agricultural land, putting dozens of peasant families at risk of being displaced, according to residents. "The farmers had been warned since last September to leave their farmland as plans have been drawn up by local authorities to turn the area into a residential one for the families of victims of the previous regime," Amal al-Hir, head of Kerbala Agricultural Directorate, said. According to al-Hir, the late former Iraqi president Saddam Hussein in 1991 granted 10-year contracts to peasant farmers in a desert area that he designated as a new green belt for Kerbala."

UNHCR, October 2005, p.24:

"In addition, many returnees from abroad ended up in internal displacement, largely because of the lack of absorption capacities, ongoing conflicts and property disputes."

OHCHR, 9 June 2004, p.21:

"[B]y April 2004, an estimated 80,000-120,000 persons had returned from, inter alia, the Islamic Republic of Iran, Lebanon and Saudi Arabia. Most of the returns have been unassisted and spontaneous. It is assumed that many of those who have returned did so to a situation of displacement."

See Also:

"[Focus on treatment of foreign Arabs](#)", IRIN, 21 June 2005

[Iraq Situation Update - August 2008](#), **United Nations High Commissioner for Refugees (UNHCR)**, September 2008

[IOM Monitoring and Needs Assessments: Assessments of Iraqi Return](#), **International Organization for Migration (IOM)**, August 2008

Forced displacement pre-2003

Forced displacement pre-dating 2003 in Northern Iraq due to former Iraqi regime sectarian and political persecution

- In 1998 UN-Habitat estimated that out of 3 million people in northern Iraq, 1 million had been displaced in northern Iraq as result of the Anfal campaign, people expelled from government controlled regions, or Kurdish infighting or proximity to the border. Mainly from the 1970s and onward, Iraqi administrations displaced hundreds of thousands of ethnic Kurds, Turkomans, and Assyrians from Northern Iraq, repopulating the region with Arabs from central and southern Iraq, a policy known as "Arabisation" Arabisation was carried out to gain government control of valuable oil resources
- The Anfal campaign followed the 1980 Iran/Iraq war. The Anfal campaign reached genocidal proportions, around 100,000 Kurds were murdered. Also in the context of Anfal, the Iraqi

- The Iraqi government had forcibly evacuated as least a quarter of a million Kurds from areas bordering Iran and Turkey and the inhabitants relocated to settlements in army-controlled areas of Iraq Kurdistan. The majority of the displaced Kurdish population were expelled or fled to the Kurdish Autonomous Region, Others were resettled in the large-scale 'complexes' or 'collective villages' built by the Iraqi government. Some were forcibly settled far away in central and southern Iraq
- The government used military force and intimidation primarily but also legal means, invalidating property deeds of the displaced Kurds and nationalized the agricultural lands, making them the property of the Iraqi state . Arab farmers and their families were resettled in the formerly Kurdish areas. The majority of Sunni Arabs from the al-Jazeera desert seem to have moved to the north voluntarily or with minimal coercion. A small number of Shi'a tribes who were moved to the north appear to have been largely forced
- In the 1990s the Iraqi government focused its Arabization efforts on the oil-rich city of Kirkuk and its surrounding area Kurds, Turkomans, and Assyrians came under constant pressure to sign 'ethnic identity correction' forms relinquishing their ethnicity and registering officially as Arabs. Since 1997, Iraqi government forced Kurds, as well as a number of Turkmen and Assyrians to leave the Kirkuk area as part of its policy of 'arabization' Most of the people expelled from Kirkuk decided to go north, despite government decree that doing so would cause them to lose their property and food rationing cards Kurdish sources reported acceleration of forced displacement of non-Arab citizens in 2001 and 2002
- Procedures during the expulsion process included confiscation of property, of ration cards and of membership cards to government agencies. One member of each Kurdish family expelled was often detained and had to sign a note acknowledging to move voluntarily . Special Rapporteur of the Commission on Human Rights on the Situation of Human Rights in Iraq observed that the Baath Party and its members are effectively granted impunity in carrying out forced displacement policy. To prevent the return of displaced persons the government would mine the area, set-up military checkpoints and demolish Kurdish sites. Other measures included sealing off entire districts and taking children from families of minority groups hostage to intimidate their families into leaving their home regions

HRW, August 2004

"Since the 1930s, but particularly from the 1970s onwards, successive Iraqi administrations have forcibly displaced hundreds of thousands of ethnic Kurds, Turkomans (a Turkish-speaking Iraqi minority), and Assyrians from northern Iraq, and repopulated the area with Arabs moved from central and southern Iraq.[2] This policy, known as 'Arabization' (*ta'rib*) was conducted in order to consolidate government control over the valuable oil resources and arable lands located in northern Iraq. The massive forced displacement of Kurdish families from northern Iraq is not synonymous with Arabization, as armed conflict and the genocidal Anfal campaign of 1988 also accounted for large numbers of displaced Kurds. But even when Kurds were displaced by armed conflict or the Anfal campaign, the Iraqi government often ensured that their displacement became permanent and brought in Arab settlers to take over their homes. For the hundreds of thousands of Kurds displaced from their homes by Arabization, armed conflict, and genocide in Iraq, their continued displacement represents a crime that must be redressed.

The first massive wave of forced displacement in northern Iraq followed the 1974 unilateral declaration by the Iraqi government of a Kurdistan Autonomous Region covering the northern governorates of Arbil, Sulaimaniyya, and Dohuk. The area comprised some 14,000 square miles but included only half of the land area claimed by Iraq's Kurds, and excluded the oil-rich lands

around the city of Kirkuk. In the wake of the 1974 autonomy decree, the Ba'th Party embarked on the Arabization of the oilproducing areas around Khanaqin, evicting Kurdish farmers and replacing them with Arab tribal families from southern Iraq. Tens of thousands of villagers from the Barzani tribe were also forcibly removed from their homes following the collapse in 1975 of the Kurdish revolt, led by Mulla Mustafa Barzani. The villagers were relocated to barren sites in the southern deserts, where they had to rebuild their lives from scratch. By the late 1970s, the Iraqi government had forcibly evacuated as least a quarter of a million Kurdish men, women, and children from areas bordering Iran and Turkey. Their villages were destroyed to create a *cordon sanitaire* along these sensitive frontiers, and the inhabitants relocated to settlements built for that purpose located on the main highways in army-controlled areas of Iraq Kurdistan.[3]

The scale of the displacement of Kurds in the north during the mid-1970s was immense, displacing the entire Kurdish population from an area reaching from the town of Khanaqin, close to the Iranian border, to the Syrian and Turkish border areas around Sinjar. Many Kurdish villages were bulldozed, and new Arab settlements were built nearby. The bureaucratic nature of the Iraqi state makes it possible to reconstruct the scale of the displacement, as many of the landownership records of the pre-Arabization period still exist. The decrees passed by the Ba'th government in implementation of its Arabization policy also exist, as do detailed records of the Arab families that were brought to inhabit the vacated areas. An official of the Agricultural Department in Shaikhan district, located in Mosul governorate (renamed Nineveh by the Iraqi government), listed forty-six originally Kurdish and Yazidi villages that had been Arabized in the 1970s.[4]

Tens of thousands of displaced men, women, and children fled into Iran. Most returned to Iraqi Kurdistan after the establishment of Kurdish self-rule in the aftermath of the 1991 Gulf War, but were unable to return to their original villages located outside Kurdish-controlled areas. The majority of the displaced Kurdish population were expelled or fled to the Kurdish Autonomous Region, or were resettled in the large-scale 'complexes' or 'collective villages' built by the Iraqi government. Others were forcibly settled far away in central and southern Iraq, often in majority Sunni towns that formed the backbone of support for Ba'th Party rule. When Human Rights Watch researchers visited the Sunni towns of al-Ramadi and al-Falluja in April and May 2003 respectively, they found entire neighborhoods of desperately poor Kurds who had been forcefully displaced from their homes in the north since the mid-1970s, and had never been allowed to return home. [...]

The methods used by the Iraqi government to effect the forced displacements of the 1970s and 1980s involved first and foremost military force and intimidation: entire Kurdish villages were completely depopulated and bulldozed by Iraqi forces. But the Iraqi government followed up the brutality with legal decrees aimed at consolidating the displacement. First, the property deeds of the displaced Kurds were invalidated by legal decree, most frequently without compensation or with nominal compensation. The Iraqi government nationalized the agricultural lands, making them the property of the Iraqi state. The Iraqi government simultaneously embarked on a massive campaign to resettle the formerly Kurdish areas with Arab farmers and their families, thus completing the Arabization process. The Iraqi government did not have to look far for eager recruits for its Arabization campaign: located southwest of Mosul was the large al-Jazeera desert, home to hundreds of thousands of loyalist nomadic Sunni Arab tribesmen. Enticed with free, irrigated land, and encouraged by their tribal shaihs, the al-Jazeera tribesmen abandoned their hard lives in the desert and moved north en masse.

The process by which Arabs came to the north was remarkably similar throughout the vast region the Iraqi government repopulated with Arabs, stretching from Khanaqin near the Iranian border to Sinjar near the Syrian border. Human Rights Watch interviewed dozens of Arab families and Arab tribal leaders who ventured to the north under the Arabization campaign, and the majority of those interviewed clearly stated that they had come to the north by choice, after being offered

lucrative irrigated land by the government. Some stressed, however, that their desperate economic situation in the al-Jazeera desert gave them little choice. While the majority of Sunni Arabs from the al-Jazeera desert appear to have moved to the north either voluntarily or with minimal coercion, a small number of Shi'a tribes who were moved to the north appear to have come under much greater pressure to do so.

"During the 1980-88 war between Iraq and Iran, the Kurdish *Peshmerga* reconstituted itself, with backing from Iran. Towards the end of the Iran-Iraq war, from February 23 until September 6, 1988, the Iraqi government launched its Anfal campaign against the Kurds, under the direction of 'Ali Hassan al-Majid, a cousin of Saddam Hussein who earned the nickname 'Chemical Ali' for his use of chemical weapons against Kurds in northern Iraq. The Anfal campaign reached genocidal proportions, resulting in the 'disappearance' of some 100,000 Kurds, whose bodies are now being recovered in mass graves located across Iraq. During the Anfal campaign, the Iraqi government destroyed between 3,000 and 4,000 Kurdish villages and towns, displacing hundreds of thousands of Kurds. Some of the displaced Kurds were settled in army-guarded 'collective settlements,' while others were deported to southern Iraq or fled to neighboring states, notably Iran. The Anfal operation devastated Iraqi Kurdistan, leaving the entire region in ruin and a large proportion of the population displaced. The genocidal nature of the Anfal campaign made it drastically different from the earlier and later Arabization campaigns. However, for the displaced Kurds, the impact of the Anfal campaign was similar. After the 1991 Gulf War (see below), Kurdish villagers displaced during the Anfal campaign were able to return to many destroyed villages that were within the zone controlled by Kurdish forces. However, some villages destroyed during the Anfal fell outside that zone – for example parts of Makhmour district – and displaced Kurds were unable to return to those areas."

Following the failed 1991 uprisings, the Iraqi government focused its Arabization efforts on the oil-rich city of Kirkuk and its surrounding area. Kurds, Turkomans, and Assyrians came under constant pressure to sign 'ethnic identity correction' forms relinquishing their ethnicity and registering officially as Arabs. [20] Non-Arabs were also required to become members of the Ba'th Party, and to serve in 'volunteer' militias such as *Jaysh al-Quds* (Jerusalem Army) or the *Fida'iyyi Saddam* (Saddam's Martyrs, often referred to in Western media as the Fedayeen). Families that refused to comply were issued formal expulsion orders requiring them to leave their homes and move to Kurdish-controlled areas. The government of Iraq displaced approximately 120,000 persons from Kirkuk and other areas under government control from 1991 to 2000 in furtherance of its Arabization campaign. [21] Arab families were given financial incentives to move north, and the Iraqi government embarked on housing construction projects to bring more Arab families north in order to change the demographic make-up of the north."

Kurdistan Observer, 26 March 2001

In 2001 "Iraqi authorities have forcefully deported five Kurdish families in Tuze Khurmatoo south of Kirkuk city. Their documents were ceased and their houses were expropriated and given to Arab families. The families were asked to register as Arabs or face deportation to the areas controlled by the Kurdish authorities. The deportees who arrived in Kurdistan asked UN to pressure Iraqi government to allow them back to their land and to halt further deportation activities. The deportees numbered 33 persons, all from the farm lands near Tuze Khurmatoo."

RFE/RL, 15 February 2002

"Emanuel Khoshaba, an official with the Assyrian Democratic Movement, said that '10 Assyrian families have been forced to move to...Baghdad since the beginning of the year,' according to 'Zinda' on 12 February. The deportation of these families is part of the arabization campaign spearheaded by the ruling Iraqi Ba'th Party."

RFE/RL, 26 April 2002

"The Iraqi government's ethnic-cleansing campaign against the country's non-Arab citizens has accelerated, according to the Patriotic Union of Kurdistan (PUK) Kurdish-language daily "Kurdistan Nuwe" on 17 April [2002]. "Daily, the Iraqi government further intensifies the policy of ethnic cleansing and deportation of Kurds in the regions under its own control," reported "Kurdistan Nuwe." The article continues, "Whenever the global problems become more intricate and more threatening, the Iraqi government finds it an opportune time to further implement its schemes against the Iraqi people in general and the Kurdish people in particular.[...]" On 5 January 2002, [Saddam Husseyn's] Presidency Council issued a directive through the Interior Ministry, to the Kirkuk Governorate in which it called for probing into the causes of death of all the Kurdish citizens from 1991 to 1996 in Kirkuk, for the purpose of expelling...the families and relatives of the Kurds who were martyred in the battles for liberating Kirkuk..., 'the report said. The battles for liberating Kirkuk refer to the brief seizure of Kirkuk by Iraqi Kurdish forces during the abortive March 1991 Kurdish uprising."

Fawcett & Tanner, October 2002, p1

"In Iraq, the expulsion of people from their homes has long been state policy. Expulsions have been undertaken to punish and subdue recalcitrant populations. To this end, genocidal acts have taken place against the Kurds in the 1980s and against the Marsh Arabs in the 1990s. On other occasions, expulsions have been part of a strategy to secure valuable economic resources, as with the on-going 'Arabization' campaign against the Turkmen, Kurds, and Assyrians. Expulsions have also been used to undermine the growth of political opposition as with the Shi'a in the south, or to forestall a fifth column as with the taba'iyya, those thought to be sympathetic to Iran, at the beginning of the war in 1980. In Iraq, over the last thirty years, there has never been a time when one group or another was not being expelled from their homes.

The tactics used to accomplish the expulsions have included the use of overwhelming force, with the full-fledged deployment of infantry, armor and weapons of mass destruction, backed up by village demolition crews. In cases where the regime wished to retain physical infrastructure and merely change the identity of the inhabitants, more bureaucratic processes were used and continue to be used, such as regulations imposing national or religious restrictions on land ownership, employment, access to health and education, and humanitarian assistance. Carefully planned and executed expulsion operations sometimes occurred virtually overnight, with large numbers of people on the run, with only the clothes on their backs. Another method of expulsion, a slower, albeit surer, one which we will examine more closely below, were large-scale construction projects that radically altered the environment – the draining of the southern marshes is the prime example – in order to accomplish military, political, or even economic goals. Indeed, the expulsion of the Marsh Arabs can be viewed as a form of development-induced displacement – beneath what used to be marshland lie some of the world's largest untapped oil fields."

Habitat January 2001, p1

"At 1999 Sulaimaniyah Conference the following category definition was produced: Those from Kirkuk (old and new caseload). Khanaqin, Kifri, Makhmour, Sinjar, Tala'far, Mosul and other areas. Those displaced as a result of conflict between the two major factions in Iraqi Kurdistan. People affected by conflict involving the Kurdistan Workers Party (PKK).[...] Others in collective towns including widows and children, who would like to return to places of origin if given the opportunity to do so. All other citizens of Iraq displaced/expelled for political reasons."

USCR, 2000

"Many residents of northern Iraq have been displaced multiple times. In 1998, the UN Center for Human Settlements (UN-Habitat) estimated that more than 1 million people (out of a population of 3 million) were internally displaced in the three northern governorates at one time or another. At least 100,000 of the displaced in the north are people from the government-controlled regions of Kirkuk, Khanaqin, and Sinjar bordering the north who have been expelled into the north in recent

years, including 1999. Those displaced in northern Iraq also include people previously displaced from government-controlled Iraq; about half of the displaced were forced out before 1991, many during the 'Anfal' campaign in the late 1980s when Baghdad forces wiped out about 4,500 Kurdish villages, including virtually all villages near the borders of Turkey and Iran. The rest of the displaced have been uprooted from one part of northern Iraq to another by factional Kurdish infighting or, for people living in border areas, by incursions or shelling from outside the Kurdish-controlled region by Turkish, Iranian, or Iraqi government forces."

Aquilla Lawrence, Summer 2000

"About 900,000 internal refugees – as much as a third of the region's population – are scattered across Iraqi Kurdistan. Some of them have been displaced several times in the last twenty years by violence between the Kurds here and Turkey. Some are unable to return home because the soil is still strewn with landmines. About 200 people each month are killed or maimed by mines, according to the UN de-miners."

UNHCR/ACCORD, 14 November 2000

"The other kind of displacement happened in Northern Iraq after the conflict between the PUK and the KDP, especially after the KDP gained the control over Arbil City, which had been in the hands of the PUK since 1995. A forcible exchange of population took place from Arbil City to Sulaymaniyah City and vice versa, affecting around 50,000-55,000 people respectively (100,000-110,000 all in all). These people were sent to the other town just because they were accused of being affiliated with the other party. They lost their social status and support as well as their property: houses, cars, land."

AI, 24 November 2000

"Since mid-1997 thousands of Kurds and a number of other non-Arabs, including Turkmen and Assyrians, who have lived all their lives in the Kirkuk region, which is about 260 kilometers north of Baghdad, have been expelled to the Kurdish provinces in the north controlled by the Kurdistan Democratic Party (KDP) and the Patriotic Union of Kurdistan (PUK) because of their ethnic origin and because of Kirkuk's strategic location as well as its oil fields. The authorities have given Kurdish families targeted the choice of either going to Southern Iraq or to the Kurdish provinces. If the families choose Southern Iraq then they are allowed to take some of their possessions with them. However, if they choose to go to the north their properties, as well as their food rationing cards are confiscated by the authorities. The majority of the families have reportedly chosen to go north. [...]" Once in Northern Iraq some of the families expelled tried to live with relatives. The majority, however, have been resettled in camps such as the al-Salam camp near Chamchamal and Benislawa camp near Erbil. The KDP, PUK and UN agencies have provided them with basic food, tents, blankets and other items. Their empty properties in the Kirkuk region and in Khanaqeen are given by the authorities to pro-government Arabs brought from other regions in Iraq. Thus far thousands of Arabs from other regions in Iraq have been resettled in the Kirkuk governorate."

UNHCR, June 2000, p.12

"Forced displacement of the Turkomen was reported to have resumed in the last months of 1998, particularly in the Kirkuk area. The head of the coalition of the Turkoman parties stated that about 5,000 evicted Turkomans were living in 'sub-human conditions in Northern Iraq.'"

US DOS, 25 February 2000

"In Kirkuk the regime periodically sealed off entire districts and conducted day-long, house-to-house searches, evidently as part of its 'Arabization' campaign to harass, and expel ethnic Kurds and Turkomen from the region. Government officials also take hostage children from families of minority groups to intimidate their families into leaving their home regions. [...] As part of its policy, the authorities demolished the houses and detained and executed family members of Shi'a who protested government actions."

AI, 24 November 2000:

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HRW, December 2000:

"In 2000 "The government continued its forced expulsion of Kurds and Turkmen from Kirkuk, Khaniqin, Makhmour, Sinjar, Tuz Khormatu, and other districts as part of its 'Arabization' program.[...] Over 800 people were reportedly expelled between January and June, bringing the total number of those expelled since 1991 to over 94,000, according to Kurdish opposition sources."

AI, 24 November 1999

"The Kirkuk Governorate was renamed 'Al-Ta'mim' which means in arabic 'nationalization'. On 12 January 1998 a decree was issued by the Governorate of al-Ta'mim ordering the expulsion of 1468 families from the governorate because of its 'very important security status and geographical location'. The decree was based on directives issued by the office of the President of Iraq. It sets a date, between 15 April 1998 and 15 June 1998, for the deportation of the 1468 families. The decree gives details of the number of families to be expelled from different neighbourhoods in the Kirkuk governorate. It also includes details of the procedure to be followed by the security forces, it states:

1. One member of each Kurdish family expelled to the northern provinces should be detained;
2. Confiscation of property belonging to the expelled;
3. Confiscation of ration cards;
4. Confiscation of membership cards to government agencies;
5. Notification of the decree to: the head of security of each district; the Ba'ath party official of each district, the chief of each village. [...] The expulsion of Kurdish families and other non-Arabs continued throughout 1998 and 1999. The same procedure described above is followed on each occasion."

UN SC, 19 November 1998, Sect. IV

"The composition of the displaced population now includes: (a) those in collective towns who are unable to return; (b) those who do not wish to return; and (c) those displaced persons who have taken refuge in urban and semi-urban areas and who, because of their vulnerable position, require water and sewage and other infrastructure services. [...] These two groups [(a) and (c)] make up 0.8 million persons."

CHR, 26 February 1999, para.24-28

"The Government of Iraq has reportedly been using other measures aimed at encouraging departures and preventing displaced persons from returning. The Government has reportedly

declared the area around Kirkuk, including the oil-fields and production facilities, a military and security zone and has mined the area to impede transit. The roads into the area have been heavily fortified with military checkpoints. The regime has also changed the administrative composition of Kirkuk governorate, eliminating four predominantly Kurdish districts and effectively reducing the Kurdish population to minority status. Most recently, the Iraqi Government has reportedly evicted the residents of Kirkuk's citadel and begun the demolition of this ancient Kurdish site, claiming that the envisioned new construction will generate considerable tourist revenue."

CHR, 10 March 1998

"According to several persons interviewed, Baath Party members from the local offices of the Baath Party in the city of Kirkuk are responsible for implementing the decision to forcibly remove the targeted families. They are in possession of lists of people living in the neighbourhood under their 'jurisdiction'. These lists contain information on each household of the neighbourhood. Baath Party members are responsible for implementation of the decisions. Aside from the various human rights which are violated in the process of forced displacement (e.g. the rights to privacy, property, movement and personal integrity), the Special Rapporteur [of the Commission on Human Rights on the Situation of Human Rights in Iraq] observes that the practice of forced displacement as carried out by the Baath Party is an extralegal use of self-ascribed authority; to the extent that the ostensible authorities permit the practice to occur, the Baath Party and its members are effectively granted impunity.

According to testimony received, the following is the typical experience of those families subjected to forced displacement. Once the decision is taken to expel a family, Baath Party members present themselves at the residence of that particular family and order them to leave the area within 24 to 48 hours. In order to ensure that the family will effectively move, Baath Party members usually withhold the identification cards of the members of the family. In some cases a member of the family is put in detention in order to accelerate the process. Once the family is ready to leave their home, they need to pass by the local police station and fill in a form stating that they are voluntarily changing their residence. Their identification cards are only then returned to them and if a member of the family was detained, only then is he or she released. [...] Iraqi authorities used to issue a 'displacement order' to families who were required to leave. However, it was reported that the Government of Iraq stopped this practice when they learned that the document was being used by asylum seekers outside Iraq as proof of their claims."

For more information on forced displacement from Kirkuk, please see Zanger, Maggy, April 2002, "Refugees in Their Own Country, War Without Borders", Middle East Report 222, Spring 2002, [External Link]

Noori Talabany, *Iraq's Policy of Ethnic Cleansing: Onslaught to Change National/Demographic Characteristics of the Kirkuk Region* (1999) .

Human Rights Watch, *Iraq's Crime of Genocide: The Anfal Campaign Against the Kurds*, New Haven and London, 1995.

Human Rights Watch, *Iraq: Forcible Expulsion of Ethnic Minorities* (New York: Human Rights Watch, March 2003).

The Iraq Foundation, "Ethnic Cleansing in Kirkuk," January 26, 2001,

[Ali Hassan al-Majid and the Basra Massacre of 1999, HRW, February 2005](#) and the "[Anfal Campaign](#)" maps

Forced displacement pre-dating 2003 in Southern Iraq due to former Iraqi regime sectarian and political persecution

- During the Iran-Iraq war in the 1980s, many Marsh Arabs were forced to flee due to military operations and the presence of Iranian soldiers in the marsh area. Others were forced to flee in the 1990s for political reasons, many Marsh Arabs perceived to be allied with Shi'a opponents of the former regime. In 1991, it was believed that some 250,000 people were living in the Marsh area, today it is estimated only 10,000-20,000 remain. Expulsions from homes has been used as a punishment, to obtain economic resources or undermine political opposition. Overwhelming force used to achieve expulsions and destroy villages, but more bureaucratic methods used if villages used for Arab inhabitants
- During the Iran-Iraq war in the 1980s, many Marsh Arabs were forced to flee due to military operations and the presence of Iranian soldiers in the marsh area. Others were forced to flee in the 1990s for political reasons, many Marsh Arabs perceived to be allied with Shi'a opponents of the former regime. In 1991, it was believed that some 250,000 people were living in the Marsh area, down to 10,000-20,000 remain ten years later.
- To escape government repression aimed at Shi'a uprising in 1991, many insurgents fled to the marsh areas in central and southern Iraq. Government drained the marshes to regain control of the region and most of an estimated 200,000 'Marsh Arabs' (1993 estimate) have been displaced, or have had to abandon their traditional livelihoods. Iraqi government adopted a compulsory resettlement program for the Marsh Arabs in 1992. The Special Rapporteur of the UN Commission on Human Rights Iraq has received lists of allegedly destroyed villages and houses, located in the marsh area and in Baghdad. The government has also reportedly forced the Shi'a population from the marshlands to relocate in the Kirkuk area
- Human Rights Watch believes that many of the acts of the Iraqi government's systematic repression of the Marsh Arabs constitute a crime against humanity. Displacement was used as a strategy to punish and subdue recalcitrant populations, to secure valuable economic resources and to undermine the growth of political opposition
- In the Marsh area, government forces have burned and shelled villages, and built dams to divert water from the marshes to depopulate the area. Population in the Marsh area had to submit to compulsory resettlement within Iraq, leave the country, or remain in the drained marshlands, deprived of their water-based means of livelihood. UNEP in 2003 would predict the collapse of the wetland system as result of these actions if urgent action was not undertaken.
- In addition, families perceived to be opposed to the regime, families who have relatives outside Iraq or in southern Iraq and those who have relatives in detention or executed are said to be the first targeted in the process of forced displacement. Baath Party members are responsible for ordering the eviction of families viewed as opponents of the Iraqi regime

UN Cluster 8 on IDPs and Refugees and UNCT August 2004:

"Tensions between the former Government (largely Sunni) and the majority Shi'a population often mirrored the events in the north. There were numerous confrontations between the Government and the Shi'a population culminating in the 1991 Shi'a uprising following the Gulf War. The military crushed the revolt forcing many Shi'a to flee to the northern protected areas, into Iran, or deep the southern marshlands. In 1992 the Government implemented a housing programme to move some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna. The forced resettlement policy allowed the marsh drainage programme to begin. The Government ordered the destruction of the southern villages and had dams built to divert water from the marshes allowing the army to infiltrate areas where many Shi'a had found refuge.

Over ninety percent of the Marshlands were destroyed by the project creating a socio-environmental catastrophe of epic proportions. Along with the destruction of the marshes, the livelihood and homes of the people were destroyed. In 1991, it was believed there were 250,000 people living in the Marshes. Today it is estimated a mere 10,000-20,000 remain. Most have established makeshift settlements at or near their original marsh locations and a minority have

resettled in and around the towns. Marsh Arab IDPs have been located as far north as Baghdad, however the numbers decline significantly as distance increases from the marshlands. Differing opinions exist regarding durable solutions for the Marsh Arabs. The older generation want to see the marshes re-flooded to allow a return to their traditional way of life. The younger generation wants to have stable employment, secure agriculture and better access to services, and question a return to their traditional lifestyle. This remains to be a major national challenge which requires a comprehensive policy and national strategy led by the Iraqis and supported by the international community including the United Nations.”

HRW, January 2003, p2:

With an estimated population of 200,000 – 300,000 persons the Marsh Arabs are divided into a large number of tribes and further sub-divided into clans [...]. For the areas visited during this assessment, information on the tribe concentrations and an estimate of number of families was collected. The average family size was found to be 10 persons. It is worthy of note as the marsh dwellers live in extended family structures, a household often includes two to four families. Historically the Mesopotamian marshlands have constituted an integral part of south-west Asia's largest river system, which is centered on the Tigris and the Euphrates. However, since the 1950's the basin's ecology has been fundamentally altered by the construction of dams and drainage schemes (including major projects in Turkey, where the Tigris rises), which have substantially reduced the water supply and eliminated the flood pulses that have historically sustained the wetland ecosystems in the lower basin. Following the end of the Iran-Iraq War, the diking and diversion of Euphrates waters into the canal originally intended solely for saline irrigation waters greatly accelerated the drying out of the Al Hammar marshes to the north-west of Al Basrah [...]. A large swathe of the Central Marshes was drained to facilitate the movement of military units during the Iran-Iraq War and in 1992 a major drainage project was initiated in this region. In parallel, the marshlands hold almost 50% of the total proven oil reserves in Iraq. According to UNEP both the Al Hammar and the Central Marshes no longer exist. By 1994, following the canalization of the two main Tigris tributaries replenishing the Al Hawizeh marshes, these were drying out quite rapidly – the same year the Iraqi government intensified its campaign against the Marsh Arabs and dissidents who had been taking refuge in the inaccessible marshlands. The above drainage projects and the coincidental impoundment of the Ataturk Dam (which reduced the flow of the Euphrates to an all-time low) caused extensive areas of the marshlands to disappear completely, to be replaced by bare land and salt crusts which are incapable of supporting traditional Marsh Arab society, the existence of which has, from time immemorial, been entirely dependent on the wetland ecosystem. In 1973 the marshlands covered an area of 8,926 km², extending to 20,000 km² during seasonal inundation of land. By the year 2000 this had been reduced to just 1,297km². Although they are regarded as a semi-nomadic people, many Marsh Arabs had settled in villages located on the edges of the marshes or on artificial floating islands in the wetlands themselves. Their main income-generating activities were fisheries, livestock breeding, hunting and woven reed mats which were sold in markets throughout Iraq.

During the Iran-Iraq war (1980-88) the marshes, particularly the Al Hawizeh Marshes (lying to the south-east of Al Amarah) became a front-line combat zone and many of the Marsh Arabs were forced to flee both the encroaching Iranian soldiers and the military operations of their own troops, which included the electrification of the marsh waters. In 1991, in the immediate aftermath of the Gulf War, some Marsh Arabs joined in an uprising by southern Shi'a against the Iraqi regime. This uprising was brutally suppressed, many Marsh Arabs, and other Shi'a who had taken refuge amongst them were killed and their villages destroyed. As the marshlands began to dry out in the early 1990's the Marsh Arabs began to flee in even greater numbers. During the 1990's the government also instituted a policy of forced resettlement, moving many Shi'a from the southern marshlands to replace the Kurds, Turkomen and Assyrians who had been expelled from the major northern cities.

Whether the traditional marshland environment and society can ever be recreated is the subject of some debate. In the meantime, the most Marsh Arabs continue to endure the privations suffered by all vulnerable peoples within this desperately poor country. Today few Marsh Arabs (perhaps only 10,000) are living in their traditional marshlands, less than 10% of which can now sustain their traditional way of life. Estimates of the number of internally displaced Marsh Arabs range from 100,000 to 200,000 and up to 100,000 are believed to have left the country as refugees, of which 40,000 are currently in Iran and have been known to cross back and forth over the border." (UNOCHI, June 2003)

...."In April 1992 (as part of the plan to "regroup the marsh villages on dry land" [...]), the Iraqi National Assembly approved a new housing program for the Ma'dan. According to then speaker of the Iraqi parliament, Sa'di Mahdi Saleh, the government's intention was to relocate some 3,000-4,000 inhabitants of the marshes to houses constructed along the highway between Basra and al-Qurna, to "provide them with electricity, clean water, schools and medical care," and to "make them good citizens." Saleh told the media that the plan approved by parliament "does not specify [whether the families to be relocated] will be given a choice to move or stay ... whether we say it is compulsory or optional is of no significance to them". The initiative was widely understood as a means through which the government could force political and military fugitives out of hiding, enable its program of drainage of the marshes to proceed without hindrance, and subjugate the local population once and for all.

Moreover, the forced relocation served as a means of depriving the marsh villagers of all sources of economic livelihood—mirroring precisely what had happened to the Kurds when they were forcibly relocated to resettlement camps in the 1980s as a prelude to the Anfal campaign. The parallel between the Kurds and the Ma'dan was not lost on the speaker of the parliament. Referring to the Kurds, Saleh told the Reuters news agency: 'At the time we evacuated those people and put them in complexes and provided them with amenities, [but] for political reasons there was a row against us in the West. Concerning the marsh people the West should help us to move their homes, build schools for them, improve their health conditions, instead of criticizing. America wiped the Red Indians off the face of the earth and nobody raised an eyebrow.'

The forced resettlement program in the marshes was accompanied by a counterinsurgency campaign that included indiscriminate attacks by artillery, helicopter gunships and fixed-wing aircraft on villages. The attacks were reportedly accompanied by the arrest and execution of civilians, including tribal leaders, the destruction of property and livestock, and the razing of entire villages. Those targeted included whole families that had refused to vacate their homes. The waves of arrests were soon followed by reports of mass summary executions. Among the reports received by Human Rights Watch at the time was one incident involving the execution of some 2,500 villagers in August 1992. The victims, among them women and children, were rounded up in the marshes of al-Chibayish (west of al-Qurna) together with captured fighters of the opposition SCIRI. According to testimony obtained by Human Rights Watch, including that of a survivor, they were taken to an army camp in northern Iraq, where they were executed over a period of about two weeks. The UN special rapporteur on Iraq detailed similar reports he had received."

"In 1993, Human Rights Watch estimated the rural population of the marshlands to be around 200,000, which took into account the huge amount of army deserters and political opponents seeking shelter in the region after 1991. Today, there may be as few as 20,000 of the original inhabitants remaining, the rest having fled or migrated to Iran and elsewhere, while an estimated minimum of 100,000 have become internally displaced in Iraq."

"Human Rights Watch believes that many of the acts of the Iraqi government's systematic repression of the Marsh Arabs constitute a crime against humanity. The crimes were committed as part of a widespread and systematic attack against the civilian population of the Marsh Arabs

during the decade of the 1990s. The attack involved the multiple commissions of acts in furtherance of state policy. The underlying crimes include:

- Murder of thousands of unarmed civilians following the abortive March 1991 uprising, through summary execution and the indiscriminate bombardment and shelling of residential areas in towns and villages in the vicinity of Basra, al-Nasiriyya, al-'Amara and across the marshes region;
- Forcible population transfer—coercive expulsion of part of the Marsh Arab population from their native villages to settlements on dry land on the outskirts of the marshes and along major highways to facilitate government control over them;
- Arbitrary and prolonged imprisonment of thousands who had been arrested during and in the aftermath of military bombardment of residential areas in the marshes, including civilians and others suspected of anti- government activities;
- Torture of Marsh Arab detainees held in government custody, in order to extract information from them, as punishment, and as a means to spread fear among the local population;
- Enforced disappearances of many of the Marsh Arabs arrested during the 1990s, whose fate and whereabouts remain unresolved to date;
- Persecution of the Marsh Arabs through the intentional and severe deprivation of their fundamental rights on the basis of their religious and political identity as a group."

Footnote

[1] Information in this section was paraphrased from the UNEP Report 2001: The Mesopotamian Marshlands; The Demise of an Ecosystem. Oil comment: Human Rights Watch, "The Iraqi Government Assault on the Marsh Arabs." January, 2003.

UNEP, April 2003:

"The entire Marsh Arab community has suffered huge social and economic upheaval as a result of the marshlands' destruction, with about 40,000 people forced to flee to southwest Iran and hundreds of thousands internally displaced within Iraq. The impact on biodiversity has also been catastrophic. A new study conducted by UNEP indicates that, of the remnant wetlands surviving in 2000, one-third had disappeared by 2002. UNEP experts predict that unless urgent action is taken to reverse the trend and rehabilitate the marshlands, the entire wetland system is likely to be lost within three to five years. This will only be feasible through regional cooperation."

USCR 2000, p.188:

"The Iraqi government has long been openly hostile to the Marsh Arabs, or *Maadan*, people living in the marshlands between the Tigris and Euphrates rivers in a triangle-shaped region formed by the cities of Amarah, Basra, and Nasiriyah. Following the suppression of the 1991 Shi'a uprising in southern Iraq, many opponents of the Baghdad regime fled to the marshes, and the Iraqi government intensified a pacification campaign it had been directing toward the *Maadan* since 1989. Since 1991, government forces have burned and shelled villages, and built dams to divert water from the marshes to depopulate the area. Repressive policies in 1999 included diverting water from the marshes and denying food rations to thousands of people allegedly associated with opposition groups."

AMAR, 21 May 2001, p.6:

"The construction of dams, forcible migration of communities, the draining of the Marshlands that was carried out in the 1990s was an extension of earlier trends. However an obsession for security drove the agenda. By depopulating the Marshlands, by reducing the area to desert, the region was no longer able to provide a sustainable refuge for dissidents. Saddam Hussein was able to impose his own will on the refractory people of the Marshlands. The drainage was carried out with no regard to international obligations concerning water rights or the environment. [...] The Marsh Dwellers had limited options. Like hundreds of thousands of other Iraqis they could submit to compulsory resettlement in an environment not their own. Or they could leave the

country as refugees, as about 200,000 did. Or they could remain in the drained Marshlands, deprived of their inherited water-based means of livelihood."

Refugee International, 21 November 2003

"In southern Iraq, the displaced are primarily Marsh Arabs, forced off their lands by politically motivated reclamation projects in the 1990s. In addition to tens of thousands of Marsh Arabs who are refugees in Iran, tens of thousands more are displaced in Iraq. USAID has begun a project to restore at least part of the 20,000 square kilometers the marshes previously covered."

Fawcett & Tanner, Oct 02, p31

"As to where the Marsh Arabs went, little is known. The British NGO AMAR says some 40,000 people made it into refugee camps in Iran. Some tens of thousands may still be trying to scratch a living out of whatever remains of the marshes. Some were certainly killed by the Iraqi security forces during the 'drainage' operations. But upwards of 100,000 (see numbers section below) must be displaced. Neighboring urban centers such as an-Nasiriyah and al-Amara are thought to hold some people. Larger centers like Baghdad and Basra may provide havens as family members had been migrating there for decades. Finally, it is thought that some Marsh Arabs may be part of the people being sent north to inhabit former Kurd and Turkmen properties, under the Arabization campaign, although it is unclear how the necessary selection process unfolds."

US DOS, 25 February 2000, "Respect for human rights, g."

"The practice of the security services to force large numbers of Shi'a inhabitants of the southern marshes to relocate to major southern cities and to areas along the Iranian border probably is connected to the destruction of villages. Special Rapporteur van der Stoep described this practice in his February report, and added that many other persons were transferred to detention centers and prisons in central Iraq, primarily in Baghdad.....Thousands of Gulf War refugees who sought haven in Baghdad were relocated forcibly to their home provinces."

US DOS, 5 September 2000, Sect.I

"Security forces also have forced Shi'a inhabitants of the southern marshes to relocate to major southern cities and to areas along the Iranian border. [...] The Government reportedly also continued to move forcibly Shi'a populations from the south to the north to replace Kurds, Turkomen, and Assyrians, who had been expelled forcibly from major cities."

UN GA, 14 October 1999, para.15-19

"Reports of the destruction of civilian settlements have been received by the Special Rapporteur on an intermittent basis since 1991. The Special Rapporteur [of the Commission on Human Rights on the situation of human rights in Iraq] has received lists of allegedly destroyed villages and houses, located in many parts of the vast marsh area (now mainly drained), as well as in Baghdad. It was reported that, in late March 1999, Armoured Division Six carried out operations surrounding and bombarding a number of residential areas of some of the tribes living in the Governorate of Basra. Such operations reportedly took place in the areas of Al-Ghameigh, Bait Wafi and Bait Sayed Noor. Since the beginning of 1999, the Special Rapporteur has regularly received reports indicating that the Government of Iraq has been destroying the houses of opponents with bulldozers, operating during the daytime in full view of the occupants. [...] The Special Rapporteur has received a list of names of hundreds of people so affected, indicating their addresses, the date of destruction of their homes and the action taken against the families (arrests, executions, expulsions etc.)."

Dammers, 1998, p.184

"Thousands of non-Kurdish opponents of the Saddam Hussein regime have also sought refuge, or a base for continuing their opposition, in the Kurdish-controlled regions of Iraq, particularly since the Gulf War. The entry of Iraqi government troops and agents into these regions in 1996 left them particularly vulnerable - many were captured or killed, particularly in Arbil. In late 1997,

the Iraqi National Congress reported that around 2000 non-Kurdish political displaced were still sheltering in PUK-controlled regions, mainly in Suleimaniyah. Many reportedly had difficulty finding work, and were often regarded with suspicion (as potential government agents) by the PUK authorities."

See also:

[The AMAR International Case Study: The Marsh Arabs of Southern Iraq Conference, May 2006 Crimes of War Project, "The Iraqi Marshlands: A Pre-war perspective"](#)

Non-conflict induced displacement

Flooding and consecutive years of draught as source of displacement (2004-2009)

- Flash floods have repeatedly caused displacement. In November 2009, flash flooding would lead to the displacement of 100s of families. More than 5,000 people displaced in March 2004 by flooding in the Marshlands area. Around 100 families were displaced by floods in January 2006 and around 36,000 people (6,000 families) displaced due to flooding in the south in February 2006.
- There has also been drought induced displacement in various parts in northern Iraq following two years of consecutive drought. In November 2009, UN reported an estimated 4,250 families were displaced mostly in Kirkuk, Ninewa and Salaheldin and draught related displacement has also been reported in Missan and Basra (IOM, October 2009; OCHA, November 2009; IRIN, September 2009).
- Few agencies have been monitoring the situation of draught related displacement. Draught affected displaced are not registered by the local authorities, nor addressed systematically by humanitarian community. The last three years of consecutive draught has entailed rural-urban displacement from draught affected areas. These new arrivals though corresponding to small percentage of overall displacement place additional pressure on already depleted urban housing and stretches public service availability.

Brookings Bern, February 2010

Less attention has so far been given to the ongoing reduction of arable land as an additional source of further displacement, which is likely to be both temporary and longer term in nature. Urban centers such as, for example, Mosul have already started to feel the impact of incoming farmers obliged to leave their rural existence due to desertification of their lands. Their arrival puts increased pressures on already depleted urban housing stock and further strains stretched public services. To the author's knowledge, no comprehensive data exist about the current scope of this type of displacement. Equally, no projections as to how this phenomenon is likely to develop in the coming years appear to have been made. Given the scope and size of the land and property issue that Iraq already faces today, such data collection and projection efforts are urgently needed, so as to allow the Iraqi Government to begin developing the necessary policies.

UN OCHA, December 2009

Fortunately, 2009 has not seen major displacement of conflict-affected civilians in Iraq, although there has been drought-induced migration in parts of northern Iraq (Ninewa, Kirkuk and Salah al-Din) and small-scale movements in other governorates related to the shortage of potable water. An IOM assessment of environment-related displacement identified approximately 4,250 families displaced due to lack of appropriate water sources during the past three years

UNAMI, and UN OCHA, November 2009

In the Erbil and Dahuk Governorates over 3,000 persons (500 families) across ten locations in the mountainous districts of Mergasur, Rawanduz, Choman, Zhakho, Sumel, Aqra were affected by flash flooding following heavy rains and winds on 1 Nov 2009. Two persons died in the incident and several others were injured.

UNAMI, December and January 2006, p.2

"In mid January approximately 100 families were displaced from their houses in Basrah Governorate as a result of floods"

IRIN, 21 February 2006

"Nearly 6,000 families forced to leave their homes in the wake of heavy flooding in northern and southeastern Iraq earlier this month remain displaced, mostly due to the destruction of their houses. "The devastation by heavy rains of hundreds of houses countrywide has worsened the situation and prevented families from going back, forcing them to stay in improvised camps or with relatives in safe areas," said Ferdous al-Abadi, spokeswoman for the Iraq Red Crescent Society (IRCS). Nearly 150 houses in Missan governorate and 75 in Salahuddine and Diala governorates have been totally destroyed by the flooding, while more than 900 homes have been partially damaged countrywide, according to the IRCS. Continuous rains, which fell for over two weeks in the first half of February, finally stopped last week. According to al-Abadi, a total of 7,500 families were displaced in different areas of the country when flooding began on 5 February, with some 1,500 returning to their homes in northern areas where the fall was less heavy. "Around 1,000 families are still staying in camps improvised by the IRCS," she said, adding that the relief effort had been facilitated by the "good relationship between tribes" in the north of the country. The IRCS has received supplies – including medicines, food parcels, blankets and heaters – from a number of aid organisations, which are expected to last for a month. Nevertheless, the organisation is also calling on the government to find a speedy solution for people whose homes were destroyed. "We call on the Iraqi government to address the problems of the displaced and offer help," al-Abadi said."

UNCT, August 2004

"Floods in the lower southern Governorates of Missan, Thi'Qar and Muthana are an almost annual occurrence when the waters of the Euphrates rise. The former Marshlands would normally expand in size during the flood season absorbing most of the floodwaters. However, since the drainage of the marshes, populations now settled on dry marsh lands often find themselves displaced by the rising waters. In March 2004, the grid of dykes set up to drain the marshes broke in several locations resulting in the displacement of over 5,000 persons and threatened to displace a further 10,000 people."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical Security

General security situation – despite improvements insecurity remains high. (2003-2009)

- Insecurity as result of generalised violence and military operations central and south predominated in 2003-2005, then to lead to sectarian violence in 2006-2007. Though the level of sectarian violence and general insecurity has abated since 2007 and 2008, the level of insecurity in 2009 remains high nevertheless attesting to pervasive impunity to human rights violations and limits of Government capacity. UN has noted that the security gains made during the second half of 2008 have not continued at the same pace during 2009, and ICRC has estimated that per month there are 500 deaths and 2,000 injured due to endemic violence. (ICRC October 2009; AI, March 2008; OCHA, December 2009)
- In 2009, the UN and the humanitarian community continue to report human rights abuses against civilians by militias, criminal gangs, and security and military forces (UNAMI, April 2008; UNAMI December 2009). Kidnappings, assassinations, forced recruitment, occurrence of large explosions, presence of unexploded ordinances and mines, sexual and gender based violence and generalised criminality and violence are still witnessed by IDPs and host communities.
- Most violence in 2005-2007 has centred around Baghdad and military operations - Military operations have been extensive in various parts of Iraq including in Baghdad, and in Anbar and Diyala province, Ramadi, Fallujah and Heet amongst other locations since 2003. Large movements of populations have occurred within the Baghdad because of kidnappings, extra-judicial killings, dropping of threatening leaflets, destruction of properties, and intimidation. Many victims were kidnapped by militias at improvised checkpoints and then extra-judicially executed. Numerous attacks killed and maimed civilians. This also included attacks against minorities and Palestinian refugees as well as cultural symbols, mosques and churches of different denominations.
- Militias committed serious violations of international humanitarian law and grave human rights abuses - The sunni and shi'ia militias have 'emptied the designated areas of other sectarian presence, while girding presence on protection afforded in endless spiral of violence. There numerous reports of militia and death squads were operating within the police ranks or in complicity with them. The Iraqi security forces were frequently accused of violations including torture, kidnappings, and extortion.
- In early 2007, a new strategy was outlined consisting to sending extra troops, which with cessation of hostilities announced by Moqtada Al Sadre militias in August 2007, then extended indefinitely in mid 2008 and establishment in late 2006 pro-government sunni armed militia, Awakening Councils (Majdaless al Sahwa) were established representing sunni armed militia. (ICG, April 2008) The decline in violence is also largely attributed to the general homogenisation on sectarian basis of Baghdad where most of the violence was situation. This has also followed the establishment of protected enclaves through construction of cement walls partitioning certain areas of Baghdad.
- In 2008 to 2009 large military operations would take place in Basra, and Sadr City of Baghdad, Mosul, Amara and Baquba. Military operations remain marred by serious fighting, curfews, roadblocks and access difficulties for humanitarian assistance. These are accompanied with restrictions on freedom of movement, excessive use of force, theft and raid

- Iraq is one of the most mine/uxo affected countries in the world. A 2006 Handicap International report indicated that at least 55 million cluster bombs were dropped, which would make Iraq the world's most contaminated country with this lethal UXO. There are approximately 10 million mines in Iraq, some dating as far back as WWII. A landmine survey conducted by the Iraqi authorities in June 2005 found a higher prevalence of contaminated areas in the North but more landmine victims in the South. New mines were planted in areas of return before and during the Coalition Forces intervention, and fighting since then, particularly in populated urban areas, has left many UXOs. Insurgency and sectarian civil war has significantly increased the presence of mines in urban areas including disused abandoned residences.
- There is however no effective casualty surveillance in Iraq. Iraq's National Mine Action Authority (NMAA) under the Ministry of Environment in June 2007 and has declared in early 2008 plans for demining. In 2004 the Kurdish Regional Government assumed responsibility for mine action in the three northern governorates of Erbil, Dahuk and Sulaymaniyah. Iraq acceded to the Mine Ban Treaty on 15 August 2007
- There are no clear figures on the death toll since 2003. According to largest survey of civilian deaths in Iraq, published in early January 2008, 151,000 people were killed between March 2003 and June 2006. The survey was carried out by the World Health Organization (WHO) and Iraq's Health Ministry. Until the end of 2007, figures published on civilian casualties had ranged from 601,027 deaths, reported by US researchers in 2006 in the medical Lancet publication in 2006, to 47,668 by the Iraq Body Count which tracks civilian deaths since the beginning of the conflict in 2003. The governments of Iraq and the United States denied the validity of the Lancet study

UN OCHA, December 2009

Iraq in 2009 has become a more secure and stable country when compared to the peak of sectarian violence and counter-insurgency operations in August 2007, although the security risks are still considerably higher than in 2003 to 2004. Levels of violence have dropped by more than 85% compared to 2006-2007. Despite these visible improvements, Iraq is still a country affected by significant levels of violence, with a considerable impact on civilian lives. The security gains made during the second half of 2008 have not continued at the same pace during 2009, with the number of security incidents hovering around the same level of 27 incidents per day since November 2008. Violent incidents continue to occur in Baghdad and Ninewa, which have witnessed several mass casualty attacks during 2009. While their number and frequency has decreased considerably, the four largest mass-casualty bombings in 2009 claimed over 385 lives.¹² Overall, there were over 4,500 civilian victims of violence between January and October 2009. Low-level violence by criminal gangs and armed groups continues. Of particular concern is the situation in Kirkuk, Mosul and other areas among the disputed southern boundary of the Kurdistan Region, where low-level violence between various ethnic groups persists and is exacerbated by non-state armed groups and insurgent groups.

International Committee of the Red Cross, August 2009

There is a common perception that the armed conflict in Iraq is largely over. However, widespread violence and a lack of respect for human life continue to affect the Iraqi people. Despite the decrease in the number of deaths and injuries this year compared with 2006 and 2007, violence remains a feature of everyday life. Now the concern is that people in Iraq and elsewhere may come to accept this high level of insecurity as somehow "normal" and

unavoidable. Currently, about 500 people are killed on average every month and 2,000 wounded in mass explosions and indiscriminate attacks occurring mainly in Baghdad, Ninewa and Diyala governorates. Civilians are the primary victims of these incidents, which create a general sense of insecurity as anyone could be hit simply by being in the wrong place at the wrong time.

Feinstein International Centre, December 2008

While acknowledging that violence in Iraq has decreased over the last two years, most humanitarian practitioners view the narrative of success and progress currently prevailing in western capitals and media as premature, subject to serious setbacks and motivated largely by political agendas⁶. Despite tentative improvements, Iraq remains a highly unstable and conflict-prone country where, on a typical day, there are dozens of attacks in the central and southern governorates, frequently involving civilian deaths and injuries. For the moment the need for humanitarian assistance and protection has stabilized, but at a level that remains high.

Amnesty International, March 2008

At the beginning of 2007 many districts in Baghdad and many towns were no-go areas for government forces, with armed groups in almost total control. In January alone, according to Iraqi government estimates, 1,971 people died violently.⁷ This situation prompted President Bush to outline a new strategy for Iraq which involved sending more than 20,000 extra US troops to Iraq, a plan known as the “surge”, and setting economic and political benchmarks. These included the holding of provincial elections in 2007, finalizing important laws, such as the oil law, and easing the de-Ba’athification policies. The US government committed US\$1.2 billion for rebuilding and development, especially the creation of jobs, and the Iraqi government committed US\$10 billion of its funds for reconstruction. The US troops were deployed mostly in and around Baghdad and al-Anbar province. Despite the massive military deployment, the violence continued, albeit less intensively than in the previous years. By the end of June 2007, about 28,000 additional US troops had been deployed, bringing the total to more than 160,000.

Two factors have contributed to the slight improvement in the security situation in recent months. First, at the end of August 2007 Moqtada al-Sadr announced a sixmonth freeze in the activities of the Mahdi Army. He called on his offices to co-operate with the Iraqi security forces and exercise self-control. In February 2008, he extended the truce for a further six months. However, the truce did not stop members of the Mahdi Army fighting other Shi’a armed militia, in particular their arch rivals, the Badr Organization, in southern Iraq, especially in Basra in recent months. With the December 2007 withdrawal of British troops from central Basra to the airport, outside the city, and with the Iraqi government lacking capacity to assert control over the city, clashes between militia groups, who are vying for control, seem likely to increase. Second, starting from the end of 2006 US military authorities in Iraq started to encourage the setting up of Awakening Councils (*Majales al-Sahwa*), armed militia that first appeared in al-Anbar governorate to fight against al-Qa’ida and drive it out of western Iraq. These militia were armed and trained by the MNF and Iraqi forces. Their members are said to be paid US\$300 a month, considerably more than what most people earn. Their success in al-Anbar led to the mushrooming of these militia in many other areas. Reportedly, up to 76,000 people, the vast majority Sunni Muslim, have joined Awakening Councils. The US military authorities are said to be putting pressure on the Shi’a-led Iraqi government to incorporate these forces in the regular army and the police, but the government is reluctant to do so. On the political front, little progress has been achieved and attempts at fostering national reconciliation among Iraq’s diverse ethnic and religious communities have not been successful. On the contrary, both the Iraqi government and the Council of Representatives have been hampered by a boycott by several government ministers and many members of parliament who represent political parties opposed to the current government.....

In the past five years Iraqi security forces have committed gross human rights violations, including killings of civilians and torture and other ill-treatment. On many occasions, the

government has announced investigations into specific cases, but to Amnesty International's knowledge the outcomes of such investigations, if indeed they have been carried out, have not been disclosed. This has sharpened concern that Iraqi security forces can and do commit grave human rights abuses with impunity. For example, no findings were made public of investigations launched in 2005 into alleged human rights violations in an Interior Ministry detention centre in al-Jadiriya district of Baghdad. US military forces reportedly found at least 168 detainees in appalling conditions, many of whom had been tortured. The Iraqi government said that it would mount an investigation, but if it did, the findings have yet to be published. In July 2006, a report published in a US newspaper stated that the Iraqi Ministry of the Interior had carried out investigations which had revealed more than 400 incidents of police misconduct. These included "the rape of female prisoners, the release of terrorism suspects in exchange for bribes, assassinations of police officers and participation in insurgents' bombings". According to the report, most of those involved in the incidents were not punished.⁵³ Members of the MNF have also committed gross human rights violations, including unlawful killings. In some cases, investigations were conducted and charges were brought against soldiers. Some US troops have been prosecuted for abuses committed in Iraq, although others have had charges against them dropped or reduced. In such cases, investigations were conducted by the military and were not independent. In a number of cases, there have been attempts to cover up specific violations.

The largely autonomous Kurdistan region in the north, which is under the control of the KRG,⁵⁹ has been more stable than the rest of Iraq and there have been fewer acts of violence. The region is the most prosperous in Iraq and the KRG has signed a number of investment contracts with foreign companies, including for oil exploration. Despite the relative stability and prosperity, the Kurdistan region remains vulnerable to pressure and even military intervention from neighbouring countries. Turkish government forces recently launched military attacks across the northern Iraqi border in pursuit of members of the armed opposition Kurdistan Workers Party (PKK). Serious human rights violations, including arbitrary arrests, torture and the use of the death penalty, continue in the Kurdistan region. Political opponents of the Kurdish authorities are subject to arrest, and sometimes torture, by the Asayish, the KRG security forces. Two people were killed when members of Asayish opened fire on protesters in the towns of Darbandikhan and Kalar on 7 and 9 August 2006. Journalists are muzzled and often risk arrest and torture in their daily work. Scores of women have been killed in "honour crimes" and only a few of the culprits have been brought to justice.....

No one knows the exact number of civilian casualties in Iraq since the US-led invasion in March 2003. According to the latest and largest survey of civilian deaths in Iraq, published in early January 2008, 151,000 people were killed between March 2003 and June 2006. The survey was carried out by the World Health Organization (WHO) and Iraq's Health Ministry.⁵ The Iraqi government, led by Prime Minister Nuri al-Maliki, apparently accepts this estimate. Until the end of 2007, figures published on civilian casualties had ranged from 601,027 deaths, reported by US researchers in 2006 in the medical *Lancet* publication, to 47,668 by the Iraq Body Count.

According to the UN Assistance Mission for Iraq (UNAMI), 34,452 people were killed during 2006 and thousands of others were injured. Most of the killings were the result of sectarian violence, which increased sharply after 22 February 2006 when armed groups bombed al-'Askari mosque, a prominent Shi'a shrine, in the city of Samarra. No one was killed but the mosque and its golden dome were seriously damaged. In the immediate aftermath, Sunni and Shi'a religious leaders and mosques were attacked, and random mortar and bomb attacks claimed thousands of lives. Thereafter sectarian violence worsened. Thousands of civilians were forced out of their homes in mixed neighbourhoods, especially in Baghdad. Shi'a militia involved in the sectarian violence were said to be members of the Mahdi Army, followers of the prominent Shi'a religious figure Moqtada al-Sadr. His Sadrist Movement has 29 elected members in the Iraqi Council of Representatives (parliament). At the beginning of 2007 many districts in Baghdad and many towns were no-go areas for government forces, with armed groups in almost total control. In

January alone, according to Iraqi government estimates, 1,971 people died violently.⁷ This situation prompted President Bush to outline a new strategy for Iraq which involved sending more than 20,000 extra US troops to Iraq, a plan known as the “surge”, and setting economic and political benchmarks. These included the holding of provincial elections in 2007, finalizing important laws, such as the oil law, and easing the de-Ba’athification policies. The US government committed US\$1.2 billion for rebuilding and development, especially the creation of jobs, and the Iraqi government committed US\$10 billion of its funds for reconstruction. The US troops were deployed mostly in and around Baghdad and al-Anbar province. Despite the massive military deployment, the violence continued, albeit less intensively than in the previous years. By the end of June 2007, about 28,000 additional US troops had been deployed, bringing the total to more than 160,000.

International Crisis Group (ICG), 7 February 2008

Despite intensified U.S. raids and arrests, the Mahdi Army bolstered its influence and role, largely thanks to its limitless sources of income. It took over numerous Sunni possessions, including houses, villas and stores that belonged to the Baghdad bourgeoisie that prospered from the time of the Ottoman Empire. The Mahdi Army offered security by protecting the perimeter of neighbourhoods and emptying some of all Sunni presence; as a result, its popularity grew well beyond its natural social constituency (chiefly composed of young and more disadvantaged Shiites).⁴⁴ Shiites of all backgrounds experienced fear, hatred and a powerful desire for sectarian revenge and were thus drawn to the Sadrists. This included both members of the middle class and fighters from the Badr Corps who were loyal to ISCI, the Sadrists’ principal rival.⁴⁵ Baghdad’s most intense period of sectarian fighting gradually came to an end by mid-2007. The process was incremental and did not affect all neighbourhoods at once; in many instances, it simply reflected completion of sectarian cleansing. But it placed the Mahdi Army in a relatively awkward position. The sectarian confrontation had provided it with important material and symbolic resources; these began to dry up precisely at a time when the Sadrists’ territorial reach had extended far beyond its natural boundaries (Sadr City and a handful of neighbourhoods of relatively similar social makeup, such as Shu’la and Washshash). Pressure on the Mahdi Army also was stepped up as U.S. forces reached full deployment and, angered at the militia’s brutality and corruption, increasing numbers of Shiites turned against it.

UNSC, 7 March 2007

“Serious security incidents continue at a high rate, with a daily average of 160. There has been a corresponding rise in the level of casualties among civilians, the multinational force and Iraqi security forces. The conflict continues to be characterized by attacks against the multinational force and sectarian violence by insurgents and militias. They use suicide bombings, assassinations, kidnappings and indiscriminate indirect fire attacks, using both rockets and mortars. Incidents against the multinational force are particularly intense in Ramadi and Falluja, with frequent roadside ambushes and sustained attacks against police and military bases. The alleged presence of Al-Qaeda in Iraq, in Diyala and al-Anbar provinces, has been a factor in sustaining and widening the conflict. Despite the focus on the security situation in Baghdad, it is not always apparent that violent incidents take place in almost all areas of Iraq.....While the Kurdish region remains relatively calm, a series of incidents have caused concern. Following the raid on the Iranian office in Erbil by the multinational force, there was a period of tension and friction between the multinational force and the local security forces. In February 2007, Kirkuk also suffered waves of car bombings. Also in the north, Mosul and Tal Afar witnessed multiple bomb attacks.”

UNAMI, 22 November 2006

“Violence in Iraq has been increasingly acquiring a sectarian nature, with each attack generating a surge of revenge attacks in Baghdad and around the country. Sunni and Shi’a mosques have been attacked by rival factions, while mixed neighbourhoods, such as Dora, have been increasingly polarized along the Sunni-Shi’a lines. Many of the death squads and rival militias

have direct links with or are supported by influential political parties belonging to the Government and are not hiding their affiliation. There have also been frequent cases of mass kidnappings in which the victims appear extra-judicially executed, bearing signs of torture before death. In other cases, the fate or the whereabouts of the kidnapped remained unknown. Much of this violence is carried out by militias and other armed gangs, some purporting to grant the community protection that cannot be guaranteed by the state law enforcement agencies. Militias and other armed groups are said to be in control of whole areas in the east and west of Baghdad and continue to carry out illegal policing, manning of checkpoints and “dispensation of justice” through illegal trials and extra-judicial executions. They operate with almost total impunity. Attacks against minorities, Palestinian refugees and women are often allegedly carried out by such groups. Many victims are kidnapped by militias at improvised checkpoints and then extra-judicially executed. These tactics have been employed by both Sunni and Shi’a armed groups or militias to various degrees. [...]

Military operations by MNF-I and Iraqi Security Forces continue to affect the rights of the local population. In Ramadi, military clashes between MNF-I and Iraqi Security forces on one side, and insurgents on the other, continued to be reported in late September and throughout October, especially in the districts of Aziziya, Soufiya and Al- Mala’ab, and the surrounding streets such as Al-Eshreen and 17 Tammouz. MNF-I reportedly occupied three public schools in Al-Eskan district, close to Aziziya, while the Iraqi forces occupied the garden of the local hospital and used it as a recruitment centre. Adjacent residents, fearing being caught in cross-fire, had to evacuate their homes. In Fallujah, following a series of renewed bombings on 17 September, the MNF-I implemented a complete siege of the city. Those who were outside the city at the time have not been allowed to return to their homes. All the roads driving to the city were blocked for days and access became extremely difficult. On 25 October, MNF-I and Iraqi security forces carried out several targeted cordon and search operations in various parts of Baghdad, including inside the Al-Sadr City, and launched air raids on certain areas when MNF-I soldiers were attacked. In one such operation, four civilians were reportedly killed and 18 others wounded.....”

“The Iraqi security forces face formidable challenges to its professional integrity and reputation as a result of its inability to defend the Iraqi population from terrorist, sectarian or revenge attacks. Its officers and forces are frequently accused of engaging in kidnapping, torture, murder, bribery, excessive use of force, extortion and theft, which have in turn, undermined public confidence in the police. There are increasing reports of militias and death squads operating from within the police ranks or in collusion with them. There are also numerous credible reports of police officials requiring payment from would-be recruits to join the police, with the intention of payroll fraud. Consequently, absenteeism is widespread and there are reports that in Kirkuk alone, half of the 5,000 police force and 13,000 Army soldiers, are not reporting to duty at any given time, and many fail to return to duty.

HRO continues to receive reports alleging that the police forces and, to a lesser extent, the Army are infiltrated by sectarian militias. Factional divisions among militia groups have led to violent clashes over control of areas or even cities. Faced with a credibility issue, the Ministry of Interior (Mol) has recently announced that it has taken action against individuals suspected of collusion with militias and has instituted reforms to discourage corruption. Some measures were also reportedly taken to increase the ethnic and sectarian diversity of the Public Order Division (e.g. the recruitment of Christians and Turkomans in the Ninawa Province, resulting in 8,000 potential new recruits). At a press conference on 17 October, Mol Spokesperson stated that 3,000 police members were laid off since last May for human rights violation and corruption charges. Of these, 1,228 were dismissed for “breaking the law”, while nearly 2,000 more were dismissed for “dereliction of duty”. There is no indication whether these former officers will be further prosecuted for their alleged misconducts.

In response to mounting outcry relating to the operation of deaths squads with the support of or in collusion with security forces, the Iraqi authorities announced on 4 October that the 8th Police

Brigade, composed of about 700 policemen, was relieved of its duties. Reportedly, the brigade commander was relieved of his duties while a battalion commander was arrested. The brigade was accused of collusion in the 1 October kidnapping and subsequent killing of 26 workers "by men wearing police uniforms" in the area of Hay al-Amil, Baghdad, which the brigade was supposed to be protecting. Again, there is no indication as to whether the officers and forces allegedly involved in this mass kidnapping and killing will be further prosecuted. On 17 October, 2 generals, Rasheed Fleyah and Mahdi Sabeh, the country's two most senior police commanders, were removed from their posts in the first broad move against the top leadership of Iraq's special police forces. In a restructuring that has been applied to the leadership of the National Police, all brigades were brought directly under the commander of the National Police. It is yet to be seen whether the above measures will have a tangible impact on improving the state of conduct and discipline in the police force."

In its September 2006 issue, the "Lancet," an independent and authoritative journal, published a study on mortality rates in Iraq. The study estimated that 654,965 excess Iraqi deaths, including 601,027 due to violence, have occurred in Iraq since the invasion of the country in March 2003. The "confidence range" for the number of excess Iraqi deaths due to violence has been estimated between 426,369 and 793,663 with the figure of 601,027 as the median number. The study is based on interviews of 1,849 households containing 12,801 persons. The Government of the United States and Iraq as well as others, including the Iraq Body Count, an organization which has conducted other type of surveys, denied the validity of the study's findings. The Iraqi Minister of Health, in a statement made in Vienna, in early November, indicated that up to 150,000 Iraqi civilians might have been violently killed since 2003."

UNAMI, 23 May 2006

"HRO continues to receive reports of kidnappings and killings carried out by militias, alone or allegedly in association with forces of the Ministry of Interior. Most of the cases relate to actions by armed individuals wearing black clothes abducting young men, who are executed and then left at the morgue or on the streets. Some of the extra-judicial executions are said to be a form of "setting of scores" or revenge killings.

A new brand of violence has emerged, a mix of organized crime and sectarian killings, increasingly attacking businesses. Gunmen often wearing police uniforms have stormed numerous businesses since the beginning of March resulting in of workers being kidnapped or killed and money being stolen. On 29 March, 8 people working in a trading company in Baghdad, were lined-up against a wall and murdered. In other cases, armed groups wearing police uniforms have arrested individuals who have later appeared murdered although the Ministry of Interior later denied that its forces were involved in the crime. The Ministry of Interior denied its involvement in the abduction of 50 employees of the Al-Rafiden security company in east Baghdad on 9 March although the operation was carried out by individuals wearing police commando uniforms. The fate of the men remains unresolved.

[T]he actions of militias, armed and vigilante groups, and their alleged implication in human rights violations, remain a cause of great concern. Reports indicate that such groups have increased their activity in central and southern areas of the country. Allegations that sectors of the new security forces have been infiltrated by militias responding to parallel structures have continued to be voiced by Iraqi NGOs, politicians, including members of the Government, and the international community. During the reporting period, there has apparently been no action taken to effectively address this problem thus increasing a perception of growing impunity. As a result, many continue to express the view that new militias need to be created in order to guarantee personal or group safety. [...] HRO receives increasing reports about mosques and other religious sites allegedly being used as secret prisons and even operating as illegal courts. On 22 March, HRO received information that three men may have been detained inside Almuhsin mosque, allegedly used by Al-Mahdi militia to "investigate and try" individuals. The three men worked in a vegetable

market next to Sadr-city and were allegedly executed after being tortured. Summary trials and execution-style have been reported as being used by Sunni groups."

UNAMI, 18 July 2006

On 25 June, the Ministry of Health publicly acknowledged information stating that since 2003 at least 50,000 persons have been killed violently. The Baghdad morgue reportedly received 30,204 bodies from 2003 to mid-2006. Death numbering 18,933 occurred from "military clashes" and "terrorist attacks" between 5 April 2004 and 1 June 2006. The Ministry further indicated that the number of deaths is probably underreported. "[Footnote] The Region of Kurdistan is not included in these statistics.

UNSC, 5 December 2006

"Although the Government of Iraq has resolved to promote the protection of human rights and the rule of law, human rights violations continue to rise. Abuses continue to be committed by terrorists, insurgents, militias and criminal armed groups. The excessive use of force by the multinational force and the Iraqi security forces in responding to these elements is also a matter of concern. Ongoing military operations also continue to challenge the principles of international humanitarian law as civilian casualties mount and access to public services by the affected populations is limited or obstructed. The sectarian carnage has resulted in a vicious cycle of violence fuelled by revenge killings. The end result is an environment of lawlessness and insecurity.

CSM, 18 April 2008:

"In the face of ongoing confrontations between US-Iraqi forces and Shiite militias in Baghdad's Sadr City neighborhood, US forces began work this week on a concrete barrier to protect against militia intrusions. Other neighborhoods with such walls have seen marked improvement in the security situation, though some residents credit anti-Al Qaeda groups, which have been targeted by suicide bombers this week. **The New York Times** reports that US forces hope that the huge concrete wall will slow the southward spread of militia fighters from the heart of the heavily Shiite neighborhood, which has been a combat zone for the past several weeks as US and Iraqi forces fight members of Moqtada al Sadr's Mahdi Army. The construction, which began Tuesday night, is intended to turn the southern quarter of Sadr City near the international Green Zone into a protected enclave, secured by Iraqi and American forces, where the Iraqi government can undertake reconstruction efforts. [...] The barriers were implanted on Al Quds Street, a major thoroughfare that separates the Tharwa and Jamilla districts to the south from the heart of Sadr City to the north. ... Many of the Shiite militias that the American and Iraqi forces have been battling in the Tharwa area of Sadr City in the past several weeks have been infiltrating from the north. Al Quds Street has become a porous demarcation line between the American- and Iraqi-protected area to the south and the militia-controlled area to the north. US forces hope that the Iraqi government will be able to restore basic utilities such as water, electricity, and garbage collection to the neighborhood if the wall fulfills its purpose. **The Times** notes that the US has built other such walls in Baghdad, including around the Sunni neighborhood of Adhamiyah last April, and while initially controversial, they have met with some success. French international news channel **France 24** reported last month that life for civilians in Adhamiyah has indeed improved from a year ago, according to one of France 24's civilian-journalist "observers." But the anonymous civilian journalist credits a different US initiative: anti-Al Qaeda "sahwas," or Awakening Councils – Sunnis united against Al Qaeda. He writes that where in March 2007 the streets of Adhamiyah were bullet-riddled and empty, security has improved so much that just a few weeks ago the neighborhood was holding public religious celebrations and people were freely moving about. "

CSM, 20 April 2007:

"The US military is building a three-mile-long wall around Baghdad's Sunni neighborhood of Adhamiyah in order to isolated it from the surrounding Shiite areas, and prevent sectarian

attacks. Stars and Stripes, a newspaper published for the US military community serving abroad, reported Thursday that according to a military press release, personnel began construction on the wall on April 10, and will continue work "almost nightly" until it is complete. "The area the wall will protect is the largest predominately Sunni neighborhood in East Baghdad. Majority-Shiite neighborhoods surround it on three sides. Like other religiously divided regions in the city, the area has been trapped in a spiral of sectarian violence and retaliation," according to the release. In January, when the new Baghdad security plan and troop "surge" were announced, the "gated community" concept was reported by several news agencies as one tactic to be used. The Los Angeles Times indicates that the plan, which it notes is "the first [barrier in Baghdad] to be based in essence on sectarian considerations," is a local decision made by US military operating in the neighborhood.... The Times writes that US commanders say the wall is meant to prevent suicide bombers and death squads from launching attacks across sectarian lines. But the Times adds that both Sunnis and Shiites in the affected neighborhood "were united in their contempt for the imposing new structure." The Associated Press reports, however, that some Sunnis approve of the plan, though they fear it will deepen the city's sectarian divides. "

UNHCR, October 2005, pp. 73-74

"After decades of war and internal conflicts, Iraq is one of the most mine/UXO-affected countries in the world.[...] Most affected are border areas, in particular the Iran-Iraq border. Approximately one out of every five Iraqis lives within one kilometre of areas highly contaminated by the explosive remnants of war.[...] Children are exposed to a particular risk and are injured or killed on a daily basis, such as when working in the street or living in abandoned buildings. The Landmine Impact Survey (LIS), which was undertaken by the Iraqi Ministry of Planning and Development Cooperation (MoPDC)/National Mine Action Authority through the Vietnam Veterans of America Foundation, found that by 20 June 2005, 26 percent of the communities in the three Northern and 11 percent of the communities in the four Southern Governorates were contaminated (a total of 1,464 communities). Despite the higher prevalence of contaminated areas in the three Northern Governorates, the survey found many more victims in the South. The LIS established that all in all, an estimated 2400 km² is suspected mine or UXO contaminated, mostly in the South near the Iranian border. There are some 1,777 km² of contaminated area in the Governorate of Basrah alone, as it was one of the main battlegrounds during the eight-year long Iraq-Iran War.[...]

Mines and UXO represent major obstacles to reconstruction and development in certain areas.[...] They prevent people from having access to fields for grazing, land for cultivation and water for irrigation. The LIS found that in 60 percent of the accidents, the victims had been herding or farming.[...] While local communities are often aware of the approximate whereabouts of mined areas in their environment, IDPs and returnees are at particular risk as they are often not familiar with the areas they are in. In addition, they are exposed to such risks when returning to Iraq through mined border areas or upon return when they live in vacated public buildings (such as former military sites) due to a lack of housing. Many cannot return because their villages of origin have been destroyed and mined: many villages in the North were depopulated during the *Anfal* campaign and villages along the border with Iran were heavily mined during the Iraq-Iran War. [...] The UN/World Bank estimated that under the strategy and funding scenario outlined in the Joint Iraq Needs Assessment of October 2003, 'freeing northern Iraq from the impact of landmines and UXO will take eighteen years'.[...] In addition to the general dire state of the health system, [...] rehabilitation and reintegration of persons with disabilities, including mine victims, is hampered by the following factors: shortage of raw materials for prosthetic and orthotic manufacturing workshops, a lack of rehabilitation equipment and aids such as wheelchairs and crutches, a lack of transport to existing facilities, a lack of psychosocial support programmes, insufficient knowledge, training and skill among rehabilitation specialists and a lack of vocational training programmes and income generation opportunities.[...]"

UNAMI EWG, 18 January 2005

Fallujah: "According to an NGO assessment, the presence of mines and UXOs remains a major concern, as reports suggest that homes and public buildings have not been systematically cleared and demarcated and that public information campaigns have not been effectively disseminated to returnees"

See also (below):

[Families begin to flee Baghdad suburb as US-led forces strike](#), Integrated Regional Information Networks (IRIN), 7 May 2007

[Iraq's Civil War, the Sadrists and the Surge](#), International Crisis Group (ICG), 7 February 2008

[Civilian deaths rise in February but still lower than in 2007](#), Integrated Regional Information Networks (IRIN), 3 March 2008

[Protests mount over insecurity in Basra](#), Integrated Regional Information Networks (IRIN), 12 March 2008

[Shia call on Mehdi Army to take up arms again in Iraq](#), The Independent, 7 February 2008

[Five years on, more people displaced than ever before](#), International Organization for Migration (IOM), 21 March 2008

[Turkish offensive displaces villagers, damages bridges](#), Integrated Regional Information Networks (IRIN), 29 February 2008

[Turkey army says launched land offensive into Iraq](#), Reuters, 22 February 2008

[Northern Iraq: Turkish shelling causing displacement](#), United Nations High Commissioner for Refugees (UNHCR), 18 December 2007

[Baghdad, Iraqi Kurds protest alleged Iranian shelling](#), Radio Free Europe/Radio Liberty (RFE/RL), 29 August 2007

[Kurdistan to take charge of security](#), Gulf News, 30 May 2007

[Iraq's Turkmen Of Kirkuk Appeal For Government Protection](#), Agence France-Presse (AFP), 31 January 2008

[Ethnic violence forces more Arabs to flee Kirkuk](#), Integrated Regional Information Networks (IRIN), 16 September 2007

[Iraq and the Kurds: Resolving the Kirkuk Crisis](#), International Crisis Group (ICG), 19 April 2007

See also, IRIN, "Anbar province plagued by violence", 15 January 2007 and "US air strikes isolate Baqubah villagers", 16 January 2007

[Karbala fighting raises specter of broader Shi'ite clashes](#), Radio Free Europe/Radio Liberty (RFE/RL), 29 August 2007

[Bombings strike Baghdad and area to the north and south; U.S. reports 5 troops killed](#), International Herald Tribune (IHT), 25 July 2007

[Families fleeing violence set up improvised camps](#), Integrated Regional Information Networks (IRIN), 22 July 2007

[Baghdad suburb residents flee after US raids](#), Integrated Regional Information Networks (IRIN), 3 July 2007

[U.S. doubles air attacks in Iraq](#), Associated Press, 5 June 2007

[ICRC steps up humanitarian response](#), International Committee of the Red Cross (ICRC), 7 May 2007

Insecurity faced by displaced (2003-2009)

- Continuing the trend from 2007, violence appears to have decreased overall throughout the country 2008 and 2009. In 2009, despite the decline in violence, the UN and the humanitarian community continue to report human rights abuses against civilians by militias, criminal gangs, and security and military forces. Kidnappings, assassinations, forced recruitment, occurrence of large explosions, presence of unexploded ordinances and mines, sexual and gender based violence and generalised criminality and violence are still witnessed by IDPs and host communities.
- In survey of IDPs in second half of 2009, 11 per cent of IDPs and 28 per cent of IDP returnees reported being specifically targeted due to their religious and political affiliation, and

- In 2008 IDPs face general violence (Governorates of Baghdad, Diyala, Salah Al-Din, Missan and Wassit and Najaf), general criminality, detentions, kidnappings, murder/killings, large explosions, military operations as well as inter-ethnic/religious fighting (Governorates of Kirkuk and Ninewa) This includes forced recruitment by some groups. (IDP Working Group, 27 June 2008) Several Governorates saw brief increases in instability during military operations which did not result in large scale permanent displacement.
- Displacement remains mainly attributed to violence. IDPs have fled their homes for a variety of reasons, all related to security. The most commonly cited reasons for displacement among those assessed are direct threats to life (37%) and generalized violence (23%) (IOM, 30 June 2008) Displaced communities surveyed by IOM in all provinces with the exception of the Kurdish areas cited direct attacks to their lives as the primary reason for displacement. Secondary reasons included generalised violence and military operations
- In 2007, displaced people reported loss of family members, detentions, deaths and disappearances. Some 6 per cent of displaced people had been detained and 5 per cent had unaccounted for family members. Displaced people reported some restrictions in their daily movements, including checkpoints and inability to leave their homes freely due to violence.
- Returnees: Though there have been improvement in security within areas of return, targeted attacks, criminality and generalised violence continues to occur (IDP WG, November 2008; UNHCR November 2009). Though specific targeting of returnee families are few these continue to send a powerful deterrent to other IDPs wishing to return.
- Among assessed returnees in November 2009, 61 per cent reported feeling safe, whereas 38 per cent reported not always feeling safe (IOM, November 2009) compared to 40 per cent in 2008 (IOM, August 2008). In Baghdad and Diyala, returnees are reportedly provided additional protection by local authorities upon return. Insecurity however continues to be a primary determinant for returnees.
- Spontaneous returnees are particularly vulnerable because they are unaware of recently laid mines, and are particularly at risk as they are often unfamiliar with the areas where they are in. Displaced people often find shelter in public buildings where UXOs are left. Mine and unexploded ordnance were reported as a major problem to return to Fallujah (January 2005) There is a lack of rehabilitation and reintegration of persons with disabilities and shortage of rehabilitation equipment

UNHCR, December 2009

The security environment as described by the assessed groups was characterized by targeted attacks, generalized violence, criminality, arbitrary arrests and detention. During the first three months of the year, the majority of persons assessed informed that they were not directly targeted by security incidents (84% IDPs, 87% IDP returnees and 70% of refugee returnees). Those affected by security incidents stated intra-ethnic or intra-religious fighting (5% IDPs and 3% IDP returnees), large explosions (2% IDPs and 1.5% IDP returnees), forced recruitment by armed elements of children and adults (4% IDPs and 2% IDP returnees) and looting, detention, general violence, and mines/UXOs contamination. None of the groups informed being arrested by the authorities due to displacement or return. Twenty per cent of IDPs and 5% of refugee returnee reported children to be missing. Many IDPs and returnees experienced security measures and restrictions of movement due to checkpoints (38%) and curfews (13%), and fences/walls/barriers. They seemed to consider restrictions necessary in certain areas for security reasons. Since April 1st, the majority of persons of concern assessed stated that the security situation had not changed (84% IDPs, 68% of IDP returnees and 77% of refugee returnees). The majority informed that the security situation and restrictions were similar to those for the local

resident community. However 7,973 individuals stated they had been affected by general violence (20% of IDPs, 15% of IDP returnees and 13% of refugee returnees) and occurrence of large explosions (4% of IDPs and 2% of IDP returnees). Thirteen per cent of refugee returnees reported being affected by mines or UXO injuries. Those who had been specifically targeted stated that it was due to their religious (8% of IDPs, 18% of IDP returnees and 51% of refugee returnees) and political (3% of IDPs, 10% of IDP returnees and 11% of refugee returnees) background. Six per cent of IDPs also stated that they had been specifically targeted simply because they were IDPs.

UN OCHA, December 2009

International Organization for Migration (IOM), 30 June 2008:

"Continuing the trend from 2007, violence appears to have decreased overall throughout the country during the first half of 2008. As the Iraqi army and police play a more prominent role in security operations, they are also suffering an increase in casualties. In addition, several governorates, including Baghdad, Basrah, Ninewa, and Missan, saw brief increases in instability and violence during military operations launched over the past few months by the Multi-National Forces in Iraq and Iraqi Forces (MNF-I/IF) against local insurgents. In these cases Improvised Explosive Device (IED) explosions, artillery exchanges, inter-tribal fighting, search-and-arrest campaigns, and curfews erupted, though were generally followed by a period of calmer security and did not result in largescale displacement. In recent months, "awakening forces" (sahwa) or inter-tribal, local power-sharing coalitions, have aided stability and security in several governorates, namely Anbar, Diyala, and Salah al-Din, with plans to continue reproducing this model elsewhere in the country. However, power disputes among the awakening forces and other political parties in Anbar have been the cause of a recent spike in violence there. Security in Anbar was supposed to be transferred to the IF in late June after a progressive MNF-I handover, however this has been postponed. The three northern governorates of Kurdistan continue to be significantly more stable than the rest of the country with the exception of those areas bordering both Turkey and Iran. Bombings and land incursions in border villages by Turkish forces continue, and there is periodic Iranian cross-border shelling along the edges of Sulaymaniyah."

IDP Working Group, 27 June 2008:

"The risks that surveyed IDPs face are more varying than the other caseloads. IDPs indicated that they face general violence (Governorates of Baghdad, Diyala, Salah Al-Din, Missan and Wassit and Najaf), general criminality, detentions, kidnappings, murder/killings, large explosions, military operations as well as inter-ethnic/religious fighting (Governorates of Kirkuk and Ninewa). It was reported that IDPs are enduring forced recruitment by some armed groups (Muthanna Governorate). Others are reportedly subjected to abuse and harassment (Al-Anbar, Baghdad, Kirkuk, Najaf and Salah Al-Din Governorates). The three northern governorates also experience occasional cross-boarder attacks from Turkey and Iran, which has caused minor displacement. Among the main dangers and concerns for returnees are detention and kidnappings, reported from all over the country, but reported frequently in Baghdad, Diyala, Kirkuk, Muthanna, Ninewa, Salah Al-Din and Wassit Governorates. Reasons that made persons feel less safe were living in mixed areas (ethnic/religious), belonging to the minority group (e.g. Assyrian Christians), occurrence of large explosions, mine contamination or the presence of armed groups.

International Organization for Migration (IOM), 30 June 2008:

"IDPs have fled their homes for a variety of reasons, all related to security. The most commonly cited reasons for displacement among those assessed are direct threats to life (37%) and generalized violence (23%):

REASON FOR DISPLACEMENT	% of assessed IDPs
Direct threats of life	36.8%
Generalized violence	23.0%
Forced displacement from property	18.0%
Left out of fear	14.1%
Armed conflict	7.4%
Other	0.7%

When asked why they were targeted, 85% of those assessed attributed it to their sectarian identity. Another 10% said that they did not feel specifically targeted, while 6% cited political opinion and 4% cited ethnic identity. Answers do not vary significantly among those displaced in 2006, 2007, and 2008."

IOM, 2 February 2007:

"Almost all Iraqis are fleeing their homes because they fear for their lives, due to direct personal threats, general armed violence or increasing local criminal activity. All the IDPs' motives to flee were based on the fact that Iraqis do not feel safe where they live and believe that they must leave or face dire, or even fatal, consequences. When asked why they left their place of origin, a majority of respondents reported that they left due to direct threats to their lives. These threats take the form of abductions, assassinations of individuals or their families, or other threats communicated through mobile telephone calls or texts, graffiti on buildings or walls, or leaflets distributed throughout the community.

The second most popular reason for flight was generalized fear. Fear is generated in an environment that lacks security and a sense of law and order, which describes most of Iraq. Sectarian violence, tribal infighting, armed violence between military and militias or insurgents, military offensives, and criminal activity all contribute to a general sense of fear in Iraq that forced many to flee their homes. A less popular response was flight due to armed conflict. This response was most common in Anbar. Anbar is considered a hotbed of insurgent activity and suffers from frequent clashes between MNF-I/IF and other armed groups. This response was also given by IDPs in Diyala and Missan. Respondents were asked if they thought IDP group or family members were specifically targeted. The vast majority (86%) responded positively, and stated it was because they belonged to a certain religion or sect. A smaller percentage thought they were a target because of certain political beliefs (6%), belonging to a certain ethnic group (1%), or belonging to a certain social or professional group, such as doctors or professors (less than 1%)."

"Despite persistent instability and violence in Iraq, the majority of IDPs report that they felt relatively safe in their current location, or at least safer than in their place of origin. Only 1% of families did not feel safe in their current location. Iraqis are facing a dramatic increase in deaths, detentions, injuries, and disappearances, and the displaced are not exempt. When asked if someone in the group or family had been injured or killed since displacement, 2% had members killed by militants, the Multi- National Forces in Iraq, or Iraqi Forces; 2% had group members killed by another citizen; less than 1% reported injuries due to mine accidents; 4% suffered other types of deaths; and 3% suffered other injuries. When asked if anyone had been detained since they were displaced, 6% responded that someone had. In addition, over 5% reported that family members were still unaccounted for. However, IDP monitors and international officials believe the numbers to be much higher, as interviewees tended to underestimate when responding on behalf of more than one family.

See Also:

[IDPs in Baghdad suburb stage protest, demand protection](#), Integrated Regional Information Networks (IRIN), 24 September 2007

Vulnerable groups

Vulnerable groups among displaced communities (2007-2010)

- There are various social groups that show indications of high social and economic vulnerability. This includes, female headed households, families with no income, those with more than 10 children, elderly heads of household, widows, divorced women without male relatives, families with disabled family members, orphans, child-heads of households. (UNHCR, December 2009; IDP WG, June 2008) .
- There are no clear indications of the percentage of displaced that can be attributed to particular social groups mentioned above, though it is acknowledged that approximately 70 to 80 per cent of displaced are women and children, and that this is general vulnerable social group. UNHCR monitoring in 2009 identified vulnerable groups based on assessments which are not comprehensive.
- Minorities including cultural symbols have been targeted based on their identity such as the Shabaks, Christians (Assyrians, Chaldeans, Armenians, Orthodox, Catholics, Anglicans), the Faeeli Kurds, Yazidis, and Sabeen Mandeans. (see section below)
- Sunni and Shi'a communities are being persecuted in areas where they are a minority, and mixed families vulnerable to displacement. Iraq does not have a history of violence based on religious differences however due to current sectarian violence, mixed families proved particularly vulnerable.
- Amongst the vulnerable, are communities that were unable or opted out from forced displacement, and hidden from view, or communities that have been displaced to rural areas with limited access to services and mostly hidden from view, are perhaps much more worrisome in terms of vulnerability due to limited access to essential needs.

UNHCR December 2009

During the first three months of the year the following specific needs were identified: families with no income (1,043) and those with more than 10 family members (100), elderly heads of households (2,258), female heads of households, widows, divorced women and women without a male relative (502), families with disabled family members (238), minor heads of households (959) and orphans (5).

IDP Working Group, 27 June 2008:

"Female heads of household's income comes from employment, relatives/friends, charities and children working. A significant number of women have no income whatsoever. Many IDP children are reported to be working in order to support themselves or their families. In all Governorates, indications of economic and social vulnerability in relation to children were found, e.g. children working or begging, street children, children not attending school, child heads of households and early marriages. Girls appear to be more at risk of domestic violence than boys. A considerable number of

IDPs report that their primary school-aged children do not attend school. Among groups assessed, 31% of the boys and 40% of the girls are not attending primary school."

IOM, September 2008:

"Information below is based on in-depth assessments of **189,788** families (estimated **1,138,728** individuals) displaced throughout Iraq since 22 February 2006. (Please note that this figure represents the total number that IOM monitors have assessed, not the total number of displaced in Iraq since 22 February 2006.)"

IOM, 2 February 2007:

"Over 8% of the displaced population assessed suffered from vulnerabilities or risks, such as illness, pregnancy, or advanced age. (However, monitors and international officials believe that this percentage is higher. When interviewees provided information for several families, numbers tended to be underestimated.) IDPs must often leave behind their possessions, their source of income, and their social safety net, placing them at risk. In addition, a lack of food or water has a greater impact on the already vulnerable, such as pregnant women or the elderly. Mental disabilities can be exacerbated by an unfamiliar environment experienced in displacement. Stress due to violence and displacement exacerbates all of these conditions. Out of over 247,134 individuals, 4,957 women (2% of individuals) were reported female heads-of-households, 8,491 individuals (3%) were considered elderly, 3,633 women (2%) were pregnant, 383 individuals (less than 1%) reported a family member with a mental disability, 648 individuals (less than 1%) have serious illnesses, and 375 individuals (less than 1%) reported "other vulnerabilities". Again, the actual number of vulnerable IDPs is probably higher."

FIC, 2 July 2007:

"In political circles and within the international humanitarian apparatus itself, there is an emerging disproportionate focus on Iraqis who have fled as IDPs or refugees.⁷ Many IDPs and all refugees are relatively more accessible to current assistance and protection efforts than those who have remained in the worst-stricken areas. Little attention is so far being paid to preventing forced migration from occurring. Conditions facing the "internally stuck", those who have opted to stay in their homes or are unable to move and are therefore mostly hidden from view, are perhaps much more worrisome as access to essential needs and services becomes increasingly difficult in much of the country, and as social supports such as the Public Distribution System (PDS) for food rations collapse."

IRIN, 6 April 2006:

"According to estimates, two million out of Iraq's 6.5 million marriages are unions between Arab Sunnis and Shi'ites. [...] Many of the doctrinal differences between Sunnis and Shi'ites are minor enough to be dismissed, except by puritans of both sects. Mixed marriages between Arab Sunnis and Shi'ites – and also between the predominantly Sunni Kurds and Arabs of both sects – have been common, even in the days of former president Saddam Hussein, when Shi'ites were heavily discriminated against.[...] According to sociologists, one of the major problems facing mixed families is displacement. "When these families are being displaced, their main concern is where

to go, because each one has a particular sectarian area to run to,” said Marouf Abbas, a sociologist in Baghdad. “Usually the wives follow their husbands so as to keep their families intact.” More than 40,000 families have been displaced in Iraq due to ongoing sectarian violence, according to estimates by the Ministry of Displacement and Migration. Millions of Iraqi children are the products of Sunni-Shi’ite unions, brought up in homes where different beliefs coexist peacefully. In today’s Iraq, however, they are being forced to think differently[...] Local NGOs working with children say that sectarian violence has seriously affected the psychology of children, especially those born of mixed marriages.

See also (in sources, below):

[Report of the Secretary-General pursuant to paragraph 6 of resolution 1770 \(2007\)](#), UN Secretary General (UNSG), 28 July 2008

Minority groups targeted by violence and intimidation are forcibly displaced (2003-2010)

- Roughly ten per cent of Iraq’s population is made up of minority communities. They include Armenian and Chaldo- Assyrian Christians, Bahá’ís, Faili Kurds, Jews, Mandaean, Palestinians, Shabaks, Turkomans and Yazidis. Minorities make up close to 8-9% of IDPs – only recently have some minorities taken part in the return process, accounting for 8% of returnees which remain still very marginal and have remained limited in 2009 (IOM, November 2009).
- Though violence continued to decline in 2008 and 2009 there continued to be evidence of violence targeting minorities particularly Christians amongst other minorities throughout 2009 and early 2010. In March 2010, 4,300 Iraqi Christians were displaced from Mosul following acts of violence and intimidation. (UN OCHA, March 2010). As reported by HRW, minorities in province of Nineveh are victims of ongoing latent conflict between Kurds and Arabs over the fate of the disputed areas.
- In 2009, Christian Turkomen, Mandaean and other minorities continued to be targeted in assassinations, bombings and abductions in Kirkuk, Mosul, and Baghdad and appealed for wider protection (HRW, November 2009; IRIN, November 2009) In October 2009, Christian families would flee Kirkuk following intimidation and violence. In October 2008, nearly 750 Christian families fled their homes in Mosul as extremists increased attacks against religious minority. (IRIN, 12 October 2008)
- In between 2003 to 2007, minorities have been targeted based on their identity many have fled their homes or have been victims of violence and discrimination, others have been detained, tortured or have disappeared. This also includes Sunni and Shi’a communities being persecuted in areas where they are a minority, as well as inter-ethnic tensions between Arab, Turkoman and Kurdish communities in predominantly Kurdish areas.
- In 2007, Iraqi Ministry for Migration and Displacement in Iraq has estimated that nearly half of the minority communities have left the country. According to the United Nations High Commissioner for Refugees, minorities make up approximately 30 per cent of the 1.8m Iraqi refugees now seeking sanctuary in Jordan, Syria and across the world. (MRI, February 2007)
- Iraqi Ministry of Human Rights has reported that number of deaths due to direct or indirect attacks between 2003 and end of 2007 – entailing 528 fatalities and over 16,000 displaced for the Shabak minority, second Yazidi community with over 335 fatalities; third Iraqi Christians with 172 fatalities and estimated 9,000 displaced; fourth Sabi minority with 127 killed. (IRIN, 3 July 2008)

UN OCHA, March 2010

The influx of Christian IDP families from Mosul city to the nearby districts of Al Hamdaniyah and Tilkaif in Ninewa governorate has slowed down in the two-day period between 27 February and 1 March 2010. As of 1 March 2010, the total number of IDPs is now 720 families (or 4,320 people), up from 683 families (or 4,098 people) on 27 February 2010, representing only a 5 percent increase. There are protection concerns for the Christian families remaining in Mosul, including unconfirmed reports that they are confined to their homes out of fear for their safety; Christian university students are reportedly not attending classes and workers are not attending their places of work. The Governor of Ninewa governorate has formed a committee, headed by the Director of Civil Defence, to address the humanitarian needs of the IDPs and oversee the humanitarian response by the humanitarian community. This complements the efforts of the Committee for International Organizations, also based in the office of the Governor in Mosul. Most of the immediate shelter, NFI and food needs of the IDPs have been met by the humanitarian agencies the areas of displacement, except for NFIs in Bartalah, Bashiqa, Krmalees, Batnay, and Tal Usqif in Al Hamdaniya district, where UNHCR will be undertaking an NFI distribution on 2 March 2010.

HRW, November 2009

While most of the international attention over the conflict between Kurds and Arabs in the disputed territories has focused on the oil-rich city of Kirkuk, one of the main battlefronts in this conflict is Nineveh, Iraq's second most populous province with a unique concentration of historic minority groups. Although Nineveh is constitutionally under the jurisdiction of Iraq's central government, Kurdish authorities have been reshaping the reality in Nineveh province, whose ethnically mixed communities lie mainly just north and east of the provincial capital, Mosul, in an area known as the Nineveh Plains. A drive in the vicinity of Mosul through the Nineveh Plains reveals how pervasive the Kurdish military and political presence has become: Security offices and checkpoints manned by well-armed Kurdish peshmerga have proliferated across the landscape, securing village after village; the Kurdistan Democratic Party, one of the two main parties of the Kurdish semiautonomous government, has offices in even the smallest towns (and many towns and villages also have offices of the second Kurdish party, the Patriotic Union of Kurdistan). The Kurdish flag flutters in the wind from rooftops, while the flag of the central Iraqi state is nowhere to be seen. Kurdish authorities in Nineveh have faced stiff resistance from local Sunni Arabs and minority communities nervous about the new hegemony from the north. Accustomed to positions of privilege and power under previous governments, many Sunni Arabs chose not to engage in the political process after the fall of Saddam Hussein, opting instead to join or back the insurgency, or to remain on the sidelines. By default, Kurds dominated Nineveh's provincial assembly after elections in 2005, giving them almost exclusive political as well as military dominance in this province in which they are a minority. These Kurdish gains further alienated Sunni Arabs, turning Mosul into a hotbed of the Iraqi insurgency. Extremist elements among the insurgents have viciously attacked the Chaldo-Assyrian, Yazidi, and Shabak communities, labeling them crusaders, devil-worshippers, and infidels, respectively. Simultaneous truck bombings in Nineveh in August 2007, presumably by armed Islamists, killed more than 300 Yazidis and wounded more than 700 in the single worst attack against civilians since the start of the war. In late 2008 a systematic and orchestrated campaign of targeted killings and violence by insurgents left 40 Chaldo-Assyrians dead and more than 12,000 displaced from their homes in Mosul.

International Organization for Migration (IOM), November 2009:

Integrated Regional Information Networks (IRIN), 12 October 2008:

"Nearly 750 Christian families, about 3,750 individuals, have fled their homes in Mosul, a city about 400km north of Baghdad, as Sunni Muslim extremists have increased attacks against this religious minority since 4 October, a local official said on 11 October. "We have registered so far 744 Christian families who left their houses in Mosul due to the recent attacks. Most have ended up either in relatives' houses or churches or monasteries in nearby towns and villages where there are many Christians," said Jawdat Ismaiel, provincial director of the Ministry of Displacement and Migration. Ismaiel said these new internally displaced persons (IDPs) are distributed in seven towns and villages to the north and east of Mosul, the provincial capital of Ninevah province. He said there were about 200 families in Qaraqoush, 187 families in Tal Skouf, 145 families in Bartila, 96 families in Baashiq, 47 families in Karam Less, 37 families in Tilkaif and 32 families in Alqoush."

Integrated Regional Information Networks (IRIN), 3 July 2008:

"A new report by Iraq's Ministry of Human Rights sets out the number of deaths in different ethnic communities caused by direct or indirect attacks in Iraq between 2003 and the end of 2007, and the numbers of internally displaced persons (IDPs) for each minority. The report, released on 1 July, said the Shabak minority in the northern province of Nineveh topped the list with 529 fatalities and 3,078 families (about 16,000 individuals) displaced. Shabaks, whose numbers are estimated at 300,000-400,000, have a religion containing elements of Islam, Christianity and other religions, according to theologians. Some see them as a sub-group of the Kurds, while others say they are a distinct ethnic group. Second on the list is the Yazidi community, which also lives in Nineveh Province and worships Melek Taus, the Peacock Angel. The report said 335 Yazidis had been killed, but gave no data on the number of IDPs. The Yazidis were hit in August 2007 by four simultaneous suicide car bombings in a suburb of the provincial capital, killing 215. In third place with 172 fatalities were Iraq's Christians: 107 Chaldeans, 33 Orthodox, 24 Catholics, four Assyrians, three Anglicans and one Armenian. It said 1,752 Christian families, about 9,000 persons, were living as IDPs. In fourth place were the Sabis, who live in different parts of Iraq but mainly in the south, with 127 killed; 62 families were living as IDPs. A further 3,500 families had sought refuge in Jordan and 10,000 in Syria. "

IDP Working Group, 24 March 2008:

"Christians assessed by IOM are concentrated in the north, most of them in Dahuk. Sabean Mandeans were identified in the North and some Southern Governorates, while Yazidis were identified throughout the country. Yazidis mainly fled Diyala (22%) and Ninewa (65%). Most Christians fled from Baghdad (77%) and Ninewa (19%). 90% of assessed Sabean Mandeans fled from Baghdad. Most of the Christians and Sabean Mandeans were displaced in mid-to-late 2006, but for Yazidis the largest spikes in displacement occurred in March 2003 and in August 2007. Nearly all assessed Christians and Sabean Mandeans are living in rented housing or with a host family or relatives. In contrast, only 24% of assessed Yazidis are renting – 29% live in collective settlements, 20% are in tents near houses of hosts, and 17% share a house with host families or relatives. "

International Organization for Migration (IOM), March 2008:

International Organization for Migration (IOM), 11 January 2008:

"The following graph shows the religious and ethnic profile of the IDP population: When comparing IDPs displaced in 2006 with those displaced in 2007, the ethno-religious profile does not vary significantly. For the major groups, displacement rates dropped in 2007 (reflecting the overall trend), while displacement rates for some very small IDP minorities (Turkmen and Sunni Kurds) did not change significantly from 2006 to 2007."

MRG, February 2007:

"Ten per cent of Iraq's population is made up of minority communities. They include Armenian and Chaldo-

Assyrian Christians, Bahá'ís, Faili Kurds, Jews, Mandeans, Palestinians, Shabaks, Turkomans and Yazidis. Some of these groups have lived in Iraq for two millennia or more. There is now a real fear that they will not survive the current conflict and their unique culture and heritage in Iraq may be extinguished forever. A huge exodus of these communities is now taking place. The Iraqi Ministry for Migration and Displacement in Iraq has estimated that nearly half of the minority communities have left the country. According to the United Nations High Commissioner for Refugees, minorities make up approximately 30 per cent of the 1.8m Iraqi refugees now seeking sanctuary in Jordan, Syria and across the world. Minorities are specifically targeted for eradication because of their faith and ethnicity. Christians are at risk because their faith associates them with the West and with the MNF-I (Multi National Force in Iraq). The traditional trade of this community as alcohol-sellers also makes them a target. Islamist groups have dubbed the Yazidi religion 'impure' and called for their destruction. For Mandeans, the carrying of weapons is a direct violation of their religious laws, thus making it difficult for them to defend themselves.

All of Iraq's minority communities have suffered violations since 2003 which include:

- destruction and defacement of religious buildings
- mass murder of congregations gathered in and around them
- abduction, ransoming and murder of religious and civic leaders and individuals including children
- forced conversion to Islam using tactics such as death threats, rape and forced marriage.

Minority communities also face assimilation because the areas they live in, such as Mosul, Basra and Kirkuk, put them at the centre of power struggles between Kurds, Sunni Arabs and Shia Arabs, fighting over historical claims and – crucially – Iraq's great oil wealth. Ironically, many from these groups felt life might improve for them at the collapse of the Ba'ath regime. But as well as the current lack of security, discriminatory laws still active from the time of Saddam Hussein's rule continue to make life almost impossible. The Bahá'í community remains without the right to citizenship and their freedom of movement and to practise their religion is still curtailed. Iraq's Palestinian community, once given special treatment to suit the political will of the Ba'ath Party, now find themselves under siege in Baghdad, the constant target of violence and threats. With neighbouring countries unwilling to give them refuge, they remain trapped in

increasing numbers on the borders of Iraq. So far Iraq's fledgling democratic processes have presented problems for minorities. During the 2005 elections, members of minority groups reported violence, intimidation and lack of access to polling booths. The new Constitution – approved in a 2005 referendum – was drafted with little participation from minority groups. Though it is progressive in many respects, it is alarmingly vague on the role Islam will play in the future Iraqi state – placing a question-mark over issues of religious freedom. It could also have offered stronger protections for minority and women's rights."

UNAMI, 16 January 2007:

"Minorities in Iraq remain severely affected by the overall security situation, economic and social degradation and the existence of organized armed groups, militias and insurgents, all operating with near complete impunity. Minority groups feel marginalized from political participation and decision-making at the local and national levels. The Shabaks and Assyrians in the Nineveh Plains in particular have been pressured to convert to Islam. Of the 1.5 million Assyrians living in Iraq before 2003, half have left the country and the remaining 750,000 are said to be moving into "safe areas" in Zakho and North Ninevah. Considered to be foreign, non-Arab and of non-Iraqi origin, religious minorities, such as Sabeen-Mandean, frequently encounter intimidation by public and religious officials.

In November, there were significant attacks against the Christian community in Mosul and in December, 14 Kurdish farmers were killed by insurgent groups in the Sinjar area of the Ninewah plain. Inter-ethnic tensions between Arab, Turkoman and Kurdish communities are escalating in Kirkuk. The ethnic divide in Kirkuk was underscored when the Sunni Mosque of Ahmad Thiab al-Nu'aymi in the Terklan area was blown up by extremists on 16 November. HRO received a video evidently showing the abuse and killing of an Arab, who was in the custody of local security officers, in the streets of Kirkuk. Kirkuk authorities have agreed to investigate the case upon HRO's request.

On 19 November the KRG Parliament Speaker, Adnan Mufti, received a delegation from the Syrian Assyrian Democratic Organization to discuss Christian rights in Kurdistan and their demands for an autonomous region in the Ninewah Plains in response to the heightened violence against Christians. Four days later, gunmen brutally gunned down the leader of Iraq's Christian Syrian community, Yashoo'a Majid Hadaya in an attack in Qaraqosh, northeast of Mosul.

See also (in [sources page](#)):

Iraq to confront militias after Sadr threat, **Reuters**, 21 April 2008

Iraqi Christians cling to last, waning refugees, **Christian Science Monitor (CSM)**, 6 March 2008

The Future of Kirkuk: The Referendum and Its Potential Impact on Displacement, **Brookings Institution**, 3 March 2008

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UN Assistance Mission for Iraq, Human Rights Report: 1 July – 31 December 2007, **United Nations Assistance Mission for Iraq (UNAMI)**, March 2008

No solution in sight for Palestinian refugees stranded at border, **Integrated Regional Information Networks (IRIN)**, 18 February 2008

Time for Kurdish Realism, **Brookings Institution**, 9 February 2008

Sunni vs Shia: the real bloody battle for Baghdad, **The Independent**, 5 February 2008

Iraq's Turkmen Of Kirkuk Appeal For Government Protection, **Agence France-Presse (AFP)**, 31 January 2008

Ministry report details impact of violence on minorities, **Integrated Regional Information Networks (IRIN)**, 3 July 2008

Iraq's Refugee and IDP crisis: Human Toll and Implications, **Middle East Institute**, July 2008

Bombers kill 175 in attacks on minority sect in Iraq, **The Guardian**, 15 August 2007

Baghdad squatters told to leave occupied homes, **Reuters**, 22 June 2008

Al Tanf Camp Trauma Continues for Palestinians Fleeing Iraq, **Amnesty International (AI)**, May 2008

Life After the "Islamic State", **Institute for War and Peace Reporting (IWPR)**, 4 January 2008

Government to give financial aid to displaced in north, **Integrated Regional Information Networks (IRIN)**, 31 December 2007

More aid needed for the displaced in Anbar Province, **Integrated Regional Information Networks (IRIN)**, 3 December 2007

The Kurdish Policy Imperative, **Chatham House and University of Exeter**, December 2007

Ethnic violence forces more Arabs to flee Kirkuk, **Integrated Regional Information Networks (IRIN)**, 16 September 2007

Baghdad residents call for protection of homes from militant raids, **Integrated Regional Information Networks (IRIN)**, 13 September 2007

Kirkuk Referendum Likely To Be Delayed, **Radio Free Europe/Radio Liberty (RFE/RL)**, 13 September 2007

Baghdad, Iraqi Kurds protest alleged Iranian shelling, **Radio Free Europe/Radio Liberty (RFE/RL)**, 29 August 2007

Karbala fighting raises specter of broader Shi'ite clashes, **Radio Free Europe/Radio Liberty (RFE/RL)**, 29 August 2007

People flee Baghdad district as gunmen impose Shariah law, **Integrated Regional Information Networks (IRIN)**, 27 August 2007

Kurds flee homes as Iran shells villages in Iraq, **The Guardian**, 20 August 2007

Militants using water to extort "favours" from displaced, **Integrated Regional Information Networks (IRIN)**, 7 August 2007

In town split in two by al-Qaida, a ray of hope for the country, **The Guardian**, 14 July 2007

Sectarian violence and displacement follow Samarra attack, **Integrated Regional Information Networks (IRIN)**, 13 June 2007

Sunni Arabs driving out Kurds in northern Iraq, **International Herald Tribune (IHT)**, 30 May 2007

Reports of violence, discrimination against women, and increasing vulnerability (2005-2009)

- There has been a developing pattern of sexual and gender based violence since 2003 – gender based violence are reported in many locations in Baghdad, other governorates like Basra and Dizala and also in Kurdistan. This involves discrimination, intimidation, beatings, mutilations, killings (stoning, shootings, etc) and includes minors amongst the victims.

- Violations of women's right to life and liberty continued to be perpetrated, many of them classified as 'honor crimes', as well as instances of domestic and communal violence such as forced marriages and domestic abuse. The rise in sectarian and generalised violence has also restricted women's freedom of movement and expression (UNAMI, March 2008; UNAMI November 2009)
- There are various estimates on number of divorcees or widows, or single headed female households as result of former regime, the 1980-88 Iran-Iraq war, the 1991 Gulf War and sectarian conflict. Estimates put the number of divorcees and widows close to 1-2 million of a total of 8.5 million women aged between 15 and 80. (Reuters, 31 January 2008)
- The UN special representative for Iraq declared Iraqi women are the "forgotten and silent victims of the ongoing violence". He said 70,000 had been widowed in the past 4-5 years. In the south, over 100 women had been killed, and their bodies mutilated. In the north, at least 300 women and girls were victims of honour crimes last year, including being shot, strangled and beaten to death. (IRIN, 20 March 2008)
- NGOs have emphasized that Iraqi women will resist returning home, even if conditions improve in Iraq, if there is no focus on securing their rights as women and assuring their personal security and their families' well being in light of violence against women due to rising conservatism and impunity of violations. Reducing support to displaced families could force returns to insecure areas without adequate services and trigger additional insecurity. (RI, July 2009; HRW September 2009).
- In 2009, Oxfam surveys would reveal that nearly 60% of women said that safety and security continued in 2008 to be their number one concern despite improvements in overall security in Iraq. As compared with 2007 & 2006, more than 40% said their security situation worsened in 2008 & slightly more than 22% said it had remained static compared to both years. 55% had been a victim of violence since 2003. Some 45% of women said their income was worse in 2008 compared with 2007 and 2006, and 33% had received no humanitarian assistance since 2003. (Oxfam March 2009)
- Female-headed IDP households are an extremely vulnerable group augmenting vulnerability while diminishing access to health care and other services.: it is difficult for women to find employment, face conservative customs in place of displacement (or place of origin) (UNHCR December 2009; RI, July 2009), and increased exposure to domestic violence, sexual gender based violence including 'honor crimes', prostitution and trafficking. (RI, July 2009; IOM, 11 January 2008) Displaced women in camp or camp-like situations are more likely to be exposed to sexual assault and abductions (IOM, 11 January 2008).

UNHCR, December 2009

During the first three months of the year the following specific needs were identified: families with no income (1,043) and those with more than 10 family members (100), elderly heads of households (2,258), female heads of households, widows, divorced women and women without a male relative (502), families with disabled family members (238), minor heads of households (959) and orphans (5). The assessments identified the specific needs of the UNHCR population of concern.

....Many IDPs and returnees reported that their movement was restricted by checkpoints, curfews, fences/walls and barriers and permissions from authorities to move. Moreover, restrictions on freedom of movement varied between men, women and children. Generally, men leave the home more frequently than women and children leave the

home more regularly than women. This may be due to social-religious constraints that women face as well as the fact that most working children are working in public places such as streets, markets and etc.

Refugee International, July 2009

Not one woman interviewed by RI indicated her intention to return. Some women said they won't return because they are members of targeted minority groups, or because of injuries they suffered. Many widows told RI that they fear returning to homes where their husbands were killed, and where they now have no means of economic survival. Some fear rising conservatism would restrict their ability to participate in civic and professional life. Women seeking to resume their former roles and lifestyles in high profile professions, such as journalists or doctors, believe current circumstances in Iraq put them at risk. Others feared they were at risk of so called "honor killings" by family members because they refused marriages, had divorced, or were accused of prostitution. RI learned of situations where men decided to return but their wives refused. UNHCR protection workers reported that this is often because the women did not tell their husbands about sexual abuse during kidnappings or when their husbands were missing. Others feared kidnappings or murders of surviving children, particularly their sons. A displaced woman living in a tent in very poor conditions in northern Iraq told RI, "This tent is more comfortable than a palace in Baghdad; my family is safe here."

Oxfam, March 2009

Oxfam and the Al-Amal Association, the Iraqi partner organization that conducted the survey in the five provinces of Baghdad, Basra, Kirkuk, Najaf and Nineveh, do not claim that the information they gathered from 1,700 respondents represents the situation facing all Iraqis, or even all women in Iraq. However, it does provide a disturbing snapshot of many women's lives and those of their children and other family members. The information presented in this paper was collected over a period of several months, starting in the summer of 2008. The women revealed that their families' everyday lives had worsened in many cases since Oxfam released its humanitarian report – and despite the improved overall security situation in Iraq that began in mid-2007. Not only did a large proportion of women say that access to basic services had grown more difficult, but they also told surveyors that they had become more and more impoverished over the past six years, and that their own personal safety remained a pressing concern. Some of the survey results were:

- Nearly 60% of women said that safety and security continued to be their number one concern despite improvements in overall security in Iraq Oxfam International, In Her Own Words: Iraqi women talk about their greatest challenges:

- As compared with 2007 & 2006, more than 40% of respondents said their security situation worsened last year & slightly more than 22% said it had remained static compared to both years

- 55% had been a victim of violence since 2003; 12% of women had been victims of domestic violence; More than 30% had family members who died violently. Some 45% of women said their income was worse in 2008 compared with 2007 and 2006, while roughly 30% said it had not changed in that same time period

- 33% had received no humanitarian assistance since 2003

- 76% of widows said they did not receive a pension from the government

- Nearly 25% of women had no daily access to drinking water & half of those who did have daily access to water said it was not potable; 69% said access to water was worse or the same as it was in 2006 & 2007

- One-third of respondents had electricity 3 hours or less per day; two-thirds had 6 hours or less; 80% said access to electricity was more difficult or the same as in 2007, 82% said the same in comparison to 2006 and 84% compared to 2003
- Nearly half of women said access to quality healthcare was more difficult in 2008 compared with 2006 and 2007
- 40% of women with children reported that their sons and daughters were not attending school

UNAMI, March 2008:

"Ongoing violence and general security conditions in Iraq continued to hamper efforts to research and reliably assess the situation of women, both in terms of gender-based violence and other violations. Efforts by UNAMI to track the numbers of those killed and injured in violent attacks against civilians by insurgents or other armed groups show that ongoing violence continues to claim the lives of many women as well as children. Some of the victims died as a result of indiscriminate targeting of civilians in locations such as crowded markets, educational establishments and other public places, others as a result of roadside explosive devices, while in some cases they were apparently targeted. During the reporting period, several women were also reportedly killed during military operations involving air raids.

While gender-based violence continued to be reported in many locations in Baghdad and other governorates including Basra and Diyala, UNAMI was unable to follow up on many of these reported cases given the limitations imposed by the security situation. In November and December, further reports emerged of scores of so-called 'honor crimes' being perpetrated with regularity in Basra by armed groups or militia. In Basra city, a higher incidence of such cases emanated from poorer districts such as al-Hayyaniyya, al-Qibla, al-Muhandiseen, al-Tannuma, al-Jumhuriyya and al-Hussein. Notes were reportedly found next to some victims' bodies, accusing them of adultery or of "un-Islamic" conduct, such as failure to follow certain dress codes or to veil appropriately. Several of these notes were allegedly 'signed' by groups operating under the banner of *al-Amr bil-Ma'ruf wal-Nahi 'an al-Munkar* (The Propagation of Virtue and the Prevention of Vice), while others contained only references to orders having been issued to carry out the killings, reportedly by armed militia.

In the Region of Kurdistan, violations of women's right to life and liberty continued to be perpetrated during the reporting period, many of them classified as so-called 'honor crimes', as well as instances of domestic and communal violence such as forced marriages and domestic abuse. Linked to these crimes were attempted or actual suicides among women, apparently to escape or protest violence and oppression in the home or the wider community. [...], both women's rights activists and victims expressed little faith in the ability of the judicial system to protect the lives and rights of abused women. Gender-based violence is also grossly under-reported or remains without investigation. Problems of under-reporting are also linked to the victims' reluctance to claim abuse or other violence against them. Problems of under-reporting are also exacerbated by the fact that the majority of violent crimes against women are committed in rural areas, where police presence and authority are weaker and tribal rules and traditional social mores prevail.Draft legislation on domestic violence proposes prohibiting underage and forced marriages, honor crimes, physical and other forms of violence, as well as the use of women in resolving tribal conflicts. It also provides for the creation of specialized courts and protection mechanisms for witnesses wishing to file complaints. Another draft law under consideration prohibits female genital mutilation,

which to date has received little attention. The Women's Committee has also recommended major amendments to the Personal Status Law addressing issues related to matrimonial entitlements, grounds for divorce, inheritance and social status."

IOM, 11 January 2008:

"Displacement presents particular challenges for women, children, elderly, and the ill. Specialized health care (such as surgery or gynecology) is difficult to obtain in Iraq. Female-headed households are an extremely vulnerable group: many of these families displaced after their husbands were violently killed. In many areas it is especially difficult for women to find employment and protect their families. Some IDP women and girls reported discomfort with the conservative customs they encountered in their place of displacement, restricting their dress and in some cases preventing girls from attending school. Health workers, IOM monitors, and IDPs themselves reported a rise in unattended births, miscarriages, and prostitution. Many IDPs, especially children, have experienced brutal psychological trauma during their displacement. Few IDPs have access to psychosocial assistance."

IDP Working Group, 24 March 2008:

"Over the last 14 months, several single or widowed women were reported as having become head of households due to killing of males as well as divorces (sometimes a mixed Shia-Sunni couple is forced to divorce due to the different religious background⁶⁸) and partial displacement (only women and children flee). A significant number of pregnant women, persons of old age and persons with disabilities are also reported among the caseload and are in need of special care. Cases of prostitution as well as begging in the streets have been reported, involving women IDPs."

AI, March 2008:

"Violence against women and girls has increased dramatically in the past five years. Many have been forced to leave their jobs or schools for fear of being killed; others have fled the country. In most governorates, women are being threatened by armed groups that they will be targeted if they do not observe strict Islamic dress. Women and girls are also at risk of rape by armed groups and members of the Iraqi security forces. Domestic violence and "honour killings" are on the rise too. A WHO survey conducted in 2006/2007 in Iraq found that 21.2 per cent of Iraqi women had experienced physical violence. There were marked differences between Kurdistan and the rest of Iraq. In central and southern Iraq 22.7 per cent of women reported at least one form of physical abuse, whereas in Kurdistan the figure was 10.9 per cent.⁴⁸ The sectarian violence has forced some women to marry within their own sect. In some cases women have been forced by their relatives to divorce because their husband is from a different sect. In Basra, scores of women were killed in 2007 by Shi'a militia groups vying for control of the city. According to the head of the police force in Basra, Major-General 'Abdul-Jalil Khalaf, the police are often too scared to investigate the killings, and relatives are reluctant to report them for fear of a scandal or simply because they doubt that the police will investigate."

UNAMI, 16 January 2007:

"The plight of women in the northern governorates continues to be widely covered by the media and is a matter of great concern to human rights NGOs. The latest monthly report by the KRG Human Rights Ministry stated that 239 women had burned themselves in the first eight months of 2006. Authorities in Sulaimaniya have documented the highest number of monthly traumatic burn cases in November, with 13 cases of burns by fire and

24 cases of scalding involving women. A Sulaimaniya hospital source suspected that such cases are underreported because of fear of the social stigma, shame and culpable involvement of family members that are associated with honor crimes. Most cases have been investigated as “accidents” or suicide attempts. [...]

In the central and southern regions, women remain particularly vulnerable and their enjoyment of basic rights is being rapidly eroded. As previously reported, [...] the security situation and the militancy of intolerant groups are increasingly limiting women’s ability to move freely outside their homes while progressively restricting their access to health services and education as well as their ability to participate in public life. November and December witnessed an alarming shift towards more violent episodes. It is a challenge to obtain accurate female mortality rate and the cause(s) of death. Female corpses are usually abandoned at the morgue and remain unclaimed for fear of damaging the family honour. More than 140 bodies were unclaimed and buried in Najaf by the morgue during the reporting period.

Women are reportedly living with heightened levels of threats to their lives and physical integrity, and forced to conform to strict, arbitrarily imposed morality codes. HRO has received cases of young women abducted by armed militia and found days later sexually abused, tortured and murdered. HRO has also charted an increase in kidnapping and killing of women. [...] HRO has received information of children abducted and sold to armed militias and forced to become supporters. Children are also trafficked outside Iraq to work as sex slaves, labourers, or unlawfully adopted by families abroad. Dozens of children are currently seeking shelter and protection in safe houses managed by the Ministry of Social Affairs and civil society organizations across the country.”

UNAMI, 18 July 2006:

“Many women have complained to the Human Rights Office that their freedoms are being restricted due to extremist Sunni and Shi’a elements operating at neighbourhood level, who proffered threats and intimidations both verbally and through flyers. There are reports that, in some Baghdad neighborhoods, women are now prevented from going to the markets alone. In other cases, women have been warned not to drive cars or have faced harassment if they wear trousers. Women have also reported that wearing a headscarf is becoming not a matter of religious choice but one of survival in many parts of Iraq, a fact which is particularly resented by non-Muslim women. Female university students are also facing constant pressure in university campuses. Furthermore, UNAMI HRO learned that girls are also facing similar pressures to wear a headscarf in schools. Equally disturbing are reports that in some public offices, including Ministries, women have been warned that they must wear a headscarf at all times. [...] Displacement is increasing women vulnerability by augmenting health risks while diminishing access to health care and to other services. The situation of women is significantly different in the Region of Kurdistan. The Women Affairs Committee in the Kurdistan Regional Assembly has worked significantly to ensure that women enjoy their rights in the Region.

UNHCR, October 2005, pp.34-40:

“Continuing violence and high criminality, slow reconstruction, low living standards and the increasing tendency to apply strict Islamic behavioural and dress codes have taken a toll on women in Iraq. Indiscriminate attacks by insurgents have resulted in the death and injury of scores of civilians, many of them women.[...] Women of all religions risk being targeted if they do not comply with strict Islamic dress codes (e.g. not covering their hair or wearing Western style fashions). [...] According to police officials, dozens of

women have been attacked with acid by religious conservatives in Baghdad[...] and many others have been killed outright. [...] Furthermore, the IWCP reports that unveiled women are frequently denied governmental jobs. [...] Lack of both security and proper law enforcement has led to high rates of crime against women, in particular in the months after the 2003 conflict. A survey undertaken by the 'Organisation of Women's Freedom in Iraq' recorded that 400 women that were raped in Baghdad between April and August 2003. [...] Human Rights Watch has documented reports from Iraqi police officers that 'the number of (rape) cases reported [now is] substantially higher than before the war'. [...] Fear of harassment, abduction and rape prevents women from moving freely, thereby restricting their personal freedom, access to schools and universities, [...] opportunity to work[...] and access to health services.[...]

The ILCS revealed that 40 percent of surveyed women identified criminals as a direct threat to their safety, while 12 percent say that the MNF represents the main threat. There are significant differences in safety for women among the different Governorates. [...] Domestic violence (including 'honour killings') continues to take place in Iraq, and some observers believe it has increased since the fall of the former regime, given the corresponding rise in conservative attitudes. [...] No exact figures on the extent of the practice [honour killings] are available and many cases undoubtedly go unreported. 'Honour killings' occur mainly in conservative Muslim families (both Shiite and Sunni, of both Arab and Kurdish backgrounds), in all areas of Iraq. 'Honour killings' cannot be justified by Islam or Sharia law, but are a 'tribal custom stemming from the patriarchal and patrilineal society's interest in keeping strict control over familial power structures'. [...] A study done by Rewan Women's Information and Cultural Centre (RWICC), based in Sulaymaniyah, recorded 3,979 cases of women killed as the result of domestic violence in the North in the 1980s. [...] According to Kurdish Women's Action Against Honour Killings (KWAHK), [...] between 1991 and 2000 more than 4,000 women were killed in the North in the name of honour, with the authorities failing to punish the perpetrators. [...] There are no figures available for the Centre and the South, however NGOs believe that the situation there may be even worse as cultural values and traditions remain very strong. [...]

CEDAW, 26 July 2005:

"As Iraq has been a State party to the Convention on the Elimination of All Forms of Discrimination against Women since 1986, the Committee has, on previous occasions, expressed concern about the situation of women in Iraq and has called on the interim Government to do its utmost to ensure equal participation of women in the reconstruction process and full compliance with all provisions of the Convention in the development of Iraqi society. The Committee now urges the Government of Iraq to ensure that the principles of gender equality and non-discrimination, as they are enshrined in the Convention, are fully reflected in the new Constitution of Iraq which will become the basis for the entire legal framework of the country, including the family and personal status laws. The Committee further emphasizes once again the urgent need to take special measures to rehabilitate and reintegrate women and children victims of war. The Committee calls on the Government of Iraq to ensure that full attention is given to the Committee's concerns and to the country's obligations as a State party to the Convention."

AI, 22 February 2005:

"Women and girls in Iraq live in fear of violence as the conflict intensifies and insecurity spirals. [...] The lawlessness and increased killings, abductions and rapes that followed

the overthrow of the government of Saddam Hussain have restricted women's freedom of movement and their ability to go to school or to work. Women face discriminatory laws and practices that deny them equal justice or protection from violence in the family and community. A backlash from conservative social and political forces threatens to stifle their attempts to gain new freedoms. The general lack of security has forced many women out of public life, and constitutes a major obstacle to the advancement of women's rights. [...] Under the government of Saddam Hussain, women were subjected to gender-specific abuses, including rape and other forms of sexual violence, as political activists, relatives of activists or members of certain ethnic or religious groups. War and economic sanctions had a particular effect on women. They left women and households headed by women, many of them war widows, among the poorest sectors of the population. In the 1990s the mortality rate for pregnant women and mothers increased, and became one of the worst in the world for children under the age of five. Since the 2003 war, women's rights activists and political leaders have been threatened by armed groups and a number have been killed. Women have been subjected to sexual threats by members of the US-led forces [1], and some women detained by US forces have been sexually abused, possibly raped."

See also:

"Minister leads call to end violence against women", **Integrated Regional Information Networks (IRIN)**, 20 March 2008

"Iraq has million-woman social time-bomb", **Reuters**, 31 January 2008

"Islamic extremists target women in Basra", **Integrated Regional Information Networks (IRIN)**, 2 January 2008

"Violence taking toll on pregnant mothers, infants", **Integrated Regional Information Networks (IRIN)**, 14 August 2007

Human Rights Report - 1 September - 30 October. **United Nations Assistance Mission for Iraq (UNAMI)**, 22 November 2006

Women were more respected under Saddam, say women's groups, **Integrated Regional Information Networks (IRIN)**, 13 April 2006

UN Human Rights Report 1 March - 30 April, **United Nations Assistance Mission for Iraq (UNAMI)**, 23 May 2006

Draft Strategic Plan for IDPs in Iraq, **United Nations Country Team (UNCT) and United Nations Cluster (8) on Refugees and Internally Displaced Persons (IDPs)**, August 2004, (provided to NRC by UNHCR via email, October 2004)

Country of Origin Information – Iraq, **United Nations High Commissioner for Refugees (UNHCR)**, 12 August 2004

"Focus on women's rights", **IRIN**, 6 June 2005

Status of Internal Displacement in Iraq , **Integrated Regional Information Networks (IRIN)**, 21 May 2004

"Violence against women in Iraqi-Kurdistan", **Wadi e V.**, 18 May 2005,

Interview with Co-Director of Brookings Institution, **Integrated Regional Information Networks (IRIN)**, 20 May 2004

"Climate of Fear: Sexual violence and abduction of women and girls in Baghdad", **Human Rights Watch**, 2003

Children gravely affected by the situation (2003-2009)

- The situation of children in Iraq has been the subject of the attention of the Special Representative for Children and Armed Conflict (SRSG) since 2005 and has been reported upon in the Secretary General's annual reports on children and armed conflict in 2006 (S/2006/826), 2007 (S/2007/757), 2008, and 2009.
- Estimates vary but it has been reported that close to 40% to 59% of IDPs are children according SRSG and Red Crescent Society respectively (SRSG, May 2008; RCS, June 2008). According to RCS estimates this would entail close to 950,000 IDP children post 2006, and by analogy including pre 2003 displaced an estimated total of 1,600,000 IDP children.
- Precise data is not available on the number of victims amongst children. Evidence shows that thousands of children have been killed, maimed or injured as a result of military operations, insurgent violence, terrorist acts or mass casualty bombings. Schools and health centers have also been both unintended and deliberate targets of strikes.
- Through the conflict it has been reported that internally displaced children live in substandard conditions, with poor access to education and health care services, trauma counseling, available support to children with disabilities. Some surveys suggest that a large number of children have lost one or both parents. Minor heads of household and orphans are amongst the most vulnerable.
- In November 2009, UNHCR monitoring activities through 2009 indicated high percentage of school absenteeism, IDP children working, children without parents, and children with mental disabilities as well as high levels of domestic violence (UNHCR December 2009). UNHCR report also reveal high rate of missing children amongst IDPs (20% of IDPs assessed) and returnees (5%). Previous IDP monitoring have also highlighted instances of forced prostitution and risk of recruitment (IDP WG, March 2008)
- In 2007, an estimated 600,000 children had been displaced since 2006, the vast majority unable to return home. Many of the 220,000 school-aged internally displaced children had their education interrupted, adding to the estimated 760,000 children out of primary school in 2006.
- In assessment undertaken in 2007, according to UNICEF, at least 40,000 children were born to displaced families in 2006-2007 - many living in unsanitary conditions in camps. Figures by Save the Children show that in 1990 the mortality rate for under-fives was 50 per 1,000 live births. In 2005 it was 125. UNICEF has said Iraq's maternal mortality rates have increased up by 65 per cent. (IRIN, 14 August 2007)

UNHCR December 2009

During the first three months of the year, the majority of persons assessed informed that they were not directly targeted by security incidents (84% IDPs, 87% IDP returnees and 70% of refugee returnees). Those affected by security incidents stated intra-ethnic or intra-religious fighting (5% IDPs and 3% IDP returnees), large explosions (2% IDPs and 1.5% IDP returnees), forced recruitment by armed elements of children and adults (4% IDPs and 2% IDP returnees) and looting, detention, general violence, and mines/UXOs contamination. None of the groups informed being arrested by the authorities due to displacement or return. Twenty per cent of IDPs and 5% of refugee returnee reported children to be missing. Many IDPs and returnees experienced security measures and restrictions of movement due to checkpoints (38%) and curfews (13%), and fences/walls/barriers. They seemed to consider restrictions necessary in certain areas for security reasons....Many communities reported missing family members (30% of IDPs, 30% of IDP returnees, 27% of refugee returnees) indicating that they were missing because of kidnappings, abductions and detentions and that they do not know what happened to their missing family members.

The majority of communities assessed from January to March stated that only “some” children attended school. Only 14% of the groups reported that the majority of boys were attending school (9% of girls). Among the main reasons provided for not attending school, it was reported the need to work (53% of boys, 17% of girls), expensive school supplies (49% of boys, 52% of girls), expensive transportation (20% of boys, 19% of girls), overcrowded schools (12% of boys, 11% of girls) and missing documents for school admission (12% of all children). Communities indicated that education was deemed unnecessary (21% of girls) and tribal habits (19% of girls). Communities further reported about children working (66% of boys, 15% of girls), children without both mother and father (45% of boys, 47% of girls), and children with mental disabilities (26% of boys, 20% of girls) as well as children experiencing domestic violence (5% of boys, 16% of girls).

UN Special Representative of the Secretary General for Children and Armed Conflict, 25 May 2008:

"The Special Representative of the Secretary-General for Children and Armed Conflict, Ms. Radhika Coomaraswamy, in concluding her visit to Iraq of 20-25 April, stated that children of Iraq are the silent victims of the on-going violence. "Many of them no longer go to school, many are recruited for violent activities or detained in custody, they lack access to the most basic services and manifest a wide range of psychological symptoms from the violence in their everyday lives". Increasing cases of gender based violence are also reported. "It is an intolerable situation" she said. She called on religious, political, military and community leaders to send one clear message to Iraqi children: "Stay out of the violence and go back to school". Ms. Coomaraswamy noted that only 50% of primary school children are attending school, down from 80% in 2005. Only 40% have access to clean drinking water and there is a continuing possibility of outbreaks of cholera. Since 2004, an increasing number of children have been recruited into various militias and insurgent groups, including as suicide bombers, and approximately 1,500 are known to be held in detention facilities. Humanitarian access to communities is severely hindered in many parts of the country, depriving children of humanitarian assistance. More than half of Iraqi IDPs and refugees are children and also face a great deal of difficulties in their new places of settlement whether in Iraq or in neighbouring countries. The international community should assist the host countries in ensuring that the rights of children are protected and that they have access to basic services such as education and health care.

Over the past years, due to the sanctions that were imposed on the country, and the violence of the last few years, the humanitarian situation of children has dramatically worsened, and one of the most striking consequences of the continued violence in Iraq is the degradation of basic services. Although Iraq has sizeable revenue, in many parts of the territory, access to education, health, water, food and sanitation is lacking. According to UNICEF, 60% of Iraqis lack access to at least one critical social service, and more than half of the population does not have access to safe drinking water, which may have contributed to several outbreaks of cholera in 2007. Iraqi children are the primary victims, both because they have to face the violence of the conflict on a daily basis, and also because it deprives them of essential goods and services to survive.

Children's access to social services is systematically undermined by violence, politicization of aid delivery by all parties, criminality, an exodus of service providers, destructive military operations, insecurity and chronic underinvestment. Outreach services for the underserved have stopped in many areas due to fear and lack of staff. Displacement has also eroded local service capacity by burdening already weakened social services with additional demands from IDPs. The major challenges for children's health throughout Iraq remain lack of full access for vaccination as well as the risks of other outbreaks of cholera. The psychological effects of violence must also be noted with school drop out and drug addiction increasingly reported. According to WHO sources, in Baghdad, one out of two Iraqis has been exposed to a major traumatic event and other surveys, such as in Basra, show that civilians suffer from a very high stress level.

Iraqi girls in general have suffered from school exclusion more than boys mostly because of fear of violence and an increasing climate of social and religious conservatism. In many areas, and especially in remote ones, girls may not be encouraged to go to school.

Since 2004, and more so in the aftermath of the 2006 Samarra bombing and the ensuing inter-communal violence, children have been recruited and utilized by an array of parties to the conflict in Iraq. It has been reported that hundreds of children, some as young as 10 years of age, have been used in a varying array of tasks [....] However, AQI is not the only group that has been alleged to recruit and utilize children under the age of 18 years. Other groups who have been cited for use of children are Sunni Militias, such as the new Awakening Councils and Shiite militias, including the Mahdi Army. The Security Forces of the Government of Iraq are not known to use children under the age of 18 years. Iraq has just ratified the Optional Protocol on the involvement of children in armed conflict.There are currently approximately 1,500 children in detention in Iraq, the youngest of which is 10 years old.

The issue of displaced persons is becoming one of greater concern and is the direct result of violence and conflict of past years. The larger incidence of Iraqis currently displaced is due to the outbreak of war in 2003, with a massive outflow after the bombing of the Samarra shrine in February 2006. Today, more than 4.5 million Iraqis are IDPs or refugees, 40% of whom are children. Although Iraqis are displaced throughout the territory of Iraq, the phenomenon is aggravated in the KRG, which hosts approximately 800.000 IDPs, 60% of whom are children. The IDP population is not homogenous, has arrived in different waves and consists of diverse groups. In Kurdistan, for example, IDPs are of Arab or Kurdish origins, and may belong to three different categories: those who fled because of armed conflict, because they felt discriminated against as a minority or because they lived in disputed areas.Displaced Iraqis, whether they be Arabs, Kurds or other minority communities, are rarely displaced as family units. The vast majority are widows or women separated from their husbands and extended families.

The protracted violence in Iraq has had negative effects on children in general and on girls in particular, especially concerning access to education. Most girls, especially in rural areas, are not aware that they have a right to education. Lack of attention is given to the girl child and peace education should be opportunity to allow gender awareness programs to be included in schools. Gender based violence has been exacerbated by

the continuing violence in the country and the lack of specific attention to the needs of girls is of grave and immediate concern. The conflict allows crimes to go unpunished and impunity now prevails in many parts of the country for crimes such as rape, honor killings, forced early marriages and domestic violence. This is especially true in rural areas where there is no formal judicial process and where women and girls are not aware of their rights or are too fearful to exercise them. Rape and other grave sexual violence are also a major and increasing concern in IDP and refugee populations.

Iraq is one of the most landmine and ERW-contaminated areas in the world. More than 55 million cluster sub-munitions were also dropped during the last two wars, making Iraq the most affected country. Although the entire country is affected, 3000 hazardous areas have been identified in the Kurdistan region alone (766 km²). Children amount for one fourth of mine victims and one third of victims of ERWs. The majority of children who encounter them die; the remainder of them are maimed. Three Mine Awareness Committees exist in Iraq, two at the KRG level (Erbil and Suleimaniah) and one regional Mine Action Centre in Basra. They support mine education and clear contaminated lands that are obstacles for energy and infrastructure projects. No records or maps of mines and ERWs remain. With the current capacity and equipment, it is estimated that it will take more than a century to clear the KRG area alone."

IDP Working Group, 24 March 2008:

"Early marriages amongst Iraqi girls have been increasingly reported in 2007. In January, the early marriage of a young boy (13 years old) was reported in Thi-Qar. Students are still encountering difficulties in transferring documentation needed for school in their place of displacement. In particular, in January, cases in Kirkuk and in Baghdad were reported. Many IDP children have been reported as orphans without escort, as well as forced into prostitution. Drug abuse is an increasing phenomenon among children as reported in the North and lower South. Psychological trauma symptoms among children in unstable areas have been often reported."

United Nations Children's Fund (UNICEF), 15 February 2008:

"2007 condemned a growing number of Iraqi children to a more lonely life. Many struggled with fear and loss, as well as very real threats to their safety. While little hard statistics are available on abuses against children, far too many were stripped of their protective environment of family support, fundamental legal protections and access to school and health care. An unacceptably large number of children and women fell victim to military operations, insurgency, criminal and random violence during the year. Mass casualty attacks affecting hundreds of people became more frequent. The UN estimates 19,500 violent civilian deaths in 2007. Other estimates are higher (up to 24,000 according to Iraq Body Count), but still fall below 2006 figures. The majority of casualties were men; however hundreds of women and children are certainly among the dead. Many thousands more became widows and orphans after losing their main family wage-earner to violence, exposing them to poverty.

High levels of displacement in the first months of 2007 created additional threats to children. Some were separated from their families in the move. Others felt unable to fit in after arriving in their new areas, particularly if their families had to struggle to find work and enroll them in school. Instability also took a growing toll on children's behaviour. A report by the WHO in March 2007 said that 30% of Iraqi children were showing classic signs of anxiety and distress: including bedwetting, poor concentration and violence. Economic hardship affected millions in 2007, with unemployment rates at over 15% in

many governorates and food prices rising. Many parents were forced to ask children to work to earn money. Local NGOs reported a rise in the number of children visibly working on the street. Reports also emerged that some children were being recruited to work for non-state armed groups. Of the thousands of Iraqi children in need of special care, a few found support through a Child Re-integration Programme in Baghdad, developed by UNICEF and local partners. In 2007, these centres enabled 154 children to be restored to family care. But too many children are still living without help – or hope – on Iraq's dangerous streets. As the number of children without caregivers increased, capacity to support them in communities and institutions dwindled. In August 2007, several children were discovered being kept in appalling conditions in Baghdad's Dar El-Hanan home for severely disabled patients. The images laid bare the risks facing Iraqi children living without a family's protection. UNICEF and other organizations pushed for a nationwide assessment of Iraq's orphanages, which will be conducted through an international NGO in 2008.

Arrest and detention rates for children also increased over the summer, as a result of increased security measures in Iraq's central governorates. By year end, the Multi-National Forces-Iraq announced that over 950 children aged between 10 and 17 years old were being detained in their facilities for alleged security violations, in addition to at least 400 in Iraqi facilities. Ensuring these most vulnerable children receive treatment in line with international human rights law and standards for juvenile justice is a major UNICEF priority for 2008. The rise of extremism has added extra burdens for women and girls. Many women living in the highly conservative central provinces of Anbar and Diyala feared to step outside, even in full Islamic dress. Reports from Basra now suggest that women are also being targeted there. Basra police reported in December that 113 women were been killed in such attacks during the year. Women interviewed after displacement also reported sexual violence and forced "temporary marriages". Honor-killings were also consistently reported, particularly in the Kurdistan Region – including more than 300 cases of burned women last year according to the KRG. These cases are mostly presented as suicide attempts or accidents, which hampers data collection. As 2008 starts, children and women are as vulnerable as ever – if not more so. It is not clear how many children in Iraq's institutions are in poor living conditions and are susceptible to abuse and exploitation. And despite security improvements in some areas, many women still live in fear with few lifelines for support. Iraq is a State Party to the Convention of the Rights of the Child and the Convention on the Elimination of All Forms of Discrimination against Women –which obligates the State to protect the rights of children and women under any and all circumstances. Turning these rights into a reality will be a major challenge for 2008 – and essential to Iraq's ultimate recover."

UNAMI, 18 July 2006:

"Children remained victims in Iraq in many ways. Although not necessarily targeted, they are killed or maimed in sectarian-motivated attacks and in terrorist and insurgency acts. They are civilian casualties in MNF-I and Iraqi security forces-led raids against insurgents or militias, and suffer the most from other political, social and economic consequences of Iraq's violent daily reality. The extent of violence in areas other than the Region of Kurdistan is such that likely every child, to some degree, has been exposed to it. Children suffering disabilities have also been unable to access adequate care and education. [...] Minors are often witnesses of extreme violence, killings and scene of carnage and dead and mutilated bodies.[...] Violence, corruption, inefficiency of state organs to exert control over security, establish the rule of law and protect individual and collective rights all lead to inability of both the state and the family to meet

the needs of children. [...] According to the joint UN and Iraqi government food security and vulnerability analysis, children are the primary victims of food insecurity, with every one in ten child suffering from malnutrition. [...] UNAMI HRO is also aware of the extreme hardship of the children of internally displaced families, whose numbers are growing every day. The living conditions are substandard, without access to education and health care services, trauma counseling, available support to children with disabilities, to mention a few examples. Additional hardship for families and children is caused by the lack of adequate places to socialize, play and learn as would be necessary for their healthy development. Many Iraqis complain of having to keep their children at home for prolonged periods of time.”

See also:

Former children's camp in south in urgent need of assistance, **Integrated Regional Information Networks (IRIN)**, 23 August 2007

Militias 'recruit child bombers', **BBC News**, 25 April 2008

Move to prevent children being exploited by militants, **Integrated Regional Information Networks (IRIN)**, 29 July 2008

Internally displaced children in Erbil ask SRSG Coomaraswamy for 'security', **United Nations Assistance Mission for Iraq (UNAMI)**, 30 April 2008

Internally displaced children in Erbil ask SRSG Coomaraswamy for 'security', **United Nations Assistance Mission for Iraq (UNAMI)**, 30 April 2008

Iraqi children share their experience in film about friends separated by conflict, **United Nations Children's Fund (UNICEF)**, 3 January 2008

Update for partners on the situation of children in Iraq - Aug 2007, **United Nations Children's Fund (UNICEF)**, 27 August 2007

UNAMI, November - December 2005, p.2-3

See also "Increased protection of children following attacks", **IRIN**, 5 March 2006

Professionals and academics, and other social groups specifically targeted, many forced to flee (2007-2008)

- Since 2003, professionals, academics, including judges, and journalists have been specifically targeted. This also includes targeting of men because of their sexual orientation, or suspected sexual orientation. These attacks are typically perpetrated by extremists practising conformist ideology and by militant/terror groups intent on spreading fear and intimidation. Journalists and media workers are among the most frequently targeted group (UNAMI, 16 January 2007).
- Individuals are also being targeted including torture, abductions, kidnappings, extortion, and murder because of their gender or sexual orientation. From the onset of the conflict 2003, sectarian based militias, such as Mahdi militia, have targeted women, killing or injuring women for not adhering to conservative norms (i.e. for working outside the home, for wearing makeup or pants, or just for walking on the streets unveiled). More recently, attacks on gay men, or men suspected to be gay, have grown more pronounced with clear impunity and failure by Iraqi authorities and MNF-I investigating such and other killings. (HRW, August 2009).
- There has been a mass departure of professionals from areas of conflict to more peaceful areas or abroad at great consequence to Iraq - the return of whom will be key for reconstruction process. Measures are being undertaken to seek their return. In Wassit, for instance financial and other incentives to attract specialist doctors to return to local health

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HRW, August 2009

A killing campaign moved across Iraq in the early months of 2009. While the country remains a dangerous place for many if not most of its citizens, death squads started specifically singling out men whom they considered not “manly” enough, or whom they suspected of homosexual conduct. The most trivial details of appearance—the length of a man’s hair, the fit of his clothes—could determine whether he lived or died. At this writing, in July 2009, the campaign remains at its most intense in Baghdad, but it has left bloody tracks in other cities as well; men have been targeted, threatened or tortured in Kirkuk, Najaf, Basra. Murders are committed with impunity, admonitory in intent, with corpses dumped in garbage or hung as warnings on the street. The killers invade the privacy of homes, abducting sons or brothers, leaving their mutilated bodies in the neighborhood the next day.

UNAMI, 16 January 2007:

“HRO documented a worrying increase in targeted attacks and assassinations of professionals such as teachers, religious figures, barbers, police officers, artists, lawyers, exmilitary officers, and politicians across Iraq including the northern cities of Mosul and Kirkuk. These attacks are typically perpetrated by extremists practising conformist ideology and by militant/terror groups intent on spreading fear and intimidation. Journalists and media workers are among the most frequently targeted group with at least 12 killed from November to December.”

UNAMI, 22 November 2006:

“HRO has recorded a trend of mass departure of Iraqi professionals from areas of conflict to more peaceful parts of Iraq, such as Iraqi Kurdistan region or abroad. The Ministry of Higher Education (MoHE) has registered 154 assassinated professors from 2003 to August 2006. In the last 3 months, 15 more academics and university staff were assassinated. Dr. Isam Al-Rawi, Professor in the Geology Department of the University of Baghdad and the Head of the League of the University Professors was assassinated on 30 October.

The highest rate of assassinations, i.e., 44% of all assassinations of Iraqi academics, was recorded in Baghdad; Anbar, Mosul and Basra each accounted for 10% of the total number of assassinated academics, while in Diyala this figure was 5%. To circumvent some of the obstacles faced by professors and students, MoHE introduced more flexible measures for the attendance at the examinations held in September this year, allowing both academics and students to meet at convenient hours and in convenient locations.”

UNAMI, 23 May 2006:

“The killing of professionals, including doctors and academics, is another cause for concern. At least 100 professors have been reportedly killed since 2003. HRO has received no figures concerning the number of students killed. A large number of lecturers, teachers and other intellectuals have reportedly stopped their work or left the country. HRO has received numerous reports that sectarian divisions have engulfed universities; some students appeared to be backed by different political factions. Lack of security in campuses has led to reports of clashes between students as well as

intimidation against students and professors. Since 22 February 2006, thousands of students have reportedly requested to be transferred to other universities. [...]

The targeting of judicial professionals is particularly worrisome in the context of the deterioration of law and order. In Baghdad, an investigative judge was killed on 5 April and the president of the Tribunal of First Instance was killed on 25 April. There are reports that many judges, especially those working on terrorism or serious criminal cases, are facing intimidations or threats, including in the provinces. According to various sources, judicial professionals are said to be considering resignation, have requested to be transferred or are reluctant to sit on sensitive cases. There have also been reports of violence in Diyala, Hillah, Karbala and Wassit affecting court functions. Concerns have been expressed by judicial authorities that, because of constant cases of torture reportedly committed by the police, the investigative powers should be squarely kept with the judiciary.”

UNAMI, 23 May 2006:

“HRO is particularly concerned about the treatment of ethnic and religious minorities in the country, as well as individuals because of their sexual orientation. The alarming trend of militias turning to systematic intimidation and killing of ethnic and religious minorities has already been reported. Many individuals have left and continue to leave their homes and are seeking refuge among the members of the same ethnic/religious group as a result of threat letters or other forms of intimidation [...]

Intimidation and displacement of Palestinians inside Iraq (2004-2009)

- There has been a significant Palestinian community living in Iraq for many years. 23,000 Palestinians were registered by UNHCR in 2003. Estimates of the current number of Palestinians range between 15,000 and 34,000 people. In 2009, Palestinian refugees despite security improvements remain in precarious situations in camps or other locations despite improvements in security – very few Palestinians have been resettled.
- Following the US invasion of 2003, Palestinians were perceived as supporters of the regime or the insurgency. Palestinians have faced discrimination and attacks, others have been illegally detained, tortured or disappeared.
- Violence and intimidation particularly following events in Al Samara in February 2006, have forced Palestinians to flee to border or elsewhere in Iraq, such as the case of Palestinians refugees residing in Al-Hurriya and Al Baladiyat neighbourhood of Baghdad.
- Palestinian refugees are said to be victims of the same discrimination, labelling, stigmatization and profiling affecting other communities of foreign residents of Arab extraction in Iraq (e.g. Syrian Arabs, Sudanese, Yemenis, Egyptians, Somalis). (UNAMI, 23 May 2006)
- In 2009, there were some 3,000 Palestinians stranded in two makeshift camps (Al Tanf in no mans land between Iraq and Syria, and Al Walid camp on the Iraqi side of the border), and about 11,000 living in Baghdad and the provinces of Mosul and Basra (IRIN, April 2009; March 2008) In February 2010, Al Tanf camp would be finally closed with over 1,000 Palestinians settled in 3rd countries while remaining relocated elsewhere.

Integrated Regional Information Networks (IRIN), 19 March 2008

On 18 March the UN Refugee Agency (UNHCR) said it was concerned about the inhumane conditions in which over 2,700 Palestinian refugees are living in two of the three camps on the Iraq-Syria border. The UNHCR statement called for immediate and

urgent humanitarian assistance, and immediate relocation for those refugees with medical conditions. "Over the past 22 months, the UNHCR has been calling for urgent humanitarian solutions for this group and - even if only temporary - relocation elsewhere, preferably in the Arab region," spokesman Ron Redmond said in a statement. According to the UNHCR, 12 Palestinian refugees have died in the past 14 months in al-Walid camp - the latest one, a 25-year-old man, most likely died of food poisoning. "The deaths highlight the urgent need for humane solutions and proper medical care for the destitute population," Redmond said. The UNHCR's latest figures show there are over 2,000 refugees in al-Walid camp, while over 710 others are in al-Tanf camp in no-man's land between Iraq and Syria, nearly double the number since October 2007. About 300 refugees are in al-Hol camp, just inside Syria.

Integrated Regional Information Networks (IRIN), 30 July 2008

Palestinian refugees stranded in two makeshift camps on the Syrian-Iraqi border may be able to go back to their homes in Iraq and offered protection by the Iraqi authorities, a senior Palestinian diplomat said on 28 July. There are contacts between the Iraqi government and Palestinian authorities to secure the return of these refugees either to their homes or other places inside Iraq and offer [them] protection and humanitarian aid, Dalil al-Qasous, the Palestinian chargé d'affaires in Baghdad, told IRIN. According to al-Qasous, there are about 3,000 Palestinian refugees in the two camps: about 1,800 in al-Walid camp on the Iraqi side of the border, and about 1,000 in al-Tanf in no-man's-land between Iraq and Syria. In a statement on 15 July, Washington-based [Refugees International](#) said relocating Palestinian refugees to Sudan "is not a lasting solution", and called on the US government to urgently resettle them. "Relocating Palestinian refugees to Sudan does not offer this population a real choice for a permanent, stable home, and simply moves them from one marginalised situation to another," said Kristele Younes, senior advocate with Refugees International.

UNSC, 7 March 2007

"The Palestinian community in Iraq, currently estimated at more than 15,000 persons, suffers from regular intimidation, kidnappings and assassinations. On 23 January 2007, unidentified men, some of whom were in police uniforms, abducted 60 Palestinians from their homes in three Baghdad neighbourhoods. When released, some victims showed signs of physical abuse. UNAMI records indicate that 186 Palestinians were killed between April 2004 and mid-January 2007. Approximately 700 Palestinians have sought refuge on the border between Iraq and the Syrian Arab Republic and at the Al-Waleed Camp on the Iraqi side of the border. UNHCR and its NGO partners are providing food, water, supplies and medicine, while ICRC is supplying tents and other essential relief items. On 8 February 2007, a senior representative of the Palestinian Authority visited Iraq, after several failed attempts. He sought assurances from President Talabani and Prime Minister Al-Maliki that Palestinians in Iraq will be protected."

UNAMI, 16 January 2007

"Killings, threats, intimidations, and kidnappings are becoming the norm for Palestinians in Iraq. Many of these actions are reportedly carried out by the militias wearing police or special forces uniform. Most of the victims are found dead or simply disappear. Sixteen Palestinians were kidnapped and 9 killed during the reporting period. HRO received unconfirmed reports that many victims were interrogated and killed in illegal detention centres run by militias. Many residents have reported receiving threatening letters demanding they evacuate their houses and many of the abandoned houses were later occupied allegedly by members of militias or their affiliates.

On 2 November, two individuals were killed in front of their parents by the Iraqi National Guard in Al Fadil area in Baghdad. On 27 November, the body of 72-year-old Tawfiq Abdul Khaliq was found bearing signs of torture. On 13 November, unidentified gunmen killed a female Palestinian in Al Mashtel area in Baghdad. Her house was occupied by militias and when she asked MNF-I for help, the militia torched her house before departing. Other Palestinians were targeted and kidnapped for ransom and then released or killed. On 30 November, a taxi driver, was kidnapped at the Al Habibia area and then released. A shopkeeper was taken from his shop in Al Mashtel area on 2 December. The kidnappers came in one police and three civilian cars. His body was found on 7 December at the Baghdad morgue.

Attacks on the Palestinian compound in Baladiyat in Baghdad for instance are frequent in order to compel Palestinians to leave their dwellings and their belongings. Baladiyat is located in the midst of a Shiite area and threats are usually followed by small arms fire and mortar attacks. In the past two months, at least six incidents of organized attacks on the Palestinian compound have been recorded, such as on 26 November, when a group of gunmen stormed the quarter and demanded Palestinians leave or be shot. On 9 December, three mortar shells landed in Al Baladiyat wounding ten. On 13 December, mortar attacks continued to rain on the compound for three hours, killing up to 11 and injuring more. There were reports that the area was cordoned off by police, according to some accounts, and by militias according to others, thus preventing injured Palestinians to reach hospitals.

[...]

On at least two occasions in December, UNAMI had to call upon MNF-I to intervene while the Palestinian compound was being attacked. The police and MNF-I were reported to have arrived after the attacks had ended, and briefly patrolled the area. UNHCR reported that 350 Palestinians from Iraq (who recently left Baghdad) remain near the Al Tanf border crossing between Iraq and Syria in a makeshift refugee camp located in the no man's land between both borders. They have been denied entry by the Syrian government and they refused to return to Iraq. As a result, they have been living in increasingly desperate circumstances for the past six months. There are 131 Palestinians still within Iraq near Al Tanf border. Similarly, at the border with Jordan, 7 Palestinians remain between the Jordanian and the Iraqi border.”

UNHCR, 30 November 2006

“Palestinian refugees came to Iraq in successive waves. The first group originating from the northern part of today's Israel reached Iraq in 1948. They were followed by another group who fled the Occupied Territories, mainly in 1967, as a result of the third Arab-Israeli war and later by a third group who moved from the Gulf countries in the aftermath of the 1991 Gulf war. Following the 2003 war in Iraq, 23,000 Palestinians have been registered by UNHCR before the evacuation of the UN staff from Iraq and the interruption of the registration campaign in August 2003. It is believed that at present less than 15,000 Palestinians continue to live in Iraq.

The Palestinian refugees in Iraq were never recognized formally as refugees by the Iraqi government. However, they were protected by the Iraqi authorities based on pertinent resolutions of the League of Arab States and, in particular, the 1965 Protocol for the Treatment of Palestinians in Arab States, the Casablanca Protocol. They enjoyed a relatively high standard of treatment and were granted residence permits, benefited from the right to work, access to social services and were provided with government-owned

housing or fixed, subsidized rent in privately-owned dwellings. Iraq could thus be considered as the habitual place of residence of these Palestinians.

Since the fall of the former regime in Baghdad in April 2003, members of the Palestinian community in Baghdad have raised concerns that their status and their security in Iraq are at risk. They have expressed concerns regarding the renewal of their residency permits and the confiscation of their documents.

Palestinians in Iraq have become a target of arbitrary arrest, detention, false accusations in the media, abduction, kidnapping, torture and even extra-judicial killings. UNHCR received credible reports that many have been harassed by segments of the Iraqi population and armed militias who resent their perceived close affiliation with the former regime and accuse them of acts of terrorism. Palestinians complained about the increasingly difficult and sometimes humiliating process of renewing their residence documents on a two months basis.

Hundreds of Palestinian families were evicted from their homes by landlords resentful that they had been forced to house subsidized Palestinian tenants. Some of the reported acts of violence against Palestinians have been allegedly carried out with the connivance and, possibly the participation of some elements associated with the Iraqi security forces or that the security forces have shown little effort to stop these acts. This climate of hostility against Palestinians has continued unabated until the present, and many Palestinians, given their insecurity, have limited their movements and have stopped sending their children to schools.

In early October 2006, the Al Hurriya district in Baghdad was the scene for an incursion by the members of an Iraqi militia who threatened the Palestinian inhabitants of the area and evicted at least one Palestinian family from their home. UNHCR received reports that the incident forced around 300 families to leave the Al Hurriya district and to head for other areas. On 19 October 2006, a mortar attack in Baghdad's Palestinian neighbourhood of Al Baladiya left four Palestinians dead, a dozen wounded and many people displaced. Ambulances trying to reach the area right after the attack were reportedly turned away by armed militia. There had been previous warnings by militia groups that Palestinians should leave the neighbourhood. The Al Baladiya area used to house some 8,000 Palestinians. Reports by Palestinian sources now say that there are only about 4,000 remaining there."

UNAMI, 22 November 2006

"The Palestinian refugees in Baghdad have continued to be harassed and targeted by militias using light weapons and mortars to force them out of their homes in Baghdad, particularly the Al-Baladiyat and Al-Hurriya neighbourhoods. The Palestinian Embassy in Baghdad reported that Palestinians have received constant verbal threats and abuses. Further, the Embassy has reported incidents of random shooting at their buildings from moving vehicles, which the Palestinians have described as a daily occurrence. Several have been killed or injured in these incidents. As a result, many families living in Al-Hurriya and a majority of the 2,200 Palestinian families residing in Al Baladiyat have reportedly left their homes, which they had rented or bought after having been forcibly evicted from other neighbourhoods in Baghdad. For many Palestinians, leaving Iraq is not an option, as the only documents they have are either Iraqi Travel Documents or Palestinian passports. Neither document is accepted by neighbouring countries.

Following threats delivered through leaflets at the end of September, militias reportedly raided Palestinian neighbourhood of Al-Hurriya on 7 October at 22:00 hours and ordered the residents to vacate their houses by 10:00 the following day or they would be killed. UNHCR, MNF-I and the US Embassy were alerted and it appears that the Iraqi Army visited the area. During the same militia raid of 7 October, at least one individual and his family were forcibly evicted from their home. The militias confiscated the keys to their home, and up to 20 families have relocated from the area out of fear.

On 20 October, 6 mortars were fired at the Baladiyat complex, used as a sewing training centre and currently occupied by about 20 Palestinian families evicted from their homes in 2003. The complex is situated close to a mosque and a residential area. Three Palestinian men were killed and 21 sustained light or critical injuries. According to witnesses along the main road to Baladiyat, the attackers were dressed in black outfits. The witnesses, who were shop owners, were asked to get inside their shops during the attack.”

UNAMI, 18 July 2006

“The situation of Palestinians in Iraq continues to be of serious concern. Some 34,000 Palestinians have been living in Iraq for years but are currently victims to various types of human rights violations because they are perceived as supporters of the previous regime or the insurgency. After serious attacks against the Palestinian community following the destruction of Al-Askari Shrine in Samarra on 22 February 2006, their security situation has varied.[...]

In the morning of 26 June the apartment building complex where many Palestinians reside in Baghdad, in Al-Baladiyat neighbourhood, was attacked by armed individuals identified as militias. Some accounts indicated that among the aggressors there were allegedly members of the Special Forces of the Ministry of Interior. At least 4 Palestinians died and many others were wounded when the militias reportedly opened fire in a local market. Among the attackers, 7 were reportedly killed in the ensuing clashes. After the initial assault, the armed men entered several apartments and detained at least 12 young men. The situation was brought under control after the intervention of the MNF-I but Palestinians remain fearful and requested that the MNF-I continue frequent patrols to dissuade further attacks.

The Human Rights Office received several reports that, following the attack in Al-Baladiyat, family members of one Palestinian killed during the clashes was also murdered outside the Medico-Legal Institute in Baghdad, when they tried to recover the body of their relative. UNAMI HRO also received reports that two Palestinians wounded during the 26 June clashes were kidnapped from Al-Kindy and Habibiya hospitals by unidentified armed men.

The approximately 175 Palestinian refugees who are stranded in no-man’s land, on the border to Syria, recently reported that, on 18 June, Iraqi Security Forces arrived in several vehicles in front of the camp and told a man standing there that the Palestinians were terrorists and threatened to take him back to Iraq with them. The man started shouting and calling a Syrian security officer who happened to be in the camp. The officer called for a Syrian Patrol to assist, but the Iraqi Security Forces left in their vehicles towards Iraq.”

UNAMI, 23 May 2006

“UNAMI HRO has been in contact with Palestinian representatives over the past months. Some 34,000 Palestinians have been living in Iraq for years but are currently victims to various types of human rights violations because they are perceived supporters of the insurgency. In this sense, they are victims of the same discrimination, labelling, stigmatization and profiling affecting other communities of foreign residents of Arab extraction in Iraq (e.g. Syrian Arabs, Sudanese, Yemenis, Egyptians, Somalis). On 22 February 2006, following the events in Samarra, militias attacked Palestinians living in the neighbourhood of Baladiyat in Baghdad with mortars and indiscriminate fire. Up to 10 Palestinians have been reported killed since 22 February; others have been illegally detained and tortured or have disappeared.

Since 19 March 2006, approximately 240 members of the Palestinian community, who have lived in Iraq for many years, have left Baghdad in fear for their safety and were stranded near the border with Jordan as of 30 April..”

Freedom of movement

Restrictions on Movement and Registration on IDPs (2003-2009)

- Following 2003, most legal restrictions to freedom of movement disappeared as a result of the fall of the former regime. Nevertheless, freedom of movement in all parts of Iraq became severely restricted due to the security situation. . IDPs have faced harassment and restrictions on freedom of movements and registration affecting access to basic services. The restrictions have served to cement the sectarian divide.
- While there was no formal prohibition of movement prior to 2007, road travel was hazardous due to the possibility of mined areas, and by illegal checkpoints, which have been set up by armed groups, and numerous military checkpoints which have been set up, especially in and around Baghdad. (UNHCR, October 2005)
- Emergency laws were adopted in July 2004 by Prime Minister Allawi. Under the emergency law, measures including searches, arrest and detention and restrictions on freedom of movement can be taken. The state of emergency has been repeatedly extended in all parts of Iraq since 2004 to all of Iraq. States of emergency have also been declared in response to risks of cholera epidemic. In September 2008, a state of emergency was declared in Hilla following rising cases of cholera in the governorate. (Alertnet, September 2008)
- By 2007 restrictions were gradually imposed in northern governorates as the security conditions in south and central Iraq progressively worsened, and the influx of IDPs into the northern region continued to swell. Various restrictions were affecting 10 to 11 Governorates by end of 2007 such as in Dahuk, Sulaymaniyah, Erbil, Kerbala, Najaf, Qadissiya, Wassit, Babylon, Thi-Qar, Basrah, and Muthanna.
- In late 2007/early 2008, a directive was issued by the central Government to lift restrictions on IDPs' entry and registration and, as a consequence, restrictions eased to some extent. (UNHCR, August 2008) Though as of mid 2008 for the majority of Governorates there were no formal entry restrictions, registration requirements are imposed varying from Governorates, affecting IDPs access to basic necessities and rights - see chart below.
- In 2009, despite improvements in the overall security compared to 2006-2007, dilapidated infrastructure and security measures including checkpoints, curfews, permission requirements, and security fences or walls continue to restrict movement throughout the country particularly in and around Baghdad (UNHCR December 2009).

- For the majority displaced, security situation and restrictions in movement were similar for displaced and non displaced alike, however IDPs continue to face difficulties in registration. In early 2009, the government issued order to cease registration of IDPs on the grounds that there were no new displacements and to place emphasis on return of the displaced (IOM, February 2009) There continued to be reports that some governorates continued to register IDPs in 2009 (IOM, April 2009).
- There is no clear data on registration requirements per governorate as of early 2010. Registration requirements as per 2008 depending on governorate may include an original residency card, PDS ration card, the national identity card or a letter of approval from municipal councillors, mayors, local police or the MoDM (UNHCR, September 2008). It has largely been tightly restricted in areas with high levels of sectarian violence such as Kirkuk. In northern governorates, IDPs without sponsorship were reportedly blocked from registration though this has reportedly been removed following on advocacy by UNHCR (UNHCR interview, January 2010).
- IDPs have also reportedly denied registration due to sectarian, ethnic or tribal bias. This continues to be observed on a small scale (UNHCR, December 2009). Some newly displaced people particularly due to draught are reportedly not being registered by any government body or humanitarian agency. Reasons that are brought forward by IDPs not being able to register include bureaucratic delays, lack of documentation, perceived lack of benefit, or fear of being identified by the authorities.
- There is no clear data on the number of unregistered IDPs but in view of restrictions are considered significant. Unregistered IDP are unable to rent or purchase property, vote, obtain land title and access services specific to IDPs (IOM, January 2008; UNHCR, December 2009). The number of unregistered post-2006 IDPs identified may rise as more areas are assessed by previously inaccessible areas. (IDMC interview, December 2009).

United Nations High Commissioner for Refugees (UNHCR), 30 December 2009

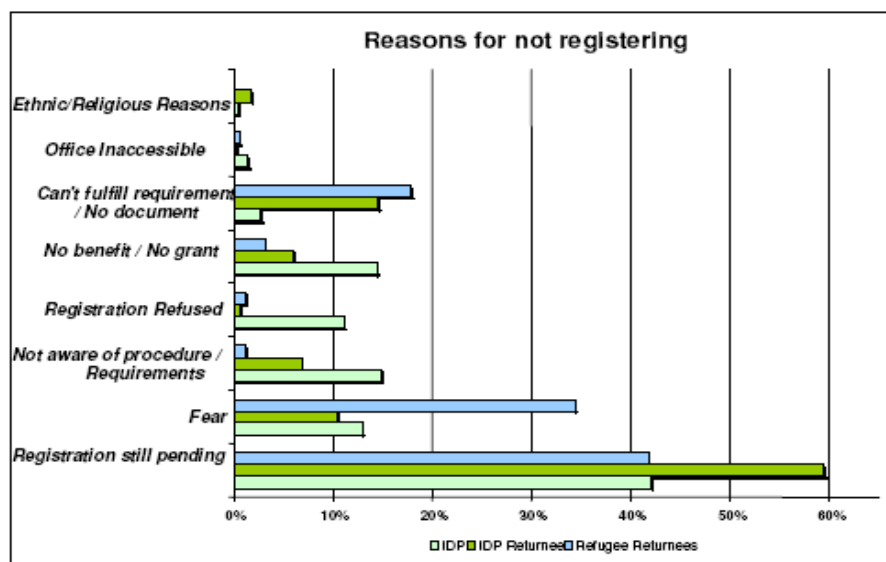
Many IDPs and returnees experienced security measures and restrictions of movement due to checkpoints (38%) and curfews (13%), and fences/walls/barriers. They seemed to consider restrictions necessary in certain areas for security reasons. Since April 1st, the majority of persons of concern assessed stated that the security situation had not changed (84% IDPs, 68% of IDP returnees and 77% of refugee returnees). The majority informed that the security situation and restrictions were similar to those for the local resident community....

Many IDPs and returnees reported that their movement was restricted by checkpoints, curfews, fences/walls and barriers and permissions from authorities to move. Moreover, restrictions on freedom of movement varied between men, women and children. Generally, men leave the home more frequently than women and children leave the home more regularly than women. This may be due to social-religious constraints that women face as well as the fact that most working children are working in public places such as streets, markets and etc.

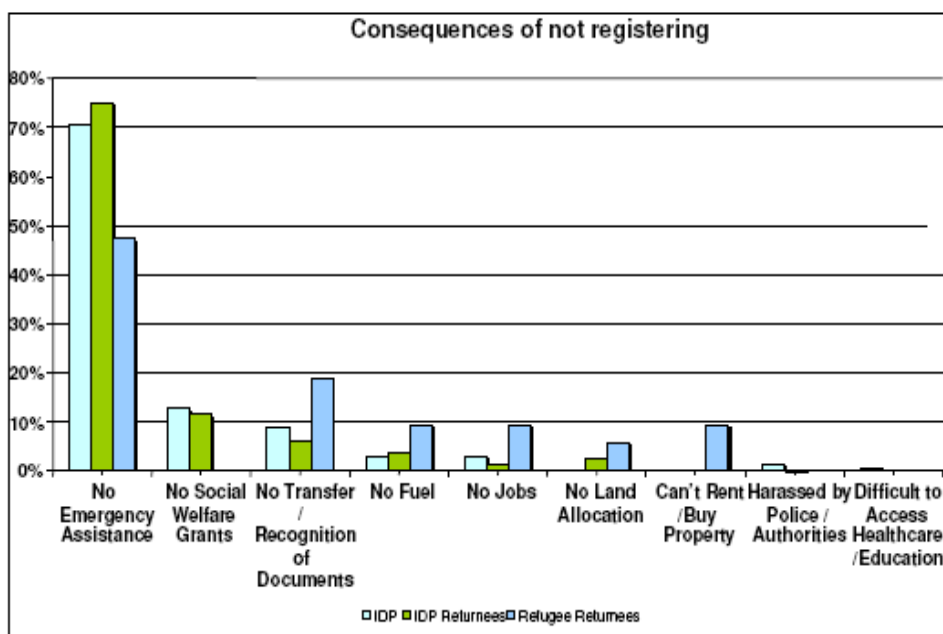
In Iraq, documentation is central to exercise citizenship rights, including registration as IDPs or Returnees, voting and accessing basic services, to accessing income/financial assistance, (pension/service records, driver's licences and car registration, medical committee certificates and property deeds). However, some kind of key documentation was reported lacking. IDPs and returnees indicated the need to register with the authorities in order to stay in their current location but findings highlighted problems with the registration procedures/requirements and/or lack information on the need for/benefits of registration. The communities assessed from April reported mainly lacking the key documents and having difficulties in renewing them.

<i>Document</i>	<i>IDPs</i>	<i>IDP returnees</i>	<i>Refugee returnees</i>
Civil ID/Renewal	20%	45%	34%
Nationality certificate	15%	14%	11%
Social welfare	11%	20%	7%
PDS ration card	13.3%	4%	10%
Marriage/Divorce certificate	12%	8.5%	8%
Pension record	6%	28%	1%
Passport	11%	7%	3.5%
Birth certificate	6%	7%	16.5%
Death certificate	4%	8%	10%

In many areas IDP and returnees indicated that their registration was pending due to bureaucratic procedures or could not register as they lacked necessary documents, did not fulfill requirements or were unaware of such requirements:



The main consequence of not registering was the exclusion from government assistance or social welfare, no transfer or recognition of documents, no fuel distribution and no jobs, no rental or purchase of property, land allocation, difficulties in accessing healthcare and education as well as might not be able to vote in the forth coming elections (30% IDPs, 26 IDP returnees, 21% refugee returnees) as the voter record was not updated



Internally Displaced Persons in Iraq: Registration and documentation issues. UNHCR, August 2008:

The Ministry of Displacement and Migration (MoDM) is the responsible government body for registering IDPs in the all 15 southern and central governorates. Registration practices are not uniform and vary from place to place depending on local conditions. Therefore, registration can be bureaucratic and/or discriminatory, for example in some areas MoDM is registering only IDPs originating from “hot spot” areas. As for Kurdistan Region, the registration is undertaken by the respective Security /Residency Directorates, and lately also by the Department of Displacement in the respective Governorates. In 2007, a directive was issued by the central Government to lift restrictions on IDPs’ entry and registration and, as a consequence, restrictions eased to some extent. Still, the registration process with MoDM remains often bureaucratic as IDP families are required to produce a range of documents: PDS card, nationality certificate and photograph of the head of household, civil ID card for all family members, housing card from the place of origin and letter of approval from the local mayor or *mukhtar*, the city council and/or the police.

Monitoring undertaken by UNHCR in March 2008 revealed that three quarters or more of the IDPs in south and central Iraq have registered with MoDM or other local authorities. In the three Northern Governorates, most IDPs are registered with the General Directorate of Security (Governorates of Sulaymaniyah and Erbil) or the local authorities (Governorate of Dahuk), who forward the information to the General Directorate of Security.

While monitoring showed that most IDPs appear to be registered, there is an undetermined number of IDPs. For example, the number of unregistered IDPs in the Governorate of Thi-Qar totals 968 families (cut-off date 30 June 2008). that did not register for various reasons, as explained below. Restrictions as well as entry/registration requirements in the different governorates are presented in the following table:

Governorates	Restrictions/entry requirements	Restrictions/registration requirements
Southern Governorates		

Babylon	As of 12 May 2008, authorities do not allow IDPs to enter unless they originate from the Governorate or are professionals.	Anyone can register once they have entered Babylon.
Basrah	No entry restrictions.	Only IDPs coming from a "hot spot" can be registered. IDPs need to pass a security check and write a declaration taking full responsibility for him/herself.
Diwaniya	No entry restrictions.	No registration restrictions.
Kerbala	No restrictions of entry; cannot bring furniture without approval.	Registration only of IDPs who (alternatively): · originate from Kerbala; · are eligible to transfer public service job; · own property in Kerbala; · are skilled; · are able to invest a certain sum of money; or · are considered a severe humanitarian case. In addition, a guarantee letter is required from a Kerbala resident.
Missan	No entry restrictions.	Only IDPs coming from a "hot spot" can be registered.
Muthanna	No entry restrictions.	No registration restrictions, but MoDM asked all IDPs to renew their registration due to incomplete or "questionable" registration.
Najaf	No entry restrictions.	No registration restrictions.
Thi-Qar	No entry restrictions.	Only IDPs coming from a "hot spot" can be registered. In addition, a sponsor is required.
Wassit	No entry restrictions.	Only IDPs coming from a "hot spot" can be registered. Previous registrations are in the process of being cancelled and IDPs need to re-register. This is done due to rather random registrations done previously. Several IDPs may face difficulties to re-register due to the lack of documents.
<u>Central Governorates</u>		
Anbar	Access to the Governorate or relocation within the Governorate requires a sponsor, who bears the responsibility that they do not pose a security risk. IDPs must also bring documents proving that they are from a "hot area". To enter Fallujah, a special ID from the Iraqi Security Forces is required.	No registration restrictions, but MoDM works only in Ramadi, making the office inaccessible to many due to restrictions on the freedom of movement and distance; hence, most IDPs do not register.
Baghdad	No entry restrictions issued by local authorities.	No registration restrictions, but no registration of IDPs has have taken place since November 2007.

Diyala	No entry restrictions to most districts in Diyala.	Only IDPs coming from a “hot spot” may register. In Khanaqin District, non-Kurd IDPs only get registered if they can prove that they originate from the area.
Kirkuk	No entry restrictions but border checkpoints control IDPs and investigate their reasons for relocation.	Both DDM and MoDM carry out registration in Kirkuk, but only IDPs providing proof of a threat may be registered. MoDM also asks to prove that the IDP originates from Kirkuk. Kurds fleeing “disputed areas” face difficulties to register.
Mosul	No entry restrictions.	No registration restrictions.
Salah Al-Din	No restrictions except Shurqat District where a special permission from the police is required.	Registration is restricted for IDPs coming from Samarra District as well as Anbar and Diyala Governorates for security reasons. IDPs from these areas need a sponsor to register.
<u>Northern Governorates</u>		
Dahuk	Arab IDPs single men not originating from the Kurdistan Region need a Dahuk resident to sponsor them at the border. No sponsor is required for Kurds and Christians. Families do not need a sponsor.	A security clearance is needed if the sponsor is not a relative.
Erbil	All IDPs not originating from the area need an Erbil resident to sponsor them at the border.	A sponsor is needed to obtain a permission to remain in the Governorate.
Sulaymaniyah	Admission is generally not restricted and does not require a sponsor. There are special procedures applicable to persons wishing to relocate to the District of Kalar. An IDP first has to approach the security office in person and submit a petition requesting permission to relocate. The applicant needs a Kurdish sponsor who resides in Kalar. The sponsorship letter needs to be ratified by the Notary Public Office in Kalar. Only after these conditions have been met, the security officer will provide the permission to relocate and to bring family members and belongings. Any applicant without a sponsor from Kalar will be denied permission to relocate. Once the IDP has moved to Kalar and rented a house, a letter	A sponsor is required to obtain a permission to remain. Persons originating from Kirkuk or Khanaqin in Diyala, including Kurds, Arabs, Turkmen and members of other ethnic or religious groups, are not able to stay for demographic and political reasons. Exceptions are made for Christian families with a recommendation from the church.

	from the Mukhtar (neighbourhood representative) needs to be submitted to the security office to confirm the IDP's address in Kalar. However, persons from "disputed areas" claimed by the PUK, i.e. Kirkuk and Khanaqin in the Governorate of Diyala, are generally denied entry to the Governorate for political and demographic reasons, unless they wish to come for a visit only. While Kurds are not permitted entry in order to maintain a Kurdish presence in these formerly arabized areas, Arabs, Turkmen, Yazidis and members of other religious or ethnic groups from disputed areas are also denied entry as the authorities do not want to be confronted with the accusation of changing the demographics by relocating non-Kurds from these areas. In that case, they are allowed entry but are not able to bring their belongings or a large amount of luggage with them.	
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International Organization for Migration (IOM), July 2008:

Governorate-level authorities across the country restrict IDP entry and registration due to security, economic, and even demographic concerns. In general, IDPs must go through a great deal of bureaucracy to register, sometimes traveling to five different offices. A varying selection of documents are required in each governorate, including the original residence card, PDS card, the national ID, and a letter of approval from city council members, the mayor, local police, and/or MoDM. Registration is tightly restricted in areas with high levels of ethno-religious tensions, such as Kirkuk. In addition, proper documentation is often difficult to obtain from the governorate of origin, and sometimes registration is restricted to those with an advanced degree or professional qualifications. Many are not allowed to bring furniture with them, if they are allowed to enter. In Babylon and Kerbala, only IDPs with origins or relatives from the governorate may enter. In Basrah, Missan, and Wassit, IDPs can enter but are not allowed to register and remain unless they are displaced from "hot spots," or particularly dangerous and volatile areas, in Iraq. In Salah al-Din, the governor has ordered that IDPs from Samarra district and Anbar and Diyala governorates leave the governorate due to concern that they are security risks. IDPs who do not originate from Dahuk, Erbil, or Sulaymaniyah must be sponsored by a resident from these governorates. The borders of Dahuk, Erbil, and Sulaymaniyah continue to be tightly controlled to maintain the relatively high level of stable security in the region. In some cases IDPs may be turned away, and they are generally not permitted to bring furniture into Dahuk with them.

IDP Working Group, 27 June 2008:

Restrictions on IDPs' freedom of movement varied between men, women and children. Generally, men leave the home more than women and children leave the home more regularly than women. This may be due to the social-religious constraints that women face as well as the fact that most working children are working in public places. Security measures (checkpoints, curfews, permission required by the authorities, fences/walls/barriers) in addition to dilapidated infrastructure (broken and flooded roads) restrict movement throughout the country. Groups of IDPs reported pressure to return or resettle elsewhere from authorities, armed elements and host communities. However no pressure was reported in the three Northern Governorates.

International Organization for Migration (IOM), 7 September 2007:

Governorate authorities are now restricting IDP entry and registration in Dahuk, Sulaymaniyah, Erbil, Kerbala, Najaf, Qadissiya, Wassit, Babylon, Thi-Qar, Basrah, and Muthanna. In the northern three governorates, IDPs must either originate from the governorate or be sponsored by someone who does in order to obtain residency cards. In the southern governorates, entry is increasingly restricted due to security concerns and the strain displacement is placing on local capacities. IDPs entering these governorates are frequently only registered if they originate from the governorate or can prove familial ties to the area. Non-registration prevents IDPs from transferring their PDS cards and accessing other basic services. In Anbar, although governorate authorities have no official restrictions, the intensity of intertribal conflict requires IDPs to have tribal ties to an area in order to stay there.

The Guardian, 11 October 2007:

Most of Iraq's provinces have closed their doors to people fleeing conflict elsewhere in the country, cutting off a vital escape route for people threatened by sectarian violence. According to aid officials, 10 out of 18 of Iraq's governorates are denying entry to civilians trying to escape the fighting or denying them aid once they have arrived, or both. An 11th, Babylon, also tried to shut out displaced families in recent months but was persuaded by the central government in Baghdad to relent for the time being....Iraq's neighbours and its relatively safe provinces have now exhausted their capacity to absorb more refugees, said Dana Graber Ladek, of the International Office for Migration (IOM). "They are trying to restrict the flow at checkpoints, and they are asking the local branches of the ministry of displacement and migration not to register any more IDPs [internally displaced people]," Ms Ladek said. But staying at home is often not an option either

UNHCR, January 2007:

"Throughout most of 2006, IDPs in Dahuk were not required by the local authorities to obtain entry documents and did not require sponsorship for residence. Since November at least, the local authorities have required a sponsor for both Arab IDPs and single men for both entry and residence. In practice however, the local authorities in Dahuk Governorate have admitted single IDPs without a sponsor, providing that i) the person's background can be thoroughly checked by KDP offices in the person's place of origin and he/she does not pose a security risk; and ii) the person could establish that he/she feared for his/her life. Otherwise, the person will not be admitted to / allowed to remain in the Governorate of Dahuk. While most IDP families are living in rented housing, IDPs are also living in tents, public buildings, and former military camps or with relatives.

"While persons originating from the Governorate have generally been able to enter, reside and move freely within the Governorate, all non-Kurds relocating to the Governorate need to have a sponsor to enter the Governorate and to legalize their stay through registration with the Directorate of Residence. IDPs legally resident in Erbil receive an identification card which is valid for three to six months and can be renewed. IDPs in the Governorate are also required to register with the local security office in the village/sub-district of their residence. Kurdish IDPs, provided they originate from the Erbil Governorate, do not face official obstacles to the purchase of homes,

while other IDPs are officially prohibited from the purchase of real property in KRG territory. However, provided they have regularized their stay, IDPs are generally free to rent accommodation and live with relatives. While most IDP families live in rented housing, some are also living in private homes and with host families or relatives.”

“All IDPs entering Sulaymaniyah Governorate must register at entry checkpoints established by the authorities. However, Kurds from Kirkuk and Khanaqeen (Governorate of Diyala) are generally denied entry to the Governorate for political and demographic reasons, unless they are visiting only. Sponsorship is not required for entry but is required in order to reside and remain in Sulaymaniyah. IDPs with residence are allowed to remain in Sulaymaniyah and integrate into the community;⁶ there are no official barriers to employment. After registering with the local authorities and obtaining a residency permit, IDPs may rent homes or live with relatives, while non-Kurds are not allowed to purchase immovable property. At the time of the survey, the government did not provide shelter for IDPs in public buildings or tents, although one family surveyed did report living in a public building.”

UNHCR, October 2005, pp. 90-91:

“All vehicular travel in Iraq is extremely dangerous and there have been numerous attacks on civilian vehicles as well as military convoys. Attacks occur throughout the day, but travel at night is exceptionally dangerous. Travel in or through Ramadi and Fallujah, travel between Hilla and Baghdad and between the International Zone and Baghdad International Airport is particularly dangerous, however, no major route into Iraq is to be considered safe. Main risks include:

- *Ongoing armed conflict between MNF/ISF and insurgents*, mainly near Fallujah and Ramadi (highway to Jordan/Syria) and near the Syrian border, but also on the roads to Samarra, Tikrit and Mosul, as well as on the roads leading South;
- *Ambushes/hostage taking by insurgents/criminals*, mainly on the road from Baghdad to Fallujah as well as South of Baghdad (‘Triangle of death’). The kidnappers often demand money but have also carried out kidnappings for political/religious reasons;
- *Highway robbery/car-jacking* by armed thieves are very common, even during daylight hours, and particularly on the highways from Baghdad to Jordan and Kuwait;
- *Roadside bombs*, in particular near Baghdad, mainly targeting MNF/ISF, but often causing civilian deaths;
- *Mines/UXO*, in particular near Iraqi-Iranian border and along the former ‘green line’;
- *‘Friendly fire’*: there have been a number of incidents in which civilians were killed at MNF/ISF checkpoints or when getting close to a military convoy.[...]

Freedom of movement is further restricted due to the numerous military checkpoints which have been set up, especially in and around Baghdad as well as at the former ‘green line’, which separates the Northern Governorates from Central Iraq.[...] In addition, there are illegal checkpoints set up by armed groups and militias. For security reasons, airports and border crossings may be closed, for example on religious holidays or political. At times however, such closures are imposed without prior notice.”

UNHCR, 12 August 2004:

“Most legal restrictions to freedom of movement disappeared as a result of the fall of the former regime. Nevertheless, freedom of movement in all parts of Iraq is severely restricted due to the security situation. While there is no formal prohibition of movement, many people have chosen to ‘self impose’ a curfew and do not venture out in the evening. Road travel is hazardous due to the possibility of mined areas, and is further restricted due to the numerous military checkpoints which have been set up, especially in and around Baghdad as well as at the ‘green line’, which separates the northern governorates from central Iraq. Freedom of movement is further hindered by the additional illegal checkpoints, which have been set up by armed groups linked to various political parties. As the security conditions in south and central Iraq progressively worsen, the

influx of IDPs into the northern region continues to swell. Although the KRG authorities have received IDPs of all ethnicities in all three Governorates, recent entry regulations have restricted the movement of IDPs to reside and seek employment in the region. The lack of a unified approach in all three Governorates has led to inconsistent policies and practices regarding IDPs. The assistance provided by KRG authorities favours Kurdish IDPs, while Arab IDPs have been given the least support because of security fears.”

See Also:

[Doors closing on Iraqi displaced](#), **BBC News**, 10 October 2007

[Difficult to access the needy in Diyala Province, say aid workers](#), **Integrated Regional Information Networks (IRIN)**, 3 October 2007

["Karbala says it will not host additional displaced families"](#), **IRIN**, 13 November 2006

SUBSISTENCE NEEDS

General

General: Overall Subsistence Needs (2003-2009)

- Several successive international conflicts, UN imposed sanctions and subsequent conflict since 2003 has resulted in reduction in the standard of living of all Iraqis. Comprehensive survey on living conditions in Iraq undertaken by the Iraqi Ministry of Planning and Development Cooperation in collaboration with the UNDP revealed grave deterioration in living standards in the country over the past 25 years with Iraq (UNDP, 12 May 2005)
- In March 2007 in view of the severe insecurity and socio-economic deterioration facing Iraqis following the start of what was in all evidence a civil war, the UN would finally recognise the situation in Iraq as a humanitarian crisis. UN appeals underscored the humanitarian crisis in Iraq and highlighted significant needs in various sectors as noted in consolidated appeal launched in February 2008 and the regional consolidated appeal of December 2008 (OCHA, February 2008; OCHA December 2008)
- In last several years following a decline in insecurity notable improvements were noted stemming largely from the decline in violence. The joint assessment carried out in 2008 by the Iraqi Government and WFP would for instance note of significant amelioration of the number of Iraqis with adequate access to food (WFP, November 2008). The humanitarian situation at the beginning of 2010 is projected to be in transition, situated between crisis and recovery.
- Decreasing levels of violence, improved government capacity and lack of new displacement have contributed to a gradual stabilisation of the humanitarian situation though still unpredictable (UN OCHA, December 2009) Iraqis remain extremely vulnerable due to the combined effect of pre-2003 state policies and international sanctions, the recent conflict and related displacement, collapse of public services and neglect. While there have been visible improvements in some areas there remains areas of high vulnerability (UN OCHA, December 2009).
- In 2009, the majority of IDPs report their priority needs apart from security, are shelter, food and employment. Such needs were identified as priorities in 2007 and continue to be reported as priority areas in 2008 and 2009. (UNHCR, December 2009; IOM, September 2008; IDP Working Group, June 2008) Lack of infrastructure and resources has raised potential tensions between IDPs and host communities (IOM, 2 February 2007; UNHCR December 2009) Tense relations between the host community and the displaced population were indicated in the Governorates of Al-Anbar, Baghdad, Diyala, Kerbala, Kirkuk, Missan, Najaf and Ninewa (UNHCR, September 2008)
- With reduction in violence, and wider access by the humanitarian community greater access may allow humanitarian access to areas hitherto inaccessible, and identify vulnerable communities that have not been adequately addressed by the humanitarian community. This includes addressing displaced that remain unregistered as well as the situation of those unable to flee who opted to stay in their homes or were unable to move and hidden from view.

UNOCHA, December 2009

While Iraq has not experienced major crises of a humanitarian or security nature in 2009, millions of Iraqis remain extremely vulnerable due to the combined effect of pre-2003 state policies and international sanctions, the recent conflict and related displacement, collapse of public services

and neglect. While there have been visible improvements in some areas where returns of IDPs have occurred, geographical areas of high vulnerability remain. These include areas in northern and northwestern Iraq, large swathes of southern Iraq, and districts in central Iraq that were affected by violence in previous years. Despite these concerns humanitarian actors now have significant capacity to address the humanitarian needs of these populations due to recent improvements in humanitarian access and implementation capacity in Iraq.

NRC, August 2009

Despite acute humanitarian needs remaining unmet, there is currently no humanitarian crisis in Iraq. As a general statement, this represents a consensus among all stakeholder groups, including INGOs and LNGOs. None of the sources consulted assessed the general situation as deteriorating. Rather, the position of the UN, donors and Government was that there are pockets of vulnerability, located in geographically defined areas and/or among specific population groups. There has been limited data available to identify the pockets and assess needs, although the quality of data is improving. Some INGOs contested the analysis, but the study did not find data or assessments that would support an alternative conclusion. LNGOs were shifting to focus on recovery, development and advocacy needs.

IOM, September 2008:

"Information below is based on in-depth assessments of **189,788** families (estimated **1,138,728** individuals) displaced throughout Iraq since 22 February 2006. (Please note that this figure represents the total number that IOM monitors have assessed, not the total number of displaced in Iraq since 22 February 2006.)"

IDP Working Group, 26 November 2008:

"An Overview of Priority Needs stated by surveyed IDP Population The majority of IDPs report their priority needs are shelter, food and employment:

Access to education is reported as a priority more frequently in the three Northern Governorates, while employment and access to water are more frequently reported in the Southern Governorates. Legal assistance and food were more frequently reported as priority needs in the Central Governorates:

United Nations High Commissioner for Refugees (UNHCR), September 2008

Tense relations between the host community and the displaced population were indicated in the Governorates of Al-Anbar, Baghdad, Diyala, Kerbala, Kirkuk, Missan, Najaf and Ninewa, mostly due to overburdened services, house/land disputes and rising prices and, to a lesser degree, the (perceived) behaviour of the group and employment.

Feinstein International Center (FIC), 2 July 2007

In political circles and within the international humanitarian apparatus itself, there is an emerging disproportionate focus on Iraqis who have fled as IDPs or refugees.⁷ Many IDPs and all refugees are relatively more accessible to current assistance and protection efforts than those who have remained in the worst-stricken areas. Little attention is so far being paid to preventing forced migration from occurring. Conditions facing the "internally stuck", those who have opted to stay in their homes or are unable to move and are therefore mostly hidden from view, are perhaps much more worrisome as access to essential needs and services becomes increasingly difficult in much

of the country, and as social supports such as the Public Distribution System (PDS) for food rations collapse.

IOM, 2 February 2007

"Despite instability throughout the country, the majority of the displaced reported that they were well received by their host communities. In general, IDPs moved from religiously and ethnically mixed to more homogenous communities, so the host community often had the same cultural background as the IDPs, and good relations were maintained. However, at the end of 2006, monitors reported increased tension between host communities and the displaced. Local authorities in Kerbala, for example, decided to close the governorate's borders to all IDPs except those who were originally from Kerbala, and even most of these were restricted from entering. Najaf also reportedly restricted settlement in Najaf city. These restrictions were attributed to a strain on the health sector, overcrowding of schools, and a lack of infrastructure to accommodate the influx of IDPs. In some governorates, the recently-displaced were blamed for an increase in violence. Local authorities in many governorates required security checks for any Iraqi who arrived and registered with MoDM, IRCS, or other entities."

UNDP, 12 May 2005:

"A comprehensive survey on living conditions in Iraq released here today by the Iraqi Ministry of Planning and Development Cooperation in collaboration with the United Nations Development Programme reveals grave deterioration in living standards in the country over the past 25 years, with Iraq now suffering from some of the region's highest rates of joblessness and child malnutrition and continuing severe deficiencies in sewage systems, electric power supplies and other essential public services. The survey, conducted from a representative sampling of 22,000 households in 2004, provides one of the largest and most comprehensive statistical portraits of the country in recent years. The survey [...] found that:

- Unemployment among young men with secondary or higher education stands at 37 percent
- Even though most Iraqis are now connected to water, electricity or sewage networks, supplies remain unstable and unreliable
- Almost a quarter of children between the ages of six months and five years suffer from malnutrition
- More young people today are illiterate than in previous generations
- Just 83 percent of boys and 79 percent of girls of school age are enrolled in primary school.

'This survey shows a rather tragic situation of the quality of life in Iraq,' Iraqi Minister of Planning Barham Salih said at the news conference where the report was released in Baghdad today. Also speaking at the launch of the survey, Staffan de Mistura, the Secretary-General's Deputy Special Representative in Iraq, said the study would serve as an important tool for policy makers, development planners and experts. 'It not only provides a better understanding of socio-economic conditions in Iraq,' he said, 'but it will certainly benefit the development and reconstruction processes in Iraq. The survey will help us address the grave disparities, between urban and rural and between governorates, in a more targeted fashion.'

See Also;

[International Organization for Migration \(IOM\), June 2008, Anbar, Diyala & Baghdad Governorate Profiles: Post February 2006 IDP Needs Assessments](#)
[International Organization for Migration \(IOM\), June 2008, Babylon, Karbala & Najaf Governorate Profiles: Post February 2006 IDP Needs Assessments](#)
[International Organization for Migration \(IOM\), June 2008, Basrah, Muthanna, & Thi Qar Governorate Profiles: Post February 2006 IDP Needs Assessments](#)

[International Organization for Migration \(IOM\), June 2008, Dahuk, Erbil & Sulaymaniya Governorate Profiles: Post February 2006 IDP Needs Assessments](#)
[International Organization for Migration \(IOM\), June 2008, Kirkuk Ninewa & Salah Al Din Governorate Profiles: Post February 2006 IDP Needs Assessments](#)
[International Organization for Migration \(IOM\), June 2008, Missan Wassit, & Qadissiya Governorate Profiles: Post February 2006 IDP Needs Assessments](#)

Food

Food insecurity and internally displaced persons (2003-2009)

- The latest assessment in 2007, WFP's Comprehensive Food Security and Vulnerability Analysis (CFSVA), found an estimated 22% of Iraqi households – approximately 6.4 million people – had borderline or poor food consumption and are considered vulnerable to food insecurity. (UN OCHA December 2009) A further 3% – about 930,000 people – are food-insecure.⁵² Poverty, combined with rising food prices, lack of production of sufficient food at the national level and drought, is rendering a large number of people vulnerable to food insecurity. (UN OCHA December 2009)
- In 2006, WFP reported that just over four million people (15.4 percent of the surveyed population) are food insecure and that a further 8.3 million people (31.8 percent of the surveyed population) would be rendered food insecure if they were not provided with a PDS ration. Pre-2007 figures indicate that approximately one quarter of Iraqi children are stunted (a consequence of long-term under-nourishment) underlined in 2005 by UN Special Rapporteur on food, (BBC, 30 March 2005)
- IDPs have also been recognised as particularly vulnerable to food insecurity, as they are often unable to access their food rations through the PDS. Most IDPs, like other Iraqis, rely on the food distribution system to obtain food. In 2008 the Interagency Food Sub-Group showed that 47% of IDPs were unable to access the PDS food ration in their place of displacement. (OCHA, February 2008) and IOM reports indicated widespread lack of access to these distributions due to insecurity, political manipulations, limited resources, and logistical difficulties. (IOM, January 2008)
- In 2008, most families receive food rations only intermittently or not at all: 49% of assessed IDPs sometimes receive their PDS rations, while 21% report no access. (IOM, 30 June 2008) In 2006, 32% reported no access to PDS food rations IDP families who do receive their PDS rations find that they are insufficient, late, and missing key items. Displaced people face problems in accessing food rations in their place of displacement due to difficulties in transferring ration card and or registration. (IDP Working Group, 27 June 2008)
- In 2009, 60% of IDPs and 80% of returnees surveyed by UNHCR monitoring had valid PDS cards. The main reasons for not having a PDS card were the inability to transfer it due to governorate restrictions (20% of IDPs) and the lack of necessary documents (21% of IDPs, 2% of IDP returnees and 10% of refugee returnees). PDS rations were complete for 15% of IDPs, 20% of IDP returnees and 15% of refugee returnees and in the majority of the cases distributed on a monthly basis.

UNHCR, December 2009

Since April, PDS food rations and market purchases represented the main sources of food of all communities assessed. Food distribution was more important for IDPs. Sixty per cent of IDPs and 80% of returnees had valid PDS cards. The main reasons for not having a PDS card were the inability to transfer it due to governorate restrictions (20% of IDPs) and the lack of necessary documents (21% of IDPs, 2% of IDP returnees and 10% of refugee returnees). PDS rations were

complete for 15% of IDPs, 20% of IDP returnees and 15% of refugee returnees and in the majority of the cases distributed on a monthly basis.

UN OCHA December 2009

In 2007, WFP's Comprehensive Food Security and Vulnerability Analysis (CFSVA) found an estimated 22% of Iraqi households – approximately 6.4 million people – had borderline or poor food consumption and are considered vulnerable to food insecurity. A further 3% – about 930,000 people – are food-insecure.⁵² Poverty, combined with rising food prices, lack of production of sufficient food at the national level and drought, is rendering a large number of people vulnerable to food insecurity. In response to the increase in international food prices and other factors, Iraqi food prices doubled between 2004 and 2008, causing a 20% drop in protein consumption.⁵³ More than half of the dietary energy consumed by households in Iraq is provided at a highly subsidised price through the PDS, rising to 67% among those households in the lowest income quintile. At present, 3% of the Iraqi population are food-insecure and an additional 22% of the population – some 6.4 million people – would become food-insecure if they did not receive their allocation through the PDS.⁵⁴

UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 12 February 2008

The last large scale assessment of food security and vulnerability took place immediately before the

sharp increase in conflict precipitated by the Samarra bombing in 2006. At that time, it was assessed that over 15% of the Iraqi population is food-insecure and a further 32% would be rendered food-insecure if the Iraqi Government PDS were disrupted. Trends since 2003 indicate that food insecurity in Iraq is rising. Reports⁴⁶ have identified chronic factors such as weak infrastructure, inadequate labour market capacity and poor education levels as root causes of food insecurity in Iraq, leading to high dependence on the PDS.

These chronic factors are now being greatly exacerbated by conflict, undermining both local markets and food distribution. Shortfalls and disruptions in the distribution of PDS commodities (wheat, rice, sugar, tea, vegetable oil, pulses, adult milk and weaning cereals) are increasing due to insecurity which affects supply lines and undermines the reliability of local PDS management. In July 2005, an estimated 55% of households indicated that they had not received rice in their PDS ration of May and 41% did not receive rice in April⁴⁷. The situation has certainly worsened since then. Shortfalls impact disproportionately and dramatically on poorer households who have a higher dependence on the PDS. Existing data shows that food insecurity has contributed to a rise in malnutrition rates since 2003. Pre-2007 figures indicate that approximately one quarter of Iraqi children are stunted (a consequence of long-term under-nourishment). Between eight to 16% are underweight and up to 9% are wasted, compared to 4.4% in 2003⁴⁸. This indicates that acute malnutrition is growing at an alarming rate, with the highest prevalence occurring in young children.

International Organization for Migration (IOM), 30 June 2008

IDP families who do receive their PDS rations find that they are insufficient, late, and missing key items. Many IDPs complain that the transferring of PDS ration cards to the location of displacement continues to be difficult because of lacking or lost documents and a slow bureaucratic process. Only 29% of assessed IDPs reported consistent access to PDS rations. Most families receive food rations only intermittently or not at all: 49% of assessed IDPs sometimes receive their PDS rations, while 21% report no access. Insecurity of transportation routes and trouble transferring the necessary documents for PDS registration in places of displacement are the most commonly cited reasons for non-delivery. 41% of IDPs have received food assistance from other sources, mostly humanitarian organization or religious charities.

IDP Working Group, 27 June 2008

There is a need for emergency food distributions to vulnerable IDPs and host communities unable to access PDS rations. Access to food is also hindered by a lack of familial income and a lack of security. This lack of security impedes access to markets in some areas of the country and makes these markets dangerous for both suppliers and customers. Road and neighbourhood closures, checkpoints, curfews, and military attacks also hinder access to markets. The majority consider food rations through the PDS as a main source of food; however, reliance on food rations varies among them due to the following reasons:

1. Not all families have a PDS card, either due to delays in transferring rations cards or because they are not eligible to register where they have settled.
2. Food rations are insufficient, incomplete and received irregularly for almost half of the caseloads.

International Organization for Migration (IOM), 11 January 2008

Much of the Iraqi population depends upon the government's PDS food rations, but there is a widespread lack of access to these distributions due to insecurity, political manipulations, limited resources, and logistical difficulties. The situation is especially dire among the displaced: of all IDPs assessed by IOM, only 22% said that they had regular access to PDS food rations. Another 22% said that they had no access at all, while the remaining 56% said they could access rations sometimes. Non-access to PDS rations was worst in Dahuk (91%), Sulaymaniyah (88%), Basrah (61%), Erbil (55%), Kirkuk (42%), and Babylon (42%). The most frequently cited reasons for non-access were insecurity along food transportation routes and delay in the transfer of PDS registration. Only 29% of IDPs assessed by IOM said that they had received food assistance from a source other than the PDS. Nearly all of this was provided by humanitarian organizations or religious charities. In some cases, IDPs reported receiving food assistance from armed groups.

International Organization for Migration (IOM), August 2008

97% of assessed returnees reported having a current PDS card. 38% of returnees reported regular access to PDS rations, 59% said they have intermittent access, and 3% said they have no access at all. Access to PDS rations is especially infrequent in Diyala, Ninewa and Anbar, with more than 90% of returnees in each governorate reporting irregular access to rations. 32% of assessed families reported that they had registered and received the Government of Iraq's financial grant for returnees. Of the total assessed, another 68% said that they had registered for the grant but had not yet received it. The remaining 46% had not registered for the grant. Nearly all families who actually received the grant are in Baghdad, Babylon and Anbar. Families throughout Baghdad have suffered shortages and delayed deliveries of PDS rations and materials. This is especially detrimental to low-income families, who rely food items such as rice, flour, tomato paste, legumes and oil provided by the PDS packs. In addition, deliveries are frequently delayed for more than two months. Rations in Al Wardiya, Baghdad have been delayed some six months. Many families have complained of receiving compromised PDS ration packs that are missing food items. Some report only having received tea, sugar and flour. Al Saheroon and Al A'bass neighbourhoods have not received rations since their return, as the area is too dangerous to effectively distribute food. Albo-Aitha has not received flour for several months, and now returnees are reporting that drivers are refusing to bring PDS rations into the area due to security concerns. Returnees must walk 9km in order to receive rations. During military operations in Sadr City in early summer, returnees reported not receiving PDS rations for more than three months, despite the Gol announcing that it would double rations throughout military operations. In Hameedat Village, returnee families have not received any form of support and are urgently in need of food assistance.

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Iraqi Ministry of Displacement and Migration (MoDM), July 2008

7. Meeting the Needs of IDPs and Returnees

The needs of IDPs and returnees should be addressed based on the international "Sphere" standards¹² that emphasize the need to meet the basic needs of life according to the minimum level of assistance that the Government or civil society actors can offer to Iraqis who are displaced inside or outside Iraq. These basic needs include the following: food, shelter, potable water, sanitation, health care and education. What follows is a description of the nature of the needs of Iraqi IDPs:

7.1 Food

Given the nature of displacement and the adverse impact on the IDPs' economic conditions in terms of having to leave work, becoming unemployed and losing the monthly income, people's diets are disrupted and important nutritional sources are lost. Likewise, even the food ration system (PDS) that guarantees every person a specific ration becomes almost absent as a monthly source of food due to displacement. Activating the food ration card system (PDS card) for IDPs faces many obstacles; losing the card itself and difficulty in accessing areas where eligible PDS beneficiaries are staying due to violence and deterioration of the security situation as well as fear of being endangered if IDPs return to their places of origin. Many IDPs who moved from one governorate to another were not able to transfer their PDS food ration card registration to their new areas of displacement. Administrative requirements such as having to return to one's place of origin to obtain required documentation make it difficult for IDPs to return and transfer the registration of their cards knowing that they originally had to leave the area due to security conditions. The following activities are recommended to mitigate the issues concerning food outlined above:

- Work towards providing the necessary facilitation needed to transfer the PDS food ration card from one governorate to another and upon return.
- Coordinate the work of MoDM and the Ministry of Trade to ensure that IDPs receive their PDS rations in their places of displacement.
- Coordinate with the Ministry of Finance (MoF) to provide adequate funding to meet key food items and other needs.
- Have government actors or bodies establish official relief centers that provide specific and regular food rations.
- The Government to take feasible measures to ensure delivering such services in a timely fashion and through secure means by facilitating free exchange of products.
- Coordination between government bodies and humanitarian agencies capable of distributing food items as a stop-gap measure to displaced persons before they are enrolled in the PDS in their place of displacement.

UNAMI, 16 January 2007

"One of the primary concerns for IDPs, beside that of access to sanitation and shelter, is food. The food distribution system seems to have deteriorated due to the security situation, especially

in Al Anbar, causing many displaced persons to receive either only a portion of the food rations or not receive any rations at all.”

IMC, January 2007

“Prior to June 2006, when the MoT changed its policy, IDPs fleeing their homes for other governorates were not allowed to claim food rations in their new locations. Thus, dependent on religious groups and on the generosity of host families often poor themselves, many IDP families had inadequate access to food. Their lack of money made it difficult, if not impossible, to supplement rations with goods from the prohibitively expensive open market, where inflation, transport difficulties, and power outages at food storage facilities have sharply driven up the price of food over the course of the conflict. Already suffering a food shortage due to the inadequate and irregular government rations, strained host populations as well as IDPs have run through their meager stores of food, and resource-sharing is becoming more difficult.”

IOM, 2 February 2007

“Food was one of the top priority needs identified by many displaced throughout Iraq in 2006. Accessing the Public Distribution System (PDS) was hampered because documents must be transferred or renewed, and PDS rations were not always available. Lack of income prevented families from meeting their nutritional requirements. In addition, humanitarian organizations sometimes could not access highly instable areas, where the displaced needed food most. For years, people throughout Iraq have relied on the PDS to supplement their daily food intake. It is estimated that between 25% and 40% of Iraqis are highly dependent upon PDS rations. The Ministry of Trade manages transportation and warehousing of food items, but lack of items, insecure transportation routes, and a lack of documentation prevent access to food rations. Of those interviewed in 2006, 32% reported no access to PDS food rations. Anbar (76%), Najaf (72%), and Thi-Qar (60%) had the highest percentage of displaced without access. Fifty-one percent reported receiving food rations sometimes and only 17% reported that they always received them. Muthanna had the highest percentage (82%) of IDPs who always received PDS food rations. In addition, those who received food rations found that they were incomplete; 34% reported that their last PDS distribution was missing items. Missing items have been attributed in part to corruption, mismanagement, and stealing of food items.

For those IDPs who had no access to PDS rations or had not received them lately, 54% blamed it on food transportation routes being insecure, and 15% blamed it on lack of transportation. Fourteen percent of families blamed it on a delay in transferring their PDS registration card to a new location or a lack of documentation. Twenty families even believed that there simply was no food to distribute.[...] Of those who did receive food assistance, 32% received it from humanitarian organizations, 25% received it from religious charities, 8% from regional authorities, and 2% received it from national authorities. These entities usually provided dried or canned food, rarely fresh food. In addition, the food distributions usually only lasted for a few weeks at most, so assistance was temporary and barely met the expanding need for food.”

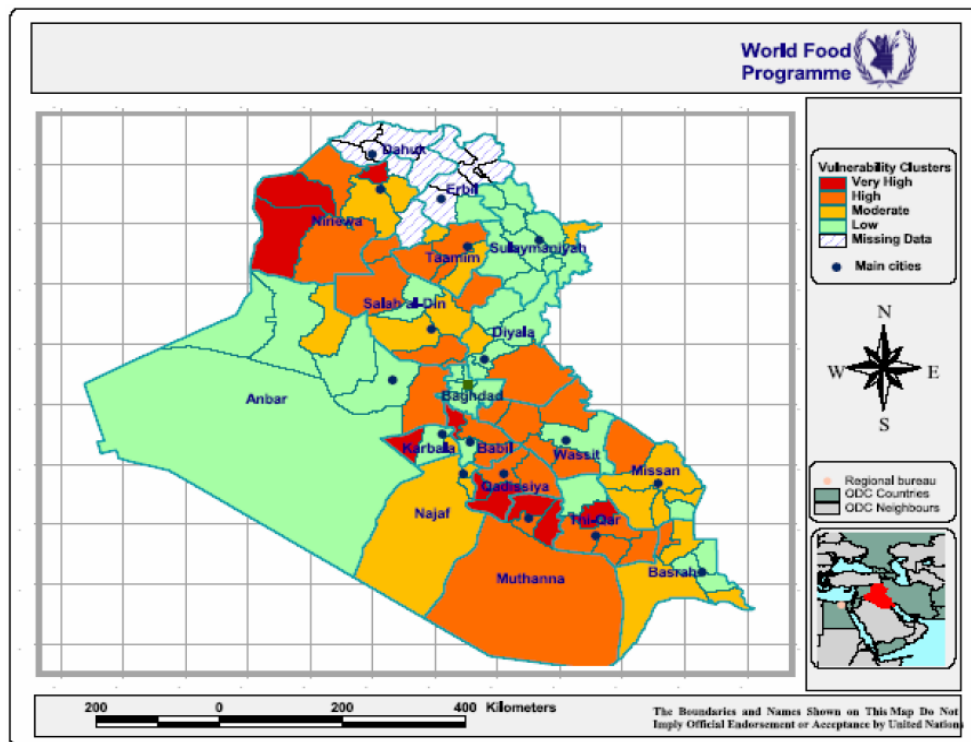
WFP, 11 May 2006

In general, the food insecure in Iraq can be found in those families with low incomes living in rural areas (69 percent of the food insecure in Iraq) who have poor or borderline dietary diversity. The heads of such food insecure households in Iraq are either unemployed (26 percent) or parttime workers engaged in agriculture either as marginal farmers (25 percent), non-skilled labourers (15 percent) or agricultural wage earners (5 percent). Women constitute a low percentage (14 percent) of those employed within the 16 to 60 years old age group. Children are also major victims of food insecurity. The chronic malnutrition rate of children in food insecure households was estimated as 33 percent. Chronic malnutrition affects the youngest children aged 12 months to 23 months most severely. Acute malnutrition in Iraq is also alarming with 9 percent of Iraqi children being acutely malnourished. The highest rate (13 percent) of wasting was found in children aged 6 to <12 months old followed by 12 percent for those aged 12 months to 23

months.... The survey found that just over four million people (15.4 percent of the surveyed population) are food insecure and in dire need of different types of humanitarian assistance including food despite the PDS rations they are receiving. This is an increase from the estimated 11 percent which were found to be 'extremely poor' in WFP's 2003 Baseline Survey.

The current survey also indicates that a further 8.3 million people (31.8 percent of the surveyed population) would be rendered food insecure if they were not provided with a PDS ration. Thus, if the PDS is discontinued without a careful assessment of the needs of the population, an estimated 47 percent of the total population will face real difficulties in ensuring their food security."

Map 1: Geographic distribution of food insecurity and poverty in Iraq.



UNDP, 13 May 2005

"Malnutrition may be the result of too few calories, lack of particular elements in the food, or inadequate uptake by the body, for instance, during diarrhea. The indicator of malnutrition chosen to monitor the first MDG is underweight-for-age ('general malnutrition'). Preferably, however, to be able to interpret the combination of acute and chronic malnutrition, the height-for-age ('stunting'), and weight-for-height ('wasting') is also monitored. While 'stunting' reflects chronic malnutrition and shows little seasonal variance, 'wasting' is a measure of acute malnutrition and has large seasonal variance.

- 12% of the Iraqi children in the age group 6 months – 5 years suffer from general malnutrition.
- 8% of children suffer from acute malnutrition.
- 23% of children suffer from chronic malnutrition.
- Acute malnutrition in the South reaches 9%, compared to 4% in the North.
- Chronic malnutrition mostly occurs in the Centre, where it reaches 26%, where 9% also suffer from stunting.
- The highest occurrence of acute stunting was in Erbil and Dahouk, where it reached 13%

-The levels of acute malnutrition are the same across the five quintile income groups, whereas general and chronic malnutrition is more prevalent among the poor.

-Levels of chronic and general malnutrition are found to be much more closely related to the caretaker's levels of education than to family income. Stunting was found to decrease to 17% for children whose caretakers have attained secondary or higher education, where general malnutrition also goes down to 8%. However, the situation is different with acute malnutrition, where no relation was found to the educational level of the children's caretakers."

See also (in sources, below):

"[Baseline Food Security Analysis in Iraq](#)", WFP, September 2004

For specific information on the needs related to the Marsh people, see, "[UN Office of the Humanitarian Coordinator for Iraq \(UN OHCI\), 30 June 2003, United Nations Inter-Agency Assessment of Vulnerable Groups Part I: Marsh Arabs](#)"

Health

Health Situation in Iraq and access to health for displaced populations (2003-2009)

- In 2009, access to adequate health services has been identified by the international community as a critical area of concern particularly in vulnerable defined areas (OCHA December 2009) Health care in Iraq deteriorated greatly over the last decades as result of the repeated wars, sanctions and the generalised violence and conflict since 2003. This deterioration in health services also resulted from the exodus of qualified professionals, a severe shortage of medication and equipment, and damage to medical facilities. (IDP Working Group, 27 June 2008)
- Access to essential health services has consistently been a major problem for the conflict-affected communities. Health care has typically however been less of a priority than, apart from security, shelter, livelihoods, and other issues of concern. Children and pregnant women are among the most affected by lack of access to primary services health and nutritional support, leading to increased risks of morbidity as well as child and maternal mortality. The mental health and psychosocial effect of the conflict on the victims and their communities, especially women and children, represents another major health issue.
- Iraq is still facing a range of immediate and severe environmental problems. Hospital waste represents a hazard that promotes the spread of communicable diseases. Moreover, diseases associated with unsafe water have increased at alarming rates. This also includes presence and effect of hazardous wastes from military warfare including depleted uranium and ramifications this has on civilians (Al Jazeraa, 2009)
- Substandard living conditions, the stress of long periods of displacement, financial problems, insufficient diet, and poor sanitation are sources of health complications and disease for IDPs who live in these conditions. Amongst the displaced there is higher occurrence of health problems amongst women and children. In addition, displaced children often suffer psychological trauma. Trauma and lack of facilities to address it has been highlighted by the international community (UN OCHA December 2009). In 2007, 70 per cent of displaced mothers consulted by IMC reported that their children suffered from psychosocial distress. ((IOM, 30 June 2008; IMC, January 2007)
- Throughout the last few years access to adequate health care has been a reoccurring problem for IDPs. The situation of access was certainly more difficult in conflict areas. NGOs and Ministry of Health have often noted of difficulties being prevented from delivering aid due to insecurity as result of ongoing operations from 2003 onwards. Though access has since improved, difficulties persist. Because many IDPs live in rural or poor neighborhoods or because of lack of means, access to adequate health care is particularly difficult. The number

- In 2009, IOM monitoring reports revealed that health care as a priority for IDPs varied from one governorate to another. At national level health was a priority for less than 20 per cent of IDPs surveyed. However this was not uniform with Thi Qar (42%), Wassit (31%), Baghdad, Babylon, Salah al Din (20% or above) (IOM August, September 2009). UNHCR surveys revealed that primary health centres were accessible to 94% of IDPs, 89% of IDP returnees and 50% of refugee returnees.
- However health care fees were not affordable for 24% of IDPs, 1% of IDP returnees and 8% of refugee returnees. Surveys also indicated that 1% of IDPs and 3% of IDP returnees were rejected from health institutions when in need of emergency medical help. In contrast in 2008, 14% of IDPs reported that they had no access to health care services, and 30% could not access the medications they need. Non-access to health care services was worst in Kirkuk (71%), followed by Diyala (30%), Muthanna (22%), and Salah al-Din (21%).

UNHCR December 2009

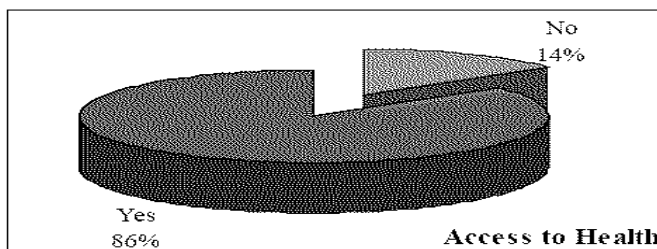
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UN OCHA December 2009

Despite the increase in the capacity of MoH and health partners to respond to major health crises, 2008 and 2009 have witnessed a major measles outbreak. Despite the fact that only sporadic cholera cases were reported in 2009, cholera preparedness should be high on the agenda in 2010 taking into consideration the lack of access to water and sanitation services and weak health services in many districts. Access to health services has been identified by the international community as a critical concern in a number of districts and also in areas proven to have low access to and use of vaccination services and other health and nutrition services, particularly those with a high prevalence of chronic malnutrition. Health actors are planning to provide support to MoH with the provision of basic health services in various areas where access to these services is limited. Mental health also remains an issue as a result of exposure to past and recent conflicts as well as cyclic outbreaks of violence. The health aspects of the drought should also be considered as an integral part of the overall humanitarian assistance, including tackling acute and chronic malnutrition, and addressing drought-related and other diseases.

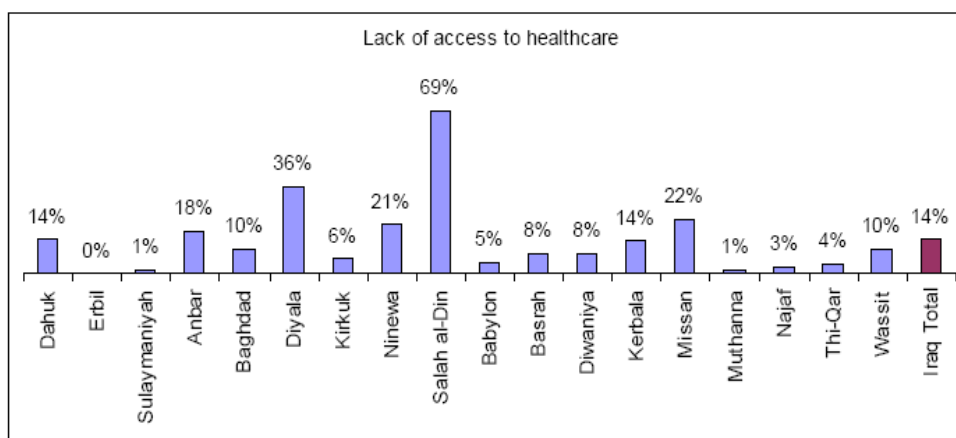
International Organisation of Migration, February 2009

Access to health care remains a serious concern for IDPs across Iraq because of their frequently precarious living situations without access to potable water, protection from the elements, or sewage disposal. While 86% of IDPs nationwide report access to health care, this does not ensure that the health care is good quality, nor that the health care facilities have the necessary qualified staff, medicine, and equipment. Health care services in Iraq have deteriorated greatly due to the exodus of qualified professionals, a severe shortage of medication and equipment, and damage to medical facilities.



IDP Working Group, 27 June 2008

Health care in Iraq has deteriorated greatly due to the exodus of qualified professionals, a severe shortage of medication and equipment, and damage to medical facilities. Many of the displaced live in substandard conditions and lack basic services, increasing their risk of disease. Lack of access to health care is especially problematic in Salah al Din and Diyala.



Source: IOM IDP Monitoring and Needs Assessments, May 2008

International Organization for Migration (IOM), 30 June 2008

Substandard living conditions, the stress of long periods of displacement, financial problems, insufficient diet, and poor sanitation are constant sources of health complications for IDPs. Disease is more common among IDPs who live in these conditions, and once present, it spreads more quickly. It is common for IDPs to suffer from diseases such as hypertension, heart disease, diabetes, skin and intestinal infections, and anemia, along with ailments due to malnutrition. These problems have a higher occurrence in women and children. In addition, due to witnessing violence and conflict, displaced children often suffer psychological trauma. Yet, there are few programs which assist with these problems, creating a new generation of Iraqis who suffer from unaddressed psychosocial stresses.

Because many IDPs live in poor or rural neighborhoods, access to health care is particularly difficult to attain. The number of health care centers is often insufficient, and the ones that are present are not equipped with necessary equipment and medicine. 14% of IDPs reported that they had no access to health care services, and 30% cannot access the medications they need. Non-access to health care services is worst in Kirkuk (71%), followed by Diyala (30%), Muthanna (22%), and Salah al-Din (21%). Those who cannot access health care report financial constraints and unavailability of services as the most common reasons for non-access. In addition, there is a serious need for women's health care and health awareness education to avert miscarriages and pregnancy complications among IDPs. Because it is often difficult for women to travel, especially

at night, it is harder for them to obtain proper care, and specialized health care is unavailable. Access to health care is somewhat better in the three northern governorates, especially in cities.

International Organization for Migration (IOM), August 2008

Of assessed returnee families, only 51% have access to health care. When asked why they could not access health care, returnees cited lack of health facilities and a shortage of medications. Access to health care is worst in the centre; 67% of returnees assessed in Baghdad said they have no access to health care. In Kirkuk, 91% of returnees assessed said that they have no access to health care, and in Basrah, 60% of returnees assessed have no access to health care. More than 90% of interviewees in governorates such as Anbar, Missan, Muthanna, Najaf, Ninewa and Salah al-Din report access to health care. Access to medications is also worse in the centre. Of returnees assessed there, 52% said that they cannot access medications they need. A shortage of medication in Sadr City is forcing a large number of returnees to resort to buying from private pharmacies, where the prices are much higher. In Basrah, 60% of returnees assessed have no access to medications and all the families assessed in Kirkuk cannot access medications. Returnee families reported a complete absence of health care in Al-Latifayah, Al-Mada'in, Qariat Nabisheet, A'rab jboor, Al Forat and Al Akhtal, Baghdad, nor in Momniyah, Awereej, Mahmodiyah, and Al Entisar. Similarly, in Rikiyah village, Al-Ahnaf, northern Kadhimiyyah, Baghdad, the closest health care is 8km distant. Infant deaths have been reported due to a lack of skilled midwives. Isolated and rural communities (such as Kargoliyah and Madain) frequently lack health centres altogether because their population density does not meet Ministry of Health requirements. Returnees must often travel long distances (30km in the case of Al Entisar) in order to seek out basic health facilities (even pharmacies in some cases); often an expensive and dangerous journey. Health care centres are frequently either destroyed (such as in Al Hardanih), closed down due to violence (in Badran and Saidiya), understaffed (as in Al Saheroon and Al A'aboss) or do not provide adequate services in case of emergency such as Saba al-Boor.

International Organization for Migration (IOM), 11 January 2008

Health care in Iraq has deteriorated greatly due to the exodus of qualified professionals, a severe shortage of medication and equipment, and damage to medical facilities. Many of the displaced live in substandard conditions and lack basic services, increasing their risk of disease. Of IDPs assessed by IOM, 14% reported that they have no access to health care services. Non-access is worst in Kirkuk (57%), Diyala (35%), Muthanna (22%), and Dahuk (22%). Access to services is no guarantee of adequate health care. One-third (33%) of those assessed said that they cannot access medications that they need. Specialized care (e.g. surgery or gynecology) is also difficult to obtain in Iraq, since many specialists have fled the country. Inadequate shelter and poor services (lack of sanitation and potable water) are major causes of IDP health problems. Some IDP groups must rely on lakes, rivers, or drainage and irrigation ditches for drinking water. Monitors frequently observe malnutrition and gastrointestinal and dermatological diseases among IDPs, especially children. IDP groups living in overcrowded neighborhoods or far from essential services are particularly vulnerable

UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 12 February 2008

The humanitarian health and nutrition situation in Iraq continues to deteriorate. Health and nutrition humanitarian needs result from a combination of vulnerabilities (weakness of access, poverty, inflation, food insecurity) and crisis-related factors (military activities, human rights violations, displacement and ethnic tensions). 55 Recent estimates⁵⁶ indicate around 151,000 violence-related deaths in three years through 2006, which translates into 137 deaths per day, although other sources provide higher estimates. Additionally, several hundreds of Iraqis suffered injuries, many requiring specialised hospital care, severely burdening Iraq's health care delivery system. This is further compounded by displacement, which poses an extra strain to the health system in some areas. Violence contributed to one out of every eight deaths and was mainly

reported in the Centre/South (0.70-0.05 per 1,000 persons per year respectively). The average crude mortality rate for all Iraq is 4.97. The Centre/South region's crude mortality rate is 50% higher than in the Kurdistan region (5.21 and 3.4 per 1,000 person year, respectively)⁵⁷. Access to essential health services is a major problem for the conflict-affected communities. Various aspects of conflict are limiting populations' access to health services, as well as affecting public health programmes including immunisation, maternal and child health (MCH) and nutrition programmes. Routine immunisation services continued to suffer in 2007. Twenty-eight out of 117 districts reported Diphtheria, Pertussis and Tetanus (DPT) 1 coverage below 80% and a drop-out rate between DPT1 and DPT3 more than 10%. Health providers have been reluctant to do outreach activities due to the security situation.

Children and pregnant women are among the most affected by lack of access to primary services health and nutritional support, leading to increased risks of morbidity as well as child and maternal mortality. Child mortality rates (46 per 1,000)⁵⁸ and maternal mortality rates (84 per 100,000)⁵⁹ are already high for the region. Diarrhoea and acute respiratory infections still account for about two-thirds of deaths amongst the under five years of age population, which is further compounded by the increase in malnutrition levels; from 4% in 2002 to 9% in 2005, affecting the youngest, up to 17% in six- to 11-months-old and most prevalent in the south, averaging from 10% to 17%. It is estimated that early childhood IMR stands around 44 per 1,000 live births in the south/centre and 26 per 1,000 for Kurdistan.

The mental health and psychosocial effect of the conflict on the victims and their communities, especially women and children, represents another major health issue. It is estimated that 4% of the population is suffering from severe mental disorders and approximately 20% from common mental health problems⁶¹. A much wider portion of the population suffers from mental health problems linked to the stress of living in conflict. Approximately 36% of Iraqis claimed emotional stress as a result of conflict (40% female and 30% male). Drug shortages prevent treatment of chronic diseases. Around four million Iraqis suffer from hypertension and one million have diabetes. Despite recent improvements, Iraq's medical institutions still experience shortage of at least 10 medicines out of a list of 32 standard chronic drugs. This problem is more severe in the conflict-affected areas, due to hindered distribution of pharmaceuticals from Baghdad to these areas.

Iraq is still facing a range of immediate and severe environmental problems. Hospital waste represents a hazard that promotes the spread of communicable diseases. Moreover, diseases associated with unsafe water have increased at alarming rates. In the second half of August 2007 a cholera outbreak was reported from Iraq, due to poor quality of drinking water and poor sanitation. As of January 13, 2008, 4,697 confirmed cases were reported in 46 districts in 11 governorates. A major concern is the impact of the "brain drain" on the Iraqi health care delivery system. Available figures on health providers leaving their jobs in the MoH indicate that this trend is persisting⁶³. In addition, the frequent change of MoH leadership reaching to the directors' level is undermining the ability of MoH to carry out its functions, especially in the worst affected areas. This is compounded by security restrictions on movement of the international humanitarian community (UN and NGOs).

IOM, 2 February 2007

"Increased instability and violence is taking a toll on the health sector, possibly more than any other sector in Iraq. In addition to health facilities occasionally suffering collateral damage during military operations or armed conflict, many doctors and other health professionals have fled the country due to threats to their lives, they no longer can travel to work, or they have found work in other professions. Medical equipment and medications are also dwindling. Fewer Iraqis are able to obtain the health care they once received.

Ten percent of the displaced assessed reported that there were no health care services in their area of displacement or if they are available, they could not access them. Of those with no access, 4% blamed inaccessibility on financial constraints, 5% reported that facilities were too distant, less than 1% reported a lack of female staff and less than 1% refusal of service as reasons for not being able to get adequate health care services. In addition, 37% reported that they did not have access to most of the medications they needed. IDPs were also asked if they had been visited by a health care worker in the last 45 days (from the date of the assessment). The majority (70%) had not, Ninewa having the highest percentage with 96% who had not been visited. Of those 30% who had been visited in 2006, 25% received vaccinations, 4% received medical examinations, less than 1% received consultations or educational information, and 3% received medications.

[T]he lack of proper sanitation facilities and clean water, lack of proper nutrition, and inadequate living arrangements often found in IDP communities can contribute to disease and sickness. Of those families assessed, 13% had members who had suffered from infectious diseases or epidemics in the last 45 days (from the date of the interview). In addition, a high number of the displaced, 55% total, had not been involved in vaccination campaigns, which could further prevent disease and epidemics. The highest percentage of these was found in Ninewa (99%) and Kerbala (81%). Of those who had been involved in a vaccination campaign, 3% of families were vaccinated within the last week (from the date of the interview), 13% received vaccinations within the last month, 21% received them one to three months prior, 8% received them four to six months prior, and less than 1% received them seven or more months prior to the interview. Qadissiya and Missan had the highest percentages of displaced who had been involved in a vaccination campaign (86% and 77%, respectively)."

IMC, January 2007

"In focus groups conducted by IMC in various IDP communities, nearly 70 percent of the mothers reported that their children suffer intense psychological distress when they hear sounds of helicopters, gunfire, or explosions. About 60 percent of them report that their children suffer pervasive feelings of sadness, cry often, and seem to cling to their parents a great deal more than they did before. About 17 percent of the mothers reported their children also showed signs of pervasive anxiety and fear. An equal number of mothers said their children seemed constantly tired and lacked energy. Over a third experienced repeated sleep disturbances and nightmares. About 25 percent of the mothers observe that their children were falling ill frequently, particularly with respiratory and skin infections. While this might be a result of poor living conditions, frequent illness could also be stress-related. Several mothers also reported that their children are irritable and easily angry; many appear unable to concentrate (.day-dreaming.) or to be interested in daily activities, even play. [...] Turkmen IDP children in Karbala said that their major problem is inability to speak Arabic. Such inability to communicate not only leads to anger and frustration, but also creates learning problems at school and integration into local communities.....

"While the collection of certain types of data from displaced populations is neither possible nor practical in the current environment, the Iraqi Ministry of Health, with the assistance of outside organizations such as UNICEF and WHO, has compiled some figures that allow a big-picture look at general health indicators. For example, the overall crude death rate in 2002 was 8 per 1,000, and the infant mortality rate was 108 per 1,000. Now, out of 1,000 children, an estimated 131 did not reach the age of 5, and the maternal mortality rate was 294 per 100,000 live births¹. At the same time, the most recent data show that malnutrition in Iraq is around 26% for stunting, 16% underweight, and 9% for wasting; compared to 28% stunting, 12% underweight and 4.4% wasting in 2003. The numbers indicate that acute malnutrition is growing at an alarming rate."

UNDP, 12 May 2005

"In the 1980s, Iraq was widely considered to have one of the region's best health care systems, with advanced, technological specialist care, and an extensive net of primary health care.

However, after years of war and sanctions, this situation has changed completely. Among the current major problems are lack of health personnel, lack of medicines, non-functioning medical equipment and destroyed hospitals and health centers. The health services are also heavily affected by infrastructure problems, including degraded or disrupted electricity supply, sanitation, and communications.

IRIN, 15 February 2005

"One of the most affected areas after the US-led war in Iraq to topple Saddam Hussein was the health system, according to government officials. Doctors throughout hospitals in the capital complained of a lack in electricity and clean water. They also added that many foreign companies which started working in hospitals had pulled out and new equipment promised had yet to reach them. [...] A shortage of medicine is still the main problem throughout the country. Doctors and pharmacists claim that simple medication such as pain killers and antibiotics are unavailable and sometimes they run out of needles and syringes. [...] The International Committee of Red Cross (ICRC) in a press statement in January also complained of a shortage of medicines in all Iraqi hospitals and problems caused by the lack of water and electricity."

IRIN, 4 January 2005

"The three cities of Ramadi, Fallujah and Samarra, west of Baghdad, in the 'Sunni triangle' where US troops are fighting insurgents, are in desperate need of medical supplies and other aid, hospital staff said on 18 October. The Ministry of Health (MoH) and NGOs around Baghdad add that the situation is critical as they are having difficulties in accessing the area and are prevented from delivering aid due to insecurity. Medical officials in the cities have warned that the delay in the arrival of aid is affecting life-saving treatment. They are calling on government officials to take urgent action in a critical situation."

Water and sanitation

Displaced and host communities face difficulties to access clean water (2003-2009)

- Lack of infrastructure and capacity, and underinvestment in water and years of neglect has placed enormous stress on water/sanitation facilities, resulting in the further deterioration of services. As a result, large segments of the population have either inadequate or no access to safe water. (OCHA, February 2008 and December 2009; UNDP, 12 May 2005)
- In 2009, only 44 per cent of IDPs, 23% IDP returnees and 60% of refugee returnees stated having sufficient access to water. Access to sanitation facilities was reported as insufficient by 25% of IDPs, 26% of IDP returnees and 25% of refugee returnees. The majority of the communities informed having same level of access to the services as the local resident community (UNHCR, December 2009)
- Limited access to water and other basic services has been repeatedly reported by IOM and UN reports. In 2008, IOM reported IDPs obtain their water from multiples sources, the most common being municipal pipe networks (90%), nearby rivers, lakes, and streams (53%), and an open or broken pipe (52%). (IOM, 30 June 2008) Lack of regular access to water is most notable in Diyala (42%), Kirkuk (36%) and Ninewa (34%). Hygiene issues along with lack of water or sewage system seem to be more severe in rural areas than in urban settings. (IDP Working Group, 27 June 2008)
- In 2008, the UN also noted of rising concerns on tensions between host and IDPs due to limited resources. The increasing influx of displaced people since early 2006 placed additional burdens on already deficient water and sanitation systems, making the host

UNHCR December 2009

Since April, electricity was considered to be sufficient only for 20% of IDPs, 25% of IDP returnees and 5% of refugee returnees. Forty-two per cent of IDPs, 23% IDP returnees and 60% of refugee returnees stated having sufficient access to water. Access to sanitation facilities was reported as insufficient by 25% of IDPs, 26% of IDP returnees and 25% of refugee returnees. The majority of the communities informed having same level of access to the services as the local resident community.

UN OCHA, December 2009

Lack of infrastructural and institutional capacity and cross-border political issues over water resources mean that Iraq is currently only producing two-thirds of the ten million cubic metres of potable water required for human consumption per day.⁴³ Long-term underinvestment in water infrastructure has led to severe problems of poor quality and coverage of the general public water network. 15% of the population are not connected to the public water network and a further 37% suffer water shortages as a result of poor network quality. The situation is much worse in rural areas, where almost half (46%) are not connected to the general water network and a further 26% suffer water shortages due to poor connectivity,⁴⁴ while irrigation systems' pumping stations and pipes require urgent repairs. In Iraq's most vulnerable sub-districts, only 73% of households have access to safe water.⁴⁵ These problems have been aggravated by the lack of seasonal rains that have contributed to lowering the groundwater tables, which in turn has led to the lack of fresh water and increased salinity of water in southern Iraq.⁴⁶

UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 13 February 2008

Conflict and population movement prevailing in Iraq places enormous stress on water/sanitation facilities, resulting in the further deterioration of services. As a result, large segments of the population have either inadequate or no access to safe water. Approximately 40%⁸² of the Iraqi population continues to suffer from poor quality of services resulting from dysfunctional systems, network breakdowns, ageing infrastructure and frequent power supply interruptions. An average 81% of the population report problems with their daily supply. Furthermore, there are wide disparities in access to safe water between regions / urban and rural areas. Families without access to safe water often resort to tapping into working mains lines, further damaging networks and increasing the likelihood of water contamination. Only 20% of families outside of Baghdad have access to working sewage facilities, due to lack of electricity and insecurity-related damage to sewage treatment plants⁸⁴. Existing treatment plants operate at only 17% capacity, discharging large volumes of untreated waste into Iraq's waterways. Sewage is a common sight in many neighbourhoods⁸⁵. Solid waste management at the family level is severely curtailed. Piles of garbage littered in public places pose a severe threat to public health, not to mention the environment. The increasing influx of displaced people since early 2006 places additional burdens on already deficient water and sanitation systems, making the host communities even more vulnerable. Approximately 41% of the displaced are sharing accommodation with families in host communities or else living in temporary shelters; their access to water and sanitation is likely to be extremely constrained.

International Organization for Migration (IOM), August 2008

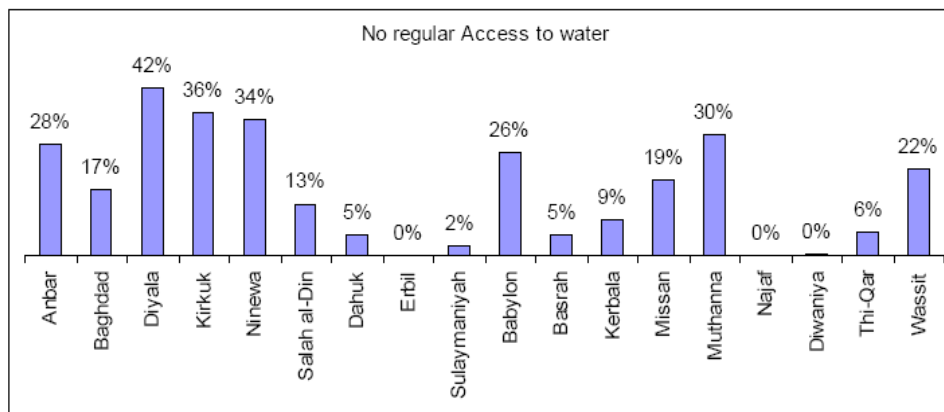
Access to potable water is a major concern of IDPs, returnees, and host community members alike because of the wider implications for health and disease prevention associated with clean water. 84.4% of those assessed have access to municipal water networks, although this does not guarantee that the water is potable: Places such as Alhardaniya in Al Mada'in district, Al Entisar in Istiqlal district, and Sadr City Sector 12 in Baghdad, as well as Adwaniya in Rasheed City,

Baghdad all lack adequate sewage networks, with waste often flowing in the street, contaminating water supplies and posing an immediate health risk. Saheroon and Al 'Aboss lack sewage systems completely and suffer shortages of drinking water, while Malhaniya's sewage system was destroyed by insurgents. Drainage moreover is an issue in many neighbourhoods, with water accumulating in streets and alleys and restricting movement in many areas. There is a lack of municipal water or drinking water in many neighbourhoods as well. For example, inhabitants of Adwaniya are dependent on wells as their only source of water and lack water resources for agricultural purposes, while villagers in Al Hamedat and Nahrawan, in Mada'in district, Baghdad, must travel several kilometres to access water provided by trucking. In Momniyah, Mahmoudiya district, Baghdad, returnees have to travel twenty kilometres to access water from a neighbouring village. The water system in Albo Aitha has deteriorated to the point where pipes have become contaminated by foreign bodies and water access is limited. Families in the area have now resorted to obtaining their water supplies directly from the river. In neighbourhood of Saidiya, in the Karkh/Rasheed district, families only have intermittent access to water supplies. They are compensating by using water pumps.

International Organization for Migration (IOM), 30 June 2008

Access to potable water is often at the root of serious health problems among IDP populations who are already more likely to live in poor quality housing with few or no basic services. Although 80% of IDPs assessed by IOM reported access to water, this does not guarantee that this water is clean enough to use or drink. IDPs obtain their water from multiples sources, the most common being municipal pipe networks (90%), nearby rivers, lakes, and streams (53%), and an open or broken pipe (52%). Even when there is some infrastructure available, water is often mixed with dirt and even sewage. In some locations sewage runs through the streets. In other towns, trash dumps contaminate the water and living environment, causing diseases such as typhoid and cholera. Although water provision is relatively better in the three northern governorates, the recent drought in this area is forcing some farmers and herders to relocate in search of water.

IDP Working Group, 27 June 2008



Source: IOM IDP Monitoring and Needs Assessments, May 2008

Lack of regular access to water is most notable in Diyala (42%), Kirkuk (36%) and Ninewa (34%). Hygiene issues along with lack of water or sewage system³² seem to be more severe in rural areas than in urban settings.

IOM, 2 February 2007

“A significant problem the displaced faced in 2006 was access to clean water. Fourteen percent of the displaced assessed did not have regular access to water. The greatest percentages of IDPs who did not have regular access water were found in Babylon (61%) and Muthanna (54%). Almost all families in Anbar and Qadissiya reported regular access. Those families who could access water sometimes had to travel great distances to obtain it, or relied on water from streams or lakes, which increased the spread of disease and infection. The displaced reported water access through various sources: municipal underground pipes (90%); water tanks or trucks (40%); rivers, streams, or lakes (16%); public wells (13%); and/or open or broken pipes (8%). Almost 10% of families had to travel over 500 meters to obtain their water. IDPs fared better with their access to toilets; only 2% reported that they did not have access to toilets. However, considering that this represents over 800 families, this is a concern, especially in preventing disease.”

UNHCR, October 2005, p.95

“Returnees and IDPs living in camps/settlements, public buildings or tents face major problems to obtain adequate amounts of drinking water. In addition, large numbers of newly arriving returnees and IDPs put an additional strain on already weak water networks. In the Governorate of Erbil, 43 percent of the IDP families have to share one tap between five families and 25 percent share two taps between 2-4 families, often for short duration due to unstable supply. [...] Public buildings and camps/settlements often have no sanitation facilities. For example, among the 1,519 IDP families (8,267 persons) living in public buildings in Erbil, 56 percent have no latrines, 61 percent have no bathrooms, 31 percent have bad or very bad latrines and 28 percent have bad or very bad bathrooms.[...]”

UNDP, 12 May 2005

“The intensive use of the infrastructure in Iraq combined with three wars, sanctions, and improper policies of the former regime, contributed to the deterioration of the infrastructure, services, and maintenance. Infrastructure and services provided to the families were administered by the government and funded by the general budget, which led to the provision of electrical, water, and sanitation services to most of the families. However, the bigger challenge was to maintain the stability of the services, as opposed to mere connection. Despite the violence in the country and the deliberate destruction of the infrastructure, there are noticeable changes in the level of these services, as the Government of Iraq, UN and other International Organizations, in addition to the Coalition Forces in Iraq are putting effort into improving the infrastructure in the country. [...] Most families in Iraq get electricity from the national grid in both urban and rural areas. However, there is an exception to this norm in the rural areas in the Northern Region[...]Stability of electrical supply is a major challenge in Iraq today. Families in the country have suffered for a long time from the low quality and instability of electricity supply. This is clearly evident in the urban areas, where the supply was more stable. The instability has led to the use of alternate sources. [...]The results of the Iraq Living Conditions Survey 2004 have shown that [...] 54% of families in Iraq have access to drinking water [...] 60% of families in urban areas and 33% of those in rural areas receive stable safe water. [...] Many problems have been reported about the old and war-destructed sewage network from which sewage seeps to the ground and contaminates drinking water systems.

Shelter

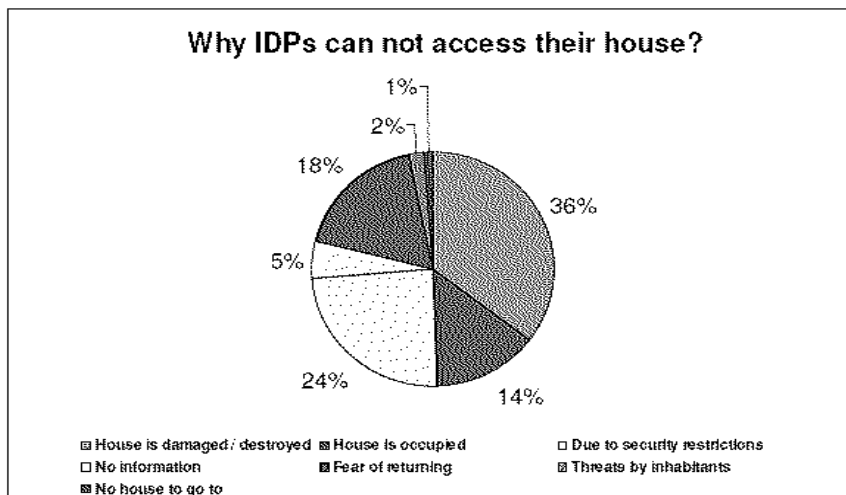
Shelter remains a priority for displaced (2003-2009)

- There has been an overall reduction in the standard of living of all Iraqis since 2003 despite attempts at reconstruction and rehabilitation (OCHA, February 2008; and December 2009; IOM, 2 February 2007). Shelter remains a high priority for all Iraqis and has been for the last

- The Iraqi government has reported a housing deficit of some two million units and that 57 per cent of the urban population lacking access to clean water, sanitation overcrowding, durable housing, or/and security of tenure (OCHA, December 2009). The lack of appropriate shelter will be a continuing problem for IDPs wishing to return due to various concerns: nearly 25-20 per cent of whom have reported that their property has been destroyed almost 26% say that their property is occupied, controlled, or claimed by private citizens, and another 40% do not know the status of their property. (IOM, 30 June 2008; November 2009)
- Over 60 per cent of IDPs are thought to live in rented housing, 15 per cent with host families and over 20 per cent in collective settlements, tents or former military camps, and public buildings. IDP tenants often endure overcrowded conditions in substandard dwellings. Public buildings and camps/settlements are often overcrowded and lack sanitation services and drinkable water, and often do not have electricity. Due to a lack of services, remote locations, and the cultural sensitivities to these living arrangements, moving to camps is a last resort for internally displaced persons. In some areas, IDPs are reported to be using tent camps as a transitory shelter (IOM, August 2008) In December 2009, UNHCR estimated that more than 450,000 IDPs reside in informal complexes or settlements, throughout the country.
- Threat of evictions continues to be very present in 2009 throughout all governorates according to IOM monitoring reports. Many IDPs who lack regular incomes face eviction as rents rise. In many governorates such as Missan, Wasit and Baghdad rental costs have increased considerably making housing unaffordable for many displaced. Evictions of IDPs from public buildings or land without provision of alternative shelter is a pressing issue in the country. IDPs live under the constant threat of eviction by local authorities. (OCHA, December 2009). In December 2009, GoI postponed evictions of IDPs from public property'
- Using a variety of sources, UNHCR in 2008 calculated that up to 250,000 individuals were living on public property (UNHCR, September 2008). The secondary occupancy of public buildings has been in evidence since 2003. A survey of IDPs in public buildings and camps in northern governorates in 2003, revealed that most IDPs in these locations were vulnerable and destitute before displacement and therefore had never been the owners of extensive agricultural lands or house. Many IDPs in public buildings and transit camps have been displaced on more than one occasion in the last 10 years and many originated from villages close to the Turkish border in Dahuk and the Arabized villages in Kirkuk which were completely destroyed. Anecdotal evidence reveals similar circumstances faced by IDPs in other localities.
- Occupancy of private property particularly in areas in which forced displacement took place remains a complex problem to address. In September 2008, MoDM released its first report on the number of illegally occupied houses - 3,491 in nine provinces. Baghdad had the highest number of squatter-occupied properties at 2,369, followed by Diyala with 963 and Anbar with 63. The rest were in the provinces of Salaheddin, Taâ€™mim, Babil, Kut, Nineveh and Muthana. There is no clear information on the estimated number of IDPs in secondary occupancy whether public or private property.
- There are no clear figures on numbers at risk of evictions. Following 2003, evictions of IDPs from public buildings were reported to occur in 2004 and through 2005. Through 2005 to 2007 during the civil war forceful evictions was a crucial strategy of ethnic/sectarian cleansing policy during which many sought refuge in public and private properties. In 2008, once the conflict had abated there was increasing evidence of evictions or under threat of eviction. (IDP Working Group, June 2008) Hundreds of families were evicted from public property particularly in central and southern governorates of Babylon, Kerbala, Najaf, Basrah, Muthanna, Diyala, Anbar and Baghdad. In number of governorates including Kirkuk, Salah al Din, monitors noted increasing pressure from neighbours, militants, relatives or others for IDPs to leave.
- There were few incidents of evictions from public property reported in 2009, though UN has continued to stress the risks faced by IDPs without adequate alternatives provided.

UNHCR, December 2009

Since April, the majority of IDPs assessed stated living in rented houses or apartments (50%), owned property (24% of IDPs) or occupying public buildings (20%). The majority of IDP returnees lived in owned property (40%), rented house or apartments (25%) and in allocated lands or house (25%). Most refugee returnees lived in owned property (45%) and rented accommodation (20%). Eight per cent of IDPs and 6.4% of refugee returnees lived in illegal camps (1% of IDP returnees lived in illegal camps). Roughly 15% of the groups were living in severely damaged structures and 41% live in moderately damaged structures. Twenty-seven per cent required minor repairs 6% unfinished and 10% were in good conditions. Twenty-four per cent of IDPs, 3% of IDP returnees and 4% of refugee returnee were living in public building. Eight per cent of IDPs and 6% of returnees were living in illegal camp, and 2% of IDPs were occupying privately owned buildings. Some female headed IDP returnee households were among those families illegally occupying public buildings. Even if Prime Minister's Orders to halt eviction were still valid, some families reportedly received eviction' requests (18% of IDPs, 3.7% of IDP returnees and 4% of refugee returnees). Many families informed having lost their rights to or no longer access their property in their former neighbourhood/current locations.



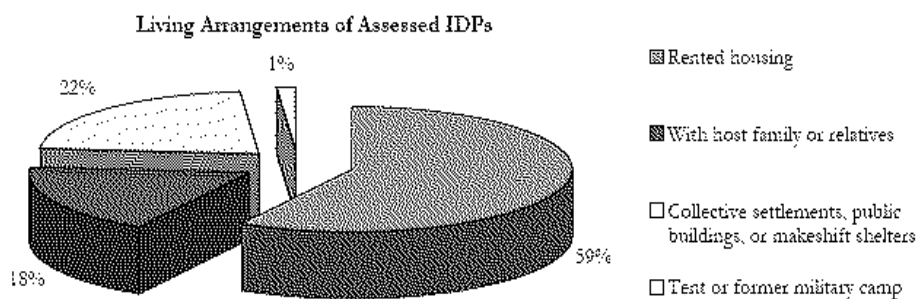
UNHCR, December 2009

IDP Complexes Breakdown per Governorate

International Organisation for Migration, February 2009

IOM assessments reveal that shelter is consistently one of the highest-priority needs reported by IDPs, followed by employment and food. Although the majority (59%) of IDPs assessed by IOM

are renting, their finances are dwindling as time passes and rent prices rise. A sizeable minority (18%) is living with host families or friends in crowded conditions, an added burden on households already struggling to provide for themselves. Another 22% live in collective settlements, public buildings, or other makeshift housing. IDPs living in settlements or public buildings often may be at risk of eviction by local authorities or private owners. Less than 1% lives in tent camps. IDPs view camps as an absolute last resort, due to cultural sensitivities and camps' lack of basic services and harsh living conditions. Substandard shelter and a lack of basic services such as clean water, sanitation, and electricity are a major factor in the IDP humanitarian crisis. IDPs who are renting do not necessarily have access to these services. IDPs living in tents, public buildings, or makeshift shelters in collective settlements are particularly vulnerable and usually have additional urgent needs in other sectors such as food, health, water, and sanitation. The MoDM has included in the "National Policy of Return" an aspect of the returnees' right to repossess their property without any encumbrances.



[Government cracks down on squatters](#), **Integrated Regional Information Networks (IRIN)**, 8 September 2008

The Iraqi government is cracking down on squatters occupying properties belonging to internally displaced persons (IDPs) and refugees as the one-month grace period expired at the end of August, a government spokesman said. The government has not yet released any data of how many houses belonging to displaced families have been cleared of squatters. But on 3 September, the Migration and Displacement Ministry released [its first report](#) on the number of illegally occupied houses - 3,491 in nine provinces. These properties included houses, flats, land and other buildings. Baghdad had the highest number of squatter-occupied properties at 2,369, followed by Diyala with 963 and Anbar with 63. The rest were in the provinces of Salaheddin, Taâ€™mim, Babil, Kut, Nineveh and Muthana. On 20 July, the Iraqi government announced measures to encourage the more than four million IDPs and refugees to return to their homes, including a one-month grace period for squatters to vacate properties. The measures also included a one-off payment of 1.8 million Iraqi dinars (about US\$1,500) to squatters to help them rent other properties. In addition, it was stipulated that IDPs willing to return to their houses would be paid one million dinars (\$840). Each internally displaced family that has not yet returned home qualifies for a monthly payment of 150,000 dinars (\$145) for three months while still displaced. Other measures include [helping Iraqi refugees in neighbouring countries](#) with free air transport if they choose to return home, the free shipment of their belongings and compensation for damaged property.

[IOM Monitoring and Needs Assessments: Assessments of Iraqi Return](#), **International Organization for Migration (IOM)**, August 2008

Many returnees have found their houses destroyed or damaged, placing them in need of shelter assistance. Furthermore, of IDPs assessed nationwide by IOM, 32% report that the property they left behind has been occupied by others. Even among *returnees* assessed, 6% still report that

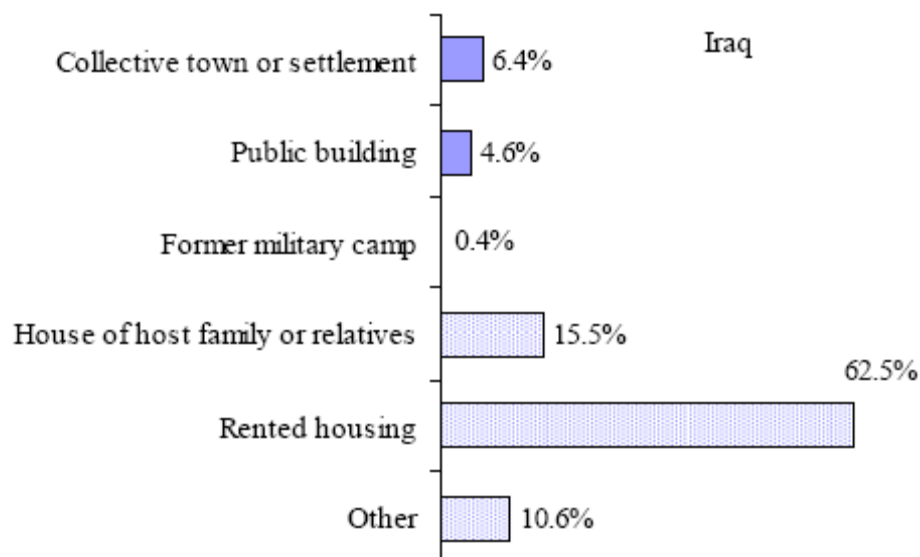
their property is occupied. Monitors report most disputes over property ownership are in Baghdad. Resettlement and property occupation is currently being handled on an ad hoc basis by various authorities in Baghdad. In the event of future large-scale returns, a comprehensive policy and mechanism will be essential to prevent renewed tensions.

The Iraqi government is now implementing a number of measures aimed at encouraging the return of IDPs and refugees to their homes, such as payments of 1.8 million Iraqi dinars (approx. US\$1,500) to families who are illegally occupying the houses of other displaced families and who want to return to their homes, so that they may rent their own homes lawfully. IDPs or refugees willing to return to their houses will be paid one million Iraqi dinars (about \$840). Iraqi refugees in neighbouring countries are being offered free airline tickets, free shipment of their belongings, and compensation for damaged property.

Of returnees assessed, 85% had returned to their original house and the remaining 15% are living in their original neighbourhood but not their original house.⁶ 89% of returnees in Ninewa are living in their own house, albeit in poor condition. In Missan conversely, more than 80% of returnees are living in rented houses. Muthanna and Najaf also have a significant proportion of returnees renting, with 44% and 38% respectively. A large percentage of returnees in Muthanna (39%) are also living with neighbours, friends or relatives.

[IOM Displacement Monitoring and Needs Assessments: Tent Camp Assessment Report](#), International Organization for Migration (IOM), August 2008

Shelter is a priority concern for the majority of IDPs in Iraq. Although those living in tent camps represent a small percentage of IDPs (only 568 families), residents of tent camps are particularly vulnerable because they have no protection from the elements and often no access to food, water, sanitation, health care, or other basic services. In addition to tent camps, a similar precarity of housing is found among IDPs who settle (or squat) in collective settlements, public buildings, or former military camps. These types of shelter are particularly vulnerable to eviction. Included in this report are the statistics for IDPs living in such housing (highlighted in blue in all charts), as well as the remaining IDP housing arrangements. Apart from tent camp residents, approximately 11% of Iraqi IDPs live in collective settlements, public buildings, or former military camps:



Camp residents generally do not have access to basic services, cannot protect themselves against the elements or extreme weather, and are located far away from medical care, education, and other needs. These harsh conditions, combined with a cultural aversion to living without familial privacy and personal dignity, make tent camps a last resort for Iraqi IDPs. As a result, the number of camps and the size of camp populations vary periodically.

Governorate	Camp name	District	No. Of families, Oct 07	No. Of Families, Jan 07	Current No. Families
Baghdad	Sabaa Qusoor	Al-Istiklal	35	Closed December 2007	Closed
Diyala	Al Salam Camp	Al-Muqdadiya	-	Closed November 2007	Closed
Missan	Missan Camp	Amarah	1	0	0
Najaf	Al-Manathera	Al-Manathera	246	250	230
Ninewa	Gardasin	Akre	150	156	159
Qadissiya	Al-Karahma	Diwaniya	20	20	Closed
Sulaymaniyah	Qalawa	Sulaymaniyah	130	203	59
Sulaymaniyah	Prdi Mangorayati	Pshdar	0	0	120
Thi-Qar	Al-Moukaa	Al-Nassriya	Under Construction	Under Construction	Closed
Wassit	Kut	Kut	14	Closed January 2008	Closed

Please note that since camps are continually being established or closed due to the fluctuating nature of displacement, this assessment is not exhaustive and information is continuously changing.



[Iraq Situation Update - August 2008](#), **United Nations High Commissioner for Refugees (UNHCR)**, September 2008

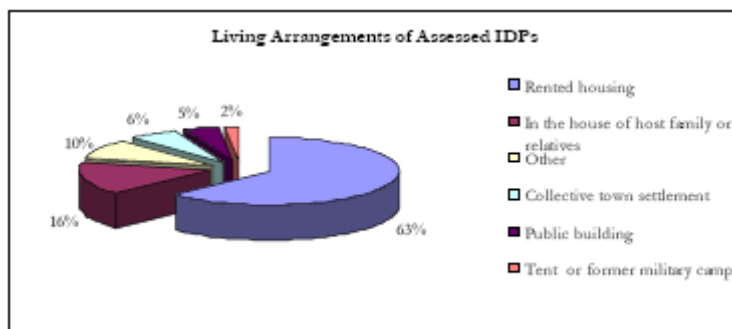
Tense relations between the host community and the displaced population were indicated in the Governorates of Al-Anbar, Baghdad, Diyala, Kerbala, Kirkuk, Missan, Najaf and Ninewa, mostly due to overburdened services, house/land disputes and rising prices and, to a lesser degree, the (perceived) behaviour of the group and employment. The majority of IDPs are renting housing, although they often live in overcrowded conditions in substandard rental property, and, as rental prices continue to rise and IDPs' financial resources dwindle, more and more IDPs are reportedly being evicted from their homes. The IDP Working Group notes that eviction from public property is a widespread concern amongst IDPs.¹³ Although a May GoI eviction order for IDPs living on public property was postponed in early June, local authorities are reported to be responding in an ad-hoc manner; in some governorates, such as Basrah and Muthanna, authorities have ordered all IDPs and squatters to leave public property. In other governorates, local authorities are applying the order only to certain areas or land. Regardless, the IDPs are given no other option for shelter, often forcing them into secondary displacement

[Iraq Displacement and Return 2008 Mid-Year Review](#), **International Organization for Migration (IOM)**, 30 June 2008

Shelter is consistently among the highest-priority needs cited by IDPs, and eviction threats coupled with rapidly rising rental prices have created an even more precarious housing situation in recent months. Earlier this year the Government of Iraq (GoI) issued an eviction order for all IDPs squatting in public buildings. Although the Iraqi Parliament later voted to postpone the order until other housing arrangements could be made for IDPs that would be again displaced, individual governorates are in some cases continuing with threats and even actual evictions. For example, 150 families were recently forced to leave public land in Farah village of Kerbala

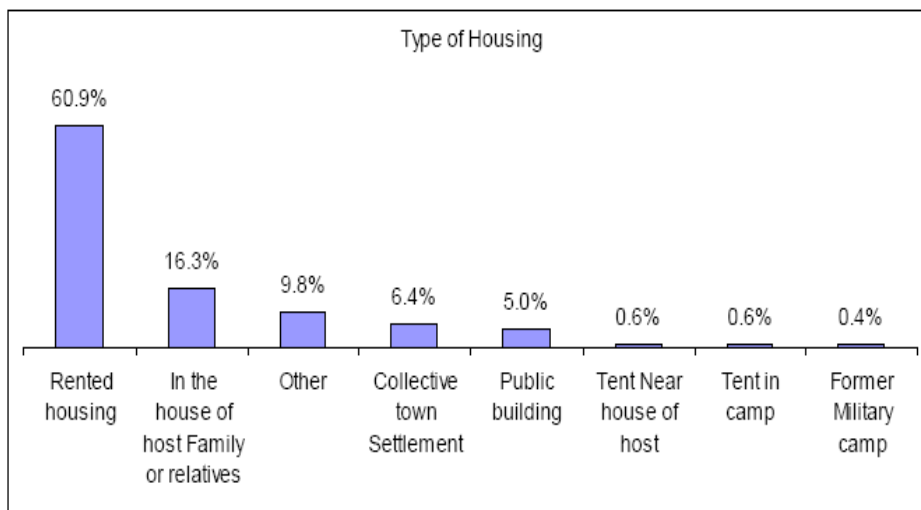
governorate. Stifling summer temperatures of up to 45 degrees worsen already-difficult living conditions during the summer months. Many IDP families do not have the funds for generators nor fuel. 35% of assessed IDPs report not having access to fuel due to unavailability or financial constraints.

The majority of IDPs (63%) are renting, which means that the increase in rental costs across the country badly affects the dwindling finances of IDP families, the majority of whom have no source of income. In Babylon, for example, rental costs have risen more than 50% since the beginning of 2006. Of those IDPs assessed by IOM monitors, almost 26% say that their property is occupied, controlled, or claimed by private citizens, and 15% say their property is destroyed. Another 40% do not know the status of their property. Recently, the GoI announced that it will provide 300,000 ID per month for six months (a total of \$1500) to any IDP family squatting in another IDP family's home, enabling the house owner's return and providing rent costs for the family who has to leave. The problem of occupied and destroyed housing, occupied public buildings, and increased evictions is a great challenge facing the Iraqi Government. The camp situation in Iraq is unique, as less than 1% of displaced live in tent camps. This is primarily due to the fact that camps are set up in desolate areas, have very few services, and are considered a last resort due to cultural concerns which make people reluctant to live among unfamiliar families.



[IDP Working Group Internal ly Displaced Persons in Iraq – Update \(June 2008\)](#), IDP Working Group, 27 June 2008

The majority of IDPs are renting housing, although they often live in overcrowded conditions in substandard rental property, and as rental prices continue to rise and IDPs' financial resources dwindle, more and more IDPs are reportedly being evicted from their homes.²⁶



Source: IDP Monitoring and Needs Assessments, May 2008

.... Increasingly, IDPs living in public buildings or on public land are being threatened with eviction from their homes, and in some cases evictions have taken place. In May, the GoI issued an eviction order for IDPs living on public property. In early June the Iraqi Parliament voted on a draft resolution to postpone the eviction order.²⁷ Local authorities are responding in an ad-hoc manner; in some governorates, such as Basrah and Muthanna, authorities have ordered all IDPs and squatters to leave public property. In other governorates, local authorities are applying the order only to certain areas or land. Regardless, the IDPs are given no other option for shelter, forcing them into secondary displacement.

- In June, several statements have been made in the media from GoI officials calling for evictions: Baghdad and Al-Amara, Missan have been specifically mentioned. Sometimes these eviction orders only affect a small group of families, such as 15 families in Al-Nasir, Najaf who have been threatened with eviction by the government because they are on public land, and sometimes hundreds of families, such as in Farah village in Kerbala, where the provincial council and governor recently removed all IDPs (160 families) illegally squatting on public property in this village. ²⁸ In a former military camp in Taji, Baghdad, close to 1,000 IDP families (estimated 7,000 individuals) have settled. There is an imminent threat of eviction of these families from the camp. According to UNHCR calculations based on various sources, up to 250,000 people are living in public buildings which are under threat of eviction.

[Consolidated Appeal for Iraq 2008](#), UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 13 February 2008

Shelter remains a high priority in Iraq. Nearly 300,000 housing units inhabited by vulnerable families are extremely dilapidated, structurally unsafe and lack access to basic services. These figures represent just a small proportion of Iraq's overall need for improved housing, amounting to 1.27 million units. At least 10% of families (30,000 families) have unsustainable or unsubstantial income which limits their access to adequate and safe shelter. Another 5 to 7% of the vulnerable families (15,000 – 21,000 families) live in extremely overcrowded conditions where exposure to serious health and hygiene problems is commonplace. This constitutes an immediate requirement of approximately 50,000 new/improved housing units. National and local response capacity is limited and further compromised by short-term, narrow political considerations. The situation is further exacerbated by the incessant flows of displaced population groups⁷⁸. According to the IOM 2007 *Displacement in Review*, shelter is considered the first priority need across IDP groups. The majority of the IDPs are living with host families, either as family guests or as tenants, invariably in conditions that are extremely poor as a result of overcrowding. Some 18,000 families are living in public buildings and are constantly threatened with eviction by local

authorities. In addition, a further 45,000 families are living in 'camp-like settlements' with inadequate access to basic services. Prospects of return are not only affected by the ongoing security situation, but also by the lack of legal protection of abandoned properties and alternative shelter options. 79 Although this represents a generalisation at the national level, it is clear that there is no single 'fit all' solution for appropriately and adequately sheltering vulnerable households. The nature of humanitarian needs vary depending on the specific socio-economic situation and patterns of population displacement prevailing in the region, governorate and district levels. Therefore, an array of diverse and localised interventions will need to be devised within an overall national policy that provides for quick shelter solutions and guarantees a degree of security of tenure for the households that are vulnerable.

IOM, 2 February 2007

"Shelter was overwhelmingly listed as the priority need of people displaced in 2006. Lack of income, increased competition for limited homes or apartments, lack of families or friends who could provide shelter, overcrowded conditions in relatives' or friends' homes in places of displacement, and inadequate shelter all contributed to this need. Families who could move in with family or friends did so, but the majority (57%) rented a place to stay. Many families thought their displacement would be temporary or that they would be able to find employment in their current location. As their displacement became more protracted, renting became increasingly difficult. In addition, in many areas the swell in demand for rental property increased rental prices, so some families who could originally afford to rent were forced to find other shelter. Some even had to move into abandoned buildings or build makeshift shelter on unused land. Twenty-two percent of those interviewed said that they lived with friends and family. However, this led to overcrowding and put added strain on the host family. Almost 5% of IDPs living with family said that they received pressure from their hosts to find another means of shelter.

Less than 1% was reported to live in tents near the house of a host family or relative. This living arrangement is unsustainable, especially in winter months. Iraqis who could not afford to rent or did not have family or friends with whom they could live had to find other means of shelter, often in public buildings. Ten percent of IDPs in Iraq reported that they lived in public buildings. These public buildings, often unoccupied or abandoned, frequently lack services such as electricity, running water, sanitation facilities, and proper insulation. In addition, these buildings can be reclaimed by the government or private entities, rendering the IDPs homeless once again. Seven percent lived in collective settlements or towns. These settlements are marked by provisional housing set up by IDPs. The housing is makeshift, sometimes made of mud bricks or local material. Collective settlements also frequently lack electricity, running water, sanitation facilities, and proper insulation.

Military camps that once belonged to the Ba'ath party were abandoned after its overthrow in 2006, so the displaced sometimes move into these empty facilities. There is concern that these areas will be invaded by militias or insurgents, who would then use them as recruiting grounds. However, no reports have confirmed this yet. Less than 1% of those interviewed moved into former military camps. Three percent reported other living arrangements. In addition to pressure to leave from relatives, 1% faces pressure to leave from neighbors, 1% face pressure to leave from militants, 2% have received a court-ordered eviction, and 1% faces "other threats". This pressure to leave or threat of eviction could cause secondary displacement, further exacerbating the lack of adequate shelter. "

IOM, March 2007

"In many governorates, the Ministry of Displacement and Migration (MoDM), through the Iraqi Red Crescent Society (IRCS) or local authorities, has set up camps for the displaced families who do not have an established place to stay. However, due to a lack of services, remote locations, and the cultural sensitivities to these living arrangements, moving to camps is a last resort for

internally displaced persons (IDPs), and less than 1% of the recently-displaced population is currently living in camps.

UNAMI, 22 November 2006

"Most IDPs continue to seek shelter with their relatives and extended family, as well as in empty public buildings. At the beginning of the school year in September, IDPs were asked to leave the schools they had occupied in parts of Baghdad, Basra and Missan, and the authorities offered displacement camps as an alternative. One of the UN concerns has been to ensure that the camps are located in a secure area away from military and other targets and in proximity to services as well as education and health facilities. In at least some locations, IDPs are reported to be using tent camps as a transitory shelter."

UNHCR, October 2005, p.97-100

"IDP and returnee monitoring has revealed that shelter is one of the most pressing concerns for IDPs and returnees. Large numbers of Iraqis cannot return to their places of origin as their villages were either destroyed by the former regime, either as part of the *De-villagization* and *Anfal* campaigns in Northern Iraq [...] or the drainage of the Marshes in Southern Iraq. In addition, Iraqis' financial resources are often limited, impeding them from reconstructing or rehabilitating their houses or paying rents. A lack of shelter is one of the major reasons for returnees and IDPs not being able to return to their places of origin and instead returning into a situation of internal displacement. Many are hosted with relatives, in public buildings or even in tents. Public buildings housing returnees and IDPs are usually overcrowded and lack hygienic facilities and potable water. Their residents are at risk of being evicted by the authorities that wish to use such buildings for their original purposes. [...] Most public buildings will almost certainly be repossessed by the Government in the future, and also remain at risk from mines and unexploded ordinance." [...] "Apart from damaged and illegally occupied property, the UN Development Group/World Bank estimate that there are currently 1-1.5 million housing units missing, affecting up to 9 million people, thereby representing a housing 'crisis'..... "Electricity is a major problem for IDPs and returnees living in public buildings and camps/settlements. In the Governorate of Ninewa, electricity has been identified as a major problem for IDPs residing in Sinjar, Tal Afar and Mosul. The whole community of Sinjar lives in a camp where electricity is completely unavailable.[...] Increases in kerosene costs have affected poor families the most, as it is they who cannot afford required amounts of kerosene for heating."

IRIN, 16 February 2005

"[K]urds too who have returned to Kirkuk are living in temporary accommodation while awaiting a solution from the government. According to a government official from Kirkuk, nearly 16,000 Kurdish families have moved back to the city and are living in tents in a very distressing situation. Nearly 1,558 Turkmen, 1,804 Arab and 16,714 Kurdish families have moved to Kirkuk and are living in old government buildings or schools, or are camped on the outskirts of the city, local authorities said."

UNHCR, 19 August 2004

"Housing is one of the biggest challenges facing all Iraqi people, and especially those who have just returned to the country or have been internally displaced. In the north of Iraq alone, where over 20 percent of the people are reported to be lacking adequate housing, "

UN OCHA, 5 January 2004,

"With an estimated 900,000 internally displaced people (IDPs) in Iraq, humanitarian organisations are putting the emphasis on providing proper shelter in the coming year for homeless people uprooted by the troubles that have plagued the country not only over the past year but the past few decades. Of this figure the majority, some 400,000 live in what are called 'collective towns' or purpose built settlements. Another 300,000 live in homes and the rest are in government or other

types of accommodation. Prior to the second Gulf War a UN Habitat survey found that 40 percent of the displaced had no access to health care and that only some 57,000 people were living in adequate housing."

MoDM, September 2004

"Over 80,000 IDP and returnee families currently live in camps or public buildings"

UNOPS, May 2003

"The survey among IDPs living in Public Buildings and Transit Camps in the Dahuk, Erbil and Sulaymaniyah governorates indicates a high level of intention to return to their places of origin (69%). The percentages intending to return vary when looking at each governorate separately but are still high throughout the north (58%-Dahuk; 68%-Erbil & 89%-Sulaymaniyah). The very high percentage in Sulaymaniyah (89%) can be attributed to the fact that the majority of the IDPs living in the public buildings in Sulaymaniyah are from Kirkuk. The current situation in Iraq is encouraging the returning process of these IDPs. In Erbil, the high percentage of IDPs in public buildings is a mixture of IDPs from those areas previously under the control of the former regime such as Kirkuk and Makhmur and those IDP resulting from internal fighting in the region. While change circumstances, following the recent conflict, is encouraging people to return, there have not been major changes yet in the KDP-PUK peace process, which might lead to the returning process of those IDPs created by the internal Kurdish conflict.

It is important to notice that 12% of IDP would rather resettle in a place other than their present location or their place of origin, while 19% of the whole IDP population intend to remain in their current location. In Dahuk the latter represents 27% of the IDP population. This high percentage is a result of 4 factors:

- IDPs in this governorate belong to the 'PKK-Turkey' conflict. The security situation in those areas is still unstable;
- Life conditions (low level of economic activities) are very difficult in those border areas with Turkey and the villages have not yet been rehabilitated;
- The new geopolitical developments in Iraq do not affect in a positive way the returning process of this group;
- This group of IDPs has over the years most probably developed livelihood strategies, which ensure their ability to cope in their present location.

In Erbil, 19% of IDPs intend to remain at their present location. The main reasons behind this might be attributed to the economic prosperity of this region due to the 'oil for food program', employment, the provision of basic services and enjoyment of social life. IDPs who intend to resettle in a different place than their place of origin or their present location represent 12% of the whole IDP population. The highest percentages in this respect are in Erbil (13%) and Dahuk (15%). [...] It is also important to notice that the history of displacement of this specific sector of the IDP population (those in public buildings and transit camps) have been displaced on more than one occasion in the last 10 years. This can be also an important factor when understanding their 'pre-condition' for returning or resettlement. In addition, the complete destruction of those villages of origin close to the Turkish border in Dahuk and the Arabized villages in Kirkuk, allow us understand the concern on the part of these IDP about being assisted with the provision of shelters as a pre-condition to return.

Property claims (land 3.4% & house 4.7%) account only for 8% of IDPs living in public buildings and transit camps. Looking at the general IDP population living in public buildings and transit camps it seems that these IDPs were vulnerable and destitute before displacement and therefore had never been the owners of extensive agricultural lands or houses. On the contrary, many of these IDP had been living in simple shelters in villages, which had been destroyed when they were displaced. On the other hand, the IDPs who were displaced due to the PKK conflict do not have any property claims since nobody had occupied their houses or lands. Finally, the majority

of the property claims for those IDP, resulting from the internal fighting category, has been solved by a joint KDP and PUK committee in 2002 within the ongoing peace process between the two parties."

ACCESS TO EDUCATION

General

Marked decline in quality and access to education - IDP children remain disproportionately absent from schools, and face significant obstacles (2005-2009)

- Interruption of schooling between 2003 and 2008, continuing poor quality of education due to shortage of trained teachers, the destruction or damage to facilities and the effect of the conflict and displacement on children's well-being and mental health have resulted in Iraq's new generation facing relatively more problems in entering adult life than their predecessors. Many internally displaced children live in substandard conditions, without proper access to education and health care services, and there is a lack of support available to children with disabilities or suffering from trauma. IDPs have had their education interrupted due to sectarian discrimination, displacement to a location too remote to attend school, or being forced to work to help support their family.
- In 2009, in many areas, violence, internal displacement and poverty have driven many children out of schools: school attendance in the 6 to 14 years age bracket is 71%, but in some districts this figure is as low as 50%. This compares to 2006/2007, school enrolment in primary and secondary schooling was noted at 46%. UNHCR surveys in 2009 indicated that high rate of absenteeism amongst children displaced. Some 42% of boys and 47% of girls under 14 of those surveyed did not attend schools. Among the main reasons it was reported the need to work (53% of boys, 17% of girls), expensive school supplies (49% of boys, 52% of girls), expensive transportation (20% of boys, 19% of girls), overcrowded schools (12% of boys, 11% of girls) and missing documents for school admission (12% of all children). There was also clear gender bias against girls access to education.
- Insecurity and violence 2005-2008 have forced professionally qualified teachers to flee, kept students at home and, in some cases, closed schools completely while specific urgent needs to address children and youth in need of psychosocial support, and vulnerable children including street children is absent. (UNAMI, 13 February 2008 ;UNICEF, September 2008) In 2008, the Ministry of Education survey found high numbers of children were killed or injured during 417 attacks on educational institutions since November 2005. According to the Ministry of Education, over 300 teachers and employees in the Ministry were killed and more than 1,000 wounded. Thousands of schools continue to need rehabilitation and repairs, while many schools in northern Iraq and elsewhere are also occupied by IDPs and other vulnerable communities.
- Schools since 2003 have closed as a result of threats and violence and have been inaccessible due to military operations. In many areas, safe access to school is hampered by continued violence, roadblocks. Schools are also being used as temporary shelters by displaced. In the aftermath of military operations in Fallujah in 2005, around 100,000 children from Fallujah and the surrounding communities were at risk of losing their entire academic year. Schools have been damaged or destroyed by insurgency and military operations, as well as pre-dating the conflict in 2003. The northern provinces have particularly high rates of destroyed school buildings (2004 UNICEF/MOE Survey)
- Schools reportedly lack sufficient resources and staff to accommodate the influx of children, while IDPs in the north encounter difficulties finding Arabic-language schools (IDP WG, March 2008 and November 2008) The IDP children who do attend school often have difficulties resolving social and cultural differences, such as the move from urban to rural or moderate to conservative areas. (IOM, 30 June 2008) Overcrowded schools are reluctant to

- IOM monitoring reported in 2008 that IDP children across the reporting area are disproportionately absent from school for a variety of reasons, including economic difficulties, travel distance to school, staying home to care for the family, having to work, and lack of proper documents and difficulties in registration process (IOM, 30 June 2008) Of assessed families with male and female children, only one third (33%) report that all of their boys are in school, and only 22% report that all of their girls are in school. (IOM, 30 June 2008) (IOM, August 2008) Primary and secondary education are free in Iraq but displaced families often do not send children to school because of associated costs and transport costs.
- In 2005 to 2007, In more violent areas, displaced families did not send their children to school because it was too dangerous (Anbar, Diyala and Baghdad) Accessing schools that are located in areas dominated by the opposing sect is nearly impossible for students and teachers. (IMC, January 2007) IDPs in camps have no access to education, for example, in the Governorate of Kirkuk, most IDP camps have no schools. Illiteracy rates among IDPs are particularly high. In the Governorate of Thi-Qar for example, illiteracy rates among the general population stand at 25 percent but reach more than 50 percent among IDPs (UNHCR, January 2005)
- In 2005-2007, lack of infrastructure, high rates of damaged schools, and overcrowding contributes to worsening access to education, especially for girls. A UN-government survey suggests that the main reason for a high dropout rate among students of 15-25 years old is the inability of the families to afford to pay for the schooling and schools being located too far away from home. War and sanctions have caused a significant decline in the quality of education (UNAMI, 18 July 2006) Children are kept out of school, in particular girls, to support the family income. In southern provinces, the ratio of girls to boys in primary school has dropped from 2:3 in 2005/6 to 1:4 in 2006/2007. (UNAMI, 13 February 2008)

UNHCR, December 2009

In 2009, UNHCR surveys indicated that high rate of absenteeism amongst children displaced though indicating present of primary and secondary schools. Some 42% of boys and 47% of girls under 14 of those surveyed did not attend schools. The reasons for such varied including: Among the main reasons provided for not attending school, it was reported the need to work (53% of boys, 17% of girls), expensive school supplies (49% of boys, 52% of girls), expensive transportation (20% of boys, 19% of girls), overcrowded schools (12% of boys, 11% of girls) and missing documents for school admission (12% of all children). Communities indicated that education was deemed unnecessary (21% of girls) and tribal habits (19% of girls).

The majority of communities assessed from January to March stated that only “some” children attended school. Only 14% of the groups reported that the majority of boys were attending school (9% of girls). Among the main reasons provided for not attending school, it was reported the need to work (53% of boys, 17% of girls), expensive school supplies (49% of boys, 52% of girls), expensive transportation (20% of boys, 19% of girls), overcrowded schools (12% of boys, 11% of girls) and missing documents for school admission (12% of all children). Communities indicated that education was deemed unnecessary (21% of girls) and tribal habits (19% of girls).

Communities further reported about children working (66% of boys, 15% of girls), children without both mother and father (45% of boys, 47% of girls), and children with mental disabilities (26% of boys, 20% of girls) as well as children experiencing domestic violence (5% of boys, 16% of girls). Since April, communities confirmed the presence and functioning of primary and secondary schools in their locations. Some primary schools reportedly worked on up to 3 shifts. Some 58% of boys under 14 and 53% of girls under 14 attended schools. The main reasons for children not attending school were various and in particular:

Communities reported children with mental disabilities (20%), experiencing domestic violence (9%), begging (8%), without both father and mother, using recreational drugs as well as some living in the street.

UN OCHA, December 2009

In many areas, violence, internal displacement and poverty have driven many children out of schools: school attendance in the 6 to 14 years age bracket is 71%,²² but in some districts this figure is as low as 50%.²³ Interruption of schooling between 2003 and 2008, poor quality of education due to shortage of trained teachers, the destruction or damage to facilities and the effect of the conflict and displacement on children's well-being and mental health have resulted in Iraq's new generation facing relatively more problems in entering adult life than their predecessors.

International Organization for Migration (IOM), 30 June 2008

IDP children across the reporting area are disproportionately absent from school for a variety of reasons, including economic difficulties, travel distance to school, staying home to care for the family while parents work, having to work themselves due to no family income, and lack of proper documents. Many host community schools are ill-equipped, lacking reading materials, furniture, and teaching staff. In locations with high concentrations of IDP families, schools are often doing three to four shifts in order to accommodate as many displaced children as possible. The IDP children who do attend school often have difficulties resolving social and cultural differences, such as the move from urban to rural or moderate to conservative areas. In the three northern governorates, many IDP children lack education opportunities because there are few Arabic-language schools. Monitors observe that when boys leave school, it is often to help the family's financial situation, while girls are often absent from school because of a lack of emphasis upon female education in conservative communities. Other children lack documents from their place of origin and cannot register for school. Of assessed families with male and female children, only one third (33%) report that all of their boys are in school, and only 22% report that all of their girls are in school.

DP Working Group, 27 June 2008

Access to education is reported as a priority more frequently in the three northern governorates while employment and access to work are more frequently reported in the southern governorates, while legal help and food was more frequently reported in the central governorates:

International Organization for Migration (IOM), August 2008

Of families with school-age children in Iraq, 80% reported having access to schooling and that their children were attending. A further 9% report only some access, and 11% report having no access. Many returnee children have had their education interrupted. Reasons include sectarian discrimination, displacement to a location too remote to attend school, or being forced to work to help support their family. In some locations, monitors have noted that returning families have left their children in an area of displacement to continue studying for the remainder of the year.

Military operations have destroyed the only schools in Al A'aboss, Al Hamdeet and Momniya. Studies have since been suspended. Similarly, Al Saheroon neighbourhood's only primary school was destroyed by insurgents. The community has tried to compensate by teaching students in a local house, but it is ill-suited to the educational needs of the community. While there is a school in Adwaniya, the number of pupils is high and the school in need of extension. Sectarian violence has not only destroyed schools, but also displaced teaching staff. Returnees are not content with government efforts to rebuild schools or provide incentives for teaching staff to return to communities.

UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 13 February 2008

Conflict has led to an education crisis in Iraq. Access to regular schooling has been limited by security, school closures and a large-scale exodus of teaching staff, particularly in central Iraq. Schools have also been targets of violence, discouraging attendance. Preliminary reports from the MoE on enrolment in the 2006/2007 academic year indicate low enrolment and a significant drop compared with previous years. Dropout rates were highest in Ninewa, certain areas of Baghdad, Anbar, Erbil and Missan.

Level	School Enrolment Rate	Drop-Out Rates
Kindergarten	0.06%	
Primary School (grade 1-6)	46% (NER)	Range of 1.1% to 5.1%
Secondary School	46% (male 53%, female 34%) (GER)	5% and trend declines at the end of the cycle

The current critical needs in education are:

- Immediate access to schools. The MoE's figures demonstrate that only 28% of Iraq's graduation-aged population sat exams in 2007. In many areas, safe access to school is hampered by continued violence, roadblocks, etc.;
- Alternative learning opportunities for those unable to attend regular classes because of conflict;
- Expansion of/additional learning zones. Areas hosting large numbers of IDPs or areas where schools are used for other purposes (schools occupied by the military forces), lack sufficient numbers of classrooms, resulting in multiple shifts. Reduced school hours and large student populations have affected the quality of education and effective classroom management leading to increased risk of violence at school;
- Trained and capable teachers. A large group of professionally qualified teachers have been displaced, left the country or have been killed in targeted attacks;
- Psychosocial support. Current psychosocial support is not adequate for children and youth exposed to violence;
- Increased enrolment of female students. In southern provinces, the ratio of girls to boys in primary school has dropped from 2:3 in 2005/6 to 1:4 in 2006/7;
- Improvement of school facilities. A large number of schools are damaged and not functioning;
- Appropriate language taught in schools. There are not enough schools in the north providing Arabic language instruction;
- Education access to particularly vulnerable children, including street and working children. There are reports of increased numbers of street children in cities throughout Iraq, especially Baghdad and Erbil.

[Food security and vulnerability analysis in Iraq](#), **World Food Programme (WFP)**, 13 February 2008

The illiteracy rate among Iraqi adults was estimated to be 21 percent and 21 percent of the population can read and write despite not having attended school. The illiteracy rate in rural areas is a serious problem with 35 percent illiterate adults compared to 19 percent in the urban population. Heads of households tended to have a higher illiteracy rate (averaged 24.8 percent), with a higher rate in rural areas (39 percent) than in urban areas (23 percent). It should be recalled that this was the generation that lived through nearly three decades of conflicts when education was disrupted and the economy was in a tailspin.

In urban areas the percentage of heads of household who graduated from secondary school and university (10.6 percent and 8.2 percent, respectively) are nearly double those in rural areas (6 percent and 4 percent, respectively). Those households where the heads have no education are more concentrated in the western part of Iraq, which is densely populated and could lack accessibility to schools. Education is markedly associated with gender. Female-headed households are less likely to be educated and to have only some primary or secondary education. An estimated 32 percent of adult women are illiterate compared to 14 percent for men. It is clear that there is a high degree of illiteracy and poor education among women heading-up households, especially in rural areas where 54 percent of them are illiterate, a significantly higher proportion than the 28 percent in the urban areas.

United Nations Children's Fund (UNICEF), 15 September 2008

The ongoing conflict in Iraq continues to have a devastating impact on children and schools there. Insecurity and violence have forced teachers to flee, kept students at home and, in some cases, closed schools completely. An education system that was once one of the best in the region is now struggling to provide basic services and keep students safe. Many young people have watched fellow classmates either leave the country or simply stop coming to school.

IRIN, 14 March 2007

"According to a report released last year by NGO Save the Children, 818,000 primary school-aged children, representing 22 percent of Iraq's student population, were not attending school. A joint study by the Iraqi Ministry of Education and the United Nations Children's Fund (UNICEF) found that of those who do not attend school, 74 percent are female. Aid agencies estimate that thousands of Iraqi parents do not send their daughters to school for cultural reasons and because of the general insecurity in the country. [...] They add that schools and universities are likely to continue emptying throughout 2007 if there is no let up to current levels of violence and the displacement it causes. [...]"

Last September, the Ministry of Education increased teachers' salaries by 20 to 50 percent in an attempt to entice teachers to stay in their jobs. More recently, the government hired 13,000 guards to protect schools and universities. However, specialists say these measures have had little impact on the rate of teachers leaving their profession and children continue to be deprived of both an education and social support system."

UNAMI, 17 January 2007

"The MNF-I and Iraqi Forces had allegedly occupied 11 public schools in Katana, Aziziya, Al-Mu'alimeen and Al-Jameea districts [*Ramadi province*]. In addition, Anbar University was not functioning due to threats by insurgents."

IOM, 2 February 2007

"Due to the high level of children being displaced with their families, before the beginning of the school year, the Ministry of Education issued a requirement that schools accept these children in their new location. However, displaced children were not always warmly welcomed at schools that were already overcrowded and did not have enough materials, desks, and chairs to support

the new pupils. Some families also could not afford the clothing and school materials required. In more violent areas, families simply did not send their children to school because it was too dangerous. Many schools and colleges in areas such as Anbar, Diyala, and Baghdad temporarily closed due to violence, thwarting this generation's access to education."

IMC, January 2007

"Both children in Baghdad as well as those displaced to other governorates face problems with continuing education. In the case of children displaced to other governorates, families may obtain letters of authorization from the Directorate of Education through the MoDM and have their children admitted to schools in their new locations. This, however, is a slow process and much time is lost; sometimes an entire academic year is wasted as children are unable to take requisite examinations. While primary and secondary education are free in Iraq, lack of income hinders IDP families from sending children to school as they are unable to afford books and other school supplies. Due to the often remote locations of these IDPs, lack of transport is the greatest problem children and families face in trying to continue schooling. Also, schools receiving IDP children are over-crowded. The lack of space and materials and poor teacher-student ratios adversely affect the quality of education and learning. Further, while some IDP children manage to settle into their new schools, others are simply unable to adjust to their new environments, mostly because of language problems. For instance, Turkmen children from Tel Afar now settled in Karbala speak no Arabic; as a result, communication with teachers, and consequently learning, is impossible. The capacity of those schools that remain open to accommodate newly registered IDPs has diminished greatly. In addition many children are being sent to work instead of to school to assist in income-generation to support their families.

In Baghdad, the daily insecurity arising from the sectarian conflict prevents children from regularly attending school. Indeed, one of the tragic decisions parents in Baghdad make daily is whether it is safe enough to send their children to school. Accessing schools that are located in areas dominated by the opposing sect is nearly impossible, for students and teachers alike. Parents who still remain within mixed areas do not send their children to schools and teachers have similarly declined to teach in schools located in areas dominated by sects to which they do not belong. Clearly, this is leading to the disruption of education and generations of children will have poor basic education. One option for parents in Baghdad has been to shift children to schools nearer to their homes and many displaced and other families have resorted to change of school. However, what is likely to happen here is that a school, due to its location and depending on the pre-dominant sect of the residents in that area, may receive most children from that particular sect. While this may be the only way for children to continue schooling in Baghdad, the divide may only serve to increase the fear and hatred, thus exacerbating the already widening crevices of sectarian violence."

UNAMI, 22 November 2006

"Schools have become increasingly a target for sectarian and other criminal attacks and parents are worried about the safety of their children, girls in particular. According to the Ministry of Education statistics, over 300 teachers and employees in the Ministry of Education (MoE) were killed and additional 1,158 wounded in 2006 alone, with several schools closed as a result of threats and violence. . [...] In Diyala, the situation is extremely grave in relation to education. A statement issued at the end of October by the Governorate Council of Diyala, indicated that 90% of schools in the province are entirely closed due to the deteriorating security conditions, threats and terrorist acts. This was also confirmed by the MoE Spokesperson. Fearful of killing or kidnapping, the Director General of Directorate of Education in Diyala has abandoned the Education Department building and is now running his day-to-day office work from a room provided by the Governorate Council."

IRIN, 5 March 2006

"The Ministry of Interior has announced it will increase security measures to protect children from ongoing violence after a recent report cited shocking figures for children killed and injured in the past four months. [...] The report, issued on 1 March by the Ministry of Education, also appealed for better security for children. "The report showed that children in our country are being innocently killed," said Kamal Muhammad, a senior education ministry official. . [...] According to Muhammad, the report states that 64 children were killed and 57 injured in a total of 417 attacks on educational institutions since November 2005. Additionally, more than 47 youngsters were kidnapped on their way to or from school for the same period. The report also noted that 311 teachers and government employees had been killed and another 158 wounded in attacks."

UNAMI, 18 July 2006

"According to the joint UN and Iraqi government food security and vulnerability analysis, children are the primary victims of food insecurity [...] The survey also records the growing drop-out rate among pupils less than 15 years of age – 25 percent of students under the age of 15 lived mostly in rural areas and were identified as extremely poor. The main reason given for the dropout rate is the inability of the families to afford to pay for the schooling and schools being located too far away from home."

IRIN, 3 April 2006

"Children's education is being severely affected by ongoing sectarian violence, say officials at the Ministry of Education. 'Teachers have informed us that a high percentage of students aren't attending class, especially primary schools students,' said senior ministry official Sarah Obeid. 'The main reason for this is their families' fears due to the increase of sectarian violence.' According to Obeid, at least 30 percent of Iraqi students are not attending school, with the situation much worse in districts of the capital, Baghdad, where violence has been most in evidence. [...] Some parents have also noted growing discrimination in schools along sectarian lines."

UNDP, Tabulation Report Living Conditions Survey, 2005, p.80

Two thirds of the adult Iraqi population, 65 percent, claims to read and write without difficulty, and an additional 10 percent can read and write everyday material with some difficulty. In the younger age groups (aged 15-24), literacy rates are only somewhat higher than for the population at large: 71 percent claim to read and write without difficulty. It is worth noting that the literacy level is somewhat lower among those aged 15-24 compared with the age group 25-34, a difference that is particularly marked for men. There are large regional differences in illiteracy. Illiteracy among the urban population is lower, 21 percent, than among the rural population, 39 percent. Illiteracy is highest in Duhouk and Al-Muthanna. Gender differences in illiteracy are also marked: 35 percent of women are illiterate compared to 17 percent of men. The gender gap is higher in rural than in urban areas, and is also higher in older than in younger age groups. [...]

The North has the lowest educational levels where 55 percent of the adult population never completed elementary school, and only six percent started or completed higher education. On the other hand, educational levels are highest in Baghdad where 25 percent of the population never completed elementary school, and 16 percent started or completed higher education. [...] Of the children in primary school age, 79 percent are enrolled in primary school: 83 percent of boys and 75 percent of girls. The net enrolment rate in intermediate school is 41 percent: 47 percent for boys and 36 percent for girls. Out of all the children enrolled in school, 98 percent attended school most of last month. There is no gender difference in attendance, but significant differences between governorates. Al-Anbar and Najaf have lower attendance rates, which is most likely due to the difficult security situation during part of the interview."

UNHCR, October 2005

The first comprehensive study on the condition of schools in post-conflict Iraq, the School Survey 2003-2004 in Iraq, [...] was released in October 2004 by the Iraqi Ministry of Education (and

produced with in collaboration with UNICEF). It shows that overall enrolment surged in the 2003/2004 school year despite the fact that school facilities are not nearly adequate. Some 4.3 million children (2.4 million boys, 1.9 million girls) are currently enrolled in primary schools (compared to 3.6 million in 2000). [...] Furthermore, 1.57 million children (950,000 boys and 620,000 girls) are enrolled in secondary schools. [...] The enrolment of girls is lower than boys in every grade and in every governorate. Overcrowding (many schools have up to three shifts per day), insecurity and the lack of water and sanitation facilities in schools are three main causes of lower enrolment of girls. On a daily basis, teachers, children and their families in Baghdad and other flash-points of conflict and criminality have to overcome a fear of bombings, explosions and kidnappings. Nevertheless, and especially in a situation of insecurity and conflict, regular attendance at school is one of the best ways a child can regain sense of normalcy in his or her life."The School Survey 2003-2004 shows that one-third of all primary schools in Iraq lack a water supply, almost one-fourth have no electricity and almost half are without sanitation facilities.[...] It further reveals that out of 11,368 school buildings, only 1,271 sustained no damage, whereas 529 were completely destroyed and more than 9,500 need minor or major rehabilitation. In the Northern Governorates of Dohuk, Erbil and Sulaymaniyah, there are no schools that do not need rehabilitation and Sulaymaniyah has the highest rate of completely destroyed school buildings (171 out of 1,381 school buildings).[...] Iraq has 2,753 secondary schools, of which 36 are completely destroyed and 2,408 need minor or major rehabilitation. Again, the three Northern Governorates as well as the Governorate of Najaf do not have one school building that does not require rehabilitation. [...] Half of the school buildings have no functioning latrines, one fifth has no electricity and sufficient water is available in only half of them [...] The availability of secondary schools is lower than that of primary schools, but in most governorates the majority of children need less than 30 minutes to get a secondary school, which is considered to be within a reasonable distance. Again, the lowest availability of secondary schools can be found in the Governorates of Babil and Muthanna."

"Refugees, returnees and IDPs in principle have access to education on par with the general population. However, they face a number of particular problems. Due to a lack of documentation, returnee families often face difficulties enrolling their children in schools, in particular in Southern Iraq. School attendance is further fraught by the lack of Arabic language skills, as many returnee children were born abroad and Arabic has not been their primary language of education. Already overcrowded schools suffer from additional pressure by returnees and headmasters are often reluctant to accept new pupils. Returnee children that do not speak the language properly rarely receive the attention required to integrate into a class, leading to quick dropouts and a high dropout rate overall. In addition, returnee children usually lack grade equivalency papers and are therefore often placed in grades several years below their same-age peers.[...] IDPs in camps often have no access to education and rates of non-attendance at schools are particularly high among IDP children. In the Governorate of Kirkuk for example, it is reported that most IDP camps (one quarter of IDPs in that governorate live in camps) have no schools. IDP children need to go to school in towns, where they add to the already existing overcrowding.[...] In the Governorate of Babil, most schools operate in two or three shifts to accommodate large numbers of students, but this is still insufficient to meet needs.[...] Accordingly, illiteracy rates among IDPs are particularly high. In the Governorate of Thi-Qar for example, illiteracy rates among the general population stand at 25 percent but reach more than 50 percent among IDPs.[...] Children that live in overcrowded or sub-standard accommodation often face problems at school as they have no space to read or sleep quietly. In addition, many do not have access to recreational activities."

UNAMI EWG, 18 January 2005

"UNICEF notes that an estimated 100,000 children from Fallujah and the surrounding host communities are at risk of losing the entire academic year as a result of schools being occupied, damaged, or overcrowded. None of the 95 schools inside Fallujah are currently open, and only 125 out of 362 schools in the surrounding areas are reported as functioning by the IIG. The

Ministry of Education is reportedly considering setting up 11 tented schools in Amiriya with support from NGOs."

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Livelihoods and self reliance – livelihood ranks in the top priority needs reported by surveyed displaced people (2007-2009)

- The need for employment is high for all Iraqis but affects IDPs significantly, as they leave behind their sources of income and move to areas where their skills might not be marketable. In 2009, there continued to be very high rates of unemployment - 66% of IDP families had no member of the family employed, and 33% of families had at least one member employed (IOM, May 2009; IOM, 30 June 2008) Access to work is listed as the top priority need of assessed IDPs.
- In 2008, IOM monitoring surveys in 2008 identified that 73% of IDP families have 1 members of their family employed. (IDP Working Group, 27 2008) Rising costs of fuel, rent, and food and high levels of unemployment are causing deteriorating conditions for IDPs (and host communities). Attaining employment is even more difficult for women and widows, especially in increasingly conservative areas. (IDP Working Group, 27 June 2008) In 2006, around 40 to 50 per cent of Iraqis were estimated to be unemployed. A mission by RI suggests that in the more stable Kurdish areas, the biggest concern among IDPs is economic. (RI, March 2007)
- Livelihoods are particularly of concern for certain segments of the population displaced – particularly women, persons displaced in different cultural environments. There is high rate of unemployment amongst women seeking employment in increasingly conservative environment. There continues to be high rates of school absentism as children are compelled to work. In the three northern governorates, employees usually require Kurdish speakers. In mid 2008, it was reported that 66% of assessed IDP families do not have any members employed (IOM, 30 June 2008).
- UNHCR remarked as early as 2004, that IDPs are being pressured on a number of levels including being promised housing and money at the place of return, gangs charging IDPs for 'spots' in public buildings promising that high levels of compensation would be paid on eviction. (UNHCR, 12 August 2004) Local NGOs and international actors reported how economic and protection precarity of the displaced situation has been exploited by militants. Militants have also thought to acquire favours through the distribution of humanitarian assistance. (IRIN, 7 August 2007)
- Self reliance has also been highlighted in reference to protection concerns and mobilisation of IDPs against government policies. In light of the general insecurity, as early as 2004 certain IDP groups organised themselves and developed their own protection networks through community watch programs (UN Cluster 8/UNCT, August 2004) In 2006-2007 Baghdad's IDPs have marched number of instances on CPA offices and subsequently Iraqi Government institutions in protest alleged order to leave abandoned government buildings, and increasingly for protection (IRIN, 22 March 2005; IRIN, 19 March 2004; IRIN, 24 September 2007)
- Reconstruction or rehabilitation of places of origin of displaced have not clearly yet been felt or undertaken in integrated manner to enhance livelihoods, though there is no overall clear mapping of the situation. Efforts at reconstruction of Marshlands has faced severe difficulties due critics of high needs, continuing environment degradation, and limited livelihoods possibilities (IRIN, March 2009). In 2009, Iraqi government initiated the Diyala initiative to provide an integrated approach to return by providing assistance to returnees with inter-

International Organization for Migration (IOM), May 2009

International Organization for Migration (IOM), 30 June 2008

Access to work is consistently listed as the top priority need of assessed IDPs. The need for employment is high for all Iraqis but affects IDPs even more, as they leave behind their sources of income and move to areas where their skills might not be marketable. In addition, some host communities discriminate against IDPs, either thinking they are not trustworthy to hire or hiring them for reduced salaries. Those IDPs who do locate work often hold day-labor jobs that pay poorly and are temporary. In the three northern governorates, employees usually require Kurdish speakers. 66% of assessed IDP families do not have any members employed. Access to a steady income could assuage the problems many IDPs face, enabling them to pay for rent, food, health care, and school expenses.

IDP Working Group, 27 June 2008

Access to income/employment is consistently mentioned as the first priority for IDPs in Iraq. Rising costs of fuel, rent, and food and high levels of unemployment are causing deteriorating conditions for IDPs (and host communities) throughout the country. Attaining employment is even more difficult for women and widows, especially in increasingly conservative areas. Of 28,320 families interviewed by IOM in 2008, the following stated that at least one member within the family has a job.

IOM, 2 February 2007

"Unemployment was cited at between 40-60% in Iraq in 2006, and in addition to the high competition for very few jobs, the displaced often find themselves in areas where there is no demand for their skills or experience. In addition, the displaced report that employers do not want to hire them because they see them as a security risk. It is not surprising that employment opportunities joined shelter and food as the top priority needs of people displaced in 2006. The displaced who were assessed provided numerous suggestions to improve employment opportunities. Many suggestions focused on construction projects that would improve infrastructure while simultaneously providing much-needed services

RI, March 2007

"Whereas many Iraqis worry most about security, in the stable Kurdish area, the biggest concerns are economic. Those who reach the Kurdish governorates must surmount difficulties in finding housing, shelter, employment and education for their children. Most internal refugees can't find work, except for professionals such as doctors or engineers, who are welcomed and sometimes even sought by the Kurdish authorities. Some of the displaced are staying with host families, and others are staying in public buildings, depending entirely on the host community's willingness to help.

Integrated Regional Information Networks (IRIN), 7 August 2007

Many internally displaced persons (IDPs) in camps in Iraq are facing shortages of water, especially clean drinking water, and the situation is being exploited by unscrupulous militants,

local non-governmental organisations (NGOs) say. Some displaced families have said militants have been delivering clean water to their camps by truck and demanding money, goods or favours in return. [militants] sometimes ask for money knowing we don't have any, and then start to search our tents to see if there is something useful, while armed men stay near the truck with their guns aimed at us, said Omar Lattif, 45, an IDP at Rahman camp on the outskirts of Missan in southern Iraq. Sometimes they even ask for fun with nice girls he said, adding that two men in the community had been killed for confronting militants demanding sex for water.

Integrated Regional Information Networks (IRIN), 24 September 2007

Nearly 400 internally displaced persons (IDPs) living in Baghdad's southern district of Saydiyah took to the streets on 23 September, demanding government protection to enable them to return to their homes. "Al-Saydiyah is now a place where you find many armed criminals who have occupied it and are thriving by killing and kidnapping. These criminals have played, and are still playing, with the lives of 50,000 residents - Shias, Sunnis, Christians, rich and poor," said Ali al-Amiri, 44, who represents the displaced families of Saydiyah. According to al-Amiri, 4,730 families, about 23,650 individuals, have been displaced from the once peaceful Saydiyah over the past 18 months due to the increasing sectarian violence in this particular neighbourhood. Nearly 2,000 others have been killed in Saydiyah, he said. "We want joint forces from the Iraqi army and police along with the Americans to clear our area of those terrorists to enable us return to our homes," said al-Amiri who led the demonstration to Baghdad's fortified Green Zone, home of the key government offices, including those of the prime minister and president.

IRIN, 22 March 2005

"Over 300 people demonstrated on Tuesday at the gates of the heavily fortified Green Zone in the Iraqi capital Baghdad, calling on the government to allow them to stay in government buildings as they have no homes following the conflict in 2003. Nearly 200 Iraqi families have been ordered to leave the buildings in a government complex, called the Freedom Complex district, by the end of this week. There are approximately 2,000 people and some families have up to 10 members. The families had been renting houses during Saddam Hussein's regime but after the last war they were forced out by the owners as they were paying normal lower rents. Most of the residents earn less than US \$30 dollars a month and don't have enough to rent a house on the open market.

UNHCR, 12 August 2004

"Due to the general political insecurity, IDPs are particularly vulnerable to political manipulation. IDP populations have in general been displaced due to ethnical or religious discrimination and at times to alter the ethnic balance in certain areas. With elections planned there is a high risk that displaced populations will again face push or pull factors for similar purposes. Examples that have already occurred range from cutting services to camps, promising housing and money at the place of return, to gangs charging IDPs for 'spots' in public buildings promising that high levels of compensation would be paid on eviction, or that buildings would be rehabilitated and provided for superior accommodation."

UN Cluster 8/UNCT, August 2004

"The general insecurity faced by the population of Iraq as a whole, affects IDPs more due to their particular vulnerabilities and lack of community protection. [...] Increasingly, IDP groups have organised themselves and developed their own protection networks through community watch programs"

IRIN, 19 March 2004

"It looks like a peace rally or a spring celebration: green flags fluttering in the breeze, children running around, and posters calling for housing for all. But talk to some of the 500 people who gathered on Wednesday in front of gates leading to US administrator Paul Bremer's office, and their protest is quite desperate. They say Iraqi police and US-led troops have told them to leave

the abandoned government buildings around the city where they have been living for almost a year.

Coalition Provisional Authority, 22 March 2004

"The founding conference of the Maysan Marsh Arab Council marked the first time that Iraq's Marsh Arabs publicly expressed their wishes and concerns for the future of their marshland environment. According to a report from the Maysan Province office of the Coalition Provisional Authority (CPA), several hundred marshland residents gathered in the city of Amarah, Iraq, on March 20 to meet with scientific experts and government officials regarding projects to restore portions of Iraq's wetlands. (...) The conference provided a forum for marshland residents to discuss numerous issues surrounding proposed plans to re-flood parts of the vast network of wetlands along the Tigris River basin in southern Iraq. These included not only environmental issues but also concerns regarding health, education and agricultural and cultural matters relevant to the historically marginalized Marsh Arab population..... In recent testimony before the U.S. Congress, U.S. Agency for International Development (USAID) officials studying the feasibility of marshland restoration observed that the residents 'ask for social services that have never been accessible to them in the past but ought to be expected of any representative civil society in the future.' The Maysan Conference marked the first opportunity for local marsh residents to articulate these wishes in an official public forum. According to the CPA report, the purpose of the newly founded Marsh Arab Council is 'to provide a voice for the Marsh Arabs of Maysan so their interests and concerns will be factored into national and international plans that affect the marshes.' The report indicated that this was only the first in a series of meetings aimed at bringing local residents into the dialogue regarding the future of their region.

[Life After the "Islamic State", Institute for War and Peace Reporting \(IWPR\)](#), 4 January 2008
[Iraq's Refugee and IDP crisis: Human Toll and Implications](#), Middle East Institute, July 2008
[Update on IDP and USAID mission activities in Iraq](#), U.S. Department of State (U.S. DOS), 27 June 2008
[Emergency Needs Assessments Post February 2006 Displacement in Iraq: 1 May 2008 Biweekly Report](#), International Organization for Migration (IOM), May 2008
[Life After the "Islamic State", Institute for War and Peace Reporting \(IWPR\)](#), 4 January 2008

Public Participation

Public Participation for IDPs in Elections (2005 to 2009)

- Though sectarian violence in Baghdad and elsewhere has lessened, ensuring the participation of IDPs in national elections remains a significant challenge. There have been number of difficulties faced in ensuring right to participate in the elections for IDPs unable to register and vote in their places of origin. In governorate elections, and national assembly elections, procedures have been put in place able to vote for their governorate of origin, by either returning to their governorate or by casting an absentee vote in the governorate where they are currently displaced.
- There have been however numerous difficulties encountered by IDPs vis a vis their participation in elections that have taken place including: lack of provisions for absentee voting, difficulties in registration due to lack of documentation, electoral registers not being updated, intimidation, and insecurity have also affected voting participation. There have also been allegations of voting manipulation, and corruption.
- There have been several steps taken by the Iraqi government to facilitate IDP participation in national elections. This has included the elaboration of modalities to allow IDPs to participate

- According to IHEC regulations as noted for previous elections only those registered as IDPs with MoDM and the Ministry of Trade as displaced will be entitled to absentee voting rights. In KRG, IDPs are required to provide their Public Distribution System (PDS) ration card from the governorate of origin, or a special certificate from the governorate office of the Ministry of Trade of the Kurdistan Region. IDPs lacking appropriate documentation may seek individual official confirmation statement from MoDM in order to be registered in the voter registrar.
- Commentators have however suggested that there persists to be difficulties: lack of appropriate documentation, non-registration as IDP, and slow and bureaucratic procedures in obtaining documentation from MoDM may entail inability of many to participate. There are concerns regarding the degree to which IDPs shall be able to participate in coming national elections to be held in March 2010. Though UNHCR reports suggest high level of awareness, 30% of those surveyed indicated inability to vote due to voting registers not being updated. Furthermore though insecurity at national level has generally declined compared to 2006-2007, there continues to be high levels of generalised violence and there has been resurgence of violence in the months leading to the elections.
- In previous national assembly election held in 2005, IDPs would face difficulties: obstacles to registration due to lost documentation, lack of provisions for absentee voting, and high rates of insecurity. In Fallujah, IRIN reported that insurgents prohibited persons from voting and threatened that those who do will be targeted; while many of those recently displaced from Fallujah were unable to register to vote before the deadline. Similar acts of intimidation were witnessed elsewhere.
- Insecurity in a number of cities, including Baghdad, Mosul, al Fallujah and al Ramadi made verification of voter lists nearly impossible. In other areas, including Mosul and Tikrit, registration centres were attacked. Only 2% of eligible voters in central Al Anbar province cast ballots and only 30% in Salah al Dine province. Insecurity also significantly marred the campaign of election candidates, and wherein Sunni parties and militias called and enforced a boycott of national elections. There were also significant concerns regarding election mandering with regards to population movements. Under pressure, the Iraqi Electoral Commission announced its decision that around 100,000 displaced Kurds expelled in the 1980s and 1990s could vote locally. The decision was condemned by Arab and Turkmen leaders.

IHEC, late 2009

IHEC had undertaken a number of voter registration update exercises since 2007, with the latest national one conducted in August and September of 2009, in order to update the list and ensure those who have moved or newly eligible voters were added... Internally Displaced Persons (IDPs) registered with IHEC to vote using an absentee ballot, will be allowed to vote for their governorate of origin in their current governorate of residence. An IDP must appear on the IDP Voter List to take advantage of this. Otherwise an IDP can vote in the governorate of residence, providing that they have been registered on the Voter List and by presenting the correct identification documents at the assigned polling location. IDPs not registered with the IHEC will also be allowed to vote in accordance with separate instructions issued by the IHEC.

United Nations High Commissioner for Refugees (UNHCR), 30 December 2009

The main consequence of not registering was the exclusion from government assistance or social welfare, no transfer or recognition of documents, no fuel distribution and no jobs, no rental or purchase of property, land allocation, difficulties in accessing healthcare and education as well as

might not be able to vote in the forthcoming elections (30% IDPs, 26 IDP returnees, 21% refugee returnees) as the voter record was not updated.

IDP Working Group, 27 June 2008

For the upcoming governorate elections later this year, IDPs will be able to vote for their governorate of origin, by either returning to their governorate or by casting an absentee vote in the governorate where they are currently displaced.

- To vote, all eligible voters must be registered. According to the Electoral Law, in order to be

registered one has to be an Iraqi citizen, be legally competent, and be 18 years of age in the month of election.

- IDPs can register as voters where they are displaced at one of the 549 voter registration centres country wide from 1 July to 31 July. However, only people displaced after 9 April 2003 and registered as IDPs with the MoDM or the DDM will be entitled to register.

Brookings-Bern Project on Internal Displacement, 2 October 2008

Provincial elections are an important step toward national reconciliation in Iraq, but steps must be taken to ensure that the displaced – both refugees and internally displaced persons (IDPs) – are able to participate. A significant milestone was reached on 24 September when Iraq's Parliament adopted a provincial elections law. The agreement provides for elections before 31 January 2009 in 14 of the country's 18 governorates while elections in Kirkuk, the key sticking point in previous negotiations, along with the three Kurdish-controlled provinces, will be postponed..... This year the situation has been reversed: those living outside the country are not allowed to vote while provisions have been made for internally displaced Iraqis (those displaced by the violence after April 2003) to participate. Iraqis overseas – particularly those displaced since the start of the war – should be able to vote in the upcoming elections. And IDPs should be encouraged to register and to turn out to vote. While mechanisms are in place this time around to ensure IDP voting rights, the *Wall Street Journal* reports that only 100,000 IDPs have registered to vote in the provincial elections while other sources put the figure even lower. M Participation of Iraq's refugees and IDPs in the provincial elections is critical to a legitimate electoral process, national reconciliation, and regional stability.. Earlier this year, after all, the Iraqi government allocated just \$200 million – out of a \$70 billion budget -- for Iraqi refugees and internally displaced persons who together represent around 20% of the country's population It is not only important that IDPs vote and are able to hold their leaders accountable. This is also a test of Iraq's democracy. It is vital that those most marginalized, and most affected by violence, are included in this process. It's important for the legitimacy of the elections and is a crucial step in moving toward national reconciliation.

International Crisis Group (ICG), 30 April 2008

This would be a departure from the past, as in January 2005 there were not yet significant refugee and internally displaced populations. The problem could be enormous: By current estimates, some four million Iraqis are either refugees or internally displaced. One challenge will be to organise provincial council elections for refugees. The other will be to encourage internally displaced Iraqis to vote. Although the surge has reduced sectarian violence in Baghdad and some other areas, it is unlikely that they could or would register in their original town or neighbourhood if these continue to be controlled by an enemy group (for example, a Sunni would be loath to register in a neighbourhood controlled by the Sadr movement). But to register in their new abode, they would have to de-register in their old one, which would present the same threat to their safety. A decision would, therefore, need to be taken to allow them to register in their safe haven without first de-registering in their original town or neighbourhood.

IRIN, 15 February 2005

"IECI [*Independent Electoral Commission of Iraq*] officials told IRIN that internally displaced people (IDPs) from the cities of Fallujah, some 60 km from Baghdad, and Kirkuk and Mosul in the

north were able to participate due to the improvised polling stations in the areas in the capital or in temporary camps. Around 6,000 IDPs from areas around Fallujah are said to have cast their vote. Farid Ayar of the IECI told IRIN that only 2 percent of eligible voters in the central al-Anbar province cast ballots and only 30 percent in the Salahdine province, some 180 km from Baghdad. Around 100,000 Kurdish IDPs uprooted from the Kirkuk area were permitted to vote locally following a decision by the Iraqi authorities in mid-January. Exceptional arrangements were also made for over 200,000 people displaced from Fallujah, he said. Numerous observers had raised concerns that many IDPs would not have been able to vote because they had lost the required personal documentation, either while fleeing or as a result of destruction of their homes.

Brookings Bern Project on Internal Displacement, 25 January 2005

In addition to arranging out-of-country voting for Iraqi expatriates ("Iraq Expatriates Sign Up to Vote in 5 Cities in U.S.," front page, Jan. 18), it is critical to ensure that the one million Iraqis displaced within the country are able to vote on Jan. 30. Though voters are entitled to cast their ballots in the national assembly election regardless of where they are in Iraq, internally displaced voters face a number of practical obstacles. Many of the more than 200,000 people recently displaced from Falluja were unable to register to vote before the deadline. Other internally displaced persons have lost personal documentation while fleeing or as a result of destruction to their homes. Additional problems arise in the governorate elections, which lack provisions for absentee voting. The disenfranchisement of Iraq's displaced persons will pose challenges to their return and also raises questions about the legitimacy of the electoral process over all. Both of these consequences could have significant repercussions for long-term stability in Iraq."

HRW, 23 January 2005

"In many parts of the country the process has gone smoothly given the limited time, although citizens born in 1986 were accidentally left off the preliminary lists. In cities like Baghdad, Mosul, al-Falluja, and al-Ramadi, however, threats and violence by insurgents have made verification of the voter lists virtually impossible. In November, insurgents set fire to a Mosul warehouse with election registration papers. On January 2 unknown assailants destroyed two registration centers in eastern Tikrit with mortar fire. As Iraq's interim president Ghazi al-Yawir explained: 'There are areas where no one has been able to give out even one voter registration sheet.'

In response, the Commission has decided to allow voters in Nineveh province, where Mosul is located, and in al-Anbar province, both to register and vote on election day. According to commission spokesman `Ayyar, the more than 200,000 residents of al-Falluja who were displaced during the U.S. offensive in November will be allowed to register and vote at special polling places established near the displacement camps and villages where many of them currently live. As of January 12, approximately 6,000 al-Falluja residents had returned to the town and, according to a U.S. general, they will be able to vote there. [...] On January 15 the electoral commission announced that voters must vote in the province where they are registered. The one exception is the estimated 200,000 al-Falluja residents who were expelled from the town before and during the U.S. assault in November 2004. For them, the electoral commission is setting up special polling places in the villages and displacement camps where many of them live,....."

HRW, 23 January 2005

"Until mid-January, Kurdish political parties were threatening to boycott the elections because Kurdish residents of Kirkuk who had been expelled from the area during Saddam Hussein's 'Arabization' program in the 1980s and 1990s were forbidden to vote in the provincial election. On January 14 the Electoral Commission announced that displaced Kurds from the area could vote locally. The decision allows an estimated 100,000 Kurds to vote for the al-Tamim provincial government. Arab and Turkmen leaders in Kirkuk condemned the decision, and one of the main Turkmen parties, the Iraqi Turkmen Front, threatened to boycott the elections. The decision, they say, will put Kurds in charge of the al-Tamim government during the coming year, when Kirkuk's territorial status in Iraq is scheduled to be determined."

DOCUMENTATION NEEDS AND CITIZENSHIP

General

Returnees and IDPs face difficulties in registration and obtaining documentation required (2005-2009)

- IDPs have faced difficulties in registration as displaced for several years (See also Restrictions on Movement and Registration on IDPs (2003-2009) . Though registration restrictions at governorate level have eased, this has also coincided with national government measures in mid 2009 to end all registration, even though some registration continues at governorate level. MoDM is responsible for registration in all the fifteen central and southern governorates. The Kurdistan Regional Government registers IDPs in Dahuk, Erbil, and Sulaymaniyah. (IOM, 30 June 2008) MoDM branch offices and returnee centers across the country attempt to address these concerns. UNHCR protection assistance centres and returnee centres alongside MoDM provide services including legal assistance though in view of the number of displaced face considerable challenges to cope with the large numbers of persons concerned.
- In 2009 in many areas IDP and returnees indicated that their registration was pending due to bureaucratic procedures or could not register as they lacked necessary documents, or of considerable concern were in fear of the consequences of such registration, or did not fulfill requirements or were unaware of such requirements (UNHCR, December 2009). In case of returnees wishing to deregister as IDPs, IOM reports in February 2009 indicate that the MoDM offices face a considerable backlog in cases which explains the difference in official returnee figures and UN figures. However displaced and returnees are also hesitant to register in fear of consequences or perceived loss of benefits that this may entail, and importantly for non availability of other options such as integration. (IDMC interview, January 2010).
- A varying selection of documents are required in each governorate, including the original residence card, PDS card, the national ID, and a letter of approval from city council members, the mayor, local police, and/or MoDM. (IOM, 30 June 2008) To register as a returnee, and IDP must obtain an official letter closing status from MoDM in place of origin, the national ID, PDS card, national certificate, and residency card issued out by the local authorities in the place of return (MoDM, December 2009)
- Non-registration of IDPs and also returnees is a humanitarian concern because it limits their access to basic services and legal documentation for PDS food rations. (IOM, 11 January 2008) In 2009, main consequences of not registering was the exclusion from government assistance or social welfare, no transfer or recognition of documents, no fuel distribution and no jobs, no rental or purchase of property, land allocation, difficulties in accessing healthcare and education as well as might not be able to vote in the forth coming elections (30% IDPs, 26 IDP returnees, 21% refugee returnees) as the voter record was not updated (UNHCR, December 2009).
- There are no estimates available on number of unregistered though figures are presumed high. In 2008, IOM and UNHCR reported restrictions on IDP entry and registration due to security, economic, and even demographic concerns Registration is tightly restricted in areas with high levels of ethno-religious tensions, such as Kirkuk, sometimes registration is restricted to those with an advanced degree or professional qualifications. (IOM, 30 June 2008; UNHCR, August 2008) In northern governorates and Babylon, and Kerbala, only IDPs with sponsors or with origins or relatives from the governorate were allowed entry. In Basrah,

- Some IDPs also reported in 2008 that they were not registered due to sectarian, ethnic, or tribal bias. Though there are no clear figures available there is continual concern that this remains particularly the case in 2009 in areas of high sectarian and ethnic tensions particularly in Ninewa and Kirkuk. There are also observers stressing on difficulties faced by IDPs particularly of Sunni origin in comparison to Shi'ia IDPs in registration process of returnees.
- Available documentation remains central to the exercise of rights including registration as IDPs or Returnees, voting and accessing basic services, to accessing income/financial assistance, (pension/service records, driver's licences and car registration, medical committee certificates and property deeds). However, some kind of key documentation was reported lacking (UNHCR, December 2009) In 2009, IDPs and returnees reported lacking most commonly civil identification (20% IDPs, 45% IDP returnees, 35% returnee refugees) PDS ration cards (31% IDPs, 12% IDP returnees, 24% refugee returnees), civil ID (25% IDPs, 18% IDP returnees, 22% refugee returnees), nationality certificate (22% IDPs, 11% IDP returnees, 29% refugee returnees) and passport (21% IDPs, 9% IDP returnees, 15% refugee returnees). (UNHCR, December 2009)
- Among the most important legal documents are the civil status identification document and the Iraqi nationality certificate. The civil status identification document is the personal identification card and is used in official transactions to obtain any other documents or record. It is a requisite document to obtain passports and PDS cards and to access health care, employment, education, housing and social welfare. (UNHCR August 2008) In order to obtain this document, many documents need to be submitted, including a standard application form, the PDS card, birth certificate or deed, copy of family registration entry or civil status identification document for any registered relative (e.g. father or grandfather), testimony by the local mayor, personal photographs and fiscal stamps. (UNHCR August 2008)
- In 2008, UNHCR reported that IDPs face problems to replace lost documents due to difficulties as result of security access to government issuing bodies, direct and indirect financial costs associated with documentation, and lengthy procedures and requirements. Access due to security concerns has been a problem in Governorates of Anbar, Baghdad, Diyala, Kerbala and Wassit. (UNHCR, August 2008) IDPs may also face problems or delays when applying for documents since departments often lack employees, experience and training and have limited or no access to relevant legislation and instructions. Bureaucracy and, slow legal procedures leads to considerable delays in issuance of documents. (UNHCR August 2008)
- In January 2007, surveys of the IDP communities revealed that 97% hold nationality certificates, 97% have identification cards, 74% of families hold marriage documents, 47% have birth certificates, and 18% have death certificates. (IOM, 2 February 2007) In 2005, UNHCR underlined that returnees face difficulty in obtaining documentation required upon return despite the existence of legal advice centres and may have difficulty to do due to costs related to transportation and application fees. Foreign spouses may also face problems obtaining documentation. In 2004, reports underlined that the biggest challenge for IDPs in terms of documentation was related to ration cards to access food newly displaced persons face delays in registering with the public distribution centre as food cards are tied to one location (UN Cluster 8/UNCT, August 2004)

United Nations High Commissioner for Refugees (UNHCR), 30 December 2009

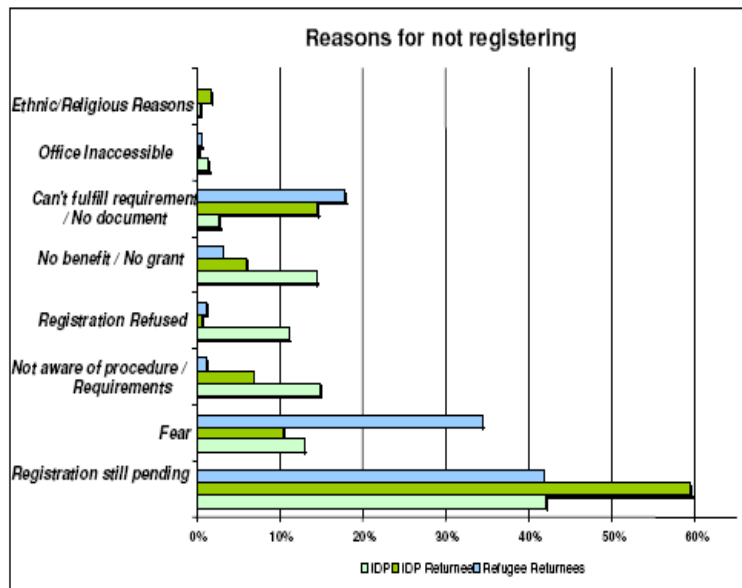
In Iraq, documentation is central to exercise citizenship rights, including registration as IDPs or Returnees, voting and accessing basic services, to accessing income/financial assistance, (pension/service records, driver's licences and car registration, medical committee certificates and property deeds). However, some kind of key documentation was reported lacking. IDPs and returnees indicated the need to register with the authorities in order to stay in their current

location but findings highlighted problems with the registration procedures/requirements and/or lack information on the need for/benefits of registration.

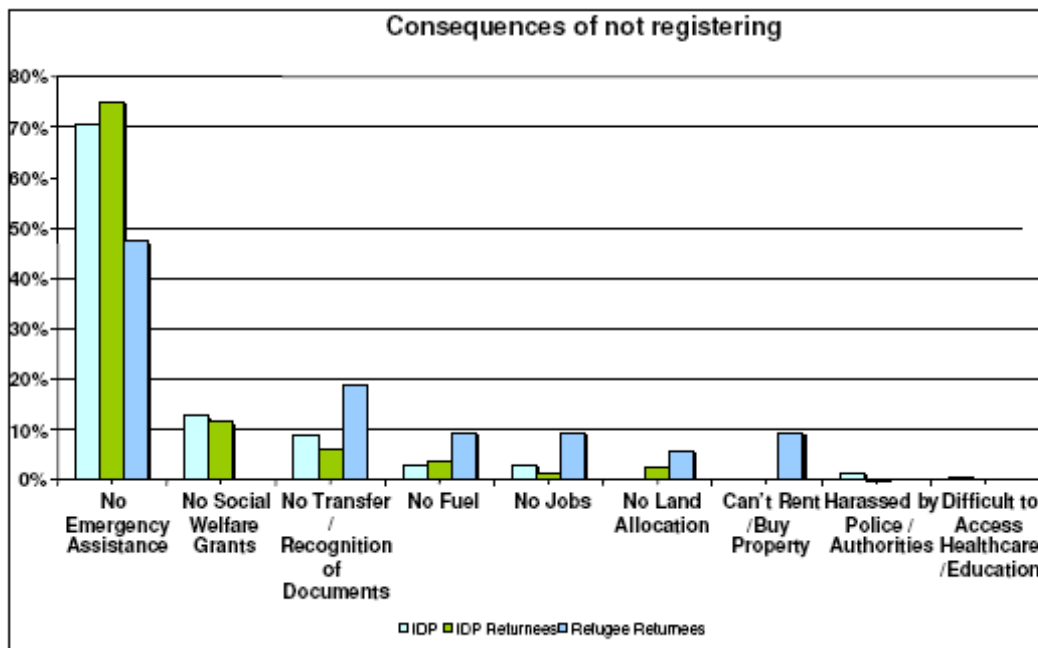
From January to March 2009, some 53%IDP, 15%IDP returnee and 40% refugee returnee families reported lacking most commonly PDS ration cards (31% IDPs, 12% IDP returnees, 24% refugee returnees), civil ID (25% IDPs, 18% IDP returnees, 22% refugee returnees), nationality certificate (22% IDPs, 11% IDP returnees, 29% refugee returnees) and passport (21% IDPs, 9% IDP returnees, 15%refugee returnees). About 61% IDPs stated they needed to register with the authority in their current location; however, only 55% IDPs were registered. 75% IDP returnees and 56% refugee returnees approached the authorities to register. The main consequence of not registering for IDPs was the exclusion from government assistance (51%), no PDS distributions (24%), no job opportunities (10%), as well as no fuel distribution (15%). For refugee returnees, not registering makes them ineligible for returnee grants (in 48% of the cases) and land allocations (22%). Asked why some families were not registered, the groups answered that these families were either unaware of the process (12%) or they do not fulfill the requirements (10%). The communities assessed from April reported mainly lacking the key documents and having difficulties in renewing them.

<i>Document</i>	<i>IDPs</i>	<i>IDP returnees</i>	<i>Refugee returnees</i>
Civil ID/Renewal	20%	45%	34%
Nationality certificate	15%	14%	11%
Social welfare	11%	20%	7%
PDS ration card	13.3%	4%	10%
Marriage/Divorce certificate	12%	8.5%	8%
Pension record	6%	28%	1%
Passport	11%	7%	3.5%
Birth certificate	6%	7%	16.5%
Death certificate	4%	8%	10%

.... In many areas IDP and returnees indicated that their registration was pending due to bureaucratic procedures or could not register as they lacked necessary documents, did not fulfill requirements or were unaware of such requirements:



The main consequence of not registering was the exclusion from government assistance or social welfare, no transfer or recognition of documents, no fuel distribution and no jobs, no rental or purchase of property, land allocation, difficulties in accessing healthcare and education as well as might not be able to vote in the forth coming elections (30% IDPs, 26 IDP returnees, 21% refugee returnees) as the voter record was not updated.



All Returnees who have previously registered as IDP's with the Ministry of Displacement and Migration (or one of their branch offices) are eligible to receive a cash benefit of ID 1 Million.

Iraqi Returnee Centre, Ministry of Displacement and Migration, 2009

To register for the benefit an IDP must bring the following documents to the Returnee Assistance Center:

- Official Letter Closing IDP Status - Official letter from the MoDM Branch office where you were registered as an IDP confirming the closing of status as an IDP.
- Iraqi ID - Gencia[nationality]
- National Certificate
- Valid Ration Card - issued in 2009
- Residence Card - Permanent Residence Card Issued from Information Office in area to which you are Returning.

All Returnees, regardless of their eligibility for the cash benefit, are eligible to receive additional services including Legal Aid and Property Restitution from the Returnee Assistance Center free of charge.

Internally Displaced Persons in Iraq: Registration and documentation issues. UNHCR, August 2008

The Ministry of Displacement and Migration (MoDM) is the responsible government body for registering IDPs in the all 15 southern and central governorates. Registration practices are not uniform and vary from place to place depending on local conditions. Therefore, registration can be bureaucratic and/or discriminatory, for example in some areas MoDM is registering only IDPs originating from “hot spot” areas. As for Kurdistan Region, the registration is undertaken by the respective Security /Residency Directorates, and lately also by the Department of Displacement in the respective Governorates. In 2007, a directive was issued by the central Government to lift restrictions on IDPs’ entry and registration and, as a consequence, restrictions eased to some extent. Still, the registration process with MoDM remains often bureaucratic as IDP families are required to produce a range of documents: PDS card, nationality certificate and photograph of the head of household, civil ID card for all family members, housing card from the place of origin and letter of approval from the local mayor or *mukhtar*, the city council and/or the police.

Monitoring undertaken by UNHCR in March 2008 revealed that three quarters or more of the IDPs in south and central Iraq have registered with MoDM or other local authorities. In the three Northern Governorates, most IDPs are registered with the General Directorate of Security (Governorates of Sulaymaniyah and Erbil) or the local authorities (Governorate of Dahuk), who forward the information to the General Directorate of Security. While monitoring showed that most IDPs appear to be registered, there is an undetermined number of IDPs. For example, the number of unregistered IDPs in the Governorate of Thi-Qar totals 968 families (cut-off date 30 June 2008). that did not register for various reasons, as explained below. Restrictions as well as entry/registration requirements in the different governorates are presented in the following table:

Governorates	Restrictions/entry requirements	Restrictions/registration requirements
<u>Southern Governorates</u>		
Babylon	As of 12 May 2008, authorities do not allow IDPs to enter unless they originate from the Governorate or are professionals.	Anyone can register once they have entered Babylon.
Basrah	No entry restrictions.	Only IDPs coming from a “hot spot” can be registered. IDPs need to pass a security check and write a declaration taking full responsibility for him/herself.

Diwaniya	No entry restrictions.	No registration restrictions.
Kerbala	No restrictions of entry; cannot bring furniture without approval.	Registration only of IDPs who (alternatively): · originate from Kerbala; · are eligible to transfer public service job; · own property in Kerbala; · are skilled; · are able to invest a certain sum of money; or · are considered a severe humanitarian case. In addition, a guarantee letter is required from a Kerbala resident.
Missan	No entry restrictions.	Only IDPs coming from a “hot spot” can be registered.
Muthanna	No entry restrictions.	No registration restrictions, but MoDM asked all IDPs to renew their registration due to incomplete or “questionable” registration.
Najaf	No entry restrictions.	No registration restrictions.
Thi-Qar	No entry restrictions.	Only IDPs coming from a “hot spot” can be registered. In addition, a sponsor is required.
Wassit	No entry restrictions.	Only IDPs coming from a “hot spot” can be registered. Previous registrations are in the process of being cancelled and IDPs need to re-register. This is done due to rather random registrations done previously. Several IDPs may face difficulties to re-register due to the lack of documents.
<u>Central Governorates</u>		
Anbar	Access to the Governorate or relocation within the Governorate requires a sponsor, who bears the responsibility that they do not pose a security risk. IDPs must also bring documents proving that they are from a “hot area”. To enter Fallujah, a special ID from the Iraqi Security Forces is required.	No registration restrictions, but MoDM works only in Ramadi, making the office inaccessible to many due to restrictions on the freedom of movement and distance; hence, most IDPs do not register.
Baghdad	No entry restrictions issued by local authorities.	No registration restrictions, but no registration of IDPs has taken place since November 2007.
Diyala	No entry restrictions to most districts in Diyala.	Only IDPs coming from a “hot spot” may register. In Khanaqin District, non-Kurd IDPs only get registered if they can prove that they originate from the area.
Kirkuk	No entry restrictions but border checkpoints control IDPs and investigate their reasons	Both DDM and MoDM carry out registration in Kirkuk, but only

	for relocation.	IDPs providing proof of a threat may be registered. MoDM also asks to prove that the IDP originates from Kirkuk. Kurds fleeing “disputed areas” face difficulties to register.
Mosul	No entry restrictions.	No registration restrictions.
Salah Al-Din	No restrictions except Shurqat District where a special permission from the police is required.	Registration is restricted for IDPs coming from Samarra District as well as Anbar and Diyala Governorates for security reasons. IDPs from these areas need a sponsor to register.
<u>Northern Governorates</u>		
Dahuk	Arab IDPs single men not originating from the Kurdistan Region need a Dahuk resident to sponsor them at the border. No sponsor is required for Kurds and Christians. Families do not need a sponsor.	A security clearance is needed if the sponsor is not a relative.
Erbil	All IDPs not originating from the area need an Erbil resident to sponsor them at the border.	A sponsor is needed to obtain a permission to remain in the Governorate.
Sulaymaniyah	Admission is generally not restricted and does not require a sponsor. There are special procedures applicable to persons wishing to relocate to the District of Kalar. An IDP first has to approach the security office in person and submit a petition requesting permission to relocate. The applicant needs a Kurdish sponsor who resides in Kalar. The sponsorship letter needs to be ratified by the Notary Public Office in Kalar. Only after these conditions have been met, the security officer will provide the permission to relocate and to bring family members and belongings. Any applicant without a sponsor from Kalar will be denied permission to relocate. Once the IDP has moved to Kalar and rented a house, a letter from the Mukhtar (neighbourhood representative) needs to be submitted to the security office to confirm the IDP’s address in Kalar. However, persons from “disputed areas” claimed by the PUK, i.e. Kirkuk and Khanaqin in the Governorate of Diyala, are generally denied entry to the Governorate for political and demographic reasons, unless they wish to come for a visit only. While Kurds are not permitted entry in order to maintain a Kurdish presence in	A sponsor is required to obtain a permission to remain. Persons originating from Kirkuk or Khanaqin in Diyala, including Kurds, Arabs, Turkmen and members of other ethnic or religious groups, are not able to stay for demographic and political reasons. Exceptions are made for Christian families with a recommendation from the church.

	these formerly arabized areas, Arabs, Turkmen, Yazidis and members of other religious or ethnic groups from disputed areas are also denied entry as the authorities do not want to be confronted with the accusation of changing the demographics by relocating non-Kurds from these areas. In that case, they are allowed entry but are not able to bring their belongings or a large amount of luggage with them.	
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Internally Displaced Persons in Iraq: Registration and Documentation Issues, UNHCR, August 2008

In practice however, many IDPs face problems to replace lost documents. For example, in several Governorates in the Centre and the South, the difficult security situation prevented IDPs from accessing government offices to have new documents issued. On the other hand, the security situation often also had a bearing on government offices' functioning. In five of the nine Southern Governorates, high costs are reported to be an obstacle for IDPs' access to legal documentation. Obtaining documents does not only involve the fees for the documents but also indirect costs such as transportation costs in order to access the place of issuance. In most cases, documents can only be obtained if other documents are already available or otherwise be obtained first, which can involve lengthy (and costly) procedures. This is in particular a problem for IDPs, who have often lost documents.

Among the most important legal documents are the civil status identification document and the Iraqi nationality certificate. The civil status identification document is the personal identification card for every Iraqi citizen and it is most frequently used in official transactions to obtain any other specific document or extract of record. It is a requisite document to obtain passports and PDS cards and to access medicine/health care, employment (in certain areas), education, housing and social welfare. The Civil Status Law No. 65 of 1972, as amended by Law No. 9 of 1974, and the Civil Status Regulation No. 32 of 1974 regulate the issuance of the civil status identification document in Iraq. In order to obtain this document, many documents need to be submitted, including a standard application form, the PDS card, birth certificate or deed, copy of family registration entry or civil status identification document for any registered relative (e.g. father or grandfather), testimony by the local mayor, personal photographs and fiscal stamps.

The nationality certificate is a document proving nationality of a natural person as a citizen of the state. The issuance of the nationality certificate is regulated by the Iraqi Nationality Law No. 27 of 2006. In order to obtain a nationality certificate, the procedures and documents required are mostly the same as described for the civil status identification document. In addition, the applicant needs to produce the nationality certificate for his/her father, brother, paternal grandfather or uncle. If this is not possible, the nationality officer will record the testimony and confirmation of the applicant's clan members to verify information and documents provided by the applicant. It is crucial to hold a nationality certificate in order to access legal, economic, civil, political, social and cultural rights. Also, the nationality certificate is a prerequisite document to obtain birth, death and marriage certificates.

Another obstacle that in particular displaced persons face with regard to obtaining the civil status identification document and the nationality certificate is that they must show up in person as it is not permitted by law to appoint a third parties, even if they were issued a power of attorney. In

addition, persons that have been denaturalized due to the former government's policies and who do not have extracts of records proving their status as Iraqi nationals are required to apply in Baghdad, thus incurring financial costs and security risks due to transportation costs and the unstable security situation in Central Iraq.

IDPs may also face problems or delays when applying for these documents as civil status departments and nationality departments often lack employees, experience and training (e.g. there is a lack of employees with a legal background) and have limited or no access to relevant legislation and instructions. Bureaucracy and, slow legal procedures involved in processing applications in some civil status/nationality departments may lead to considerable delays in issuance of documents.

In addition, there is no common electronic database or registry for civil ID documents, nationality certificates or other basic documentation like birth certificates, marriage contracts and death certificates. Only manual records are kept, which makes it difficult to obtain information when registered in another governorate. Also, many records are incomplete or damaged. Documents relating to birth, marriage and death are essential, *inter alia*, to obtain/access passports, nationality certificates, PDS cards, alimony for divorcees, custody, social welfare and inheritance.

Given the many obstacles and lengthy procedures involved in getting legal documents, there is a market for forged documents and most legal documents are easy to forge because of poor printing quality and technical specifications. Passports are particularly prone to forgery as there are not sufficient plain passports to meet the high demand. PDS cards have also reportedly been forged as for many the public food distribution is their main source of food. However, the main problems faced by IDPs in relation to PDS cards are delays or inability to transfer their PDS cards from one governorate to another. A problem faced by IDPs in relation to passports is that these can exclusively be issued in the governorate of origin.

In the absence of a current and reliable voter registry, the Independent High Electoral Commission (IHEC), responsible for conducting all elections and referendums in Iraq, has begun to convert data from the PDS into a voter registry. In order for post-2003 IDPs to be entitled to vote in absentia in the forthcoming provincial elections (to be held in 2009), they must be registered with MoDM and the Ministry of Trade (in the Centre and South) or provide their PDS card from the governorate of origin or a special certificate from the governorate office of the Ministry of Trade of the Kurdistan Region.

International Organization for Migration (IOM), 30 June 2008

Governorate-level authorities across the country restrict IDP entry and registration due to security, economic, and even demographic concerns. In general, IDPs must go through a great deal of bureaucracy to register, sometimes traveling to five different offices. A varying selection of documents are required in each governorate, including the original residence card, PDS card, the national ID, and a letter of approval from city council members, the mayor, local police, and/or MoDM. Registration is tightly restricted in areas with high levels of ethno-religious tensions, such as Kirkuk. In addition, proper documentation is often difficult to obtain from the governorate of origin, and sometimes registration is restricted to those with an advanced degree or professional qualifications. Many are not allowed to bring furniture with them, if they are allowed to enter. In Babylon and Kerbala, only IDPs with origins or relatives from the governorate may enter. In Basrah, Missan, and Wassit, IDPs can enter but are not allowed to register and remain unless they are displaced from "hot spots," or particularly dangerous and volatile areas, in Iraq. In Salah al-Din, the governor has ordered that IDPs from Samarra district and Anbar and Diyala governorates leave the governorate due to concern that they are security risks. IDPs who do not originate from Dahuk, Erbil, or Sulaymaniyah must be sponsored by a resident from these governorates. The borders of Dahuk, Erbil, and Sulaymaniyah continue to be tightly controlled to

maintain the relatively high level of stable security in the region. In some cases IDPs may be turned away, and they are generally not permitted to bring furniture into Dahuk with them.

UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 12 February 2008

Restriction on freedom of movement is imposed by all parties to the conflict, including MNF-I (during Security Operations including sieges of neighborhoods, checkpoints, etc.), Government of Iraq, insurgents/militias and non-state actors. To date, 11 governorates have imposed measures restricting entry for those seeking refuge and registration procedures for displaced;

International Organization for Migration (IOM), 11 January 2008

In response to security concerns or strained resources, authorities in some governorates restrict IDP entry or registration. In 2007 restrictions did ease somewhat as some authorities responded to a directive from the central Baghdad government to lift restrictions. MoDM registration continues in all the fifteen central and southern governorates. The Kurdistan Regional Government registers IDPs in Dahuk, Erbil, and Sulaymaniyah. In some areas, MoDM is limiting the scope of its registration, registering only those IDPs from “hot spot” areas. Some IDPs also reported that they were not registered due to sectarian, ethnic, or tribal bias. Non-registration of IDPs is a humanitarian concern because it limits their access to basic services and legal documentation for PDS food rations.

IDP Working Group, 27 June 2008

The majority consider food rations through the PDS as a main source of food; however, reliance on food rations varies among them due to the following reasons:

1. Not all families have a PDS card, either due to delays in transferring rations cards or because they are not eligible to register where they have settled.
2. Food rations are insufficient, incomplete and received irregularly for almost half of the caseloads.

IOM, 2 February 2007

“Ninety-seven percent hold nationality certificates, 97% have identification cards, 74% of families hold marriage documents, 47% have birth certificates, and 18% have death certificates. Fifteen percent also hold Iraqi passports. The biggest challenge the displaced faced in 2006 regarding documentation was transferring their PDS ration cards to their new locations. Requirements varied throughout the governorates, but many were required to return to their place of origin to de-register, an impossibility for the majority, who fled from highly unstable areas.”

UNHCR, October 2005, p.132-133

“Returnees often face difficulties in obtaining necessary the documentation upon return, though there are regional differences with the authorities in the three Northern Governorates having efficient mechanisms in place, supported by legal advice centres operated by the authorities. Returnees may face difficulties to afford the costs related to transportation and application fees to obtain necessary documentation, in particular as several visits in a given Directorate may be required. Also in the South, independently-run Legal Aid and Information Centres (LAICs) play a crucial role in facilitating the process of obtaining necessary documentation; however, in view of large numbers of returnees in Southern Iraq, the existing network of LAICs is insufficient. UNHCR Returnee Monitoring showed that lack of documentation is the basis for a series of other problems such as access to food rations, education and employment, thereby seriously hampering the reintegration process of returnees. Foreign spouses of returnees, mainly from Iran, at times face problems obtaining the necessary documentation (e.g. residency permit, food ration card) as it takes considerable time and effort to register the marriage, in particular in the South and Centre. This leaves foreign spouses and children with no access to public services. Newly displaced persons may face delays in registering with the PDS centre in the place of displacement as the food ration card allows food rations only in a particular location. The transfer of food ration cards is often delayed by bureaucratic procedures, sometimes leaving families

without food for months. It has been reported that the Ministry of Trade has now addressed this issue.”

UN Cluster 8/UNCT, August 2004, p.9

“In recent years, documentation in Iraq has been closely linked to the monthly food ration. Many IDPs were excluded from the monthly food ration at their place of displacement because their documentation stated their distribution place was elsewhere. Others were reluctant to hand in their old cards since it serves as evidence of previous residence. While the majority of the registration problems have been solved with the intervention of Cluster 8, there are still cases where IDPs are not registered. Advocacy and consultations to address this are on-going with the relevant ministries.”

Statelessness: many Iraqis stripped of their nationality and ethnicity face difficulties in obtaining documentation (2004-2008)

- Up to half a million Iraqis (including Farsi Kurds and Arab Shi'ites) were stripped of their nationality by the previous government and expelled to Iran. Bidouns (stateless nomads) live on either side of the Iraq/Kuwait border. (UNHCR, August 2004)
- Former government also called upon all non-Arab Iraqis over 18 the right to change their ethnic identity to that of Arab or face displacement according to legislation passed in 2001. Many Kurds and Turkoman families in Mosul and Kirkuk who refused were consequently expelled from areas under its control.
- For stateless Iraqis to obtain a nationality certificate, difficulties are said to remain. Nationality certificates remain vital in order to access legal, economic, civil, political, social and cultural rights. Also, the nationality certificate is a prerequisite document to obtain birth, death and marriage certificates.
- The issuance of the nationality certificate is regulated by the Iraqi Nationality Law No. 27 of 2006. In order to obtain it, many documents need to be submitted, procedures remain lengthy, and entails indirect and direct costs. In addition, denaturalized persons who do not have extracts of records proving their status as Iraqi nationals are required to apply in Baghdad. (UNHCR August 2008)
- In the PUK-area, a committee assesses cases comprised of representatives of the Governor's Office, the Ministry of Interior and prominent Farsi Kurds, while in the KDP-administered areas an interview at the Ministry of Interior will be conducted. In 2005, persons that would de jure recover their nationality because of the retroactive cancelling of Decision No. 666 have, at this stage only received Interim Civil Status Identity Cards. (UNHCR, October 2005)

UNHCR, August 2008:

"The nationality certificate is a document proving nationality of a natural person as a citizen of the state. The issuance of the nationality certificate is regulated by the Iraqi Nationality Law No. 27 of 2006. In order to obtain a nationality certificate, the procedures and documents required are mostly the same as described for the civil status identification document. In addition, the applicant needs to produce the nationality certificate for his/her father, brother, paternal grandfather or uncle. If this is not possible, the nationality officer will record the testimony and confirmation of the applicant's clan members to verify information and documents provided by the applicant. It is crucial to hold a nationality certificate in order to access legal, economic, civil, political, social and cultural rights. Also, the nationality certificate is a prerequisite document to obtain birth, death and marriage certificates.

Another obstacle that in particular displaced persons face with regard to obtaining the civil status identification document and the nationality certificate is that they must show up in person as it is not permitted by law to appoint a third parties, even if they were issued a power of attorney. In addition, persons that have been denaturalized due to the former government's policies and who do not have extracts of records proving their status as Iraqi nationals are required to apply in Baghdad, thus incurring financial costs and security risks due to transportation costs and the unstable security situation in Central Iraq. IDPs may also face problems or delays when applying for these documents as civil status departments and nationality departments often lack employees, experience and training (e.g. there is a lack of employees with a legal background) and have limited or no access to relevant legislation and instructions. Bureaucracy and, slow legal procedures involved in processing applications in some civil status/nationality departments may lead to considerable delays in issuance of documents.

In addition, there is no common electronic database or registry for civil ID documents, nationality certificates or other basic documentation like birth certificates, marriage contracts and death certificates. Only manual records are kept, which makes it difficult to obtain information when registered in another governorate. Also, many records are incomplete or damaged. Documents relating to birth, marriage and death are essential, *inter alia*, to obtain/access passports, nationality certificates, PDS cards, alimony for divorcees, custody, social welfare and inheritance."

UNHCR, October 2005:

"Stateless persons originating from the three Northern Governorates have to provide documents showing their first degree relatives' Iraqi nationality in order to recover their nationality. As it is well known that Faili Kurds have often been stripped of all documentation and may therefore not be able to present the requested documents, local authorities have established mechanisms to review such cases. In the PUK-area, a committee comprised of representatives of the Governor's Office, the Ministry of Interior and prominent Faili Kurds has been established, while in the KDP-administered areas an interview at the Ministry of Interior will be conducted. Based on these interviews, a stateless person will be reinstated with his/her nationality if Iraqi origin can be confirmed.[...] Persons that would de jure recover their nationality because of the retroactive cancelling of Decision No. 666 have, at this stage only received Interim Civil Status Identity Cards from the Civil Status Offices after having provided proof of their former Iraqi nationality (e.g. through the presentation of old Iraqi IDs, birth registration certificates or after the authorities' checking of the nationality registries in coordination with the Nationality Directorate within the Ministry of Interior). Furthermore, because the central authorities have not been providing sufficient blank certificates to the different governorates, the issuance of these documents is delayed. Iraqis whose Iraqi nationality was withdrawn for political, religious, racial or sectarian reasons and who have, according to Article 11(d) TAL the right to reclaim their nationality, are currently not able to do so due to the lack of any procedures in this regard."

UNHCR, 12 August 2004:

"Statelessness is a major issue in Iraq. Up to half a million Iraqis (including Faili Kurds and Arab Shi'ites) were stripped of their nationality by the previous government and expelled to Iran. Meanwhile, Bidouns (stateless nomads) live on either side of the Iraq/Kuwait border. In addition, children of mixed marriages (particularly in cases where the mother is Iraqi and the father of another nationality) may face problems if they wish to return to Iraq, while women (such as those who have married men of another nationality) may face particular obstacles when they wish to return. In the recent past, nationality issues have not been decided in courts, and nationality laws frequently revised, with the result that indigenous expertise on the subject has declined."

KTRS, 27 Jan 2002:

"On the 6th September 2001, in an unprecedented move, the Iraqi Revolutionary Command Council – which ranks higher than the so-called Iraqi Parliament – passed Resolution No. 199

giving all non-Arab Iraqis over 18 the right to change their ethnic identity to that of Arab. Such a decision is contrary to all the principles of human rights and is politically motivated. Its purpose is to compel all non-Arabs in Iraq to adopt an Arab ethnic identity. This law legalizes the regime's policy of ethnic cleansing directed against all Kurds, Turkmans and Assyro-Chaldeans. For decades, the Iraqi regime has continued to deport tens of thousands of Kurdish families from that part of Kurdistan still under its control to either the Kurdish controlled area of Kurdistan or to southern Iraq and has confiscated their properties and belongings, including their identity cards. The choice facing these people was deportation or the enforced change of ethnic identity. This law, which legalizes such acts, is in direct violation even of the Iraqi Provisional Constitution of 1970, Article 19/A of which states that all Iraqis are equal, regardless of ethnic language, religion or social class. "

RFE/RL, 14 September 2001:

"[...] in August 2001, the Ministry of the Interior sent a document to the Department of Statistics demanding that during the expulsion of any family from Kirkuk, false names and numbers should be written on the documents that are usually issued for them by the governorate office to the checkpoints, and that the documents should not be registered in their records.[The Sulaymaniyah Kurdish newspaper] 'Kurdistani Nuwe' believes that the intention behind these measures is to destroy any evidence that the Iraqi government has expelled Kurdish families from Kirkuk in case of accountability by official sides, particularly the United Nations. In this way, Iraq could easily deny the allegation."

USCR, 2000:

"In 1999, Baghdad continued its systematic efforts to 'Arabize' the predominantly Kurdish districts of Kirkuk, Khanaqin, and Sinjar at the edge of government-controlled Iraq near the Kurdish-controlled zone. To solidify control of this strategically and economically vital oil-rich region, the government expelled Kurds, Assyrians, and Turkomans—at times, entire communities—from these cities and surrounding areas. At the same time, the government offered financial and housing incentives to Sunni Arabs to persuade them to move to Kirkuk and other cities targeted for Arabization. New Arab settlements were constructed on expropriated Kurdish land holdings. In 1999, Baghdad gave a name to its Arabization program: 'nationality correction.' The government began requiring ethnic minority civil servants to sign a form correcting their nationality. Persons refusing to sign the forms—for example, a Kurd refusing to 'correct' his nationality and list himself as an Arab rather than a Kurd—would be subject to expulsion to northern Iraq or the no-fly zone in the south. During the year, Kurds and Turkoman families in Mosul and Kirkuk were reportedly expelled to northern Iraq for failure to sign the forms. Although the Arabization campaign was not publicized, sources in northern Iraq reported that more than 2,000 people were expelled to the northern region between January and November."

See Also:

Home Office Border and Immigration Agency, [Country of Origin Information Report](#), 30 April 2007

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Sectarian nature of conflict affecting mixed communities, family unity, and identity. (2006-2009)

- The severity of violence touching civilians populations and sectarian nature of the conflict has profoundly affected the ethnic, sectarian and social structure of Iraqi society, straining a society rooted in extended family, tribal and communal connections. (Middle East Institute, July 2008)
- The violence has left thousands of missing adding to the hundreds of thousands – 1 million according to Iraqi Ministry of Human Rights - believed to have disappeared during the former government – there are believed to be 228 mass graves majority of which refer to disappearances during Gulf war 1991, and Shi ite uprising in south Iraq.
- Notable also is that resultant violence since 2003 has lead to missing/disappearances as well as hundreds of thousands widows, orphans, and single headed families. There are no clear figures on the numbers involved. Amongst the displaced, female heads of household, households headed by older people, widows, divorced people, women without male relatives and orphans are acutely vulnerable (UNHCR, December 2009).
- It is unclear how many are missing/disappeared amongst the displaced. UNHCR surveys in 2009 would identify twenty per cent of IDPs and 5% of refugee returnee reported children to be missing. This can be attributed to general violence including abductions, possibly armed recruitment and so forth.
- This level of violence as well as coping mechanisms has witnessed a steady social fragmentation of social structure of those displaced particularly affecting those most affected mentioned. This has also been witnessed in the manner at which the sectarian conflict has strained and torn communities of different sectarian denominations.
- Thousands of mixed couples and extended families of different sectarian denominations with considerable strain with the absence of security, this has fuelled separation, and displacement with wider polarisation and shift towards reliance on tribe or sect for protection (Telegraph, 12 November 2006; Iraq Update, 24 March 2006)
- There are no official statistics available on number of mixed marriages. Some report estimate that nearly a third of Iraqi marriages are unions between members of different sectarian or ethnic communities. (The Washington Post, 4 March 2007)

UNHCR, December 2009

During the first three months of the year the following specific needs were identified: families with no income (1,043) and those with more than 10 family members (100), elderly heads of households (2,258), female heads of households, widows, divorced women and women without a male relative (502), families with disabled family members (238), minor heads of households (959) and orphans (5). The assessments identified the specific needs of the UNHCR population of concern. [This is not a comprehensive list but only of those assessed]

<i>Specific needs</i>	<i>IDPs</i>	<i>IDP returnees</i>	<i>Refugee returnees</i>	<i>Total</i>
	<i>Number of FAM</i>	<i>Number of FAM</i>	<i>Number of FAM</i>	<i>Number of FAM</i>
Family with no income	12,406	2,619	878	15,903
Female head of household, divorced or widowed women	5,378	1,470	242	7,090
Large family with no income (more than 10 members)	2,390	1,460	144	3,994
Elderly head of household	2,052	476	137	2,665
Child (under 18 years) as head of household	2,481	720	2	3,203
Child under 18 without both parents	145	54	-	199
Disabled family member	1,911	395	106	2,412

Middle East Institute, July 2008

Introduction *Phebe Marr*: ... The number of internally displaced persons (IDPs) is even more difficult to track, but is estimated at over two million. Much of this recent displacement has taken place in mixed areas such as Baghdad and in central provinces like Diyala where, traditionally, Arabs and Kurds, Shi'a and Sunnis often lived in the same neighborhood or in close proximity. This population has probably shifted to areas where family members or those of a similar sect or ethnic group can provide protection. Were this population not to return to its original location — a highly likely prospect — Iraq's ethnic and sectarian map, and hence the country's political and social structure, would be profoundly affected.

Forcible Eviction in Iraq: Past Practices and Current Crisis, *Nasir Ahmed Al-Samaraie*... The *status quo* in Iraq today is marked by communal terrorization, threats to adhere and submit or to risk becoming a "legitimate" target, and non-willingness to accept and tolerate others as equals. Thus the current eviction phenomenon is but a continuation of the previous tragic experiences that have been widely reported and condemned. The ethnic and sectarian ghettos that have been established to control violence hamper the possibility of return. It is also hampered by the apparent absence of a workable arrangement for a long-lasting solution. The current situation in Iraq — that of a divided society — compels the evictees to stay away, a bitter choice. The continuation of this trend will eventually threaten the breakdown of society, which is rooted in the extended family and tribal and communal connections.

The Telegraph, 12 November 2006

The steady fragmentation of Iraq into religiously divided zones is presenting thousands of mixed Sunni-Shia couples with an impossible dilemma: where can they safely live together? As formal partition of the country becomes a more likely prospect by the day, moving up the political agenda as a way of stemming the bloodshed, people like Mustapha and Zeinab face a stark choice. Mustapha, 42, an engineer, is a Sunni Muslim while his wife, Zeinab, 36, is Shia, and together they have three young children. The family has already been forced to move from Sunni-dominated west Baghdad to the relatively mixed centre of the Iraqi capital. Now Zeinab's parents have told her that if a segregated Shia region is formed, they will move there from Baghdad, afraid of living in a Sunni zone. "It is a bitter feeling, to have to choose between my husband and my parents," she said. Mustapha foresees the capital splitting between Sunni west and Shia east, and has prepared the family's passports, ready to leave if the country divides.

As U.S. and Iraqi forces attempt to pacify the capital, mixed couples who symbolize Iraq's once famous tolerance are increasingly entangled by hate. Forced by militias or insurgents to leave

their homes because one partner is from the wrong sect, they find few havens because of the other partner's affiliation. These strains, fueled by displacement, separation and fear, are beginning to tear apart such families, weakening bonds that for many Iraqis hold the hope of sectarian reconciliation...."In the absence of security, Iraqis are protecting themselves by turning to their sects and their tribes," said Zina Abdul Rasul, a U.N. human rights worker who herself is a product of a mixed marriage. "It is becoming normal to hear about mixed families breaking down."....Nowadays, even in a climate of deep suspicions, Iraqis of different sects mix when they can. But anecdotal evidence from interviews with social workers, U.N. officials and everyday Iraqis suggests that the strife is breeding mistrust within mixed families. Iraqis tell stories about family members being betrayed by relatives of a different sect.

The Washington Post, 4 March 2007

While there are no official statistics, sociologists estimate that nearly a third of Iraqi marriages are unions between members of different sectarian or ethnic communities. In the aftermath of the U.S.-led invasion in 2003, many Iraqis argued that the prevalence of such unions showed that Iraqis cared more about their Arab or national identity than their sect, which would spare the country a civil war....But Iraq's sectarian strife has risen sharply since the bombing of a revered Shiite shrine in Samarra by Sunni militants a year ago. Since then, more than 500,000 Iraqis have fled their homes, a number that is growing by 50,000 every month, according to the United Nations. The vast majority have left mixed areas, the main battlefields of the sectarian war.

UNAMI, 23 May 2006

"On 27 April, the Presidency Council of Iraq approved the draft law on the protection of mass graves, one of the legal documents necessary for the strategy of establishing a National Centre for Missing and Disappeared Persons."

UNAMI, February 2005

"On 17 January 2005, the Policy Group adopted the draft resolution proposed by the Working Group, which called upon the Government of Iraq to establish a National Centre for Missing and Disappeared Persons in Iraq, for Iraqis and other nationalities, and to take the appropriate measures under the law by enacting the required legislation. The resolution also called upon Iraqi society, institutions and individuals to cooperate fully with the National Centre to ensure that the fate of those who are missing or who have involuntarily disappeared is determined. The resolution also appealed to the international community to extend its support to the National Centre by assisting with the provision of the expertise and resources that it will require for the successful pursuit of its humanitarian objective."

UNAMI, 27 February 2005

"On 20 February, the Interim Government of Iraq issued decree no.18 by which it officially authorized the establishment of the "National Centre for Missing Persons" in Iraq, consistent with the recommendations of the Policy Group meeting convened by UNAMI/HRO for the Ministry of Human Rights, with support from the United Nations Development Programme (UNDP) in mid-January. The decree requires the Ministry of Human Rights to work with UNAMI to follow up on the realization of the project objectives."

IRIN, 7 February 2005

According to the Iraq's Ministry of Human Rights officials, nearly one million Iraqis are believed to have disappeared during Saddam Hussein's regime and a large number are believed to be buried in the 228 mass graves discovered so far. The majority disappeared during the Gulf war in 1991 and the subsequent Shi'ite uprising in the south of Iraq, officials said. ...] But the identification issues are not only centred on mass graves. Hundreds of people remain unidentified and missing during and after the conflict in 2003. Officials from the Iraqi Red Crescent Society office, responsible for the problem of identification, told IRIN that every day many families come to them

searching for their missing loved ones They added that after the International Committee of the Red Cross (ICRC) closed its office in the capital, because of the lack of security, the search for missing people had become even more difficult and would take even longer than expected."

See also

"Iraq: State of Evidence" HRW, November 2004 [Internet]

[Iraqi marriages defy civil war spectre](#), **Iraq Update**, 24 March 2006

PROPERTY ISSUES

Law and policy

Displacement and land and property rights issues resulting from the Baathist Regime policies (1960s to 2003)

- The former Iraqi government routinely used policies of forced displacement, which were usually accompanied by the confiscation, expropriation and destruction of homes, businesses and agricultural land, to maintain and expand its control over Iraq. The principal targets of those policies were: the Shiite, Kurdish, Turkmen and Assyrian communities as well as anyone perceived to be an opponent or a danger to the government.
- The current pre-2003 figures of estimated close to 1 million displaced are based on data generated in 2005 by the UN Office for Project Services, by the UN High Commissioner for Refugees (UNHCR) in three northern governorates, and by the International Organisation for Migration (IOM) who gathered it from implementing partners in 15 central and southern governorates (IDP WG, February 2008).
- Evaluating figures on “old” displacement is also problematic. Some observers suggest that the figures are outdated, hard to validate, and highly politicised, particularly with regards to the northern governorates (IDMC interview, November 2008). There are no clear figures on the number of property claims relating to those arbitrarily displaced in pre-2003. In current context persons displaced may have also been repeatedly displaced and have multiple property claims. These figures do not necessarily include persons made stateless by the former government who may have particular difficulties in claiming their property
- The UN estimated around 805,000 individuals were displaced in northern Iraq, mostly between 1974 and 1991 under the arabisation campaign and anfal campaign which witnessed systematic destruction of some 4,000 villages. (UNHCR, August 2004; UN HABITAT, January 2001). Under “Arabisation” campaigns land and houses belonging to evicted Kurds were taken possession by government officials and offered under subsidized pricing as incentives to encourage Arab in-movement (RI, 21 November 2003; UNCHR, 26 February 1999). There is no clear census on the number of property claims that this entailed. The property issues are rendered complicated by lapse of time during which property, or part of, may have been resold or modified over time to different owners.
- This situation in the north has been subsequently rendered more complicated by occupancy of land, housing and property since the end of the 2003 conflict as result of displacement particularly in northern governorates, such as Kirkuk, which has witnessed arbitrary displacement of Iraqis to reverse Arabisation policy of former regime. Property issues are of most concern in Kirkuk and the surrounding areas wherein KDP and PUK paramilitary as early as 2004 started re-distributing land located in Kirkuk confiscated during the Arabisation process to residents from Erbil and Sulaymaniah. (UNHCR, September 2004; FMR September 2004)
- There are also significant property and housing issues linked to displacement in the predominantly Shi’ia southern governorates where over 343,000 people were displaced, mainly in the mid 1990s involving the campaign against marsh Arabs, suppression of Shi’ia uprising in 1991, and consequences of Iran-Iraq war (Cluster F, 11 February 2007). The campaign against the marsh Arabs which contributes to the most displaced in the south involved the draining of the central marshes and destruction of villages. This involved systematic destruction of environment, however efforts at rehabilitation have been mitigated

- From the panopoly of situations that has arisen there are various types of disputes that have emerged and are anticipated to arise to provide remedy (such as compensation or restitution) for displacement and housing and property rights violations. Unlike post 2003 property issues many of these property claims often involve the Iraqi government. These are some concerns that apply with regards to pre 2003 though equally to post 2003 displaced as these have links to pre 2003:
- Addressing attempts by displaced persons and refugees to reclaim/seek compensation for their former homes or land property, which are now occupied by members of same or other ethnic or sectarian group in heterogeneous/homogenised areas, or other actors particularly government bodies or public institutions as most disputes involve the Iraqi government several decades later;
- Various types of claims arise whether for compensation/restitution: Housing, land and property claims by claimants without documentation to prove their claims; determining rights in instances where current occupants hold 'lawful titles', but where returnees do not; determining rights of those displaced following the unregistered transfers of property;
- Claims by bona fide purchasers of property after it was initially expropriated or other forms of displacement took place; claims by bona fide occupants for improvements made on homes, lands and property legally owned by returning refugees and IDPs; property claims of tenancy rights especially on rural land (a significant portion of which remains in government hands at present).
- Claims regarding property and livelihoods destroyed by government policies particularly with regards to the Anfal campaign in the late 1980s in northern Iraq, and after 1991 against the uprising in southern Iraq, involving thousands of villages, and as in marshlands in southern Iraq involving also the intentional destruction of the environment in which these persons inhabited

Brookings-Bern, February 2010

The former regime's demographic change ("Arabisation") and forced migration policies have left a myriad of land and property issues in their wake. They include thousands of land and property disputes between previous owners who now want their property back and current occupants who obtained the property under the former regime, often through, at the time, legal means. These disputes often involve the Iraqi State, as a significant proportion of the land and property taken by the former regime remains in State hands today, especially rural land. Former regime-related issues also include thousands of destroyed homes and livelihoods, a consequence of the policies after the 1991 uprising in the South and the Anfal campaign against the Kurds in the North of Iraq.

Van der Auweraert, Peter, 7 September 2007:

"The regime routinely used these policies [of forced displacement, which were usually accompanied by the confiscation, expropriation and destruction of homes, businesses and agricultural land, to maintain and expand its control over Iraq. The principal targets of those policies were always the same: the Shiite, Kurdish, Turkmen and Assyrian communities as well as anyone perceived to be an opponent or a danger to the regime. In brief, there were three particular contexts in which the regime resorted to forced displacement and property rights violations: (a) the so-called 'Arabisation' policies, which entailed the replacement of non-Arab communities in the North with (mostly poor) Sunni Arabs from the South e.g. in the Kirkuk area; (b) the punishment for real or perceived opposition to the regime (e.g. the 1980-1988 Anfal campaign against the Kurds during which hundreds of Kurdish villages were destroyed and the mass expulsion of Iraqi Shiites to Iran at the start of the Iran-Iraq war in 1980); and (c) in connection with the prevailing economic system of 'crony capitalism' that left regime strongmen and their supporters free to seize desirable land and businesses and thus expand their personal

wealth and influence. No undisputed figures exist of just how many Iraqis became internally displaced, fled or left the country, but there can be little doubt that displacement was a mass phenomenon during the Baathist era. Similarly, it is unknown how many of those who were displaced also saw their lands, homes and businesses destroyed or taken away from them. The fact that the IPCC and the CRRPD have so far received well over 130,000 property claims from inside Iraq alone, suggests that their number is more than significant.

The discussions preceding the invasion of Iraq widely assumed that the Baathist regime's overthrow would almost immediately result in a large-scale return of those that had been displaced by the regime. It was to be expected that the returnees would be eager to repossess the lands, homes and businesses that they had lost, sometimes decades earlier. Unfortunately, however, simple repossession would be rarely an option: more often than not those properties were now occupied by others with nowhere else to go. Hence the perceived danger that the disputes over those properties would quickly become a principal source of post-invasion instability and conflict, unless a mechanism could be found to resolve them peacefully. In this context, one particular problem stood out: Kirkuk. With the largest oil field in Iraq, its traditional role as the breadbasket of Iraq, and the mass forced displacement that had taken place as a consequence of Saddam Hussein's Arabisation policies, Kirkuk was seen as the most likely flashpoint in case an uncontrolled return movement would take place. Repeated claims by Kurdish politicians that Kirkuk was indeed Kurdish, a claim unlikely to be accepted by Iraq's other communities, and that the Kurds should be allowed to return and resettle as soon as possible did little to ease anxieties in this respect. The complex property situation in Kirkuk further underscored the need to find a peaceful way to settle the property disputes that a large-scale return would bring with it. It was against this backdrop that the Coalition Provisional Authority (CPA) decided in January, 2004, to establish a special-purpose commission to review and resolve all property disputes related to the Baathist era, i.e. the Iraq Property Claims Commission (IPCC)."

Leckie, 30 July 2003:

"Since Saddam captured power in 1968, hundreds of thousands (if not millions) of Iraqis faced forced eviction, the confiscation of their traditional homes and lands, and widespread involuntary displacement designed to socially engineer an Iraq more favorable to the Saddam regime. Throughout the Saddam era, the Arab population was encouraged through financial, land and other incentives to settle in Kurdish areas, with a view to establishing central Government control over the Kurds and diluting the Kurdish demographic majority in the area. Many of the settlers received formal legal title to the lands they acquired during this shift of population. During this process of 'Arabization', hundreds of thousands of Kurds were ethnically cleansed from their traditional homes and lands, and as far as is known, were provided with no legal recourse, compensation or alternative land or housing. Many of the displaced now wish to reclaim their former homes and lands.

Widespread housing, land and property disputes stemming from returning refugees and IDPs seeking to recover their former homes and lands or to reassert rights over these places of habitual residence, the unauthorized occupation of land, housing or property and irregular transactions of these assets have been reported throughout Iraq. These disputes will grow with more than one million refugees and internally displaced persons contemplating returning to their original homes and villages. Some have already done so, and have returned to the ruins of their former homes. Other returnees have sought to reclaim their former homes, despite the fact that these homes are currently occupied by others. [...] In Kirkuk and Mosul, for instance, the process was particularly widespread. [...] The types of disputes that have arisen and are anticipated to arise with the return of greater numbers of IDPs and refugees include:

Attempts by displaced persons and refugees to reclaim their former homes, which are now occupied by members of other ethnic groups;
Unauthorized occupation of land, housing and property by secondary occupants since the end of the recent conflict;

Housing, land and property claims by claimants without documentation to prove their claims;
 Determining rights in instances where current occupants hold 'lawful titles', but where returnees do not;
 Determining rights following the unregistered transfers of property;
 Claims by bona fide purchasers of property after it was initially expropriated;
 Claims for improvements made on homes, lands and property legally owned by returning refugees and IDPs;
 Claims on the determination of boundaries;
 Claims of tenancy rights and cultivation rights;
 Land occupied by various political or military groups; and
 Disputes between tribes and villages.

In addition to these types of disputes, those affected by the various land re-distribution efforts during the past several decades may yield restitution claims and possible disputes. While some of these land reform programs were clearly legal and involved the payment of compensation to those who faced the expropriation of their lands, in instances where this was not the case, legitimate claims may emerge."

HRW, 3 August 2004:

"Arabization first occurred on a massive scale in the second half of the 1970s as the Iraqi government sought to alter the demographic make-up of northern Iraq in order to reduce the political power and presence of ethnic minorities and consolidate control over this oil-rich region. In northern Iraq, probably as many as 250,000 Kurds and other non-Arabs were forcibly expelled from their homes, including an estimated 120,000 among them during the 1990s. Simultaneously, the Iraqi government brought in landless Arabs from the nearby Al-Jazeera desert and others from central and southern Iraq to settle in their place. Land titles to the rich agricultural lands seized from the Kurds and other non-Arabs were invalidated upon their expulsion, and the land was then leased on annual contracts to Arab farmers. Many of those expelled have since been living in camps for the internally displaced in the northern Kurdish-controlled governorates for over a decade."

UNHCR, October 2005:

"While legitimate property rights holders have a right to return to their homes and lands, it is important that this right is implemented in a manner that does not cause additional human rights violations. In cases where the current occupant is forced to return a property to the original rights holder, adequate measures must ensure that fair compensation is paid for accumulated rights and homelessness is avoided; this could be achieved through the provision of temporary alternative accommodation, reconstruction assistance or allocation of land/housing. To date, compensation guidelines and arrangements to avoid homelessness have not been set in place by the national authorities. There is also concern that the unresolved nationality law complicates the reinstatement of property rights of those who have not yet reacquired their nationality, since only Iraqi nationals (with some exceptions) can own property or have a right of use. Another constraint negatively impacting the restitution and return process is the politicization of property issues, in particular in formerly 'arabized' areas. IDPs returning from Northern Iraq to Kirkuk are allocated a piece of land (200m²) in Kirkuk Governorate by the Kirkuk authorities with the assistance of the Kurdish authorities. In addition, they receive non-food items such as tents, house goods and kitchen appliances. [...] There is a need for clear legal guidance by the Iraqi authorities with regard to land allocation in order to avoid future problems. The non-resolution of land, housing and property issues presents a serious obstacle to the return of refugees and IDPs and is a major cause for ethnic/religious tensions."

RI, 25 August 2003:

"One of the most complex effects of displacement in Iraq is the issue of settling property claims. Whatever the reason for displacement, it resulted in the widespread involuntary abandonment of

property that was, ultimately, confiscated by others. Houses built by Kurds on land that they once owned, for example, were destroyed by Iraqi forces. In their place, Arabs built new homes. Who, then, is the rightful owner of the 'new' house? While it is justified for Kurds to return to their former homelands to reclaim what is rightfully theirs, what sort of remuneration should be provided to Arab farmers who built homes and farmed these lands at the behest of the former regime? What sort of compensation should be provided to Arabs who legally purchased the property of Kurds forced to move? These are just a few of the issues that need to be resolved before people can resettle and begin new lives with the assurance that their efforts will be recognized as both legal and just."

See also (in sources, below):

HIC, "Restoring Values: Institutional Challenges to Providing Restitution and Compensation for Iraqi Housing and Land Rights Victims", August 2005

There are some concerns that the property restitution process has been too slow

(See for example, **IRIN**, Compensation for wartime losses going slow, 10 October 2006)

and that there is a special need to resolve property claims related to Kirkuk in the north,

See **IRIN**, Increased Violence over Kirkuk land claims, 14 August 2006

Displacement and land and property rights issues resulting military conflict and sectarian violence (2003 to 2009)

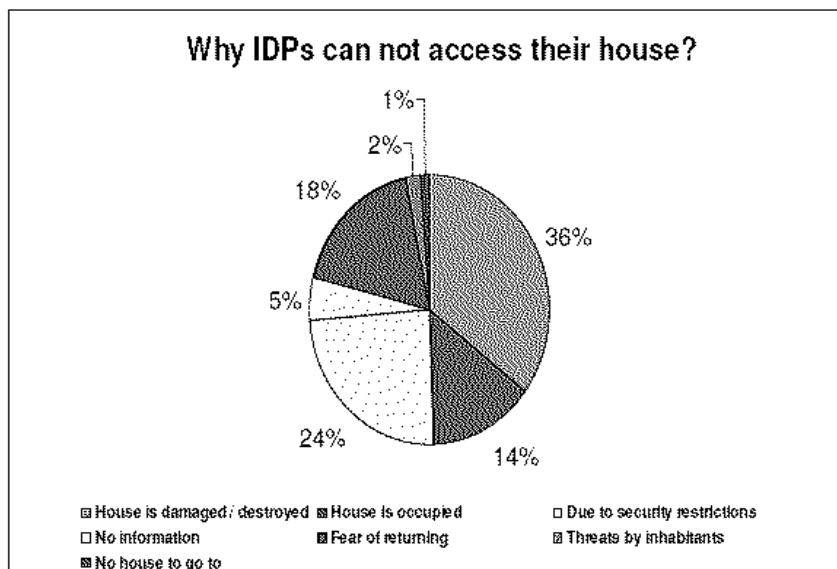
- There are various land and property issues arising from military conflict and sectarian violence since 2003 through several key phases – evictions in immediate aftermath of the fall of the former government; during the sectarian civil war principally in 2005-2007 and military operations; and in the aftermath of the sectarian conflict to this day. These property issues that have resulted as a consequence have yet to be clearly mapped or addressed in a systematic manner.
- In aftermath of the occupation in north estimated thousands of Iraqis of arab ethnicity faced eviction by Kurdish militias and formerly displaced Kurds and Turkomen returning particularly in Kirkuk (many of these Kurdish returnees subsequently assuming secondary occupancy in schools, public buildings and other); in Baghdad, government bureaucrats including Ba'ath officials and Republican Guards and large numbers of ordinary poor were evicted in large numbers; Palestinian refugees residents in Baghdad, and Iranian refugees who resided on subsidised rents were evicted by local community/property owners.
- There are no clear figures on the number of displaced as result of such evictions. The MNF-I was reluctant to intervene in these acts of violence in a concerted manner, and as a result, evictions and resultant displacement was widespread. Refugee International reported approximately 100,000 Iraqi Arabs were displaced in north, and UNHCR in May 2003 noted 1,000 Palestinians displaced and 60-90,000 at risk of being forcibly evicted.
- Subsequent years – 2004 to 2008 - witnessed land and property issues arising due to military operations in highly urbanised settings and displacement subsequent to sectarian violence principally in Baghdad. While the precise scale of housing and property damage and destruction due to the 2003 conflict is not known, it is clear that a large number of civilian homes were damaged or destroyed by MNF-I during the war and in subsequent military operations. In Fallujah alone which saw the displacement of 70,000 in 2004 and 220,000 in 2007, over 30,000 homes were estimated damaged.
- The most significant housing and property issues in post 2003 have arisen due to sectarian civil war. In the course of the sectarian conflict principally in Baghdad hundreds of thousands were forced to leave their homes/property – many within a matter of hours, unable to sell their property or take their moveable property. In mixed-sect dominated areas, the abandoned houses of one sects expelled families are being given to newly arrived displaced families fleeing the violence from the opposite sect. (IMC, January 2007)

- Controlling militias took over numerous possessions of the families expelled, and channelled and redistributed these resources, such as managing and renting assets to displaced families from other neighbourhoods or governorates providing temporary resettlement. (ICG, 7 February 2008) In several areas of the Baghdad, the controlling militias and religious parties occasionally offer displaced families from the opposite sect the ability to rent properties - at a reasonable rate, or free of charge in exchange for maintenance - to an arriving displaced tenant from the militia or religious party's own sect. (IMC, January 2007)
- By end of 2009 the displacement has left Iraqi society deeply divided and neighbourhoods in Baghdad where most of the displacement took place are now more ethnically or religiously homogenous than at any time in Iraq's history, and tensions persist in many areas, particularly in northern governorates. There is extensive second occupancy of public buildings and private property by displaced many of whom under threat of eviction without alternative accommodation; continuing lack of appropriate shelter or adequate compensation with many housing units damaged or destroyed; and persistent tensions in concerns of further displacement particularly in areas of sectarian and ethnic tensions in Kirkuk and Ninewa.
- In late 2009, 50% of IDPs assessed by UNHCR stated living in rented houses, 24% owned property and 20% in public buildings, and close to 8% lived in informal camps (UNHCR, December 2009). Extent of occupation of public and private properties is unclear. In 2008, IOM surveys indicated that 24% reported that their property was being occupied and 16% that their property had been destroyed, and 5% that it was currently in military use (IOM, 2 February, 2008); and UNHCR estimated that there were 230,000 in public properties throughout Iraq. MoDM figures reported that over 3,491 families illegally occupied properties including houses, flats, land and other buildings. In 2009, UNHCR reported over 450,000 in informal settlements – it is unclear whether this is in private or public property.
- There remains lack of clear idea of the mapping of housing situation and property claims that this raises for those displaced due to various factors whether Iraqis and refugees displaced in northern and central Iraq in the aftermath of the war; Iraqis displaced due to military operations or situations of sectarian cleansing, or situation of displaced at risk of secondary displacement at present due to threats of evictions. The situation generally of displaced remains precarious. From UNHCR monitoring reports roughly 15% of IDPs were living in severely damaged structures and 41% live in moderately damaged structures.
- From the panopoly of situations that has arisen there are various types of disputes that have emerged and are anticipated to arise to provide remedy (such as compensation or restitution) for displacement and housing and property rights violations. Though ensuring means of restitution is generally considered more positively to restore to the situation ante before displacement, effective remedy need address large percentage of IDPs wishing to integrate or resettle elsewhere. These are some concerns that may be equally applicable to returnees and IDPs of pre 2003 and post 2003 displaced:
- Addressing attempts by displaced persons and refugees to reclaim/seek compensation for their former homes or land property, which are now occupied by members of same or other ethnic or sectarian group in heterogeneous/homogenised areas, or other actors including government bodies or public institutions several decades later;
- Addressing attempts by displaced persons and refugees to reclaim/seek compensation for their former homes or land property illegally occupied by secondary occupants including IDPs/other returnees, members of militias, neighbours or other sectarian/ethnic group due to or since conflict in 2003 (as result of sectarian conflict, military operations, etc);
- Various types of claims arise whether for compensation/restitution: Housing, land and property claims by claimants without documentation to prove their claims; determining rights in instances where current occupants hold 'lawful titles', but where returnees do not; determining rights of those displaced following the unregistered transfers of property;
- Claims by bona fide purchasers of property after it was initially expropriated or other forms of displacement took place; claims by bona fide occupants for improvements made on homes,

- Addressing the situation of estimated 450,000 IDPs in informal complexes/settlements (on private or public property) throughout Iraq that have limited access to services and risk of eviction; and addressing whether such informal complexes/settlements should be regularised mindful of implications this may have particularly in northern governorates in light of pending resolution of disputed territories.
- Addressing means of types of forced evictions have been evident in Iraq since 2003 and continue to be a significant challenge and ensuring that evictions from private and public properties are carried out in a manner that is compatible with human rights law and standards such that secondary occupants (many of which are themselves victims of arbitrary displacement) are afforded safeguards of due process, opportunity for consultation, reasonable notice, legal remedies and opportunities for legal redress.

UNHCR, December 2009

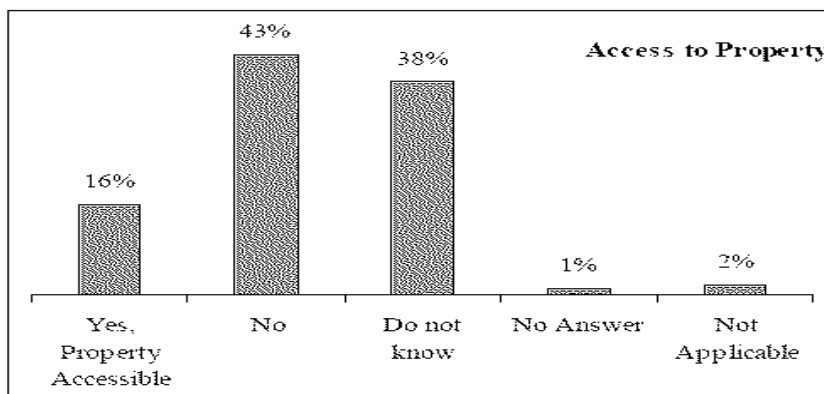
Since April, the majority of IDPs assessed stated living in rented houses or apartments (50%), owned property (24% of IDPs) or occupying public buildings (20%). The majority of IDP returnees lived in owned property (40%), rented house or apartments (25%) and in allocated lands or house (25%). Most refugee returnees lived in owned property (45%) and rented accommodation (20%). Eight per cent of IDPs and 6.4% of refugee returnees lived in illegal camps (1% of IDP returnees lived in illegal camps). Roughly 15% of the groups were living in severely damaged structures and 41% live in moderately damaged structures. Twenty-seven per cent required minor repairs 6% unfinished and 10% were in good conditions. Twenty-four per cent of IDPs, 3% of IDP returnees and 4% of refugee returnees were living in public building. Eight per cent of IDPs and 6% of returnees were living in illegal camp, and 2% of IDPs were occupying privately owned buildings. Some female headed IDP returnee households were among those families illegally occupying public buildings. Even if Prime Minister's Orders to halt eviction were still valid, some families reportedly received eviction requests (18% of IDPs, 3.7% of IDP returnees and 4% of refugee returnees). Many families informed having lost their rights to or no longer access their property in their former neighbourhood/current locations.



UNHCR, December 2009
IDP Complexes Breakdown per Governorate

IOM, February 2009

As assistance for restoring lives and livelihoods of IDPs and returnees in Iraq progresses, one of the major issues will continue to be resolution of property matters. Currently according to IOM displacement monitoring, only 16% of post-Samarra IDPs have access to the property they left behind. Another 43% do not have any access, primarily because the property is occupied or destroyed. 38% of surveyed IDPs have not been able to find out the status of their property, often for security reasons.



Brookings Institution, August 2008

Resolving property disputes resulting from the war and the large-scale displacement will be a major issue in Iraq for years, perhaps decades. Property has become not only one of the spoils of war, but also a means of enriching and paying militia forces. And frequently it is a major cause of displacement. According to IOM and UNHCR, about 25 percent of Iraq's IDPs cite a main reason for their displacement as "forced displacement from property."¹²⁷ In some cases, militias and sectarian groups have forced people from their homes and given it to IDPs from their own sect or to their supporters. There are reports of people selling their homes under duress. In many cases, houses have been destroyed or damaged to the point that they are no longer habitable. Although over half of Iraq's IDPs said they did not know the status of their property left behind, about 17 percent indicated it had been destroyed and about 34 percent said that it was being occupied by others.¹²⁸ In fact, it has been reported that 70 percent of those who returned to Iraq were unable to return to their homes.¹²⁹ In some cases, Iraqi refugees returned to their communities, found their homes occupied by others, and went back to Syria.¹³⁰ If refugees cannot return to their property, they will either become IDPs or they will go back into exile. Neither solution bodes well for Iraq or the region. If these results are typical, the issue of property rights is a ticking time bomb. Even in the best case scenario—that refugees and IDPs are able to return home in security and dignity—it is likely that property restitution and compensation will be on Iraq's agenda for decades. In fact, if less than half of the refugees and IDPs return home—say two million—and a third of those find their lands destroyed or occupied by others—that is a potential caseload of over 650,000 property claims.

Integrated Regional Information Networks (IRIN), 8 September 2008.

Our security forces, in cooperation with local officials in Baghdad neighbourhoods, have begun implementing the government decision to check on these houses and force those who illegally occupy them out," Brig Gen Qassim al-Mousawi said. If these families fail to produce legal papers showing they are occupying the house according to an agreement with the owner they will face legal action, al-Mousawi told IRIN. The government has not yet released any data of how many houses belonging to displaced families have been cleared of squatters. But on 3 September, the Migration and Displacement Ministry released [its first report](#) on the number of illegally occupied houses - 3,491 in nine provinces. These properties included houses, flats, land and other buildings. Baghdad had the highest number of squatter-occupied properties at 2,369, followed by Diyala with 963 and Anbar with 63. The rest were in the provinces of Salaheddin, Taamim, Babil, Kut, Nineveh and Muthana. On 20 July, the Iraqi government announced measures to encourage the more than four million IDPs and refugees to return to their homes, including a one-month grace period for squatters to vacate properties. The measures also included a one-off payment of 1.8 million Iraqi dinars (about US\$1,500) to squatters to help them rent other properties. In addition, it was stipulated that IDPs willing to return to their houses would be paid one million dinars (\$840). Each internally displaced family that has not yet returned home qualifies for a monthly payment of 150,000 dinars (\$145) for three months while still displaced.

International Organization for Migration (IOM), September 2008

Evictions are a serious concern throughout the country, particularly in Baghdad. The Prime Minister's office has issued an eviction order for all Baghdad squatters, beginning 2 September 2008. This measure is intended to empty out occupied houses so that displaced owners of these houses may return. Although some of these houses are illegally occupied by militant groups, a significant number of squatters are IDP families who could become secondarily displaced. Newly displaced families will be entitled to the government rental subsidy of 300,000 Iraqi Dinar (approximately US\$253) for six months. In addition, it is reported that several thousand IDP families in Tikrit district of Salah al-Din governorate are in danger of eviction because they are squatting on land that belongs to the municipality. The families are mostly from Kirkuk and Erbil. Another 370 families are in danger of eviction from Al Rasheed hospital in Baghdad, and 210 families were evicted from former intelligence headquarters in Baghdad.

IDP Working Group, 27 June 2008

Increasingly, IDPs living in public buildings or on public land are being threatened with eviction from their homes, and in some cases evictions have taken place. In May, the GoI issued an eviction order for IDPs living on public property. In early June the Iraqi Parliament voted on a draft resolution to postpone the eviction order.²⁷ Local authorities are responding in an ad-hoc manner; in some governorates, such as Basrah and Muthanna, authorities have ordered all IDPs and squatters to leave public property. In other governorates, local authorities are applying the order only to certain areas or land. Regardless, the IDPs are given no other option for shelter, forcing them into secondary displacement.

- In June, several statements have been made in the media from GoI officials calling for evictions: Baghdad and Al-Amara, Missan have been specifically mentioned.
- Sometimes these eviction orders only affect a small group of families, such as 15 families in mAl-Nasir, Najaf who have been threatened with eviction by the government because they are on public land, and sometimes hundreds of families, such as in Farah village in Kerbala, where the provincial council and governor recently removed all IDPs (160 families) illegally squatting on public property in this village.
- In a former military camp in Taji, Baghdad, close to 1,000 IDP families (estimated 7,000 individuals) have settled. There is an imminent threat of eviction of these families from the camp.
- According to UNHCR calculations based on various sources, up to 250,000 people are living in public buildings which are under threat of eviction.

Integrated Regional Information (IRIN), 27 January 2008

The Iraqi Ministry of Defence has given about 300 internally displaced persons (IDPs) one week to evacuate a former military compound in Babil Province, about 100km south of the capital, Baghdad, officials said on 25 January.

"Representatives of about 45 displaced families last week appealed to the Iraqi parliament for help to persuade the defence ministry to postpone its decision," Abdul-Khaleq Zankana, head of parliament's displacement committee, told IRIN, adding that the Iraqi army intended to reuse the compound as a military base.... Al-Zubaidi added that a provincial committee had been formed to find a solution for these families; either by re-housing them in an abandoned government building or by erecting a new camp for them. "But most probably we will get a piece of land in the suburbs [of Hilla] from the city's municipality to erect more than 100 tents for them and supply them with food and non-food items," al-Zubaidi said. "It is indeed a problem. It will be difficult for us to erect a camp in four or five days as we are in winter and it is raining nowadays. Because of that we need more time."

Integrated Regional Information Networks (IRIN), 16 January 2008

Local authorities in Kerbala, a southern province of Iraq about 120km south of the capital, Baghdad, have destroyed thousands of hectares of agricultural land, putting dozens of peasant families at risk of being displaced, according to residents. "The farmers had been warned since last September to leave their farmland as plans have been drawn up by local authorities to turn the area into a residential one for the families of victims of the previous regime," Amal al-Hir, head of Kerbala Agricultural Directorate, said. According to al-Hir, the late former Iraqi president Saddam Hussein in 1991 granted 10-year contracts to peasant farmers in a desert area that he designated as a new green belt for Kerbala.

International Crisis Group (ICG), 7 February 2008

Despite intensified U.S. raids and arrests, the Mahdi Army bolstered its influence and role, largely thanks to its limitless sources of income. It took over numerous Sunni possessions, including houses, villas and stores that belonged to the Baghdad bourgeoisie that prospered from the time of the Ottoman Empire. Sadrist offices [*Makatib al-Sayyid al-Shahid*] manage and rent these assets, thus generating colossal fortunes. By channelling and then redistributing resources, they gave Muqtada al-Sadr's movement a central economic role in neighbourhoods falling under its sway..... In a city virtually abandoned by the state, Sadrist offices in several neighbourhoods became the last and only resort for Shiite residents in need of help. Shiites living in remote areas requested military support; 41 displaced families asked for resettlement assistance

IOM, 2 February 2007

"The majority (67%) of families do not know the status of their property or whether they are able to access it. Lack of communication with neighbors in places of origin, lack of reported information, and instability prevented the displaced from obtaining information about their property. For those who did know, 24% reported that their property was occupied by another citizen, 16% of people said their property had been destroyed, 5% said it was currently in military use, and less than 1% said it was occupied by the government. There have also been reports of individuals looting and stealing possessions from abandoned property."

IMC, January 2007

"Because of sectarian tensions and direct threats that have followed the February 2006 Samara mosque bombing, most displaced families now are unable to sell their properties. In the Sunni- or Shi'a-dominated areas where thousands of people are regularly forced to leave their homes within a matter of hours, families are given no time to rent or sell their houses, and they are not allowed to return to make arrangements for disposing of their property and belongings. Those who try to sell their houses in anticipation of fleeing, are stopped by insurgents posting not for sale or wanted signs on their properties. Even though houses previously valued at around 14 million ID (9,500 USD) had dropped to as low as 2 million ID (1,400USD), there are no interested buyers. Several Sunni families displaced from Shia-dominated areas moved into houses deserted

by displaced Shi'a families. This was the case of 479 IDP families from Hurria, Shuala, Hay Al Amel (Baghdad), and Al Shaab and Hay Aur (near Al Sadr City) who settled into houses in Abu Ghraib. In mixed-sect dominated areas, the abandoned houses of one sects expelled families are being given to newly arrived displaced families fleeing the violence from the opposite sect either for free, or at cheap rental fixed fees usually collected by local mosques. In several areas of the capital, the controlling militias and religious parties occasionally offer displaced families from the opposite sect the ability to rent their properties - at a reasonable rate, or free of charge in exchange for maintenance - to an arriving displaced tenant from the militia or religious party's own sect. Although announcing houses for sale is still allowed, poor economic conditions force many displaced families from the sect suddenly a minority in their once evenly mixed neighborhood to enter into agreements to swap houses at no cost through trusted agents or mosque officials. A few relatively stable areas, like Kadmeia and Karrada in Baghdad, are considered attractive for IDPs to settle, but this relative stability has caused property prices to triple. And wealthy families living in these either predominantly Shia or Sunni areas have no desire to sell or let their houses."

UNAMI, 22 November 2006

"With the intensification of sectarian violence, there has been an increase in the number of reports on sectarian militias forcibly evicting people from houses and shops in order to rent them to incoming IDPs from other areas. In other cases, sectarian militias are forcing people who abandoned their houses in the area to rent them out to IDPs at a very low cost. [...] Others reported having their houses in the places of origin illegally occupied, further complicating the prospects of their return."

Leckie, 30 July 2003

In the aftermath of conflicts throughout the world, the unauthorized occupation of abandoned public and private housing, land and property is common. Iraq is no different, with numerous reports of land, housing and property being taken over, (sometimes by force), by those seeking either basic housing or to gain economically. The CPA estimates that 65,000-75,000 displaced persons and 55 Palestinian families are occupying public buildings. In the capital, for instance, innumerable private and public buildings have been informally occupied by homeless families, without official authorization, but who have little or no other housing option available to them in the lawless environment of Baghdad. While the CPA has adopted Order No. 6 to enable it to evict persons illegally occupying public buildings, this alone is not a sufficient policy response to this reality. The Competent Authorities will eventually need to find a means of formally recognizing the ownership or tenancy rights over such premises and lands or to find equitable ways to return such properties to the legitimate owners or former tenants. While many of those currently resident in such premises may be doing so purely for humanitarian reasons, with no other possible means available to them, an effort will need to be made to provide some form of security of tenure to persons and families in these groups, and to determine when such unauthorized occupation has been carried out by large-scale criminal or other groups seeking illegitimate economic gain, as opposed to those who have done so out of economic necessity.....

[In relation to pre-2003 forcibly displaced yet applicable to current refugees and IDPs] Widespread housing, land and property disputes stemming from returning refugees and IDPs seeking to recover their former homes and lands or to reassert rights over these places of habitual residence, the unauthorized occupation of land, housing or property and irregular transactions of these assets have been reported throughout Iraq. These disputes will grow with more than one million refugees and internally displaced persons contemplating returning to their original homes and villages. Some have already done so, and have returned to the ruins of their former homes. Other returnees have sought to reclaim their former homes, despite the fact that these homes are currently occupied by others.[...] In Kirkuk and Mosul, for instance, the process was particularly widespread. [...] The types of disputes that have arisen and are anticipated to arise with the return of greater numbers of IDPs and refugees include:

- Attempts by displaced persons and refugees to reclaim their former homes, which are now occupied by members of other ethnic groups;
- Unauthorized occupation of land, housing and property by secondary occupants since the end of the recent conflict;
- Housing, land and property claims by claimants without documentation to prove their claims;
- Determining rights in instances where current occupants hold 'lawful titles', but where returnees do not;
- Determining rights following the unregistered transfers of property;
- Claims by bona fide purchasers of property after it was initially expropriated;
- Claims for improvements made on homes, lands and property legally owned by returning refugees and IDPs;
- Claims on the determination of boundaries;
- Claims of tenancy rights and cultivation rights;
- Land occupied by various political or military groups; and
- Disputes between tribes and villages.

Forced evictions and displacement have continued beyond the end of the Saddam era. Various types of forced evictions have been evident in Iraq since the beginning of the present occupation. These acts do not appear to have been treated sufficiently as a human rights issue thus far, despite the clear human rights implications of the practice and the requirements stemming from Article 27(1) of the Fourth Geneva Convention.

Northern Iraq: In Northern Iraq, an unknown number (but generally thought to be thousands) of Arab Iraqis have faced eviction by formerly displaced Kurds seeking to reclaim their former homes and lands. Kirkuk has been particularly affected. These evictions, carried out without regard for the rule of law or the human rights of those evicted, have resulted in considerable hardship for the Arab families affected, and have created deep-seated animosities among the ethnic groups, threatening security in the area. While historical imperatives may lie behind the current eviction wave throughout the Kurdish areas, it remains vital that the rights of *all* Iraqis are protected and respected. All told, tens (if not hundreds) of thousands of families may eventually be affected by these processes. The US military has been reluctant to intervene in these acts of violence in a concerted manner, and as a result, evictions and resultant displacement of Arabs has been widespread throughout northern Iraq.[1]

Southern Iraq: In Southern Iraq, growing numbers of Iranian refugees have also faced forced eviction from their homes in recent months. These appear to have been carried out by local communities. That only a small number of CPA staff are employed in Southern Iraq indicates the practical difficulties involved in monitoring and preventing such acts in this area of the country. In Basra, over 400 persons are living in a reception center after having been forced to flee their homes in Al Dual by the local population, which in turn confiscated their land and other assets.

Baghdad: In Baghdad, thousands of people have been evicted since the beginning of the US Occupation. Ba'ath party officials, Republican Guards and other favored government bureaucrats under the Saddam regime and large numbers of ordinary poor Iraqis have been evicted in large numbers from their homes. Hundreds of up-market apartments along the Tigris River have been seized by angry mobs, and the occupants evicted. Hundreds, and probably thousands of additional Iraqis have been evicted in recent weeks after falling behind in their rent, or simply because landlords, unconstrained by law or officialdom, believe they can obtain substantially higher rents from new tenants. Mass forced evictions of Palestinian refugees resident in Baghdad have also been reported. UNHCR has said that some 1,000 Palestinian refugees had been evicted by early May 2003, and that as many as 60-90,000 more refugees may also face forced eviction as private landlords seek to reclaim apartments they were forced to rent to the refugees for very small sums, and to cash in on new arrivals from the international community with

considerably larger sums of cash to be spent on rent. [2] Unless action is taken promptly by the Competent Authorities to halt these forced evictions, it is likely that further violent displacement will ensue once refugees beginning returning in larger numbers. This will only fuel the already insecure and unstable situation in the region. As of July 2003, available information does not indicate that those carrying out these evictions are being held accountable under law, nor that comprehensive measures based on law have been taken to halt such evictions. Equally, it remains unclear under which legal regime these arbitrary evictions are ostensibly justified, if any. It appears that there has been no effort by the Competent Authorities to attempt to confer even informal security of tenure (let alone formal) rights to dwellers in all tenure categories in Iraq (eg. Owner-occupied, private sector tenancies, public sector tenancies, etc) as a concrete means of discouraging and preventing further forced evictions.[...]

HRW, 3 August 2004

"In northern Iraq, the authorities' failure to resolve property disputes between returning Kurds and Arab settlers threatens to undermine security in the region, Human Rights Watch said today in a new report. Iraq's interim government urgently needs to implement the judicial means to resolve these disputes, which stem from decades of Arabization policies that uprooted hundreds of thousands of Kurds and other non-Arabs. The 78-page report, 'Claims in Conflict: Reversing Ethnic Cleansing in Northern Iraq,' documents the increasing frustration of thousands of displaced Kurds, as well as Turkomans and Assyrians, who are living in desperate conditions as they await a resolution of their property claims. Human Rights Watch details how the U.S.-led Coalition Provisional Authority failed to act even as the situation grew more volatile. As well as implementing the judicial means to resolve these claims, the Iraqi interim government must take urgent measures to meet the immediate humanitarian needs of thousands of internally displaced Kurds and other non-Arabs living in dire conditions in and around the northern city of Kirkuk. It should also find durable solutions for Arab families who were in turn forced from their homes after the fall of the former Iraqi government in April 2003. ...

"A crisis of serious proportions is brewing in northern Iraq, and may soon explode into open violence. Since 1975, the former Iraqi government forcibly displaced hundreds of thousands of Kurds, Turkomans, and Assyrians from their homes, and brought in Arab settlers to replace them, under a policy known as 'Arabization.' With the overthrow of that government in April 2003, the Kurds and other non-Arabs began returning to their former homes and farms. Ethnic tensions between returning Kurds and others and the Arab settlers escalated rapidly and have continued to do so, along with tensions between the different returning communities—particularly between Kurds and Turkomans—over control of the oil-rich city of Kirkuk. In the absence of a speedy implementation of plans to address the conflicting land and property claims and the needs of the different communities, ownership disputes may soon be settled through force.[...][T]he law fails to address the burning issue of what is to become of the so-called Arabization Arabs, in particular whether they will have the right to choose their place of residence following the resolution of property disputes. They, in a real sense, have become the latest victims of internal displacement."

HRW, 22 October 2003

"The donor community should also support the establishment of a post-conflict property dispute mechanism to provide fair and efficient settlement procedures a top priority. A broad-ranging restitution and property reform process is an urgent necessity for Iraq in order to avoid inter-ethnic violence. Victims of forced displacement—a crime against humanity—have a right to reclaim their former property, but this right must be balanced against the rights and humanitarian needs of the secondary occupants, many of whom have lived in expropriated homes for decades. "

See "[Claims in Conflict: Reversing Ethnic Cleansing in Northern Iraq](#)," HRW, August 2004

[Iraq After the Surge I: The New Sunni Landscape](#), International Crisis Group (ICG), 30 April 2008

[Iraq Situation Update - August 2008](#), United Nations High Commissioner for Refugees (UNHCR), September 2008

[IOM Monitoring and Needs Assessments: Assessments of Iraqi Return](#), International Organization for Migration (IOM), August 2008

[Baghdad squatters told to leave occupied homes](#), Reuters, 22 June 2008

Institutions and Policies addressing the Iraqi property claims of displaced pre 2003 (2004-2010)

- The Coalition Provisional Authority (CPA) established the Iraqi Property Claims Commission in January 2004 under Transitional Administrative Law and agreed upon by the Iraqi Governing Council though with little Iraqi involvement. In March 2006, the IPCC was replaced with the Commission for the Resolution of Real Property Disputes. The intent of the mechanism established in 2004 appeared to be based on concerns that the tensions between returning Kurdish and Turkomen Iraqis and Iraqi occupants of formerly Kurdish Iraqi property may destabilise the security situation in northern governorates particularly in areas highly affected by policies of arabisation such as Kirkuk, and Ninewa.
- In light of prevailing tensions in Kirkuk in 2009 it is unclear that this has been achieved by the CRRPD. There are no clear mechanisms in place to address the property concerns of those who have been evicted in the aftermath of the 2003 war in northern region. The CRRPD does not address issues of returnees or Kurdish agents having displaced secondary occupants upon return to northern areas particularly Kirkuk in post 2003. The overlapping of past and present property disputes indicates the complexity of the situation and underlines need of harmonisation and clear mapping of property disputes and mechanisms.
- The CRRPD is intended to redress property violations owing to misappropriation and distribution of properties during the former regime. It is composed of a National Secretariat and regional commissions based in each governorate as well as an Appellate division. The CRRPD is competent for three types of land and property rights violations with the time frame determined (17 July 1968 and 9 April 2003): (1) confiscation for political, religious or ethnic reasons, (e.g. in frame of Arabisation policies.); (2) unlawful appropriation or seizure of property; and (3) state property allocated to the members of the previous regime. The CRRPD does not cover destroyed properties of pre-2003 displaced so is unable to address claims related to the Anfal campaign in the North and the burning of the villages as part of the drainage programme of the marshes in the South. (Van der Auweraert, 7 September 2007) The CRRPD initially extended deadline to file claims to 30 June 2007, but has since been
- subsequently extended indefinitely. (CRRPD, June 2007)
- There is only limited redress available to pre 2003 whose property was destroyed, entailing that many victims of property destruction by the former government remain without redress. Apart from the KRG and to some extent the southern marsh lands, only limited, ad-hoc reconstruction of destroyed properties has taken place, although some funds were reportedly allocated for this purpose in earlier state budgets. In the KRG since 1991 in the aftermath of the Gulf war, there has reportedly been reconstruction of more than 3000 villages. There has also been significant reconstruction efforts in southern marshlands attempting to regenerating the marshlands, however there is little information on these reconstruction efforts, including quantifiable information on affected villages or extent to which it affects pre 2003 displacement, nor whether this has facilitated sustainable returns.

- The CRRPD remains the only institution that addresses pre 2003 property issues, and has operated in highly volatile political context with general poor infrastructure with modalities and guidelines limited. Though representing a significant endeavour by the Iraqi government, the CRRPD suffers from number of limitations. The CRRPD has been criticised for its lengthy procedures, and delay in enforcement of decisions taken. There has also been concern regarding lack of adequate compensation guidelines, questions on financial viability of the process, significant regional variations in results to date, and questions on adequate mechanisms available to ensure that property restitution does not entail displacement. (Van der Auweraert, 7 September 2007).
- As of October 2009, had received over 152,000 claims – with more than 55,000 concerning properties in Kirkuk area – and adjudged 42,840 (CRRPD, October 2009). As of August 2009, only 1,151 decisions had been enforced with total amount spent reaching 238 million US dollars. (Brookings-Bern, February 2010) The resolution rate differs significantly between regions; it being substantially higher in southern region than in KRG or Kirkuk (Brookings-Bern, February 2010). At the current rate of progress it will take two decades to address all claims received (USI, April, 2009). In comparison in January 2008, close to 139,631 claims had been received with little over 40,760 decided, but only 382 decisions enforced involving 1004 beneficiaries to whom around 94 million US had been disbursed. (IOM, January 2008)
- There have been continuous discussions on the need to improve the CRRPD. This has included structural modifications such as revision of the appeal process, encouragement of direct government restitution in the spirit of the CRRPD, as well as widening the scope of the CRRPD. Recommendations from NGOs have included advocacy for improved mechanisms to claimants, inclusion of all categories of loss included or omitted in the CRRPD but allowable under Iraqi law. Other recommendations have been less far reaching called for in depth evaluation and financial implications of existing procedures, and suggestions on simplifying existing procedures within the existing institutions.
- In early 2010 two new laws were reportedly passed to address some of these limitations as well as to widen the CRRPD's mandate. The CRRPD which is to be revised to the Real Property Claims Commission (RPCC) will take over the mandate and structure of the CRRPD. Under the new measures introduced, the RPCC shall also be addressing compensation programme for movable and immovable property expropriated or damaged. There are concerns that the new law shall retain structures that will continue to impinge on effective and timely resolution of property disputes. Though addressing compensation of moveable property will prove difficult, it is still too early to determine the effectiveness of this widened mandate.

Brookings-Bern, February 2010

The Iraqi Government has taken considerable steps to address the former regime-related land and property disputes with the establishment of the Commission for the Resolution of Real Property Disputes (CRRPD). The CRRPD has the exclusive mandate to settle land and property disputes that are related to the former regime's demographic change and forced migration policies between July 1968 and April 2003. The principle is that previous owners have the right to restitution or, if they prefer, compensation for the property that was taken from them, while, in most circumstances, current occupants will receive compensation from the Iraqi State if they have to vacate the property following a restitution decision by the CRRPD. This effort to provide redress to victims of land and property rights violations by the former regime represents an important financial undertaking for the Iraqi State, which in many cases has to pay compensation to the party who does not get the property back. The size of the problem is reflected in the number of claims filed with the CRRPD until now: 156,623 with approximately two thirds of the claims coming from the Northern part of Iraq Despite the significant efforts of the Iraqi State to address former regime related land and property issues, important challenges remain:

The large majority of former regime related land disputes remain unresolved today: According to CRRPD figures, 42,840 claims have so far received a final, enforceable decision, meaning that

close to three out of four land and property disputes are still awaiting resolution..... Only limited redress is available to those whose homes, businesses or livelihoods were destroyed by the former regime. Many victims of property destruction by the former regime remain without redress, as property destruction is not covered by the CRRPD. Outside the Kurdistan Regional Government area—where reportedly more than 3000 villages have been reconstructed since 1991—only limited, ad-hoc reconstruction of destroyed properties has taken place, although some funds were allocated for this purpose in earlier state budgets, for example in the Kirkuk province. Anecdotal evidence suggests that a number of people who had their property destroyed by the former regime continue to live in public buildings or have constructed informal settlements on (sometimes disputed) state or private third party land. No comprehensive data are available about the number of properties destroyed by the former regime, but there is little doubt that thousands of families were affected. Significant destruction has also occurred since 2003, making it sometimes impossible to tell what property was destroyed when and by whom....

To accelerate and improve the restitution and compensation of land and property taken by the former regime, the following measures could be considered:

Direct restitution of disputed state land and property by the relevant Ministries and State Authorities....

Cease the current policy of automatic State appeals against CRRPD decisions: An exceptionally high appeals rate, currently standing at almost 50 percent nationwide with peaks of 80 percent in the Kirkuk Province,³⁷ is one of the key factors that explain the slow progress of the CRRPD process..... No data about the nationwide enforcement rate are available, as enforcement of CRRPD decisions is neither monitored nor systematically reported.

Make a concentrated effort to address region-specific problems: The CRRPD resolution rate differs significantly between regions, ranging from 21 and 27 percent in the Kurdistan Region and Kirkuk Province respectively to 88 percent in the Southern region for first instance decisions. While these stark differences can be partly explained by higher caseloads in the offices with a low resolution rate, they also point towards region-specific problems in areas where the resolution rate is very low.....

Reform the current CRRPD Cassation Commission to increase its capacity: The current CRRPD Cassation Commission has only one chamber to process appeals against decisions from 30 Judicial Committees. This institutional set-up together with the high appeals rate has resulted in the Cassation Commission becoming the principal bottleneck in the CRRPD process.....

A durable solution to the former regime's demographic change and forced migration policies requires a policy to address the issues of the destroyed property file where this has not yet happened. Such policy needs to accommodate both victims who (ideally) want to return to their former properties and victims who prefer to settle elsewhere. A solution for the destroyed property file would also have a positive effect on post-2003 land and property issues, for example in the Kirkuk Province where some victims are currently living in state buildings or on state land. The need to identify the number of destroyed properties and affected families A durable solution requires both rural reconstruction plans and individual remedies.

Van der Auweraert, 7 September 2007:

"It was against this backdrop that the Coalition Provisional Authority (CPA) decided in January, 2004, to establish a special-purpose commission to review and resolve all property disputes related to the Ba'athist era, i.e. the Iraq Property Claims Commission (IPCC). Subsequent to the CPA's disbandment and the transfer of sovereignty to an Iraqi interim government, the Iraqi Transitional National Assembly decided in early 2006 to replace the IPCC with the Commission for the Resolution of Real Property Disputes (CRRPD). While the CRRPD has essentially the same mandate as the IPCC, the CRRPD Law introduced a number of important changes e.g. in respect of the treatment of the current occupant of the disputed property, the valuation of compensation and the composition of the Judicial Committees reviewing and deciding the claims. The CRRPD essentially took over the entire organizational structure and staff from the IPCC. All

claims submitted with the IPCC automatically became claims with the CRRPD. IPCC claimants were not required to take any particular action in this respect. Their claims were from then on simply reviewed and decided under the CRRPD statute. Like the IPCC, the CRRPD remained a purely Iraqi institution, staffed exclusively by Iraqi nationals. The international involvement is limited to a very small group of IOM reparations experts providing technical advice to the senior management and staff of the CRRPD.

The CRRPD is competent for three types of land and property rights violations: (1) confiscation or seizure of property for political, religious or ethnic reasons, or in relation to ethnic, sectarian or nationalistic displacement. (Art. 4, I, CRRPD Law) (e.g. in frame of Arabisation policies.); (2) appropriation or seizure of property without consideration, with manifest injustice or in violation of the applicable legal rules (Art. 4, II, CRRPD Law); and (3) state property allocated to the members of the previous regime without consideration (Art. 4, III, CRRPD Law). As was mentioned earlier, the CRRPD is not competent to provide redress for the destruction of property. While victims whose homes or businesses were destroyed may get back the land on which the destroyed property used to stand, they will not receive compensation for loss caused by the destruction itself. This is especially problematic in the Kirkuk area, where the seizure and confiscation of agricultural land was often accompanied by the wholesale destruction of local villages and farms. Here, additional efforts outside the CRRPD may be required to render return to the lost properties a real and feasible option.

The CRRPD can only rule on land and property rights violations that took place in the period between 17 July 1968 and 9 April 2003, i.e. between the date on which the Ba'athist party definitely seized power in Iraq and the date on which Baghdad fell to the US-led invasion forces. Claims that relate to violations outside this period have to be submitted to the ordinary Iraqi courts. This means, for example, that Arabisation Arabs, who were forcibly expelled from their homes in Northern Iraq by Kurdish or other returnees after 9 April 2003 can only go to the Iraqi courts for redress, even though the returnees themselves would have had access to the CRRPD. [...]

It is very difficult to make any sensible predictions about the future of the CRRPD in a situation that is as volatile and unsettled as Iraq is today. So instead, I will end with a few open questions which, I think, capture the magnitude of the challenges the CRRPD faces in the coming months and years. Will the CRRPD be able to resist the politicization and sectarian fragmentation that increasingly appear to affect the Iraqi state and its institutions? How long can the CRRPD continue to carry-out its daily operations in a context where in many regions of Iraq law and order have all but broken down and where more and more people are literally scrambling to survive? What is the impact of the largescale displacement that continues to take place in Iraq today on the work of the CRRPD and the situation of its claimants? Do the losers in the property restitution process consider the CRRPD to be engaged in a legitimate effort to redress past wrongs or do they see the CRRPD as simply one more manifestation that the Iraqi state is out to take revenge on the Sunni community? And finally, how long will there be sustained political will to fund a property restitution effort that may well take more than one decade to finish its work and that addresses crimes that are rapidly being overshadowed by the staggering scale of violence and atrocities inflicted on the Iraqi population on a daily basis?"

Today, the CRRPD has received close to 135,000 claims, out of which more than 55,000 concern properties located in the Kirkuk area. The total number of claims that have so far been decided amounts to little over 37,000, i.e. about one forth of all claims. On its face, the latter figure is quite impressive, giving the complexity of the CRRPD procedures and, especially, the situation in Iraq over the past few years. In terms of the actual outcome of the CRRPD the situation is, however, slightly less positive than the figures may lead one to believe and this for a number of reasons.

The first reason is that, according to the CRRPD, approximately 9000 decisions will have to be rereviewed as a consequence of the changes introduced by the CRRPD Law. As the Law changed the valuation criteria for compensation, all compensation decisions that were decided in application of the IPCC statute now have to be reconsidered as to the awarded amount. At the same time, also restitution decisions involving a secondary occupant will have to be re-reviewed, as the CRRPD introduced the formal right of the secondary occupant to receive compensation in case the property is returned to the original owner. It is unclear at the moment how long this re-review will take. The second reason is that a significant number of successful claimants face difficulties in having their CRRPD restitution decisions enforced. While accurate figures regarding the enforcement rate are lacking and likely to differ from region to region, it is generally assumed that a considerable proportion of final restitution decisions have remained un-enforced. Anecdotal evidence suggests that until recently this was at least in part due to the unwillingness of certain Property Registration Offices to re-register property in name of the original owner on the basis of a CRRPD decision. Of late, this situation appears to have improved after repeated interventions by the Head of the CRRPD. A continuing problem, however, appears to be the difficulties faced by the Enforcement Department of the Ministry of Justice to evict unwilling current occupants due to the prevailing security situation and the lack of capacity. Especially in areas with high rates of violence, the Department and the Police are said to lack either willingness or capacity to enforce CRRPD restitution decisions against unwilling occupants.

A third reason why the situation is less positive than the decision rate appears to suggest is the low rate of enforcement for compensation decisions. It was not until December 2006 that the CRRPD and the Ministry of Finance agreed on a procedure to pay compensation to successful claimants and this despite the fact that the Iraqi State Budget for 2006 had specially allocated \$200 million for CRRPD compensation payments. Initially reluctant to get directly involved with the payment of compensation, a responsibility which the CRRPD Law lays with the Ministry of Finance, the CRRPD is now itself paying out compensation to the claimants with funds drawn from an account funded by the Ministry of Finance based on groups of position compensation decisions presented to it. So far, four groups of claims have been compensated, in total amounting to little more than one hundred cases. It is clear that the compensation rate will need to increase drastically for the CRRPD to live up to the promise of its statute.

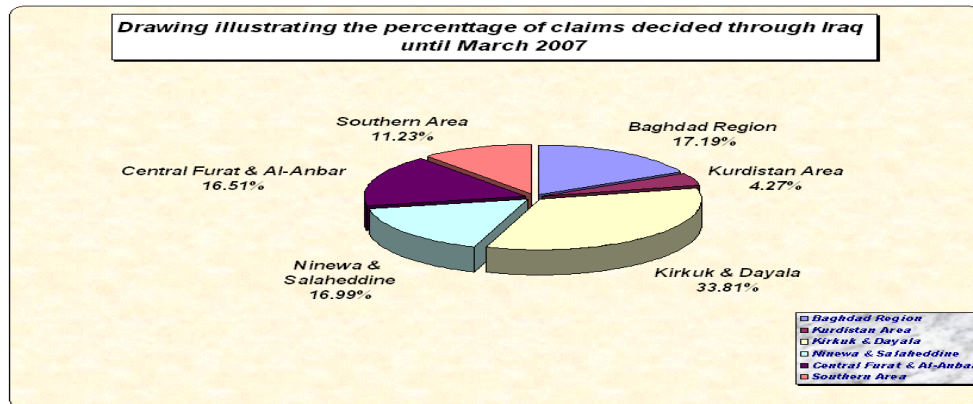
Brookings-Bern, August 2008:

"One of the lessons drawn from the CRRPD is that a judicial or quasi-judicial process is unlikely to be successful in dealing with large numbers of claims. The CRRPD which has been a quasi-judicial process has been bogged down with bureaucratic processes, including provision for valuation by multiple experts to assess the value of claims, extensive formal requirements for documentation and application of Iraqi civil and procedural law in some areas. Administrative processes are generally easier than judicial processes to implement and should be the predominant mechanism for future reparation mechanisms.¹³⁴ Otherwise, the whole judicial system could be clogged up with property compensation/reparation cases, with lengthy delays not just for those seeking recovery of their property but many other legal issues as well. Some of the other lessons Peter Van der Auweraert draws from the CRRPD's experience are also relevant here. He argues that large-scale property restitution should be addressed within a larger transitional justice framework. Compensating property owners in isolation from other victims of the regime raises issues of basic justice and equity which might make durable reconciliation more difficult.

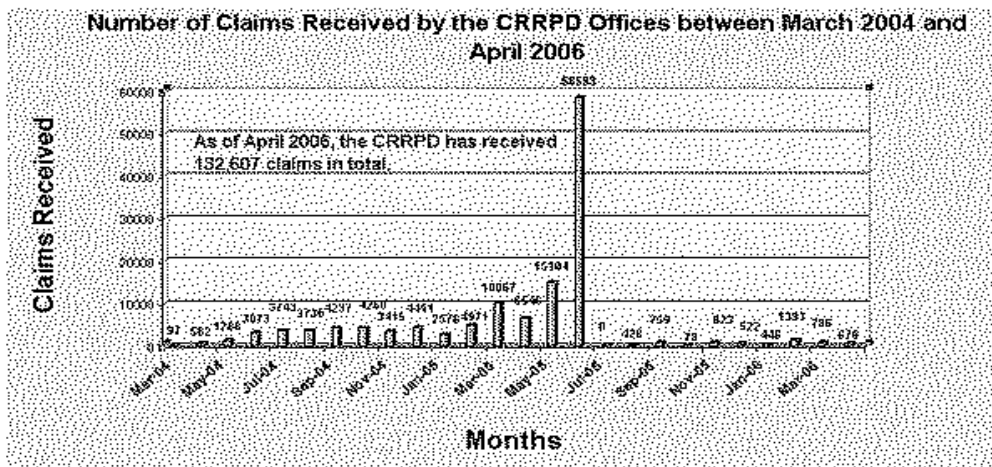
Past experience with property restitution in Iraq thus raises questions about whether the current government is ready and able to implement a new mechanism to resolve the many property disputes which are likely to emerge. If such a mechanism is not instituted, either property will remain in the hands of those who physically possess it, or disputes will be settled by other means, likely including violence. But these are not just issues to be resolved at some point in the future. As Brookings consultant Rhodri Williams has argued, the Iraqi government's ad hoc efforts

to address property issues have been inconsistent and counterproductive. Early in the surge campaign, for example, the government simply decreed the return of all property by an arbitrary deadline but did not back this up with sufficient resources to work. In fact, this decree may have exposed displaced families to risk by encouraging them to return to their homes when it was not safe to do so. As he states, "with violent displacement ongoing, the rights of the uprooted to their homes and lands cannot currently be enforced but should not be traded away." Williams proposes a number of concrete steps which could be put into place immediately which would defuse some of the future tension around property claims."

CPRRD, March 2007



CRRPD, April 2006



UNHCR, October 2005, pp.128-129:

"The IPCC consists of a National Secretariat which oversees all operational and management activities, Regional Secretariats and local offices in each Governorate of Iraq which receive claims and prepare them for adjudication (currently 30), Regional Commissions in each Governorate which issue first instance decisions (currently 38) and an Appellate Division in Baghdad which issues second instance decisions. The IPCC process is open to all persons or their heirs who have been wrongfully deprived of real property (e.g. house, apartment or land) or an interest in real property (e.g. right to use land) because of actions taken by or attributed to former Iraqi Governments between 17 July 1968 and 9 April 2003. [...] The deadline to file claims

was initially 30 June 2005, but it was subsequently extended to 30 June 2007. The IPCC Statute envisages that certain persons who lose possession of real property as a consequence of an IPCC decision may also receive compensation, assistance with resettlement and/or new property from the state. [...]"

IPCC, 7-9 September 2004:

"IPCC was give life through the Transitional Administrative Law (TAL) agreed by the Iraqi Governing Council (IGC). It was signed into law on January 15th 2004. The IPCC was seen as the way to redress injustices created from wrongful appropriation and distribution of properties due to the actions or policies of the former Baathist regime. This national problem is of prime concern in Kirkuk and the surrounding areas due to Baathist policies of ethnic redistribution, which have displaced Kurds. The first of the IPCC offices were opened at the beginning of March with the sole focus of distributing claims forms. There were offices open in the north, middle and south of Iraq by the end of May. Since the claims hand out the organisation has worked to put systems in place necessary to running a mass claims system such as Regional Commissions to make decisions on claims and the financial ability to pay organizational salaries. [...] All governorates in Iraq have IPCC offices. Kirkuk has the largest number with four offices. Diyala and Saladin have two each governorate. All have Regional Commissions which have been established with adjudicators trained and appointed to be able to decide claims. The Commission is reviewing cases in order to start making decisions once a compensation plan has been established. 19,000 claims have been filed."

FMR, September 2004:

"Lessons learned in BiH [Bosnia and Herzegovina] appear not to be heeded in Iraq where it is estimated that up to a million people were displaced as a result of expulsion policies that the former regime used to remove opponents and gain valuable land in the southern marshes and in the north. A worrying start was made when the occupation authorities established the Iraq Property Claims Commission (IPCC) in January 2004 with little Iraqi involvement. Experts working for the Coalition Provisional Authority (CPA) drafted a document and required the Iraqi Governing Council (IGC) to implement its provisions without paying sufficient attention to realistic enforcement mechanisms.

BiH experience shows that national institutions have to be instrumental in reallocating housing to those displaced by a returning owner or rights holder, since they are the ones in control of the municipality housing stock and able to mobilise the police to enforce evictions if necessary. Yet in Iraq national institutions will be hard-pressed to resettle the new 'displacees', as they are bound to under the terms of the IPCC. Those likely to be first in line for eviction by returning owners or legal rights holders- mostly Arabs allocated housing by the Baathist regime in areas populated by Kurds and Turkomen – will probably wish to be resettled in areas where they constitute a majority.[1] It is not clear either whether the newly-trained Iraqi police force will have the requisite will or ability to carry out contentious evictions. Had more attention been paid to the Bosnian experience it would have been readily apparent to the architects of the IPCC that national involvement from the start is vital to successful implementation of the scheme."

AFP, 3 September, 2004

"Iraq's property claims commission for disputed land in oil-rich northern Iraq has failed to process a single claim, despite more than 167,400 Kurds re-settling in dozens of refugee camps since March alone, a US commander said. Of those tens of thousands of Iraqis tracked by the US military and classified as internally displaced persons (IDPs) in the last six months, more than 153,000 are Kurds. For Major General John Batiste, the brewing crisis is the biggest problem facing the 1st Infantry Division (1st ID), outweighing the threats of foreign fighters and insurgents in Sunni Muslim trouble spots north of Baghdad. Since early 2004, 77,000 Kurds have re-settled in the province of Tamin, home to northern Iraq's oil capital of Kirkuk, 65,747 in Salaheddin and 10,675 in Sulaimaniyah, based on US statistics. Aside from the Kurds, 4,757 Turkmen and 2,226 Arabs have resettled in Salaheddin, with another 5,000 Arabs and 2,000 Turkmen classified as

IDPs in Tamin, home to the largest oil reserves in the world's second largest producer. The US military was unable to provide immediate statistics for Diyala, which makes up the fourth province patrolled by the 1st ID, north of Baghdad. Tens of thousands of Kurds, desperate to return to the northern land from where they were hunted under Saddam Hussein's brutal 'Arabisation' policy, are living in camps dotted around the north, waiting for their claims to be heard. Forty-four of those camps are in Tamin province, which has a rich ethnic mix of Kurds, Arabs and Turkmen. But as some Kurds have forcibly seized control of their former property, thousands of Arabs have been shunted into similar camps, waiting for their fates and compensation to be resolved with nowhere else to live.

See also:

"Property commission gives displaced people hope" , 25 May 2004, Integrated Regional Information Network [Internet]

This is an excerpt of "Restitution of land and property rights", by Anne Davies. For the full article, see Forced Migration Review, September 2004 [in sources, below]

Institutions and Policies addressing the Iraqi property claims of displaced post-2003 (2004-2009)

- Post-2003 land and property issues include the occupation of land and property by other displaced persons, squatters, armed groups, as well as property destruction and looting. (Brookings, February 2010) There are also reports of forced and fraudulent sales affecting properties of the displaced. A separate category of problems is formed by the occupation of public buildings, and informal settlements have been built on state and private third party land. Additional property concerns includes damages and destruction of property as result of military counter-insurgency operations (discussed in following thematic section). The superposition of various issues renders finding an equitable solution significantly more complicated. (Brookings, February 2010)
- There have been legislative and administrative mechanisms put in place to address property claims however the majority of such claims remains unresolved. (Brookings, February 2010) There continues to be crucial need to collect comprehensive data on post 2003 displacement and return-related land and property issues (i.e. land and property situation of refugees, occupation of public buildings, and informal settlements in private and public land); for evaluating ongoing policies addressing post-2003 land and property issues and for expanding their scope; and for resolving the occupation of public buildings and land, as well as to streamline ongoing efforts to resolve land property issues predating 2003. (Brookings, February 2010)
- In post 2003, though Iraqi civil law system is said to provide an adequate legal scheme for providing restitution to property owners who have been displaced or who have suffered a loss due to damaged property, the nature of the sectarian violence limited enforcement and limited judiciary throughout the country and the slow re-emergence of public institutions, have all rendered it difficult to address housing and property issues. Domestic institutions may lack the institutional capacity to deal with the enormous influx of claims should there be significant returns. International institutions or specialized domestic institutions, are therefore likely needed to complement/ augment those domestic institutions. (Brookings, 9 June 2008; Leikie 30 July 2003)
- While addressing housing and property concerns of former regime through the CRRPD, the Iraqi Government has replied to post 2003 displacement in an ad hoc manner. In 2008, several executive orders were put in place to address post 2006 to 2008 property concerns as result of displacement, and have subsequently been expanded in 2009. There is however lack of clear mapping of property concerns and different manner at which these are being addressed. There are several concurrent mechanisms in place addressing various property

- In September 2008, Prime Minister's Order 101 and the accompanying Council of Ministers' Order 262 were issued to address restitution of private property for post-2006 IDPs (USIP, April 2009). They only apply to registered IDPs displaced between 2006 and January 2008, excludes businesses and other non-residential property, and do not assist returnees who were forced to sell property under threat, or who were tenants prior to displacement (Brookings Bern February 2010). Neither do they include compensation for those who do not wish to return but prefer integration in their place of displacement.
- Two MoDM centres were opened in Baghdad to help returnees register, receive assistance and resolve property issues; a third centre was established in Diyala in mid 2009, and branch offices opened in Anbar and, Salah-al-Din (GoI, July 2008). Returnees can receive around \$850 after returning to their place of origin and renouncing IDP status. Registered IDPs in Baghdad who agree to vacate premises of returnees they have illegally occupied can apply for rental assistance worth around \$250 per month for six months. Those who refuse to leave risk prosecution under anti-terrorism legislation (GoI, July 2008). In Baghdad and Diyala, returnees are also reportedly provided additional protection by local authorities.
- To date, the two MoDM centres in Baghdad have processed over 3,000 property restitution cases. In almost 1,900 cases property was reportedly restored while others claims were rejected (IDMC interview, January 2010; IRIN January 2010). There continues to be contention as to the extent to which these decisions have been enforced. The Iraqi Parliamentary Committee on Displacement and Migration has criticised the lack of enforceability of these decisions (IRIN January 2010). In 2009 approximately 60 per cent of IDPs interviewed do not seek assistance from relevant institutions to retrieve property for lack of necessary documentation, lack of trust in government institutions, fear of retribution or due to costly procedures (UNHCR December 2010)
- In September 2009, the Iraqi government under Order 54 issued in July 2009 extended measures adopted in Baghdad to Diyala, one of the worst-affected governorates during the 2006-07 sectarian violence. It allocated some \$78 million for reconstruction and facilitation of sustainable returns of 27,500 families (UNHCR, October 2009). Priority is being given to 400 villages with high returnee populations many of which are ethnically heterogeneous. There are plans to expand the Diyala model in late 2010 to three key return areas in Baghdad (Mada'en, Doura and Sabalbour) and subsequently to the governorates of Salah El Din, Ninewa and Anbar
- The fate of secondary occupants in public property that risk eviction without accompanying measures to address shelter needs remains of significant concern to the UN and NGOs. There is also the concern of IDPs in informal settlements which are in 3rd party private or public land, and questions persist how to address such settlements. In December 2009 UNHCR reported that 450,000 IDPs resided in informal complexes throughout the country. Regularisation of these informal settlements may prove an alternative however such policies are also highly contentious in view of implications such regularisations may have particularly in northern Iraq pending the resolution of the disputed territories. However in the meantime, needs of these communities need be addressed.
- Iraqi government's efforts to address second occupancy has been halphazard and ad hoc since 2004 with policies varying in each governorate. In early 2008 the Iraqi parliament postponed evictions from public buildings until other housing arrangements could be made for IDPs. However, evictions continued to take place in 2008 in various governorates in Iraq (IOM, June 2008). Eviction and compensation procedures were reported to be inconsistent, insufficient and influenced by partisan and sectarian politics.
- Monitoring reports while not specifying instances of evictions in 2009 continued to underline the threat of evictions faced by IDPs (IOM, August and September 2009). In early 2009 Iraqi government resumed calls for evictions to take place of secondary occupants, though by late 2009 leading up to the elections the Iraqi government ordered postponement of all evictions. However, it remains unclear what accompanying measures will address shelter concerns of

- The issue of gender and property rights also of note which as with pre 2003 is of concern. The Iraqi constitution and civil code may be favourable to women though certain ambiguities persist in extent to which relevant law is subject to interpretation particularly vis a vis inheritance and divorce in personal statutory laws. The level of intimidation, discrimination and sexual and gender based violence which have been reported suggest that ensuring possession and enforceable property rights for women remains difficult to implement. The situation of vulnerable categories – single female headed households, elderly, widows, orphans – present particular needs to be addressed.

Brookings-Bern, February 2010

In the last year or so, the Iraqi Government has taken considerable steps to facilitate return and reintegration including property recovery measures. In the summer of 2008, the Council of Ministers and the Prime Minister developed a two-pronged package that offers limited financial incentives for returning families and an administrative mechanism to facilitate recovery of property for returnees (Decree 262 and Order 101). These measures were initially aimed at Baghdad from where most of the post-Samara displacement took place. In the meantime they have been extended to Diyala by Order 58. Order 58 clearly builds upon the lessons learned in Baghdad in adopting a more integrated approach. These central government measures are complemented by Governorate-level initiatives, such as the Baghdad Governorate financial support programme to assist returnees with the repair of their damaged and destroyed homes, and neighborhood-level initiatives on preventing or resolving conflicts between returnees and the community.

The current framework to assist returnees contains a number of positive elements. Overall, it reflects a needs-oriented pragmatism and flexibility on the part of the Iraqi Government. The latter is trying to balance the needs and the rights of the returnees with those of the individuals currently occupying their properties and has rightfully moved away from a strictly law enforcement-centered approach. There is an increased understanding that only an integrated approach to return and property recovery will lead to a durable solution, as exemplified in Diyala. Moreover, the current combination of central and provincial government initiatives is at least in principle a positive development. Given the scope and, often, region-specific nature of the existing problems, a combination of central and local government measures is certainly the way to go. Finally, the recourse to relatively simple, administrative procedures for property recovery appears well adapted to the caseload at hand, even though the tendency to “over-bureaucratize” will need to be kept in check....

Not all land and property issues are currently being addressed... Families who were forced out of their homes by those who had been displaced by the former regime and returned to their areas of origin immediately after 2003...; Families who were forcibly displaced after 2003 but were not property owners at the time...; People who were forcibly displaced inside Iraq after 2003 and who do not want to return but, instead, prefer reintegration in their areas of displacement or elsewhere in Iraq...; People whose properties were destroyed after 2003 as part of the sectarian violence or in the course of military operations;... Families who were forcibly displaced after 2003 and who belong to Iraq’s small minorities including Christians, Yazidis and Shabaks;....

The Iraqi Government has made different attempts resolve the occupation of state properties, so far with limited success, due in part to an underestimation of the complexity of this issue. This complexity renders it unlikely that the solution will come from one type of measures, e.g. the provision of limited financial support to the occupants. A variety of measures, including regularization, financial and housing support and law enforcement elements, is required to reflect the diverse nature and needs of those currently occupying and using state properties without

government authorization. A priority is the resolution of the illegal occupation of state properties by political parties: unless those parties lead by example. Convincing private citizens to leave risks to be both more difficult and less easy to justify. In all likelihood, the full resolution of the occupation of state properties will take a number of years to achieve, rendering a phased approach the only realistic option.

Brookings-Bern, 9 June 2008:

"By utilizing the laws and civil courts already in place, international organizations could avoid needless repetition and interference while at the same time harnessing local capacity. He underscored the importance of involving Iraqi civil courts in property restitution, given their natural jurisdiction over the subject matter, their existing legal infrastructure, their enforcement mechanisms, and the existence of their extraordinary civil law system. The involvement of domestic institutions is also critical in terms of legitimacy as it may lead to a certain amount of domestic buy-in. The Iraqi Civil Code, authored by Abdel-Razeq al-Sanhuri and enacted in the 1950s, clearly recognizes the right to private property as well as the right of 'possession', which typically exist in civil codes. Such possessory rights are a kind of right that allow for possession of a thing but which are less than full ownership and, thus, do not require proof of ownership. Continued possession for a prolonged period can lead to ownership over immovable property, however possession cannot be claimed if it is ambiguous, coupled with coercion, or obtained secretly. Therefore, many families who were forced out by militias, by generalized violence, and whose homes are now occupied by other families, will have the right to reclaim their homes.

The lack of adequate coordination with the organic Iraqi legal system and the lack of adequate mechanisms to operationalize restitution has meant that many displaced Iraqis - both from before and after 2003 - remain vulnerable and without an adequate means of redress. Civil courts remain critical to the process of enforcing rulings and protecting property rights. Moreover, they are a central part of domestic society and must be empowered if the trend of continued displacement is to be halted and property rights are to be protected in an enduring fashion. The domestic legal system, however, cannot alone solve the enormous crisis of displacement in Iraq. While civil courts protect property rights and determine the "winner" in a contest over disputed property, they do not fully address the plight of the "loser." Further, domestic institutions may lack the institutional capacity to deal with the enormous influx of claims. International institutions or specialized domestic institutions, therefore, are needed to step in to augment those domestic institutions and to do those things that are not part of the ordinary legal process: assisting those without valid claims but who are, nonetheless, displaced; finding housing; providing compensation where appropriate; etc."

....The issue of gender and property rights was noted as a concern for Iraq and other conflict zones as well as areas under customary tenure. Stigall noted that the Iraqi civil code is fairly gender-neutral, and contains nothing barring women from owning property. Iraq's Personal Status Law is strongly influenced by the Jafari school of jurisprudence, which is also relatively favorable to women.

Dan. E. Stigall, March 2005:

"What recourse is left to an interim government that wishes to provide a means of redress to its aggrieved citizenry? The answer is astonishingly simple: allow property disputes to be addressed in their proper forum. Civil courts, in most jurisdictions throughout the world, are the proper forum for property disputes. Iraq possesses an advanced system of property law that, in contrast to the incomplete, untested, and ad hoc guidelines in the IPCC statute, is more than adequate for resolving property disputes of the most complex sort, including cases in which property was taken unlawfully. The Iraqi Civil Code states that ownership vests unto the owner the right to dispose absolutely of that which he owns and that "[n]o one can be deprived of his ownership except in the cases and in the manner provided for by law and in consideration for fair compensation

payable in advance." Thus, true title does not pass with property (moveable or immoveable) not acquired lawfully or for less than fair compensation. [...]

Further, unlike the IPCC statute, the Iraqi Civil Code contains a sophisticated regime of law governing contracts and other obligations that could be invoked to address situations in which Iraqi citizens were duped or intimidated into signing contracts divesting themselves of property. (77) Like many civil codes based on the French model, the Iraqi Civil Code nullifies obligations if tainted by a vice of consent or defect of the will. (78) Accordingly, a contract is not valid if executed in mistake, (79) under duress, (80) or where a contracting party has made false representations. (81) Like most modern civil codes, the Iraqi Civil Code contains provisions for force majeure (82) and other exigencies. (83) Therefore, the Iraqi Civil Code is superior claims system. It not only has an advanced system of rules designed to address complex property disputes, but also addresses moveable and immoveable property and causes of action beyond confiscation of property. It permits recovery for a broad range of injury, allows recovery for damaged and confiscated property, and contains provisions that consider the good or bad faith of subsequent purchasers. Finally, it allows recovery of lost rent, lost fruits, emotional damages, and moral injury.

There are distinct and numerous disadvantages to the status quo. From a legal standpoint, the clock is ticking on prescriptive periods (or statutes of limitations.) The Iraqi Civil Code states that "[a] case shall not be heard in respect of an obligation whatever its cause ... if it has not been claimed without lawful cause for a period of 15 years...." (84) In the case of recurring rights, such as rent or income due to a possessor in bad faith, that period is shortened to five years. (85) In other cases, such as certain commercial exchanges, the prescriptive period is shortened even further to a period of one year. (86) Such legal limits could, in theory, bar certain actions within civil courts--especially for those acts which took place over fifteen years ago. Fortunately, the Iraqi Civil Code tolls the running of prescription where there is an impediment rendering it impossible for the plaintiff to claim his or her right. (87) This rule reflects the civilian concept of *contra non valentum agere nulla currit praescriptio*, a Latin maxim meaning that prescription does not run against a party unable to act. (88)"

UNSC, 7 March 2007:

"The Baghdad security plan was formally launched on 13 February 2007 in a live televised address by General Qanbar, Commander of Baghdad security plan operations. General Qanbar announced that the launch of the Baghdad security plans would be accompanied by closure of the borders with the Syrian Arab Republic and the Islamic Republic of Iran for a period of 72 hours and the extension of curfew hours in Baghdad. Illegal occupants of real estate property belonging to displaced persons were given 15 days to vacate and return such properties with their assets to their legal owners. Prime Minister Al-Maliki distinguished the new plan from past efforts by highlighting Iraqi control of security operations with United States troop support, the decision to confront all armed groups regardless of religious or political affiliation, and the combination of reconciliation and economic measures."

HIC, August 2005:

"In the immediate term, victims and their legal representatives are urged to quantify plaintiffs' losses thoroughly, using existing tools and techniques developed in other contexts to the extent that comprise a full inventory of claims and ultimately serve the full restoration of Iraqi victims' housing and land rights, as well as provide policy and financial planners with the data needed to assess future requirements and options for restitution and compensation. That method should take account of the entire complement of housing and land rights elements provided in the CESC General Comments Nos. 4 and 7, as well as other congruent and interdependent rights codified in the human rights treaties to which Iraq is a party and elaborated through the jurisprudence of the treaty-monitoring bodies.

An authoritative Iraqi body, such as the IPCC National Secretariat, in cooperation with the Ministry of Displacement and Migration or the larger interministerial Working Group on Compensation for the Displaced, should develop and provide to IPCC adjudicators ample guidelines for determining remedies based on Iraqi law and prevailing human rights standards. ...These guidelines should allow all categories of loss included and omitted in the current IPCC instruments, but allowable under Iraqi law; value assessments based on current market value of structures, lands and harvest crops; lost revenue from the use of property; relocation and alternative housing costs resulting from the violation and required for resettlement; recurrent costs; values for pain and suffering, etc. (See summary of the "Loss Matrix" from the HLRN Housing and Land Rights Toolkit by way of example.) "

UNHCR, 12 August 2004

"Under the Saddam Hussein regime, women had some of the most liberal protections of any Muslim country under Iraqi legislation which prohibited marriage under the age of 18 and denied favouritism to men in inheritance, divorce and child custody. It was even common for Iraqi women to hold political office, and the U.N. ranked Iraq as the Arab country with the highest level of gender equity prior to the 2003 invasion.

HRW, March 5, 2004

"Iraq's proposed interim constitution fails to give adequate protection to women's human rights, Human Rights Watch said today.[...] 'Equal rights for Iraqi women in marriage, inheritance, and their children's citizenship should not be left in jeopardy,' said LaShawn R. Jefferson, executive director of the Women's Rights Division of Human Rights Watch. "The interim constitution should explicitly guarantee these rights." The Iraqi interim constitution, officially known as the Temporary Administrative Law, will serve as the country's fundamental legal framework until a new permanent constitution is put in place by December 31, 2005. A copy of a draft interim constitution obtained by Human Rights Watch contains a provision prohibiting discrimination based on sex. However, it does not specifically guarantee equality between men and women in at least three critical areas where women in the Middle East have historically suffered discrimination:

- The interim constitution offers no explicit guarantee that women will have equal rights to marry, within marriage, and at its dissolution.
- It does not explicitly guarantee women the right to inherit on an equal basis with men.
- It fails to guarantee Iraqi women married to non-Iraqis the right to confer citizenship to their children.

Leckie, 30 July 2003

"Under the present circumstances of unrest, the lack of a functioning and impartial judiciary throughout the country and the slow re-emergence of public institutions, housing, land and property transactions are not generally subject to formal legal or institutional oversight. House sales that take place at present may be based on informal contracts between the parties, but these may neither be formally legal, nor necessarily a form of transaction that will be recognized by future judicial and related institutions. The absence of an official means for such transactions serves to create greater insecurity and fear that people forced to sell or buy a home might not have rights as secure as they would otherwise anticipate. This is a problem common to post-conflict settings, and one that requires the attention of the authorities.

The incomplete nature of registration records and the lack of current capacity in housing, land and property registration institutions now in place also means that people will find it increasingly difficult to prove ownership or tenancy rights over a particular dwelling. This, in turn, will become another major challenge to whatever institution is established to resolve housing, land and property disputes. It is clear that a major effort will need to be made by the Competent Authorities to discern the degree to which the system for registering housing, land and property titles and/or tenancy rights is in place, and how best to re-establish these functions throughout the country.

The Competent Authorities will need to rapidly discern what portion of the registration (or cadastre) records are still available for consultation, and to what extent they have access to and control over these vital records.

One of the main challenges facing the Competent Authorities and the people of Iraq will be how to best approach the issue of housing privatization. Areas of the economy currently under State control (in name, at least) will all be likely vetted for possible privatization by the CPA. [...]. While the broader scope of this highly contentious issue is beyond the scope of this document, this issue is of vital importance for the housing sector as a whole. A sizable portion of the Iraqi population reside in what is technically social (public) housing, both in ownership and tenancy arrangements. If past practice is anything to go by, it is likely that the CPA will vigorously pursue the privatization of such housing resources, although in the short-term this is not foreseen to constitute a major policy area of CPA concern. In the medium- and longer-term, however, as the realization of the importance of the housing sector for the economic, social and political stability grows, pressure to shift these housing resources from the State to private hands will also increase. In practice, however, hastily arranged maneuvers designed to shift the ownership of public resources into private hands is an immensely complex process that can create a new series of hardships on those affected, as well as complicating the housing, land and property rights claims process in the shorter-term. The CPA should leave these types of decisions to the Iraqis themselves."

.....Although the 1990 Interim Constitution of Iraq in Article 17 provided that 'Inheritance is a guaranteed right, regulated by the law', Iraqi women face difficulties inheriting housing, land or property in the event of the death of their spouse. In Iraq, as in many countries, Sharia law guides the inheritance process, and in turn women receive only half of what a male inheritor receives. This appears to be the major housing, land and property problems facing women in Iraq. Rights to participate in the housing, land and property restitution process and equal rights to ownership, use and control of housing, property and land appear to be guaranteed, though the implementation of these rights leaves much to be desired. Women's rights must pervade all elements of the housing process, and steps should be taken to use such processes as an opportunity for securing such rights in places where discrimination against women obstructs the broader enjoyment of housing, land and property rights.

[Iraq's Refugee and IDP crisis: Human Toll and Implications](#), Middle East Institute, July 2008
[Update on IDP and USAID mission activities in Iraq](#), U.S. Department of State (U.S. DOS), 27 June 2008
[Applying the Lessons of Bosnia in Iraq: Whatever the Solution, Property Rights Should be Secured](#), Brookings Institution, 8 January 2008

Institutions and Policies addressing property compensation due to counter-insurgency military operations (2003-2008)

- While the precise scale of housing and property damage and destruction due to the 2003 conflict is not known, it is clear that a large number of civilian homes were damaged or destroyed by MNF-I during the war and in subsequent counter insurgency operations principally in urban highly populated areas. There is no clear mapping on the mechanisms involved for property compensation nor on existing mechanisms established by the MNF-I or the Iraqi authorities following counter-insurgency operations.
- The United States Foreign Claims Act stipulates American military compensation to local civilians for losses not related to combat operations. The US military has however offered payments for war damage compensation to alleviate tension between soldiers and Iraqi

- A comprehensive database of Iraqi claims for war damage compensation is not available for US or Iraqi military operations. Critics complain of the lack of consistency in compensation and transparency, and of the lack of information regarding the process in which incidents involving US military are investigated. (Time, 21 January 2008; IHT, 12 April 2008) Similar arguments may be presented regarding Iraqi government compensation.
- The process for receiving compensation is handled by the Iraq Property Compensations Commission (IPCC). It takes at least two to six months just to complete the submission of documents and verifications of claims. Actual disbursement of the money, however, can take more than two years. Several compensation funds have reportedly been provided by Iraqi Transitional Authority and subsequent Iraqi Government for damages and losses incurred during military operations such as in Fallujah (2004), Mosul (2005), Diyala (2007).
- NGOs estimate that at least 80,000 families and businesses across Iraq are still awaiting reimbursement of claims made to the Government for all kinds of damage incurred over the past three years. Expected payments range from US \$800 to US \$30,000 per case. According to surveys and material collected by NGOs, at least one million Iraqis have some kind of compensation owed, related to losses in their homes, shops, mosques, cars and others
- The Iraqi Central Committee for the Compensation of the People of Fallujah (CCCPF) for example was created by the Iraqi government to ensure the compensation of those whose homes and/or businesses damaged during the US led Coalition Forces offensive on the city in November 2004. Reports would make note of insufficiency in allocations for compensation per families, and reconstruction estimated at 500 million in light of depth of destruction. Payments amounted to 2,000 US per family.

International Herald Tribune (IHT), 12 April 2007:

"For more than half a century, the Foreign Claims Act has provided the American military its primary tool to compensate local civilians for losses not related to combat operations. For claims that military claims commissioners deem related to combat, the army may offer a condolence payment, generally no higher than \$2,500 per person killed. In Haditha, the U.S. Marines paid local residents \$38,000 after several troops killed two dozen people, including women and children, in a car and three homes in November 2005. Four enlisted marines have been charged with murder; four officers were charged with dereliction of duty. But in Iraq, the rules for evaluating foreign civilian claims have changed over time. Before President George W. Bush declared major combat operations over in May 2003, commanders considered most checkpoint shootings to be combat-related, and thus not covered by the Foreign Claims Act. But as more and more Iraqis were accidentally injured or killed, the army began offering informal payments to alleviate tension between soldiers and increasingly hostile groups of relatives and tribal elders seeking redress."

Time, 21 January 2008:

"[I]n the fiscal year 2006 9,257 claims were filed in Iraq, of which 3,658 were paid, totaling \$8,397,726. Fewer were filed in and paid out in 2007 — 7,103 and 2,896 respectively — but the total dollar amount was larger: \$13,074,660. U.S. officers praise the program, though it is impossible to say how many Iraqi hearts and minds have been appeased. It can take months for a claim to be paid and if a claim is filed after the U.S. military unit involved is rotated out of Iraq, the odds are that the claim will never be awarded. In Iraq today, it is not uncommon for Iraqi civilians to beseech mid-ranking U.S. officers for claims for damages done in 2003 or 2004. A comprehensive database of Iraqi claims for war damage compensation is not available. Critics of the program, especially of the money paid out to the families of innocent Iraqi families killed in conflict, complain that the military does not proactively release these documents. Last year the

ACLU filed a request under the Freedom of Information Act and received about 2,000 pages of information, a snapshot of part of 2005 and 2006, but it is by no means comprehensive or complete. The U.S. has been known to pay up to \$2,500 for an "accidental" killing. "

Integrated Regional Information Networks (IRIN), 26 September 2007:

"Residents of Diyala Province, northeast of Baghdad and adjacent to the Iranian border, say the payments they will get from the Iraqi government are insufficient compensation for the damage caused to their property by US and Iraqi forces in recent military operations. The ethnically mixed province [see box], a major insurgent stronghold, saw heavy fighting in the past few weeks in which warplanes, helicopter gunships and artillery were used against Al-Qaeda insurgents in Iraq. Residents say the fighting left over 5,000 families displaced and in poverty, and damaged hundreds of houses, shops, government buildings and schools. Almost all towns and villages in the province have been affected by the military operations, they say. The damage is extensive and many buildings have been totally destroyed. The amount to be paid by the government is less than half the value of the properties before they were damaged, said Maruan Ziad, an economics professor at Baghdad University and a senior official at the Ministry of Construction and Housing.[...] Many families are still displaced and others are fleeing Baqubah [the provincial capital] as sectarian violence worsens. Some partially destroyed houses have been occupied by other families, and residents are encountering difficulties returning to their homes, Ziad added. The Iraqi authorities have allocated US\$50 million for compensation. Imad Jalil, Diyala's deputy governor, has said 10 million Iraqi dinars (about US\$7,000) would be the maximum that would be paid to each household for the damage caused. Residents and specialists have said the money is not sufficient for families to rebuild their properties, and should be doubled."

Integrated Regional Information Networks (IRIN), 10 October 2006:

"NGOs estimate that at least 80,000 families and businesses across Iraq are still awaiting reimbursement for all kinds of damage incurred over the past three years. Expected payments range from US \$800 to US \$30,000 per case. The process for receiving compensation is handled by the Iraq Property Compensations Commission (IPCC). It takes at least two to six months just to complete the submission of documents and verifications of claims. Actual disbursement of the money, however, can take more than two years. Claimants must present full documentation of their goods with pictures of the damage sustained in addition to a police report, and sometimes witness statements. If the claim is accepted, a government official makes a valuation of the damage and then the claimant waits until the commission contacts him. However, the money for the payment must be available "Thousands of families are still awaiting compensation from the government," said Fatah Ahmed, spokesperson for the Baghdad-based Iraq Aid Association (IAA). "Each day there is new fighting, more destruction, more attacks, and as a result, more families without their homes and shops - with the government alleging that there are no funds to reimburse yet." More than 10,000 families have received their compensation, however, and many of them have already rebuilt their homes - especially in the cities of Fallujah and Ramadi, according to the IPCC. However, the ongoing dire security situation in Iraq has made it difficult for the compensation process to continue smoothly for other families. Millions of dollars have been reallocated from compensation to additional security measures and the reconstruction of government offices, officials said. "According to surveys and material collected by NGOs in Iraq [including the IAA], at least one million Iraqis have some kind of compensation owed, related to losses in their homes, shops, mosques, cars and others," said Fua'ad Ibraheem, a political science teacher at Baghdad University. "And as the compensation process is going so slow, it might take years for those families to receive [even] a coin as payment."

IRIN, 20 November 2005:

"Thousands of families from the town of Talafar, some 80 km east of the northern city of Mosul, have begun to receive monetary damages for losses incurred during US-led military operations in September. City officials last week began to distribute part of a \$3-million compensation package funded by the Iraqi Transitional Government aimed at reimbursing residents of the city whose

houses and businesses were destroyed during fighting between insurgents and Coalition forces. [...] More than 50,000 families out of Talafar's population of 400,000 left the city during the military operations, many of whom returned to find their homes and businesses devastated. In an effort to compensate their losses, each family received an initial amount of \$100, with monthly stipends planned for residents and extra reparations for those whose properties were totally destroyed. Reimbursements were also extended to a number of displaced families living on the outskirts of the city who have not yet returned to the city because their homes remain uninhabitable. Some residents expressed satisfaction with the payments....Others, however, complained that the amount was insufficient, especially for those with large families. Reconstruction projects have also begun in the city, aimed at repairing the destruction.....More than 400 houses and shops were reported to be seriously damaged during hostilities, not counting schools, clinics and mosques.”.

IRIN, 24 May 2005:

“About 70 percent of buildings, many of them houses, were destroyed during the conflict. [...] The Iraqi Central Committee for the Compensation of the People of Fallujah (CCCPF) told IRIN that 200 families have been given payments spread over eight months. Each person has received nearly \$2,000 but residents complained that the amount was not enough to rebuild their lives and homes again. Bill Taylor, director of the US-Iraqi reconstruction management office, told IRIN that insecurity and attacks elsewhere in the country had caused a general delay in contractors work but insisted that reconstruction would not stop and families in Fallujah would soon start to feel a difference in their lives. Others argued that more funds were needed. Khalid Kubaissy, a senior official from the CCCPF, told IRIN that the \$200 million was not enough to cover compensation and reconstruction costs. According to their evaluation, more than US \$500 million was required for the total reconstruction of Fallujah. Kubaissy added that 30,000 houses were damaged in the battle and more than 5,000 had been totally destroyed. In addition, around 8,500 shops, 60 mosques and 20 government offices required massive repair work. ‘When they [US troops] decided to destroy Fallujah they were so fast but when you talk about rebuilding the city and paying for destruction they are very slow. We lost our house, personal things and traditions but no one cares about that and even in the media, Fallujah has been forgotten,’ Abu Athir, a local resident, told IRIN standing next to the rubble where his home once stood.”

BBC, 7 April 2005:

“About half the population of the Iraqi city of Falluja have returned to their homes in the five months since a major US offensive there, officials believe. Authorities have begun handing out compensation to residents for property damaged during the assault, targeted at insurgents hiding in the city. But only 20% of each claim is being covered, leading to complaints. [...] At the heavily guarded distribution point, set up in western Falluja, hundreds of people queued to pick up payments ranging from \$500 to \$14,000 (£270 to £7,500). But these sums only cover 20% of each claim and many people at the centre complained how long it had taken to get this money. They also asked when they would get the rest.”

Further reports relating to compensation (see sources, below):

"Fallujah's struggle for recovery," BBC, 14 April 2005

"Compensation for Fallujah residents slow-locals", IRIN, 4 April 2005

Applying the Lessons of Bosnia in Iraq: Whatever the Solution, Property Rights Should be Secured, **Brookings Institution**, 8 January 2008

Compensation for damaged property inadequate, say Diyala residents, **IRIN**, 26 September 2007

UNAMI, February 2006

"US pays up for fatal Iraq blunders", The Guardian, 26 November 2003

IWPR, 19 April 2005

PATTERNS OF RETURN AND RESETTLEMENT

Alternative Durable Solutions

Iraqi government encouraging return of internally displaced & refugees (2007 - 2009)

- Iraqi national government has since 2008 implemented a number of measures aimed at encouraging the return of IDPs and refugees to their homes. In 2008, Iraqi government and the United States have placed considerable pressure in advocating for return of refugees and IDPs. The government has placed emphasis on return as opposed to other forms of durable solutions. In 2008, Prime Minister Order 101 and Council of Ministers Decree 262 issued in mid 2008, requiring that all squatters vacate IDP and refugee houses in Baghdad or face prosecution under Iraqi anti-terrorism legislation. The executive acts also established two return facilitation centers in Baghdad to assist returnees to register, receive the returnee grant of 1 million ID, and to resolve property issues they may encounter upon returning. (IOM, October 2008). A third centre was established in Diyala in mid 2009, and branch offices opened in Anbar and, Salah-al-Din (IDMC interview, January 2010)
- Returnees can receive around \$850 after returning to their place of origin and renouncing IDP status. Registered IDPs in Baghdad who agree to vacate premises of returnees they have illegally occupied can apply for rental assistance worth around \$250 per month for six months. Those who refuse to leave risk prosecution under anti-terrorism legislation (Gol, July 2008). In Baghdad and Diyala, returnees are also reportedly provided additional protection by local authorities. In September 2009, the Iraqi government under Order 54 extended measures adopted in Baghdad to Diyala, one of the worst-affected governorates during the 2006-07 sectarian violence. It allocated some \$78 million for reconstruction and facilitation of sustainable returns of 27,500 families (UNHCR, October 2009). Priority is being given to 400 villages with high returnee populations many of which are ethnically heterogeneous. There are plans to expand the Diyala model in late 2010 to three key return areas in Baghdad
- (Mada'en, Doura and Sabalbour) and subsequently to the governorates of Salah El Din, Ninewa and Anbar (UNHCR, October 2009).
- These initiatives are limited to registered IDPs displaced between 2006 and January 2008, thus excluding many from minority communities. Returnees are concerned about lack of state support, including protection, bureaucratic procedures and sectarian bias (UNHCR, December 2009). By the end of 2009, only 40 per cent of returnees interviewed had registered and applied for a grant, and only 30 per cent of those who applied had actually received one (IOM November, 2009). An estimated 70 per cent of returnees interviewed in 2009 said they had not received any government assistance. In 2008, only 32% of those who registered stated having received the assistance, while 46% of all returnees assessed had not registered (IOM August 2008). Anecdotal evidence suggests that assistance provided to returnees as part of the Diyala initiative remains limited.
- These policies run in parallel with other policies of compensation and encouragement of return or relocation by KRG in northern governorates. The extent of the policies in KRG as these relate to displacement remains unclear. The KRG since 2001 has taken significant steps in reconstructing villages that were destroyed by the former regime which has facilitated return. There are also clear policies of displaced persons to address concerns on demographic representation particularly as this affects disputed areas and specifically with regards to the still postponed referendum on disputed areas under Article 140 which was to take place in December 2007. In 2003-2004, there was reported active policy of encouraging

- The KRG has particularly also been a safe haven from the violence of the 2005-2007 and preferred option for internal flight for Iraqis of multiple sectarian denominations and religions. This has also coincided in 2007 onwards with efforts at addressing and facilitating return for Iraqi Arabs to places of origin as well as encouraging return of displaced, and integration of IDPs. This has included under the High Commission on the Implementation of Article 140 (regarding the status of Kirkuk and disputed territories) the provision of financial assistance to Iraqi Arabs wishing to return, and addressing property disputes to facilitate returns and integration however it is unclear what modalities are in effect being undertaken or how the modalities of its policies contrast with policies adopted at the national level.
- In March 2007, the High Commission had announced Orders Nos. 3 and 4, which aim to facilitate the process of relocating Arab families that moved to Kirkuk during the "Arabization" campaign offering compensation to relocated families. The relocation and compensation mechanisms according to the Commission were strictly voluntary and that 7,000 families had reportedly registered for relocation. In October 2005, UNHCR reported that many secondarily displaced Arabs did not wish to return to their areas of origin in the South yet from the Kurdish side, to allow them to remain in the "Arabized" regions would be to "endorse the injustice of Arabization" This issue, continues to be a source of tension, and it remains unclear how concerns of IDPs and returnees have been addressed since. (UNHCR, October 2005) There is little information on how this commission has operated to date, and facilitated return and reintegration, or how are matters coordinated with the CRRD (see property thematic
- chapter for more information) which addresses property claims for pre 2003 displaced. There are also continued reports of ongoing displaced from northern Iraq in 2008-2009.
- INGOs and UN agencies including the UNHCR, have repeatedly noted that prevailing conditions are not suitable for return. Though insecurity has diminished, the still prevailing high levels of insecurity and precarious socio-economic situation are thought not to provide sustainable return. In 2008-2009, UNHCR advisory notes do not encourage returns to Iraq and though UNHCR does provide assistance for voluntary returns and initial reintegration costs, it has been highly critical of involuntary returns by States (UNHCR, 23 September 2008; June and October 2009) IOM upon request of Iraqi government in late 2007 has also facilitated voluntary returns to Iraq. In 2007, UNHCR advisory note had underlined that Iraqis from south and central should be recognised as Convention refugees and should not be rejected based on internal flight alternative. (UNHCR, 30 April 2007)
- In 2008-2009, NGOs have repeatedly called on the Iraqi government and international community to ensure appropriate conditions are present, alternative solutions. In 2008, over 100 NGOs underlined that insecurity and lack of basic services such as access to healthcare, clean water or adequate shelter entailed that the situation is still not conducive to the return of refugees and internally displaced families. (Relief International et al., 8 August 2008) Though there have been security improvements, NGOs underlined in 2009 continued insecurity and unanswered needs questioning sustainability of returns, and have also underlined the need to address other alternative durable solutions such as integration and resettlement.
- Experts have also underlined the lack of present mechanisms that have emerged as part of larger transitional justice effort to address the question of all victims of the former regime and post 2003 displacement. Efforts undertaken such as the establishment of Iraqi Special Tribunal, or the CRRD did not reflect a wider transitional justice mechanisms – such approaches run risk of leading to unequal treatment of victims of abuses. Addressing past crimes, the missing and the disappeared, including effective accountability mechanisms to fight impunity, are the basis for national reconciliation efforts (Van der Auweraert, September 2007). Though there are several policies that seek to redress displacement as result of human rights violations prior to and following 2003, there still is apparent lack to address these violations per se.

UNHCR, June 2009

Iraq is in a phase of transition. The conditions throughout the country are on a positive trajectory, with rates of violence calming down to the 2003 level, food insecurity affecting only a quarter of the 2005 figures and thousands of refugees and IDP families returning home. These improvements notwithstanding, Iraq's displacement crisis is still enormous. Hundreds of thousands of displaced Iraqi families inside and outside of the country are still struggling with the effects of conflict. Moreover, the impact of years of sanctions, deprivation, discrimination, acute poverty and neglect is extensive and severe. Livelihoods and infrastructure have been significantly damaged. The flight of large numbers of professional Iraqis further complicates reconstruction efforts. Since late 2007, some IDP and refugee families have been able to return mostly to the Baghdad area. However, their reception, the provision of adequate standard of living as well as their assistance to reintegrate, has been insufficient. Many have faced security problems upon return. Many have faced housing problems as their properties have been taken over by others. Some returning internally displaced people have moved into the home of others who were themselves forced to move elsewhere or have occupied vacant public buildings, leading to a phenomenon of secondary displacement. Pressure on IDPs and refugees to return has not been accompanied by the social and economic measures that would make returns sustainable. UNHCR, taking into account these conditions, has not moved yet to promote return; but is assisting return on a case-by-case basis and preparing for the return of large numbers. At this juncture, it is important to start activities which have impacts on making on-going return sustainable, while striving to maintain protection space in the neighbouring countries. If/when large numbers of Iraqis do return in the near future, the challenges to the local communities; the government of Iraq, the UN agencies and NGO community will be tremendous.

International Organization for Migration (IOM), October 2008:

"The past month has seen an increased emphasis on returns by the Government of Iraq (GoI) through a variety of legal and practical measures, including an allocation of 250 billion Iraqi Dinar (ID) for all expenditures related to return support. Prime Minister Order 101 took effect on the 1st of September, requiring that all squatters vacate IDP and refugee houses in Baghdad or face prosecution under Iraqi anti-terrorism legislation. All IDP squatters are compensated with 300,000 Iraqi Dinar (ID) per month for six months, so that they may rent an alternative housing option. PM Order 101 also established return facilitation centers in Baghdad, with plans to replicate this system throughout the rest of the country. These centers assist returnees to register, receive the returnee grant of 1 million ID, and to resolve property issues they may encounter upon returning. As of 21 September, and based on available information from MoDM's returnee registration, IOM and MoDM monitors' field visits, UNHCR rapid assessments (snapshot), and other sources, IOM has identified 16,782 returnee families (100,692 individuals) to Baghdad. An additional 11,986 returnee families have been identified in the rest of the country, 8,691 of whom are in Anbar and Diyala. Countrywide, 92% of returns are from internal displacement. While security in many parts of the country is improving and new displacements are decreasing, many IDPs are still unable or unwilling to return home and are in need of basic humanitarian assistance such as food and non-food items. Many IDPs are also facing the threat of eviction. 512 IDP families in Rusafa district of Baghdad have been informed that they must vacate their residences. Other groups of IDP families are reportedly facing eviction in Babylon, Basrah, Kirkuk, Missan, and Qadissiya governorates. The drought is a major concern for IDPs and host communities alike, and has even caused some new displacement such as that in Anbar, where families who depend on green grazing land must move to find better conditions."

Voice of America (VOA), 12 October 2008:

"The International Organization for Migration says the Iraqi government is allocating more than \$200 million to persuade internally displaced people and refugees to return home. the IOM says the government is enacting a variety of legal and practical measures to encourage these returns. Lisa Schlein reports for VOA from IOM headquarters in Geneva. The Iraqi government has had

some successes in getting people to return to the homes they fled during the peak years of the conflict. In a new report, the International Organization for Migration says more than 100,000 people have returned to Baghdad since the program went into effect on September first. And it says nearly 72,000 more people have returned to other places in the country, mostly to the provinces of Anbar and Diyala. The report finds very few refugees have returned. It says 92 percent of those going back to their homes of origin are people who have been displaced within the country. IOM spokesman Jean-Philippe Chauzy, tells VOA these returns are encouraging, but remain insignificant given the huge scale of the displacement problem. "You still have 2.8 million people internally displaced within Iraq, including 1.6 million people who were displaced following the bombing of the Samara mosque in February 2006," said Chauzy. "So the scale of the challenge is absolutely stupendous." In addition, more than two million people have fled Iraq and sought asylum in other countries, mainly in Syria and Jordan. According to the IOM report, very few of these refugees have taken up the government's offer to return. Chauzy says disputes over property rights remain the single biggest impediment. He says the government has enacted a number of measures aimed at resolving this problem. Chauzy says a law passed last month requires that all squatters vacate houses they unlawfully occupy in Baghdad or face prosecution. But he says to help matters, the government is offering financial inducements to persuade squatters to leave. "That includes a financial payment of about \$250 per month for six months to help people find alternative housing options. It also includes return facilitation centers, mostly in Baghdad. And, these centers are there to assist returnees to register to receive a return grant of about \$900 and to resolve those property issues that many returnees will face when they return to their home," said Chauzy. IOM notes security in many parts of the country is improving and new displacements are decreasing. But it says millions of internally displaced people are still unable or unwilling to return home."

International Organization for Migration (IOM), August 2008:

"Monitors report most disputes over property ownership are in Baghdad. Resettlement and property occupation is currently being handled on an ad hoc basis by various authorities in Baghdad. In the event of future large-scale returns, a comprehensive policy and mechanism will be essential to prevent renewed tensions. The Iraqi government is now implementing a number of measures aimed at encouraging the return of IDPs and refugees to their homes, such as payments of 1.8 million Iraqi dinars (approx. US\$1,500) to families who are illegally occupying the houses of other displaced families and who want to return to their homes, so that they may rent their own homes lawfully. IDPs or refugees willing to return to their houses will be paid one million Iraqi dinars (about \$840). Iraqi refugees in neighbouring countries are being offered free airline tickets, free shipment of their belongings, and compensation for damaged property. Many returnees have found their houses destroyed or damaged, placing them in need of shelter assistance. Furthermore, of IDPs assessed nationwide by IOM, 32% report that the property they left behind has been occupied by others. Even among *returnees* assessed, 6% still report that their property is occupied. Monitors report most disputes over property ownership are in Baghdad. Resettlement and property occupation is currently being handled on an ad hoc basis by various authorities in Baghdad. In the event of future large-scale returns, a comprehensive policy and mechanism will be essential to prevent renewed tensions. [...] 32% of assessed families reported that they had registered and received the Government of Iraq's financial grant for returnees. Of the total assessed, another 68% said that they had registered for the grant but had not yet received it. The remaining 46% had not registered for the grant. Nearly all families who actually received the grant are in Baghdad, Babylon and Anbar."

NGO Coordination Committee in Iraq (NCCI), 2008:

"Currently, most actors in the humanitarian community are acutely concerned about the apparent manipulation for political purposes of the question of returns of IDPs and refugees to their homes in Iraq. Humanitarian agencies face a dilemma. On one hand, there are grounds for facilitating a return as soon as safely possible in order to avoid the entrenchment of displacement, and the institutionalization of divisions that ratify inter-communal cleansing. However, there is a strong

sense that a return is being rushed before conditions conducive to safety and dignity have been established, and suspicions that data on existing returns has been inflated and propagandized by Iraqi and international authorities in order to illustrate that Iraq is safer and more stable than it actually is. There is an acute risk that as pressures mount on the humanitarian community to prematurely begin facilitating returns, returns will be neither safe nor sustainable. It is far from certain whether the localized and relative reduction in violence of the last few months will persist. The potential for further bloodshed from rushed and premature returns is high and there is a strong likelihood that those who are convinced to return prematurely will be returning to secondary displacement. This is not a new dilemma for humanitarian agencies working in conflict situations, and particularly for UNHCR. At the heart of protection mandates is the imperative to safeguard the vulnerable regardless of extraneous political agendas."

Refugees International (RI), 30 October 2008:

"In the past year, the Government of Iraq has started providing incentives for Iraqis to return. The best solution for most refugees would indeed be to return home when the conditions to ensure their safety and dignity are met. According to the UN Refugee Agency, this is not yet the case, as many parts of Iraq are still too insecure to allow for safe returns and essential services are not widely accessible to the civilian population. According to a UNHCR survey, 70% of those who returned to Iraq became internally displaced. The priority for the Government of Iraq should not be organizing transportation back to Iraq or offering financial assistance when returns are not sustainable. Rather, the Government should provide assistance to the displaced in the region, while working to establish the right conditions for returning Iraqi refugees, including security, essential services and effective means to resolve property disputes."

Refugees International (RI), 31 July 2008:

"Refugees and IDPs know from their contact with friends and family that it is not safe to go home. Violence is still widespread, and basic services such as access to healthcare, clean water or adequate shelter are unavailable in many parts of the country. As the situation in Iraq evolves, it is essential the US Government, the Government of Iraq and other countries in the region do not encourage returns to Iraq until conditions are met for a voluntary, safe and sustainable return process. A rushed premature return process would have disastrous consequences both for the displaced and for the stability of Iraq. The U.S. Government should work with host countries in the region to encourage them to keep providing protection for Iraqi refugees until they can voluntarily return home in safety and dignity. Efforts should be made to develop conditions which permit greater self-reliance activities and education and training programs for the refugees. The U.S. Government should also advocate for the legal right for Iraqis to work within host countries. The U.S. and the Government of Iraq should encourage the UN and NGOs to conduct regular assessments missions throughout Iraq to evaluate the conditions for returns in different areas of the country, as security varies greatly from one province to the next. Particular attention needs to be given to access to adequate shelter, essential services, and livelihoods as well as the specific needs of vulnerable or minority groups. The USG and the GoI should support the conclusions that the UN and NGOs reach on whether conditions for returns are met. The U.S. should provide financial and technical support for the GoI to track the property rights of IDPs who were either forcibly expelled or who fled because of the violence and develop a system to resolve disputes. Human rights abuses should also be monitored and documented to prepare for post-war justice and reconciliations mechanisms. The U.S. Government should provide financial and technical expertise to the Government of Iraq and the UN in the design of a transitional justice framework coherent with the Iraqi judicial system that will be implemented when conditions permit. The U.S. Government should encourage the Government of Iraq to support the establishment and implementation of an assistance plan for returnees, once the UN deems that conditions are met for safe and sustainable returns. The U.S. Government should provide financial support to the UN and NGOs providing assistance to returnees."

Arab American and Chaldean Council Catholic Relief Services Center for Victims of Torture
Chaldean Federation of America EPIC: Promoting a Free & Secure Iraq Episcopal Church
Kurdish Human Rights Watch Hebrew Immigrant Aid Society Human Rights First Interfaith
Refugee and Immigration Ministries/Illinois International Medical Corps International Rescue
Committee The List Project to Resettle Iraqi Allies Lutheran Immigration & Refugee Service
Mandaean Associations Union Refugees International Relief International Save the Children U.S.
Committee for Refugees & Immigrants U.S. Conference of Catholic Bishops/Migration & Refugee
Service Women's Commission for Refugee Women & Children World Relief

UNHCR, 23 September 2008:

"On September 8-9 in Paris, High Commissioner António Guterres told a Conference on Asylum convened by the French EU Presidency that UNHCR hopes that the majority of Iraqi refugees will be able to return home in safety once the necessary conditions of stability and security are established. However, these conditions are not yet present. The security environment remains precarious, particularly in Central and Southern Iraq, where issues relating to shelter and property restitution or compensation have yet to be solved. In addition, access by returnees to public distribution systems and other services remains limited. UNHCR therefore appeals to asylum countries to extend protection to Iraqis who originate from Central and Southern Iraq and to refrain from forcible returns to these regions at this time."

IRIN, 6 February 2008:

"The Iraqi Ministry of Displacement and Migration is planning to build a yet undetermined number of residential compounds nationwide to ease the problems faced by over two million internally displaced persons (IDPs), a ministry official said on 6 February. "We are still at the drawing-board phase for residential compounds to be built over 50,000 square metres, scattered nationwide," said Ali Shaalan, head of the Ministry's Planning Directorate. "We expect to complete this phase in about a month. So far we've managed to buy land in only seven provinces, including Missan, Karbala, Basra and Thi Qar; we are planning to buy more land nationwide," Shaalan told IRIN, adding that the precise number of compounds to be built would be determined as soon as it was clear how much funding and land would be available. According to Shaalan, each residential compound will have 50 buildings and each building will have six apartments – allowing some 300 IDP families per compound the opportunity to purchase a unit. Schools, markets, mosques, electricity and water plants, and other facilities will be built in each compound. "We are planning that the IDP families pay in instalments for maybe 20-30 years," said Shaalan who estimated the cost of each compound at about US\$12 million. So far, it has not been determined which displaced families will have priority in occupying these compounds but Shaalan said his Ministry's plan "will not change the demography of any province".

Van der Auweraert, Peter, 7 September 2007:

"Neither the IPCC nor the CRRPD emerged as part of a larger transitional justice effort addressing the question of redress for *all* victims of the former regime. They were not the outcome of an inclusive political debate or reflection on how Iraqi society could best come to terms with a legacy of brutal and violent oppression or what was needed to facilitate a transition from decades of authoritarian rule to a democratic society living under the rule of law. Not addressing post-conflict property restitution from a wider transitional justice perspective raises at least three problematic issues. The first issue has to do with the fact that an isolated approach is more likely to lead to an unequal treatment of victims. In the concrete example of Iraq, it is difficult to defend that until the present day systematic redress is only available to victims of land and property rights violation and not, for example, to the widows of those who died at the hands of Saddam Hussein's regime, the former political prisoners or the people who lost property other than real estate.¹ Equally, there is little to say for the fact that the CRRPD Law focuses only on the forcible taking of property but provides no redress for property destruction which e.g. in the Kirkuk area affected many. In the context of Iraq it is thus legitimate to ask whether failing to address the question of redress holistically has not lead to the exclusion of the most vulnerable

groups from the reparations process. Beyond the basic justice and equity issues such a situation raises, it also casts doubt on the ability of an isolated process like the CRRPD to contribute to durable reconciliation and peace building in Iraq. The ongoing conflict makes this point when it comes to Iraq itself probably academic. Any good the CRRPD could have done in this respect is largely offset by the brutal violence and strife the country witnesses every day. But it does carry a warning for other post-conflict situations to avoid looking at property restitution in isolation."

UNSC; 7 March 2007

"On 6 February 2007, the High Commission on the Implementation of Article 140, regarding the status of Kirkuk, announced Orders Nos. 3 and 4, which were intended to commence the process of relocating Arab families that moved to Kirkuk during the "Arabization" campaign of Saddam Hussein. The Orders, which require approval by the executive branch, offer compensation to relocated families. The announcement by the Commission was followed by demonstrations in Kirkuk by opponents of the measure, who claimed it was tantamount to forced displacement. In response, Commissioners clarified that the relocation and compensation mechanisms were strictly voluntary and that 7,000 families had reportedly registered for relocation. It is not clear how the cases handled by the High Commission will relate to those processed by the Commission for Resolution of Real Property Disputes, which is responsible for settling claims by people who lost property as a result of actions of the Ba'athist regime during the period from 1968 to April 2003. More than 50,000 Kirkuk-related claims have been filed with the Commission for Resolution of Real Property Disputes to date."

IRIN, 21 February 2007:

"It is also not clear how many Iraqis trust the government's assurances that they will be protected against militias and sectarian death squads if they do move back. In a press conference on Wednesday, Brigadier Qassim al-Mousawi, spokesman for Operation Imposing Law, said that about 650 families had returned to their homes in Baghdad since the new crackdown began a week ago."

UNHCR, 9 January 2007:

"We noted in the latest advisory that since the previous one in September 2005, the security situation in Iraq has deteriorated. Today's overall security situation is marked by extreme violence in Central Iraq and significant instability in the south of the country. Sectarian tensions sharply increased after the Samarra bombing last February, leading to targeted killings of thousands of Iraqis and ongoing massive displacement. The advisory notes that the overall situation can be characterised as one of generalised violence and one in which massive, targeted violations of human rights are prevalent. In light of this dire security situation, the UNHCR advisory to governments recommends that Iraqi asylum seekers from Southern and Central Iraq should be favourably considered as refugees under the 1951 Refugee Convention given the high prevalence of serious human rights violations. And it notes that if an Iraqi from Southern or Central Iraq is not recognised under Convention grounds, a complementary form of protection be granted. It says no Iraqi from Southern or Central Iraq should be forcibly returned to Iraq until such time as there is substantial improvement in the security and human rights situation in the country. UNHCR also advises against returns to the three Northern Governorates of persons not originating from there and recommends that asylum claims of Iraqis originating from the north be assessed based on 1951 refugee Convention criteria, taking into account the individual merits of the claim."

UNSC, 7 March 2007

"On 26 December 2006, the Appeals Chamber of the Iraqi High Tribunal unanimously dismissed the appeals of Saddam Hussein and his two co-defendants, Barzan al-Tikriti and Awad al-Bandar, upholding all three death sentences. The Appeals Chamber returned the case of a fourth defendant, Taha Yassin Ramadan, to the Iraqi High Tribunal for re-sentencing, recommending a

harsher sentence than the term of life imprisonment that he had received. The Special Rapporteur on the independence of judges and lawyers, in a statement made on 27 December 2006, expressed concern at the failure of the panel to address the grave shortcomings in the trial. He urged the Government not to carry out the death sentences following an allegedly procedurally flawed legal process. The United Nations High Commissioner for Human Rights, Louise Arbour, called for restraint by the Iraqi authorities and reiterated her concerns about the appeal process and fairness of the original trial. Saddam Hussein, however, was executed on 30 December 2006. The other two co-defendants were executed on 15 January 2007. On 8 February 2007, the United Nations High Commissioner for Human Rights filed a legal brief as *amicus curiae* with the Iraqi High Tribunal, arguing against the imposition of capital punishment in the case of Taha Yassin Ramadan. In her submission, the High Commissioner argued that "The egregious violations of human rights that took place in Iraq over decades have been well documented by the United Nations human rights system ... There is no doubt that the horrors of the past must be effectively addressed and their perpetrators must be brought to justice ... At the same time, experience and history in very different contexts around the world have shown the absolute indispensability of the integrity of such proceedings, both in fact and perception, for true understanding of the past, for national reconciliation and for the construction of a just, durable, and sustainable society founded on the rule of law and respect for human rights of both victims and defendants."

UNHCR, 18 December 2006:

"Iraqi asylum-seekers from Southern and Central Iraq should be favourably considered as refugees under the 1951 Convention relating to the Status of Refugees, given the high prevalence of serious human rights violations related to the grounds in the 1951 Convention. Where appropriate, the applicability of the exclusion criteria in the 1951 Convention should be considered. Asylum claims should not be rejected merely on the basis of an internal flight alternative.⁷ Whether the individual is a refugee under the 1951 Convention or flees generalised violence, there is no internal flight alternative within the Southern or Central regions, given the reach of both state and non-state agents of persecution, the lack of national protection and grave insecurity and human rights violations prevailing in those parts. An individual, who relocates to an area from where she/he does not originate, would likely face serious ongoing difficulties given the lack of protection provided by local authorities, communities or tribes, ethno-religious hostilities and the lack of access to basic services. Furthermore, it would not be reasonable to expect an Iraqi from the Southern or Central regions to relocate to the three Northern Governorates of Sulaymaniyah, Erbil and Dohuk. Apart from the requirement to have a sponsor in order to be admitted and/or to legally reside in the Region of Kurdistan, individuals from the Southern or Central part of Iraq face serious obstacles in obtaining physical protection and in gaining access to accommodation, employment and other services. Internal relocation for individuals from Southern or Central Iraq is therefore not likely to address threats of persecution or security risks, nor would it permit a relatively normal life without undue hardship. Additionally, since 2005, there are increasing signs of public impatience with the administration and its ability to deliver improvements to public service provision, particularly as regards water, fuel and electricity. This has led to a number of protests throughout the Kurdistan Region. Additional pressure is placed on basic services by the large numbers of IDPs in the three Northern Governorates and absorption capacities are therefore severely limited.⁸ Furthermore, support by both the local communities as well as the local authorities, may be dwindling in light of the increase of IDPs to the Region."

IRIN, 12 September 2006

"Nearly three months have passed since Iraqi Prime Minister Nouri al-Maliki took office and outlined his reconciliation plan to end sectarian violence in the country. The plan's main objective is to decrease violence in the country by offering political participation to sectarian militant groups. "The advantage that the reconciliation plan is offering locals is to make them feel more secure to return to their homes and in the mean time show that security is improving countrywide, and that soon sectarian violence will be a thing of the past," said Mehdi al-Haydari, spokesperson for the

Ministry of Migration and Displacement. However, analysts believe that the security situation has not really improved. [...] However, two Baghdad neighbourhoods demonstrate that the sectarian problem is far from over. No displaced people have returned to the Sadr City district of the capital, a shi'ite stronghold, and to the Baghdad Ijrida area, a Sunni stronghold."

UNHCR, October 2005, p.126-127

"The Kurdish Peshmerga has emerged as a main ally of the MNF in the fight against the mainly Sunni Arab insurgents in the region, and in the 30 January 2005 elections the Kurdish alliance won a majority in Kirkuk's Provincial Council. Fears are high among the Turkmen and Arab populations that the Kurdish parties' ultimate aim is for Kirkuk to be attached to their area of control within a federal Iraqi state. As Turkey claims to protect the Turkmen minority in Kirkuk and fears that Kurdish control over the city's oil wealth would give an economic foundation to an independent Kurdish state, the fight over Kirkuk has a dimension going beyond Iraq's borders.[...] Article 58 TAL outlines a process for reversing the consequences of the former regime's policies, including the return of the displaced, the recovery of their homes and properties, the resettlement and compensation of those that were newly introduced to the disputed areas and remedying the change of administrative boundaries done for political reasons. Only once these steps have been undertaken and a census has been held will the final status of the disputed territories, including Kirkuk, be determined, 'taking into account the will of the people of those territories'.[...] The Kurdish parties interpret this to mean that a provincial referendum will be held to decide the status of Kirkuk while Turkmen and Arabs accuse the Kurds of pushing Kurds to settle in Kirkuk to secure a majority in any popular referendum.[...] The US Government holds the position that how to undo the former regime's unjust policies in and around Kirkuk is an internal issue to be decided by Iraqis, and supports the implementation of Article 58 TAL.[...] The highly contentious issue regarding Arab families settled by the former regime in Northern Iraq under its *Arabization* policy, particularly in Kirkuk where the majority of such families remained following the 2003 war, has not yet been resolved. Article 58(2) TAL provides that in accordance with Article 10 of the IPCC Statute 'newly introduced' persons may either be resettled, receive compensation, new land in their place of origin or compensation for the cost of moving to these areas. While it appears that many 'secondary displaced' Arabs do not wish to return to the areas of origin, in particular those originating from the South,[...] there are strong calls from the Kurdish side not to allow them to remain in the formerly 'Arabized' areas, particularly in view of a popular referendum, as this would endorse the injustice of *Arabization*.[...] This issue, which continues to be a source of tension, must be part of a national policy on displacement and durable solutions that the relevant Iraqi authorities, including the MoDM, must address.....

"The Statute of the Iraqi Special Tribunal was adopted by the IGC on 10 December 2003.[...] It was established under Iraqi national law to try Iraqi nationals or residents accused of genocide, crimes against humanity, war crimes or other serious crimes committed between 17 July 1968 (the date the Ba'ath Party seized power) and 1 May 2003 (the date the Coalition declared that major combat operations in Iraq were over). The TAL reaffirmed the Tribunal's Statute.[...] Charges against senior members of the former regime are likely to include atrocities committed against several ethnic groups within Iraq, such as the violent repression of Kurds during the 1988 Anfal campaign. Crimes committed against the Shiites will likely also come to the fore, such as the violent repression that followed the revolt against the former regime in 1991 in which villages were shelled and destroyed and ancient marshes drained, resulting in thousands of deaths, forced displacements and the destruction of communities of Marsh Arabs.[...] The IST has declared that it will adhere to standards of international law in compliance with the sovereign law of Iraq. Still, international human rights law groups[...] oppose the IST, questioning whether its statute fully complies with international fair trial standards and recent developments in international criminal law. These groups also worry about the availability of the death penalty, the lack of explicit guarantees against using confessions extracted under torture, a lack of experience in managing complex criminal trials and trials involving serious crimes and the non-admission of international experts to serve as prosecutors. On 17 July 2005, former President Saddam

Hussein, his brother-in-law Barzan Ibrahim Al- Hassan, former Vice-President Taha Yassin Ramadan and former top judge Awad Badar Al- Bender were formally charged with the killings of Shiite Muslims in Dujail, the town in which the former President survived an assassination attempt in 1982. The Iraqi Government said it plans to bring only 12 charges against the former leader out of a possible 500 of which he is accused, saying it would be 'more than enough to give him the maximum sentence applicable'. The Dujail case is said to have been chosen as it is one in which the investigation has progressed the most and Saddam Hussein's personal culpability may be easier to prove in a smaller case, thereby leading to a swift conviction and possible death sentence. Critics say that such swift justice would mean that the larger-scale crimes would never be properly dealt with in court. The first trial is expected to start as early as September 2005.[...]"

HRW, 14 March 2003

"While the ethnic Kurds, Turkmen, and Assyrians displaced by the 'Arabization' policies have a right to return to their homes in the Kirkuk region and receive compensation for their losses, it is important that this right is implemented in a manner that does not cause additional human rights abuses. The Iraqi government has brought ethnic Arab populations—some also against their will, others with financial incentives—to Kirkuk to advance its 'Arabization' drive, and many of those ethnic Arabs now live in the former homes of displaced persons. The right to repossess private property must be balanced against any rights these secondary occupiers may have in domestic or international law, using impartial and efficient procedural safeguards."

RI, 25 August 2003

"While the horrific policy of Arabization destroyed families, property, and livelihoods while displacing hundreds of thousands of people, reversing this process, by returning those initially displaced to their original homes, will result in many of the same consequences. Although the return of Kurds to their homes of origin to reclaim their land has been largely non-violent, several deaths have resulted from this process. The more significant issue, however, is the loss of investments made by Arabs who were resettled on Kurdish property. In several instances, Arabs formally purchased lands from departing Kurds. Even those who were provided with these confiscated lands free of charge by the former regime built new homes and improved agricultural land over the many years that they inhabited these lands. These investments are now being lost as Arabs leave these resettled areas and return to their original homes. Moreover, in many cases, Arabs returning to their villages of origin face the problem of insufficient farmland to support their families and a lack of capital with which to rebuild their lives."

Click here for the [full Advisory](#) (December 2006)

See also [Guidelines on the Treatment of Iraqi Asylum Seekers and Refugees in Europe](#) issued by the European Council on Refugees and Exiles (March 2006)

See also "[Advisory Regarding the Return of Iraqis](#)", UNHCR, September 2005

Alternative Durable Solutions? Intensions, Reasons and Locations 2006-2009

- There has been significant steps since 2008 undertaken by the Iraqi government promoting return as a durable solution. There has been however concern shared by many humanitarian professionals that because returns are regarded as a barometer of security conditions in Iraq, political pressures for return are increasing without addressing key needs to ensure sustainability of returns and at expense of other alternative durable solutions (FIC, December 2008; Brookings-Bern, June 2009). In 2009, return, is only the preferred option of an estimated 52 per cent of IDPs; 25% wish to integrate in their place of displacement; and 20 per wish to resettle elsewhere (IOM, November 2009). Integration and resettlement however have not been promoted at national or governorate level. The intentions of IDPs appear systematic over time. In February 2007, according to IOM's monitoring 45% of IDPs plan on returning to their place of origin once security improves. 25% plan on integrating into their

- current location, and 28% plan to resettle in a third location (IOM, 2 February 2007)
- Intentions for alternative durable solutions are largely defined by security concerns, access to protection, livelihoods, access to basic services and property. To exclusion of questions of return, there is limited information on the motivations of those IDPs who indicate their preference to locally integrate in their current location or resettle in a third location. The question of alternative durable solutions other than return has largely been unaddressed with few surveys on the matter addressing the question of integration or resettlement. The surveys available have indicated that Iraqi IDPs' intended settlement decisions vary significantly by governorate. In Baghdad, the majority of IDPs were displaced from elsewhere within the governorate, and the majority (80 percent) intends to return to their place of origin. The figure is reversed in Basra where 84 percent intend to locally integrate in their current location. In Ninewa, IDPs are both from outside and within the
- governorate, and the settlement intentions vary: 60 percent intend to return to their place of origin, 32 percent plan to resettle in a third location, and 7 percent intend to locally integrate in their current location (Brookings-Bern, June 2009)
- From available information clearly large percentage do not wish to return, yet these intentions have not been examined in detail. Notwithstanding the evidence that there need be alternative durable solutions made available to IDPs, anecdotal information suggests that there persists to be significant constraints for IDPs to make voluntary decisions due to lack of information available to make an informed decision, clear political bias in favour of return and reversal of sectarian segregation and combination of push factors from places of displacement and pull factors for return in a highly fragile political and sectarian environment (Brookings/Bern, June 2009).
- The evidence of difficulties facing IDPs who wish to integrate or resettle have not been examined. Anecdotal evidence suggests however that IDPs remaining in places of displacement face difficulties to integrate due to their formal status as IDPs, restricting their access to livelihood opportunities and services which would otherwise be available were they not IDPs. For these non-integration or resettlement entails protracted displacement with limited opportunities for improvement
- Experts have underlined that in order to provide alternative durable solutions an integrated development approach need be adopted that would seek to address the needs and constraints of those displaced seeking to return, resettle or integrate, and the host community (Brookings-Bern, June 2009 and February 2010). An integrated approach would require addressing displaced, returnees, and host community providing assistance in a way that provides for alternative choices and best supports reconciliation. Experts have underlined the necessity for national reconciliation as step towards durable solutions.
- As of late 2009, an estimated 10% of post 2006 IDPs had returned according to UN and IOM monitoring. .Of estimated 350,000 post 2006 returnees as of late 2009, the majority (58%) returned to Baghdad but also Diyala and Anbar. These figures are at odds with MoDM registration figures: MoDM has faced backlog in registration process though this may be attributable to number of other factors such as returnees not wishing to be registered as returnee for fear of consequences or possible loss of services as displaced, lacking appropriate documentation to qualify as returnee, or lack of awareness.
- Overall 65% returned from within the same governorate, 21% from other governorates and 14% from outside Iraq. (Only 36% of all post 2006 displaced were displaced within their own governorate though they account for the majority of returnees). Return is a combination of both "pull" and "push" factors – 43% assessed cited improved security as the main reason for deciding to return to their places of origin, while 33% said that a combination of improved security and harsh conditions in displacement (high rent, lack of employment opportunities, poor shelter and lack of basic services).
- For the vast majority of IDPs wishing to return general insecurity and the lack of livelihoods, rising costs of rent, and lack of adequate housing and services continue to hinder returns (IOM November 2009; UNHCR November 2009). For IDPs with intentions to integrate or

- In 2008, 43% of assessed returnees cited 'improved security in area of origin' as their reason for returning while only 14% cited the difficult conditions in the displacement alone as reason for return. The majority of returnees (65%) have returned from within the same governorate, while 24% have returned from a different governorate, and 11% have returned from abroad, mostly from Jordan and Turkey. Results of survey indicated in 2008 that "go and see visits" are happening, which is also confirmed by anecdotal reports. (UNHCR, 2 February 2008; IDP Working Group, 27 June 2008)

Brookings/Bern, June 2009

Less than 10 percent of IDPs have returned to their communities so far. Of surveyed returnees, the majority cited improved security and access to property/land as the key factors motivating their decision (93 percent and 68 percent respectively). Additional reasons for return are related to factors that contribute to improvements in standard of living, as represented by access to assistance, difficult economic conditions in displacement, and access to government incentives (these factors combined were cited by 83 percent of surveyed IDP returnees).⁹⁵ This indicates that people may choose to return if they have assurances of safety, access to their assets, as well as to means of improving their standard of living. In surveys, the majority of IDPs identify feeling targeted on grounds of their sect/religion.⁹⁶ This suggests that their sense of security is tied to fear of harassment by state or non-state actors. These factors are not exhaustive, as additional issues not included on returnee surveys may influence IDP settlement decisions. Anecdotal evidence from field staff in Iraq suggests that access to employment and rule of law also drive IDPs' settlement decisions. Access to employment is linked to improved standard of living, while rule of law is tied to improved sense of security by preventing impunity around violence and crime. Data are lacking on the motivations of those IDPs who indicate their preference to locally integrate in their current location or resettle in a third location. Anecdotal evidence from field staff in Iraq suggests that similar factors drive these settlement decisions. Given that the relevance of the Framework criteria are in part defined by which factors drive settlement decisions, the following criteria are most relevant in Iraq:

For security: Formerly displaced persons do not suffer attacks, harassment, intimidation, persecution or any other form of punitive action upon return to their home communities or settlement in other locations

For rule of law: Formerly displaced persons have full and non-discriminatory access to national and sub-national protection mechanisms, including police and courts

For property: Formerly displaced persons have access to mechanisms for property restitution or compensation regardless of whether they return or settle in the area where they found refuge or a new location

For standard of living: Formerly displaced persons enjoy without discrimination an adequate standard of living, including shelter, health care, food, water and other means of survival

Framework criteria are also deemed relevant in a country context if they identify ways in which IDPs experience unique vulnerabilities linked to their displacement status. Analysis of these vulnerabilities should focus on their underlying cause, linking these to the criteria outlined in the Framework. Secondary to the priority criteria identified above, analysis of Iraq data indicates that there are also other gaps within a range of criteria. Within the 'informed decision' criterion, IDP surveys indicate that important gaps exist in access to information. For example, a proportion of IDPs – varying by governorate – lack information on the status of the property they left behind. Such gaps are especially of concern for property and any other factor that IDPs cite as key to informing their settlement decision. For the 'lack of coercion' criterion, one concern is that while

evictions are necessary to facilitate IDP and refugee returns, they risk causing secondary displacement. Furthermore, they contribute to increasing vulnerability amongst a cohort of IDPs who are already among the most vulnerable – especially when compensatory stipends are not distributed. The ‘role of government’ criterion will be significantly impacted by how the budget shortfall for 2009 (linked with a drop in world oil price) affects social programs for displaced people, as well as the capacity and resources for MoDM. For example, due to overall cuts in the Iraqi budget, MoDM reduced its budget for IDP housing projects from 40 million IQD (US\$43.2 million) to 8 million IQD (US\$6.85 million).⁹⁷ MoDM is a small ministry intended to coordinate rather than implement; it is not yet officially recognized under Iraqi law, and its position within government remains in flux. Budget cuts further limit its ability to effectively coordinate with line ministries and deliver assistance. Within the ‘documentation’ criterion, access to public services, including PDS, are denied to IDPs who do not have the necessary documentation. Barriers to obtaining this documentation include inability to access place of origin due to security concerns and bureaucratic obstacles in navigating the official system to reissue missing documents or transfer the PDS card. Within the ‘standard of living’ criterion, comparison between IDPs and non-IDPs indicates that displacement status is not necessarily correlated with vulnerability. Assessment is necessary to identify the most vulnerable within both IDP and non-IDP cohorts. Data suggest that shelter and education are areas where IDPs experience particular difficulties linked to their displacement.

For the ‘political participation’ criterion, IDPs without the necessary documentation and who are unable to travel to their governorate of origin cannot vote. This risks marginalizing IDP concerns and impacting the degree to which they feel they belong to their place of origin. Serious attention is required to identify and address these barriers to ensure that IDPs are able to participate in public affairs, especially in the run-up to the next national election. As prefaced in the introductory discussion, displacement is not a legal status, but rather a descriptive term, often indicating vulnerability. This is borne out in the experience of applying the Framework to Iraq. An IDP does not stop being an IDP from one day to the next, as a refugee can; resolving displacement is not a legal question but a process of addressing vulnerabilities and restoring human rights. The criteria listed in the Framework are not intended to prescribe a uniform response, nor do all criteria have to be addressed at once. Rather the sequence in which the criteria are addressed - and which criteria are prioritized - will vary according to country context.

The Framework approaches displacement through a human rights lens, and many of the criteria it enumerates capture rights that IDPs may be denied due to the experience of displacement. However the Framework is based on an assumption that IDPs enjoy the freedom to make a voluntary settlement decision. In the Iraqi context, this assumption is hard to justify for several reasons. First, there is a political bias in favor of returns and a reversal of the sectarian segregation of neighborhoods that has occurred primarily since 2006. Second, incentives can be used coercively to influence settlement decisions through a combination of push and pull factors; the poorest segment of the IDP population is most vulnerable to this. Third, in Iraq’s recent history there has not been the political norm of participation or the culture of individual rights that may influence the ability of IDPs to make and enact a voluntary settlement decision. From the human rights perspective of the Framework, a government cannot seek to coerce IDP settlement decisions. Support must be given to IDPs to enact their choice, regardless of whether they want to return, locally integrate or resettle. Thus a second and related assumption of the Framework is that a government will prioritize the human rights of IDPs above political imperatives. The Framework places responsibility for meeting IDP needs first and foremost on the national government. The dual approach in the criteria of both processes and conditions demonstrates that the government must establish processes in order to reach conditions. When and where the government lacks the capacity to do so, it may request local actors or the international community to provide capacity building and resources to meet the gaps.

According to IOM's interviewed population, return in Iraq is a combination of both "pull" and "push" factors. Many of the returnees assessed by IOM (43%) cited improved security as the main reason for deciding to return to their places of origin, while 33% said that a combination of improved security and harsh conditions in displacement brought them home. Such difficulties can include high rent, lack of employment opportunities, poor shelter and lack of basic services. However, this varies by governorate and district. For example, 56% of interviewed returnees in Ninewa cited only difficulties in displacement as the reason for returning home, while 85% of assessed families in Diyala returned because of improved security. Below are reasons for return by assessed returnee families.

According to IOM assessments of post-2006 IDP families, approximately 53% of interviewed returnee families wish to return to their place of origin, while 25% wish to integrate into their places of displacement, and 20% want to resettle in a third location.

Fienstein International Centre, December 2008

There is a concern shared by many humanitarian professionals that because returns are regarded as a barometer of security conditions in Iraq, political pressures for return are increasing. However, as in many other settings, including Afghanistan, the Balkans and the Caucasus⁸, premature returns pose extreme risks to those who are enticed or decide of their own volition to go home before their neighbors are ready to receive them. Data is not gathered on returnees who are re-victimized and forced into secondary displacement in Iraq, but several gruesome attacks on returnee families underscore the dilemma facing humanitarian agencies. On one hand, there are grounds for facilitating a return as soon as safely possible in order to avoid the entrenchment of displacement and the institutionalization of the demographic divisions that ratify inter-communal cleansing. On the other hand, there is an acute risk that as pressures mount on the humanitarian community to begin facilitating returns, returns will be neither safe nor sustainable. It is far from certain whether the localized and relative reduction in violence of the recent past will persist. The potential for further bloodshed from rushed returns is high, and there is a strong likelihood that those who are convinced to return prematurely may again be displaced. Accordingly, there will be a continuing need for humanitarian agencies, particularly the UN High Commission for Refugees (UNHCR), to resist political pressures and assess conditions in places of potential return from a purely humanitarian perspective.

International Organization for Migration (IOM), August 2008:

"The majority (65%) of returnees have returned from within the same governorate, while 24% have returned from a different governorate, and 11% have returned from abroad, mostly from Jordan and Turkey. The breakdown of returnee place of displacement by governorate is as follows:

A closer look at returnee dynamics reveals certain trends across the governorates. 100% of returnees to Ninewa, 70% to Baghdad, 57% to Babylon, 56% to Diyala, and 51% to Anbar have all returned from elsewhere within the same governorate. In addition, many returnees are returning from displacement in Baghdad, including 94% of returnees to Missan, 30% of returnees to Babylon, 20% of returnees to Basrah, and 20% of returnees to Diyala. 80% of Basrah

returnees have come home from Ninewa. There have also been notable returnee movements from abroad. 67% of Muthanna returnees, 45% of Kirkuk returnees, and 32% of Anbar returnees have come back from Syria. 55% of Kirkuk returnees have returned from Turkey, while 28% of Muthanna returnees have come home from Jordan and 5% from Turkey."

International Organization for Migration (IOM), August 2008:

"Overall, 43% of assessed returnees cited 'improved security in area of origin' as their reason for returning. This is particularly notable in Anbar and Babylon governorates (73% each) as well as Diyala (85%). Another 37% of returnees in Iraq cited the combination of improved security and difficult conditions in displacement as primary reasons for return, particularly in Missan, which reported 86%. Only 14% cited the difficult conditions in displacement alone as their reason for return, although this figure was significantly higher in Ninewa.

[In] some areas an increase in stability has encouraged return. For example, due to improved security and reconciliation efforts beginning in May, there was a wave of return in Awarej area of Rasheed sub-district in Baghdad. The total number of returnees in this area has now passed 1,000 families. Increased stability was also the main reason cited in Anbar (72%), Babylon (74%) and Diyala (85%). In addition, after the calming of the recent violence in Sadr City, Baghdad, the majority of families displaced during this episode have returned. According to MoDM's estimation, about 4,073 IDP families displaced by recent military operations have returned to Sadr City due to this improvement in security."

Iraqi Ministry of Displacement and Migration (MoDM), September 2008:

IDP Working Group, 27 June 2008:

"Returns continue at a slow pace throughout the country, with most returns concentrated in Baghdad (the place of origin for most displaced internally or abroad). While people may be returning to areas where their religious/ethnic group is now in the majority and they are accepted state and/or non-state actors in control of the area, they are not always returning to their former communities or homes. Furthermore, despite improved security in those areas - targeted attacks, generalized violence and criminality continue to occur. In some neighbourhoods and cities, returnees cannot return to their originally home because it was destroyed or is occupied.

- According to IOM returnee monitoring, through end of May 2008 a total of 285 locations with 16,451 returnee families (estimated 98,706 individuals) were identified. Of them 2,581 (16%) are returnee from abroad and the other 13,870 (84%) are returnee families from internal displacement in Iraq.

- According to NGO reports, most IDPs and returnees receive information about their former neighborhoods from friends and relatives.

Some returnees are therefore experiencing continued or secondary displacement in areas of return."

United Nations High Commissioner for Refugees (UNHCR), February 2008:

"Results of the surveys suggest that "go and see visits" are happening, which is also confirmed by anecdotal reports. The large majority of returnees to the Governorate of Diyala, a large percentage of the returnees to the Governorate of Salah Al-Din and 20% of the returnees to the

Governorate of Baghdad, both from within and from outside Iraq, consisted of individuals, possibly returning to assess the conditions on the ground before bringing their families.

·In some cases, returnees found the situation suitable for return, i.e. their property was accessible, the security situation was considered sufficiently stable and the group in control of the area accepted the returnees (either because they are of the same sect or because there have been political agreements among combating groups).

·In other cases, the family members on a "go-and-see visit" found the situation not suitable for return, e.g. because their property was occupied or seriously damaged (even burned) and/or because the area was not sufficiently safe. In these cases, the individuals were forced to go back to the place of displacement or to move their families into secondary displacement. "

IOM, 2 February 2007:

"According to IOM's monitoring, 45% of IDPs plan on returning to their place of origin. The majority of these people are waiting for security to improve. However, as time passes and the IDPs become more integrated at their location of displacement, this percentage will likely decrease. The highest numbers of people who wish to return were displaced to the central governorates of Ninewa (95%), Diyala (75%), Baghdad (72%), and Anbar (62%). Surprisingly, Najaf in the south also has a high percentage of displaced who wish to return to their former residences (90%). Twenty-five percent plan on integrating into their current location. This response occurs most often in the more stable governorates of the south, such as Basrah (91%), Kerbala (82%), and Missan (76%). These governorates also tend to have the most intact infrastructure and employment opportunities. Twenty-eight percent plan to resettle in a third location."

Return in 2003-2009 - Emphasis on return with 10% of post 2006 displaced returning in 2009

- There has been particular emphasis on the monitoring of return as durable solution as opposed to other durable solutions. This also corresponds to the government's approach to put forward policies that have encouraged return of both IDPs and refugees. In 2009, the number of returnees would increase, though the rate of return would not change from that of 2008. As of November 2009, UNHCR and IOM estimate that around 350,000 IDPs, displaced after the upsurge of sectarian violence in 2006 had returned. In the past two years an additional 60,000 refugees have repatriated (IOM, November 2009; UNHCR, December 2009).
- This corresponds to 20% of post 2006 displaced and less than 10% of total IDP population. The vast majority have returned to Baghdad (60 per cent) and Diyala (30 per cent) (UNHCR, November 2009). MoDM has registered only 44,105 families (240,000) returnees to date including nearly 700 families from abroad (MoDM, December 2009). Returnees are principally of Arab Shia, and Arab Sunni sectarian origin. In 2009, returnees included more minorities than previous year though in very minimal percentages. In contrast in 2008, only a few Christian returnees had been identified, but no other minority had been reported to be among the returnees. (IDP Working Group, 23 June 2008)
- Returnee monitoring undertaken by MoDM, IOM and UNHCR at present focuses mainly on post-2006 displacement. According to IOM and MoDM, a returnee is someone who has returned to his original neighborhood or home. If someone has returned to the same city or village but is not able to return to his/her original neighborhood or home, the person is considered secondarily displaced, not a returnee. (IOM, August 2008)
- At the end of 2008, the number of returnees was estimated at 172,000 returnees majority of whom returned to Baghdad, and less than half to Anbar and Diyala. Countrywide, in 2008 92% of returns are from internal displacement. (IOM, October 2008) This continued to be the

- Following the end of the sectarian civil war 2006-2007, peak month of return was reported in March 2007. In between 2003 to 2005, UNHCR based on IOM and UNOPs monitoring data estimated that over 470,000 IDPs and 300,000 refugees had returned. The largest IDP return movements are reported to have taken place to central Iraq and northern Iraq. (UNHCR, April 2006). It is unclear to what extent these returnees were identified as sustainable returns and deducted from the pre 2003 figure or were subsequently displaced.
- The majority of these returnees taking place in 2003-2004 consisted of spontaneous IDP return movements after the fall of the previous regime. Significant returns involved formerly displaced Kurds returning to Kirkuk and surrounding areas, which involved subsequent displacement of non-Kurdish communities. (UNHCR 12 August 2004; UNHCR, April 2006) Returnees were reported living in tents, or inhabiting abandoned buildings and warehouses. In other instances returnees have caused tension leading to further displacement. (UNSC, 5 December 2003)
- Throughout 2003-2009, there have been anecdotal reports of secondary displacement due to loss of property, ongoing security, occupied housing livelihood or infrastructure, property disputes, the presence of mines and UXO in their return areas, ethnic or religious make up of the return area. Though secondary displacement is reported, the extent to which this is the case is not clearly known. It remains clear that those who are able to return have faced severe problems successfully reintegrating.
- In 2009, anecdotal evidence suggested that secondary displacement was still occurring. It remains unclear whether the returnee figures provided by UNHCR and IOM at the end of 2009 correspond to the aforementioned definition and the extent to which there has been secondary displacement. In 2008, 16-17% of returnees were not able to return to their original homes due to house being destroyed or occupied, (IDP Working Group, 27 June 2008; IOM, August 2008) In late 2007, returnee assessments indicated that 68% of surveyed IDP returnees went back to their place of origin, while others might have been displaced again to a different neighbourhood or governorate. (UNHCR, February 2008)
- UNHCR figures provided below (November 2009) of returnees during the span of 2003 to 2007 should be read with caution in this respect as of these returnees it is unclear how many were subsequently displaced. In 2004-2005, UNHCR returnee monitoring in 2004 and 2005 indicated that 80 per cent of returnees in the North and 35 per cent of returnees in the south ended up internally displaced upon return. Returnees faced obstacles in access to adequate housing, identification, property and freedom of movement and were not able to return for services, lack of ownership of property prior to displacement, or in fear renewed military operations and violence

IOM, November 2009

As illustrated in the graph below, while monthly return figures vary according to the assessed population, return is slowly increasing. However, total identified return figures remain small relative to the IDP and refugee populations of Iraq.

.... Post-2006 displacement in Iraq has been defined by the sectarian threats and violence at its roots. All ethnic and sectarian groups in the country have been affected by displacement to a certain extent. This can also be seen in the flows of assessed returning families.

UNHCR, November 2009

Fienstein International Centre, December 2008

There is a concern shared by many humanitarian professionals that because returns are regarded as a barometer of security conditions in Iraq, political pressures for return are increasing. However, as in many other settings, including Afghanistan, the Balkans and the Caucasus⁸, premature returns pose extreme risks to those who are enticed or decide of their own volition to go home before their neighbors are ready to receive them. Data is not gathered on returnees who are re-victimized and forced into secondary displacement in Iraq, but several gruesome attacks on returnee families underscore the dilemma facing humanitarian agencies. On one hand, there are grounds for facilitating a return as soon as safely possible in order to avoid the entrenchment of displacement and the institutionalization of the demographic divisions that ratify inter-communal cleansing. On the other hand, there is an acute risk that as pressures mount on the humanitarian community to begin facilitating returns, returns will be neither safe nor sustainable. It is far from certain whether the localized and relative reduction in violence of the recent past will persist. The potential for further bloodshed from rushed returns is high, and there is a strong likelihood that those who are convinced to return prematurely may again be displaced. Accordingly, there will be a continuing need for humanitarian agencies, particularly the UN High Commission for Refugees (UNHCR), to resist political pressures and assess conditions in places of potential return from a purely humanitarian perspective.

United Nations Assistance Mission for Iraq (UNAMI), 6 November 2008

35. The improving security situation and a lack of access to basic services and assistance in areas of displacement have prompted increasing numbers of internally displaced persons to return in June (12,000), July (18,000) and August (36,000). Refugee returns are believed to be much lower at around 1,000 to 2,000 per month. Some 50 per cent of the returnee totals represent families returning to Baghdad. Housing in many cases has been problematic, as many of the returnees' houses have been occupied by others or damaged. To encourage the return of displaced people, on 2 August the Government issued a directive to evict illegal occupants from Baghdad on private homes and government buildings across the country. Eviction started in 2 September following a one-month notice period and is applicable countrywide. The Government has established a reconciliation council to arbitrate property disputes and is offering a one-off payment of 1 million dinars (around \$830) to each returning family. In addition, the Government is committed to paying 1.8 million dinars (equivalent to six months' rent) to displaced persons evicted from houses in Baghdad and unable to return to their original homes. Unfortunately, the Government continues to face challenges in the actual implementation of the assistance programme. The United Nations and its partners continue to advocate with Iraqi authorities on the protection of the internally displaced and those facing secondary displacement from the implementation of eviction orders, as well as the simplification of registration and compensation procedures.

International Organization for Migration (IOM), October 2008

As of 21 September, and based on available information from MoDM's returnee registration, IOM and MoDM monitors' field visits, UNHCR rapid assessments (snapshot), and other sources, IOM has identified 16,782 returnee families (100,692 individuals) to Baghdad. An additional 11,986 returnee families have been identified in the rest of the country, 8,691 of whom are in Anbar and Diyala. Countrywide, 92% of returns are from internal displacement.

International Organization for Migration (IOM), August 2008

Returnee information is gathered from the Returnee Support Center at MoDM, field visits conducted by IOM and MoDM monitors, UNHCR Rapid assessments (snapshot), and other sources. IOM has identified 325 locations comprising 16,848 returnee¹ families (101,088 persons) in Iraq.² The majority of these returnees (9,699 families, or 58%) have returned to Baghdad. A significant proportion (3,000 families) has also been identified in Anbar. 14,119 of returnees assessed (84%) have returned from internal displacement, while the remaining 2,729 families (16%) have returned from abroad. [...] The majority (74%) of assessed returnees were displaced in 2006 and returned in 2007. As the chart below demonstrates, the peak month for displacement of the assessed population was December 2006, and the peak month for return was March 2007.

The majority of assessed returnees were displaced for less than a year, with almost 46% having been displaced for only 3 to 6 months:

[Returning Monitoring and Needs Assessments: Tabulation Report](#), Iraqi Ministry of Displacement and Migration (MoDM), September 2008

UN Secretary General (UNSG), 28 July 2008

39. According to UNHCR and IOM, refugees and internally displaced persons continue to return to their places of origin at a steady rate of some 10,000 persons a month, and there has been no major incidence of displacement during the last quarter.

International Organization for Migration (IOM), August 2008

United Nations High Commissioner for Refugees (UNHCR), February 2008

Most of the surveyed returnees are Arabs, reflecting the mostly Arab make-up of the post-February 2006 displaced population. Some Kurds and Faili Kurds returned to the Governorates of Diyala, Ninewa, Wassit and Diwaniya from internal as well as external displacement. Both Shi'ite and Sunni Muslims have been found to be returning. Sunnis are returning to predominantly Sunni areas in the Governorates of Al-Anbar, Salah Al- Din, Ninewa and Diyala as well as to Sunni-controlled areas of Baghdad. Based on the surveys, around 270 Sunni IDP families have returned to predominantly Shi'ite Basrah Governorate, which used to have a significant Sunni minority population. These families could not return to their place of origin and are currently living in secondary displacement. Kurdish families that returned to Diwaniya Governorate are of Sunni origin. Najaf is also hosting a small number of Sunni returnees. It is worth noting that no Sunnis have been found returning to Diyala Governorate from external displacement. Shi'ites are returning to predominantly Shi'ite areas of Southern Iraq (Governorates of Babylon, Basrah,

Kerbala, Missan, Najaf and Thi-Qar) and Shi'ite-controlled areas of Central Iraq in the Governorates of Diyala, Baghdad and Salah Al-Din. Shi'ite Kurds were also found to be returning to the Districts of Khanaqin and Muqdadiya in Diyala Governorate. No members of minority groups such as Christians, Sabaeen-Mandaeans and Yazidis have been reported among the returnees.

UNHCR, April 2006, p.4

UNHCR, October 2005, p.29

"UNHCR returnee monitoring confirmed that many refugees end up in internal displacement upon their return to Iraq because of a lack of housing, livelihood or infrastructure, property disputes, the presence of mines and UXO in their return areas and other reasons. Those who are able to return have faced severe problems successfully reintegrating; contributing factors include, *inter alia*, a lack of employment possibilities, difficulties obtaining documentation and accessing education due to the non-recognition of school certificates earned abroad, a lack of adequate language skills in Arabic or Kurdish, inadequate health care facilities and the high cost of essential medicines."

UNHCR 12 August 2004

"Since the collapse of the former Government, significant spontaneous return movements of IDPs has taken place to Governorates bordering Kurdish autonomous areas, formerly controlled by the Central Government; primarily to Tameem Kirkuk. In April 2003, as the Peshmerga forces traveled south to Ninewa and Tameem with Coalition forces, non-Kurdish IDPs who had settled in the three northern governorates of Sulemaniyah, Dohuk and Erbil faced harassment including the destruction of their housing, thus forcing them to move south in order to reclaim property and land. With intervention in May/June 2003 from various actors including UNHCR, this overt push ceased. However, various push factors continue to be exerted on the most vulnerable to return to areas south of the green line. It is estimated that 26,000 individuals have returned to Kirkuk city and the surrounding areas but are unable to return to their villages due to property disputes or destroyed shelter."

UNSC, 5 December 2003

"Over the summer and autumn a large proportion of Iraq's hundreds of thousands of internally displaced persons have tried to move back to their original homes. Some are now living in tents pitched next to their destroyed houses, while others have managed to move back into their former homes, in some cases causing tension and further displacement."

Reuters, 3 February 2004

"Only days after Saddam's government was overthrown last April, Kurdish families began leaving their exile in the far north of Iraq and moving south towards Kirkuk, spurred on in part by their wealthy and astute political leaders. The goal was to reassume influence in and around the city, which lies south of the northern no-fly zone enforced by the United States and Britain after the first Gulf war, meaning that during 12 years of sanctions, Saddam still held sway. Turkmen, less well-off and well-prepared than their Kurdish rivals, moved more slowly, but in recent months have also begun returning in numbers. At the same time, many Arabs who were moved into the region have fled, fearing retribution. Around the periphery of the city there are now tented encampments of Turkmen and Kurds desperate to return. They have been waiting for months, and some are losing patience, but most expect that they will soon find a home in Kirkuk or nearby."

Obstacles to return and resettlement

Challenges to Durable Solutions in 2003-2009 (2009)

- Lack of livelihoods and adequate basic services, damaged or occupied property, continual insecurity, and ethnic/religious make of return areas are amongst leading obstacles to return of refugees and IDPs. There persist concerns as to whether return is sustainable in light of needs of returnees. There are also particular dynamics in durable solutions which vary from one category of displaced to another whether as result of sectarian civilian war, military counter insurgency operations, or draughts and floods.
- Alternative durable solutions other than return however are not currently encouraged by Iraqi government, or governorates and little information on advocacy by humanitarian agencies including United Nations on this issue. There is little analysis on difficulties or obstacles facing IDPs wishing to integrate or resettle elsewhere. (IDMC interview January 2010) The main difficulty rests in terms of registration at local governorate level and the fact that such a policy has not been advocated at national level.
- Anecdotal evidence suggests that many IDPs intending to remain in places of displacement are unable to integrate due to formal status as IDP, restricting their access to livelihood opportunities and services which would otherwise be available were they not IDPs (IDMC interview January 2010). For these non-integration or resettlement entails protracted displacement with limited opportunities for improvement due to status as IDP.
- In 2009, continuing insecurity, lack of livelihoods and basic services, destroyed or occupied housing and the ethnic or religious make-up of return areas are among the leading obstacles to the return of refugees and IDPs. Though there have been improvements in security within areas of return, targeted attacks, criminality and generalised violence continue (IDP WG, November 2008; UNHCR December 2009). Return particularly in areas affected by sectarian conflict which forms the majority of IDPs is also very closely linked to efforts at reconciliation which remain meager.
- Though there have only been a few incidents reported in 2008 where returnee families are specifically targeted when these occur they have a powerful deterrent impact on other IDPs considering return. Among assessed returnees in November 2009, 61 per cent reported feeling safe, whereas 38 per cent reported not always feeling safe (IOM, November 2009) compared to 40 per cent in 2008 (IOM, August 2008).
- Over 34 per cent of returnees find their homes damaged or completely destroyed, and 50 per cent with movable property lost or stolen (IOM, November 2009). It remains unclear how many find their residency occupied though UNHCR monitoring reports reveal this is far from negligible. Of returnee households assessed, only 45 per cent have a member employed, while unemployment among female heads of households remains far higher (IOM, November 2009). Approximately 54 per cent of returnees report irregular access to PDS rations, while 36 per cent report no access to health care (IOM, November 2009).
- In 2008, sustainability of returns were also highly questioned due to protection concerns linked to continued insecurity and fragility of international presence and local arrangements, lack of livelihood, property issues linked to secondary occupancy of returnee properties, destroyed or damaged property and limited access to basic services such as PDS rations or water and electricity (IDP Working Group, 23 June, 2008 IRIN, 8 September 2008 IOM, August 2008).
- Of assessed returnees, 59% said that they consistently felt safe in their place of return, 40% said that they sometimes felt safe citing general insecurity, continued insurgent activity in their area, sectarian violence and detention campaigns. 85% had returned to their original house and the remaining 15% are living in their original neighbourhood. (IOM, August 2008) 97% reported having a current PDS card, but 38% of returnees reported regular access to

UNHCR, December 2009

The majority of the IDPs stated that some families have lost rights to or cannot access property in their former neighborhood, 56% of refugee returnees and 15% of IDP returnees have lost rights to or cannot access their former property as it was occupied by insurgents or militia (40% of all cases) by resident community, by other IDPs and returnees, sold under duress, destroyed or damaged, fear of religious, ethnic or political harassment.Many families informed having lost their rights to or no longer access their property in their former neighbourhood/current locations. On property issues, results show that most do not approach bodies traditionally involved in dealing with such claims (judiciary or the police). The main reasons were fear of religious or ethnic harassment, unusable or damaged, restricted movement and occupation by other IDPs or returnees. Female headed households experienced challenges in recovering rented and owned properties.

IOM, November 2009

Former IDPs return home to reclaim, rebuild, and maintain their homes and other property, however many are in need of assistance to help them realize these goals. The graph of assessed returnees nationwide (right) indicates that 34% returned to find their homes in bad condition. ...Property restitution remains a complex issue for returnees. There are currently several governmental and nongovernmental initiatives to assist in this process, but it is still a serious concern....

Of all IOM-assessed returnee families, 45% have at least one family member employed. Approximately one third (34%) of assessed returnee heads of household reported that they are able to work but cannot find employment. Access to potable water is a major concern of IDPs, returnees, and host community members alike because of the wider implications for health and disease prevention associated with clean water....

While 60% of the assessed returnee families mentioned fuel being accessible in their area, 59% of them said that it was too expensive for them to buy. Overall, IOM-assessed returnee families listed fuel as one of the highest priority needs. ...

98% of returnee families reported having a valid Public Distribution System (PDS) card. 40% of assessed returnees reported regular access to PDS rations, while 54% said they have intermittent access, and 6% said they have no access at all....

Health care is reported as one of three top priority needs among IOM-assessed returnee families. Among the returnee families which IOM has assessed, 63% have access to health care. Lack of access is most often due to distance to the nearest health care center or lack of equipment and staff in the available medical facilities. Over half (52%) of returnee families assessed in Baghdad say that they do not have access to health care. This is also a serious issue for 34% of returnees in Diyala and 86% of returnee families in Kirkuk....

Of returnee families assessed, 63% reported having school-age children and that their children were attending. A further 6% report that only some children attend, and 7% report that none of their children attend school.

When families return from both internal displacement and displacement abroad, they require varying types of assistance to rebuild their homes and their lives. The most frequently reported priority needs among returnees are food (61%), fuel (44%), and health (42%). Non-food household items (NFIs), water, and legal help also rank high for returnee families, followed by hygiene and sanitation. Housing is also a serious concern. Some returnee families have destroyed or damaged homes, while others do not have sufficient income to afford their monthly rent.

International Organization for Migration (IOM), August 2008

Of assessed returnees, 59% said that they consistently felt safe in their place of return, 40% said that they sometimes felt safe, and 1% said that they do not feel safe at all. Those who did not always feel safe cited general insecurity, continued insurgent activity in their area, and detention campaigns. Military operations, general insecurity, and occupied houses are the primary reasons preventing Iraqis from returning home. Many of those who have returned remain cautious and even fearful of recurring violence. [...] In addition, sectarian violence is still a concern for some returnees. [...] However, in some areas an increase in stability has encouraged return. [...] Many returnees have found their houses destroyed or damaged, placing them in need of shelter assistance. [...] Of returnees assessed, 85% had returned to their original house and the remaining 15% are living in their original neighbourhood but not their original house.⁶ 89% of returnees in Ninewa are living in their own house, albeit in poor condition.

Approximately one third (30%) of heads of household nationwide are able to work, but not working. This was highest in Diyala (46%), Ninewa (43%) and Baghdad (47.5%). 36% of returnees in Missan reported not being able to work, significantly higher than the Iraqi average (23%). [...] Families with unemployed female heads of household, pregnant women, chronically ill or disabled members, or young children are often especially vulnerable in a humanitarian crisis. Widowed heads of household in particular have great difficulty finding employment in the Iraqi context, due to religious and cultural practices. [...] Of assessed households, 84% are headed by married men, 49% of whom are currently unemployed. Female-headed households number 12% and the number of unemployed in this group rises to 98%. [...] Another 4% of families are headed by widowed men, 72% of whom are unemployed. 16% of assessed returnee families reported that they had family members who were chronically ill or disabled. [...] The majority of returnees lost their original jobs and livelihoods during displacement, while others have been forced out of work by direct threats from insurgents and armed groups. Those from agricultural areas return to find their farms neglected and therefore cannot immediately support themselves. [...] Returnees to urban areas such as Sadr City are frequently coming home to find their livelihoods (such as shops and offices) destroyed during military operations.

Access to potable water is a major concern of IDPs, returnees, and host community members alike because of the wider implications for health and disease prevention associated with clean water. 84.4% of those assessed have access to municipal water networks, although this does not guarantee that the water is potable. [...] While 58% of the assessed mentioned fuel being accessible in their area, 62% of them said that it was too expensive for them to buy. Families returning to their place of origin often are unable to fully access their ration of gas and oil, and are frequently forced to collect wood for cooking and heating. [...] 97% of assessed returnees

reported having a current PDS card. 38% of returnees reported regular access to PDS rations, 59% said they have intermittent access, and 3% said they have no access at all. [...] Of assessed returnee families, only 51% have access to health care. When asked why they could not access health care, returnees cited lack of health facilities and a shortage of medications. Access to health care is worst in the centre[...] . Of returnees assessed there, 52% said that they cannot access medications they need. [...] Many returnee children have had their education interrupted. Reasons include sectarian discrimination, displacement to a location too remote to attend school, or being forced to work to help support their family. In some locations, monitors have noted that returning families have left their children in an area of displacement to continue studying for the remainder of the year. Military operations have destroyed the only schools in Al A'aboss, Al Hamdeet and Momniya. Studies have since been suspended. Similarly, Al Saheroon neighbourhood's only primary school was destroyed by insurgents. [...] Returnees are not content with government efforts to rebuild schools or provide incentives for teaching staff to return to communities.

IDP Working Group, 27 June 2008

41% of assessed returnees report regular access to Public Distribution System (PDS) food rations, while 57% report that they do not have regular access to food rations and 2% report no access. 51% report no access to health care. Only 58% report that they feel safe "all of the time". In addition, of those assessed, few returnees (especially women) became employed once they returned²:

There are concerns regarding the sustainability of the improved security situation, given that it depends on international security presence (the Multinational Forces in Iraq - [MNF-I]) and local arrangements (Awakening Councils, Mehdi Army ceasefire). In addition, access and provision of services remains limited and an increase of the population could strain the absorption capacity of the areas of return. After several months of violence, destruction of infrastructure and displacement due to military operations in Sadr City, Baghdad is experiencing relative stability and increased returns. Iraqi Security Forces (ISF) report that the majority of the city is under their control, although intermittent clashes continue. The area experiences partial closures as ISF continue to conduct search campaigns in buildings for weapons and insurgents. According to MoDM's estimation, about 4,073 IDP families have returned to Sadr City, due to improvement in security.²² All IDP families (about 35 in total) have left the camp at Al-Sha'ab Stadium, set up by MoDM to host families fleeing Sadr City.....

Some returnees are therefore experiencing continued or secondary displacement in areas of return, mainly due to: 1. Loss of property (as is the case for some refugee returnees in their governorate of origin, e.g. in Kerbala and Thi-Qar Governorates); 2. Ongoing insecurity; 3. Occupied housing; 4. Ethnic/religious make-up of the return area (e.g. the returnees belong to a minority in their place of origin, e.g. in some areas of Baghdad). Of those who are able to return to their original neighborhood, not all are able to return to their original home. 16% were able to return to their original neighborhood but not to their original home:

United Nations High Commissioner for Refugees (UNHCR), February 2008

Returnees from both internal and external displacement face similar difficulties and needs when returning to the same area. Food, NFIs, shelter, access to legal aid and employment opportunities seem to be common needs in many governorates, while water and access to basic services is a problem especially in the South. Many have complained about damaged housing and stolen furniture and are asking for financial and in-kind support from the Government. The general understanding is that one million ID is not enough to allow the returnees to meet their immediate needs (e.g., repair or reconstruction of houses) and that in many cases the payment of the grant has been delayed. Respondents anecdotally indicated that families returning to Baghdad suffer from limited access to basic services, have difficulties transferring their PDS cards and accessing life-essential rations, and lack documentation. Shelter was overwhelmingly presented as the priority need of families which returned to the Districts of Adhamiyah and Al-Rusafa in Baghdad.

Primary sources doubt that a peaceful *chain return* to occupied houses would be possible: IDPs occupying houses in safe areas will not leave these houses before return to their houses in the place of origin becomes safe. Leaders from all sides expressed that they are willing to let returnees access their homes provided that the other side does the same. Reports highlight that IDPs, whose houses are currently rented out by armed groups to other IDPs as a source of income, will face serious difficulties to return to their homes. Some interviews revealed that in places like Missan and Kerbala destroyed property is among the reasons for secondary displacement. An NGO reported that 115 IDP families, which returned to the District of Al-Muqdadiya in Diyala Governorate, found their homes completely destroyed. [Al-Muqdadiya District is predominantly Shi'ite and surrounded by Sunni districts. It was attacked by insurgents and largely destroyed. Reports are available upon request and previous authorization of the relevant NGOs that reserves the rights on the reports.] Reports of the destruction of a Chechen village in Diyala Governorate have also been received. Reports and primary sources indicate that many houses were destroyed and that houses left behind were usually occupied by IDPs of another sect. According to primary sources and various reports, a part of the IDPs are not able to return because their property has been occupied by other IDPs. [Houses of Sunnis forced to flee from Shi'ite-controlled areas are managed and rented to Shi'ite IDPs by the Sadrist offices (*Makatib Al-Sayyid Al-Shahid*). According to other reports, IDPs are also occupying houses left behind by Shi'ite families who fled Sunni-controlled areas.] Surveyed families reported of having been threatened by the current occupiers when checking on their properties. Given that their area is controlled by members of the opposite sect, they do not have the possibility to request the authorities to help recover their homes. There have been reports of returnees being escorted by the Iraqi Security Forces (ISF). When they found their homes occupied by a third party, the ISF allegedly threatened the occupiers to leave. However, no further information is currently available.

....

Families who were not able to successfully return and who, consequently, either ended up in secondary displacement or were forced to return into internal displacement, were not easily accessible to the local authorities. Among those, there are families who faced security incidents or whose property was occupied/destroyed.

·68% of surveyed IDP returnees went back to their place of origin, while others might have been displaced again to a different neighbourhood or governorate.

·The Governorates of Dahuk, Kerbala, Baghdad and Basrah appear to have been particularly affected by "returns" into displacement: All families surveyed in the Governorates of Dahuk and Kerbala had moved into secondary displacement as they could not return to their place of origin. The same is true for 28% of the families surveyed in the Governorate of Basrah and 10% of the families surveyed in the Governorate of Baghdad.

·In addition, some families in Missan Governorate have not returned to their place of origin in other governorates due to ongoing insecurity and presence of armed groups. They are living with relatives.

·Some families surveyed the Governorate of Kerbala cited security concerns to return to their places of origin in Baghdad, saying that they had heard of returnees having been killed in their area. Most families in Kerbala said they were unable to return to their place of origin because the groups who had previously threatened them were still in control of their areas. In addition, they mentioned that the general security situation had not yet completely stabilized. Some of these families are now living with relatives in the Governorate of Kerbala.

·Of the surveyed families who had returned to Baghdad in December 2007, only 37% had returned to their home. The main reasons for not returning were damaged houses and the unstable security situation.

Families, who returned to their place of origin but were subsequently displaced again, were not captured by this survey. UNHCR became aware of these cases only through narrative accounts and therefore does not have a clear number. The fact that some returnees were displaced again was also confirmed by other sources.

·67% of surveyed returnees from abroad seem to have returned to their place of origin. However, many families, in particular in the Governorates of Missan and Kerbala, may not have come back to their place of origin and may again move.

·Local authorities indicated that for 67% of the surveyed returnees they assume they will stay in their current location, while in 31% of the cases they are not able to indicate whether they will stay in their current location or not. In 1% of the surveyed cases, they clearly stated that the families will move again.

Brookings Institution, August 2008

As mentioned above, one of the greatest obstacles to the return of refugees and especially IDPs is the issue of property restitution or compensation. Two steps could be taken now in Iraq which would make the return process smoother in the future: the government should stress that all rights to property will be upheld and that those who are currently displaced will not be penalized for being away from their homes. Secondly, the government should implement a mechanism for displaced Iraqis to register their properties now in the expectation of having them returned in the future. The government has already developed a way for Iraqis to do this, but it needs to be publicized in the Iraqi displaced communities and the government needs to make sure that it is implemented in practice. In the best-case scenario, conditions in Iraq will continue to improve, but it will take time before conditions are safe and stable enough for the refugees to return on a large scale. If they are forced to return too soon—because they are desperate and destitute in exile—they could overwhelm fragile Iraqi capacity.

IRIN, 8 September 2008

But on 3 September, the Migration and Displacement Ministry released [its first report](#) on the number of illegally occupied houses - 3,491 in nine provinces. These properties included houses, flats, land and other buildings. Baghdad had the highest number of squatter-occupied properties at 2,369, followed by Diyala with 963 and Anbar with 63. The rest were in the provinces of Salaheddin, Ta'mim, Babil, Kut, Nineveh and Muthana. On 20 July, the Iraqi government announced measures to encourage the more than four million IDPs and refugees to return to their homes, including a one-month grace period for squatters to vacate properties. The measures also included a one-off payment of 1.8 million Iraqi dinars (about US\$1,500) to squatters to help them rent other properties. In addition, it was stipulated that IDPs willing to return to their houses would be paid one million dinars (\$840). Each internally displaced family that has not yet returned home qualifies for a monthly payment of 150,000 dinars (\$145) for three months while still displaced. Other measures include [helping Iraqi refugees in neighbouring countries](#) with free air transport if they choose to return home, the free shipment of their belongings and compensation for damaged property.

Examples of challenges in providing durable solutions to diverse forms of displacement

- There are several examples that can illustrate the challenges posed by different sources of displacement. Two such illustrations are the question of return in military operations of MNF and Iraqi forces, and that of the marshlands in the south. Military operations of MNF-I and Iraqi military have reported on many occasions to use excessive force, and entail significant damage to civilian and public properties. Durable solutions have been associated with reconstruction efforts by MNF-I and Iraqi military following such military operations. These have been criticised as slow and insufficient in light of levels of destruction in number of localities.
- Fallujah was the scene of fierce battles between US forces and insurgents between November 2004 and January 2005. Nearly 80 percent of the population fled Fallujah. A return assessment undertaken by UNHCR (February 2005) indicated that 95 per cent of the displaced Fallujah population would like to return if international forces present in the city left. In May 2005, 80% of IDPs were estimated to have returned. Reconstruction process however was heavily criticised for being slow. The level of destruction having entailed that basic facilities, including sewage systems, adequate electricity and water supplies had all but collapsed. Security measures including the presence of UXOs had continued affect on the population including a negative impact on the local economy.
- The UN has raised concerns about the conditions imposed on IDPs wishing to return to Fallujah where IDPs have been subjected to curfews, restrictions on movement, and intensive ID and search systems – such measure do not promote returns in safety and dignity (UNAMI, November 2005) Lack of information about planned assistance and compensation, the presence of unexploded mines, fears for personal security and lack of shelter were also replicated in other cities in which such operations have taken place. There have also several concerns raised on how alleged violations of human rights and humanitarian law during operations have been addressed, if at all.
- In 1990s the draining of the Marsh Arab lands would lead to estimated displacement of 100,000 to 200,000. The former regimes actions has significantly altered the Marsh Arabs' ability to continue their traditional way of life and farming activities which were based on the cultivation of the marshes. Large areas were drained in the 1990s of the previous regime - turning some sections to near desert. Following the invasion, the Iraqi authorities began to revive the marshes through rediverting the flow of the Euphrates and Tigris. In 2006 as result of various initiatives, it is said that 60% of the marshes has been revived. (BBC, 26 June 2006)
- In 2008, it was reported that 80% of the Marsh lands had been reflooded however by late 2009 consecutive draught in the last few years and continuous delays in reconstruction plans has reversed progress made. Many of the Marsh Arabshave returned to a life that is incredibly hard. Basic services are still lacking in what is one of the poorest parts of the country. Though there were several initiatives to address the concerns of the Marsh Arabs including various conferences on the matter (CPA, 22 March 2004) the situation of returnees remains unclear.
- In August 2004, 40,000 persons are estimated to be returning displaced persons in Southern Iraq (mostly Marsh Arabs). This had increased to 80,000 persons estimated to have returned in 2008 however access to livelihoods remains limited. The region has been affected by insecurity and poor infrastructure and limited access to services in the marshlands area, and slow reconstruction work. The need to ensure complete documentation such as identity documents, marriage and birth certificates, and rations cards is a primary concern for this group
- Before being displaced Marsh Arabs relied on fishing, agriculture, livestock and crafts. Marsh Arabs now farming say they lack supplies, support and the poor quality of the land reduces their output and therefore living standards. Women particularly affected by displacement with

- The current situation in marshlands remains precarious having witnessed a significant deterioration in the last year. In 2006-2008 about 75-80 percent of the marshlands had been restored, with the rest left for agricultural use and oil exploration. However, at present according to observers only 10-12 percent of the current marshland area is covered by water due to low water levels of the Tigris and Euphrates and below than average rainfall.(IRIN, November 2009) The continuing draught, absence of agreements with neighbouring countries on water sharing, and poor quality of water due to pollutants are among the main challenges faced. The post 2003 reconstruction and return efforts of IDPs have also been characterised as hasty and unplanned, with lack of attention to help returnees diversify their livelihoods (IRIN, November 2009)
- In July 2009, Iraqi government issued the Diyala Return and Integration Initiative under Prime Ministerial Order 54 which aimed at establishing the confictions for return of an estimated 95,000 IDPs who fled the governorate in 2006-2007. Diyala, one of Iraq's most effected governorates, and suffered a great deal during the peak of violence in 2006 and 2007. Approximately 300,000 people fled their homes, with the vast majority internally displaced within the province. Diyala is second after Baghdad in terms of number of displaced and has the highest rate after Baghdad of returnees since 2007. The Diyala initiative is the first integrated initiative of its kind providing assistance to returnees as well as rehabilitation and reconstruction efforts to over 400 villages most affected by the conflict. The program has been launched as of Setpember 2009 and involves various UN agencies and Ministries of the Iraqi government.
- There are several significant challenges that face the Diyala initiative not least of which is cointinuuing levels of insecurity and difficulties associated with national reconciliation, in addition to ensuring that UN and government institutions are able to effectively address the various difficulties in coordinating assistance, providing reconstrution and reconciliation in still difficult enviornment. In late 2009, anactedotal evidence reflected on returnees lacking assistance and limited reconstruction efforts undertaken to date. It remains however too early to assess the progress of Diyala initiative. The iniative represents a significant step at addressing return and reintegration in a comprehensive and integrated manner in partnership with UN development and humanitarian agencies.
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UNAMI, February 2010

On 16 July 2009, the Diyala Return and Integration Initiative, aimed at establishing the conditions for the return of over 95,000 displaced Iraqis who fled violence inflicted on them in 2006-2007, was launched by the Government of Iraq (GoI) and the United Nations (UN) under Order Number 54 issued by the Iraqi Prime Minister's Office. Diyala, one of Iraq's eighteen most effected governorates, suffered a great deal during the peak of violence in 2006 and 2007, when the country was at the brink of civil war. Approximately 300,000 people fled their homes, with the vast majority internally displaced within the province. They endured neglect since potential reconstruction efforts by both the Iraqi government and by the international community were limited due to the security challenges of 2006-07. Diyala is second after Baghdad in terms of the number of Internally Displaced Persons (IDPs).

In light of the critical situation facing the province, the GoI and the UN made a commitment to improve the circumstances for IDPs who choose to return. Thus the Diyala Return and Integration Initiative began to establish the conditions that allowed, up to date, for the return and re-integration of over 95,000 Iraqis, into more than 400

villages and communities around Ba'quba. These villages were completely destroyed and therefore in need of rehabilitation. Following an overall assessment of the situation, including improving shelter, infrastructure, services, livelihood and job creation for the targeted beneficiaries in these villages, both the GoI and the UN started putting into action the first inter-agency field project, which will be utilized as a model for future initiatives.

Several UN agencies have begun providing interventions within their line of expertise. For example, the United Nations International Children Emergency Fund (UNICEF) provides support to the education sector through improving classrooms and providing furniture, teaching materials, and qualified teachers. It will also provide water and sanitation support rehabilitation and education awareness campaigns. The International Organization of Migration (IOM) supports the livelihood of returnees through income-generation activities, community-based vocational training, and empowerment projects. They also provide domestic, non-food items to returnees. The World Food Programme (WFP), on the other hand, is supporting a school feeding programme for Diyala's children and implementing a cash-for-work programme to provide income for vulnerable families. UN-HABITAT will assist in land and property administration, economic recovery and long-term housing plans. The World Health Organization (WHO) is supporting capacity building for the Ministry of Health facilities in Diyala and providing medical supplies and advice. Under the Diyala Initiative, the GoI announced the creation of 16,870 government jobs across all sectors, in a province struck by a high unemployment predicament. 42,000 applications were received. Consequently, a lottery was conducted in Ba'quba, under the auspices of the Governor of the Diyala, Dr. Abdel Nasser Mahdawi, to distribute the 16,870 jobs amongst the lucky winners.

UNHCR, April 2006, p.10

"During the course of 2004 and 2005, UNHCR's priority under return and reintegration gradually shifted to IDPs, without which return of Iraqi refugees from abroad is not sustainable in the returnee concentration areas. Assistance to returnees includes shelter and infrastructure, income-generation activities, legal aid and information. However, return is complicated by scarce resources and prevailing instability. Returnee monitoring data obtained during 2004 and 2005 showed that about 80% of the returnees in northern Iraq and more than 35% in the lower south of Iraq ended up internally displaced upon return, mainly due to the lack of housing, employment and social services."

Brookings-Berm, March 2006

The final section of the Principles deals with protection during return or resettlement and reintegration. This section is particularly pertinent to the Marsh Arabs situation today. It provides that the displaced have the right to freely choose between voluntarily return to their home areas in safety and dignity or to remain where they presently are or to resettle in another part of the country. Whichever option they choose, the national authorities are expected to facilitate their reintegration. In the case of return, this means creating an environment that will prove sustainable for those returning, whether they are internally displaced persons or refugees. In particular, this means: Security, both for inhabitants of the area and for humanitarian and development workers, including de-mining.

- Services for those returning, such as clean drinking water, sewage disposal, primary education, health services and household building materials.
- Documents to enable returnees to access basic services.
- Materials to enable returnees to regain their livelihoods, such as seeds, tools, livestock and fishing nets.

- Establishment of mechanisms for the resolution of land and property disputes. Indeed, the Guiding Principles provide that governments must assist the displaced to recover their property and possessions lost during displacement. When this is not possible, they must provide or assist the displaced in obtaining compensation or another form of just reparation. Later today, we will hear how the Iraqi Property Claims Commission is processing claims and whether the Marsh Arabs are finding this process useful to make claims in cases of homes and property from which they were evicted.

IDP families living in the rural areas at the edges of the marshes live with very limited access to drinking water and sanitation facilities. For example, a survey of 11,000 displaced Marsh Arabs indicates that 98 per cent of the surveyed population live in camp-like settlements with little or no access to water or sanitation facilities. IOM monitoring shows that displaced Marsh Arab families living in the Al-Mejar and Al Kabi districts of the Missan province are, for the most part, cut off from the public water and sanitation infrastructure, and electricity and garbage collection services are not functioning in these areas. This has resulted in extreme deterioration of IDP living conditions, representing a threat especially for the most vulnerable, such as children and the elderly. Similar conditions, including a significant spread of water-borne diseases due to absence of proper water and sanitation facilities, are reported in other areas with concentrated populations of displaced Marsh Arabs. Contaminated drinking water has increased risk of diseases like typhoid and cholera in the summer. In the winter, health is at risk due to poor housing conditions and the high cost of kerosene for heating.

- **Access to basic health care**

The people in the marshes do not have sufficient health care because of lack of staffing, equipment and health centres and because IDP settlements and camps are often located far away from public health centres. Access to health facilities is especially limited for women and girls.

- **Housing**

Large numbers of displaced persons cannot return to their places of origin because their villages were destroyed by the drainage of the marshes and other acts undertaken by the former government. For example, monitoring by IOM in ThiQar province indicates that all displaced Marsh Arabs who returned to their areas of origin in the province during 2003 returned to a situation of displacement because their homes were destroyed or are occupied. Many displaced Marsh Arabs find shelter with host communities or occupy public buildings or live in informal settlements. For instance in Nassiriyah city (Thi Qar province) the majority of those displaced from the Marshes (more than 900 families out of 1,300 families) rely on accommodation with host families. However this does not represent a viable option in the long term. The allocation of land to IDPs for relocation or resettlement as well as compensation present more durable solutions. The lack of housing affects all IDPs in the country and should be addressed in a national housing policy. A further housing concern relates to the situation of IDPs who face eviction because they are occupying government buildings, which are slowly being reclaimed by local authorities. Alternative housing or financial compensation needs to be provided for these IDPs who face homelessness.

- **Documentation** Lack of documentation among IDPs poses an obstacle to reintegration. Lack of documentation prevents the displaced from access to food rations, education and employment. Some displaced, particularly those who have faced political persecution do not have documentation and will require legal assistance from the authorities to obtain food rations cards, register marriages, work and for children to attend school.

- **Basic education services**

Many children of displaced families do not have access to education, which poses a barrier to return and reintegration. Despite school rehabilitation efforts in north Basrah province, in Al

Qurna, for example, where thousands of Marsh Arab families are displaced, children in several villages are attending school in inadequate structures. In the governorate of Thi-Qar, illiteracy rates among the general population are 25 percent while they are over 50 per cent among IDPs. Displaced children are often forced to work during school hours selling cigarettes, chewing gum, or shining shoes to support their families.

Groups with Special Needs

To ensure that durable solutions extend to all displaced, special attention should be paid to vulnerable groups like women-headed households, persons with disabilities, the elderly, and unaccompanied and separated children. Special efforts should be taken to ensure that the displaced are consulted in the design and implementation of protection and assistance programmes, in particular women, children and the elderly.

Justice

Finally, acknowledgement of the injustices suffered by the Marsh Arabs would contribute to broader initiatives to bring justice to Iraq, including by addressing the root causes of the conflict and displacement. Some international observers argue that the drainage projects, military operations and forcible evacuations of people in the marshes amount to a "crime against humanity". Establishing a mechanism, like a tribunal or a Truth and Reconciliation Commission may be a way to address issues of impunity, past injustices and promote reconciliation.

UNHCR, October 2005, p.29

"With the fall of the former regime in April 2003, Kurds and Turkmen who were displaced in the Northern Governorates of Erbil and Sulaymaniyah started to return spontaneously to their places of origin in the Governorates of Kirkuk, Diyala, Salah Al-Din and Ninewa. A large number of returnees reside in the main cities in their Governorate or district of origin and have not returned to their villages of origin for a lack of shelter and services. The returnees, who in general did not own land or property prior to their displacement, now live in public buildings, most notably schools and police stations, with little or no basic facilities. Those with land have pitched tents and many are believed to be moving between their original villages and their previous places of displacement. While many of the returns are voluntary, some have been influenced by political actors. The uncoordinated return of IDPs from the North to areas below the former 'green line' has led to the 'secondary displacement' of Arab families that had been resettled by the former regime in traditionally Kurdish areas in the Governorates of Kirkuk, Mosul, Diyala and Salah Al-Din. Many Arab families have fled these areas out of fear of harassment or actual harassment by returning Kurds and Turkmen." "Most people who have opted for voluntary repatriation from Iran and Saudi Arabia have returned to areas where their ethnic or religious group constitutes a majority. They therefore usually do not suffer from any systemic discrimination. However, as all other Iraqis, they suffer from the prevailing insecurity as well as lack of law and order. They also remain in dire need of assistance to help them reintegrate in communities whose absorption capacity is limited and where humanitarian and development activities are presently difficult to implement due to the prevailing security situation. Moreover, Iraqi returnees face a number of problems relating to their rights to housing, identification, freedom of movement and property restitution. Furthermore, housing, a general problem throughout Iraq, affects returnees in particular and specifically in the South. Many of the Marsh Arab families have returned to very impoverished areas. While homeless families have moved into public buildings or schools, others have sought accommodation with extended family members. Some returning families have even moved to partially-destroyed power stations. The need to pursue shelter solutions for these groups is pressing. Returnees often lack documentation which would facilitate their freedom of movement and access to basic services. For many of those who have returned with UNHCR assistance to Iraq, their only means of identification is the voluntary repatriation form that UNHCR has provided. As for those who have repatriated spontaneously, a significant number of them have no documentation at all, especially those who were previously expelled from Iraq and stripped of their nationalities."

UNAMI, November 2005, p.2

“Tal Afar: NGO monitors reported that more than 1,600 families remained displaced and reluctant to return due to insecurity and poor conditions inside the city. IDP figures fluctuated throughout the month and in a number of return cases, only some members of the family returned, leaving mainly women and children still in displacement. One reason for the overall rise in displacements was attributed to the lack of basic services and job opportunities in Tal Afar. The provision of basic services such as water, electricity, waste disposal, healthcare, schools, and fuel supplies remained disrupted”

IRIN, 24 May 2005

“Reconstruction of Fallujah, the city which was the scene of fierce battles between US forces and insurgents between November 2004 and January 2005, has been slow according to local officials. Little progress has been made despite Washington allocating US \$200 million for rehabilitation efforts and compensation for families. Nearly 80 percent of the population fled Fallujah, which is 60km west of the Iraqi capital Baghdad and so far only half of them have returned, aid officials have said. Local people complain that there are still no basic facilities such as sewage systems, adequate electricity and water supplies and there are disputes over how much compensation has been distributed so far.

[...] According to Bassel Mahmoud, director of Fallujah’s reconstruction project, less than \$50 million of the \$200 million for reconstruction had been released so far. He said although the main hospital had been repaired, only three schools out of 40 and four government buildings out of 20 had been rebuilt. Massive damage was caused by the conflict and repair work could take several years. [...] Power, water treatment and sewage systems were badly damaged in the city. Some districts are still dependant on water tankers as the only way to access clean water and most houses with electricity are connected to private generators. The official said more funds need to be released in order to accelerate reconstruction.

UNAMI, 27 February 2005

“The situation in Fallujah remained tense in April. An estimated 80 % of IDPs from Fallujah returned, although it was not sure that they had remained in the city. Access to the city remained difficult and time-consuming, with residents expected to show their Public Distribution System (PDS) cards, official IDs, as well as badges provided by the MNF-I (Multi-National Forces-Iraq). Similar access restrictions were also reported by aid agency personnel. The water and electricity situation remained precarious, as three districts of Fallujah were solely dependant on water tankering and seven districts were without electricity. Medical access for residents improved to some degree when the MNF-I relocated to two kilometres away from the main hospital in the city. According to the Education Department of Fallujah, of the 104 schools listed within the city, seven school buildings were severely damaged, 53 are in need of rehabilitation to some degree, and 15 schools in the city remained occupied by the MNF-I. It was reported that the presence of mines and unexploded ordinances (UXOs) in the north and south parts of the city contributed to delays in reconstruction efforts. Due to these various constraints, the reconstruction efforts were restricted in scope, but still ongoing. MNF-I has done some substantial reconstruction work in the Fallujah area since the end of the operation, complementing the activities and support of the aid agencies and the Iraqi government.” (UNAMI, 17 May 2005) “Aid agencies continued to raise concerns about the nearly 14,000 internally displaced families from Fallujah, the majority of which are dispersed across Anbar governorate, while the remainder are located in the Baghdad area. These families represent approximately 84,000 internally displaced persons (IDPs), many of whom are children, who left their homes and livelihoods almost four months ago. A significant rise in the number of IDP families was witnessed during this reporting period, which indicates a reverse movement from the city of Fallujah; mainly due to the harsh living conditions and lack of basic services such as shelter, water, electricity, healthcare, and education. UN monitors continued to report an urgent need for food, cooking sets, bedding material, hygiene kits, and medical care in many of the current places of displacement.”

UNAMI, 1 February 2005

"UNHCR through implementing partners have finalized the returns intentions survey for those who have been displaced by the Fallujah crisis. The survey captured over 4,500 families in Al Anbar and Baghdad. Initial results indicate that ninety-five percent of the population would like to return if international forces present in the city left. Other concerns expressed include a lack of information about planned assistance and compensation, the presence of UXOs/mines, health fears associated with use of munitions, and lack of shelter. The vast majority indicated that they will wait for at least three months to monitor the situation in Fallujah before fully returning families."

IRIN, 22 August 2005

"There are increasing calls for quicker flooding and rehabilitation of Iraq's southern marshlands in Amarah, due to rising unemployment and delays in the return of the marsh Arabs. [...] Since July 2003, more than six projects have been developed by AMAR and the United Nations, who are taking the lead role, to assist the marshland people, but much more is required to guarantee a future for some 30,000 local residents. Local people say their lives have not changed much since the fall of Saddam's oppressive regime, as little has changed in the marshes so far.[...] Approximately 20 percent of the marshes have been re-flooded since April 2003, according to Abdul Kareem Qassim, director of the agriculture directorate in the southern city of Amarah and home to the marshlands said. "There has been poor investment so far and the increase in our requirements for security has meant that money has been spent on that instead of development in the area," Chasib al-Marsomi, general director of Rehabilitation and Development of the Marshes (RDM) in Amarah said. [...] Following the downfall of the regime in 2003, there were signs that people living in the marsh areas would live a much more prosperous life. However, problems remain due to insecurity and slow reconstruction work. This is having a huge impact on the education system there. According to official sources in Amarah, there has been a decrease in the number of students attending school, due to insecurity, poor infrastructure, compounded by a lack of qualified teachers. Many qualified staff has left Iraq due to insurgency and previous conflicts. Improvements can be seen, however, in the health system in the marshes. Today, there are five primary health clinics serving the area. Most of the centres were built over the past two years, Mejb al-Mosawi, a senior official in the Amarah health directorate said. [...] The Ministry of Health in Baghdad said it had invested in the marshes and hoped by 2006 to be able to cover the needs in that region. A new highly equipped hospital is also planned. [...] AMAR and the Centre for Marine Studies (CMS) are also focusing on rehabilitating fishing in the area. Fishermen had been told not to fish in the area until stocks were replenished to guarantee growth – but many are continuing due to financial needs. [...] The UN Food and Agriculture organization (FAO) is in the process of implementing programmes to replenish livestock, but help can't come soon enough. [...] Slow reconstruction has forced many of them to search for alternative ways to survive.

IRIN, 28 June 2005

"Thousands of residents are gradually returning to the town of Karabila, 325 km west of the capital, Baghdad, after fleeing a heavy US-led attack two weeks ago but for many there is little to go back to. Nearly 7,000 residents were displaced to the desert near the Syrian border during the fighting, according to the Iraq Red Crescent Society (IRCS). The town, which is home to 60,000 people, showed signs of extensive devastation following the battle, a five day operation which ended on 22 June. Nearly 1,000 residents are still displaced and living in the desert. "I couldn't find anything left of my house. It has been totally destroyed and my family has become homeless and dependent on humanitarian support," said Salua Ibraheem, 42, a Karabila resident who had her home completely destroyed. "People started to go back trying to get what is left from their destroyed homes. Based on information from our volunteers inside the village, near 40 percent of the village buildings have been partially or totally destroyed," Mazeen Saloon, general secretary

of the IRCS, said. [...] Utility services have been destroyed and now thousands of families are without power, clean water or sewage according to local officials."

FMR (Romano, David), 2005, p. 48

"After the fall of Saddam's regime in April 2003, however, Iraqi engineers working with the Coalition Provisional Authority (CPA) began the process of re-flooding these marshlands and restoring the ecosystem upon which the population depended. Enormous ecological challenges remain but this often ignored story has emerged as one of the few unambiguous successes of post-Saddam Iraq. With little involvement of international organisations, the Marsh Arabs have been returning to their homes and rebuilding their old lives."

UNAMI EWG, 18 January 2005

"Since the end of December 2004, the IIG has encouraged IDPs to return to the city in a phased process whereby selected districts of the city were gradually re-opened as MNF-I/Iraqi forces reportedly cleared areas of UXOs and ensured the neighbourhoods were secure. The IIG has reported that from 14 January onwards, all districts of the city will be open to returnees. A total of five entry checkpoints have been established by the MNF-I to control access into the city by civilians, government officials, contractors, and NGOs, citing concerns about the possible return of insurgents. Those entering must undergo extremely strict inspection and identification procedures, and are subject to curfew after 17:00, thus raising concerns about access and freedom of movement. [...] The EWG has raised concerns about the conditions imposed on IDPs wishing to return to Fallujah, including curfews, restrictions on movement, and intensive ID and search systems. All males of military age are reportedly issued biometric ID cards consisting of iris scan and fingerprint details. Unconfirmed reports indicate that civilians are being denied access at checkpoints due to insufficient identification and that some are being detained, all of which further contribute to lengthy and slow queues to enter the city. The documents required for entry by civilians must include at least two of the following three: National ID card, food ration card, or nationality certificate. Some of these measures contradict commonly accepted principles for UN supported programmes worldwide which promote returns in safety and dignity."

UNHCR, 12 August 2004

"In the South, the principle group of IDPs remains the Marsh Arabs, who, over the past 15 years, have been subjected to forced migration as a result of an organized Marsh- Drainage campaign undertaken by the former Iraqi regime. The persistent implementation of this campaign led to massive displacement within and outside the country. The policy of the former Iraqi regime to drain the Marshlands in southern Iraq underwent several stages. A large swathe of the central marshes was drained to facilitate the movement of the military units during the Iraq-Iran war. During the 1990's, the marshes underwent further extensive drainage. As part of the previous government's policy which consisted of resettling Shia populations to the north in order to alter the ethnic balance of the area, many Marsh Arabs were forced to resettle there to replace Kurdish, Turkmen and Assyrians. Although the number of displaced Marsh Arabs is quite difficult to identify due to the protracted nature of displacement and varying levels of integration, it is estimated that between 100,000-200,000 persons remain internally displaced from the marshland areas. Up to 40,000 persons are estimated to be returning displaced persons, i.e., they were originally from Southern Iraq (mostly Marsh Arabs), were resettled under the Arabization program to Northern Iraq and, following the recent conflict, returned to their ancestral lands in Southern Iraq, although the draining of this area has significantly altered the Marsh Arabs' ability to continue their traditional way of life and farming activities which were based on the cultivation of the marshes. This group of persons is considered returning displaced persons; their preferred durable solution is to reside in or near their current locations."

UNHCR, 12 August 2004

The need to ensure complete documentation such as identity documents, marriage and birth certificates, and rations cards is a primary concern for this group. Property claims, legal

assistance, basic reintegration assistance as well as focused assistance for vulnerable groups including female-headed households, the elderly, and physical and mentally disabled persons must also be urgently addressed.”

UN OCHI, 30 June 2003

“Prior to the forced displacement of the Marsh Arabs in 1991, the main livelihood activities engaging populations were fishing, agriculture, livestock herding (especially water buffalo), hunting and handicraft making. Wheat, barley, rice and vegetables were grown for household consumption. The significance of the water based economic activity of the Marsh dwellers reaches far beyond their homeland, as it was the subsistence for over one million residents of the region. Remnants of destroyed houses, schools and clinics in the original wetland settlements were noted, supporting the notion that services were much more accessible in the past. The forced displacement caused a severe drop in the living standard for the majority of the marsh populations. With the continuous population movement livelihood patterns shifted. Communities that are currently settled in proximity to the marshes, seasonal agriculture as well as some livestock rearing were adopted. Fishing for communities close to water bodies is also practised in a small scale. Most Marsh Arabs who have moved in closer to urban areas are engaged in a wide range of activities including casual labour in cities. Unemployment was cited as a major concern for most of the communities visited. Accordingly, income levels were drastically reduced, as was access to health, education, water and electricity. The situation of women across the Marsh population merits special mention. Women noted that life was much harder for them now than in the marshes, and expressed a desperate need for access to clean water and health facilities. Literacy rates appear to have deteriorated as most of the women interviewed were not able to read or write...(...) Displaced farmers are now part time arable farmers with most of the men out of work and dependant on food aid. The most interesting observation was the age difference view of the future with the older generation (40+) wishing to return the known life of the marshes and its stable food security compared with the younger people (17-30) who know a different life and wish to have improved services found outside of the marsh.

"Fallujah's residents angry at the city's devastation", IRIN, 13 January 2005 [Internet]

"Displaced Fallujah residents unsure of when they can return home", IRIN, 20 December 2004 [Internet]

"Renewed Fallujah fighting hampered return of residents: US", AFP, 16 December 2004 [Internet]

"Displaced families return to devastated Telafar", IRIN, 21 September 2005

"Families returning to Karabila in need", IRIN, 17 July 2005

HUMANITARIAN ACCESS

General

Despite improvements in security compared to violence at the height of the civil war in 2006-2007, insecurity and limitations in humanitarian access persists (2003-2009)

- The task of humanitarian intervention in Iraq has been severely hampered by the security constraints in the country which has limited the capacity of humanitarian organisations in their operations on the ground. (NCCI, January 2008; IDP WG, November 2008) From late 2003, humanitarian action in Iraq had gone steadily more underground or in remote management in KRG or neighbouring countries of Kuwait and Jordan since the bombing of the U.N.'s Baghdad headquarters in August 2003 and, soon thereafter, the bombing of the ICRC office there. (FIC, 2 July 2007) The low visibility of assistance and protection efforts in Iraq has confounded misperceptions about humanitarian work and the lack of acceptance of humanitarian organizations. (FIC, 2 July 2007)
- As early as late 2003, targeted attacks on aid personnel have led most agencies to cease operations completely or to withdraw their international staff to a safe distance. (NCCI, January 2008) Since 2004 a number of international and Iraqi aid found creative ways to strike a balance between the need to keep staff reasonably safe in an unstable war environment while preserving their access to Iraqis in need. (NCCI, January 2008) Several large humanitarian agencies maintained a presence since 2003 in security "bubbles" due to continuing security risks and targeted attacks. These move under armed protection and lose meaningful access to communities in need. (NCCI, January 2008)
- Through 2003 onwards humanitarian access has been limited by armed conflict, general insecurity and crime, restrictions on movement, and in some cases deliberate obstruction by authorities. (IDP WG, November 2008) This has been notably reported since 2003 to 2008 due to military operations. NNGOs and INGOs have for instance reported lack of access and security affecting their ability to provide assistance in Fallujah (2004-2005), Sammara (2006), Basra (2008). Humanitarian space and access has also been complicated by the multiplicity of actors involved in the provision of humanitarian assistance. The situation is complicated by a blurring of roles between military and humanitarian actors. Non-state actors have also increasingly take up humanitarian assistance of displaced and non displaced Iraqi communities. The gap in assistance provided by the humanitarian community and the Government has been partly taken up by non-state actors. (Brookings, 2008; RI January 2008) The extent of
- assistance provided is unclear.
- The UN's presence and its ability to operate effectively in Iraq has been severely constrained by the security environment. In November 2003, the UN pulled out its last remaining staff following the bombing of the U.N.'s Baghdad headquarters in August 2003. The UN has since 2003 continued to review the possibility of reestablishing a sustained presence since that period in time. UN and IOs have since 2003 operated through INGOs and NGOs as implementing partners. UNHCR and IOM would establish implementing partners in most, if not all Governorates. The UN has also employed NGOs and consultants to monitor and assess activities being undertaken by implementing partners. (RI, January 2008; UNSC, 7 June 2005).
- The UN in 2007-2009 has gradually reestablished a minimum presence placing international staff in Baghdad as well as initially by liaison offices in Erbil, and Basrah protected and housed by the MNF-I.. (UNAMI, November 2008) In 2009, UN agencies redeployed

- The U.N.'s security apparatus in Iraq remains dysfunctional. According to UN mandates, UNAMI is dependent on MNF-I for security and movement. This compounded by security DSS guidelines which are regarded as relatively high limiting operational capacity. (RI, January 2008) In most of Iraq—less so in the three northern governorates of KRG—close association with MNF forces, or other visible armed escorts, restricts UN's access to Iraqi communities and also renders the UN partly inaccessible, and 'un-humanitarian' for Iraqis and humanitarian agencies. Arguably close association with MNF-I, and Iraqi Government, has enable to improve coordination or information exchange with MNF-I and Government, whether the benefits of doing so outweighs the opportunity cost of being associated with one party is contentious.
- National and international NGOs in direct implementation remotely or through partners have played a significant role in responding to humanitarian needs throughout Iraq. NGOs have often delivered assistance to IDPs at considerable risk to staff, and continue to face ongoing challenges. Since 2003 over 98 aid workers, mostly national, have been reported killed including several humanitarian aid workers targeted in Baghdad in January 2010 (NCCI, January 2008; IWPR, January 2010). In view of recent developments, lessening insecurity and increasing pressure to return from the international community, INGOs are reassessing re-entry scenarios. Several have relocated international staff to central and southern Iraq (NRC, August 2009; NCCI November 2008). At present there are more than 60 INGOs operating through various modalities in Iraq with close to hundred or more national NGOs considered credible operational NGOs working in various partnerships with UN or INGOs. There are several
- thousand NGOs that have been established since 2003 though anecdotal evidence suggests many are not credible.(NRC, August 2009)
- There are numerous challenges on humanitarian operational capacity including; re-entry for humanitarian actors after prolonged remote management in still highly unpredictable environment; an ill-defined humanitarian space with competing actors and highly politicised environment; impact of phased withdrawal of MNF-I on UN security and redefinition of Civil-Military guidelines, and challenges of humanitarian community to reassert itself. There have been also challenges by Iraqi government's legislation of regulations governing NGOs to which NGOs and UN have strongly advocated against restrictive policies – such legislation is to be passed following March 2010 elections.
- The extent to which humanitarian assistance has responded to displacement is difficult to attest. In late 2008, monitoring reports indicated that 38% of IDPs did not receive assistance, and of those that did receive assistance roughly 19% received it from humanitarian NGOs, 25% Iraqi Red Crescent Society, 25% from religious groups, and roughly 33% from MoDM, host communities, and other government bodies (IDP WG, November 2008) Wider access should be able to increase levels of assistance provided, and reach communities which were otherwise inaccessible. This wider access in 2010 permitting may provide means to address also those who were compelled to remain in the worst stricken areas. (FC, 2 July 2007)

IDP Working Group, 26 November 2008:

"Humanitarian access is limited by armed conflict, general insecurity and crime, restrictions on movement, and in some cases deliberate obstruction by authorities. Humanitarian workers must operate cautiously as in many cases they are deliberately targeted by armed groups. The situation is complicated by a blurring of roles between military and humanitarian actors. As a result, humanitarian actors in some locations adopt a "low-profile" approach, hiding their identity as international or humanitarian organizations."

United Nations Assistance Mission for Iraq (UNAMI), 6 November 2008

28. An expanded international presence in Iraq is critical to sustain and accelerate these initiatives, both in Baghdad and at the governorate level. The World Food Programme (WFP) has joined the Office of the United Nations High Commissioner for Refugees (UNHCR), the United Nations Development Programme (UNDP) and the World Health Organization (WHO) in establishing a permanent international presence in Baghdad, while other agencies are present on a rotating basis. Field coordination has also been enhanced by international staff of UNAMI and the Office for the Coordination of Humanitarian Affairs in Basra and Erbil. As part of the United Nations plan to increase its support throughout Iraq, missions of the United Nations country team led by the Deputy Special Representative of the Secretary-General visited Najaf in August and the Kurdistan Regional Government on 12 October to present the United Nations Assistance Strategy and establish the basis for an enhanced presence in these locations.

Integrated Regional Information Networks (IRIN), 30 March 2008

Non-governmental organisations (NGOs) appealed to the Iraqi authorities on 30 March to facilitate their distribution of relief materials in Baghdad and [Basra](#), 545km southeast of the capital. Both cities are under an indefinite curfew due to ongoing clashes between government forces and the Mahdi Army, the Shia militia led by Moqtada al-Sadr. We call upon the [Iraqi] government to allow local and international aid organisations to move during curfew time and get into conflict areas to do their job, Basil al-Azawi, head of the Iraqi Commission for Civil Society Enterprises (ICCSE), a coalition of over 1,000 Iraqi NGOs, told IRIN. It is a really dangerous situation and must be focused on. The clashes and curfew have highly affected the delivery of humanitarian assistance in both Baghdad and Basra. People are still in [dire need of food and water](#) and some hospitals need medicines and medical items, he said

NGO Coordination Committee in Iraq (NCCI), 2008

Since March 2003, at least 94 humanitarian and human rights workers have been killed in Iraq, most of them Iraqi nationals. Targeted attacks on aid personnel have led most agencies to cease operations completely or to withdraw their international staff to a safe distance. Where work has continued, risks have been transferred to Iraqi staff who now almost exclusively shoulder the security burden in environments where the motives and means of humanitarian work are often misunderstood, misperceived or mistrusted. The death toll has led to an increasing tendency among some agencies to regard staff security in Iraq as an end in itself, rather than as way of facilitating humanitarian operations in the safest reasonable conditions. Preoccupation with security — and mainly the security of international staff — has often eclipsed the fundamental principle of *humanity*, the humanitarian imperative to protect and assist people in urgent need.....

Since 2004 a number of international and Iraqi aid organizations — some very large and some very small — have found creative ways to strike a balance between the need to keep staff reasonably safe in an unstable war environment while preserving — and even expanding — their access to Iraqis in need. Staff security without access achieves little or no humanitarian impact. Several large, well-guarded humanitarian agencies have quit Iraq or maintain a presence in security “bubbles” due to continuing security risks and targeted attacks. Bunkerized agencies or those that move under armed protection lose meaningful access to communities in need because of the way their affiliations with such security actors are perceived by the population in much of Iraq. By their own accounts, the security “bubble” that envelopes such agencies can indeed make them a less-attractive target, but it also insulates them from their caseload and from vital information about the communities and contexts where they work. While this may not be so important for one-off distributions of relief goods, sustained access enabling sound assessments of needs, needs-based distributions and adequate follow-up require a measure of acceptance that is not possible with such operational modalities. Moreover, the evidence is far from clear as

to whether such deterrence strategies repel attacks, or if instead they act as a magnet for additional security problems.

Feinstein International Center (FIC), 2 July 2007

The low visibility of assistance and protection efforts in Iraq confounds misperceptions about humanitarian work and the lack of acceptance of humanitarian organizations. Humanitarian action in Iraq has gone steadily more underground since the bombing of the U.N.'s Baghdad headquarters in August 2003 and, soon thereafter, the bombing of the ICRC office there. Insecurity for aid operations and personnel grew steadily worse through 2004 and 2005, leading to the evacuation of virtually all international staff in the central and southern governorates to safer locales and widespread adoption of a low-profile presence and remotely controlled, managed, or supported operations. Attacks targeted Iraqi staff with much greater frequency in 2005 and 2006 due to the near-absence of foreign aid workers and the far greater exposure of national staff. Transparency—the practice of being open to scrutiny—is usually understood by humanitarian organizations as a necessary foundation for building the community relationships that are essential for effectiveness, accountability, and differentiation from providers of greater measure of safety for humanitarian workers, and has arguably bought agencies more time and more access. However, the benefits have come at an immense cost to acceptance. Our research among Iraqis indicates that perceptions of the humanitarian enterprise are far more positive among those who report direct contact with local or international assistance or protection work than among those whose impressions are formed second-hand through rumor and media. [...]

Some Iraqi and international NGOs that have taken an independent course in their approach to security, relying relatively more heavily on relationships and acceptance of their work by communities, have also decided to cease operations. However, others have stayed to continue vital programs. Flexible agencies that have invested considerable time and resources into understanding local (in addition to national) contexts and trends, building relationships and supportive networks, and nurturing staff professionalism appear to have a comparative advantage in Iraq over less rooted agencies. An experienced MSF hand saw the tensions between security and the humanitarian imperative somewhat differently. He recognized that although large-scale high profile humanitarian programs were now untenable in Iraq, it was still possible to perform systematic “individual acts of medical humanitarianism” such as emergency surgery and support to medical professionals through remote operations by cultivating a dedicated team and good local counterparts.

The U.N.'s security apparatus in Iraq is particularly dysfunctional. The conventional wisdom among aid workers in the three northern governorates, where risks are generally regarded as relatively low and freedom of movement unconstrained, was that the U.N.'s security posture at its compound in Erbil was absurdly out of step with the actual level of risk. Until early 2007, staff were confined to the compound, which is surrounded by three layers of blast walls guarded by three layers of armed guards—Kurdish Peshmurga fighters on the outside entrance, Korean troops manning the second layer, and Fijians guarding the final entrance. International staff were not allowed out of the Erbil compound under any circumstances except with explicit approval on a case-by-case basis from the U.N.'s Department of Safety and Security (DSS) in New York. U.N. security reports refer to vague MNF-issued warnings of increased threats from Islamic militant organizations without independent U.N. corroboration, adding to the vague and pervasive sense of vulnerability expressed by some U.N. staff. “We’re a target because we’re the U.N.,” said one. That may be eminently true, as it was when the Canal Hotel was destroyed, but passive acceptance of such perceived vulnerability will do little to make the U.N. any safer in Iraq. As one seasoned aid veteran put it, *“At some point, individual staff need to say to their headquarters and staff associations, no, this isn’t what we want. Living in a bunker doesn’t help us do our job.”*

In most of Iraq—less so in the three northern governorates—co-location with MNF forces, or accepting MNF or other visible armed escorts, renders many Iraqis for whom the neutrality (or

affiliations) of aid is important, at least partly inaccessible. Wholesale reliance for security on the MNF or private western contractors implies—or corroborates—a commonality of purpose between some aid agencies and military forces. Many Iraqis at the community level find such coherence unacceptable and, in the words of one beneficiary, “un-humanitarian.” Likewise, there is little doubt among Iraqis as to the political allegiances and purposes of social welfare offices operated by, or under the armed protection of, various militias and parties. However, in many areas such offices are becoming welcome providers of life-saving assistance. Critically, the reliance on the MNF by U.N. agencies and others calls into question the fate of aid operations, if and when co-location and mobility arrangements are changed or ended due to reassignment or withdrawal of MNF forces and private security details. As of late 2006, UNAMI was about to embark on a reduction of staff levels in Baghdad from 90 to 55 personnel, including 15 substantive officers, only 5 of whom were to be humanitarian or human rights officers, and 40 support and security staff. Acceptance strategies do not render humanitarian workers immune from targeted attack in Iraq but do contribute to greater adaptability and longevity of humanitarian programs.

In political circles and within the international humanitarian apparatus itself, there is an emerging disproportionate focus on Iraqis who have fled as IDPs or refugees.⁷ Many IDPs and all refugees are relatively more accessible to current assistance and protection efforts than those who have remained in the worst-stricken areas. Little attention is so far being paid to preventing forced migration from occurring. Conditions facing the “internally stuck”, those who have opted to stay in their homes or are unable to move and are therefore mostly hidden from view, are perhaps much more worrisome as access to essential needs and services becomes increasingly difficult in much of the country, and as social supports such as the Public Distribution System (PDS) for food rations collapse.....

UNAMI, 16 January 2007:

"In November, HRO submitted an official memorandum to MNF-I Chief of Staff, Major General Thomas L. Moore, Jr., requesting more detailed information on a number of incidents involving MNF-I activities in Ramadi and Fallujah. These included also the use of facilities protected by the Geneva Conventions, such as hospitals and schools, as military bases. HRO would like to stress the importance of MNF-I investigating and reporting on allegations of violations of human rights and humanitarian laws."

UNSC, 7 March 2007

"The United Nations presence and activities in Iraq continue to be severely limited by the prevailing security situation in the country. However, with significant mitigation measures and proper training of United Nations staff members, the risk level continues to be assessed at the medium level. [...] These security challenges to the integrity of the international zone, and the continuing threat of kidnapping, highlight the risks faced by the United Nations staff in Baghdad. However, extensive mitigation measures are in place within the international zone aimed at reducing the overall risk to United Nations staff. Movement of United Nations staff in the international zone is controlled with a curfew and limitations on travel. Visits to government buildings outside the international zone require armed escorts, and UNAMI has practised procedures for this requirement. National staff working at all locations in Iraq are exposed to high levels of risk, particularly when travelling to and from work. An Iraq-specific package of measures has been designed to reduce their risk."

"Small United Nations liaison detachments of up to six staff members each were deployed to Erbil and Basrah on 1 and 12 February 2005, respectively. These liaison detachments include military advisers and security and support staff who will work with the multinational force to facilitate periodic visits, prepare United Nations facilities and assess the security conditions required for any expansion of the United Nations presence in Iraq. I am grateful to the Member States of the multinational force for providing support to the United Nations for the deployment of the liaison

detachments. Additional arrangements for protection by the multinational force, as well by United Nations security personnel, will have to be put in place if the United Nations is to establish its own facilities in Basrah and Erbil.” “The number of United Nations personnel in Iraq continues to be constrained by security conditions necessitating extremely well-protected living and working facilities within heavily guarded areas. Movement outside the Baghdad international zone, or similarly well-protected compounds in other parts of the country, continues to be extremely hazardous and therefore dependent on the protection of the multinational force. Under these conditions, any expansion of the United Nations presence in Iraq has of necessity been confined to the number of persons who can be accommodated in the Baghdad international zone, as well as the small security liaison detachments deployed to multinational force cantonments at Basrah and Erbil.”

UNSC, 3 March 2006, p.12-17

“Iraq remains a dangerous place and United Nations staff members are at risk of becoming targets of violence. [...] The security of the international zone in Baghdad, which is home to UNAMI premises, is of great importance to all occupants, including the United Nations. Accordingly, the situation, which is in the midst of a transition from Multinational Force primacy to that of the Iraqi security forces, is under constant review by UNAMI and the Department of Safety and Security. At the moment, the integrity of the internal zone perimeter and internal checkpoints is being maintained, but the topic is a regular point of discussion with the Multinational Force to ensure that the current level of security is sustained. [...] The Organization’s presence and its ability to operate effectively in Iraq remain severely constrained by the security environment. This high-risk setting greatly restricts freedom of movement, especially by road. To provide United Nations staff members with the best security possible, and therefore ensure that the Organization is able to maintain a presence in Iraq, a number of mitigating and protective measures have been introduced, which are both expensive and timeconsuming. [...] Moreover, the United Nations is dependent on the Multinational Force for movement security and threat information. To keep pace with the constantly changing security dynamics, the UNAMI security unit requires access to accurate information on a regular and timely basis. [...] While UNAMI is seeking to step up its activities following the completion of the transition timetable endorsed in resolution 1546 (2004), in the current political and security environment in Iraq United Nations staff members remain at risk of becoming targets of violence. [...] Although the nature of the deployment of the Multinational Force is likely to change, the Mission’s need for a dedicated protection force for all its activities in Iraq remains. Operational constraints, such as the lack of dedicated air assets, will also have to be addressed as a matter of priority.”

IRIN, 22 March 2006:

“Aid agencies say they have been prevented from entering the city of Samarra, in central Iraq, where a major US and Iraqi military operation is underway. “Our convoys sent on Sunday and Monday have been prevented from entering the city by US troops and our information from inside is that families are without food, power and potable water, particularly because they cannot leave their homes,” noted Abdel Hameed, a spokesperson for the Iraqi Red Crescent Society (IRCS). This, they say, has left hundreds of families without medical assistance and food supplies.....According to al-Daraji, no citizens have been allowed to leave the city, some 120 km north of the capital, Baghdad, since the operation began on 16 March.Nearly 1,200 families have fled the city to Baghdad and are living in abandoned buildings and makeshift camps, according to local NGOs who are monitoring. Few of them have received assistance so far.

UNSC, 7 June 2005, paras. 64-65

“Military action in the Al-Qaim area had an impact on local residents and on internally displaced persons from Fallujah. As a result, 2,000 internally displaced families from Fallujah were identified to receive assistance, as well as an estimated 2,000 internally displaced families originally from Al-Qaim and its surrounding areas. Food, water, non-food items such as mattresses, tents and water storage containers, and essential medical supplies were distributed to families in need and

to local health facilities. The security situation has impeded access and thus assessments of the area's needs. However, the United Nations country team and its partners, working through the emergency working group, are in the process of positioning supplies and are calling on the relevant Iraqi authorities and the Multinational Force for humanitarian space and respect for human rights."....

"Despite the efforts of the United Nations, significant obstacles to full implementation of United Nations activities remain. This is largely due to the security situation, which dictates that work be done using national staff with less direction than preferred. Therefore, the United Nations is using the services of third parties such as local non-governmental organizations or consultants to monitor and assess activities being undertaken through implementing partners in Iraq. This triangulation of management, although not ideal, appears to be working reasonably well and will continue for the foreseeable future. However, one of the critical constraints is the inability to quickly gather information, such as in the case of developing a humanitarian response in Al-Qa'im, which resulted in a delayed response. This dependency upon second-hand information and the associated potential for bias continues to be a major constraint in ensuring that the response provided is relevant and appropriate as well as timely..... Changes in ministerial incumbents, reformulation of portfolios within ministries and other effects of the creation of the Transitional Government, while not unexpected, nonetheless posed some difficulties for United Nations activities."

UNSC, November 2005, pp. 2-3:

"Access to some IDP locations remained sporadic and hindered by checkpoints or strict security cordons around towns. The EWG shared these concerns with UNAMI civil-military focal points in order to encourage dialogue with the concerned parties and to develop practical measures to facilitate access of humanitarian convoys to insecure areas. UNAMI facilitated an information exchange between interested NGOs and the military authorities to promote the possibility of humanitarian corridors."

UNAMI, 17 May 2005:

"The situation in Fallujah remained tense in April. An estimated 80% of IDPs from Fallujah returned, although it was not sure that they had remained in the city. Access to the city remained difficult and time-consuming, with residents expected to show their Public Distribution System (PDS) cards, official IDs, as well as badges provided by the MNF-I (Multi-National Forces-Iraq). Similar access restrictions were also reported by aid agency personnel. The water and electricity situation remained precarious, as three districts of Fallujah were solely dependant on water tankering and seven districts were without electricity. [...] The United Nations Assistance Mission for Iraq (UNAMI) and the UN Humanitarian Coordinator's office convened the Emergency Working Group (EWG) to coordinate the response of humanitarian actors. Working in concert with the EWG in Baghdad, information is being shared and response coordinated to ensure that resources reach those most in need. Of prime concern is to reach the Internally Displaced Persons (IDPs) with basic needs such as water, shelter, food and essential medical care. [...] The UN and its partners urge the relevant authorities to respect the right for humanitarian space and the human rights of the civilians, and facilitate the access of humanitarian actors to those in need. Dialogue has been initiated with the Transitional Government of Iraq and the MNF-I to secure access."

UNSC, 7 June 2005, para.58

"Military action in the Al-Qaim area had an impact on local residents and on internally displaced persons from Fallujah. As a result, 2,000 internally displaced families from Fallujah were identified to receive assistance, as well as an estimated 2,000 internally displaced families originally from Al-Qaim and its surrounding areas. Food, water, non-food items such as mattresses, tents and water storage containers, and essential medical supplies were distributed to families in need and to local health facilities. The security situation has impeded access and thus assessments of the

area's needs. However, the United Nations country team and its partners, working through the emergency working group, are in the process of positioning supplies and are calling on the relevant Iraqi authorities and the Multinational Force for humanitarian space and respect for human rights."

UNAMI EWG, 18 January 2005

[Falluja] "Overall, NGOs report that lack of access and security continues to affect their ability to independently assess conditions inside the city and to directly deliver humanitarian aid to the returning population. [...] Insecurity and sporadic access due to roadblocks by MNF and insurgent groups also continue to impact the provision of humanitarian assistance to IDPs at their current places of displacement. Joint IOM/UNHCR distributions in the area of Amiriya were recently suspended due to risks associated with criminal activity.

UN EWG, 19 December 2004

"Lack of security and access continue to impact the delivery of humanitarian assistance to the residents of Falluja and the estimated 200,000 IDPs dispersed to surrounding areas. At best, IOM monitors report there is sporadic access to the various IDP locations due to military activities/checkpoints and insecurity; whereas Falluja itself remains strictly inaccessible due to the ongoing conflict. IOM monitors report that clinics at the IDP areas are experiencing shortages of some drugs and that many IDPs have not received their food rations despite the apparent resumption of PDS distributions by the Ministry of Trade in some of the affected areas. UNAMI continues to raise the issues of access, protection of civilians, and the need for humanitarian corridors with the MNF-I/IIIG regarding the IDPs.

UNHCR, September 2004, p.3

"Although the UN continues to review the possibility of re-deploying international staff to Iraq and at the end of August 2004 sent a small team to Baghdad for six weeks, under the auspices of the Special Representative to the Secretary-General, in order to assess the humanitarian situation, it is unlikely, in light of continued security concerns, that any type of sustained international presence will be possible in the near future. UNHCR's ability as well as that of its partners to engage in any type of protection, returnee monitoring, and/or reintegration activities towards sustainable return in Iraq thus remains severely limited. It should furthermore be noted that the Ministry for Displacement and Migration is still in the process of building up its own operational capacity, and is currently in no position to offer any type of accommodation or other assistance to returning Iraqis."

OHCHR, 9 June 2004, p.22

"The prevailing insecurity in most parts of the country exacerbates the already vulnerable human rights situation of most displaced persons. Following the bombing of the United Nations headquarters in Baghdad on 19 August 2003, most humanitarian agencies have withdrawn, and now only limited assistance reaches the internally displaced and there is no consistent monitoring of and reporting on the human rights situation of displaced persons"

See also ["Armed groups occupy hospitals and kidnap doctors"](#), IRIN, 13 February 2007 and

["Delivery of aid is still a problem four years after US invasion"](#), IRIN, 21 March 2007

See also, ["Delivery of aid still a problem four years after US invasion"](#), IRIN, 21 March 2007

[Safety and security of humanitarian personnel and protection of United Nations personnel Report of the Secretary-General to General Assembly, A/63/305](#), **United Nations Secretary General (UN SG)**, 18 August 2008

See ["UN pulls out last of foreign staff from Baghdad"](#), Reuters, 3 November 2003

NATIONAL AND INTERNATIONAL RESPONSES

Overview

National Response to situation of displacement (2003-2009)

- The Iraqi government's ability to provide for the welfare of its population, let alone those forcibly displaced, has until recently fallen short due to continued insecurity, lack of institutional capacity, corruption, bureaucratic hurdles, and politicization of key line ministries (RI, April 2008; Brookings, August 2008). In preceding years the Government has been accused of being negligent in addressing displacement and was accused of being a party to the conflict and its security forces to have facilitated displacement and sometimes carried it out themselves (RI, January 2008). Commentators have noted that Iraq has been slow to recognise the magnitude of the displacement, with relatively weak institutions to address questions of displacement, and government policies in addressing displacement inconsistently applied and in an ad hoc manner with significant variations between governorates and KRG.
- In 2008-2009, the government has taken several important steps to address the needs of returnees and IDPs including launching of National IDP Policy in July 2008, provision of assistance and incentives for returnees, and increasing budgetary allocations for IDPs in 2008, and subsequently in 2009. This has included the establishment of various mechanisms to address property issues of displaced. The CRRPD (initially established by CPA) addresses certain property issues of displaced pre 2003. In mid 2008, under Prime Ministerial Order 101 and Council of Ministers Decree 262, policies were enacted to facilitate returns and address key obstacles including secondary occupancy and property restitution. In mid 2008, two MoDM returnee centres were established in Baghdad and subsequently in Diyala in 2009 to address property disputes and facilitate returns for registered IDPs and refugees displaced between 2006 and 2008.
- In September 2009, the Iraqi government extended measures adopted in Baghdad to Diyala governorate under Order 54/S, allocating some \$78 million for reconstruction and to ensure sustainability of returns (UNHCR, October 2009). The Diyala initiative represents the first integrated approach to ensuring sustainable return and reintegration, targeting some 27,500 families and including funding for reconstruction and provision of basic services. Around 400 villages with high returnee populations, including those of mixed ethnic group and sect have been prioritised. The Diyala model is set to be expanded at the end of 2010 to three key return areas in Baghdad (Mada'en, Doura and Sabalbour), and subsequently to the governorates of Salah El Din, Ninewa and Anbar (UNHCR, October 2009).
- MoDM is mandated to address IDP and refugee issues, while a number of other ministries, including Trade, Interior, Health and Education are also engaged. There continues to be concerns over the capacity of MoDM and other ministries, due to a lack of capable, trained and experienced staff, corruption, insecurity and partisan influence (Brookings, August 2008). MoDM has, nevertheless, played a crucial role in the development of National Policy on Displacement adopted in July 2008, extended its presence through branch offices in most governorates, enhanced local and national registration procedures, and facilitated returnee process through its branch offices and returnee centres in Baghdad. Iraq has also provided various compensation schemes through various bodies for IDPs following military operations and insurgency activities, including Turkish incursions in 2007-2008.
- The government has undertaken important steps but limitations in assistance provided to displaced and returnees and the absence of national reconciliation continues to reduce their

- and impact.
- National Policy on Displacement which remains a significant step and acknowledgement of obligations and responsibilities has yet to have an accompanying implementation plan and ensure appropriate legislation (MoDM, July 2008; Brookings-Bern, February 2010). Many observers stress the need for the Iraqi government to allocate greater resources for programmes to promote sustainable solutions particularly in light of development needs in this period of transition from humanitarian to development, to improve structural capacity within MoDM and respective ministries, to render more consistent application of assistance, and to indicate a vigorous intent to address the displacement crisis effectively and impartially.
- The Iraqi government allocated \$210 million to IDP programmes in late 2008 for 2009 financial year but faced with fluctuating oil revenues, cut financial assistance to \$42 million in its 2009 budget. A parliamentary committee on displacement and migration had initially demanded the Iraqi government allot US\$4 billion in 2009 year's budget to meet the needs of more than four million internally displaced persons (IDPs) and refugees. (IRIN, September, 2008) This echoed concern by donors, UN and Iraqi actors about the fact that Iraq is not devoting sufficient resources itself to the displacement issue. A budget of approximately \$170 million has been approved for 2010, which includes provisions for the costs of transportation for returnees, reconstruction and return grants, and payments both to IDPs and to secondary occupants of property to encourage them to leave. The Iraqi Parliamentary Committee on Displacement and Migration has consistently appealed for more funds, criticised the
- government for its inadequate budgetary allocations and criticised slow (or non-) disbursement of funds to returnees and IDPs and that such measure do not offer an adequate durable solution to the displaced. (IRIN, September 2008, and January 2010).

Brookings-Bern, February 2010

In Iraq, the Ministry of Displaced and Migrants (MoDM) coordinates the related activities of other ministries (Ministry of Interior, Ministry of Health, Ministry of Education, Ministry of Municipalities and Public Works, and Ministry of Trade). However, only legislative action can grant executive powers to the MoDM and enhance its coordination role. While the Ministry of Planning and Development Cooperation (MoPDC) is drafting the National Development Plan (NDP) 2010-2014, there should be assurances that the development challenges of displacement are addressed properly and at an early stage. Hence there is a need for a coordination mechanism in the preparation of the National Development Plan (NDP) between the MoPDC, the MoDM, other governmental institutions in Iraq and relevant international organizations. To complement the role of the MoDM, which has so far focused on humanitarian assistance, and ensure that displacement is considered in political and economic agendas, a National Displacement Council could be established. This Council could be chaired by a Deputy Prime Minister and comprise the Minister of Foreign Affairs, Minister of Interior, Minister of Displaced and Migrants, Minister of Human Rights, State Minister of National Security, and State Minister for National Reconciliation. The role of the Council would be to oversee the implementation of the NDP, to ensure coordination and cooperation among concerned governmental institutions and to mobilize resources. The creation of such a Council could be included in the proposed legislation on displacement.....

Legislation in favor of the displaced should also be strengthened in line with the objectives of the International Compact with Iraq (ICI) and the 'National Policy on Displacement' issued by the MoDM. There is currently no legislation on displacement and return but only government decrees which can be revoked. Based on the Guiding Principles on Internal Displacement²⁸, adequate legislation would help restore trust between the displaced and the government. Proposing such laws could be the task of the Parliamentary Committee on Relocated, Displaced and Migrants. Assistance should be broadened to include support for the development of a legislative framework for displacement, for increased capacity building and for consultations in planning, resource mobilization and improvement of basic services. Increased technical advice should be provided to the MoDM to develop and implement the National Policy on Displacement. Once its mandate is legally secured, MoDM needs sustained support to play an effective role in monitoring displacement and return.

Displacement in Iraq, as noted above, has many causes. But since 2006, much of the displacement has stemmed from conflicts between sectarian groups. Finding solutions for those displaced by sectarian violence is inextricably linked to national reconciliation. Long-term thinking is needed from the Iraqi government, including the effects of the legacy of displacement from the Ba'athist era on more recent trends of displacement. Displacement is an item on the official agenda of the Implementation and Follow-up Committee for National Reconciliation. The Committee has already taken several steps to promote reconciliation with and between groups displaced inside and outside Iraq. However, additional measures could be taken at the local, national, and regional levels, with the various groups that have experienced displacement before and after 2003, and with the broader Iraqi national community.

Brookings-Bern, June 2009

The GoI's policies toward displacement have primarily been defined over the last year, a reflection of the relatively recent formation of MoDM under the Coalition Provisional Authority (CPA). In July 2008, the MoDM approved the National Policy on Displacement, the goal of which is to "find durable solutions and to set an effective, realistic and comprehensive framework to respond to the needs of the displaced persons regardless of whether their displacement is characterized as protracted or recent."¹⁶ IDP rights in Iraq, as outlined in the National Policy, are consistent with those highlighted in the Framework as well as with the Guiding Principles on Internal Displacement. The policy outlines the basic needs of IDPs and returnees in terms of food, shelter, potable water, sanitation, health care and education, based on the international "Sphere" standards that emphasize the need to meet the basic needs of life according to the minimum level of assistance that the government or civil society actors can offer to Iraqis who are displaced inside or outside Iraq. Planned next steps towards implementing the policy include developing concrete strategies at the national and governorate level, and a coordination structure among all state institutions to facilitate response.¹⁷ The policy specifies the key actors and priorities for each sector, in terms of both institutional linkages and budgeting required.

Given the role of the governorate level in implementing the National Policy, the degree of authority the governorate level has in relation to the central level – as defined by the Provincial Powers Law – will have ramifications on how the government responds to displacement, and on how international agencies and bilateral donors divide their focus between national level ministries and the governorate level counterparts. The question of authority should be better clarified as the Provincial Powers Law enters into force with the swearing in of the provincial officials elected in January 2009. Currently, governorates have varying degrees of authority, and it is unclear how this balance will shift and what its implications will be on the implementation of national policies, including that on displacement. Additional governmental decisions made over the last year impact Iraq's displaced population. Some decisions expand services available to IDPs. The Prime Minister's Office issued Order 101 in September 2008, establishing Return Centers to manage the return of IDPs and refugees. Two centers are operational in Baghdad. As

part of this order, all squatters in Baghdad were given one month to vacate illegal residences, as this was preventing IDPs from reclaiming their property. The accompanying Council of Ministers Decree 262 provided for a six-month 300,000 Iraqi Dinar (IQD) per month rental stipend to be issued to all IDP families evicted by Order 101. However by December 2008, evictions were occurring but rental stipends were not disbursed. Lack of a clear assistance plan for evicted families carries the risk of deepening their vulnerability, and increasing the possibility of further displacement.

IDP Working Group, 26 November 2008

The PM Office issued Order No. 101 which stipulates the establishment of a Return Cell (Centres) as an implementation arm to manage the return and provide the necessary support and assistance to returning IDPs and refugees, including on property recovery and reconstruction. Two Centres are now operational in Baghdad (Al-Resafa – return/property, Al-Karkh - property).

- The Iraqi Prime Minister, Nouri Al-Maliki, gave a one month ultimatum, beginning on 1 August, for all

individuals occupying the houses of displaced persons, to vacate them. Anyone who does not conform to the order will be evicted. (*See Order No. 101 issued on 01.09.2008*)

- The General Secretariat of the Council of Ministers issued Decree No. 262 (17 July 2008) – extending the IDP assistance scheme to the caseload that has not yet received it.....

The *First National Conference to Address Displacement* took place in Baghdad from 8 to 9 July 2008. The Conference was chaired by the Minister of Displacement and Migration and was supported by the United Nations Office for Project Services (UNOPS) and the United Nations High Commissioner for Refugees (UNHCR), through funding by the Australian Government.

- The event brought together a large number of different stakeholders including: high-ranking officials, representatives from the Prime Minister's Office, the Government of Iraq (GoI), the Iraqi Parliament, the Kurdistan Regional Government (KRG), the various diplomatic missions accredited to Baghdad and those from the numerous national and international non-governmental organizations (NGOs) operating in the region, Governors, Governorate Councils, religious and tribal leaders, internally displaced persons (IDPs) and the media.

- The main purpose of the Conference was to launch the *National Policy on Internal Displacement* which was prepared by the MoDM and the KRG, with the support of UNHCR, International Medical Corps (IMC) and other agencies and non- governmental organizations, including Sector Outcome Teams. The Policy was also previously endorsed by the Council of Ministers with the request of incorporating more Iraqi-related technical and legal aspects. Together with the National Policy, a draft work plan was prepared and distributed to all Conference participants to guide the implementation of the National Policy. The National Policy itself describes the rights and the needs of the newly displaced families inside Iraq and together with the draft work plan provides a framework to respond to their needs during emergencies, displacement and durable solutions phase. It also outlines the need for coordination and cooperation between the different Ministries and the international community to facilitate their durable solutions.

- Participants from different quarters highlighted the need for more resources for IDPs, not only for those displaced post-February 2006, access to assistance for unregistered IDPs, access to PDS during displacement; some stressed the need for increased security and the creation of employment opportunities for IDPs. To further advance the implementation of the National Policy, four Working Groups were established and were tasked to come up with recommendations on the following four topics:

- *Working Group 1: Internally displaced persons post 2003 – Emergency preparedness and responses*

- *Working Group 2: Loss of property, assets and damaged housing (post 2003)*

- *Working Group 3: Looking for durable solutions of IDPs*

- *Working Group 4: Iraqis abroad*

- There was agreement that the National Policy and the draft work plan provide the basis for addressing the needs of IDPs and returnees and that they now need to be implemented through

the various Ministries and institutions at central, regional and local levels. The next steps will include the follow-up of issues to be addressed at central level as well as the development of concrete work plans at Governorate level.

United Nations Assistance Mission for Iraq (UNAMI), 6 November 2008

35. The improving security situation and a lack of access to basic services and assistance in areas of displacement have prompted increasing numbers of internally displaced persons to return in June (12,000), July (18,000) and August (36,000). Refugee returns are believed to be much lower at around 1,000 to 2,000 per month. Some 50 per cent of the returnee totals represent families returning to Baghdad. Housing in many cases has been problematic, as many of the returnees' houses have been occupied by others or damaged. To encourage the return of displaced people, on 2 August the Government issued a directive to evict illegal occupants from Baghdad on private homes and government buildings across the country. Eviction started in 2 September following a one-month notice period and is applicable countrywide. The Government has established a reconciliation council to arbitrate property disputes and is offering a one-off payment of 1 million dinars (around \$830) to each returning family. In addition, the Government is committed to paying 1.8 million dinars (equivalent to six months' rent) to displaced persons evicted from houses in Baghdad and unable to return to their original homes. Unfortunately, the Government continues to face challenges in the actual implementation of the assistance programme. The United Nations and its partners continue to advocate with Iraqi authorities on the protection of the internally displaced and those facing secondary displacement from the implementation of eviction orders, as well as the simplification of registration and compensation procedures.

UN Secretary General (UNSG), 28 July 2008

36. The Iraq 2008 consolidated appeal for \$267 million is 47 per cent funded, with \$127 million. This amount includes a contribution by the Government of Iraq of \$40 million to the World Food Programme (WFP) to fund internally displaced Iraqis who are particularly vulnerable and the \$8 million Iraq donated to UNHCR in Jordan for Iraqi refugees. Funding levels vary across sectors, with the most underfunded being health, water and sanitation, education, and agriculture and food security, which have received only about 13 per cent of the funding necessary for the delivery of essential services. Limited financial support has been received by non-governmental organizations participating in the consolidated appeal process, which is of concern, as their operations are crucial for reaching communities inside Iraq....

Refugees International (RI), April 2008

The Government of Iraq is itself a party to the conflict and its security forces have facilitated displacement and sometimes carried it out themselves. Officers in the Iraqi Security forces complain that most of their men are loyal to the Mahdi Army and most of their commanders are loyal to the Mahdi Army or the Badr Militia. They and Sunni groups described incidents where Iraqi Security Forces opened fire on Sunni neighborhoods, protected death squads, or were directly involved in the kidnapping and execution of Sunni civilians..... This lack of separation between the state and the Shiite denomination intimidates Sunnis and creates the impression of Shiite ownership of government institutions. Iraqi ministries are controlled by political parties and the Ministry of Migration is controlled by Iraqis widely reputed to be Sadrist sympathizers, although no accusations were made of ties to the Mahdi Army. As a result, to the extent that the Ministry of Migration provides services to Iraqis, it is widely perceived to have a strong bias in favor of Shiites. Local officials in the Sunni areas of Kirkuk, Mosul and Diyala, also believe that aid is more available in Shiite governorates. However, the situation may change in some Sunni governorates such as Anbar, where security has improved and the Ministry of Migration can now gain more access....

The Ministry of Trade, in charge of the essential Public Distribution System (PDS), is also widely perceived as being compromised by sectarianism in favour of Shiites. Meanwhile, corruption,

inefficiency and security problems also militate against proper PDS outreach. In the best cases, Iraqis only received fifty percent of the PDS contents and the quality of the contents has gone down. Refugees International interviewed internally displaced people (ID Ps) in Baghdad, Diyala, Mosul, Falluja, Babel, Kirkuk and Najaf. Although anecdotal, our evidence shows that few ID Ps have succeeded in transferring their PDS cards when they move to new neighborhoods. Of those who were able to, the overwhelming majority are Shiites. Returnees also have a hard time renewing their PDS cards. Although most government bias seems to be in favor of Shiites, aid groups note that in provinces that are in the hands of Sunnis, such as Salahedin governorate, Shiite areas face a sectarian bias against them from local officials and receive an inferior quality of help. For example in Salahedin, the towns of Dujail and Balad are Shiite pockets and receive less assistance. Within Baghdad, government services, always plagued with inefficiency, are distributed according to a sectarian bias. Shiite areas get more hours of electricity than Sunni areas, in most cases.

Since then, the Government of Iraq has taken some steps to respond to these concerns, but they have yet to be implemented and are insufficient. The government has issued an executive order to create an inter-ministerial “Displacement and Migration Committee” in charge of identifying safe areas for returns within Iraq, laying out a plan to provide services, and developing a plan to return the displaced to their homes. Despite the creation of this committee, and the pressure exerted by both the US and the UN, the government has yet to adopt a National Policy on Displacement and Returns. In its strategy on returns, the Ministry of Migration recognizes the existing challenges to returns, and notes that the lack of essential and commercial services is a factor discouraging returns. It underlines the necessity for the government and the assistance community to provide an array of services to the returnees and improve the overall infrastructure of Iraq. The strategy also mentions the importance of involving all religious leaders and communities in encouraging returns. However, while recognizing the sectarian divide in many of the displaced areas of origin, it does not discuss political reconciliation or the sustainability of returns.

Brookings Institution, August 2008

There is also concern about the fact that Iraq is not devoting sufficient resources itself to the displacement issue. An Iraqi pledge of \$25 million for host countries that was announced in April 2007 was “very slow to materialize; Jordan reportedly refused to accept its \$8 million share and suggested it be given directly to UNHCR, because the sum was perceived as so small relative to the need.”⁶⁷ The gap between the amount the Iraqi government has pledged for IDPs—US\$350 million—coupled with the amount of its unspent budget—US\$40 billion—leads most donors to argue that Iraq should provide the bulk of humanitarian assistance to its own people.⁶⁸ Other middle-income countries facing displacement situations, such as Turkey and the Philippines, have devoted relatively more resources to their own internally displaced than has Iraq. But the political, economic, and security situations in Iraq have been so dire in recent years and the government’s capacity to act has been so dismantled that these comparisons are perhaps unfair. There are serious concerns, for example, about the capacity of the Ministry of Displacement and Migration (MoDM) which has recently been renamed the Ministry of Migration—presumably to indicate the government’s desire to do more with returning refugees. A General Accounting Office assessment of U.S. efforts to build capacity within Iraqi ministries revealed that such programs had not been successful. Hinderances to well-functioning government ministries, including MoDM, include lack of capable, trained staff, corruption, insecurity, and “partisan influence over the leadership and staffing of the ministries.”⁶⁹ A senior international official explained that even after five years of war, MoDM lacked basic procedures and had virtually no staff with any experience with displacement. Moreover the Ministry was still not clear about whether its role was to be a coordinating or an operational body. Simply providing more money to the ministry is unlikely to result in better programs on the ground.⁷⁰ However, the Iraqi government could certainly contribute to international organizations’ appeals to meet the needs of its own citizens as in the recent Consolidated Appeals Process. Moreover, al-Maliki government lacks political will to

recognize either the magnitude or the potential consequences of the displacement. To do so would be an indication of the government's failure to protect its people.

United Nations High Commissioner for Refugees (UNHCR), September 2008

July 8th and 9th, MoDM held the National Conference on Iraq's National Policy on Displacement. Some 300 participants attended, representing the central Government, Parliamentarians, Governorates, Municipalities, national/international NGOs, UN Agencies, ICRC and Diplomatic Missions. Key recommendations from the Conference:

- Urgent need to apply the positive principles and recommendations of the policy by the Central Government
- Provision of grants to all displaced families (so far some 140,000 families received 120 US\$ for 6 months' period; an additional 80,000 families in Central South and 35,000 families in KRG will be included under the latest budget)
- Minister agreed to carry out registration of unregistered IDPs - this problem is particularly serious in Kerbala with an estimated 5,000 - 7,000 unregistered IDP families
- Many Governors, Deputy Governors and Sheikhs highlighted the social burden of hosting IDPs and suggested that they should be returned to their places of origin, even involuntarily. It was suggested that dedicated budgetary allocations should be provided to Governorates hosting IDPs. This would ease the pressure and the call for involuntary returns
- More rigorous application of existing compensations laws - for property loss/damage before 2003 and for personal sufferings - death, injuries. The need for a property compensation law was emphasized by many participants.

Integrated Regional Information Networks (IRIN), 20 July 2008

The Iraqi government has adopted a number of measures aimed at encouraging the return of over four million internally displaced persons (IDPs) and refugees to their homes, a government statement has said. The most significant measure is the one-off payment of 1.8 million Iraqi dinars (about US\$1,500) to families who are illegally occupying the houses of other displaced families from a different sect and who want to return to their homes, [the statement said on 16 July](#). The aim is to help those families to rent other places, the statement said. All IDPs or refugees willing to return to their houses will be paid one million Iraqi dinars (about \$840), it said. Another measure stipulates an additional monthly payment of 150,000 Iraqi dinars (about \$145) to each internally displaced family which has not yet returned to its home. The payment will be for three months while the family is still displaced. Other measures include helping Iraqi refugees in neighbouring countries with free airline tickets if they choose to return home, the free shipment of their belongings, and compensation for damaged property. These decisions are designed to facilitate and expedite the return of displaced families to their houses to boost the peaceful coexistence among Iraq's different components in mixed areas, the statement said.... Adil Muhsin al-Baghdadi, a Baghdad-based analyst, said the government move was a positive one aimed at ending the displacement problem. The government has achieved some security gains and wants to maintain them especially with regards to the displacement problem, al-Baghdadi, who runs the independent Hiwar Research Centre, said. But, of course, this will not end the displacement problem as its roots lie in political infighting, but at least it will be a positive factor, he added.

Reuters, 22 June 2008

Iraqi security forces will announce a deadline next month for squatters to get out or be evicted from homes of people forced to flee sectarian violence in Baghdad, a military spokesman said on Sunday. Major-General Qassim Moussawi, spokesman for the Iraqi military in Baghdad, said kicking out squatters to allow refugees to return was vital to restoring security in the capital. "Next month, God willing, we will announce a final deadline to clear out the occupants (in Baghdad), otherwise the security forces will raid those occupied houses and evacuate them at once," Moussawi told a news conference in Baghdad. "The return of all displaced families is essential to the Baghdad security plan," Moussawi said. "It was one of the aims of terrorists ... to

divide Baghdad into sectarian districts." UNHCR said this month that as many as 70 percent of would-be returnees to Iraq had been unable to resettle in their own homes for various reasons, including a lack of services. Some homes have been occupied, while others were destroyed, aid workers say.

Integrated Regional Information Networks (IRIN), 27 July 2008

A provincial investigative committee in the southern Iraqi city of Najaf is to go check the files of more than 200 displaced families living in a camp outside the city to determine who are genuinely displaced and who are not, an official said on 26 July. Mashkour al-Mousawi, director of the Ministry of Displacement and Migration's Najaf province branch, added that the committee will expel from the camp those families claiming to be displaced and will encourage the return of some genuine internally displaced persons (IDPs) to areas now deemed safer for them to return to....Once news of the governmental committee reached the desert camp, displaced families began a protest on 25 July, fearing that local authorities would close the camp.

Integrated Regional Information Networks (IRIN), 16 March 2008

As Iraq's displacement problem continues to grow, representatives of local non-governmental organisations (NGOs) on 15 March warned that government plans to build residential compounds for internally displaced persons (IDPs) should neither be sectarian nor permanent. Basil al-Azawi, head of the Iraqi Commission for Civil Society Enterprises (ICCSE), a coalition of over 1,000 Iraqi NGOs, said that plans by Iraq's Displacement and Migration Ministry to build compounds for IDPs were "a step in the right direction", but warned that they should not become permanent solutions. There are now more than two million internally displaced persons in the country, with the majority still living in camps. There must be suitable places for them to live with good sanitation, electricity and other services until they can get back to their normal lives," al-Azawi told IRIN, adding that tents did not meet the minimum standards required for IDPs. But these places [such as compounds] should be temporary and should not end up as sectarian residential areas. The government must not forget that the only solution for their problem is a political one to achieve reconciliation, al-Azawi told IRIN. On 6 February, Iraq's displacement ministry announced it was planning to build a number of residential compounds nationwide for IDPs. With 50 buildings per compound, and six apartments per building, each compound is expected to house 300 displaced families. The exact number of compounds to be built is still not finalised as the displacement ministry is in talks with Iraqi and Arab banks to fund the project. Although the project is still on the drawing board, on 12 March officials from the displacement ministry laid the cornerstone of a compound in Missan city, about 350km south of Baghdad. The compound will cost US\$5 million and will be built on 20 acres of land. This step is clear proof that the government is dealing with the displacement problem but also that it is not solving it as it does not get to the bottom of the problem," Tawfiq Mu'taz Hassan, a sociology professor at Babil University, said. These compounds will entrench what others are promoting: neighbourhoods and areas divided according to sect and then the country's whole demography will be changed," he added.

Integrated Regional Information Networks (IRIN), 6 February 2008

The Iraqi Ministry of Displacement and Migration is planning to build a yet undetermined number of residential compounds nationwide to ease the problems faced by over two million internally displaced persons (IDPs), a ministry official said on 6 February. We are still at the drawing-board phase for residential compounds to be built over 50,000 square metres, scattered nationwide," said Ali Shaalan, head of the Ministry's Planning Directorate. We expect to complete this phase in about a month. So far we've managed to buy land in only seven provinces, including Missan, Karbala, Basra and Thi Qar; we are planning to buy more land nationwide," Shaalan told IRIN, adding that the precise number of compounds to be built would be determined as soon as it was clear how much funding and land would be available. Shaalan said his ministry was planning to approach Iraqi and Arab banks to get funds for the project. According to Shaalan, each residential compound will have 50 buildings and each building will have six apartments ".

allowing some 300 IDP families per compound the opportunity to purchase a unit. Schools, markets, mosques, electricity and water plants, and other facilities will be built in each compound. We are planning that the IDP families pay in instalments for maybe 20-30 years," said Shaalan who estimated the cost of each compound at about US\$12 million. So far, it has not been determined which displaced families will have priority in occupying these compounds but Shaalan said his Ministry's plan "will not change the demography of any province".

Integrated Regional Information Networks (IRIN), 27 January 2008

The Iraqi Ministry of Defence has given about 300 internally displaced persons (IDPs) one week to evacuate a former military compound in Babil Province, about 100km south of the capital, Baghdad, officials said on 25 January. "Representatives of about 45 displaced families last week appealed to the Iraqi parliament for help to persuade the defence ministry to postpone its decision," Abdul-Khaleq Zankana, head of parliament's displacement committee, told IRIN, adding that the Iraqi army intended to reuse the compound as a military base. Zankana said his committee had been in discussions with US-led forces, the Iraqi defence ministry and the Iraqi Red Crescent Society (IRCS) in an attempt to reverse the decision. "Nothing yet has been achieved to solve this problem but we are against displacing these families again and increasing their daily suffering," Zankana said. Al-Zubaidi added that a provincial committee had been formed to find a solution for these families; either by re-housing them in an abandoned government building or by erecting a new camp for them. "But most probably we will get a piece of land in the suburbs [of Hilla] from the city's municipality to erect more than 100 tents for them and supply them with food and non-food items," al-Zubaidi said. "It is indeed a problem. It will be difficult for us to erect a camp in four or five days as we are in winter and it is raining nowadays. Because of that we need more time." When contacted, the Iraqi defence ministry refused to comment on the issue.

Integrated Regional Information Networks (IRIN), 16 January 2008

Local authorities in Kerbala, a southern province of Iraq about 120km south of the capital, Baghdad, have destroyed thousands of hectares of agricultural land, putting dozens of peasant families at risk of being displaced, according to residents. "The farmers had been warned since last September to leave their farmland as plans have been drawn up by local authorities to turn the area into a residential one for the families of victims of the previous regime," Amal al-Hir, head of Kerbala Agricultural Directorate, said. According to al-Hir, the late former Iraqi president Saddam Hussein in 1991 granted 10-year contracts to peasant farmers in a desert area that he designated as a new green

Integrated Regional Information Networks (IRIN), 25 September 2008

A parliamentary committee on displacement and migration demanded the Iraqi government allot US\$4 billion in next year's budget to meet the needs of more than four million internally displaced persons (IDPs) and refugees. "We asked the government last year to allocate 3 to 5 percent of the oil revenues in the 2008 budget to cover the needs of IDPs and refugees as they represent a big segment of the Iraqi people and are going through harsh conditions," Abdul-Khaliq Zankana, a lawmaker and head of parliament's displacement and migration committee, told IRIN on 24 September. "But unfortunately this call was ignored," Zankana said. "A few months ago, we appealed for \$2 billion to be allotted in the \$21 billion complementary budget to the 2008 budget for the same purpose, but the government only allotted about \$200 million," Zankana said. Iraq's 2008 budget was \$70 billion.

Integrated Regional Information Networks (IRIN), 13 May 2008

The problem of internally displaced persons (IDPs) and Iraqi refugees in neighbouring countries is likely to grow into a regional and international problem because the government appears to have no clear policy to tackle it, a member of parliament (MP) said on 12 May. "The government's obvious inability to solve the problem of IDPs and refugees could lead to serious regional and international problems, as there is no clear and comprehensive policy to get them back into their

homes," MP Abdul-Khaliq Zankana, head of parliament's Displacement and Migration Committee, said. "These problems will hit Iraqi security and society. The absence of support and appropriate solutions will leave them easy prey to militias and armed gangs inside Iraq and [make them into] possible recruits to intelligence services outside Iraq," Zankana said. Since the beginning of 2008, Zankana's committee has demanded a comprehensive, long-term government policy and budget to tackle the problem, proposing that 3-5 percent of national oil revenues be set aside to fund programmes to assist IDPs. "All these demands and appeals have vanished," he said, threatening that he and his committee members could resign "because there are no appropriate measures to solve this problem". According to the UN Refugee Agency (UNHCR), over 4.2 million Iraqis have fled their homes during this period - most since 2003. Of these, over 2 million are living as refugees in neighbouring countries - mostly Syria and Jordan - while 2.7 million are IDPs. On 9 May, UNHCR launched an appeal, after pointing out at a donor meeting in Geneva that it could find itself forced to reduce or suspend a number of its programmes - covering medical, food, education and direct financial assistance - unless additional support were forthcoming. In January 2008, the UNHCR appealed for US\$261 million for its Iraq-related operations inside and outside the war-torn country but it has so far received only US\$134 million. It is now appealing for US\$127 million

Integrated Regional Information Networks (IRIN), 10 February 2008

With no end in sight for the plight of Iraqis displaced in and outside their country, a comprehensive, long-term government policy and budget to assist them is urgently required, an Iraqi parliamentary committee said on 9 February. We believe that occasional financial support given by the government, national and international organisations is not enough to solve this problem," said MP Abdul-Khaliq Zankana, head of parliament's Displacement and Migration Committee. So the government has to adopt a fixed, clear and comprehensive policy that leads to an assigned budget as this problem [displacement] is unlikely to be solved in months or even years," Zankana told IRIN. Zankana proposed that the government should take advantage of an increase in national oil output and soaring world oil prices by allocating a percentage of oil revenues for a budget for aiding the displaced. We propose 3 to 5 percent of national oil revenues should be allocated to this problem as they [displaced families] have become not only a burden on the Iraqi government but on all host countries as well," he said.

Integrated Regional Information Networks (IRIN), 24 January 2008

Another tranche of 350 million Iraqi dinars (about US\$290,000) has been allocated by the Iraqi parliament to cope with the needs of internally displaced persons (IDPs), a lawmaker said on 23 January. This amount will help displaced families living in makeshift camps and compounds which, for many reasons, did not receive enough aid from government and non-governmental organisations [NGOs], Abdul-Khaliq Zankana, head of parliament's displacement committee, told IRIN. A plan for using this money has not been drawn up yet as the committee members are trying to determine how to help these most needy families in such compounds, either by giving them cash or by buying materials," Zankana said. On 6 December [parliament allocated 500 million Iraqi dinars](#) (about \$410,000) to help the IDPs. The money had been earmarked from unused attendance allowances for MPs. The parliamentary displacement committee was planning to use the money to buy food, blankets, hygiene kits and clothes, especially for children.

Integrated Regional Information Networks (IRIN), 12 December 2007

The Iraqi parliament decided on 6 December to allocate 500 million Iraqi dinars (about US\$410,000) to help displaced families nationwide. The money is unused attendance allowances for members of parliament (MPs), explained Speaker Mahmoud al-Mashhadani. "This is a preliminary payment and will be followed by more. The money has already been sent to parliament's displacement committee to distribute," al-Mashhadani said. In a bid to curb frequent absences of its members, Iraq's 275 MPs decided to recycle unused attendance allowances in this way. The displacement committee said it would use the money to buy food, blankets, hygiene

kits and clothes, especially for children, and other essentials which will be distributed to internally displaced persons (IDPs). "It has become very hard for the government and non-governmental organisations (NGOs) to meet the increasing needs of these [displaced] families and especially those who are living in camps and abandoned government buildings," said MP Abdul-Hadi Mohammed. "Most of these families are living in harsh conditions and need every penny, especially those who have children or chronic diseases," Mohammed said. He said it had become hard to determine how much money these families needed each month as their numbers were increasing.

Integrated Regional Information Networks (IRIN), 31 December 2007

Iraqi Prime Minister Nouri al-Maliki has ordered financial support for all Kurdish families driven from their homes in Iraq's northern semi-autonomous region of Kurdistan in the wake of Turkish bombardments on rebel hideouts, his office said on 30 December. "The prime minister has ordered the formation of a committee to visit these families and pay one million Iraqi dinars (about US\$830) to every Kurdish family displaced by Turkish bombings," the statement issued by al-Maliki's office said. The statement did not say how many families have been displaced, but said the aid would be distributed in coordination with the local Kurdish authorities. According to Hamza Hamid Mohammed, a spokesman for the Kurdistan Regional Government in Arbil, only 450 families out of about 700 displaced families who have fled their border villages since 16 December, have received financial support. Others will receive it in the coming days.

International and national humanitarian response (2003-2009)

- Following the destruction of the Canal Hotel in 2003, the U.N. responded to the bombing and by suspending programs and withdrawing staff from Iraq, effectively cutting off any meaningful assistance to a population (FIC, July 2007) U.N. would eventually re-establish a limited presence in Iraq but only by effectively embedding itself with coalition forces. UNICEF and UNHCR made efforts to keep programs operating through local networks and partner organizations. IOM established similar networks for monitoring needs and assisting. (FIC, July 2007) The UNSC Resolution 1546 of June 2004, formalized the reliance of the entire U.N. system - making no distinction between UNAMI and the various members of the UNCT - in Iraq on the MNF. (FIC, July 2007) Resolution 1546 effectively shackled and subordinated the U.N.'s humanitarian role to the fortunes or misfortunes of the MNF and to UNAMI's political role in facilitating the transition of Iraq away from occupation. (FIC, July 2007)
- UNSC Resolution 1770 (2007), would recognise the humanitarian crisis to which existing UN structure had been slow to respond to and broadened the responsibilities of the four-year-old Mission, authorized the head of UNAMI to "advise, support and assist" the Iraqi Government in advancing an "inclusive, national dialogue and political reconciliation", (RI, April 2008) This would follow suit in late 2007 to 2008, with restructuring of UN coordinated response to the humanitarian crisis. Humanitarian issues were mainstreamed in revised UN response structure under SOTs. The first CAP launched in early 2008 (209 million US, 100% funded) and Regional CAP launched in December 2008 (547 million US, funded 64%) , revealed UN's revised attention to the situation. (RI, April 2008; Brookings August 2008)
- UN response more recently in recognition that humanitarian crisis has given way to phase of transition with pockets of vulnerability, and declining donor funding. (UN OCHA, December 2009) The response in 2009 was significantly lower than in 2008, and subsequent lower-than-expected level of funding prompted the UN Country Team to re-visit its prioritisation for 2010. This has led to the identification of three priority tracks: Maintain rapid response capacity to sudden-onset crises; Area-based response on 26 priority districts in Iraq; Cross-sectoral country-wide themes (including displacement) and humanitarian needs. The total funding requested under the Iraq 2010 Humanitarian Plan launched in December 2009 is

- The UN has since 2003 continued to review the possibility of reestablishing a sustained presence, and have since 2003 operated through INGOs and NGOs as implementing partners. In 2007-2009 it has gradually reestablished presence under MNF-I auspices placing international staff in Baghdad, Basra, Najaf, Kirkuk, Mosul and Erbil. Though the UN continued to expand its presence to over 300 expatriate staff in 2009 there are still severe operational constraints in view of UN's operational restrictions and dependence on MNF-I for security and movement. The close association with MNF forces, or other visible armed escorts, restricts UN's access to Iraqi communities and also renders the UN partly inaccessible, and 'un-humanitarian' for Iraqis and humanitarian agencies.
- UNHCR (Protection Cluster lead) and IOM have played key roles in addressing displacement in Iraq. UNHCR Protection Assistance Centres (PACs) including 14 centers and 35 mobile teams conduct protection monitoring and provide legal counseling and support to IDPs and returnees throughout Iraq. In 2009, 16 Return, Integration and Community Centers (RICCs) were established with purpose of assisting returnees. UNHCR has also developed large network of over 100 national NGOs to address issues of concern. These centres are distinct from MoDM return assistance centres (RACs). IOM is also present throughout Iraq through field offices and implementing partners monitoring situation of IDPs, providing quick impact projects and regular reporting on the situation of IDPs. UNHCR and IOM as with other agencies provide capacity building and assistance to MoDM. In 2009, the Diyala initiative launched under Order 54 (July 2009) represents the first inter-agency and Iraqi ministerial project to
- address questions of displacement and particularly return. This is first such integrated response bringing various UN agencies and Ministries to address displacement.
- Until mid 2009, UN led IDP Working Group was a key actor bringing together NGOs and UN agencies on questions of IDPs. The Working Group has however been moribund for latter part of 2009, and regrettably uncertain whether it will resume its activities. This is unfortunate as there remains key areas that require adequate monitoring. Given the enormity of the scale of displacement and various issues that remain inadequately addressed wider coordination amongst actors on questions of displacement is essential. This includes mapping of various protection concerns throughout the country such as addressing monitoring situation of secondary occupancy and property restitution, informal settlements, registration unregistration and deregistration of returnees and IDPs, and return monitoring and follow up. These underline that there remains significant gaps in response to the situation.
- Despite acknowledging the structural changes that UN has undertaken and remains challenged, observers have noted of persistent issues of concern; presence of parallel and contradictory coordination mechanisms, and overt reliance on MNF to the detriment of UN credibility. Critics have underlined dysfunctional coordination structures, critical of UNAMI's overemphasis on political aspects of its mandate, limited monitoring and advocacy on thematic issues, and questioned presence of international staff alongside MNF-I coordinating activities from secured compounds (Feinstein, December 2008). These remains poignant criticism of the humanitarian operations and has emphasised the continued need for UN address dysfunctional aspects of its operations, revise its coordination efforts, address civil-military coordination issues, and for a stronger humanitarian positioning to widen humanitarian space. (RI, April 2008)
- National and international NGOs have also been significantly impaired in their operational capacity. In between 2003 to 2005, apart from some exceptions nearly all humanitarian organisations changed operational modalities to some form of remote programming with international staff at safe distance in Amman, Kuwait, or Erbil. There also existed a divide between NGOs not wanting to be associated with MNF-I and those operating with US funded grants and security support provided by MNF-I or private contractors (FIC, July 2007; NRC, August 2009). Increasing violence in 2006-2007 further restricted mobility and many Iraqi NGOs also engaged in remote programming. Though remote programming options have kept

- 2008).
- Remote management continues to be present though in view of recent developments in 2008-2009, and with increasing pressure from international community faced by NGOs to be present, NCCI and INGOs have been reassessing re-entry scenarios and have been relocating international staff to central and southern Iraq (NRC, August 2009; NCCI November 2008). Adopting light footprints with no or limited profile and in many instances avoiding direct involvement with MNF-I, the operational environment remains extremely challenging rendered more difficult by continuing insecurity. Since 2003 close to 100 aid workers, mostly national, have been reported killed including several aid workers targeted in Baghdad in January 2010 (NCCI, January 2008; IWPR, January 2010; Reuters, January 2010). At present there are more than 60 INGOs operating through various modalities in Iraq with close to hundred or more national NGOs. There are several thousand NGOs that have been established since 2003 though
- anecdotal evidence suggests many are not credible.(NRC, August 2009)
- The operational humanitarian space has since 2003 been threatened from a number of different directions. From 2003 onwards the civil-military contingents of MNF-I have had extensive funds at the disposal, piling that available to the UN, for reconstruction and humanitarian assistance under hearts and mind counter insurgency policy. These operations have since 2003 shadowed that of humanitarian community and blurred humanitarian and civil-military activities of MNF-I. The MNF-I civil-military contingents are not under any coordination mechanism, and have been criticised for lack of transparency, and non-adherence to humanitarian principles. From 2003 to 2008 several billion US were at the disposal of these units. Though some aspects of these have diminished with phased withdrawal in 2009, civil-military activities continue to be in evidence.
- In 2007 to 2008, protection and assistance gaps left by the incremental failure of the state and the absence of an appropriately scaled humanitarian presence were reported being filled by militias and parties throughout the central and southern governorates. (FIC, July 2007; ICG February 2008) Sunni and Shi'ia militias have been reported to provide compensation or assistance to displaced communities. This has also involved provision of resettlement assistance of displaced communities in areas formerly inhabited by Iraqis of another sect and repossessed by militias. (ICG, February 2008) Sadrist offices (makatib al Sayyid al Shahid, managed assets expropriated from Sunni communities, channelling and redistributing these resources. Sunni militias are also said to have provided such assistance to displaced. (ICG, February 2008)
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OCHA, December 2009

The current humanitarian situation in many parts of the country is shaped not by new emergencies and displacement but rather by a legacy of sanctions, conflict, underdevelopment and neglect. These factors have led to a situation where lack of water, shelter, food, protection, or access to education and health care have reached proportions that require a humanitarian response in order to meet immediate needs. To this end, the IHAP has prioritised 26 districts in Iraq, where integrated district level projects have been prepared in order to maximise the impact of and complementarities among various humanitarian actions and agencies. The funding raised through the 2009 CAP (Pillar I), US\$213.5 million, was not sufficient to address all humanitarian needs in Iraq, and therefore deliberate focus on priority districts is intended to ensure that even limited funding can provide visible and longlasting effects for Iraq's poorest. Due to the focus on these two themes, the 2010 IHAP has been grouped in three main tracks, instead of sector-level response plans used in other humanitarian appeals. The first two tracks focus on rapid response

and on the provision of coherent, inter-sectoral assistance in 26 priority districts. The third track focuses on ongoing, country-wide responses that cannot be tied to a specific geographical area. These include measures aimed at addressing the humanitarian fallout of the 2007 to 2009 drought, mine action, protection for internally displaced people (IDPs), refugees and returnees, and supporting critical social safety nets needed in Iraq....The 2010 IHAP is a joint humanitarian strategy, developed by nine UN agencies, the International Organization for Migration (IOM) and 12 non-governmental organisations (NGOs) operating in the country....

Donor response to the humanitarian situation in Iraq in 2009 was significantly lower than in 2008, when the funding level amounted to 67% of total needs. As a matter of particular concern, 16 UN agency projects and 10 NGO projects did not raise any funding through the 2009 Iraq CAP (Pillar I), although some NGO projects received funding through the Expanded Humanitarian Response Fund (EHRF) and as partners of UN agencies. Lower-than-expected level of funding and lack of support to 55% of UN and NGO projects included in the 2009 Iraq CAP (Pillar I) prompted the UN Country Team (UNCT) in Iraq to re-visit the prioritisation of its humanitarian projects. This, in tandem with an improved understanding of Iraq's humanitarian needs, has led to the identification of three priority tracks for the UN and INGO humanitarian operations in Iraq in 2010:

1. Maintain rapid response capacity to sudden-onset crises that may occur in 2010, such as population displacement or a disease outbreak
2. Area-based response, where agencies will focus their attention on 26 priority districts in Iraq in order to maximise complementarities and added value of the operations
3. Cross-sectoral country-wide themes and humanitarian needs, such as protection and those stemming from the impact of the 2007 to 2009 drought in north-western Iraq.

UNHCR, November 2009

Return- Shelter: Rehabilitation and reconstruction of 10,265 units for IDPs and refugee returnees with particular focus in the Central region where higher number of returns occur. Community-based projects (related to shelter): WatSan projects linked to shelter depending on ongoing needs assessments in areas of return. Protection: a) Establishment of 16 Return, Integration and Community Centers (RICCs), six in Baghdad and additional ten centers in Salah Al-Din, Diyala, Anbar, Kerbala, Basra, Mosul and Kirkuk. b) Systematic border monitoring in Trebil (at Iraqi-Jordanian border) and Al Waleed (at Iraqi-Syrian border) crossing points. Additional six border monitoring points are planned in different locations in Iraq. c) Support to the government return registration center in Baghdad.

IDPs- Non-food items (NFIs): Distribution of 25,000 NFIs and hygiene kit packages on vulnerable IDPs, returnees, refugees and asylum seekers. Maintenance of contingency NFI stock for 100,000 persons Shelter: 4,000 emergency shelter repairs for IDPs distributed as 1,800 in the center of Iraq, 600 in the north and 2,000 in the south. Support to communities: Multi-sector micro projects directly targeting communities that host IDPs and returnees through a network of 103 national NGOs Protection and Assistance Centers (PACs): 14 centers and 35 mobile teams conduct protection monitoring and provide legal counseling and support to IDPs and returnees throughout Iraq....

Partnership: In close collaboration with MODM and BDM (Bureau of Displacement and Migration - KRG), UNHCR works with 68 national and 11 international partners in Iraq (51 of the National NGOs are embedded under the NNGO Partnership Program).

Protection and Shelter Sector Outcome Teams: Protection: UNHCR (lead) & UNAMI Human Rights Office and UNICEF (deputy leads); Shelter: UN-Habitat (lead) & UNHCR (deputy lead). IDPs and returnees are par

UNHCR Iraq has its main office in Baghdad, Sub Offices in Erbil and Barsah, 14 field locations in Al Waleed, Baquba, Ramadi, Karbala, Najaf, Samara, Trebil, Kirkuk, Dohuk, Mosul, Sulaymaniyah, Missan, Nassiriyah and Kut, and two support offices in Amman and Kuwait.

Presence is underway in Hilla. 148 international and national staff work for UNHCR Iraq, out of the approved 197 posts in 2009.

NRC, August 2009

There were five distinct groups involved in delivery of humanitarian assistance to Iraqi during the study period. Most assistance was delivered through either the Multi-National Force Iraq or non-governmental organisations (national and international) working closely with the MNFI and under its protection. Funding for protection was included in contractual relationships. In addition, bilateral donors, UN Agencies, international NGOs (INGOs) - based in Amman and Erbil - and Iraqi NGOs (LNGOs) were also involved. The study focused on INGOs and LNGOs, taking into account the influence of official entities on their work.

There was little or no LNGO activity in Iraq prior to 2003....Non-affiliated organisations working outside of the state or religious and traditional structures, therefore, were largely non-existent before 2003.... Political space was restricted, as was the expectation of Iraqi society that an entity other than the state would deliver services or assistance. There was a significant expansion of LNGOs in Iraq between 2003 and 2005/6. Estimates of the number of LNGOs operating by 2009 ranged between 6300 and 12000 organisations, from no organisations reported in 2003. Excluding LNGOs in the autonomous Kurdish region, 90 percent of LNGOs in the sample group were established between 2003 and 2005, with only 10 percent established between 2006 and 2009.... Rapid expansion of the LNGO sector was facilitated by the combination of growing need, opportunity and a vacuum in Iraq's service and humanitarian delivery capacity..... Violence was the most important factor leading to the collapse in establishing LNGOs after 2005/6. Most expansion in the sample group occurred when security conditions were relatively permissive (2003-2005). Expansion declined or collapsed at the point when violence escalated, with sectarian and non-state violence replacing systematic state repression as the main source of threats.... The exception was LNGOs in the autonomous Kurdish region. Security and political conditions for Kurdish LNGOs were more significantly permissive than in the rest of Iraq.....

There was significant anecdotal information that many LNGOs are not credible. Evidence came primarily from the interview process (LNGOs, INGOs, donors, UN and Iraqi officials). There were numerous references to opportunism, corruption and the blurring of lines between not-for-profit LNGOs and for-profit companies operating behind stated humanitarian principles. The formation of non-credible organisations was facilitated by: (i) the dramatic influx of international resources after 2003; (ii) the absence of an enforceable national regulatory framework, and; (iii) the difficulties of monitoring activities on the ground, due to security conditions....LNGOs stated the presence of non-credible organisations created risk for legitimate operations... Most LNGOs were established to meet humanitarian needs, but have multiple objectives and activity areas. Eight-five percent of organisations in the sample group indicated their main objective was Humanitarian (delivery of emergency food and non-food assistance), with an additional 45 percent reporting their objectives included Protection (protection and promotion of human rights and advocacy on behalf of vulnerable groups- women, IDPs and the impoverished among other stated objectives)....

The INGO community in Iraq is diverse, with a broad range of perspectives on humanitarian principles and programmes.⁴¹ The majority of the INGOs have three or more years experience of working with Iraq. Most INGOs began operations soon after military intervention in 2003. However, an important minority have experience dating back to the 1990s, when INGOs worked alongside UN agencies delivering humanitarian assistance. Beginning in late 2003, INGOs, as well as the UN and the ICRC, began scaling down their operations inside Iraq..... Most organisations moved their operational capacity and international personnel to the autonomous Kurdish region and/or neighbouring countries. Only a very limited INGO presence with international personnel remained in country after 2005. Armed opposition groups did not

recognise humanitarian principles and associated any international presence or association with the military occupation....A division emerged early within the INGO community, and has not been resolved. As the security conditions deteriorated and field conditions became less permissive (2005/6), differences emerged between INGOs over the interpretation of humanitarian principles, relationship to the MNFI and use of armed protection (MNFI or armed private security).

...Among those INGOs that remained, some chose not accept funds from MNFI contributing countries or to use armed security. At the same time, the conditions for working inside Iraq on the basis of acceptance and humanitarian impartiality either did not exist, or were beyond the capacity of most organisations to cultivate. These INGOs withdrew to Amman, Kuwait or to the autonomous Kurdish region. They worked through Iraqi staff or remote management operations with national LNGOs; where technical support and oversight were provided by international counterparts from a distant but safer operational hub..... Other INGOs chose to accept funds from MNFI-contributing nations, primarily the United States, as well as using armed protection. These organisations delivered a significant portion of assistance, often on large contracts with MNFI countries. They combined delivery through their own structures with LNGOs or community authorities. The essential characteristic of these INGOs was their close relationship, real or perceived, with the MNFI and, therefore, effective integration into military strategy. Some made the decision based on their assessment that an acceptance strategy was not possible given the presence of armed groups that: (i) rejected any international presence, regardless of humanitarian intentions, and; (ii) operated outside of majority community values. These organisations delivered much of the humanitarian assistance that was channelled through INGOs.

...INGOs that chose to maintain operations in Iraq often worked with the US Department of Defence, USAID or US humanitarian assistance programmes. In addition to humanitarian operations, some at the same time were involved in activities clearly defined as counter-insurgency, such as the USAID Community Stabilisation programme. Organisations sometimes divided themselves into a humanitarian and non-humanitarian sections, with the latter being larger in terms of funding. They tended not to programme on the basis of community acceptance, given their proximity to a belligerent force the MNFI. Effective and sustainable relationships with communities, therefore, do not appear to have been developed. There was a blurring of humanitarian principles, therefore, between INGOs using armed protection and accepting funding from MNFI-contributing countries and those that did not. Little or no communication or coordination occurred between these two groups. At the same time, the defining characteristics of an INGO also appeared to blur....

Acceptance-based INGOs were also concerned that the United Nations decision to work under MNFI protection further undermined humanitarian principles. Security Council resolutions mandated the MNFI to provide security for the United Nations system (UNAMI and agencies) in Iraq, including for the delivery of humanitarian assistance....Some INGOs believe that the impartiality of UN humanitarian operations was affected by the Security Council's decision: that there was effectively cooperation between the UN and the MNFI that could undermine impartiality and result in sensitive information being passed on to the military officials. In the context of an integrated mission, some INGOs were also concerned that humanitarian action would be subordinate to the political objectives of UNAMI.

FIC, December 2008

Operational NGOs and other actors contacted for the review were acutely conscious of UNAMI's preoccupation with the political aspects of its mandate, suspicious of its emphasis on being an integrated mission, and often scornful of the UN's much-touted increase of international staff presence in Iraq. There is a prevailing sense that because of the UN's restricted field of view in Iraq from behind the blast walls of the Green Zone or MNFI forward operating bases in Ramadi, Mosul or Basrah, the UN's humanitarian apparatus has tended to over-emphasize its roles

supporting Iraqi ministries, and has been overly influenced by assistance agencies that are accessible to it inside security bubbles. Un-embedded humanitarian actors complain that the UN agencies seem far less well-informed about—and out of touch with—the activities of operational agencies that strive to keep at arm's length from the MNF-I and work effectively with light footprints. Senior UN staff, meanwhile, speak openly about the need for NGO pragmatism and compromise of principles at a time when the hard evidence from ground level is that principled approaches have served operational humanitarian organizations like the ICRC and many NGOs very well.

By moving its humanitarian management functions increasingly into the Green Zone throughout 2008, the UN has been erecting more barriers to effective coordination. Many Iraqi and independent international NGOs are prevented by the prevailing political sensitivities, logistical burdens and security concerns from participating in Green Zone coordination fora. In their absence, the UN gravitates instead toward the actors most accessible to it: a few well-resourced INGOs and donors, the MNF-I, embassies and government ministries, all situated in or adjacent to protected areas under the soon-to-be-reduced MNF-I security umbrella. In recent months, Iraqi and international NGOs have complained about plans to hold two separate humanitarian coordination meetings in Baghdad: one out in the “real Iraq,” for staff of non-embedded humanitarian actors, the other inside the Green Zone. Although not a bad idea in theory, it rests on a reciprocal flow of information that has proved elusive. The decision was seen by some of those interviewed as segregating internationals from Iraqis, Arabic speakers from English speakers, and non-embedded agencies and decision-makers from those under the MNF-I umbrella.

Many NGOs, meanwhile, have tended to react angrily to what they perceive as mounting UN “political pressures” on them to be present in the Green Zone for coordination purposes; some major donors, notably USAID, have long insisted on Green Zone-based coordination. Many NGOs would prefer instead to pursue the needed coordination at field level or in Amman. In Amman, Baghdad and Basra however, the UN’s coordination waters have been thoroughly muddied by an unclear division of labor and responsibilities between the office of the UN Humanitarian Coordinator who sits in UNAMI and UN OCHA. The OCHA office, which is supposed to be functionally managed by the Humanitarian Coordinator, has grown rapidly since its late arrival on the scene in the spring of 2007. As it has grown, confusion about the division of roles and responsibilities between UNAMI and OCHA has increased.

....

As insecurity for aid workers increased between 2003 and 2005, nearly all humanitarian organizations that decided to continue their operations changed their operational modality from direct implementation to some form of remote programming. This involved international staff managing the activities of Iraqi staff from a safe distance in Amman, Kuwait or Erbil. As inter-communal and intra-communal violence spread in Iraq in 2006-2007, more Iraqi aid workers and NGOs found their own mobility impaired or simply ended by acute insecurity, such that their own fields of view and geographic scope of activity in the country fell off sharply. Consequently, many Iraqi NGOs were also forced to engage in remote programming. Different forms of the modality were adopted first as an alternative to programme suspension or closure, and can be credited with keeping the flow of vital assistance moving even during the most violent crisis periods. Whilst remote programming options have kept the aid pipeline into Iraq open, it has been an increasingly imperfect and inefficient way to work. Figure 1 below traces the changing effectiveness of remote programming from peak quality in early 2006 through a period of decline which accelerated with the explosion of violence in 2006-7. This decline in effectiveness reflects that it has proved enormously difficult for international managers and Iraqis themselves to maintain a store of the “soft skills” of humanitarian professionalism that are indispensable to successful operations in Iraq.

23. The United Nations Assistance Strategy for Iraq 2008-2010 was signed on 13 August by the Government of Iraq and the United Nations. Iraq had not endorsed a comprehensive cooperation framework with the United Nations on development and humanitarian issues since the mid-1990s. The Assistance Strategy, which focuses on mobilizing Iraq's own resources and building its capacity for good governance, provides a strong platform for aid harmonization, development sustainability and effectiveness. It is closely aligned with the Government's National Development Strategy and the International Compact with Iraq, and supports adherence to the Paris Declaration on Aid Effectiveness, to which Iraq is now a signatory. Rather than focus on individual projects, the Assistance Strategy provides a comprehensive programme to support the Government's institutional development more effectively and enable improved budget execution and transparency, civil service reform, job creation within the private sector and improved social service delivery at the local level.

24. To realize the goals of the United Nations Assistance Strategy, the United Nations country team has accelerated the development of programmes utilizing the remaining funds of the United Nations Development Group Iraq Trust Fund, which is one of the two funds of the International Reconstruction Fund Facility for Iraq. Central to the United Nations engagement are three important large-scale crosssectoral initiatives budgeted at \$30 million apiece, for private sector development, public sector reform and decentralization of essential services. These programmes are expected to deliver legislative, executive and field-level changes to Iraqi systems. The private sector development programme will reform Iraq's investment sector laws (banking and insurance), and when linked with small business development initiatives will spur job creation and local commerce. The public sector reform programme will strengthen anti-corruption and transparency initiatives for budget execution and lead to civil service reform. This in turn is closely linked to the decentralization programme, which will train and equip local governments to plan, fund and manage the delivery of social services to communities.

25. The Development Group Iraq Trust Fund continued to be the primary means of financing United Nations assistance to Iraq. As of 30 September 2008, the total commitments to the Trust Fund equalled \$1.36 billion and total deposits equalled \$1.32 billion. Some 141 projects and joint programmes valued at \$1.11 billion were approved for funding, as of 30 September 2008. In addition, to ensure transparency, monthly financial updates are made available on the website of the Reconstruction Fund Facility. During the reporting period, the Donor Committee of the Reconstruction Fund Facility agreed to allocate up to \$20 million from the Trust Fund for humanitarian assistance and to support internally displaced persons. The Trust Fund Steering Committee will approve the use of the funds through the Expanded Emergency Response Fund to ensure that timely humanitarian assistance can reach vulnerable populations and promote an improved alignment in the relationship between humanitarian and development assistance.

28. An expanded international presence in Iraq is critical to sustain and accelerate these initiatives, both in Baghdad and at the governorate level. The World Food Programme (WFP) has joined the Office of the United Nations High Commissioner for Refugees (UNHCR), the United Nations Development Programme (UNDP) and the World Health Organization (WHO) in establishing a permanent international presence in Baghdad, while other agencies are present on a rotating basis. Field coordination has also been enhanced by international staff of UNAMI and the Office for the Coordination of Humanitarian Affairs in Basra and Erbil. As part of the United Nations plan to increase its support throughout Iraq, missions of the United Nations country team led by the Deputy Special Representative of the Secretary-General visited Najaf in August and the Kurdistan Regional Government on 12 October to present the United Nations Assistance Strategy and establish the basis for an enhanced presence in these locations.

United Nations High Commissioner for Refugees (UNHCR), September 2008

In 2007 UNHCR commitment to humanitarian responses to internally displaced has mainly focused on protection, provision of Non-Food items to meet household needs, shelter assistance, community-based projects and national capacity building, with a total budget of **\$26.7 Million** In 2008 UNHCR Iraq Operation budget is USD **44.5 Million**. Programming of interventions has allocated 70% of the overall Iraq Operation budget to IDPs & Returnees, 20% for refugees and 10% for operational support. The financial increase of the Iraq Operation budget from 2007 to 2008 has been almost completely absorbed by the upgrade of IDP and returnee responses. The 2008 Programme therefore greatly expands IDP and returnee assistance respectively to 350,000 and 60,000 beneficiaries with stockpiling for emergency response preparedness of 100,000 beneficiaries. On the return front, as part of the 2007-2008 joint UN/Gol Rapid Response Plan (RRP), UNHCR has set a target of **10,000 returnee families** with a budget of **\$9.5 million**. UNHCR is engaged in delivering basic NFIs, shelter and protection monitoring services to vulnerable returnees inside Iraq. Complementary to UNHCR's conduct of rapid assessments to establish figures and trends in consultations with MoDM and IOM, UNHCR is assisting MoDM in establishing mobile teams for returnee registration. UNHCR is leading with MoDM and with the participation of IOM and IMC (International Medical Corps) the preparation of a comprehensive return assessment to be conducted throughout Iraq in 2008 in order to ascertain the existence of conditions conducive to return, returnee needs and the obstacles to be removed for the safe and dignified return of internally displaced persons and refugees.

Refugees International (RI), April 2008

The lack of an appropriate government response and the central role armed groups now have in assisting vulnerable Iraqis make it more urgent than ever for the UN to take a much stronger humanitarian role in Iraq. The humanitarian imperative is real. The security implications of a failure to act are increasingly real as well. Unlike in south Lebanon and Gaza where it has failed to act in time, the international community must step in to fill the vacuum created by the absence of the state. The window of opportunity to do that in Iraq is rapidly closing. Since this is unlikely to change, the UN has no choice but to work within the framework it has been given. The opening of the UN Office for the Coordination of Humanitarian Affairs (OCHA) in Amman, as well as the appointment of David Shearer, a man of great humanitarian experience, as deputy SRSG of UNA MI are positive signs and point to a shift in the UN mentality in Iraq.

UN staff in the region are determined to give humanitarian issues the attention they deserve. The ceiling of UN international staff allowed in Iraq at any one moment remains at 35, a low number. Many criticize the Amman-based decision-making process that often seems disconnected from the reality of Iraq. However, despite the commonly-held perception of a UN presence only in northern Iraq and the international zone, many UN agencies operate throughout Iraq with local staff and partners. Indeed, UNICEF has over 100 local staff and facilitators throughout the country who work on both rehabilitation and humanitarian projects. The UN Refugee Agency (UN HCR) operates fourteen low-profile Protection and Assistance Centers (PACS) throughout Iraq, and has six mobile teams as well. The International Organization for Migration (IOM) — the main international agency dealing with the internally displaced — has forty NG O partners and is able to operate throughout Iraq and respond to any situation. Despite IOM's record in Iraq however, only 25 million out of its two-year 85 million dollar appeal has been funded. To address funding issues and to build on recent initiatives, the UN issued its first Common Appeal Process (CAP) for Iraq in February 2008. UN agencies, as well as international and local NG Os, devised a document that established who is doing what where, and defined the needed financial resources. This resulted in a 263 million dollar appeal to respond to humanitarian needs in Iraq. This is a key development, as this appeal sends a strong signal to the international community and the Government of Iraq that the UN considers a grave humanitarian crisis to be developing in the country.....

Still, the CAP comes at a time where there is a window of opportunity for international actors wanting to operate in Iraq. The Sunni and Shiite ceasefires increased the humanitarian space available in Iraq. Iraqis are able to move with greater freedom than they had in much of 2007 and checkpoints, though numerous, are less dangerous. Additionally, as militias and warlords have consolidated control over territory, there is now somebody in a position of power to deal with in many areas of Iraq. As in Somalia, Afghanistan, Lebanon and other recent conflicts in which warlords, militias and other non-state actors play a role, humanitarian actors can now identify local non-state power brokers with whom arrangements can be made and security guarantees provided so that aid can reach the communities in need. This is an important development but it requires a paradigm shift in the way the UN and other international NG Os operate in Iraq. Not only would this allow for increased humanitarian assistance to reach Iraq's most vulnerable, it would also undermine the quasi-monopoly armed groups currently hold.

Brookings Institution, August 2008

1..While the U.N. is seen in many parts of the world as an idealistic, neutral organization, it has a different reputation in Iraq. The long years of U.N. sanctions which reportedly resulted in widespread civilian casualties were tremendously unpopular among Iraqis. The widespread corruption in the U.N.'s Oil for Food program was well-known in Iraq and there was a perception that U.N. officials were enriching themselves with Iraqi resources. Finally, the weapons inspections were perceived as a humiliating exercise for Iraq. In other words, even in the best of circumstances the U.N. would face an uphill battle in re-establishing its credibility among the Iraqi public. And these are far from the best of circumstances.

2. The U.N. is further hampered by the legacy of the August 2003 bombing of its headquarters in Iraq and the death of its well-respected official, Sergio Vieira de Mello along with 21 other U.N. staff. Not only did the U.N. immediately withdraw its personnel from Iraq, but it instituted wide-ranging changes in its internal security system which limits its ability to travel to dangerous areas. (In fact, some argue that the greatest impediment to U.N. access to humanitarian situations is its own internal security guidelines.) Moreover, the U.N. Staff Association has come out strongly against deployment of U.N. personnel to Iraq in light of the security threats.

3. Of particular concern in the U.N. resolution, is the recognition of the "important role of the Multi-National Force Iraq in supporting UNAMI, including security and logistical support..." Security for humanitarian work may well be the Achilles heel of U.N. efforts to play a more active role in Iraq. When U.N. staff arrive in communities accompanied by U.S. or MNF-I forces, their neutrality is immediately compromised. It is in U.S. interests that U.N. agencies operate independently and that they are perceived as independent actors. If the U.S. sees the U.N. as its agent or ally, the U.N. will not be able to act effectively. The U.S. needs to give the U.N. its humanitarian space and to distance itself from U.N. operations. And yet the absence of alternative providers of security for U.N. operations limits both U.N. and U.S. options.

In addition to these particular challenges, the U.N. will have to overcome the same kinds of difficulties it does in other situations in which it is tasked with delivering humanitarian assistance and in eventually coordinating the return of refugees and IDPs. In order for the U.N. to surmount these difficulties and regain its lost credibility, it will have to perform well and to deliver assistance quickly and effectively. But the reality is that its ability to do so is dependent on factors largely outside its control. For example, while the return of refugees and IDPs will be an important factor in Iraq's eventual recovery, this will depend more on the security situation inside the country than on U.N. programs to support return.

NGO Coordination Committee in Iraq (NCCI), 2008

Within the UN system the UN Humanitarian Coordinator is responsible for ensuring greater adherence to MCDA Guidelines & other relevant policy & guidance. In support of this role, UN OCHA normally deploys civil-military coordination (UN-CMCoord) officers who, in theory, work

to ensure familiarity and compliance with the guidelines from a humanitarian perspective. UN-CMCoord officers also serve as liaisons and troubleshooters with military forces for the humanitarian community, providing a conduit for concerns, complaints, and information essential to humanitarian operations. Dire threats to humanitarian space in Iraq and the particular actors involved necessitate a much more assertive stance, at a higher policy level, than the UN has been willing to support, reflecting ongoing reticence in the UN to take a proactive stand to safeguard humanitarian space. In contrast to the period during and immediately after the US-led invasion, this stewardship role has been a low priority or has been disregarded since 2003, partially because the UN's presence, mobility and security in Iraq is formally tied to the MNF-I by UN Security Council Resolutions 1546 and 1770. In the absence of forthright UN humanitarian diplomacy on the issue, others in the humanitarian and donor communities have the option of assuming a greater and more vocal role, in keeping with positions laid out by the Steering Committee for Humanitarian Response (SCHR), and donor undertakings elaborated in the Principles and Good Practice of Humanitarian Donorship.

International Crisis Group (ICG), 7 February 2008

Despite intensified U.S. raids and arrests, the Mahdi Army bolstered its influence and role, largely thanks to its limitless sources of income. It took over numerous Sunni possessions, including houses, villas and stores that belonged to the Baghdad bourgeoisie that prospered from the time of the Ottoman Empire. Sadrist offices [*Makatib al-Sayyid al-Shahid*] manage and rent these assets, thus generating colossal fortunes.³⁹ Sadrist offices were critical in this respect. By channelling and then redistributing resources, they gave Muqtada al-Sadr's movement a central economic role in neighbourhoods falling under its sway. Arguably of greatest importance, they controlled the network of petrol stations which provide such staple commodities as petrol, propane and kerosene. They also established an extensive individual contribution system to mitigate the effects of violence on the Sadrists' social base. As long as he has a job, every Mahdi Army member must donate 10,000 dinars [around \$8] monthly to the *Maktab al-Sayyid al-Shahid*. The office uses the money to pay displaced families as well as families of martyrs who died in combat. This strengthens the Mahdi Army because any Shiite intending to fight the Americans would rather do it through the militia; that way, he makes sure his family will be compensated should he die. Likewise, anyone who found work thanks to the *Maktab al-Sayyid al-Shahid* – for example at one of the Sadrist-run ministries – must give it 50,000 dinars per month [around \$40].

It is no surprise, then, that in Baghdad the Sadrists gained additional legitimacy and influence from 2006 through the first half of 2007 wherever violence was most intense. In a city virtually abandoned by the state, Sadrist offices in several neighbourhoods became the last and only resort for Shiite residents in need of help. Shiites living in remote areas requested military support;⁴¹ displaced families asked for resettlement assistance; [In Shu'la neighbourhood, for example, the Mahdi Army helped resettle families which had been expelled from nearby 'Adil] even feuding couples turned to the *maktab* for arbitration.⁴³ The Mahdi Army offered security by protecting the perimeter of neighbourhoods and emptying some of all Sunni presence; as a result, its popularity grew well beyond its natural social constituency (chiefly composed of young and more disadvantaged Shiites).⁴⁴ Shiites of all backgrounds experienced fear, hatred and a powerful desire for sectarian revenge and were thus drawn to the Sadrists. This included both members of the middle class and fighters from the Badr Corps who were loyal to ISCI, the Sadrists' principal rival.⁴⁵ Baghdad's most intense period of sectarian fighting gradually came to an end by mid-2007. The process was incremental and did not affect all neighbourhoods at once; in many instances, it simply reflected completion of sectarian cleansing. But it placed the Mahdi Army in a relatively awkward position. The sectarian confrontation had provided it with important material and symbolic resources; these began to dry up precisely at a time when the Sadrists' territorial reach had extended far beyond its natural boundaries (Sadr City and a handful of neighbourhoods of relatively similar social makeup, such as Shu'la and Washshash). Pressure on the Mahdi Army also was stepped up as U.S. forces reached full deployment and, angered at the militia's brutality and corruption, increasing numbers of Shiites turned against it.

UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 9 July 2008

The Iraq Consolidated Appeal Process (CAP) 2008 is the first joint international effort since 2003 to respond to immediate priority needs among vulnerable Iraqis according to a common strategy for the UN, international organisations and international and national NGOs, in close coordination with Iraqi authorities (Government of Iraq [GoI] and Kurdistan Regional Government [KRG]). The Consolidated Appeal¹ and the Common Humanitarian Action Plan (CHAP) underpinning it was launched mid-February this year, hence the implementation is still in its nascent stages. Given the relatively short time-lapse since the launch of the original appeal, and the scarcity of concrete new data to enhance our collective understanding of existing vulnerabilities and needs - which would warrant a more substantial revision of the CAP - the overall analysis of the context and humanitarian situation in Iraq is unchanged. Consequently, the humanitarian strategy and priority needs as well as the specific sector priorities and response plans identified in the original CHAP represent the continuing strategic vision of humanitarian partners. The overarching strategic priorities for humanitarian actors in Iraq remain:

- Relieve immediate suffering in communities acutely deprived by crisis, through bridging the gap in access to essential services;
- Provide protection for the most vulnerable civilians against grave violations of their human rights;
- Improve the capacity, coverage, coordination and impact of humanitarian action;
- Strengthen links between immediate action for families in crisis and support for sustainable recovery.

Integrated Regional Information Networks (IRIN), 24 July 2008

An umbrella group of over 1,000 non-governmental organisations (NGOs) appealed on 24 July for large-scale financial support from the government and “effective rather than symbolic” assistance from international organisations. Iraqi NGOs get no direct financial support from the Iraqi government, unlike other NGOs around the world, said Basil al-Azawi, head of the group, which is based in Baghdad and known as the Commission for Civil Society Enterprises. The only support local NGOs get is from international bodies and this support is subject to annoying bureaucratic measures; it is also limited and conditional,” al-Azawi added. He explained that international funding, for example, could not be used to pay staff salaries or rent offices. As a result, some local NGOs cheat, using the money to cover other expenditure, and this of course affects the quality of projects, he said. On 7 July the UN Office for the Coordination of Humanitarian Affairs (OCHA) said local and international NGOs were under-funded in Iraq and that key humanitarian sectors faced funding shortages.

Integrated Regional Information Networks (IRIN), 13 May 2008

According to the UN Refugee Agency (UNHCR), over 4.2 million Iraqis have fled their homes during this period - most since 2003. Of these, over 2 million are living as refugees in neighbouring countries - mostly Syria and Jordan - while 2.7 million are IDPs. On 9 May, UNHCR launched an appeal, after pointing out at a donor meeting in Geneva that it could find itself forced to reduce or suspend a number of its programmes - covering medical, food, education and direct financial assistance - unless additional support were forthcoming. In January 2008, the UNHCR appealed for US\$261 million for its Iraq-related operations inside and outside the war-torn country but it has so far received only US\$134 million. It is now appealing for US\$127 million

Integrated Regional Information Networks (IRIN), 12 May 2008

Local aid organisations on 12 May joined the UN Refugee Agency (UNHCR) in appealing to international donors for US\$127 million to help Iraqi internally displaced persons (IDPs) and refugees until the end of 2008. These are international commitments and must be honoured by the donors,” said Basil al-Azawi, head of the Iraqi Commission for Civil Society Enterprises, a coalition of over 1,000 Iraqi non-governmental organisations (NGOs). And apart from this, we call on the Iraqi government not to depend solely on international aid and to shoulder its

responsibilities by drawing up plans, as there are more than four million uprooted Iraqis scattered inside and outside Iraq,” al-Azawi told IRIN. He stressed the need for cooperation between international and Iraqi aid agencies, and said how aid money is spent must be clearly documented. We local NGOs have no idea how this [aid] money is being spent. Some organisations present detailed documents on their expenditures, others do not.” There is a perception that huge sums are being paid as high salaries to these organisations’ employees or being paid as rent for their buildings, he said.

International Crisis Group (ICG), 30 April 2008

“To take another example, in the al-Jihad neighbourhood, the Islamic Army requested the U.S. to build a wall to both protect civilians from Shiite militias operating out of neighbouring Baya’ and encourage the return of displaced persons and refugees. By the same token, the Islamic Army also facilitated the return of Shiite families, thereby highlighting its national, non-sectarian credentials. This is their political calculation”... *“Whoever believes the resistance can be lured by promises of political representation, the return of the displaced or the improvement of services is mistaken. Those factions that gave in to such illusions have been frustrated by the occupier and discovered that Americans were deceitful. The rest, and in particular the most important and active groups, will not be satisfied by anything short of a full U.S. withdrawal. Their convictions are only stronger as a result of this bitter experience”*, Crisis Group email communication, Muslim Scholars Association, March 2008.

Feinstein International Center (FIC), 2 July 2007

Following the destruction of the Canal Hotel and the loss of 22 U.N. and NGO staff, the Security Council passed Resolution 1502, which characterized the attack on the U.N. as a violation of international humanitarian law. The U.N. responded to the bombing and a subsequent smaller attack by suspending programs and withdrawing staff from Iraq, effectively cutting off any meaningful assistance to a population suffering ever more acutely as living conditions in Iraq deteriorated. Some NGOs followed suit, but others stayed on to continue programs in lower profile. As for the U.N., it would eventually re-establish a limited presence in Iraq but only by effectively embedding itself with coalition forces. UNICEF and UNHCR made efforts to keep programs operating through networks of home-based local staff and local partner organizations. IOM, a partner of UNHCR, established similar networks for monitoring needs and assisting where possible. At the strategic policy level of the U.N.’s humanitarian posture in Iraq, the implications of the terrorism - counterterrorism mix have been profound. As we noted in the preliminary report of the HA 2015 project: “Placing a function that draws its legitimacy from the U.N. Charter (or the Universal Declaration of Human Rights) within a management structure borne of political compromise in the Security Council is questionable and possibly self-defeating”. The experience of Iraq puts the political/humanitarian tension in sharp relief. With UNSC Resolution 1546 of June 2004, U.N. humanitarian agencies had their security and coordination arrangements with a belligerent or occupying force dictated by the Security Council. Making no distinction between UNAMI and the various members of the UNCT, Resolution 1546 formalized the reliance of the entire U.N. system in Iraq on the MNF. At least five factors combined to produce this result. First, the U.N. system was still reeling from the shock of the Canal Hotel bombing of August 2003. Second, the U.N.’s security apparatus was in disarray: fallout from two investigations into causes and culpability in the bombing was still intense, and staff often reacted with paralysis. Third, the U.S. administration’s justifications for the pre-emptive invasion of Iraq had not yet been fully discredited, and misplaced optimism prevailed regarding the chances that the U.S.-led coalition could keep Iraq minimally stable and governable. Fourth, extreme pressure to step up U.N. activity in Iraq was being brought to bear on the Secretariat, and on Kofi Annan himself, by the U.S. Fifth, U.N. staff associations in New York were voicing harsh objections to any further U.N. presence in Iraq and were insisting on a zero-risk environment.

Now western leaders have appropriated the rhetoric of humanitarian intervention as part of the military lexicon: tough on terrorism and tough on the causes of terrorism. Poverty and injustice

are recognized as factors that nurture terrorism. From there the Bush administration took a major leap to the assertion that U.S. NGOs should consider themselves a branch of the government's anti-terror effort. The consequences of this approach are obvious—NGOs are associated with U.S. military policy, and where that fails, so does the humanitarian effort. Resolution 1546 effectively shackled and subordinated the U.N.'s humanitarian role to the fortunes or misfortunes of the MNF and to UNAMI's political role in facilitating the transition of Iraq away from occupation.²⁵ It also set the stage for the use of coalition forces—widely perceived as unfriendly belligerents by many Iraqis—for humanitarian efforts as an expedient of first resort, rather than as an option of last resort in accordance with international U.N. guidelines which coalition governments had themselves helped to draft prior to the invasion.²⁶ The Resolution "...Requests Member States and international and regional organizations to contribute assistance to the multinational force, including military forces, as agreed with the Government of Iraq, to help meet the needs of the Iraqi people for security and stability, humanitarian and reconstruction assistance, and to support the efforts of UNAMI." Importantly, the Resolution appropriated the language of the "Global War on Terror" in its description of armed groups not somehow affiliated with the MNF or the new government installed by the occupation. There was no recognition in the Resolution that several different insurgencies were being waged against coalition forces by a wide variety of actors that could be discerned even in mid-2004. It made no distinction between the different armed actors hostile to the MNF and affiliated authorities: all were "terrorists". The new U.N. Strategic Framework for Humanitarian Action in Iraq²⁸, released in April 2007, has generally been received as an earnest attempt to re-assert the U.N.'s humanitarian role and to protect it against politicization. It also asserts a stronger coordinating and leadership role for the U.N.'s Humanitarian Coordinator for Iraq, in keeping with the U.N.'s humanitarian reform agenda. Early indications from the UNCT have suggested strong resistance from the headquarters of WFP, UNICEF and WHO to the Humanitarian Coordinator's enhanced role and the U.N.'s re-assertion of a more neutral and independent humanitarian posture.

Our evidence is mixed as to whether the U.N. has already crossed the point of no return in terms of its image and acceptance among Iraqis as a humanitarian actor. UNICEF, which continues to distribute some of its standard items marked with the UNICEF logo through the Iraqi Red Crescent, had relatively good name recognition among several of those whom we interviewed in Iraqi communities and appeared to be better known than most other organizations as an agency that did humanitarian work for children around the world.....It was evident from some of the comments heard in Iraqi communities that many were familiar with the humanitarian work of the U.N. in other countries through media exposure. But as one woman asked, "Where are they now?" The withdrawal of the U.N. following the Canal Hotel bombing is well-known in Iraq, as is the role of the U.N. in managing the sanctions regime. It would be a stretch to expect Iraqis to appreciate the inherent tensions that prevailed inside the U.N. system during the sanctions period and doubtful that many would remember two successive U.N. Humanitarian Coordinators and the head of WFP in Iraq quitting in protest over the sanctions and their harmful humanitarian effects.....

Our research confirms a discernible trend in the consolidation of social welfare offices within militias and parties, introducing new but, paradoxically, perhaps more manageable access challenges than have hitherto existed in Iraq as new power structures crystallize in some locations. Protection and assistance gaps left by the incremental failure of the state and the absence of an appropriately scaled humanitarian presence are being filled by militias and parties throughout the central and southern governorates. This trend was heard by the research team with consistency. The pattern is similar to that evident in many other conflicts—Lebanon comes most recently to mind—where armed groups take up social burdens or exploit needs to gain legitimacy. Increasingly, Iraqis are looking to militias and ad-hoc neighborhood organizations as their option of first resort when seeking protection and assistance. As non-state actors consolidate their control over local territory or neighborhoods, new power structures are increasingly discernible through close localized monitoring of developments. Experienced aid

workers in the region feel that this consolidation of localized control is likely to lead, over time, to localized increases in humanitarian access for experienced and trusted agencies that have Iraqi and international staff equipped with the requisite political skills. A small number of operational organizations have already begun to explore and, in a few cases, to capitalize on such opportunities for expanding presence and activity, with the hope and expectation that access can be expanded progressively outwards from well-chosen access points. Until now the approaches and gains remain tentative and experimental, but the strategy shows strong promise in some locations....

The extent of politicization in donor behavior is a recurring complaint of operational humanitarian agencies. Donor responsiveness to lifesaving assistance and protection work in Iraq has gone through several phases since 2003. In the months prior to the U.S.-led invasion, donors committed generous funding to a preparedness appeal for \$193 million launched by the U.N. in anticipation of a massive displacement and refugee crisis that did not then materialize. Following the invasion, funding for major humanitarian programs, including a U.N. Flash Appeal for \$2.2 billion in April 2003, continued into early 2005 with some operational agencies being actively encouraged by donors to dramatically expand their presence in the country.

However, important sources of “neutral” funding fell off sharply in mid-2005. ECHO closed its Baghdad office in May 2004, ceased funding new humanitarian activity in Iraq in April 2005, and closed its Iraq office in Amman the following July. ECHO’s stated reasons for the closures were the inflow of large-scale reconstruction funding, coupled with what it perceived to be the impossibility of effectively conducting humanitarian operations in the central and southern governorates. Through the auspices of NCCI, the latter claim has been strenuously discounted by the NGO community in Iraq and Amman on the grounds that ECHO was well-informed of efforts underway by experienced NGOs to refine remote-management and remote-support modalities of continued operations, with promising results. ECHO is currently re-assessing the situation, recently pledging €6 million to the U.N. Development Group’s Cluster F for refugees and displaced persons, and €4 million to the ICRC’s protection activities.

Funding problems compelled some operational NGOs to withdraw from Iraq completely from late 2005, even up until early 2007 when it was clear that a renewed humanitarian response was necessary. Our interviews with a range of humanitarian organizations still operational inside Iraq indicate that since the escalation of inter-communal violence sparked by the Samarah Mosque bombing in February 2006, bilateral donors and ECHO have generally been unresponsive and resistant to operational innovations on the ground. Thus, at a time when operational personnel have needed the greatest understanding and support, such has not been forthcoming.....

Donors have indeed been generous with funds earmarked for reconstruction. The International Reconstruction Facility for Iraq (IRFFI), to which 25 donors have pledged some US\$2 billion and the International Compact for Iraq are structured to channel funds through U.N. agencies, the World Bank, and the tottering and often corrupt structures of the Iraqi state. Yet these funds are not easily accessible, or at all accessible, to emergency humanitarian programs. Attempts by U.N. humanitarian officials in 2006 to raise the profile of humanitarian problems in IRFFI discussions “made people nervous”. In general, donors have not calibrated funding for humanitarian programs to needs and have often been careless with funding for reconstruction. Our interviews with aid agency staff and with Iraqi communities suggest some disturbing donor failure. Aid agency staff in the Red Cross/Red Crescent Movement, U.N. agencies, NCCI, and international and national NGOs consistently raised shortages of accessible and flexible donor funding as a threat to current and planned humanitarian programs. Operational NGOs with proven track records inside Iraq are feeling the shortfalls most acutely, leading some to close down even as needs escalate. NGOs spoke of being incensed at a multi-million dollar pledge from the Iraqi Government to Lebanon in the summer of 2006, when funds for their own emergency assistance programs were “stuck” in ministries. Other managers identified a lingering sentiment, among some donors and even within one U.N. agency’s headquarters, that individual MNF governments—and pre-eminently the United States itself—should bear primary

responsibility for underwriting a humanitarian response. Meanwhile, the perception among Iraqis of waste and corruption among international actors and their own authorities has been thoroughly validated, not least by investigations of the U.S. Special Inspector General for Iraq Reconstruction (SIGIR). The scale of carelessness has been staggering. A culture of waste, incompetence and fraud may be one legacy the occupiers have passed on to Iraq's new rulers more or less intact. [SIGIR] found that nearly \$9bn in Iraqi oil revenues could not be accounted for. The cash was flown into the country in shrink-wrapped bundles on military transport planes and handed over by the ton to Iraqi ministries by the Coalition Provisional Authority. . . . The money was meant to demonstrate the invaders' good intentions and boost the Iraqi economy [. . .] but it also fuelled a cycle of corruption left over from Saddam Hussein's rule.

United Nations Security Council (UN SC), 10 August 2007

Recalling all its previous relevant resolutions on Iraq, in particular 1500 (2003) of 14 August 2003, 1546 (2004) of 8 June 2004, 1557 (2004) of 12 August 2004, 1619 (2005) of 11 August 2005 and 1700 (2006) of 10 August 2006,... *Reaffirming* the importance of the United Nations, in particular the United Nations Assistance Mission for Iraq (UNAMI), in supporting the efforts of the Iraqi people and Government to strengthen institutions for representative government, promote political dialogue and national reconciliation, engage neighbouring countries, assist vulnerable groups, including refugees and internally displaced persons, and promote the protection of human rights and judicial and legal reform, *Expressing concern* for the humanitarian issues confronting the Iraqi people and stressing the need for a coordinated response and adequate resources to address these issues, *Decides* to extend the mandate of UNAMI for another period of twelve months from the date of this resolution;

2. *Decides further* that, as circumstances permit, the Special Representative of the Secretary-General and UNAMI, at the request of the Government of Iraq, shall:

(a) Advise, support, and assist: (i) The Government and people of Iraq on advancing their inclusive, political dialogue and national reconciliation; (ii) The Government of Iraq and the Independent High Electoral Commission on the development of processes for holding elections and referendums; (iii) The Government of Iraq and the Council of Representatives on Constitutional review and the implementation of constitutional provisions, as well as on the development of processes acceptable to the Government of Iraq to resolve disputed internal boundaries; (iv) The Government of Iraq on facilitating regional dialogue, including on issues of border security, energy, and refugees; (v) The Government of Iraq at an appropriate time and in connection with progress on reconciliation efforts, on planning, funding and implementing reintegration programmes for former members of illegal armed groups; (vi) The Government of Iraq on initial planning for the conduct of a comprehensive census;

(b) Promote, support, and facilitate, in coordination with the Government of Iraq: (i) The coordination and delivery of humanitarian assistance and the safe, orderly, and voluntary return, as appropriate, of refugees and displaced persons; (ii) The implementation of the International Compact with Iraq, including coordination with donors and international financial institutions; (iii) The coordination and implementation of programmes to improve Iraq's capacity to provide essential services for its people and continue active donor coordination of critical reconstruction and assistance programmes through the International Reconstruction Fund Facility for Iraq (IRFFI); (iv) Economic reform, capacity-building and the conditions for sustainable development, including through coordination with national and regional organizations and, as appropriate, civil society, donors, and international financial institutions; (v) The development of effective civil, social and essential services, including through training and conferences in Iraq when possible; (vi) The contributions of United Nations agencies, funds, and programmes to the objectives outlined in this resolution under a unified leadership of the Secretary-General through his Special Representative for Iraq; (c) And also promote the protection of human rights and judicial and legal reform in order to strengthen the rule of law in Iraq;

3. *Recognizes* the important role of the Multi-National Force Iraq (MNF-I) in supporting UNAMI, including security and logistical support, and further recognizes that security is essential for UNAMI to carry out its work on behalf of the people of Iraq;

United Nations Security Council (UN SC), 10 August 2007

Approving a 12-month mandate extension for the United Nations Assistance Mission for Iraq (UNAMI), the Security Council today expanded the world body's political role in Iraq, aimed at bringing together the strife-torn country's rival factions, gaining broader support from neighbouring countries, and tackling the deepening humanitarian crisis. Unanimously adopting resolution 1770 (2007), the Council broadened the responsibilities of the four-year-old Mission, whose existing mandate expires today. Among other things, the measure authorized the head of UNAMI to "advise, support and assist" the Iraqi Government in advancing an "inclusive, national dialogue and political reconciliation", reviewing the Constitution, setting internal boundaries, and dealing with the millions of Iraqis who have fled their homes.The United Nations would be increasing its role and looked forward to working in "close partnership" with the Iraqi Government and people to encourage national political dialogue, help with humanitarian assistance and promote human rights.The resolution -- co-sponsored by the United Kingdom, United States, Italy and Slovakia -- underscored the need for all communities in Iraq to reject sectarianism and to participate in political processes "for the sake of Iraq's political stability and unity". It authorized the Special Representative of the Secretary-General -- the head of UNAMI and the top United Nations official in Iraq -- to help the Government and relevant institutions develop processes for holding elections and referendums. It further expanded the Special Representative's role to bolster regional dialogue, including on issues of border security, energy and refugees. According to the text, the Council expressed its concern for the humanitarian situation in Iraq and stressed the need for a coordinated response. Under its new mandate, UNAMI could now "promote, support and facilitate", in coordination with the Government, the management and implementation of programmes to improve Iraq's ability to provide essential services for its people, as well as on economic reform and capacity-building. The Mission would also help with the safe, orderly and voluntary return of refugees and displaced persons, and the coordination and delivery of humanitarian assistance.

International and bilateral response to situation in Iraq (2004 to 2009)

- The extent of politicization in donor behavior is a recurring complaint of operational humanitarian agencies. Donor responsiveness to lifesaving assistance and protection work in Iraq has gone through several phases since 2003. Following the invasion, funding for major humanitarian programs, including a U.N. Flash Appeal for \$2.2 billion in April 2003, continued into early 2005 with some operational agencies being actively encouraged by donors to dramatically expand their presence in the country. (FIC, July 2007) However, important sources of "neutral" funding fell off sharply in mid-2005. ECHO closed its Baghdad office in May 2004, ceased funding new humanitarian activity in Iraq in April 2005. Funding problems compelled some operational NGOs to withdraw from Iraq completely from late 2005, even up until early 2007 when it was clear that a renewed humanitarian response was necessary (FIC, July 2007). Hence, urgent needs inside Iraq were not sufficiently met as they exceed funding.
- available. (UNSG, July 2008; IRIN, May 2008)
- Donors have been generous with funds earmarked for reconstruction. The International Reconstruction Facility for Iraq (IRFFI), to which 25 donors have pledged some US\$2 billion and the International Compact for Iraq are structured to channel funds through U.N. agencies, the World Bank, and limited structures of the Iraqi state. Yet these funds are not easily accessible, or at all accessible, to emergency humanitarian programs. Meanwhile, as Feinstein Institute noted in 2007 the perception among Iraqis of waste and corruption among

- The Iraq Consolidated Appeal Process (CAP) 2008 is the first joint UN effort since 2003 to respond to immediate priority needs among vulnerable Iraqis according to a common strategy for the UN, international organisations and international and national NGOs, in close coordination with Iraqi authorities (Government of Iraq and Kurdistan Regional Government). (OCHA, July 2008) The 2008 CAP amounted to 209 US million which was funded at 100% (UN OCHA, January 2010). In the 2009 CAP, the UN appealed for a doubling of resources: \$547.3 million, including \$192.3 million for assistance inside Iraq (Pillar 1) and \$355 million for assistance to refugees outside (Pillar II). The appeal overall was 64% funded (US\$416.8 million with 234 million not funded), and donors' financial contributions are unevenly allocated across the sectors with greater emphasis to funding for Pillar II, and key humanitarian sectors faced funding shortages (UN OCHA, January 2010).
- Donor response to the humanitarian situation in Iraq in 2009 was significantly lower than in 2008, as the funding level amounted to 67% of total needs but roughly short of 45% for needs in Iraq under Pillar 1 of 2009 Iraq CAP. As a matter of concern, 16 UN agency projects and 10 NGO projects did not raise any funding through the 2009 Iraq CAP (Pillar I). Lower-than-expected level of funding and lack of support to 55% of UN and NGO projects included in the 2009 Iraq CAP prompted the UN Country Team to re-visit its prioritisation for 2010. This has led to the identification of three priority tracks: Maintain rapid response capacity to sudden-onset crises; Area-based response on 26 priority districts in Iraq; Cross-sectoral country-wide themes and humanitarian needs.
- The total funding requested by the UN Country Team under the Iraq 2010 Humanitarian Plan launched in December 2009 is \$193.5 million. The funding requested was purposely made not to exceed funding requested in 2009. This appeal excludes however UNHCRs separate appeal of 264.3 million US. UNHCRs appeal includes \$87.7 million for refugees (inside Iraq) and returned refugees, \$1 million for stateless people, \$31.1 million for reintegration, and \$144.5 million for IDPs. The funding requested by UN Country Team is made in light of knowledge that funding available for humanitarian assistance in Iraq is to substantially decline in 2010. A brief study of international donors revealed that donors perceiving downsizing of funding for humanitarian assistance having recognised that the humanitarian situation in Iraq has improved.
- There is clear indications that humanitarian assistance is being reduced significantly, and being reoriented to focus on recovery and development activities, with increasing emphasis on bilateral rather than operating through multilateral process (NRC, August 2009) This corresponds to general phasing down of US and UK which have accounted for the greatest share of humanitarian funding (FIC, December 2008). Donors generally have also accepted the analysis presented by the United Nations that there are pockets of vulnerability acknowledging that important vulnerabilities remain (NRC, August 2009) According to NRC study international donors characterise emerging needs for external assistance in areas of recovery and development with emphasis on service delivery and strengthening state capacity.
- While there has also been expressed doubt on humanitarian agency capacity, many humanitarian agencies particularly INGOs have noted increasing pressure that is placed by UN and international donors to relocate to southern and central Iraq. (NRC, August 2009) NGOs have also voiced concern at the pressure and policies undertaken to promote return of displaced at expense of other alternatives and in light of the situation prevailing in Iraq (RI, November 2009) . Though mindful that humanitarian crisis is not evident, observers have been concerned in declining trends of assistance provided by international community despite significant needs remaining unaddressed, called for the need for more coordination amongst donors, as well as underlying need to provide adequate aid for the transition to development particularly in addressing durable solutions to displacement (FIC, December 2008; Brookings/Bern, June 2009)

- The U.S. government has been the single biggest contributor of humanitarian assistance to displaced Iraqis since 2003 to funding multilateral aid organizations including CAP 2009, subcontracting humanitarian relief activities and supporting Iraqi government, giving more than \$500 million humanitarian aid in total excluding other bilateral assistance. (Brookings, August 2008) European Commission was slow to provide large amounts of humanitarian assistance for Iraqi refugees and IDPs. Excluding bilateral assistance, the EC will have provided a total of over €94 million in reconstruction assistance for displaced and €45.8 million in humanitarian assistance. (EC, September 2008; Brookings, August 2008) In contrast, according to the Congressional Research Service, the U.S. has spent \$2.4 billion per week on the war effort in Iraq. U.S. military has also engaged in civic humanitarian, relief and reconstruction intended to support U.S military 'hearts and minds' objectives including
- CERP, as well as PRTs which have appropriated funding in excess of 4.5 billion as of January 2008. (Brookings, August 2008; NCCI, January 2008)

UN OCHA, December 2009

The 2009 CAP for Iraq and the Region amounted to \$650 million, out of which 62% (\$401.7 million) was funded as of November 2009. Pillar II (refugee-hosting countries) of the 2009 CAP for Iraq and the region received substantially more funds at 78% as of November 2009. In contrast, Pillar I (Iraq) was funded only to the level of 44% (\$135 million out of \$308 million requested). According to funding data provided by donors and recipients organizations, almost 60% of all funding to the 2009 Iraq CAP (Pillar I and II) came from the United States.... Within Pillar I, main recipient agencies were the United Nations Children's Fund / UNICEF (52% of requirements), the World Food Programme / WFP (44%), UNHCR (53%) and the World Health Organization /WHO (39%).....Donor response to the humanitarian situation in Iraq in 2009 was significantly lower than in 2008, when the funding level amounted to 67% of total needs. As a matter of particular concern, 16 UN agency projects and 10 NGO projects did not raise any funding through the 2009 Iraq CAP (Pillar I), although some NGO projects received funding through the Expanded Humanitarian Response Fund (EHRF) and as partners of UN agencies.

Lower-than-expected level of funding and lack of support to 55% of UN and NGO projects included in the 2009 Iraq CAP (Pillar I) prompted the UN Country Team (UNCT) in Iraq to re-visit the prioritisation of its humanitarian projects. This, in tandem with an improved understanding of Iraq's humanitarian needs, has led to the identification of three priority tracks for the UN and INGO humanitarian operations in Iraq in 2010:

1. Maintain rapid response capacity to sudden-onset crises that may occur in 2010, such as population displacement or a disease outbreak
2. Area-based response, where agencies will focus their attention on 26 priority districts in Iraq in order to maximise complementarities and added value of the operations
3. Cross-sectoral country-wide themes and humanitarian needs, such as protection and those stemming from the impact of the 2007 to 2009 drought in north-western Iraq.

Norwegian Refugee Council, August 2009

Donors have reduced funding for humanitarian assistance and transferring their representation into Iraq. There was a consensus among bilateral donors that the humanitarian situation has improved significantly. They also noted the increased capacity of the Iraqi government to address humanitarian issues. As a result, all donor agencies interviewed have reduced humanitarian assistance to Iraq. Some showed interest in supporting initiatives to strengthen civil society. At the same time, most donors are gradually moving their representation into Baghdad and appeared to be strengthening bilateral cooperation.... All donor organisations assessed the

humanitarian situation in Iraq has improved. While assessments varied, no donor stated there had been an overall deterioration. Donors expected improvements to continue, notwithstanding the current spike in violence. They credited the improvements to structural changes at the political level, and the decision by key Sunni and Shiite organisations to work within the political system. **Donors generally accept the pockets of vulnerability analysis presented by the UN system and by the Government.** They characterise the emerging needs for external assistance as being in the areas of recovery and development, with special emphasis place on basic service delivery and strengthening state capacity. Donors assess Iraq as middle income country with significant economic and human resources, notwithstanding the current global financial problems has reduced Government revenues. **Donors acknowledged important vulnerability remain, but were unclear on the role of INGOs in meeting needs.** Regarding the future direction of cooperation, all donors interviewed: **Were reducing humanitarian assistance to Iraq**, usually significantly. No donor indicted that it would sustain or increase current humanitarian funding levels under present trends; **Re-orientating their programmes to focus on recovery and development activities**, within a smaller financial envelope and with greater emphasis on technical rather financial cooperation; and **Place greater emphasis on strengthening bilateral cooperation rather than working through multilateral processes**, and on strengthening commercial ties.

Brookings/Bern, June 2009

The US Administration has already taken an important step in nominating Ms. Samantha Power to coordinate the efforts of several agencies of the US government on Iraqi refugees and internally displaced persons, and in appointing Mr. Mark Storella as Baghdad-based Senior Coordinator for Iraqi Refugees and Displaced Persons. Other donor governments and multilateral organizations, such as the European Commission, should consider developing internal coordination mechanisms between their various agencies to ensure collaboration, complementarity and an effective transition between humanitarian and development initiatives to support durable solutions to Iraqi displacement in Iraq and in host countries. Such mechanisms could greatly improve situation analysis and programme planning.

Brookings Institution, August 2008:

"U.S. policy towards the Iraqi displacement crisis primarily focuses on funding multilateral aid organizations, subcontracting humanitarian relief activities and supporting host governments. Ambassador James Foley understands the U.S.'s primary obligation to the displaced is to "provide assistance in place." USG contributions to humanitarian assistance have increased steadily over the past three years, but they should continue to increase at an even faster pace in order to meet urgent needs. The U.S. contributed \$43 million in FY 2006, \$171 million in FY 2007, and in FY 2008, as of April, \$208 million. U.S. State Department's Bureau of Population, Refugees, and Migration (PRM) and USAID's Office of U.S. Foreign Disaster Assistance (OFDA) plan to spend about another \$70 million before October, bringing the projected contribution for FY 2008 to just over \$281 million. In contrast, according to the Congressional Research Service, the U.S. spends \$2.4 billion per week on the war effort in Iraq. While there is no agreed-upon figure for what it would take to meet the needs of displaced Iraqis, a variety of human rights and humanitarian organizations have suggested much larger financial contributions from the U.S. to support humanitarian operations in the region. For example...International Rescue Committee (IRC) assert that the U.S. has a special responsibility to provide the much-needed aid increase. They propose that the refugee population alone will require a minimum of \$2 billion annually for the next two to four years and that the United States ought to contribute at least half of that. The U.S. government has been the single biggest contributor of humanitarian assistance to displaced Iraqis since 2003, giving more than \$500 million in total. This assistance money is channeled primarily through the State Department via PRM and through USAID via OFDA and USAID's Office of Food for Peace (FFP). USG funds support the work of international organizations such as UNHCR, UNICEF, and WHO as well as NGOs operating in the region. For example, contributions announced in February 2008 include assistance to the following: \$83 million for

UNHCR's Iraq Situation Supplementary Appeal which aims to improve protection and access to basic services for IDPs and refugees, \$5 million for the World Food Program's Emergency Operation in Syria, and \$2.4 million for UNICEF's portion of the joint U.N. Education Appeal which supports education opportunities for displaced Iraqis in Jordan, Syria, Egypt, and Lebanon. The Department of State charts below provide breakdowns of U.S. assistance in FY 2007 and FY 2008.

Although the U.S. military has engaged in humanitarian work in Iraq, this work is intended to support U.S. military objectives—to win “hearts and minds” of Iraqis for the coalition's cause. In fact, it does not meet a basic requirement of humanitarian assistance, which is that assistance be made available on the basis of need alone—rather than for political purposes. The work of the Provincial Reconstruction Teams (PRTs) has been central to U.S. strategy in Iraq and yet these teams have not been able to meet the assistance needs of the vast majority of Iraqi IDPs. There is an urgent need for better coordination by U.S. government departments and agencies in developing comprehensive plans for humanitarian assistance. Responding to displacement must be central to overall U.S. policy in Iraq. Any gains achieved by the surge can quickly be erased by inadequate policies toward the displaced.”

NGO Coordination Committee in Iraq (NCCI), 2008:

Although humanitarian action and the assistance activities of military forces often occur in the same space and appear very similar, there are fundamental differences between them. US military doctrine describes military civic action in a theatre of war as a “force-multiplier”. It serves the commander's military mission through intelligence gathering, force protection and “psychological operations”, commonly known as “hearts-and-minds” activities. The latter are aimed at building acceptance with populations by influencing public perceptions about the legitimacy of a military mission in the conflict area and the home country. Visibility is thus essential to the success of military assistance efforts. Military civic action and other forms of instrumentalized assistance are often erroneously described by combatants and in media as “humanitarian”. Humanitarian action is based on need alone. It provides life-saving assistance, protection and support for the welfare of the civilian population in accordance with international norms and standards.

MNF-I counter-insurgency strategy in Iraq emphasizes the importance of “non-lethal operations” or the “build” component of “clear, hold and build” operations. The US surge strategy includes unprecedented involvement of MNF-I troops and assets in various civic action efforts including provision of assistance directly to the population. Since 2003, US\$2.7 billion has been appropriated by the US Congress for the Commander's Emergency Response Program (CERP) for “urgent humanitarian, relief and reconstruction requirements” that immediately assist Iraqis. CERP funding has steadily increased since 2003: un-expended CERP assets are approximately US\$1.2 billion. As of January 2008, 32 “Provincial Reconstruction Teams” (PRTs), Provincial Support Teams (PSTs) and “Embedded PRTs” (ePRTs) have been established by coalition governments, primarily the US but also the UK, Korea and Italy (see map Page 4), with core funding of some US\$1.8 billion. The CERP and other funds are also put at the disposal of the PRTs.

US PRTs are formally led by the US Department of State but the majority are embedded in US military positions. PRT staff typically include military personnel, diplomats, USAID staff and commercial contractors. Although US documentation on the PRTs avoids mention of “humanitarian” roles, in practice the PRTs have been providing relief goods directly to the population, sometimes in cooperation with affiliated local organisations. Civil affairs or “CIMIC” teams have also been providing substantial direct assistance, including relief goods, to the

population. Commercial contractors and affiliated not-for-profit organisations execute various forms of assistance operations for—and under escort from—the MNF-I. In policy or practice, independent humanitarian organisations in Iraq are careful to keep their distance from the MNF-I so as not to appear affiliated with, or co-opted by, an unpopular party to the conflict. However, in a context where armed soldiers hand out assistance directly to the population, roles are thoroughly blurred and the perception of many Iraqis is that western aid agencies are affiliated with what they regard as “the occupation”. This increases the risks for humanitarian organisations and for the population.

Brookings Institution, August 2008:

The European donor community which has traditionally been a major supporter of humanitarian operations was slow to provide large amounts of humanitarian assistance for Iraqi refugees and IDPs. For many European governments which had opposed the war, the humanitarian consequences were seen as a U.S. responsibility. Although they responded to UNHCR appeals, there were few large bilateral assistance programs. But this began to change as the war reached the five-year mark. By late 2007, the European Commission allocated €17.8 million for humanitarian needs and a funding package of €7.8 million to support basic services for IDPs. In 2007, the Commission also allocated €10 million in basic support for UNHCR’s work in the region and almost €50 million for provision of basic health and education services. European concern is motivated in large measure by the growing number of Iraqis turning up on their borders in search of protection. Traditionally, European governments have not accepted many refugees for resettlement; in 2007, only 1,650 Iraqis were resettled in Europe (although this is higher than the number of Iraqis who were resettled to the U.S. in its fiscal year 2007). But reflecting the geographical proximity of Iraq, large numbers arrive in search of asylum. While in 2007, the U.S. reported just 734 asylum applications from Iraqis, almost 40,000 Iraqis asked for asylum in Europe—twice the number as in 2006.¹⁰³ In fact, in both 2006 and 2007, Iraqis constituted the largest number of asylum-seekers in Europe.

European Commission, September 2008:

In 2003, the EC allocated €8 million in humanitarian assistance specifically targeting IDPs in Iraq. As part of this €8 million, €3 million was allocated to a project implemented by the International Committee of the Red Cross and covered emergency supplies for 75,000 IDPs, 320 tonnes of flour for hospitals, a humanitarian air transport service and protection activities for IDP. The other €5 million was also allocated to the ICRC for food, non-food items, medical kits and rehabilitation of water/sanitation facilities in conflict affected areas and targeted up to 2 million beneficiaries.... In 2007, the deterioration of the humanitarian situation caused by unrelenting violence resulting in increased refugee flows led the EC to provide a new package of €17.8 million in humanitarian aid specifically targeted at displaced Iraqis. Of this amount, €7.8 million was allocated to IDPs in Iraq and €10 million was allocated to refugees in neighbouring countries, primarily Jordan and Syria, but also Turkey and Lebanon..... Following the events of 2003, the International Community established the International Reconstruction Fund Facility for Iraq, with the aim of providing a co-ordinated response to the reconstruction challenge. Most EC aid in support of Iraq’s reconstruction was initially channelled through this Fund, including assistance for refugees. ...In 2006, the EC allocated €10 million in support of IDPs in Iraq to the International Reconstruction Fund Facility for Iraq. The EC contribution was channelled through the United Nations arm of the IRFFI.....

The Assistance Programme for 2008, currently under approval, foresees a further increase in measures and funding aimed at assisting refugees, IDPs and returnees in Iraq. Support in 2008 is expected to amount to €43.5 million over 5 main programmes. Building on the initiatives of earlier years, priority will be given to the provision of basic services, working closely with other actors active in addressing the plight of the refugee communities. The programme **Support to the return and reintegration of returnees and IDPs inside Iraq**, with a proposed allocation of €6 million is to be implemented by the UNHCR. It aims to create a protective environment and

facilitate durable solutions for returnees and IDPs inside Iraq and to provide assistance to local communities impacted by displacement and/or relocation..... With 5 million Iraqis living in temporary conditions across several countries, the scale of the challenge that faces Iraq and the International Community is considerable. The Commission is committed to continuing to help the plight of displaced Iraqis. Once the programme for 2008 is approved at the end of this year, the EC will have provided a total of over €94 million in reconstruction assistance for displaced people and €45.8 million in humanitarian assistance..... In May of this year EU Ministers also encouraged the Iraqi Government to use its own resources to help neighbouring countries to cope with the additional burden of refugees. While the main responsibility for adequately meeting the immediate and longer term needs of displaced and returning Iraqis lies with Iraqi authorities, the International Community has a responsibility to protect displaced Iraqis and to support neighbouring host countries in their efforts to protect and assist the refugees. The majority of Iraqis will not return to their neighbourhoods until such time as they feel the security situation has improved and continues to improve, and until they know that living conditions have improved and public services provision is adequate. The basic needs of the displaced people must be addressed in order for increased returns to take place. A coordinated approach by all actors committed to responding efficiently and effectively to the needs of those internally and externally displaced by the continuing crisis in Iraq is essential.

UN Secretary General (UNSG), 28 July 2008:

9. During the reporting period Bahrain, Jordan, Kuwait and the United Arab Emirates announced the resumption of full diplomatic representation in Iraq. In June the Organization of the Islamic Conference deployed a senior representative to Baghdad, pending the formal opening of its offices in August. At its 19 April meeting in Bahrain, the Gulf Cooperation Council accepted Iraq as a regular participant in ministerial meetings and resolved to regularly convene with a new configuration that also includes Egypt, Jordan and the United States of America.

10. At the third expanded Ministerial Conference of the Neighbouring Countries of Iraq, held in Kuwait on 22 April, support for the ad hoc support mechanism for regional dialogue increased and an agreement in principle was obtained to convene the next ministerial meeting in Baghdad. The high-level International Compact with Iraq Annual Review Conference, held in Stockholm on 29 May, also reflected engagement of the international community in favour of the reconstruction and development of Iraq and served to strengthen its relations with neighbouring countries. Subsequently, on 6 July, the United Arab Emirates announced that it would forgive Iraqi debt, which is an important and welcome contribution to the Compact process.....

Feinstein International Center, 2 July 2007:

The extent of politicization in donor behavior is a recurring complaint of operational humanitarian agencies. Donor responsiveness to lifesaving assistance and protection work in Iraq has gone through several phases since 2003. In the months prior to the U.S.-led invasion, donors committed generous funding to a preparedness appeal for \$193 million launched by the U.N. in anticipation of a massive displacement and refugee crisis that did not then materialize. Following the invasion, funding for major humanitarian programs, including a U.N. Flash Appeal for \$2.2 billion in April 2003, continued into early 2005 with some operational agencies being actively encouraged by donors to dramatically expand their presence in the country. However, important sources of “neutral” funding fell off sharply in mid-2005. ECHO closed its Baghdad office in May 2004, ceased funding new humanitarian activity in Iraq in April 2005, and closed its Iraq office in Amman the following July. ECHO’s stated reasons for the closures were the inflow of large-scale reconstruction funding, coupled with what it perceived to be the impossibility of effectively conducting humanitarian operations in the central and southern governorates. Through the auspices of NCCI, the latter claim has been strenuously discounted by the NGO community in Iraq and Amman on the grounds that ECHO was well-informed of efforts underway by experienced NGOs to refine remote-management and remote-support modalities of continued

operations, with promising results. ECHO is currently re-assessing the situation, recently pledging €6 million to the U.N. Development Group's Cluster F for refugees and displaced persons, and €4 million to the ICRC's protection activities. Funding problems compelled some operational NGOs to withdraw from Iraq completely from late 2005, even up until early 2007 when it was clear that a renewed humanitarian response was necessary. Our interviews with a range of humanitarian organizations still operational inside Iraq indicate that since the escalation of inter-communal violence sparked by the Samarah Mosque bombing in February 2006, bilateral donors and ECHO have generally been unresponsive and resistant to operational innovations on the ground. Thus, at a time when operational personnel have needed the greatest understanding and support, such has not been forthcoming.

Donors have indeed been generous with funds earmarked for reconstruction. The International Reconstruction Facility for Iraq (IRFFI), to which 25 donors have pledged some US\$2 billion and the International Compact for Iraq are structured to channel funds through U.N. agencies, the World Bank, and the tottering and often corrupt structures of the Iraqi state. Yet these funds are not easily accessible, or at all accessible, to emergency humanitarian programs. Attempts by U.N. humanitarian officials in 2006 to raise the profile of humanitarian problems in IRFFI discussions "made people nervous". In general, donors have not calibrated funding for humanitarian programs to needs and have often been careless with funding for reconstruction. Our interviews with aid agency staff and with Iraqi communities suggest some disturbing donor failure. Aid agency staff in the Red Cross/Red Crescent Movement, U.N. agencies, NCCI, and international and national NGOs consistently raised shortages of accessible and flexible donor funding as a threat to current and planned humanitarian programs. Operational NGOs with proven track records inside Iraq are feeling the shortfalls most acutely, leading some to close down even as needs escalate. NGOs spoke of being incensed at a multi-million dollar pledge from the Iraqi Government to Lebanon in the summer of 2006, when funds for their own emergency assistance programs were "stuck" in ministries. Other managers identified a lingering sentiment, among some donors and even within one U.N. agency's headquarters, that individual MNF governments—and pre-eminently the United States itself—should bear primary responsibility for underwriting a humanitarian response. Meanwhile, the perception among Iraqis of waste and corruption among international actors and their own authorities has been thoroughly validated, not least by investigations of the U.S. Special Inspector General for Iraq Reconstruction (SIGIR). The scale of carelessness has been staggering. A culture of waste, incompetence and fraud may be one legacy the occupiers have passed on to Iraq's new rulers more or less intact. [SIGIR] found that nearly \$9bn in Iraqi oil revenues could not be accounted for. The cash was flown into the country in shrink-wrapped bundles on military transport planes and handed over by the ton to Iraqi ministries by the Coalition Provisional Authority. . . . The money was meant to demonstrate the invaders' good intentions and boost the Iraqi economy [. . .] but it also fuelled a cycle of corruption left over from Saddam Hussein's rule.

[Update on IDP and USAID mission activities in Iraq](#), U.S. Department of State (U.S. DOS), 27 June 2008

Legal framework and national policy

Legal framework and national policy and decrees on displacement (2004-2010)

- Iraqi legal national framework following as of 2004 was defined by the Transitional Administrative Law (TAL) which came into effect in June 2004 and was valid until 31 December 2005. It outlines two phases: 1) Dissolution of the Coalition Provisional Authority and full sovereignty to an Iraqi Interim Government by 30 June 2004; 2) Election of an Iraqi

- The current constitution of Iraq was approved by a national referendum that took place on 15th October 2005. The constitution had been drafted in 2005 by members of the Iraqi Constitutional Committee to replace the "TAL". It was submitted to the public in a referendum vote in October 2005. The Iraqi Governing Council had promulgated a constitutional framework and related legislation that took into account aspects of international human rights law. The constitution was subsequently adopted though not without controversy due to lack of representation from representatives within Sunni community, and has been subject to modification. This initial political marginalisation would contribute to events leading to civil war in 2006-2007.
- Iraq is a state party to several international human rights agreements. Iraq has also ratified regional instruments including: The Arab Charter on Human Rights; The Cairo Declaration on Human Rights in Islam, Cairo 5 August 1990; and Declaration on the Protection of Refugees and Displaced Persons in the Arab World, 19 November 1992. In 2006, the Office for Human Rights was established within the Deputy Prime Minister's office and the appointment of a human rights adviser to the President of the Council of Representative (CoR). These institutions are expected to contribute to the promotion and protection of human rights within government institutions and to assist in oversight over critical human rights concerns. Experts have noted that there is need to ensure that national instruments are in conformity with international human rights law.
- Iraq does not have any particular legislation dealing with the situation of IDPs and their rights. Being Iraqi nationals, their rights are guaranteed by the generally applicable laws and regulations. However, and given the extent of the IDP problem in Iraq, the Ministry of Migration and Displacement included the full definition contained in the UN Guiding Principles on Internal Displacement in the Draft Law on the Ministry of Migration and Refugee Affairs. It goes further to state that assistance, monitoring and pursuit of durable solutions is to be undertaken in accordance to "prevailing international laws and practices, including the UN Guiding Principles on Internal Displacement, and taking into account the national interest and internal considerations." Therefore, the protection of IDPs is governed by human rights law standards and principles, including the provisions enshrined in the UN Guiding Principles on Internal Displacement
- There is currently no legislation on displacement and return but only government decrees which can be revoked, and national policy on displacement which does not have the force of law. The National Policy on Displacement, launched in July 2008 by the Ministry of Displacement and Migration, is a comprehensive document outlining the rights of IDPs and obligations and responsibilities of the Iraqi government. A detailed national action plan which was to be developed following the launching of the National IDP Policy in order to implement the National Policy has however not been completed as of February 2010. (IDMC Interview, January 2010)
- Several government decrees and administrative orders addressing IDPs and returnees include: Prime Ministerial Order 101(2008); Council of Ministers Decree 262 (2008); Prime Minister Order 54(2009); IHEC guidelines regarding IDP participation in elections (2008); and legal provisions of the CPRRD, and subsequent amendments which have modified the mandate of the renamed CRPC (2010). These government decrees address various issues of concern linked to assistance and facilitating returnees, and restitution or compensation for violations of property rights.
- Experts underline that adequate legislation would be necessary to underline the government's commitments, obligations and responsibilities. This could be based on National Policy on Displacement which remains the most comprehensive document to date

Brookings-Bern, February 2010

Legislation in favor of the displaced should also be strengthened in line with the objectives of the International Compact with Iraq (ICI) and the 'National Policy on Displacement' issued by the MoDM. There is currently no legislation on displacement and return but only government decrees which can be revoked. Based on the Guiding Principles on Internal Displacement²⁸, adequate legislation would help restore trust between the displaced and the government. Proposing such laws could be the task of the Parliamentary Committee on Relocated, Displaced and Migrants. Assistance should be broadened to include support for the development of a legislative framework for displacement, for increased capacity building and for consultations in planning, resource mobilization and improvement of basic services. Increased technical advice should be provided to the MoDM to develop and implement the National Policy on Displacement. Once its mandate is legally secured, MoDM needs sustained support to play an effective role in monitoring displacement and return.

Iraqi Ministry of Displacement and Migration (MoDM), July 2008

The displacement of Iraqis is one of the key challenges faced by the Government of Iraq and international community. Displacement in Iraq has reached an alarming level which has attracted the attention of all Government, non-governmental and international agencies trying to find appropriate solutions and strategies to reverse the situation and swiftly address the issues. In the years before and after the fall of the former regime, Iraq witnessed a wide variety of forced displacement. This has created large groups of displaced persons both inside and outside the country. Such a situation has created many challenges in all governorates and for all sectors of Iraqi society. As a result, displacement has become one of the most complicated and difficult issues the Government of Iraq must address immediately and in the future.

The magnitude and the nature of displacement and the dispersal of Iraqis around the country and in other states has interlinking political, humanitarian, social and economic dimensions. The complex nature of the displacement has meant any solution must extend beyond the Government and involve the wider international community. The latter has a responsibility to intervene and offer help by supporting and assisting the Government of Iraq and the Iraqi society to overcome this problem. Hence, the Government of Iraq will implement a National Policy on Displacement through its line ministries and institutions. This policy comes with a vision for the future in order to understand the nature and size of the problem as well as to mobilize national and international efforts to develop relevant solutions and reconstruct the fabric of Iraqi society.

This reconstruction should take place on the basis of citizenship or ties to the country based on long-term stay, decent living, fair distribution of wealth, enjoyment of public and private rights and freedoms as guaranteed by the Iraqi Constitution and all national and international legislations and instruments. This Policy has been developed through wide consultations led by the Ministry of Displacement and Migration (MoDM) and Kurdistan Regional Government (KRG), supported by the international community, with a large

number of stakeholders at the local, regional and national levels in Iraq. The consultations also involved the groups and communities affected by displacement (both internally displaced persons [IDPs] and host communities), professionals working with mixed communities, national Non-Governmental Organizations (NGOs) and local authorities.

Therefore, this National Policy comes as a national achievement involving many concerned actors and institutions in order to arrive at a new strategic vision to solve this national issue..... The goal of this National Policy is to find durable solutions and to set an effective, realistic and comprehensive framework to respond to the needs of the displaced persons regardless of whether their displacement is characterized as protracted or recent. The wide scope of displacement in Iraq requires a unified response at all levels of Government that will include the following activities:

1. Set up a comprehensive, effective and realistic workplan based on facts and respond to all basic needs to deal with all aspects of displacement.
2. Provide adequate protection and assistance to displaced persons at all levels.
3. Specify coordination structures among all state institutions to provide protection and assistance in a more effective manner to the displaced persons and returnees, and covering needs during emergencies.
4. Allocate funds and develop relevant financial procedures for the implementation of this Policy.

UNHCR, 8 July 2008:

"The Government of Iraq today launched a policy which will improve the situation for displaced persons and returnees. The National Policy to Address Displacement is the result of wide-scale consultations with displaced persons around the country by the Ministry of Displacement and Migration and the United Nations High Commissioner for Refugees (UNHCR) in coordination with other partners. The National Policy to Address Displacement describes the rights and the needs of the 240,000 newly displaced families inside Iraq and clearly outlines the need for coordination and cooperation between the different Ministries and the international community. 'The Policy also is an important tool in the planning for the return to their homes of persons who are displaced inside Iraq or abroad,' according to the Minister of Displacement and Migration, Dr. Adul Samad Rahman Sultan. 'By adopting this National Policy the Government of Iraq makes it clear that it wants to strengthen the protection of and assistance to displaced persons, and it indicates its willingness to work towards durable solutions for the displaced,' added Daniel Endres, Representative of UNHCR in Iraq. "

UNAMI, 22 November 2006:

"HRO welcomes the establishment of the Office for Human Rights within the Deputy Prime Minister's office and the appointment of a human rights adviser to the President of the Council of Representative (CoR). Both are expected to contribute to the promotion and protection of human rights within Government and State institutions and to assist in overseeing the Government's action on and the Council's oversight over critical human rights concerns, including conditions of detention."

UNHCR, October 2005, pp.117-118

"Iraq does not have any particular legislation dealing with the situation of IDPs and their rights. Being Iraqi nationals, their rights are guaranteed by the generally applicable laws and regulations. However, and given the extent of the IDP problem in Iraq, MoDM included the full definition contained in the *UN Guiding Principles on Internal Displacement*[...] in the *Draft Law on the Ministry of Migration and Refugee Affairs*. It goes further to state that: *Coordinating, facilitating and supporting the monitoring, protection and assistance of the following categories, and the*

pursuit of solutions for them, according to the principles of prevailing international laws and practices, including the UN Guiding Principles on Internal Displacement, and taking into account the national interest and internal considerations: a) Iraqi displaced persons. Therefore, the protection of IDPs is governed by human rights law standards and principles, including the provisions enshrined in the UN Guiding Principles on Internal Displacement.”

IWPR, 2005:

“The Transitional Administrative Law will be the Supreme Law of Iraq, during the transitional period. It will expire once a government is elected under a permanent constitution and take office. This will happen no later than December 31, 2005..... The Fundamental Principles of the Law include the following: The system of government in Iraq will be republican, federal, democratic, and pluralistic. Federalism will be based on geography, history, and the separation of powers and not on ethnicity or sect. The Iraqi Armed Forces will fall under the control of Iraq’s civilian political leadership. Islam will be the official religion of the State and will be considered a source of legislation. The Law will respect the Islamic identity of the majority of the Iraqi people and guarantee the freedom of religious belief and practice. Arabic and Kurdish will be the official languages of Iraq. The people of Iraq are sovereign and free. All Iraqis are equal in their rights and without regard to gender, nationality, religion, or ethnic origin and they are equal before the law. Those unjustly deprived of their citizenship by previous Iraqi regimes will have the right to reclaim their citizenship. The government will respect the rights of the people, including the rights:

- To freedom of thought, conscience, and expression;
- To assemble peaceably and to associate and organize freely;
- To justice; to a fair, speedy, and open trial and to the presumption of innocence;
- To vote, according to law, in free, fair, competitive and periodic elections;
- To file grievances against officials when these rights have been violated.

University of Minnesota, Human Rights Law Library, 2009

International Bill of Human Rights		Ratification	Accession	Succession	Entry into Force
<u>International Covenant on Economic, Social and Cultural Rights</u>	18 Feb 1969	25 Jan 1971			3 Jan 1976
<u>International Covenant on Civil and Political Rights</u>	18 Feb 1969	25 Jan 1971			23 Mar 1976
<u>Optional Protocol to the International Covenant on Civil and Political Rights</u>	Not signed				
<u>Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty</u>	Not signed				
Prevention of Discrimination on the Basis of Race, Religion, or Belief; and Protection of Minorities	Signature		Accession	Succession	Entry into Force
<u>International Convention on the Elimination of All Forms of Racial</u>	18 Feb 1969	14			

<u>Discrimination</u>		J n 1 9 7 0			
Women's Human Rights	Signature		Accession	Succession	Entry into Force
<u>Convention on the Elimination of All Forms of Discrimination against Women</u>			13 Aug 1986		
<u>Optional Protocol to the Convention on the Elimination of Discrimination against Women</u>	Not signed				
<u>United Nations Convention against Transnational Organized Crime</u>	Not signed				
<u>Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime Preamble, supplementing the United Nations Convention against Transnational Organized Crime</u>	Not signed				
<u>Protocol against the Smuggling of Migrants by Land, Sea and Air, supplementing the United Nations Convention against Transnational Organized Crime</u>	Not signed				
Slavery and Slavery-Like Practices	Signature		Accession	Succession	Entry into Force
<u>Slavery Convention</u>			18 Jan 1929		
<u>Protocol amending the Slavery Convention</u>			23 May 1955		
<u>Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery</u>	7 Sep 1956	30 Sep 1963			
<u>Convention for the Suppression of the</u>			22 Sep 1955		

<u>Traffic in Persons and of the Exploitation of the Prostitution of Others</u>					
Protection from Torture, Ill-Treatment and Disappearance	Signature		Accession	Succession	Entry into Force
<u>European Convention for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment</u>	Not signed				
<u>Protocol No. 1 to the European Convention for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment</u>	Not signed				
<u>Protocol No. 2 to the European Convention for the Prevention of Torture and inhuman or Degrading Treatment of Punishment</u>	Not signed				
<u>Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment</u>	Not signed				
Rights of the Child	Signature		Accession	Succession	Entry into Force
<u>Convention on the Rights of the Child</u>			15 July 1994		
<u>Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflicts</u>	Not signed				
<u>Convention concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labour</u>		9 Jul 2001			
Freedom of Association	Signature		Accession	Succession	Entry into Force
<u>Freedom of Association and Protection of the Right to Organise Convention</u>	Not signed				
<u>Right to Organise and Collective Bargaining Convention</u>	27 Nov 1962				

Employment and Forced Labour	Signature		Accession	Succession	Entry into Force
<u>Convention concerning Forced or Compulsory Labour</u>		27 Nov 1962			
<u>Equal Remuneration Convention</u>		28 Aug 1963			
<u>Abolition of Forced Labour Convention</u>		15 Jun 1959			
<u>Discrimination (Employment and Occupation) Convention</u>		15 Jun 1959			
<u>Employment Policy Convention</u>		2 Mar 1970			
<u>Convention concerning Occupational Safety and Health and the Working Environment</u>	Not signed				
<u>Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families</u>	Not signed				
Education	Signature		Accession	Succession	Entry into Force
<u>Convention against Discrimination in Education</u>		Ratified			
Refugees and Asylum	Signature		Accession	Succession	Entry into Force
<u>Convention relating to the Status of Refugees</u>	Not signed				
<u>Protocol Relating to the Status of Refugees</u>	Not signed				
Nationality, Statelessness, and the Rights of Aliens	Signature		Accession	Succession	Entry into Force
<u>Convention on the Reduction of Statelessness</u>	Not signed				
<u>Convention relating to the Status of Stateless Persons</u>	Not signed				
War Crimes and Crimes Against Humanity, Genocide, and Terrorism	Signature		Accession	Succession	Entry into Force

<u>Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes Against Humanity</u>	Not signed				
<u>Convention on the Prevention and Punishment of the Crime of Genocide</u>			20 Jan 1959		
<u>Rome Statute of the International Criminal Court</u>	Not signed				
Law of Armed Conflict	Signature		Accession	Succession	Entry into Force
<u>Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field</u>		14 Feb 1956 Ratif./Acc.			
<u>Geneva Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea</u>		14 Feb 1956 Ratif./Acc.			
<u>Geneva Convention relative to the Treatment of Prisoners of War</u>		14 Feb 1956 Ratif./Acc.			
<u>Geneva Convention relative to the Protection of Civilian Persons in Time of War</u>		14 Feb 1956 Ratif./Acc.			
<u>Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts (Protocol I)</u>	Not signed				
<u>Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims on Non-International Armed Conflicts (Protocol II)</u>	Not signed				
Terrorism and Human Rights	Signature		Accession	Succession	Entry into Force
<u>International Convention Against the Taking of Hostages</u>	14 Oct 1980				
<u>International Convention for the Suppression of Terrorist Bombing</u>	Not signed				

<u>International Convention for the Suppression of the Financing of Terrorism</u>	Not signed				
<u>International Convention for the Suppression of Unlawful Seizure of Aircraft</u>	22 Feb 1971	3 Dec 1971			
<u>International Convention on the Prevention and Punishment of Crimes Against International Protected Persons</u>		28 Feb 1978			
U.N. Activities and Employees	Signature		Accession	Succession	Entry into Force
<u>Convention on the Privileges and Immunities of the United Nations</u>		15 Sep 1949			
<u>Convention on the Safety of United Nations and Associated Personnel</u>	Not signed				

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UNHCR, October 2005, pp.117-118

“Iraq does not have any particular legislation dealing with the situation of **IDPs** and their rights. Being Iraqi nationals, their rights are guaranteed by the generally applicable laws and regulations. However, and given the extent of the IDP problem in Iraq, MoDM included the full definition contained in the *UN Guiding Principles on Internal Displacement*[...] in the *Draft Law on the Ministry of Migration and Refugee Affairs*. It goes further to state that:

Coordinating, facilitating and supporting the monitoring, protection and assistance of the following categories, and the pursuit of solutions for them, according to the principles of prevailing international laws and practices, including the UN Guiding Principles on Internal Displacement, and taking into account the national interest and internal considerations: a) Iraqi displaced persons.

Therefore, the protection of IDPs is governed by human rights law standards and principles, including the provisions enshrined in the *UN Guiding Principles on Internal Displacement*.”

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National Policy on Displacement attempts to provide a comprehensive approach to situation of displacement in Iraq. The document includes provisions enshrined in the UN Guiding Principles on Internal Displacement.

Availability of the Guiding Principles in local languages

The GP are available in Arabic [[Internet](#)]

On the implementation of the Guiding Principles see also:

[Addressing Internal Displacement: A Framework for National Responsibility \(Arabic\)](#)

[Handbook for Applying the Guiding Principles on Internal Displacement \(Arabic\)](#)

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